

CODE
of the Town of
BERLIN, MARYLAND
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-05, adopted November 10, 2025.

See the Code Comparative Table for further information.

Remove Old Pages

Checklist of up-to-date pages

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Ordinance No. 2025-04, adopted August 11, 2025.

See the Code Comparative Table for further information.

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Ordinance No. 2024-05, adopted August 12, 2024.

See the Code Comparative Table for further information.

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Ordinance No. 2024-03, adopted May 13, 2024.

See the Code Comparative Table for further information.

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Ordinance No. 2023-04, adopted June 12, 2023.

See the Code Comparative Table for further information.

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See the Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

Included in the Charter is:

Resolution No. 2020-01, adopted February 10, 2020.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

Included in the Charter is:

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See the Charter Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-4, adopted July 28, 2014.

See the Code Comparative Table for further information.

Included in the Charter is:

Resolution No. 2013-13, adopted October 28, 2013.

See the Charter Comparative Table for further information.

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Ordinance No. 2013-5, adopted July 22, 2013.

See the Code Comparative Table for further information.

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CODE
OF THE TOWN OF
BERLIN, MARYLAND

Published in 2012 by Order of the Mayor and Council

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OFFICIALS
of the
TOWN OF
BERLIN, MARYLAND
AT THE TIME OF THIS RECODIFICATION

Wm. Gee Williams III
Mayor

Elroy Brittingham Sr., Vice-President
Dean Burrell
Lisa Hall
Paula Lynch
Troy Purnell
Town Council

Anthony J. Carson Jr.
Town Administrator

David Gaskill
Town Attorney

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the Town of Berlin, Maryland.

Source materials used in the preparation of the Code were the 1977 Code, as supplemented through April 12, 2010, and ordinances subsequently adopted by the Mayor and Council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1977 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain

portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
CHARTER COMPARATIVE TABLE	CHTCT:1
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Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Alyce A. Whitson, Senior Code Attorney, and Paula B. Freeman, Editor, of the Municipal Code

Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mary Bohlen, Deputy Town Administrator, David Gaskill, Town Attorney, Chuck Ward, Planning Director, and the other members of the town staff for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the town readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the town's affairs.

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ADOPTING ORDINANCE

ORDINANCE 2012-08

AN ORDINANCE ADOPTING AND ENACTING A NEW CODE FOR THE TOWN OF BERLIN, MARYLAND; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

BE IT ORDAINED AND ENACTED BY THE MAYOR AND TOWN COUNCIL OF THE TOWN OF BERLIN, MARYLAND;

Section 1. The Code entitled "Code of the Town of Berlin, Maryland" published by Municipal Code Corporation, consisting of Chapters 1 through 108, each inclusive, is adopted.

Section 2. All Ordinances of a general and permanent nature enacted on or before June 11, 2012, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in Section 2 hereof shall not be construed to revive any Ordinance or part thereof that has been repealed by a subsequent Ordinance that is repealed by this Ordinance.

Section 4. Unless another penalty is expressly provided or unless otherwise specified as a municipal infraction, every person convicted of a violation of any provision of the Code or any Ordinance, rule or regulation adopted or issued in pursuance thereof shall be punishable as a misdemeanor, the penalty for which shall not exceed a fine of \$1,000 and/or imprisonment for a term not to exceed six months. Each act of violation and each day upon which any such violation shall continue or occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendatory Ordinance. In addition to the penalty prescribed above, the Town may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication and revocation of licenses or permits.

Section 5. Additions or amendments to the Code when passed in such form as to indicate the intention of the Town to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after June 11, 2012, that amend or refer to Ordinances that have been codified in the Code, shall be construed as if they amend or refer to like provisions of the Code.

Section 7. This Ordinance shall become effective September 15, 2012.

THIS ORDINANCE was introduced and read at a meeting of the Town Council held on the 13th day of August, 2012, and thereafter a statement of the substance of the Ordinance having been published as required by law was finally passed by the Town Council on the 27th day of August, 2012.

Adopted this 27th day of August, 2012 by the Mayor and Council of the Town of Berlin, Maryland, by affirmative vote of 5 to 0 opposed, with 0 abstaining.

/s/ Elroy Brittingham, Sr.
Vice President

Approved and effective this 15th day of September, 2012 by the Mayor of the Town of Berlin.

/s/ William Gee Williams, III
Mayor

APPROVED AS TO FORM AND LEGALITY:

/s/ David Gaskill
Town Attorney

ATTEST:

/s/ Anthony J. Carson, Jr.
Town Administrator

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Checklist of Up-to-Date Pages

(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code will be able to gain a more complete picture of the Code's historical evolution.

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2012-08	8-27-2012	Include	1
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2013-01	1-28-2013	Include	1
2013-02	3-11-2013	Include	1
2013-03	5-13-2013	Omit	1
2013-4	6-24-2013	Include	1
2013-5	7-22-2013	Include	1
2013-06	11-25-2013	Include	2
2013-07	10-28-2013	Include	2
2013-09	10-28-2013	Include	2
2013-10	10-28-2013	Include	2
2013-11	10-28-2013	Include	2
2013-12	10-28-2013	Include	2
2013-13	10-28-2013	Include	2
2014-3	7-14-2014	Include	2
2014-4	7-28-2014	Include	2
2014-06(Res.)	3-23-2015	Include	3
2014-07	1-12-2015	Include	3
2015-03(Res.)	5-11-2015	Include	3
2015-04	7-13-2015	Include	3
2015-05	7-13-2015	Include	3
2015-06	11- 9-2015	Include	3
2015-11(Res.)	8-10-2015	Include	3
2015-07	10-13-2015	Include	4
2016-01	4-11-2016	Include	4
2016-02	4-11-2016	Omit	4
2016-03	6-13-2016	Include	4
2016-05	7-11-2016	Include	4
2016-06	7-11-2016	Include	4
2016-07(Res.)	6-13-2016	Omit	4
2017-01	5- 8-2017	Include	5
2017-03	7-10-2017	Include	5
2017-04	7-10-2017	Include	5

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2018-06	11-26-2018	Include	6
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2019-04	6-24-2019	Include	7
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- Sec. C2-2. 1969 Annexation.
- Sec. C2-3. 1971 Annexation.
- Sec. C2-4. 1980 Annexation.
- Sec. C2-5. 1982 Annexation.
- Sec. C2-5.1. 1989 Annexation.
- Sec. C2-5.2. 1989 Annexation.
- Sec. C2-6. 1991 Annexation.
- Sec. C2-7. 1992 Annexation.
- Sec. C2-8. 1993 Annexation.
- Sec. C2-9. October 1997 Annexation.
- Sec. C2-10. November 1997 Annexation.
- Sec. C2-11. January 1998 Annexation.
- Sec. C2-12. July 1998 Annexation.
- Sec. C2-12.1. November 1998 Annexation.
- Sec. C2-13. April 1999 Annexation.
- Sec. C2-14. August 1999 Annexation.

***Editor's note**—Printed in this Part I is the Charter of the Town of Berlin, Maryland. The Resolution of December 19, 1960, repealed Sections 7 to 43, inclusive, of Article 24 of the Code of Public Local Laws of Maryland (1930 Edition), title "Worcester County," subtitle "Berlin," together with all amendments thereof and especially Chapter 107 of the Laws of Maryland of 1931, Chapter 74 of the Laws of Maryland, 1938 Special Session, Chapters 212, 213 and 214 of the Laws of Maryland of 1945, Chapter 579 of the Laws of Maryland of 1947, Chapter 70 of the Laws of Maryland of 1951, and the resolution of the Mayor and Council of Berlin, dated November 10, 1960, amending Section 34A of said Article 24. Sections 21 and 89 of the old Charter were construed in *Jarvis v. Berlin*, 153 Md. 163, 138 A. 7 (1927). Ch. 6 of 1935 authorized Berlin to borrow one hundred thousand dollars (\$100,000.00) for a sanitary sewerage system and sewage treatment plant. Ch. 534 of 1945 authorized the establishment of a sinking fund for the retirement of improvement and extension bonds. Ch. 53 of 1947 authorized borrowing one hundred thirty-five thousand dollars (\$135,000.00) to erect, construct and improve the water system. Section 2 of this Act was amended by Ch. 592 of 1947. The original Charter and all amendments to the Charter are cited in the history note in parentheses following each section. Obvious misspellings have been corrected without notation, and words and punctuation added for clarity are indicated in brackets. A uniform system of capitalization has been used. Sections C7-23, C15-4 and C15-6 amended during the 1977 codification. Other amendments noted where applicable.

State law reference—Charter amendments, Md. Ann. Code art. 23A, §§ 13—19.

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- Sec. C2-15. December 1999 Annexation.
- Sec. C2-16. April 2000 Annexation.
- Sec. C2-17. October 2000 Annexation.
- Sec. C2-18. June 2001 Annexation.
- Sec. C2-19. March 2004 Annexation.
- Sec. C2-20. April 12, 2004 Annexation.
- Sec. C2-21. April 26, 2004 [Annexation.]
- Sec. C2-22. December 12, 2005 Annexation.
- Sec. C2-23. June 12, 2006 Annexation.
- Sec. C2-24. July 27, 2009 Annexation.
- Sec. C2-25. 2011 Annexation.
- Sec. C2-26. March 2015 Annexation.
- Sec. C2-27. May 2015 Annexation.
- Sec. C2-28. May 2019 Annexation.
- Sec. C2-29. October 2019 Annexation.
- Sec. C2-30. February 2020 Annexation.

Article III. The Council

- Sec. C3-1. Number; selection; term.
- Sec. C3-2. Qualifications.
- Sec. C3-3. Salary.
- Sec. C3-4. Meetings.
- Sec. C3-5. Judgment of members' qualifications.
- Sec. C3-6. President of council.
- Sec. C3-7. Quorum.
- Sec. C3-8. Procedure.
- Sec. C3-9. Vacancies.
- Sec. C3-10. Adoption of ordinances.
- Sec. C3-11. Veto.
- Sec. C3-12. Referendum.
- Sec. C3-13. File of ordinances.

Article IV. The Mayor

- Sec. C4-1. Selection and term.
- Sec. C4-2. Qualifications.
- Sec. C4-3. Salary.
- Sec. C4-4. Powers and duties.

Article V. General Powers

- Sec. C5-1. Enumeration of powers.
- Sec. C5-2. Exercise of powers.
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- Sec. C6-5. Notice.
- Sec. C6-6. Voter registration.
- Sec. C6-7. Appeals.
- Sec. C6-8. Nominations for elective office.
- Sec. C6-9. Election of Mayor and Councilmembers.
- Sec. C6-10. Conduct of elections.
- Sec. C6-10.1. Referendum.
- Sec. C6-11. Special elections.
- Sec. C6-12. Vote count.
- Sec. C6-13. Preservation of ballots.
- Sec. C6-14. Vacancies.
- Sec. C6-15. (Reserved)
- Sec. C6-16. Regulation and control.
- Sec. C6-17. Penalty.

Article VII. Finance

- Secs. C7-1 through C7-3. (Reserved)
- Sec. C7-4. Fiscal year.
- Sec. C7-5. Budget.
- Sec. C7-6. Budget adoption.
- Sec. C7-7. Appropriations.
- Sec. C7-8. Transfer of funds.
- Sec. C7-9. Overexpenditure prohibited.
- Sec. C7-10. Lapse of appropriations.
- Sec. C7-11. Checks.
- Sec. C7-12. Taxable property.
- Sec. C7-13. Tax levy.
- Sec. C7-14. Notice of tax levy.
- Sec. C7-15. Overdue taxes; interest.
- Sec. C7-15.1. Discounts.
- Sec. C7-16. Sale of tax-delinquent property.
- Sec. C7-17. Fees.
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- Sec. C7-19. Long-term borrowing.
- Sec. C7-19.1. Sale of bonds.
- Sec. C7-20. Tax anticipation notes.
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- Sec. C7-22. Previous issues.
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- Sec. C10-6. Charge for connections.
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- Sec. C10-8. Private systems.
- Sec. C10-9. Extension of systems.
- Sec. C10-10. Right of entry.
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- Sec. C10-12. Contracts for water or sewage removal.
- Sec. C10-13. Charges.

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- Sec. C11-1. Powers.
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- Sec. C14-3. Establishment of agency.
- Sec. C14-4. Initiation of project.
- Sec. C14-5. Preparation and approval of plan.
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- Sec. C15-6. Severability.

ARTICLE I. INCORPORATION

Sec. C1-1. Incorporation and general powers.

The inhabitants of the Town of Berlin, Maryland, residing and included within the corporate limits of said municipal corporation, as said corporate limits were heretofore and are hereby established, and as the same may hereafter be extended, are hereby continued a public body corporate by the name of "Mayor and Council of Berlin," with all the privileges of a body corporate, by that name to sue and be sued, to plead and be impleaded in any court of law or equity, to have and use a common seal and to have perpetual existence unless this Charter and the corporate existence of the town are forfeited, released or terminated in the manner prescribed by law.

(Res. of 12-19-1960)

ARTICLE II. BOUNDARIES

Sec. C2-1. Described.

A. The courses and distances showing the corporate limits of the town shall be the same as those heretofore set forth in Section 9 of Article 24 of the Code of Public Local Laws of Maryland (1930 Edition), title: "Worcester County," subtitle: "Berlin," viz:

Beginning at the southeast corner of the Buckingham Cemetery, and running from thence by and with the south side of the Newport Road, via the African M. E. Church to the northwest corner of the Major Hill lot, and thence to the intersection of the Sinepuxent Road with Hudson's Branch; thence to the south side of the bridge over Nelson's Branch on the Taylorville Road; thence to the south side of the bridge at the intersection of the St. Martin's and Whaleyville Roads; thence to the gate of the heirs of Littleton P. Franklin, on the Libertytown

Road; thence to the southwest corner of H. D. Tingle's lot on the road running from Buckingham Cemetery to the D. M. & V. Railroad; thence in an easterly course by and with the south side of said road and the south line of said cemetery to the beginning.

B. On February 7, 1961, the mayor shall cause the foregoing outline of said corporate limits to be filed with the following:

- (1) The clerk of the circuit court for Worcester County.
- (2) The commissioner of the Land Office of Maryland.
- (3) The director of the Department of Legislative Reference of Maryland.

C. All future changes in said corporate limits, by annexation or otherwise, shall likewise be filed with said officials or their successors.

(Res. of 12-19-1960, § 8)

Sec. C2-2. 1969 Annexation.

A. *Described.* The following described lands contiguous to the Town of Berlin lying and being situate in the Third Election District of Worcester County shall be added to, taken into and made part of the Town of Berlin:

All that certain area of land, together with the persons residing therein and their property contiguous to and binding upon the northerly corporate limits of the Town of Berlin and being more particularly described as follows:

Beginning for the same at a cement boulder [one (1) of the corporate monuments] on the westerly edge of the blacktop on William Street (said point of beginning being north 74 degrees 42 minutes west 3,580 feet from the beginning of the northeasterly corporate line of the Town of Berlin and shown at the letter "C" on a plat entitled "Extension of Corporate Limits of Berlin, Maryland, Worcester

County," surveyed by William D. Pitts, Registered Surveyor, on April 2, 1968, with magnetic bearings of 1938), and from said point of beginning running by and with the present corporate line north 74 degrees 42 minutes west 142.08 feet; thence running north 26 degrees 17 minutes east 474.25 feet to the south side of old U.S. Route No. 50; thence by and with the south side of old U.S. No. 50, north 86 degrees 48 minutes east 186.45 feet; thence crossing said old U.S. Route No. 50 north 41 degrees 22 minutes east 50.95 feet to the north side of said old U.S. Route No. 50 and to the east corner of the American Legion property; thence by and with the northeasterly line of said American Legion property, north 19 degrees 10 minutes west 144.9 feet to an iron pipe; thence north 65 degrees 25 minutes east 552.3 feet to the westerly side of Dual Highway leading to Selbyville and known as U.S. Route 113; thence by and with the westerly side of said Dual Highway the eleven (11) following courses and distances:

- (1) South 12 degrees 47 minutes east, 68.5 feet;
- (2) Thence south 24 degrees 48 minutes west, 116.2 feet to the north-westerly side of old U.S. Route No. 50;
- (3) Thence across the same south 33 degrees 07 minutes east, 30 feet;
- (4) Thence south 76 degrees 32 minutes east, 67.4 feet;
- (5) Thence south 12 degrees 47 minutes east, 434.42 feet;
- (6) Thence south 12 degrees 34 minutes east 20.58 feet;
- (7) Thence south 11 degrees 19 minutes east, 100.0 feet;
- (8) Thence south 9 degrees 15 minutes east, 100.0 feet;
- (9) Thence south 7 degrees 12 minutes east, 100.0 feet;
- (10) Thence south 5 degrees 09 minutes east, 100.0 feet;
- (11) Thence south 3 degrees 48 minutes east, 69.0 feet to intersect the aforesaid northeasterly corporate line of the Town of Berlin at a point north 74 degrees 42 minutes west 2,582 feet from its point of origin at the bridge at the north end of Flower Street; thence by and with said corporate line north 74 degrees 42 minutes east 998.2 feet to the place of beginning (passing through a corporate monument "B" on the plat at a distance of 966.02 feet containing and now laid out for 16.38 acres of land).

B. Residents subject to Charter and ordinances. The persons residing in the area to be annexed and their property shall, as soon as the annexation has taken effect, be subject to the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin, except as hereinafter modified, and in particular, the conditions and circumstances of annexation applicable to such persons and their property shall be as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date thereof.
- (3) *Water.* The annexed area is already receiving municipal water and no changes in the service will be made. The same rates will be charged as in all other areas of the town.

- (4) *Electrical service.* The entire area to be annexed is presently served by the town's electric power system with the exception of the properties of Sunshine Laundry, Cropper & Brittingham, M. P. Davis and Robert W. Todd. The town plans to extend its electrical service to those properties subject to agreement with the Delmarva Power and Light Company and/or approval and authorization from the Public Service Commission of Maryland.
- (5) *Sewer service.* Following annexation, the town plans to extend its sewage line from the present town limits on Williams Street to the end of the newly annexed area. The town has previously entered into an agreement with Sunshine Laundry whereby the latter will pay a substantial portion of the costs of such water extension. No charges for the construction of this extension will be levied against any other property owners and users in the newly annexed area, except that they will be required to pay the town's regular hook-up charge and will be assessed the town's regular monthly service charge (such charge to be assessed after hookup). The town will further require that all existing homes and buildings in the newly annexed area be hooked up to the city sewage system within one (1) year after the completion of the aforesaid extension.
- (6) *Zoning.* The provisions of the Worcester County Zoning Ordinances as applicable on the day that annexation became effective shall continue to be applied to the annexed area, until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan], and the town subsequently enacts a valid zoning ordinance covering this area. Such rezoning will be done only after public hearings have been held and other statutory zoning requirements have been met.
- (7) *Voting rights.* All residents in the annexed area shall forthwith have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Taxes.* All properties, real and personal, in the annexed area which are then subject to the payment of county taxes shall forthwith become subject to the payment of real and/or personal property taxes, as the case may be, to the Town of Berlin at the same rate as such properties are taxed in the remainder of the town. Such taxes will be originally prorated from the date of annexation to the subsequent July 1 and will be due and payable within 60 days of annexation. Thereafter, taxes will be billed and payable in the same manner as they are in the remainder of the town.

(Res. of 7-28-1969)

Sec. C2-3. 1971 Annexation.

A. *Described.* The following described lands contiguous to the Town of Berlin lying and being situated in the Third Election District of Worcester County be and they are hereby added to, taken into and made part of the Town of Berlin: All that certain area of land, together with the persons residing therein and their property contiguous to and binding upon the westerly corporate limits of the Town of Berlin and being more particularly described as follows:

Beginning at a point marked "X" on a plat entitled "Land to be Annexed to the Town of Berlin, Maryland," surveyed by George A. Chapman Registered Surveyor, on June 30, 1971, where the present corporate limits of Berlin intersects the northeast property line of the parcel to be annexed; being also on the southwest line (rear) of a lot owned by Preston Carey; said lot lying on the south side of Maryland Route 374 approximately one-

half (1/2) mile west of the Pennsylvania Railroad; thence along the line of Adkins Company property being also the lines of property owned by said Preston Carey and Clifford Fields, north 51 degrees 23 minutes west a distance of 150 feet to a concrete monument which marks the north corner of the Adkins Company property; thence running by and with the lands of Leslie G. Hastings south 39 degrees 30 minutes west 2,443.28 feet to a stake; thence running by and with the lands of Fred D. Hodgins and John H. Warren, south 65 degrees 45 minutes east 1,685.69 feet to a stake which is the corner of said Adkins Company land, said Warren land and the land of George H. Parsons; thence by and with said Parsons' land north 41 degrees 42 minutes west 70.0 feet to intersect the present corporate limits line of the Town of Berlin; thence by and with the corporate limit line north 02 degrees 04 minutes east 2,433.30 feet to the beginning; containing 50.34 acres more or less.

B. *Residents subject to Charter and ordinances.* The persons now residing or to reside in this area to be annexed and their property be and they are hereby subject to the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin, and in particular the conditions and circumstances applicable to such persons and their property are as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately on September 7, 1971.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately on September 7, 1971.
- (3) *Water.* On September 7, 1971, the town will extend its waterlines from the present town limits on Broad Street to the newly annexed area. No charge for the construction of this extension will be levied against any property owners or users in the newly annexed area, except that they will be required to pay the town's regular hookup charge and they will be assessed the town's regular monthly service charge after hookup. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's water system.
- (4) *Electrical service.* On September 7, 1971, the area to be annexed will be served by the town's electric power system. The town plans to extend its electric service to the newly annexed area from its existing power lines located on Broad Street.
- (5) *Sewer service.* On September 7, 1971, the town will extend its sewer lines from present town limits on Broad Street to the newly annexed area. No charge for the construction of this extension will be levied against any property owners or users in the newly annexed area, except that they will be required to pay the town's regular hookup charge and they will be assessed the town's regular monthly service charge after hookup. All structures constructed after September 7, 1971, in the newly annexed area will be required to hook up to the town's sewer system.
- (6) *Zoning.* The provisions of the Worcester County Zoning Ordinance as applicable on September 7, 1971, are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan], and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area.
- (7) *Voting rights.* All residents in the annexed area shall, on September 7, 1971,

have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

- (8) *Taxes.* All property in the newly annexed area shall be, on September 7, 1971, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from the effective date of this resolution to July 1, 1972, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1972, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. of 7-23-1971)

Sec. C2-4. 1980 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northerly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning for the same at a point marked "P.O.B." on plats by Loewer & Associates, Inc., dated November 19, 1979, and titled "Annexation to the Corporate Town Boundaries of the Town of Berlin, Maryland." P.O.B. also being 67 degrees 15 minutes 00 seconds east, 197.62 feet from the end of the fifth course and beginning of the sixth course of the description of the survey dated April 2, 1968, by William Pitts, of the 16.38 acre annex to the Town of Berlin; thence leav-

ing said point of beginning, referring all courses to the magnetic meridian for 1968, and running and binding with the westerly lines of the land of R.W. Todd and Chesapeake Foods, Inc. north 53 degrees 14 minutes 16 seconds west, 557.56 feet to a point and to the north-westerly corner of plat dated April 15, 1979, by Herman L. Purnell III for the Chesapeake Foods, Inc., office building area; thence running with the northerly line of said plat and fence there situate and also crossing the U.S. Route 113 right-of-way as shown on S.R.C. Plat No. 12926, north 55 degrees 41 minutes 30 seconds east, 978.02 feet to a point and to the easterly right-of-way line of U.S. Route 113; thence running and binding with the easterly side of said U.S. Route 113 and U.S. Route 50 and referring to a plat dated February 6, 1979, by Harold W. Hampshire, titled "Berlin Nursing Home," the following 9 courses and distances:

Beginning at a point north 08 degrees 46 minutes 45 seconds west, 388.12 feet to a point; thence north 83 degrees 26 minutes 30 seconds east, 42.00 feet to a point; thence north 02 degrees 47 minutes 42 seconds west, 360.10 feet to a point; thence north 18 degrees 42 minutes 31 seconds east, 224.34 feet to a point; thence 36 degrees 02 minutes 54 seconds east, 208.27 feet to a point; thence north 53 degrees 44 minutes 42 seconds east, 388.12 feet to a point; thence north 64 degrees 14 minutes 25 seconds east, 171.84 feet to a point; thence north 87 degrees 23 minutes 21 seconds east, 176.71 feet to a point; thence south 85 degrees 46 minutes 31 seconds east, 93.40 feet to a point; thence leaving said right-of-way of said U.S. Route 50 and running and binding

with the easterly side of said Berling Nursing Home property the following 5 courses:

Beginning at a point south 21 degrees 51 minutes 00 seconds east, 178.23 feet to a point; thence south 40 degrees 47 minutes 00 seconds west, 577.50 feet to a point; thence south 14 degrees 59 minutes 00 seconds east, 891.66 feet to a point; thence south 59 degrees 54 minutes 00 seconds west, 255.20 feet to a point; thence south 29 degrees 14 minutes 55 seconds east, 298.92 feet to an iron pipe found on the northerly right-of-way line of Maryland Route 346; thence running and binding with the northerly right-of-way line of Maryland Route 346, south 58 degrees 46 minutes 40 seconds west, 661.05 feet to a point and to the intersection of Maryland Route 346 and U.S. Route 113; thence running and binding with the easterly side of said U.S. Route 113, north 60 degrees 18 minutes 42 seconds west, 79.88 feet to a point; thence leaving said easterly right-of-way line of U.S. Route 113 and running across said U.S. Route 113 south 78 degrees 58 minutes 19 seconds west, 150.00 feet to a point on the westerly right-of-way line of U.S. Route 113 and also on the northerly boundary line of Berlin Town limits, as described in the aforesaid description dated April 2, 1968; thence running and binding on the northerly boundary line of aforesaid existing Berlin Town limits south 67 degrees 15 minutes 00 seconds west, 348.10 feet to the point of beginning; containing 41.21 acres, plus or minus.

B. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be ex-

tended into the annexed area immediately upon the effective date of annexation.

- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The town will extend its waterlines from the existing line on Ocean City Boulevard to the newly annexed area as expeditiously as possible. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's water system. The same rates will be charged as in all other areas of the town.
- (4) *Sewer service.* The town will extend its sewer lines from the existing line on Ocean City Boulevard to the newly annexed area as expeditiously as possible. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's sewer system. The same rates will be charged as in all other areas of the town.
- (5) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area. For a period of five (5) years none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.

- (6) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (7) *Taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from the effective date of this resolution to July 1, 1980, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1980, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. of 1-21-1980)

Sec. C2-5. 1982 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at a spike set at the northeast corner of the present corporate limit boundary line of the Town of Berlin, Maryland; said spike set in the centerline of the macadam of Flower Street at its intersection with the centerline of the run of Kitts Branch, said spike being also located north 57 degrees 08 minutes 00 seconds east, 176.05 feet from

an iron pipe found at the southeast corner of land of Berry Jarmon as recorded in the land records of Worcester County, Maryland, in Liber FWH 377, Folio 267. Thence, by and with the northeasterly corporate limit line of Berlin north 72 degrees 37 minutes 26 seconds west, 2,585.96 feet to a point on the westerly right-of-way line of U.S. Route 113 (150 feet wide); said point being also located south 72 degrees 37 minutes 26 seconds east, 958.74 feet from a former corporate boundary marker located on the east side of Williams Street; thence, by and with the westerly right-of-way line of said U.S. 113 (150 feet wide); as shown on Maryland State Roads Commission Plats numbered 12925 and 12926, the following 6 courses and distances:

- (1) A distance of 498.20 feet with the arc of a curb to the left having a radius of 2,789.79 feet and a chord bearing and distance of north 5 degrees 08 minutes 30 seconds west, 497.55 feet to a point;
- (2) Thence, north 10 degrees 15 minutes 30 seconds west, 439.08 feet to a point;
- (3) Thence, north 73 degrees 59 minutes 40 seconds west, 67.4 feet to a point on the southerly right-of-way of old U.S. Route 50, now known as Maryland Route 346 (30 feet wide);
- (4) Thence, across said Maryland Route 346, north 30 degrees 35 minutes 30 seconds west, 30.00 feet to a point on the northerly right-of-way line of said Maryland Route 346;
- (5) Thence, north 27 degrees 19 minutes 14 seconds east, 116.19 feet to a point;

(6) Thence, north 10 degrees 15 minutes 30 seconds west, 68.50 feet to a point at the end of line 6 and the beginning of line 7 of the description of the extension of the corporate limits of Berlin, Maryland, as surveyed by William D. Pitts on April 2, 1968, and annexed by the Town of Berlin on July 28, 1969; thence, across U.S. Route 113 and supposed to be by and with reversed lines 19, 18, and 17 of a survey titled "Annexation to the Corporate Town Boundaries of the Town of Berlin, Maryland, by Loewer and Associates, Inc.," dated November 19, 1979, the following 3 courses and distances:

- (1) North 81 degrees 18 minutes 55 seconds east, 150.06 feet to a point on the easterly right-of-way of U.S. Route 113;
- (2) Thence, south 59 degrees 25 minutes 46 seconds east, 79.88 feet to a point on the northerly right-of-way of Maryland Route 346 (30 feet wide);
- (3) Thence, by and with the northerly right-of-way of said Maryland Route 346 (30 feet wide), north 59 degrees 24 minutes 30 seconds east, 651.52 feet (given incorrectly by previous survey as 661.05 feet) to a point located at the southeast corner of the Berlin Nursing Home property, said point being shown as the end of Line 16 and the beginning of Line 17 of the aforementioned annexation plat by Loewer and Associates, Inc., said point being also located at south 30 degrees 35 minutes 30 seconds east, 1.0 foot from an

iron pipe found on the Nursing Home's easterly property line; thence, diagonally across Maryland Route 346 (30 feet wide), south 49 degrees 39 minutes 15 seconds west, 177.25 feet to a point on the southerly right-of-way line of Maryland Route 346 (30 feet wide) at the northeast corner of Parcel No. 1 of Case Edwards Construction Company, Inc., and the northwest corner of the property of George C. Tyler as recorded in the land records of Worcester County, Maryland and in Liber FWH 750, Folio 445. Thence, by and with the land of said Case Edwards Construction Co., Inc., and the westerly and southerly property line of said George C. Tyler, the following 2 courses and distances:

- (1) 30 degrees 09 minutes 05 seconds east, 245.35 feet (passing through a concrete monument at a distance of 4.54 feet) to a concrete monument found;
- (2) Thence, north 58 degrees 07 minutes 14 seconds east, 100.00 feet to an iron pipe found at the southwest corner of land of Hickory Health Services, Inc., as referenced in the Worcester County land records in Liber FWH 721, Folio 151; thence, by and with the southerly property lines of said Hickory Health Services, Inc., Dale H. Carey (deed reference FWH 543, Fo-

lio 305), and the Equitable Trust Company (deed reference FWH 746, Folio 527), and the northerly property line of said Case Edwards Construction Co., Inc., north 61 degrees 08 minutes 07 seconds east, 474.55 feet to the center of Kitts Branch. Thence, by and with the center of said Kitts Branch the following 11 courses and distances:

- (1) South 12 degrees 19 minutes 00 seconds east, 1,013.00 feet;
- (2) Thence, south 30 degrees 52 minutes 00 seconds east, 379.00 feet;
- (3) Thence, south 43 degrees 53 minutes 00 seconds east, 260.00 feet;
- (4) Thence, south 30 degrees 29 minutes 00 seconds east 328.00 feet;
- (5) Thence, south 63 degrees 38 minutes 00 seconds east, 56.00 feet;
- (6) Thence, south 82 degrees 30 minutes 00 seconds east, 311.00 feet;
- (7) Thence, south 68 degrees 36 minutes 00 seconds east, 145.00 feet;
- (8) Thence, south 35 degrees 53 minutes 00 seconds east, 50.0 feet;

- (9) Thence, south 2 degrees 52 minutes 00 seconds east, 65.0 feet;
- (10) Thence, south 28 degrees 07 minutes 00 seconds east, 70.0 feet;
- (11) Thence, south 22 degrees 31 minutes 00 seconds east, 122.26 feet to the spike set at the beginning of this description.

Containing 54.030 acres of land as surveyed by L.E. Bunting, Jr., Registered Maryland Property Line Surveyor No. 142, and shown on a plat titled "Northeasterly Extension of the Corporate Limits of Berlin, Maryland," dated January 14, 1982, and intended to be a part of and recorded with this description. Bearings are magnetic bearings of October 1979.

B. The annexation of said area is made subject to the terms and conditions as follow:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The town will extend its waterlines from the existing line on Ocean City Boulevard to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up

to the town's water system. The same rates will be charged as in all other areas of the town.

- (4) *Sewer service.* The town will extend its sewer lines from the existing line on Ocean City Boulevard to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's sewer system. The same rates will be charged as in all other areas of the town.
- (5) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enact a valid zoning ordinance covering this area. For a period of five (5) years, none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.
- (6) *Voting rights.* All residents in the annexed area upon the effective date of annexation shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (7) *Taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within

the existing town limits are subject as of the effective date of this resolution. Such taxes shall be prorated from the effective date of this resolution to July 1, 1982, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1982, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. of 3-15-1982)

Sec. C2-5.1. 1989 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at an iron spike at the easternmost corner of the present corporate limit boundary line of the Town of Berlin, Maryland, said iron spike being in the centerline of the macadam of Flower Street at its intersection with the centerline of the run of Kitts Branch, said iron spike being also located north 57 degrees 08 minutes 00 seconds east, 176.05 feet from an iron pipe found at the southeast corner of the land of Berry Jarmon as recorded in the land records of Worcester County, Maryland, in Liber F.W.H. 377, Folio 267. Thence by and with the centerline of the run of Kitts Branch, the following seven (7) courses and distances:

- (1) South 48 degrees 97 minutes 30 seconds east, 424.39 feet;
- (2) Thence, south 09 degrees 24 minutes 00 seconds east, 40.70 feet;

- (3) Thence, south 04 degrees 27 minutes 00 seconds west, 85.39 feet;
- (4) Thence, south 10 degrees 51 minutes 00 seconds west, 605.55 feet, to a point in the centerline of the sixty-six-foot right-of-way of the Historic Railroad Inc.;
- (5) Thence, south 12 degrees 36 minutes 00 seconds east, 117.0 feet;
- (6) Thence, south 20 degrees 34 minutes 00 seconds east, 770.50 feet;
- (7) Thence, south 35 degrees 33 minutes 00 seconds east, 80.70 feet to a point on a southerly boundary line of the land of the Mayor and City Council of Berlin as recorded in the land records of Worcester County, Maryland, in Liber C.W.N. 6, Folio 427;

Thence, leaving the run of Kitts Branch and by and with said southerly boundary line of the Mayor and City Council of Berlin, south 75 degrees 33 minutes 45 seconds west, 265.06 feet to a concrete monument set;

Thence, south 57 degrees 49 minutes 16 seconds east, 214.50 feet to a concrete monument set at the northwest corner of the property of Eleanor D. Ayres as recorded in the land records of Worcester County, Maryland, in Liber B.B. 20, Folio 370;

Thence, by and with the northwesterly property line of Eleanor D. Ayers, the following three (3) courses and distances:

- (1) South 68 degrees 42 minutes 20 seconds west, 445.50 feet to a concrete monument set;
- (2) Thence, south 08 degrees 34 minutes 00 seconds west, 66.0 feet to a concrete monument set;

- (3) Thence, south 79 degrees 34 minutes 00 seconds west, 330.0 feet to a concrete monument set;

Thence, continuing with the northwesterly property line of said Eleanor D. Ayers and also a part of the northwesterly property line of Denard Purnell (Deed Reference F.W.H. 223, Folio 31), south 57 degrees 34 minutes 00 seconds west, 1,434.34 feet (passing through a concrete monument found at the northeast corner of the Alvin C. Loewer, Jr., property (Deed Reference F.W.H. 652, Folio 641, at a distance of 689.50 feet) to a point on the present easterly corporate limit boundary line of Berlin, said point being north 25 degrees 22 minutes 47 seconds east, 157.92 feet from an iron pipe found in a pine stump on the southerly right-of-way line of Bay Street Extended at a corner of the existing Berlin Corporate Limit Line;

Thence, by and with the present easterly Berlin Corporate Limit Line, north 25 degrees 22 minutes 47 seconds east, 3476.42 feet to the aforesaid iron spike in the centerline of the macadam of Flower Street and the beginning of this description.

Containing 53.45 acres of land as surveyed by L.E. Bunting, Jr., registered Maryland Property Line Surveyor No. 142, and shown on a plat titled "Easterly Extension of the Corporate Limits of Berlin, Maryland," dated October 6, 1982, and recorded with the Snow Hill Court House.

B. The annexation of said area is made subject to the terms and conditions as follow:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.

- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The town will extend its waterlines from the existing lines in the vicinity to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's water system. The same rates will be charged as in all other areas of the town.
- (4) *Sewer service.* The town will extend its sewer lines from the existing lines in the vicinity to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's sewer system. The same rates will be charged as in all other areas of the town.
- (5) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area. For a period of five (5) years, none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.
- (6) *Voting rights.* All residents in the annexed area upon the effective date of annexation shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (7) *Taxes.* All property in the newly annexed area shall be upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this section. Such taxes shall be prorated from the effective date of this section to July 1, 1989, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1989, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1989-3, 4-24-1989)

Sec. C2-5.2. 1989 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein and their property, beginning at a point on the northwesterly boundary of the corporate limit lines of Berlin, Maryland, said point being located north 61 degrees 46 minutes 38 seconds east, 200.32 feet from a found Berlin corporate monument situated 17.5 feet southerly of the centerline of Route 374 and 353.5 feet westerly of a concrete monument at the intersection of the westerly right-of-way line of Ann Drive with the southerly right-of-way line of Maryland Route 374, and said beginning point being also a point on a property line dividing the lands of Dennis E. Smith (Deed

Editor's note—See ch. 108, zoning.

Reference W.C.L. 1339, Folio 320) and the Anchorage Corporation (Deed Reference 619, Folio 416);

Thence, by and with the property lines of Dennis E. Smith and the Anchorage Corporation, the following seven (7) courses and distances:

- (1) North 37 degrees 33 minutes 40 seconds east, 52.31 feet to a point;
- (2) North 52 degrees 26 minutes 20 seconds west, 125.00 feet to a point;
- (3) North 37 degrees 33 minutes 40 seconds east, 200.00 feet to a point; and
- [(4)] Thence, across a 30-foot-wide strip of land of the Anchorage Corporation that separates the land of said Dennis E. Smith from the land of Thomas P. Janson (Deed Reference F.W.H. 414, Folio 615), north 37 degrees 33 minutes 40 seconds east, 30.0 feet to intersect the southerly property line of said Thomas P. Janson at a point;
- [(5)] Thence, by and with the southerly property line of Thomas P. Janson, south 52 degrees 26 minutes 20 seconds east, 251.97 feet to intersect the existing corporate limit line of Berlin at a point which is located north 61 degrees 46 minutes 38 seconds east, 309.55 feet from the point of beginning of this description;
- [(6)] Thence, by and with the existing corporate limit line of Berlin and through the land of Thomas P. Janson, north 61 degrees 46 minutes 38 seconds east, 117.09 feet to intersect the westerly side of a 50-foot-wide access road known as "Prospect Drive" and the easterly property line of Janson at a point;
- [(7)] Thence, by and with the westerly side of said Prospect Drive and the easterly property line of Janson, north 37 degrees 33 minutes 40 seconds east, 93.21 feet to a point at the northeast corner of the land of Janson;

Thence, by and with the property lines further dividing the lands of said Janson and the Anchorage Corporation, the following two (2) courses and distances:

- (1) North 52 degrees 26 minutes 20 seconds west, 350.00 feet to a point; and
- (2) South 37 degrees 33 minutes 40 seconds west, 230.00 feet to a point on the northerly property line of land of the aforesaid Dennis E. Smith;

Thence, continuing by and with the property lines dividing the lands of Dennis E. Smith and the Anchorage Corporation, the following four (4) courses and distances:

- (1) North 52 degrees 26 minutes 20 seconds west, 100.00 feet to a point;
- (2) South 37 degrees 33 minutes 40 seconds west, 200.00 feet to a point;
- (3) North 52 degrees 26 minutes 20 seconds west, 50.00 feet to a point; and
- (4) South 37 degrees 33 minutes 40 seconds west, 195.54 feet to a point on the northerly line of Maryland Route 374;

Thence, by and with the northerly right-of-way line of Maryland Route 374, north 53 degrees 08 minutes 15 seconds west, 100.00 feet to a point at the southeast corner of lands now or formerly of Harry C. Clifton (Deed Reference 324, Folio 384);

Thence, by and with the property lines of said Harry C. Clifton and the Anchorage Corporation as aforesaid, the following four (4) courses and distances:

- (1) North 37 degrees 33 minutes 40 seconds east, 396.76 feet to a point;
- (2) North 52 degrees 26 minutes 20 seconds west, 200.00 feet to a point;
- (3) South 37 degrees 33 minutes 40 seconds east, 200.00 feet to a point; and

- (4) North 52 degrees 26 minutes 20 seconds west, 96.40 feet to a point on the easterly line of land of Peter E. Richardson (Deed Reference 427, Folio 532);

Thence, by and with the boundary lines of the land of Peter E. Richardson, the following two (2) courses and distances:

- (1) North 42 degrees 25 minutes 35 seconds east, 2043.26 feet to a point;
- (2) North 17 degrees 12 minutes 25 seconds west, 569.05 feet to an iron pipe found at the northerlymost corner of land of Purnell, Inc. (Deed Reference 276, Folio 36);

Thence, by and with the northerly line of said land of Purnell, Inc., and the southerly right-of-way line of Maryland Route 346, south 53 degrees 07 minutes 45 seconds east, 1016.71 feet to the northwest corner of land now or formerly of Francis N. Quillen;

Thence, by and with the property line of said Francis N. Quillen, south 41 degrees 21 minutes 45 seconds west, 235.66 feet to a point in the center of a large ditch;

Thence, by and with the center of said large ditch and the southerly boundary lines of the lands now or formerly of Francis N. Quillen, John V. Hudson (Deed Reference 426, Folio 106), Resella E. Morris (Deed Reference 539, Folio 119), Mary H. Warren (Deed Reference B.B. 24, Folio 393), Michael P. Pennington (Deed Reference 223, Folio 86), Margaret L. Walker (Deed Reference O.D.C. 50, Folio 206), Harry J. Thimble (Deed Reference 529, Folio 600) and Lucille Schrader (Deed Reference 253, Folio 282), the following six (6) courses and distances:

- (1) South 34 degrees 36 minutes 30 seconds east, 247.88 feet;
- (2) South 33 degrees 12 minutes 35 seconds east, 256.49 feet;

- (3) South 56 degrees 15 minutes 50 seconds east, 25.49 feet;

- (4) South 88 degrees 07 minutes 45 seconds east, 150.21 feet;

- (5) North 84 degrees 18 minutes 00 seconds east, 178.88 feet; and

- (6) North 76 degrees 37 minutes 40 seconds east, 118.02 feet to a point at the northeasterly corner of said land of Purnell, Inc.;

Thence, by and with said land of Purnell, Inc., south 05 degrees 20 minutes 00 seconds west, 254.59 feet to a point on the aforesaid corporate limit line of Berlin;

Thence, by and with the existing corporate limit line of Berlin, south 61 degrees 46 minutes 38 seconds west, 2326.09 feet to the point of beginning, containing ± 56.714 acres of land as surveyed and described by L.E. Bunting, Jr. Bearings referred to are magnetic bearings based upon a Deed F.H.P. 10, Folio 262, dated January 1898.

B. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The town will extend its waterlines from the existing lines in the vicinity to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the

town's water system. The same rates will be charged as in all other areas of the town.

- (4) *Sewer service.* The town will extend its sewer lines from the existing lines in the vicinity to the newly annexed area in accordance with agreements between the town and annexed property owners. All structures constructed after the effective date hereof in the newly annexed area will be required to hook up to the town's sewer system. The same rates will be charged as in all other areas of the town.
 - (5) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area. For a period of five (5) years, none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.
- Editor's note**—See ch. 108, zoning.
- (6) *Voting rights.* All residents in the annexed area upon the effective date of annexation shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
 - (7) *Taxes.* All property in the newly annexed area shall be upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at

the same rate as properties now within the existing town limits are subject as of the effective date of this section. Such taxes shall be prorated from the effective date of this section to July 1, 1989, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1989, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1989-8, 7-10-1989)

Sec. C2-6. 1991 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the southwesterly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at a concrete monument set as a corporate boundary marker at the southerly end of West Street on the south side of the road known as "Buckingham Lane," said beginning monument set 17.5 feet south of the centerline of Buckingham Lane and 342.46 feet easterly from the centerline of the former Pennsylvania Railroad; thence by and with the present Buckingham Lane and through the property of Earl F. Taylor (Deed Reference F.W.H. 381/515) and a part of the property of Glen and Maria Schlick (Deed Reference 1507/285), north 00 degrees 44 minutes east, 564.44 feet to a point on the westerly 60-foot-wide right-of-way line of the former Pennsylvania Railroad; thence by and with the westerly line of the 60-foot-wide railroad right-of-way, south 41 degrees 59 minutes west, 409.96 feet to a point on the southerly side of Buckingham Lane and 17.5 feet

from its centerline; thence by and with the southerly side of Buckingham Lane and 17.5 feet from its centerline, south 45 degrees 48 minutes east, 372.46 feet to the monument at the beginning.

Containing 1.751 acres of land and being a part of the aforementioned properties of Glen and Maria Schlick (Deed Reference 1507/285) and Earl F. Taylor (Deed Reference F.W.H. 381/515) and also a small part of Buckingham Lane and the railroad right-of-way.

B. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The annexed area is already receiving municipal water service, and no changes in the service will be made. The same rates will be charged as in all other areas of the town.
- (4) *Electrical service.* The annexed area is already receiving municipal electric service, and no changes in the service will be made. The same rates will be charged as in all other areas of the town.
- (5) *Wastewater service.* The annexed area is already receiving municipal wastewater service, and no changes in the service will be made. The same rates will be charged as in all other areas of the town.
- (6) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin plan-

ning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enact a valid zoning ordinance covering this area. For a period of five (5) years, none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.

- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution. Such taxes shall be prorated from the effective date of this resolution to July 1, 1992, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1992, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1991-8, 8-26-1991)

Sec. C2-7. 1992 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land,

together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at a point located on the southerly side of Maryland Route 346, 627 feet northeasterly from the centerline of U.S. Route 113 at or near the northwesterly corner of land now or formerly of George C. Tyler known as Parcel No. 448 of Worcester County Tax Map No. 25 and as recorded among the land records of Worcester County in Liber 750, Folio 445; said beginning point being also an existing corner of the corporate limits of Berlin, Maryland, and described as the end of the 11th line of the 1982 Annexation Resolution No. 3-15-1982;

Thence, by and with the 12th line, 13th line and part of the 14th line of the aforesaid 1982 Annexation description the following description the following [three] (3) courses and distances:

- (1) South 30 degrees 09 minutes 05 seconds east, 245.28 feet (passing through a concrete monument at a distance of 4.54 feet) to a found concrete monument;
- (2) North 58 degrees 11 minutes 14 seconds east, 100.14 feet to a large iron pipe found at the southwest corner of land of Hickory Health Services, Inc.; and
- (3) North 61 degrees 05 minutes 26 seconds east, 128.14 feet to a large iron pipe found at the southeast corner of land of Hickory Health Services, Inc.;

Thence, by and with the easterly line of land of the aforesaid Hickory Health Services, Inc., north 29 degrees 55 minutes

00 seconds west 241.11 feet to an iron pipe 21 feet southerly from the physical centerline of Maryland Route 346;

Thence, diagonally across Maryland Route 346, north 87 degrees 10 minutes 22 seconds west 65.11 feet to a point on the northerly side of Maryland Route 346; said point being the beginning of the 11th line of the aforesaid 1982 Annexation description;

Thence, by and with the 11th line of the said 1982 Annexation description, south 49 degrees 39 minutes 15 seconds west, 177.38 feet to the point of beginning.

Containing 1.360 acres of land as described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor No. 142, on October 21, 1992.

B. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The town will extend its water system from Route 346 along the proposed new street to the shopping center as expeditiously as possible. The town will, at its expense, extend water laterals to the property line of Mr. and Mrs. Donald Price and install the water meter. The property owners will be responsible for the extension of the water lateral from the property line to the dwelling. Any connections requested by the property owner other than the ordinary, will require reimbursement to the town

for all costs above the normal costs to extend the service. Payment of the normal water hookup fees of one thousand one hundred dollars (\$1,100.[00]) for single-family dwellings will be required. The newly annexed property will pay for water service at the same rate as all other customers in the Town of Berlin.

- (4) *Electrical service.* The town plans to extend its electric service to all those properties presently being served by others subject to agreement with the Delmarva Power and Light Company and/or approval and authorization from the Public Service Commission of the State of Maryland.
- (5) *Wastewater service.* The town will extend its wastewater collection system from Route 346 along the proposed new street to the shopping center as expeditiously as possible. The town will at its expense extend wastewater laterals to the property line of Mr. and Mrs. Donald Price. The property owners will be responsible for the extension of the wastewater lateral from the property line to the dwelling. Any connections requested by the property owner other than the ordinary will require reimbursement to the town for all costs above the normal costs to extend the service. Payment of the normal wastewater hookup fees of one thousand seven hundred sixty dollars (\$1,760.[00]) for single-family dwelling will be required. The newly-annexed property will pay for wastewater service at the same rate as all other customers in the Town of Berlin.
- (6) *Zoning.* The provisions of the Berlin Zoning Ordinance are hereby deemed to be applicable to the annexed area. The annexed area shall be classified as B-2, subject to the approval of the Berlin Planning [and Zoning] Commission.

Editor's note—See ch. 108, zoning.

- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from July 1, 1992, to July 1, 1993, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1993, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1992-14, 12-28-1992)

Sec. C2-8. 1993 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto, that is contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin, southerly of Maryland Route 376, which includes lands of the Mayor and Council of Berlin, the wastewater treatment plant property and the right-of-way of Bottle Branch Road, and more particularly described as follows:

Beginning at an iron pipe located on the southerly right-of-way line of Maryland Route 376 just easterly of Hudson's Branch; said iron pipe being a corporate limit marker of the Town of Berlin, Maryland, and also the northwest corner of a pub-

lic road known as Bottle Branch Road which leads to the Berlin Wastewater Treatment Plant;

Thence, by and with the southerly right-of-way of Maryland Route 376, south 58 degrees 10' 21" east, 44.35 feet to an iron pipe at the northeast corner of Bottle Branch Road;

Thence, by and with the easterly right-of-way lines of Bottle Branch Road as shown on a plat titled "Plat of Survey Showing Right-of-way of Berlin Treatment Plant Road" dated 4/4/1988, the following four (4) courses and distances:

- (1) South 06 degrees 34' 34" west, 194.10 feet to an iron pipe; and
- (2) South 02 degrees 33' 55" west, 647.36 feet to a monument; and
- (3) South 00 degrees 27' 28" east, 692.87 feet to a monument; and
- (4) South 00 degrees 56' 05" east, 282.00 feet to a point of curvature of a 30 foot radius cul-de-sac;

Thence, leaving the right-of-way of Bottle Branch Road, south 59 degrees 29' 30" east, 30.66 feet to intersect a northwesterly boundary line of the Berlin Treatment Plant property at a point;

Thence, by and with the boundary lines of the Berlin Treatment Plant the following six (6) courses and distances:

- (1) North 30 degrees 30' 30" east, 122.13 feet to a concrete monument; and
- (2) South 87 degrees 58' 35" east, 218.92 feet to a concrete monument at the northeast corner of the Treatment Plant; and
- (3) South 01 degree 41' 00" west, 391.53 to a point; and
- (4) South 59 degrees 26' 07" west, 92.83 feet to a point; and

- (5) North 69 degrees 03' 53" west, 99 feet to a point; and

- (6) South 88 degrees 06' 07" west, 128.72 feet to a point;

Thence, crossing over Hudson's Branch, south 17 degrees 47' 01" west, 58.13 feet to a concrete monument found;

Thence along the westerly side of Hudson's Branch, the following two (2) courses and distances:

- (1) North 33 degrees 02' 19" west, 155.27 feet to a concrete monument found; and
- (2) North 10 degrees 51' 25" west, 153.17 feet to intersect a boundary line of the lands of Robert W. Phillips, et al, known as Decatur Farm;

Thence, by and with the lands of Phillips, north 87 degrees 46' 10" east, 16.30 feet to the center of Hudson's Branch;

Thence, by and with the westerly side of lands of the Mayor and Council of Berlin as referenced in the land records of Worcester County in Liber 229/426, the following seven (7) courses and distances:

- (1) Northerly, $\pm$ 814 feet by and with the center of Hudson's Branch to the lands of Eva and Linton Robbins (Deed Ref. Liber 99/592); and
- (2) North 89 degrees 17' 32" east, 111.26 feet to intersect the westerly right-of-way of the aforesaid Bottle Branch Road; and
- (3) By and with the said westerly right-of-way, north 00 degrees 27' 42" west, 331.60 feet to a point; and
- (4) South 89 degrees 17' 32" west, 88.42 feet to the center of Hudson's Branch; and
- (5) Northerly, $\pm$ 633 feet by and with the centerline of Hudson's Branch

to intersect an easterly extension of the southerly line of lands of Viola Pitts (Deed Ref. Liber 709/65); and

- (6) Leaving the center of Hudson's Branch, north 71 degrees 01' 28" west $\pm$ 10.9 feet to the southeast corner of the lands of Viola Pitts; and
- (7) By and with the easterly line of said land of Viola Pitts and the easterly line of the former Lot 2 of land of Harold R. Eckman, north 12 degrees 12' 50" east, 254.21 feet to the point of beginning at Maryland Route 376.

Containing $\pm$ 8.262 acres of land within this description as surveyed and shown on a plat by L.E. Bunting Surveys, Inc. titled "Annexation Survey of Berlin Treatment Plant Area, Third Election District, Worcester County, Maryland, dated 2/8/1993."

B. The annexation of said area is made subject to the terms and conditions for extension of municipal services as the Mayor and Council may deem necessary and proper or as governed by town policy or regulations for service to all properties owned by the Mayor and Council of the Town of Berlin.
(Res. No. 1993-5, 8-9-1993)

Sec. C2-9. October 1997 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex and to include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northeasterly corporate limits of the Town of Berlin and more particularly described as follows:

Beginning for the outlines of same at a point on the divisional line between the lands of Salvatore's Restaurants, Inc. as de-

scribed in a deed recorded among the land records of Worcester County, Maryland, in Liber RHO 1906, Folio 489 and the lands of Boggs Disharoon Post 123, American Legion as described in a deed recorded in the Land Records of Worcester County, Maryland, in Liber FWH132, Folio 246, said point lying 146.13 feet on a bearing of north 19 degrees 44 minutes 01 second west from an iron pipe on the southerly terminus of said divisional line, said point lying also on the northerly most right-of-way line of Maryland Route 346;

Thence, from said beginning point, by and with the existing corporate limit line north 65 degrees 40 minutes 53 seconds east, a distance of 192.64 feet to a point, said point being marked by a concrete post;

Thence by and with the easterly most line of the lands now or formerly of Hudson Foods, Inc., south 30 degrees 32 minutes 12 seconds west, a distance of 103.93 feet to a point, said point being marked by an iron pipe and lying also on the northeasterly most line of the lands now or formerly of Katherine E. Birch as described in a deed recorded among the Land Records of Worcester County, Maryland, in Liber BB 15, Folio 353;

Thence by and with the northeasterly lines of the lands Katherine E. Birch and Boggs Disharoon Post 123, American Legion, south 55 degrees 25 minutes 00 seconds east, a distance of 203.17 feet to a point, said point being marked by a concrete post;

Thence continuing by and with the northeasterly most line of Boggs Disharoon Post 123, American Legion, south 19 degrees 44 minutes 01 second east, a distance of 105.85 feet to the point of beginning.

Said parcel of land containing 0.945 acres of land, more or less, and being a part of the lands of Salvatore's Restaurants, Inc. as described in the above referenced deed.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolution, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* The annexed area is already receiving municipal water service and the same rates will be charged conducive to development.
- (4) *Electrical service.* The annexed area is already receiving municipal electric service, and the same rates will be charged conducive with development as in other areas of the town.
- (5) *Wastewater service.* The annexed area is area receiving municipal wastewater service, and the same rates will be charged conducive to development as in other others of the town.
- (6) *Zoning.* The annexed area shall be zoned B-2 under the Berlin Zoning Ordinance with the express consent of the Worcester County Commissioners.

(7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

(8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits area subject as of the effective date of this resolution; such taxes shall be prorated from the effective date of this resolution to July 1, 1998, and shall become due and payable within 60 days of annexation. Commencing with the fiscal year beginning July 1, 1998, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1997-16, 10-20-1997)

Sec. C2-10. November 1997 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

The descriptions of a tract of land proposed to be annexed into the corporate limits of Berlin, Maryland, adjoining the easterly boundary lines of the municipal limits of Berlin, Maryland, and situated on the southerly side of Maryland Route 346 westerly of Kitts Branch; said tract of land being shown on the Worcester

County Tax Map No. 25 as Parcel No. 93, land of the Equitable Trust Co., Trustee (Deed Ref: Liber 746, Folio 527).

Beginning for this description at a point located on the southerly side of Maryland Route 346 $\pm$ 21 feet southerly of its physical centerline and +974 feet northeasterly from the centerline intersection of U.S. Route 113 with Maryland Route 346; said point being the northeasterly corner of land now or formerly of Dale H. Carey and wife (Deed Ref: Liber 543/305) known as Parcel No. 232 of Worcester County Tax Map No. 25; said beginning point being also located N60°56'36"E. 116.69 feet from an iron pipe at the northeast corner of land of Mary Alleessie (Deed Ref: Liber 1697/64) known as Parcel No. 92 of Worcester County Tax Map No. 25 and an existing corner of the corporate limits of Berlin, Maryland and described as the end of the 4th (N29°55'00"W, 241.11 feet) line of the 1992 annexation added 12-28-1992 by Resolution No. 1992-14;

Thence, by and with the southerly side of Maryland Route 346 $\pm$ 21 feet from its physical centerline, and by and with lands of The Equitable Trust Company (Deed Ref: Liber 746/527) shown as Parcel No. 93 on Tax Map 25 the following [two] (2) courses and distances:

- (1) N65°05'00"E, 125.00 feet to a point; and
- (2) N68°21'00"E, 181.50 feet to a point near the center of Kitts Branch at the northeast corner of the aforesaid land of The Equitable Trust Company, Trustee;

Thence, by and with the easterly line of said land of The Equitable Trust Co. and by and with Kitts Branch, S10°14'38"E, 221.67 feet to a point at the existing corporate limits of Berlin, Maryland;

Thence, by and with the existing corporate limits of Berlin, Maryland, S61°08'07"W, 229.55 feet to a point at the southeast corner of the aforesaid lands of Dale H. Carey and wife;

Thence, by and with the lands of Dale H. Carey and wife, N29°55'00"W, 241.50 feet to the beginning.

Containing +1.41 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor No. 142 in September 1997. The courses described are magnetic bearings, October 1979, and same as used in 1992 annexation resolution.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* Since the town currently has water service available to the property there will be no requirement for additional expenditures to provide water service. The property owner will pay the normal in-town rate for water service and be responsible for the extension of the water lateral from the property line to any structure erected on the property.

Any connections requested by the property owner, other than the ordinary to serve a single-family dwelling, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hook-up fee equivalent to one residential service at the rate then in effect at the time of a request for service.

- (4) *Electrical service.* Upon receiving final approval of a legal annexation of property into Berlin's town limits, Berlin will petition the Maryland Public Service Commission (MPSC) for approval to provide electric service, in accordance with its approved tariff, to all future electric customers locating within its legally annexed boundaries. Upon receiving such approval from the MPSC it is expected that the Berlin Electric Department would supply power to new customers within 30 to 60 days. The Berlin Electric Department, upon receiving a written request for electric service, from a customer, or group of customers, who is/are currently receiving electric service from the Delmarva Power and Light Company, will consider and respond to the request for transfer of service within 90 days. Transfer of an existing customer, or a group of customers, into Berlin's Electric System will be subject to final review and approval of the MPSC. Each customer, or group of customers, request will be considered as a separate, negotiated agreement. Each request's approval will be based upon the Berlin Electric Departments economic and budgetary constraints. All request's will be considered on a first-come-first-served basis. No time limit will be placed upon the request for transfer into the Berlin Electric System. Berlin's expected method of funding to extend electric service into the annexed area is to be lo-

cally funded. Any request for future bonding or any outside source of funding is anticipated to be funded by a revenue-producing bond.

- (5) *Wastewater service.* Since the town currently has wastewater service available to the property there will be no requirement for additional expenditures to provide wastewater service. The property owner will pay the normal in-town rate for wastewater service and be responsible for the extension of the wastewater lateral from the property line to any structure erected on the property. Any connections requested by the property owner, other than the ordinary to serve a single-family dwelling, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hookup fee equivalent to one residential service at the rate then in effect at the time of a request for service.
- (6) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area. For a period of five years none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the

Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

- (8) *Property taxes.* All real property taxes in the newly annexed area shall be waived until such time as the property is developed or conveyed to a new owner. At that time the property owner will be subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable in the same manner as properties now within the existing town limits.

(Res. No. 1997-18, 11-24-1997)

Sec. C2-11. January 1998 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Description of land proposed to be annexed into the corporate limits of Berlin, Maryland, adjoining the easterly boundary lines of the municipal limits of Berlin, Maryland, situated easterly of U.S. Route 113 to Seahawk Road and described as follows:

Beginning for this description at a point located $\pm$ 15 feet northerly of the physical centerline of Maryland Route 346 and $\pm$ 802 feet northeasterly from the centerline intersection of U.S. Route 113 with Maryland Route 346; said point being an existing corner of the corporate limits of Berlin, Maryland and described as the

end of the 10th (N59° 24' 30" E, 651.52 feet) line of the 1982 Annexation Resolution No. 3-15-1982; said point of beginning being also situated near the southeast corner of lands of Razorback Investments (Deed Reference 683/547) and the southwest corner of lands of Timothy Mark Corporation (Deed Reference RHO 2169/129) known as Parcel No. 174 of Worcester County Tax Map No. 25;

Thence, by and with the existing corporate limits of Berlin, Maryland and the boundary lines between the lands of Razorback Investments and Timothy Mark Corporation, the following [two] (2) courses and distances:

- (1) N 29° 14' 45" W, (passing through an iron bar found at a distance of 1.0 feet and an iron pipe found at a distance of 3.0 feet) 301.94 feet to a point; and
- (2) N 59° 54' 00" E, 70.00 feet to a point at the northwest corner of lands of Virginia E. Cropper (Deed Ref: Liber 2389/48);

Thence, by and with the westerly line of lands of Virginia E. Cropper, S 30° 13' 44" E, 298.06 feet to a concrete monument found on the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, the following [six] (6) courses and distances:

- (1) N 59° 7' 17" E, 104.15 feet to a point; and
- (2) N 62° 25' 52" E, 34.07 feet to a point; and
- (3) N 64° 27' 12" E, 66.00 feet to a point; and
- (4) N 66° 11' 32" E, 66.00 feet to a point; and

- (5) N 67° 55' 52" E, 66.00 feet to a point; and
- (6) N 69° 40' 52" E, 66.00 feet to a point at the southeast corner of lands of the Equitable Trust Company, Trustee, (Deed Ref: Liber 746/530, Item 3);

Thence, by and with the easterly line of the aforesaid land of the Equitable Trust Company, Trustee, N 17° 40' 19" W, passing through a rebar found at the southwest corner of land of Storage Equity Partners, L.P. III (Deed Reference RHO 2236/73-Parcel 2), at a distance of 5.95 feet, 261.00 feet to a point at the northwest corner of the said Storage Equity Partners land;

Thence, by and with the northerly line of lands of the Storage Equity Partners and Bethany Auto Parts, Inc. (Deed Ref: RHO 1512/379) N 74° 32' 42" E, 427.82 feet to a point;

Thence, by and with the easterly line of land of Bethany Auto Parts, Inc., S 15° 27' 18" E, 250.00 feet to a point on the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, N 74° 32' 53" E, 500.00 feet to an iron pipe at the southwest corner of lands of Salisbury Regional Center (Deed Ref: WCL 1120/496), said point being also the southwest corner of Lot 26 of Boulevard Heights as shown on a plat entitled "Plat of Boulevard Heights" by W.D. Pitts dated June 1919;

Thence, by and with the westerly line of lands of Salisbury Regional Center, N 15° 26' 22" W, 250.00 feet to an iron pipe at the northwest corner of said Lot 26 of Boulevard Heights;

Thence, through the lands of the said Salisbury Regional Health Center and by and

with the northerly lines of Lots 26, 25, and 24 of Boulevard Heights, N 74° 33' 38" E, 150 feet to an iron pipe at the northeast corner of Lot 24 and also the northwest corner of Lot 23 and lands of Jesse J. Taylor and wife (Deed Ref: FWH 256/320);

Thence, by and with the easterly line of Lot 24 and the westerly line of lands of Jesse J. Taylor, S 15° 26' 22" E, 250.00 feet to a point on the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, N 74° 32' 38" E, 50.00 feet to a point at the southwest corner of lands of John M. Gulyas III (Deed Ref: RHO 2281/505) and also the southwest corner of Lot 22 of Boulevard Heights;

Thence, by and with the westerly line of lands of John M. Gulyas, III, N 15° 26' 22" W, 250.00 feet to a point at the northwest corner of Lot 22 of Boulevard Heights;

Thence, by and with the northerly line of land of Gulyas and land of David M. Lilly (Deed Ref: RHO 2057/18), N 74° 33' 38" E, 150 feet to the northeast corner of Lot 20 of the said Boulevard Heights Plat;

Thence, by and with the easterly line of Lot 20 and land of David M. Lilly, S 15° 26' 22" E, 250.00 feet to the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, N 74° 32' 26" E, 1,030.10 feet to an iron pipe found at the southwest corner of other land of Storage Equity Partners, L.P. III (Deed Ref: RHO 2236/73-Parcel 1);

Thence, by and with the westerly line of said lands of Storage Equity Partners, L.P. III, and across U.S. Route 50, N 16° 18' 38" W, 565.54 feet to a point on the northerly right-of-way line of U.S. Route 50 radial

to a 100 feet distant from centerline station 347+89.30 as shown on S.R.C. Plat No. 16521;

Thence, by and with the northerly right-of-way line of U.S. Route 50 as shown on S.R.C Plat Nos. 16521, 16520, 7282, and 7281, the following [two] (2) courses and distances:

- (1) 2,322.87 feet by and with a curve to the left having a radius of 5,629.58 feet with a chord bearing and distance of N 89° 26' 14" E, 2,306.42 feet to a P.T. point; and
- (2) N 77° 36' 20" E, 1,025.12 feet to a point perpendicular to and 100 feet distant from the centerline baseline of U.S. Route 50 opposite station 314+00;

Thence, across U.S. Route 50; S 12° 23' 40" E, 200.00 feet to a point on the southerly right-of-way of U.S. Route 50 perpendicular to and 100 feet distance from the baseline of U.S. Route 50 opposite station 314+00;

Thence, S 32° 36' 20" W, 30.82 feet to a point on the easterly side of Seahawk Road;

Thence, by and with the easterly side of Seahawk Road and the westerly lines of lands of Ocean Gateway Company, Lois C. Harrison, Charles E. Elliott, Dorothy M. Dinges, and Curtis M. Long, the following [twelve] (12) courses and distances:

- (1) S 18° 32' 39" E, 219.91 feet to a point; and
- (2) 203.03 feet by and with the arc of a curve to the right having a radius of 1,139.56 feet with a chord bearing and distance of S 13° 26' 26" E, 202.76 feet to a point; and
- (3) S 08° 20' 09" E, 56.98 feet to a point; and

- (4) S 08° 21' 40" E, 895.84 feet to a point; and
- (5) S 02° 57' 28" E, 161.07 feet to a point; and
- (6) 245.74 feet by and with the arc of a curve to the right having a radius of 1,570.00 feet with a chord bearing and distance of S 07° 20' 53" W, 245.49 feet to a point; and
- (7) S 12° 10' 40" W, 244.47 feet to a concrete monument found at the northwest corner of Lot 1 of lands of Dorothy M. Dinges (Deed Ref. WCL 1057/160); and
- (8) S 11° 14' 35" W, 113.00 feet to a point; and
- (9) S 10° 07' 40" W, 54.97 feet to a point; and
- (10) S 09° 12' 03" W, 71.00 feet to a point; and
- (11) S 05° 30' 06" W, 83.51 feet to a concrete monument found at the southwest corner of Lot 2 of lands of Curtis M. Long and wife (Deed Ref: WCL 1057/164); and
- (12) S 04° 34' 42" E, 87.92 feet to a point on the easterly side of Seahawk Road 20 feet from its centerline and opposite an easterly extension of the southerly line of the 30 foot wide right-of-way of Flower Street Extended, thence, crossing Seahawk Road and by and with the southerly right-of-way line of the 30 foot wide road known as Flower Street Extended, the following [four] (4) courses and distances:
 1. 666.79 feet by and with the arc of a curve to the right having a radius of 6,210.00 feet with a chord bearing and distance of S 85° 29' 50" W, 666.47 feet; and

2. S 88° 34' 24" W, 261.57 feet to a point; and
3. N 89° 21' 47" W, 353.91 feet to a point; and
4. S 89° 53' 45" W, 41.62 feet to a point on the southerly side of Flower Street Extended opposite a southerly extension of the westerly property line of lands of the Worcester County Board of Education known as the Stephen Decatur Middle School;
- (3) S 78° 02' 50" W, 324.58 feet to a point; and
- (4) S 00° 38' 09" E, 5.50 feet to a point; and
- (5) S 76° 38' 52" W, 40.06 feet to a point on the easterly line of lands of DKR Investments (Deed Ref: FWH 387/603); thence, by and with the lands of DKR Investments, the following [four] (4) courses and distances:
 1. S 22° 47' 24" E, 191.18 feet to a point; and
 2. S 19° 28' 36" W, 343.60 feet to a point; and
 3. S 77° 33' 36" W, 458.80 feet to a point; and
 4. S 74° 58' 52" W, 335.06 feet to a concrete monument found at the southwest corner of lands of DKR Investments and on the easterly line of lands of Ronald J. Holland (Deed Ref: FWH 183/207 and FWH 556/05); thence, by and with the lands of Ronald J. Holland, the following [two] (2) courses and distances:
 1. S 19° 28' 07" W, 40.80 feet to a concrete monument found; and
 2. N 15° 08' 35" W, 533.61 feet to a point on the southerly side of Maryland Route 346; thence, by and with the southerly side of Maryland Route 346, the following [two] (2) courses and distances:
 1. S 74° 43' 22" W, 937.71 feet to a point at the northeast corner of Lot 11-Block

Thence, across Flower Street Extended and by and with the lands of the Stephen Decatur Middle School, N 04° 55' 28" W, passing through a concrete monument at the southwest corner of lands of the Stephen Decatur Middle School at a distance of 30.10 feet, 775.93 feet to a concrete monument found; thence, N 85° 04' 32" E, 676.35 feet to a concrete monument at the southwest corner of lands of the Worcester County Board of Education known as the Stephen Decatur High School; thence, by and with the westerly line of the lands of the Stephen Decatur High School, N 05° 15' 28" W, 1,493.00 feet to a point on the southerly right-of-way line of U.S. Route 50;

Thence, by and with the southerly right-of-way lines of U.S. Route 50 as shown on S.R.C. Plat Nos. 7281, 7282, and 16520, the following [five] (5) courses and distances:

- (1) S 77° 36' 23" W, 277.01 feet to a P.C. point opposite U.S. Route 50 baseline station 324+ 25.12; and
- (2) 876.86 feet by and with the arc of a curve to the right having radius of 5,829.58 feet with a chord bearing and distance of S 81° 55' 31" W, 876.03 feet to a point; and

B, as shown on a plat entitled "Subdivision for J. Edward Evans" as recorded in Plat Book O.D.C. No. 2/70; and

2. S 74° 31' 16" W, 726.50 feet to the northeast corner of lands of Phoebe S. Stout (Deed Ref: FWH 222/7) known as Lot 9-Block A of the aforesaid J.E. Evans plat;

Thence, by and with the easterly line of the lands of Phoebe S. Stout, S 15° 28' 44" E, 200.00 feet to the southeast corner of said Lot 9-Block A; thence, by and with the southerly lines of lands of Phoebe S. Stout (Lots 9, 8, and 7-Block A), Richard V. Carey and wife (Lots 6 and 5, Block A-Deed Ref: FWH 136/439), the Mayor and Council of Berlin (Lots 4, 3, and 2, Block A-Deed Ref: RHO 2433/16) and Andrew J. Evans (Lot 1, Block A—Deed Ref: RHO 2061/595), S 74° 30' 57" W, 461.31 feet to a point on the easterly line of lands of William J. Schultz, et. al. (Deed Ref: RHO 1716/343); thence, by and with the lands of William J. Schultz, et. al., the following [five] (5) courses and distances:

- (1) S 12° 14' 20" E, 1,119.00 feet to a point; and
- (2) S 63° 45' 40" W, 124.41 feet to a point; and
- (3) N 31° 28' 52" W, 102.46 feet to a point in the center of Kitt's Branch on the existing corporate limit line of Berlin, Maryland at the end of the 15th (S 12° 19' 00" E, 1,013.00 feet) line of the 1982 Annexation Resolution No. 3-15-1982; and

- (4) By and with the aforesaid 15th line of the 1982 Annexation, N 12° 55' 52" W, 1,013.00 feet to a point; and
- (5) N 10° 51' 41" W, 221.67 feet to a point on the southerly side of Maryland Route 346 at the northeast corner of lands of The Equitable Trust Company, Trustee (Deed Ref: Liber 746/527, Item 1);

Thence, by and with the southerly side of Maryland Route 346 ± 21 feet from its centerline, and by and with the lands of The Equitable Trust Company, Trustee, the following [two] (2) courses and distances:

- (1) S 67° 43' 57" W, 181.50 feet to a point; and
- (2) S 64° 27' 57" W, 125.00 feet to a point at the northeast corner of lands of Dale H. Carey and wife (Deed Ref: FWH 543/305);

Thence, by and with the lands of Dale H. Carey and wife, the following [three] (3) courses and distances:

- (1) S 30° 32' 03" W, 241.50 feet to a point on the northerly line of lands of Decatur Associates Limited Partnership (Deed Ref: RHO 2096/147); and
- (2) By and with the northerly line of lands of Decatur Associates Limited Partnership, S 60° 29' 56" W, 116.70 feet to an iron pipe found at the southeast corner of lands of Mary Alessie (Deed Ref: RHO 1697/64); and
- (3) By and with the easterly line of lands of Mary Alessie, N 30° 32' 03" W, 241.15 feet to an iron pipe found on the southerly side of Maryland Route 346 ± 21 feet from its physical centerline;

Thence, diagonally across Maryland Route 346, N 87° 42' 52" W, 65.11 feet to the point of beginning.

Containing ± 101.24 acres of land as surveyed and described by, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor No. 142. The courses described are Magnetic Bearings, 1978, the same as used for the 1980 Annexation by Resolution 1-21-1980.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* Since the town currently has water service available to the property, there will be no requirement for additional expenditures to provide water service. The property owner will pay the normal in-town rate for water service and be responsible for the extension of the water lateral from the property line to any structure currently existing on the property. Any connections requested by the property owner, other than the ordinary to serve a single-family dwelling, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the

service. The town will waive the hookup fee, provided that connection is made to the water system prior to December 31, 1998, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned water main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to connect to the water system prior to that date will pay the normal hookup fees then in effect at the time they do connect to the water systems. Newly erected structures in the annexation area will pay the normal hookup fees then in effect at the time of their connection to the water system.

- (4) *Electrical service.* Upon receiving final approval of a legal annexation of property into Berlin's town limits, Berlin will petition the Maryland Public Service Commission (MPSC) for approval to provide electric service, in accordance with its approved tariff, to all future electric customers locating within its legally annexed boundaries. Upon receiving such approval from the MPSC, it is expected that the Berlin Electric Department would supply power to new customers within 30 to 60 days. The Berlin Electric Department, upon receiving a written request for electric service, from a customer, or group of customers, who is/are currently receiving electric service from the Delmarva Power and Light Company, will consider and respond to the request for transfer of service within 90 days. Transfer of an existing customer, or a group of customers, into Berlin's Electric System will be subject to final review and approval of the MPSC. Each customer, or group of customers, request will be considered as a separate, negotiated agreement. Each request's approval will be based upon the Berlin Electric Department's economic and

budgetary constraints. All requests will be considered on a first-come-first-served basis. No time limit will be placed upon the request for transfer into the Berlin Electric System. Berlin's expected method of funding to extend electric service into the annexed area is to be locally funded. Any request for future bonding or any outside source of funding is anticipated to be funded by a revenue-producing bond.

- (5) *Wastewater service.* Since the town currently has wastewater service available to the property, there will be no requirement for additional expenditures to provide wastewater service. The property owner will pay the normal in-town rate for wastewater service and be responsible for the extension of the wastewater lateral from the property line to any structure erected on the property. Any connections requested by the property owner, other than the ordinary, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hookup fee, provided that connection is made to the wastewater system prior to December 31, 1998, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned wastewater main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to connect to the system prior to that date will pay the normal hookup fees then in effect at the time they do connect to the wastewater system. Newly erected structures in the annexation area will pay the normal hookup fees then in effect at the time of their connection to the wastewater system.
- (6) *Zoning.* The provisions of the Worcester County Zoning Ordinance are hereby

deemed to be applicable to the annexed area until such time as the Berlin planning and zoning commission includes such area in its general plan [comprehensive plan] and the Mayor and Council subsequently enacts a valid zoning ordinance covering this area. For a period of five years, none of the annexed area can be rezoned to a classification which permits a land use substantially different from that specified in the current adopted master plan of the county without the express approval of the Worcester County Commissioners.

- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from July 1, 1997, to June 30, 1998, and shall become due and payable within 60 days of annexation. Commencing with the fiscal year beginning July 1, 1998, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.
- (Res. No. 1997-21, 1-26-1998)

Sec. C2-12. July 1998 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land,

together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Descriptions of three (3) parcels of land proposed to be annexed into the corporate limits of Berlin, Maryland adjoining the easterly boundary lines of the municipal limits of Berlin, Maryland situated easterly of U.S. Route 113 and described as follows:

Parcel Number I: Property of Jesse R Taylor, Jr. and Edna Mae Taylor, his wife (Deed Ref: FWH 256/320); shown on Worcester County Tax Map 25 as parcel No. 86 Lot 23.

Beginning at a point on the northerly side of Maryland Route 346 at the southeast corner of lands of Salisbury Regional Health Center (Deed Ref: WCL 1120/496); said point being the southeast corner of Lot 24 of Boulevard Heights as shown on a plat entitled "Plat of Boulevard Heights" by W.D. Pitts, dated June 1919;

Thence, by and with the easterly line of the lands of Salisbury Regional Health Center, N15 26 22 W, 250.00 feet to the northeast corner of Lot 24 of said Boulevard Heights;

Thence, by and with the northerly line of Lot 23 of Boulevard Heights, N74 33 38 E, 50.00 feet to the northwest corner of Lot 22 and the lands of John M. Gulyas, III (Deed Ref: RHO 2281/505);

Thence, by and with the westerly line of Lot 22 and lands of John M. Gulyas, III, S15 26 22 E, 250.00 feet to a point on the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, S74 33 38 W, 50.00 feet to the point of beginning.

Containing 12,500 square feet of land and being also Lot 23 of the aforementioned plat of Boulevard Heights.

Parcel Number II: Property of Louie Paglierani and Beatrice Paglierani, his wife (Deed Ref: RHO 1455/489); shown on Worcester County Tax Map 25 as parcel No. 86 Lots 1 and 2 and also a portion of U.S. Route 50.

Beginning at an iron pipe found on the northerly side of Maryland Route 346 at the southwest corner of lands of Storage Equity Partner L.P. III, (Deed Ref: RHO 2236/73 parcel 1);

Thence, by and with the northerly side of Maryland Route 346, S74 32 42 W, 150.00 feet to a point at the southeast corner of lands of Barrett Chevrolet, Inc. (Deed Ref: RHO 1996/494);

Thence, by and with the easterly line of lands of Barrett Chevrolet, Inc. and extending in a straight line across U.S. Route 50, N16 19 18 W, 644.58 feet to a point on the northerly right-of-way line of U.S. Route 50 as shown on S.R.C. Plat No. 16521;

Thence, by and with the northerly right-of-way line of U.S. Route 50, 170.71 feet by and with an arc of a curve to the left having a radius of 5629.58 feet with a chord bearing and distance of S77 52 24 E, 170.70 feet to a point on the northerly extension of the westerly property line of the aforesaid lands of Storage Equity Partners L.P. III;

Thence, by and with the northerly extension of and the westerly property

line of the lands of Storage Equity Partners L.P. III, S16 18 38 E, 565.54 feet to the beginning.

Containing 90,710 square feet of land.

Parcel Number III: Property of John R. Allison and Louise T. Allison, his wife (Deed Ref: FWH 157/460 and FWH 364/170); shown on Worcester County Tax Map No. 25 as Parcel No. 87 Lots 3, 4 and Part of 5;

Beginning at an iron pipe located on the southerly side of Maryland Route 346 at the northeast corner of lands formerly of Gerald A. Evans (Deed Ref: FWH 505/119); said beginning point being the northeast corner of Lot 2 Block B, as shown on a plat entitled "Subdivision for J. Edward Evans" as recorded in the land records of Worcester County in Plat Book O.D.C. Number 2/70;

Thence, by and with the southerly side of Maryland Route 346, N74 31 16 E, 125.00 feet to a point in the center of Lot 5 of the J. Edward Evans Subdivision;

Thence, by and with a line through the center of Lot 5 and the westerly line of lands of David H. Adams (Deed Ref: RHO 1915/96), S15 28 44 E, 200.00 feet to a point;

Thence, S74 31 16 W, 125.00 feet to the southeast corner of Lot 2 aforesaid;

Thence, by and with the easterly line of Lot 2, N15 28 44 W, 200.00 feet to the point of beginning.

Containing 25,000 square feet of land.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on

said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided that the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* Since the town currently has water service available to the property there will be no requirement for additional expenditures to provide water service. The property owner will pay the normal in-town rate for water service and be responsible for the extension of the water lateral from the property line to any structure currently existing on the property. Any connections requested by the property owner, other than the ordinary to serve a single-family dwelling, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hook-up fee, provided that connection is made to the water system prior to December 31, 1998, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned water main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to

connect to the water system prior to that date will pay the normal hook-up fees than in effect at the time they do connect to the water system. Newly erected structures in the annexation area will pay the normal hook-up fees than in effect at the time of their connection to the water system.

- (4) *Electrical service.* Upon receiving final approval of a legal annexation of property into Berlin's town limits, Berlin will petition the Maryland Public Service Commission (MPSC) for approval to provide electric service, in accordance with its approved tariff, to all future electric customers locating within its legally annexed boundaries. Upon receiving such approval from the MPSC it is expected that the Berlin Electric Department would supply power to new customers within 30 to 60 days. The Berlin Electric Department, upon receiving a written request for electric service, from a customer, or group of customers, who is/are currently receiving electric service from the Delmarva Power and Light Company, will consider and respond to the request for transfer of service within 90 days. Transfer of an existing customer, or a group of customers, into Berlin's Electric System will be subject to final review and approval of the MPSC. Each customer, or group of customers, request will be considered as a separate, negotiated agreement. Each request's approval will be based upon the Berlin Electric Department's economic and budgetary constraints. All requests will be considered on a first-come, first-served basis. No time limit will be placed upon the request for transfer into the Berlin Electric System. Berlin's expected method of funding to extend electric service into the annexed area is to be locally funded. Any request for future bond-

ing or any outside source of funding is anticipated to be funded by a revenue producing bond.

- (5) *Wastewater service.* Since the town currently has wastewater service available to the property there will be no requirement for additional expenditures to provide wastewater service. The property owner will pay the normal in-town rate for wastewater service and be responsible for the extension of the wastewater lateral from the property line to any structure erected on the property. Any connections requested by the property owner, other than the ordinary, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hook-up fee, provided that connection is made to the wastewater system prior to December 31, 1998, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned wastewater main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to connect to the system prior to that date will pay the normal hook-up fees than in effect at the time they do connect to the wastewater system. Newly erected structures in the annexation area will pay the normal hook-up fees than in effect at the time of their connection to the wastewater system.
- (6) *Zoning.* The area will be zoned B-2 under the Berlin Zoning Ordinance with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the

Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from July 1, 1998, to June 30, 1999, and shall become due and payable within 60 days of annexation. Commencing with the fiscal year beginning July 1, 1999, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1998-7, 7-13-1998)

Sec. C2-12.1. November 1998 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northerly corporate limits and the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Item 1. Beginning at a concrete monument at the southeast corner of lands of John R. Allison and Louis T. Allison, his wife (Deed Reference: FWH 157/460 and FWH 364/170), and the southwest corner of lands of David H. Adams (Deed Reference: RHO 1915/96); said beginning point being located on the southerly line of and in the center of Lot 5-Block B, as shown on a plat entitled "Subdivision for J. Edward Evans" as recorded in the land records of Worcester County, Maryland

in Plat Book ODC No. 2, Folio 70; and also a corner of the existing corporate limits of Berlin, Maryland and being the end of the 2nd course of the description of Parcel Number III in Berlin Annexation Resolution Number 1998-7;

Thence, by and with the southerly lines of lands of said David H. Adams, Lyda R. Steele et. al. (Deed Reference WCL 1204/39), and Enos Bradford and wife (Deed Reference FWH 388/549), said lines being also the southerly lines of 1/2 of Lot 5, and Lots 6-11, Block B of the plat entitled "Subdivision for J. Edward Evans", N74° 31' 16" E, 345.34 feet to a concrete monument on the westerly line of lands of Jack Dunlap and Joan E. Young (Deed Reference: RHO 2082/151);

Thence, by and with the westerly and southerly lines of Jack Dunlap and Joan E. Young, the following [three] (3) courses and distances:

- (1) S13° 42' 46"E, 311.48 feet to a point; and
- (2) S76° 12' 46"E, 638.88 feet to a point; and
- (3) S82° 27' 46"E, 185.44 feet to a point at or near the westerly line of lands of Lois C. Harrison, et. al. (Deed Reference KJC 26/265);

Thence, by and with the westerly lines of lands of Lois C. Harrison, the following [four] (4) courses and distances:

- (1) S27° 04' 15" E, 558.32 feet to an iron pipe found, and
- (2) S26° 55' 48" E, 25 feet to 2.26 feet to a point; and
- (3) S29° 46' 59" E, 338.71 feet to an iron pipe found; and
- (4) S 33° 33' 41" E, 218.05 feet to a point on the southerly right-of-way line of Flower Street extended ± 15 feet from the center of pavement;

Thence, by and with the southerly right-of-way line of Flower Street Extended and $\pm$ 15 feet from the center of pavement, the following [four] (4) courses and distances:

- (1) N60° 23' 02"E, 134.36 feet to a point; and
- (2) 208.82 feet by and with an arc of a curve to the right having a radius of 630.83 feet and a chord bearing and distance of N69° 52' 01"E, 207.87 feet to a point; and
- (3) N79° 21' 00"E, 483.79 feet to a point; and
- (4) 526.43 feet by and with an arc of a curve to the right having a radius of 2,722.04 feet and a chord bearing and distance of N84° 53' 26"E, 525.61 feet to a point opposite a southerly extension of the westerly boundary line of lands of the Worcester County Board of Education known as the "Stephen Decatur Middle School"; said point being also an existing corner to the corporate limits of Berlin, Maryland and described in Berlin Resolution 1997-21 as the end of the 42nd (S89° 53'45"W, 41.62 feet) course;

Thence, by and with the corporate limits of Berlin as described in the aforesaid Resolution 1997-21 by the 43rd through the 58th courses, the following [sixteen] (16) courses and distances:

- (1) Across Flower Street Extended and by and with the lands of the Stephen Decatur Middle School, N04° 55' 28"W, passing through a concrete monument at the southwest corner of lands of the Stephen Decatur Middle School at a distance of 30.10 feet, 775.93 feet to a concrete monument found; and

- (2) N85° 04' 32"E, 676.35 feet to a concrete monument at the southwest corner of lands of the Worcester County Board of Education known as the Stephen Decatur High School; and
- (3) By and with the westerly line of the lands of the Stephen Decatur High School, N05° 15' 28"W, 1,493.00 feet to a point on the southerly right-of-way line of U.S. Route 50; and
- (4) By and with the southerly right-of-way lines of U.S. Route 50 as shown on S.R.C. Plat Nos. 7281, 7282, and 16520, the following [five] (5) courses and distances:
 - (a) S77° 36' 23"W, 277.01 feet to a PC point opposite U.S. Route 50 baseline station 324 + 25.12; and
 - (b) 876.86 feet by and with the arc of a curve to the right having a radius of 5,829.58 feet with a chord bearing and distance of S81° 55' 31"W, 876.03 feet to a point; and
 - (c) S78° 02'50"W, 324.58 feet to a point; and
 - (d) S00° 38' 09"E, 5.50 feet to a point; and
 - (e) S76° 38' 52"W, 40.06 feet to a point on the easterly line of lands of DKR Investments (Deed Ref: FWH 387/603); and
- (5) By and with the lands of DKR Investments, the following [four] (4) courses and distances:
 - (a) S22° 47' 24"E, 191.18 feet to a point; and
 - (b) S19° 28' 36"W, 343.60 feet to a point; and
 - (c) S77° 33' 36"W, 458.80 feet to a point; and

(d) S74° 58' 52"W, 335.06 feet to a concrete monument found at the southwest corner of lands of DKR Investments and on the easterly line of lands of Ronald J. Holland (Deed Ref: FWH 183/207 and FWH 556/05); and

(6) By and with the lands of Ronald J. Holland, the following [two] (2) courses and distances:

(a) S19° 28' 07"W, 40.80 feet to a concrete monument found; and

(b) N15° 08' 35"W, 533.61 feet to a point on the southerly side of Maryland Route 346; and

(7) By and with the southerly side of Maryland Route 346, the following [two] (2) courses and distances:

(a) S74° 43' 22"W, 937.71 feet to a point at the northeast corner of Lot 11—Block B, as shown on a plat entitled "Subdivision for J. Edward Evans" as recorded in Plat Book O.D.C. No. 2/70; and

(b) S74° 31' 16"W, 351.50 feet to an iron pipe at the northeast corner of the aforesaid lands of John R. and Louise T. Allison;

Thence, by and with the lands of Allison, S15° 28' 44"E, 200.00 feet to the point of beginning.

Containing ± 113.78 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor No. 142, and shown on a plat entitled "Item 1 and Item 2, Annexation to the Corporate Town Boundaries of Berlin, Maryland," dated 9/23/98.

The courses described are 1978 magnetic bearings.

Item 2. Beginning at an iron pipe located on the southerly side of Maryland Route 346 at the northeast corner of lands of J.R.B. Foods, Inc. (Deed Reference RHO 2423/159); said beginning point being the northeast corner of Lot 2 Block B, as shown on a plat entitled "Subdivision for J. Edward Evans" and recorded in the land records of Worcester County in Plat Book O.D.C. No. 2, Folio 70; and said beginning point being also the northwest corner of lands of John R. Allison and wife (Deed Reference FWH 157/460 and FWH 364/170) as described in Annexation Resolution Number 1998-7 as the beginning point of Parcel Number III;

Thence, by and with the southerly side of Maryland Route 346 and lands of J.R.B. Foods, Inc., Philip Lewis and wife (Deed Reference RHO 1880/82), and Allen Palmer and wife (Deed Reference FWH 300/80), S74° 31' 16"W, 250.00 feet to a point at the northeast corner of lands of Phoebe S. Stout (Deed Reference FWH 201/509) and the northeast corner of Lot 9 Block A of the aforesaid plat entitled J. Edward Evans Subdivision;

Thence, by and with the easterly line of lands of Phoebe S. Stout and of said Lot 9 Block A, S15° 28' 44"E, 200.00 feet to a point;

Thence, by and with the southerly lines of lands of Allen Palmer and wife, Philip Lewis and wife, and J.R.B. Foods, Inc., N74° 31' 16"E, 250.00 feet to the southeast corner of Lot 2 Block B and the lands of John R. Allison and wife;

Thence, by and with the lands of Allison, N15° 28' 44"W, 200.00 feet to the point of beginning.

Containing ± 50,000 square feet or ± 1.15 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Mary-

land Property Line Surveyor No. 142, and shown on a plat entitled "Item 1 and Item 2, Annexation to the Corporate Town Boundaries of Berlin, Maryland," dated 9/23/98.

The courses described are 1978 magnetic bearings.

Item 3. Beginning at a point at the northwest corner of land of Virginia E. Cropper (Deed Reference Liber 2389/48) shown on Worcester County Tax Map 25 as Parcel 173; said beginning point being an existing corner of the corporate limits of Berlin, Maryland and described as the end of the 2nd (N59° 54' 00"E, 70.00 feet) course of Berlin Annexation Resolution Number 1997-21;

Thence, by and with existing corporate limit lines of Berlin and the northerly and westerly boundary lines of lands of said Virginia E. Cropper, the Equitable Trust Company (Deed Reference FWH 157/32), Kelly Foods Corporation (Deed Reference WCL 1375/107) and Salisbury Regional Health Center Partnership (Deed Reference Liber 1559/300), the following [four] (4) courses and distances:

- (1) N59° 54' 00"E, 185.20 feet to a point; and
- (2) N14° 59' 00"W, 891.66 feet to an iron pipe; and
- (3) N40° 47' 00"E, 577.50 feet to a point; and
- (4) N21° 51' 00"W, 178.23 feet to a point at or near the southerly right-of-way line of U.S. Route 50;

Thence, crossing U.S. Route 50, N18° 36' 54" E, 243.30 feet to a point in the right-of-way of U.S. Route 50 located 100 feet northerly of and perpendicular to the baseline/centerline of U.S. Route 50 as

shown on State Highway Administration—State Roads Commission of Maryland plat numbered 49977;

Thence, by and with a line parallel to and 100 feet northerly of the aforesaid U.S. Route 50 baseline/centerline, S71° 23' 06" E, 1,635.63 feet to a point on the northerly right-of-way line of U.S. Route 50 opposite baseline station PC 355+25 12;

Thence, continuing with the northerly right-of-way line of U.S. Route 50, 552.00 feet by and with the arc of a curve to the left having a radius of 5,629.58 feet and a chord bearing and distance of S74° 11' 45"E, 551.78 feet to an existing corner of the corporate limits of Berlin, Maryland as described in Annexation Resolution Number 1998-7 as the end of the 2nd (N16° 19' 18" W, 644.58) line of Parcel Number 11;

Thence, by and with existing lines of the corporate limits of Berlin, Maryland, the following [sixteen] (16) courses and distances:

- (1) S16° 19' 18"E, 644.58 feet to a point on the northerly right-of-way of Maryland Route 346; and
- (2) By and with the northerly right-of-way of Maryland Route 346, S74° 32' 26"W, 880.10 feet to a point at the southeast corner of land of David M. Lilley (Deed Reference RHO 2057/18); and
- (3) By and with the easterly line of land of David M. Lilley, N15° 26' 22"W, 250.00 feet to the land of Salisbury Regional Health Center (Deed Reference WCL 1130/165); and
- (4) By and with the land of Salisbury Regional Health Center, S74° 33' 38"W, 350.00 feet to the land of Kelly Foods Corporation (Deed Reference WCL 1375/107); and

- (5) By and with the land of Kelly Foods Corporation, S15° 26' 22"E. 250.00 feet to Maryland Route 346; and
- (6) By and with Maryland Route 346, S74° 32' 35"W, 500.00 feet to the southeast corner of land of Bethany Auto Parts, Inc. (Deed Reference RHO 1562/68); and
- (7) N15° 27' 18"W, 250.00 feet to the northeast corner of land of Bethany Auto Parts, Inc., and
- (8) S74° 32' 42"W, 427.82 to a point at the northeast corner of land of Storage Equity Partners, L.P. III (Deed Reference RHO 2236/73 Parcel 2) and on the easterly line of land of Equitable Trust Company, Trustee (Deed Reference Liber 746/530, Item 3); and
- (9) By and with the easterly line of land of Equitable Trust Company, Trustee, S17° 40' 19"E, 261.00 feet to Maryland Route 346; and
- (10) By and with Maryland Route 346, S69° 40' 52"W, 66.00 feet; and
- (11) S67° 55' 52"W, 66.00 feet; and
- (12) S66° 11' 32"W, 66.00 feet; and
- (13) S64° 27' 12"W, 66.00 feet; and
- (14) S62° 25' 52"W, 34.07 feet to the southeast corner of land of Virginia E. Cropper (Deed Reference Liber 2389/48); and
- (15) Continuing with Maryland Route 346 and land of Virginia E. Cropper, S59° 37' 17"W, 104.15 feet to a concrete monument; and
- (16) N30° 13' 44"W, 298.06 feet to the point of beginning.

Containing +67.79 acres of land as surveyed and described by me, L.E. Bunting Jr., Registered Maryland Property Line Surveyor Number 142 and as shown on a

plat entitled Item 3—Annexation to the Corporate Boundaries of Berlin, Maryland, dated 9/16/98.

The courses described are 1978 magnetic bearings.

Item 4. Beginning at an iron pipe found at the northwesterly most corner of land of Purnell Inc. (Deed Reference FWH 276/36) shown on Worcester County Tax Map Number 25 as Parcel No. 146; said iron pipe being located on the southerly side of Maryland Route 346 (also known as Old Ocean City Boulevard) and being an existing corner of the corporate limits of Berlin, Maryland as described in Berlin Annexation Resolution Number 1989-8 as the end of the 20th (N17° 12' 25"W, 569.05 feet) course;

Thence, across Maryland Route 346, N46° 36' 19"E, 85.48 feet to a point on the northerly side of Maryland Route 346 approximately 20 feet from the center of pavement;

Thence, by and with the northerly side of Maryland Route 346 and approximately 20 feet from the center of pavement, the following [four] (4) courses and distances:

- (1) 260.02 feet by and with the arc of a curve to the left having a radius of 893.37 feet and a chord bearing and distance of S51° 43' 58"E, 259.10 feet to a point; and
- (2) S60° 04' 15"E, 567.47 feet to a point; and
- (3) S61° 03' 06"E, 276.68 feet to a point; and
- (4) S64° 18' 15"E, 692.22 feet to an iron axle found at the southwest corner of land of Joseph H. Maycock, et. al. (Deed Reference FWH 695/517);

Thence, by and with the land of Joseph H. Maycock, et. al., the following [two] (2) courses and distances:

- (1) N25° 40' 29"E, 175.00 feet to a point; and
- (2) S87° 03' 00"E, 160.50 feet to an iron axle found on the westerly side of Maryland Route 818;

Thence, diagonally across Maryland Route 818, S40° 01' 12"E, 48.34 feet to an iron pipe at the northwest corner of land of Scott K. Jarman & wife (Deed Reference WCL 1278/264);

Thence, by and with the northerly boundary lines of Jarmon and the southerly lines of Richard S. Huntington (Deed Reference FWH 419/21), the following [two] (2) courses and distances:

- (1) S88° 19' 12"E, 168.42 feet to an iron pipe; and
- (2) S03° 33' 12"E, 5.31 feet to an iron pipe at the northwest corner of land of Charles W. Lord (Deed Reference RHO 2390/185);

Thence, by and with the northerly line of land of Charles W. Lord and continuing with the southerly line of land of Richard S. Huntington, S89° 06' 12"E, 94.50 feet to the land of ABP Limited Partnership (Deed Reference RHO 1594/274);

Thence, by and with the westerly and northerly lines of land of ABP Limited Partnership, the following [two] (2) courses and distances:

- (1) N40° 50' 32"E, 219.08 feet; and
- (2) N67° 39' 08"E, 234.41 feet to the westerly side of the 66 foot wide railroad right-of-way of Snow Hill Shipper's Association, Inc. (Deed Reference WCL 1369/346);

Thence, across the railroad right-of-way, S73° 24' 22"E, 66.00 feet to the westerly line of land now or formerly of Hudson Foods, Inc. (Deed Reference RHO 1482/214);

Thence, by and with the westerly line of Hudson Foods, Inc., S16° 35' 30"W, 425.32 feet to the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346, N85° 25' 04"E, 463.23 feet to the southwest corner of land of Oak-Kwang Park and wife (Deed Reference RHO 1750/543);

Thence, by and with the westerly line of land of Oak-Kwang Park and wife, N03° 31' 32"W, 229.33 feet to the land of Denman Rayne and wife (Deed Reference FWH 670/66);

Thence, by and with the northerly and part of the easterly lines of land of said Oak-Kwang Park, the following [two] (2) courses and distances:

- (1) N85° 12' 57"E, 190.00 feet to a point; and
- (2) S03° 31' 32"E, 24.15 feet to the northwest corner of land of Berlin—Ocean City Lodge 1638 (Deed Reference WCL 1078/379);

Thence, by and with the northerly line of said land of Berlin Ocean City Lodge 1638, S87° 31' 18"E, 166.63 feet to a point on the westerly line of land of Old Ocean City Boulevard Partners (Deed Reference RHO 2110/48);

Thence, by and with the land of Old Ocean City Boulevard Partners, the following [two] (2) courses and distances:

- (1) N20° 33' 16"E, 115.02 feet to the land of Hudson Foods, Inc.; and
- (2) S68° 14' 52"E, 135.57 feet to a concrete monument at the north-

west corner of land of Irene H. Williams (Deed Reference FWH 124/63);

Thence, by and with the northerly lines of land of Irene H. Williams, the following [two] (2) courses and distances:

- (1) S67° 51' 35"E, 204.55 feet to a point; and
- (2) S69° 07' 49"E, 117.73 feet to an iron pipe on the westerly line of land of J. Marshall Melson and wife (Deed Reference FWH 383/99);

Thence, by and with the westerly line of Melson, N06° 37' 03"W, 116.08 feet to a corner of the lands of W. G. Williams, III and wife (Deed Reference FWH 454/613 and WCL838/274);

Thence, by and with the lands of W.G. Williams III and wife, the following [three] (3) courses and distances:

- (1) N04° 50' 36"W, 75.00 feet to a point; and
- (2) S86° 31' 34"E, 140.00 feet to a point; and
- (3) S06° 24' 30"E, 55.00 feet to a point at the northwest corner of land of Eastern Shore Gas Co., Inc. (Deed Reference RHO 2072/542);

Thence, by and with the northerly line of land of Eastern Shore Gas Co., Inc., S87° 16' 03"E, 78.00 feet to a point at the westerly corner of land of American Legion Boggs Disharoon Post 123;

Thence, by and with the westerly line of American Legion Boggs Disharoon Post 123, N06° 35' 34"E, 154.30 feet to intersect the southwesterly line of land of Salvatore's Restaurants Inc. (Deed Reference RHO 1906/489) and also an existing corporate limit line of Berlin, Maryland;

Thence, by and with the existing corporate limit lines of Berlin, the following [sixteen] (16) courses and distances:

- (1) 564° 10' 32"E, 152.98 feet to a point; and
- (2) S28° 27' 30"E, 252.02 feet to the northerly side of Maryland Route 346; and
- (3) Across Maryland Route 346, S34° 24' 00"W, 50.60 feet to a point on the southerly side of Maryland Route 346; and
- (4) S78° 14' 30"W, 186.46 feet to a point; and
- (5) S17° 43' 46"W, 474.43 feet to a point; and
- (6) N83° 37' 17"W, 1985.71 feet to a point on the north side of North Main Street; and
- (7) S55° 02' 12"W, 413.79 feet to a point on the line of land of Purnell, Inc. (Deed Reference FWH 276/36); and
- (8) N01° 24' 28"W, 254.59 feet; and
- (9) S69° 53' 15"W, 118.02 feet; and
- (10) S77° 33' 34"W, 178.88 feet; and
- (11) S85° 07' 51"W, 150.21 feet; and
- (12) N63° 00' 14"W, 25.49 feet; and
- (13) N39° 56' 59"W, 256.49 feet; and
- (14) N41° 20' 59"W, 247.88 feet; and
- (15) N34° 37' 21"W, 235.66 feet to the southerly side of Maryland Route 346; and
- (16) N59° 52' 11"W, 1016.71 feet to the point of beginning.

Containing +35.42 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142; and as shown on a plat enti-

tled "Item 4—Annexation to The Corporate Town Boundaries of Berlin, Maryland," dated 9/21/98.

The bearings used for this description are based upon Maryland State Plane data.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all Ordinances, Resolutions, Rules and Regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follow:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* Since the town currently has water service available to the property there will be no requirement for additional expenditures to provide water service. The property owner will pay the normal in-town rate for water service and be responsible for the extension of the water lateral from the property line to any structure currently existing on the property. Any connections requested by the property owner, other than the ordinary to serve a single-family dwelling, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the

service. The town will waive the hook-up fee, provided connection is made to the water system prior to December 31, 1998, in the case of all newly annexed property located east of U.S. Route 113 and June 30, 1999, in the case of all newly annexed property located west of U.S. Route 113, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned water main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to connect to the water system prior to that date will pay the normal hook-up fees then in effect at the time they do connect to the water system. Newly erected structures in the annexation area will pay the normal hook-up fees then in effect at the time of their connection to the water system.

- (4) *Electrical service.* Berlin has electrical service available in the proposed annexation area. Upon receiving final approval of a legal annexation of property into Berlin's town limits, Berlin will petition the Maryland Public Service Commission (MPSC) for approval to provide electric service, in accordance with its approved tariff; to all future electric customers locating within its legally annexed boundaries. Upon receiving such approval from the MPSC it is expected that the Berlin Electric Department would supply power to new customers within 30 to 60 days. The Berlin Electric Department, upon receiving a written request for electric service, from a customer, or group of customers, who is/are currently receiving electric service from the Delmarva Power and Light Company, will consider and respond to the request for transfer of service within 90 days. Transfer of an existing customer, or a group of customers, into Berlin's Electric System will be subject to final review

and approval of the MPSC. Each customer, or group of customers, request will be considered as a separate, negotiated agreement. Each request's approval will be based upon the Berlin Electric Department's economic and budgetary constraints. All requests will be considered on a first-come-first-served basis. No time limit will be placed upon the request for transfer into the Berlin Electric System. Berlin's expected method of funding to extend electric service into the annexed area is to be locally funded. Any request for future bonding or any outside source of funding is anticipated to be funded by a revenue-producing bond.

- (5) *Wastewater service.* Since the town currently has wastewater service available to the property there will be no requirement for additional expenditures to provide wastewater service. The property owner will pay the normal in-town rate for wastewater service and be responsible for the extension of the wastewater lateral from the property line to any structure erected on the property. Any connections requested by the property owner, other than the ordinary, will meet all town standards and require reimbursement to the town for all costs above the normal costs to extend the service. The town will waive the hook-up fee, provided connection is made to the wastewater system prior to December 31, 1998, in the case of all newly annexed property located east of U.S. Route 113, and June 30, 1999, in the case of all newly annexed property located west of U.S. Route 113, due to the property owner having provided a ten-foot easement across their property to permit the construction of the previously mentioned wastewater main parallel to Old Ocean City Boulevard (Route 346). Any annexed property failing to connect to the

system prior to that date will pay the normal hook up fees then in effect at the time they do connect to the wastewater system. Newly erected structures in the annexation area will pay the normal hook up fees then in effect at the time of their connection to the wastewater system.

- (6) *Zoning.* The area will be zoned as R-2, B-1, B-2, and M-2 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document,

Editor's note—Said map is on file in the town [offices and made a part of this document] with the consent of the Worcester County Commissioners.

- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall be prorated from July 1, 1998, to June 30 1999, and shall become due and payable within sixty (60) days of annexation. Commencing with the fiscal year beginning July 1, 1999, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.
- (9) *Land use pattern.* The Town of Berlin plans to continue the same land use pattern contained in the Worcester County Master Plan. A map of the area

as zoned by the Worcester County Commissioners is attached hereto and made a part of this document.

Editor's note—Said map is on file in the town offices.

- (10) *Available land for public facilities.* There is no land available in the annexed area for water or wastewater treatment facilities, libraries, fire or police other than indicated above.

(Res. No. 1998-12, 11-9-1998)

Sec. C2-13. April 1999 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the western corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at an existing corporate boundary monument of the Town of Berlin, Maryland; said corporate boundary monument being located 17.5 feet southerly of the center of pavement of Maryland Route 374 (also known as Broad Street) and 353.4 feet westerly of the intersection of the westerly right-of-way line of Ann Drive with the southerly right-of-way line of Maryland Route 374 to Libertytown;

Thence, by and with the existing Berlin Corporate Limit Line the following two courses and distances:

- (1) Through the properties of Timothy W. Fields (Deed Reference: WCL 1370/529 and Joseph R. & Myrna K. Dyson (Deed Reference WCL 880/5) S00 44 00 W, 254.83 feet to the northerly line of Franklin Heights Subdivision Section 1; and

- (2) By and with the northern line of the Franklin Heights Subdivision, N51 23 00 W, 159.58 feet to a concrete monument at the northwest corner of Lot 21 of Franklin Heights and the southwest corner of lands of Timothy W. Fields;

Thence, by and with the westerly line of lands of Timothy W. Fields and the easterly line of lands of Evelyn A. Hastings (Deed Reference FWH 572/268) N39 30 00 E, 201.15 feet to the point of beginning.

Containing $\pm$ 16,048 square feet of land and as shown on a plat entitled "Proposed Annexation—Town of Berlin", as prepared by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142 dated 2/11/99.

The bearings used for this survey are magnetic as referenced by the plat of Franklin Heights—Section 1.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin, municipal police services of the Berlin Police Department are currently being provided to the area to be annexed.
- (2) *Trash collection.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin, solid waste collection

services of the Town of Berlin Sanitation Department are currently being provided to the area to be annexed.

- (3) *Water service.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin, water service at in-town rates is currently being provided to the area to be annexed. Because the municipality has water service available to the property line, there will be no requirement for additional expenditures to provide water service.
- (4) *Electrical service.* Since the properties to be incorporated are already located within the franchise area of the municipality owned by Berlin Electric Company and are currently being serviced by that agency there will be no requirement for additional expenditures to provide electrical service.
- (5) *Wastewater service.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin, wastewater service at in-town rates is currently being provided to the area to be annexed. Because the municipality has wastewater service available to the property line there will be no requirement for additional expenditures to provide wastewater service.
- (6) *Zoning.* The area will be zoned as R-1 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
Editor's note—Said map is on file in the town offices.
- (7) *Voting rights.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin all residents in the an-

nexed area have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

- (8) *Property taxes.* Since the properties to be incorporated are already partially located within the corporate limits of the Town of Berlin and are currently being taxed as are all other incorporated properties within the municipal limits the properties will continue to be taxed as are all other properties.

(Res. No. 1999-2, 4-26-1999)

Sec. C2-14. August 1999 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the western corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at an existing corporate boundary monument of the Town of Berlin, Maryland; situated on the southerly side of Maryland Route 374 (also known as Broad Street and/or Libertytown Road) near the northwest corner of lands of Timothy W. Fields; said beginning point being located $\pm$ 18 feet southerly of the center of the macadam of Maryland Route 374 and 353.5 feet westerly of a corporate monument found at the intersection of the westerly right-of-way line of Ann Drive with the southerly right-of-way of Maryland Route 374;

Thence, by and with the southerly side of Maryland Route 374 and $\pm$ 18 feet from the center of pavement, N52° 43t 57 W, 342.84 feet to a point;

Thence, across Maryland Route 374, N37° 33 40 E, 40.00 feet to an iron pipe found at the southwest corner of lands of Troy and Lauralee Purnell (Deed Reference; RHO 2388/429); said point being also a corner of the existing corporate limits of Berlin, Maryland as described in Mayor and Council of Berlin Resolution Number 1989-8 as the end of the 14th (N53° 08 15 W, 100.00 feet) line of said annexation resolution;

Thence, by and with the fourteenth through the first lines of the aforesaid Resolution Number 1989-8 the following [thirteen] (13) courses and distances:

- (1) S53° 08 15 E, 100.01 feet to a point; and
- (2) N37° 33 40 E, 195.54 feet to a point; and
- (3) S52° 26 20 E, 50.00 feet to a point; and
- (4) N37° 33 40 E, 200.00 feet to a point; and
- (5) S52° 26 20 E, 100.00 feet to a point; and
- (6) N37° 33 40 E, 230.00 feet to a point at the northwest corner of lands of Thomas P. and Katherine B. Janson (Deed Reference FWH 414/615); and
- (7) S52° 26 20 E, 350.00 feet to a point at the northeast corner of said land of the Janson's; and
- (8) S37° 33 40 W, 93.21 feet to a point; and
- (9) S61° 46 38 W, 117.09 feet to a point; and
- (10) N52° 26 20 W, 251.97 feet to a point; and
- (11) S37° 33 40 W, 230.00 feet to a point; and

(12) S52° 26 20 E, 125.00 feet to a point; and

(13) S37° 33 40 W, 52.31 feet to the point of beginning of the aforesaid Resolution Number 1989-8 description;

Thence S61° 46 38 W, 200.32 feet to the beginning point of this description.

Containing $\pm$ 3.95 acres of land as described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142 and as shown on a plat entitled "Annexation to the Corporate Town Boundaries of Berlin, Maryland," dated 6/7/99.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* Since the properties to be incorporated are already receiving water service there will be no requirement for additional expenditures to provide water service to the property. The properties currently receiving water service at out-of-town rates will upon the effective date of annexation receive water service at in-town rates.

- (4) *Electrical service.* Since the properties to be incorporated are already located within the franchise area of the municipality owned by Berlin Electric Company and are currently being serviced by that agency there will be no requirement for additional expenditures to provide electrical service.
- (5) *Wastewater service.* Since the properties to be incorporated are already receiving wastewater service there will be no requirement for additional expenditures to provide wastewater service. The properties currently receiving wastewater service at out-of-town rates will upon the effective date of annexation receive wastewater service at in-town rates.
- (6) *Zoning.* The area will be zoned as R-2 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
Editor's note—Said map is on file in the town offices.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution, such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2000, all such taxes

shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Ord. No. 1999-11, 8-23-1999)

Sec. C2-15. December 1999 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the eastern corporate limits of the Town of Berlin and more particularly described as follows:

Item No. 1. Beginning for this description at a set iron rod on the westerly line of Bottle Branch Road, said road being further described on a plat prepared by L.E. Bunting Surveys, Inc. entitled "Plat of Survey showing Right-of-Way of Berlin Treatment Plant Road," dated April 4, 1988, said point being further described as bearing north 81° 43' 23" west, 30.05 feet from a found concrete monument as shown on a plat entitled "Plat of Property Conveyed to Mayor and Council of Berlin" surveyed by William D. Pitts, dated August 1948, and recorded in Plat Book C.W.N. Liber 1, Folio 8, thence by and with the westerly line of said road, south 08° 31' 37" west, 331.53 feet to set iron rod, said iron rod bears north 81° 43' 23" west, 112.18' ± to an unmarked point on the east bank of a ditch and on the line of the lands of Robert W. Phillips, et al. Deed Reference F.W.H. Liber 226, Folio 546, thence by and with the east bank of the ditch, north 12° 34' 00" east, 332.58 feet to an unmarked point, thence by and with the said lands of the Mayor and Council of Berlin, south 81° 43' 23" east, 88.75 feet ± to the point of beginning,

containing 0.7647 acres of land more or less, being part of Item No. 1 of Deed Reference F.W.H. 99, Folio 598.

Item No. 2. Beginning for this description at a set iron rod on the easterly line of Bottle Branch Road, said road being further described on a plat prepared by L.E. Bunting Survey, Inc. entitled "Plat of Survey showing Right-of-Way of Berlin Treatment Plant Road," dated April 4, 1988, said point being further described as being south 08 31' 37" west, 32.11 feet from a found concrete monument as shown on a plat entitled "Plat of Property Conveyed to Mayor and Council of Berlin", surveyed by William D. Pius, dated August 1948, and recorded in Plat Book C.W.N. 1, Folio 8, thence by and with an area of unknown ownership in possession of John S. Whaley, south 59 30' 22" east, 189.92 feet to a set iron rod on the line of the lands of Lotus Aydelotte Merritt, south 39 29' 38" west, 285.45 feet to a found stone, said stone being at the northeast corner of the lands of Catherine Marie Johnson Hudson, Deed Reference F.W.H. Liber 224, Folio 478, thence by and with the lands of Catherine Marie Johnson Hudson, north 68 15' 22" west, 30.06 feet to a set iron rod on the easterly line of Bottle Branch Road, thence by and with the easterly line of said road north 08 31' 37" east, 308.94 feet passing through a found concrete monument as shown on said plat recorded in Plat Book C.W.N. 1, Folio 8, 9.39 feet from said iron rod to the point of beginning, containing 0.7184 acres of land more or less, being Item No. 2 of Deed Reference F.W.H. 99, Folio 598.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on

said date shall apply to all persons residing in the area to be annexed and the property in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follow[s]:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* Water service is currently not available at the property line.
- (4) *Electrical service.* Upon receiving final approval of a legal annexation of property into Berlin's town limits, Berlin may petition the Maryland Public Service Commission (MPSC) for approval to provide electric service, in accordance with its approved tariff, to all future electric customers locating within its legally annexed boundaries. Upon receiving such approval from the MPSC it is expected that the Berlin Electric Department would supply power to new customers within 30 to 60 days. The Berlin Electric Department, upon receiving a written request for electric service, from a customer, or group of customers, who is/are currently receiving electric service from Delmarva Power and Light Company or Choptank Electric, will consider and respond to the request for transfer of service within 90 days. Transfer of an existing customer, or a group of customers, into Berlin's Electric System will be subject to final review and approval of the MPSC. Each customer, or group of customers, request will be considered as a separate, negotiated agreement. Each

request's approval will be based upon the Berlin Electric Department's economic and budgetary constraints. All requests will be considered on a first-come-first-served basis. No time limit will be placed upon the request for transfer into the Berlin Electric System. Berlin's expected method of funding to extend electric service to the annexed area is to be locally funded. Any request for future bonding or any outside source of funding is anticipated to be funded by a revenue-producing bond.

- (5) *Wastewater service.* Since the property to be incorporated is already receiving wastewater service there will be no requirement for additional expenditures to provide wastewater service. Upon the effective date of the annexation, the property will receive wastewater service at "in-town" rates.
- (6) *Zoning.* The area will be zoned as R-2 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within ninety (90) days

of annexation. Commencing with the fiscal year beginning July 1, 2000, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 1999-14, 12-27-1999)

Sec. C2-16. April 2000 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the western and northern corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at an iron axle situated ± 15 feet westerly of the center of the pavement of Maryland Route 818 at a distance of ± 260 feet northerly of Maryland Route 346; said axle being the northeasterly corner of land of Joseph M. Maycock, et. al., known as "Parcel 147" of Worcester County tax map 25 and as referenced by a deed recorded among the land records of Worcester County in Liber FWH 695, Folio 517; said iron axle being also a corner of the existing corporate limits of Berlin, Maryland;

Thence, by and with the westerly right-of-way of Maryland Route 818 and ± 15 feet from its center of pavement, the following [thirteen] (13) courses and distances:

- (1) N01° 40' 30"E, 438.68 feet to a point; and
- (2) N02° 40' 18"E, 100.54 feet to a point; and
- (3) N03° 53' 20"E, 56.45 feet to a point; and
- (4) N08° 20' 31"E, 80.31 feet to a point; and

- (5) N12° 53' 18"E, 161.46 feet to a point; and
- (6) N14° 27' 35"E, 200.43 feet to a point; and
- (7) N14° 36' 25"E, 787.42 feet to a point; and
- (8) 301.49 feet by and with an arc of a curve to the left having a radius of 2805.00 feet with a chord bearing and distance of N11° 31' 39"E, 301.35 feet to a point; and
- (9) N03° 58' 13"E, 95.91 feet to an iron axle at the northeast corner of lands of Stuart J. & Ruth S. Scott (Deed Reference: FWH 536/658); and
- (10) N02° 47' 44"E, 213.70 feet to an iron pipe found; and
- (11) N00° 32' 53"E, 116.03 feet to a railroad iron at the southeast corner of lands of Charles W. Lewis (Deed Reference: FWH 445/30); and
- (12) N03° 02' 04"W, 299.34 feet to a concrete monument at the southeast corner of lands of Athena Properties, Inc. (Deed Reference: RHO 2132/101) and
- (13) N09° 15' 41"W, 197.97 feet to a concrete monument at the southeast corner of lands of Mark L. & Evelyn J. Brittingham (Deed Reference: WCL 949/185);

Thence, by and with the southerly property line of Mark L. & Evelyn J. Brittingham, N69° 22' 47"W, 453.53 feet to an iron pipe at a corner of the lands of the State of Maryland known as the "Maryland State Police-Berlin Barracks" (Deed Reference FWH 348/223);

Thence, by and with the lands of the Maryland State Police Barracks, the following [four] (4) courses and distances:

- (1) S45° 22' 43"W, 775.53 feet to a concrete monument found;

- (2) S49° 50' 17"W 252.93 feet to a concrete monument found;
- (3) N26° 13' 55"W, 862.67 feet to a concrete monument found;
- (4) N14° 52' 21"W, 444.88 feet to a concrete monument on the southerly right-of-way line of the 200 foot wide U.S. Route 50 as shown on SRC Plat Nos. 12858 & 12859;

Thence, by and with the southerly right-of-way line of the 200 foot wide U.S. Route 50, 808.17 feet by and with an arc of a curve to the right having a radius of 5829.58 feet and a chord bearing and distance of N60° 58' 25"W, 807.52 feet to a point opposite and 100 feet distance from a concrete monument found at Route 50 baseline plus PT 426 + 1921 as shown on SHA Plat No. 12859;

Thence, continuing with the southerly right-of-way line of U.S. Route 50, N57° 00' 07"W, 1336.24 feet to a point;

Thence, crossing U.S. Route 50, N32° 59' 53"E, 200.00 feet to an iron pipe found on the northerly right-of-way line of Route 50 and at the southwesterly corner of lands of Harry C. Taylor, et. al., shown as parcel 301 on Worcester County tax map 20 and as described in Liber FWH 703, Folio 108;

Thence, by and with the lands of said Harry C. Taylor, et. al., the following [eleven] (11) courses and distances:

- (1) N14° 20' 21"W, 1463.50 feet to a point; and
- (2) N01° 02' 52"W, 23.54 feet to a point; and
- (3) N57° 48' 52"E, 135.26 feet to a point; and
- (4) N56° 21' 09"E, 280.75 feet to a point; and

- (5) N12° 58' 24"E, 133.35 feet to a concrete monument found; and
- (6) N01° 59' 37"E, 118.58 feet to a concrete monument found; and
- (7) N01° 14' 19"E, 8.44 feet to an iron pipe at the southwest corner of lands of Beach Club Limited Partnership (Deed Reference RHO 2143/89); and
- (8) By and with the lands of Beach Club Limited Partnership, N65° 16' 00"E, 964.31 feet to a point; and
- (9) N85° 55' 00"E, 2015.02 feet to a point; and
- (10) S47° 28'05"E, 261.00 feet to an iron pipe at the corner of lands of said Beach Club Limited Partnership, Mark C. Hurley (Deed Reference RHO 1916/428) and Harry C. Tingle; and
- (11) S09° 33' 27"W, 12.03 feet to an iron pipe at the corner of lands of Mark C. Hurley, Nancy J. Brumbley, et. al., (Deed Reference RHO 2023/184) and the said Harry C. Taylor;

Thence, by and with the lands of Nancy J. Brumbley, et. al., S47° 50' 08"E, 826.24 feet to a point at the southwest corner of lands of W. Kenneth and Barbara M. Tyler (Deed Reference RHO 2120/200);

Thence, by and with the lands of W. Kenneth & Barbara M. Tyler, the following [six] (6) courses and distances:

- (1) N14° 02'43"E, 783.90 feet to an iron pipe found on the southerly right-of-way line of Deer Park Road; and
- (2) By and with the southerly right-of-way line of Deer Park Road, S75° 57' 17"E, 500.00 feet to an iron pipe found; and
- (3) S13° 12' 51"W, 586.45 feet to an iron pipe found; and

- (4) N84° 41' 16"W, 240.00 feet to a point; and
- (5) S01° 32' 05"E, 181.29 feet to a point; and
- (6) S42° 54' 33"W, 138.86 feet to a point at a corner of the aforesaid lands of Nancy J. Brumbley, et. al.;

Thence, by and with the lands of said Nancy J. Brumbley, et. al., the following [two] (2) courses and distances:

- (1) S44° 51' 44"W, 174.90 feet to a point; and
- (2) S62° 00' 15"E, 871.85 feet to a point on the westerly line of the 66' wide railroad right-of-way owned by Snow Hill Shippers, Inc. (Deed Ref: WCL 1369/346);

Thence, across the said railroad right-of-way, S85° 04' 49"E, 66.00 feet to a point;

Thence, by and with the easterly side of the 66' wide railroad right-of-way of Snow Hill Shippers, Inc. S04° 55' 11"W, 893.48 feet to the northerly line of lands of General Marine Supply Company (Deed Reference WCL 1080/2534);

Editor's note—The property owned by General Marine Supply Company was deleted from this annexation 9-25-2000 by Res. No. 2000-17, described as follows: Beginning at a point which is at the intersection of the easterly line of the 66 foot railroad right-of-way—Snow Hill Shippers Assoc., Inc. and the westerly line of U.S. Route 113 as shown on the S.R.C. Plat No. 12930, 13151 & 13152, and, from said point of beginning, running south 73 degrees 32 minutes 25 seconds east, 72.58 feet to a point; thence running by and with the westerly right-of-way lines of U.S. Route 113 as shown on the aforesaid plats, by the arc of a curve having a radius of 5,829.58 feet, an arc length of 522.97 feet and a chord length of 522.80 feet and a 8 chord bearing south 6 degrees 37 minutes 59 seconds west to a point; thence south 80 degrees 47 minutes 50 seconds west, 42.00 feet

to a point; thence south 8 degrees 14 minutes 23 seconds east, 139.47 feet to a point; thence south 7 degrees 42 minutes 58 seconds east, 102.77 feet to a point; thence south 11 degrees 57 minutes 21 seconds east, 109.38 feet to a point; thence south 7 degrees 54 minutes 2 seconds west, 198.98 feet to a point; thence south 22 degrees 30 minutes 36 seconds west, 176.14 feet to a point; thence south 43 degrees 22 minutes 10 second west, a distance of 253.26 feet to a point of intersection with the easterly line of the aforesaid 66 foot railroad right-of-way; thence by and with the easterly right-of-way line of said railroad, north 4 degrees 55 minutes 11 seconds east, 1,442.69 feet to the point of beginning, containing 4.88 acres of land. Thence, by and with the northerly and easterly lines of lands of General Marine Supply Company and the westerly right-of-way of U.S. Route 113 as shown on SRC Plat Nos. 12930, 13151, and 13152, the following [nine] (9) courses and distances: (1) S73° 32' 25"E, 72.58 feet to a point; and (2) 522.97 feet by and with the arc of a curve to the left having a radius of 5829.58 feet with a chord bearing and distance of S06° 37' 59"E, 522.80 feet to a point; and (3) S80° 47' 50"W, 42.00 feet to a point; and (4) S08° 14' 23"E, 139.47 feet to a point; and (5) S07° 42' 58"E, 102.77 feet to a point; and (6) S11° 57' 21"E, 109.38 feet to a point; and (7) S07° 54' 02"W, 198.98 feet to a point; and (8) S22° 30' 36"W, 176.14 feet to a point; and (9) S43° 22' 10"W, 359.40 feet to a point on the westerly line of the 66 foot wide railroad right-of-way of Snow Hill Shippers Assoc., Inc. and the easterly line of lands of Select Laboratories, Inc. (Deed Reference RHO 2353/331); Thence, by and with the easterly and northerly lines of lands of Select Laboratories, Inc. the following [two] (2) courses and distances: (1) N04° 55' 11"E, 1131.87 feet to a point; and (2) S76° 55' 04"W, 406.09 feet to a point on the southeasterly side of Maryland Route 818 ± 15 feet from its center of pavement; Thence, by and with the southeasterly side of Maryland Route 818 ± 15 feet from its center of pavement, and the north-

westerly lines of lands of Select Laboratories, Inc. the following [six] (6) courses and distances: (1) S42° 43' 16"W, 256.94 feet to a point; and (2) 347.38 feet by and with the arc of a curve to the left having a radius of 2919.79 feet with a chord bearing and distance of S39° 18' 49"W, 347.17 feet to a point; and (3) S35° 54' 16"W, 106.24 feet to a point; and (4) S27° 51' 09"W, 93.41 feet to a point; and (5) 405.98 feet by and with the arc of a curve to the left having a radius of 10,715.19 feet with a chord bearing and distance of S26° 46' 13"W, 405.95 feet to a point; and (6) 147.34 feet by and with the arc of a curve to the left having a radius of 510.26 feet with a chord bearing and distance of S17° 24' 47"W, 146.82 feet to a point on the northerly right-of-way line of U.S. Route 50; Thence, by and with the northerly right-of-way lines of U.S. Route 50, the following [two] (2) courses and distances: (1) S26° 25' 58"E 186.87 feet to a point; and (2) S81° 43' 57"E, 331.31 feet to a point opposite and perpendicular to U.S. Route 50 baseline at plus 398 + 20 as shown on SRC Plat No. 12857 a distance of 100.00 feet; Thence, crossing U.S. Route 50 perpendicular to its baseline at the aforesaid station 398 + 20, S08° 16' 03"W, 200.00 feet to a point on the southerly right-of-way of U.S. Route 50 and a corner of the lands of Cox 101 Midway, LLC (Deed Reference: RHO 2278/579); Thence, by and with the lands of Cox 101 Midway, LLC, the following [four] (4) courses and distances: (1) S08° 16' 03"W, 20.00 feet to a point; and (2) S81° 43' 57"E, 37.00 feet to a point; and (3) S02° 23' 35"E, 206.45 feet to a point; and (4) N81° 45' 01"W, 290.04 feet to a point on the easterly side of Maryland Route 818; Thence, by and with the easterly side of Maryland Route 818 and ± 15 feet from its center of pavement, the following [sixteen] (16) courses and distances: (1) S08° 37' 58"E, 93.68 feet to a point; and (2) S05° 40' 04"E, 82.03 feet to a point; and (3) S03° 29' 00"E, 170.04 feet to a point; and (4) S01° 19' 53"E, 84.06 feet to a concrete monument at the northwest corner of lands of Judith Ashton, et. al., (Deed Reference: RHO 2247/223); and (5)

S00° 09' 09"E, 148.08 feet to a point; and (6) S04° 03' 25"W, 279.39 feet to an iron pipe at the northwest corner of lands of Oltman Properties, Inc. (Deed Reference: SVH 2730/126); and (7) 304.71 feet by and with the arc of a curve to the right having a radius of 2835.00 feet with a chord bearing and distance of S11° 31' 39"W, 304.57 feet to a point; and (8) S14° 36' 25"W, 787.38 feet to an iron pipe found; and (9) S14° 27' 35"W, 199.98 feet to an iron pipe found at the northwest corner of lands of Robert B. Lane (Deed Reference: RHO 1619/571); and (10) S12° 53' 18"W, 159.86 feet to an iron pipe at the northwest corner of lands of Royce N. Evans (Deed Reference: FWH 145/289); and (11) S08° 20' 31"W, 77.95 feet to a point; and (12) S03° 53' 20"W, 54.96 feet to a point; and (13) S02° 40' 18"W, 99.94 feet to a point; and (14) S01° 34' 16"W, 277.55 feet to an iron pipe at the northwest corner of lands of Dorothy P. Hudson (Deed Reference: CWN 35/288); and (15) S01° 10' 41"W, 80.31 feet to a concrete monument at the northwest corner of lands of Richard S. Huntington (Deed Reference: FWH 419/21); and (16) S01° 12' 26"W, 116.68 feet to an iron pipe at the northwest corner of lands of Scott K. Jarman (Deed Reference: WCL 1278/264), said iron pipe being also a corner of the existing corporate limits of Berlin, Maryland; Thence, by and with the existing corporate limits of Berlin, Maryland and across Maryland Route 818 N40° 01' 12"N, 48.34 feet to the point of beginning. Containing ± 370.395 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142, and as shown on a plat entitled "Plat at Area to be Annexed to the Corporate Boundaries of Berlin, MD," dated 2/15/00, sheets 1, 2 and 3.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* The Town of Berlin will extend its water distribution system along North Main Street (Route 818) as expeditiously as possible.
 - (a) Existing single-family dwellings in the newly annexed area will not be required to connect to the municipal water distribution system until December 31, 2010, unless ordered to do so prior to that date by the Worcester County Health Department. The town will waive the hook-up fee, provided connection is made to the water distribution system prior to December 31, 2010. Any annexed property failing to connect to the water distribution system prior to that date will be required to pay the normal hook-up fees then in effect at the time they do connect to the municipal water distribution system.
 - (b) Newly erected single-family dwellings in the annexation area will require immediate connection to the municipal water distribution system. They also will be required to

- pay the normal hook-up fees then in effect at the time of their connection to the municipal water distribution system.
- (c) Any change in use of the property from single-family dwelling to another use category will require the immediate connection to the municipal water distribution system. It will also require the payment of normal hook-up fees then in effect for that use category at the time they do connect to the municipal water distribution system.
 - (d) A change in ownership of existing single-family dwellings in the newly annexed area will require immediate connection to the municipal water distribution system. The new owner will be required to pay the hook-up fee then in effect at the time of their connection to the municipal water distribution system.
 - (e) Existing non-dwelling units in the newly annexed area will be required to connect to the municipal water distribution system within one year of the availability of the service at the property line, unless ordered to do so prior to that date by the Worcester County Health Department, or if there is a change in ownership of the property. A change in ownership will require immediate connection to the municipal water distribution system. The town will waive the hook-up fee, provided connection is made to the water distribution system prior to the end of the one-year period described above. Any annexed property failing to connect to the water distribution system prior to that date will be required to pay the normal hook-up fees then in effect at the time they do connect to the municipal water distribution system. Newly erected non-dwelling units in the annexation area will be required to immediately connect to the municipal water distribution system. They also will be required to pay the normal hook-up fees then in effect at the time of their connection to the municipal water distribution system.
 - (f) Any single-family dwelling or non-dwelling unit connecting to the municipal water distribution system will pay the normal in-town rate for water service then in effect at the time of their connection.
 - (g) The municipality will, in accordance with Town of Berlin water and wastewater resolution in effect at the time of hook up, extend water laterals at its expense to the property line of single-family dwellings and install the water meter. Property owners of single-family dwellings will be responsible for the extension of the water lateral from the property line to the dwelling unit. Any connections requested by the property owner of the single-family dwelling, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to extend the service.
 - (h) The municipality will, in accordance with [the] Town of Berlin water and wastewater resolution then in effect at the time of hook up, extend water laterals to the property line of non-dwelling units and install the water meter. The owner or owners of the non-dwelling unit will reimburse the town for the cost of the water meter and the cost of installation. Property owners of non-dwelling units will be responsible

for the extension of the water lateral from the property line to the existing structure. Any connections requested by the property owner of the non-dwelling unit, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to provide the service.

- (i) In the event the Worcester County Health Department requires any single-family dwelling or non-dwelling unit to connect to the municipal water distribution system prior to the date indicated above, then the order will also be construed to require the property owner to connect to the municipal wastewater collection system at the same time.
- (4) *Electrical service.* Currently the Town of Berlin lacks the authority from the State of Maryland Public Service Commission to provide electrical service to the area to be annexed. However, the municipality aspires to have all of its citizens receive and enjoy all of the benefits provided by the town in an equal and equitable manner. The municipality proposes to request permission to extend its electrical distribution facilities, subject to agreement with Conectiv and/or approval and authorization from the State of Maryland Public Service Commission, and to serve all those undeveloped properties presently located in Conectiv's service territory and within the area to be annexed.
- (5) *Wastewater service.* The Town of Berlin extend its wastewater collection system along North Main Street (Route 818) as expeditiously as possible.
 - (a) Existing single-family dwellings in the newly-annexed area will not be required to connect to the municipal wastewater collection system

until December 31, 2010, unless ordered to do so prior to that date by the Worcester County Health Department. The town will waive the hook-up fee, provided the connection is made to the wastewater collection system prior to December 31, 2010. Any annexed property failing to connect to the wastewater collection system prior to that date will be required to pay the normal hook-up fees then in effect at the time they do connect to the municipal wastewater collection system.

- (b) Newly erected single-family dwellings in the annexation area will require immediate connection to the municipal wastewater collection system. They also will be required to pay the normal hook-up fees then in effect at the time of their connection to the municipal wastewater collection system.
- (c) Any change in use of the property from single-family dwelling to another use category will require the immediate connection to the municipal wastewater collection system. It will also require the payment of hook-up fees then in effect for that use category at the time they do connect to the municipal wastewater collection system.
- (d) A change in ownership of existing single-family dwellings in the newly annexed area will require immediate connection to the municipal wastewater collection system. The new owner will be required to pay the hook-up fees then in effect at the time of their connection to the wastewater collection system.
- (e) Existing non-dwelling units in the newly annexed area will be required to connect to the municipal

wastewater collection system within one year of the availability of the service at the property line, unless ordered to do so prior to that date by the Worcester County Health Department, or if there is a change in ownership of the property. A change in ownership will require immediate connection to the municipal wastewater collection system. The town will waive the hook-up fee, provided connection is made to the wastewater collection system prior to the end of the one-year period described above. Any annexed property failing to connect to the wastewater collection system prior to that date will be required to pay the normal hook-up fees then in effect at the time they do connect to the municipal wastewater collection system. Newly erected non-dwelling units will pay the normal hook-up fees then in effect at the time of their connection to the municipal wastewater collection system.

- (f) Any single-family dwelling or non-dwelling unit connecting to the municipal wastewater collection system will pay the normal in-town rates for wastewater service then in effect at the time of their connection.
- (g) The town will, in accordance with [the] Town of Berlin water and sanitation resolution in effect at the time of hook up, extend at its expense wastewater laterals to the property line of single-family dwellings. Property owners of single-family dwellings will be responsible for the extension of the wastewater lateral from the property line to the non-dwelling unit. Any connections requested by the property owner of the single-family dwelling, other than

the ordinary, will require reimbursement to the town for all costs above the normal costs to extend the service.

- (h) The town will, in accordance with Town of Berlin water and sanitation resolution in effect at the time of hook up, extend wastewater laterals to the property line of non-dwelling units. Property owners of the non-dwelling unit will be responsible for the extension of the wastewater lateral from the property line to the non-dwelling unit. Any connections requested by the property owner of the non-dwelling unit, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to extend the service.
 - (i) In the event the Worcester County Health Department requires any single-family dwelling or non-dwelling unit to connect to the municipal wastewater collection system prior to the date indicated above, then the order will also be construed to require the property owner to connect to the municipal water distribution system at the same time.
- (6) *Zoning.* The area will be zoned as B-2 and M-1 under the Town of Berlin Zoning Ordinance, as shown on the attached map.
- Editor's note**—Said map is on file in the town offices and made a part of this document with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin; subject to the same requirements applicable to all voters in the Town of Berlin.

(8) *Property taxes.*

- (a) All existing single-family dwellings in the newly annexed area will not be subject to the payment of property taxes to the Town of Berlin until they connect to the municipal water distribution system and the wastewater collection system or until December 31, 2010, whichever occurs first. A change in the ownership of the property will cause the subject property to be immediately added to the municipal tax rolls and subject to the payment of taxes, real and personal; and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the date of the transfer of the ownership of the property, such taxes shall be due and payable within ninety (90) days of the date of transfer of ownership of the property.
- (b) All other property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof; in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2001, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2000-01, 4-24-2000)

Sec. C2-17. October 2000 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the eastern corporate limits of the Town of Berlin and more particularly described as follows:

Description of lands of Virginia E. Cropper, Reese F. Cropper, Jr., and the Equitable Trust Company, Trustee, situated on the northerly side of Maryland Route 346 shown as parcels 172, 173, and 175 of Worcester County Tax Map 25 adjoining the corporate limits of Berlin, Maryland, which are proposed to be annexed to the municipal boundaries of Berlin, Maryland:

Beginning for this description at a concrete monument found at the southwest corner of land of Virginia E. Cropper (Deed Reference RHO 2389/48) shown as Parcel 173 on Worcester County tax map 25; said concrete monument being a corner of the existing corporate limits of Berlin, Maryland;

Thence, by and with the westerly and northerly property lines of the Virginia E. Cropper land and the existing corporate limits of Berlin, the following [two] (2) courses and distances:

- (1) N30 06' 21"W, 298.05 feet to a point; and
- (2) N59 54' 00"E, 184.56 feet to a point on the westerly line of land of the Equitable Trust Company, Trustee (Deed Reference FWH 746/527, Item 3) known as the "Brick Kiln Lot" and shown as Parcel 175 on Worcester County Tax Map 25;

Thence, continuing by and with the corporate limits of Berlin, Maryland and the easterly lines of lands of Razorback Investments (Deed Reference FWH 683/547), Timothy Mark Corporation (Deed Reference RHO 2252/588) and the Worcester County Commissioners (Deed Reference RHO 1556/176), the following [two] (2) courses and distances:

- (1) N14 59' 00"W, 891.66 feet to a large iron pipe found; and
- (2) N41 46' 00"E, 83.82 feet to a point at the northwest corner of land of Kelly Foods Corporation (Deed Reference WCL 1375/107);

Thence by and with the westerly boundary lines of Kelly Foods Corporation, the following [two] (2) courses and distances:

- (1) S45 39' 44"E, 369.52 feet to a point; and
- (2) S17° 09' 33"E, 623.84 feet to a point at the northwest corner of land of Storage Equity Partnership L.P. III (Deed Reference RHO 2236/73);

Thence, by and with the westerly line of land of Storage Equity Partnership L.P. III, S17° 40' 19"E, 261.00 feet to a point on the northerly side of Maryland Route 346;

Thence, by and with the northerly side of Maryland Route 346 the following [six] (6) courses and distances:

- (1) S69° 40' 52"W, 66.00 feet to a point; and
- (2) S67° 55' 52"W, 66.00 feet to a point; and
- (3) S66° 11' 32"W, 66.00 feet to a point; and
- (4) S64° 7' 12"W, 66.00 feet to a point; and

- (5) S62° 25' 52"W, 34.07 feet to an iron pipe at the southeast corner of the aforesaid Virginia E. Cropper land; and
- (6) S59° 37' 17"W, 104.15 feet to the point of beginning of this description.

Containing ± 7.87 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142. The courses described are Magnetic Bearings 1978, the same as used for the 1980 Annexation Resolution 1-21-1980.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* The Town of Berlin currently has water service available to the area to be annexed.
 - (a) Newly erected single-family dwellings in the annexation area will be

- required to immediately connect to the municipal water distribution system. They also will be required to pay the normal hook-up fees then in effect at the time of their connection to the municipal water distribution system.
- (b) Newly erected non-dwelling units in the annexation area will be required to immediately connect to the municipal water distribution system. They also will be required to pay the normal hook-up fees then in effect at the time of their connection to the municipal water distribution system.
 - (c) Any single-family dwelling or non-dwelling unit connecting to the municipal water distribution system will pay the normal in-town rate for water service then in effect at the time of their connection.
 - (d) The municipality will, in accordance with [the] Town of Berlin water and wastewater resolution then in effect at the time of hook up, extend water laterals to the property line of single-family dwellings or non-dwelling units and install the water meter. The owner or owners of the single-family dwelling or non-dwelling unit will reimburse the town for the cost of the water meter and the cost of its installation. Property owners will be responsible for the extension of the water lateral from the property line to any structure. Any connections requested by the property owner of the single-family dwelling or the non-dwelling unit, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to provide the service.
- (4) *Electrical service.* Currently the Town of Berlin lacks the authority from the State of Maryland Public Service Commission to provide electrical service to the area to be annexed. However, the municipality aspires to have all of its citizens receive and enjoy all of the benefits provided by the town in an equal and equitable manner. The municipality proposes to request permission to extend its electrical distribution facilities, subject to agreement with Conectiv and/or approval and authorization from the State of Maryland Public Service Commission, and to serve all those undeveloped properties presently located in Conectiv's service territory and within the area to be annexed.
 - (5) *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) Newly erected single-family dwellings in the annexation area will be required to immediately connect to the municipal wastewater collection system. They also will be required pay the normal hook-up fees then in effect at the time of their connection to the municipal wastewater collection system.
 - (b) Newly erected non-dwelling units in the annexation area will be required to immediately connect to the municipal wastewater collection system. They also will be required to pay the normal hook-up fees then in effect at the time they do connect to the municipal wastewater collection system.
 - (c) Any single-family dwelling or non-dwelling unit connecting to the municipal wastewater collection system will pay the normal in-town rates for wastewater service then in effect at the time of their connection.

- (d) The municipality will, in accordance with [the] Town of Berlin water and wastewater resolution in effect at the time of hook up, extend at its expense wastewater laterals to the property line of single-family dwellings and non-dwelling units. Property owners of non-dwelling units will be responsible for the extension of the wastewater lateral from the property line to any structure. Any connections requested by the property owner of the single-family dwelling or the non-dwelling unit, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to extend the service.
- (6) *Zoning.* The area will be zoned as B-2 under the Town of Berlin Zoning Ordinance, as shown on the attached map,
Editor's note—Said map is on file in the town offices and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2001, all such

taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2000-7, 10-9-2000)

Sec. C2-18. June 2001 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northern corporate limits of the Town of Berlin and more particularly described as follows:

Parcel A. Beginning for this description at an iron rod set on the easterly line of Maryland Route 818, said point being the northwest corner of the lands of Judith and Jonathon Ashton, Deed Reference: Liber: R.H.O. 2247, Folio 223 et seq.; thence along said easterly line of Maryland Route 818 the three following courses:

- (1) With a curve to the left an arc length of 146.97 feet, said curve having a radius distance of 4,576.40 feet and a chord bearing and distance of N 07 50' 32" E 146.96 feet to an iron rod set; thence
- (2) With a curve to the left an arc length of 213.43 feet, said curve having a radius distance of 1,824.00 feet and a chord bearing and distance of N 03 35' 51" E 213.3 feet to an iron rod set; thence
- (3) With a curve to the left an arc length of 73.84 feet, said curve having a radius distance of 1,683.24 feet and a chord bearing and distance of N 01 09' 13" W 73.83 feet to a point; thence along the lines of Cox 181

Midway, L.L.C., Deed Reference:
Liber R.H.O. 2278, Folio 579 et seq.
the three following courses:

- (1) S 72 42' 15" E 291.43 feet to an unmarked point in the center of a ditch, said point bears N 72 42' 15" W 16.43 feet to an iron rod set; thence
- (2) Along the center of a ditch N 09 35" 26" E 80.00 to a point; thence
- (3) Along the center of a ditch for part of the way N 04 52' 45" E 126.91 feet to an iron rod set; thence along the southerly outlines of U.S. Route 50 the five following courses:
 - (1) S72 42' 15" E 3.00 feet to an iron rod set; thence
 - (2) N17 17' 45" E. 15.00 feet to an iron rod set; thence
 - (3) 58 40' 05" E 185.54 feet to an iron rod set; thence
 - (4) S44 37' 54" E 357.00 feet to an iron rod set; thence
 - (5) S37 48' 15" E 164.03 feet to an iron rod set; thence along the westerly lines of a railroad right-of-way as now owned by Snow Hill Shippers Association, Inc. the following courses:
 - (1) S13 55' 11" W 336.61 feet to an iron rod set; thence
 - (2) With a curve to the right an arc length of 63.76 feet, said curve having a radius distance of 6,245.96 feet and a chord bearing and distance of S14 08' 43" W 63.76 feet to

a concrete monument found; thence along the northerly line of the lands of Judith and Jonathon Ashton, Deed Reference: Liber R.H.O. 2247, Folio 223 et seq. N68 02' 51" W 812.59 feet to the point of beginning.

Containing 9.97 acres more or less.

Parcel B. Beginning for this description at the northwest corner of the lands herein described, said point being an iron rod set at the intersection of the easterly line of Maryland Route 818 with the southerly line of an abandoned County Road; thence along the southerly lines of said abandoned County Road the five following courses:

- (1) N80 00' 31"E 111.51 feet to an iron rod set; thence
- (2) N80 53' 26"E 67.94 feet to an iron rod set; thence
- (3) N87 37' 08"E 97.43 feet to an iron rod set; thence
- (4) N88 31' 17"E 84.92 feet to an iron rod set; thence
- (5) S88 28' 54"E 94.44 feet to an iron rod set; thence along the westerly line of a railroad right-of-way now owned by Snow Hill Shippers Association, Inc., S13 57' 05"W 1,088.59 feet to an iron rod set; thence along the northerly lines of U.S. Route 50 the eleven following courses:
 - (1) S52 16' 24"W 100.20 feet to an iron rod set; thence
 - (2) S62 17' 10"W 130.09 feet to an iron rod set; thence
 - (3) S79 58' 58"W 132.50 feet to an iron rod set; thence

- (4) N 85 15'58" W 240.02 feet to an iron rod set; thence
 - (5) N86 44' 25"W 82.46 feet to an iron rod set; thence
 - (6) N17 17' 45"E 20.00 feet to an iron rod set; thence
 - (7) N72 42' 15"W 40.00 feet to an iron rod set; thence
 - (8) S17 17' 45"W 25.00 feet to an iron rod set; thence
 - (9) N72 42' 15"W 325.88 feet to an iron rod set; thence
 - (10) With a curve to the right an arc length of 4.05 feet, said curve having a radius distance of 5,629.58 feet and a chord bearing and distance of N72 41' 01"W 4.05 feet to an iron rod set; thence
 - (11) N17 43' 52"W 86.86 feet to an iron rod set; thence along the generally easterly lines of Maryland Route 818 the eight following courses:
 - (1) With a curve to the right an arc length of 104.73 feet, said curve having a radius distance of 320.17 feet and a chord bearing and distance of N23 51' 22"E 104.26 feet to an iron rod set; thence
 - (2) With a curve to the right an arc length of 149.65 feet, said curve having a radius distance of 1,654.22 feet and a chord bearing and distance of N34 06' 29"E 149.60 feet to an iron rod set; thence
 - (3) With a curve to the right an arc length of 199.40 feet, said curve having a radius distance of 74,124.98 feet and a chord bearing and distance of N35 47' 54"E 199.40 feet to an iron rod set; thence
 - (4) With a curve to the right an arc length of 199.20 feet, said curve having a radius distance of 3,027.36 feet and a chord bearing and distance of N37 35' 58"E 199.16 feet to an iron rod set; thence
 - (5) With a curve to the right an arc length of 201.40 feet; said curve having a radius distance of 2,595.93 feet and a chord bearing and distance of N44 53' 09"E 201.35 feet to an iron rod set; thence
 - (6) With a curve to the right an arc length of 242.56 feet, said curve having a radius distance of 2,301.58 feet and a chord bearing and distance of N49 12' 22"E 242.56 feet to an iron rod set; thence
 - (7) N51 46' 58" E 160.64 feet to an iron rod set; thence
 - (8) N51 48' 30"E 25.80 feet to the point of beginning.
- Containing ± 21.94 acres of land as described by me, Frank G. Lynch, Jr., Registered Land Surveyor 10782 and as shown on a plat entitled "Annexation to the Corporate Town Boundaries of Berlin, Maryland," dated 12/28/2000.
- B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on

said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage. The owner shall have the option to continue to use a commercial trash collector for which there will be no charge from the Town of Berlin.
- (3) *Water service.* The Town of Berlin will extend its water distribution system along North Main Street (State Route 818) as expeditiously at possible. The cost to extend water service from Route 346, north on North Main Street to U.S. Route 113 will be approximately six hundred fifty thousand dollars (\$650,000.00). It is recognized and understood that the Town of Berlin does not have sufficient funds to construct these mains to the property line at this time. However, it is anticipated the municipality will be awarded a grant in the near future to provide said services to the property line.
 - (a) The existing non-dwelling unit in the newly annexed area will be required to connect to the municipal water distribution system within one year of the availability of the service at the property line, unless ordered to do so prior to that date by the Worcester County Health Department or the State of Maryland Department of the Environment, or if there is a change in ownership of the property. A change in ownership will require immediate connection to the municipal water distribution system. The owner of the non-dwelling unit will be required to pay the normal hook-up fees then in effect at the time of the connection to the municipal water distribution system.
 - (b) The non-dwelling unit connecting to the municipal water distribution system will pay the normal in-town rates for water service then in effect at the time of the connection.
 - (c) The municipality will, in accordance with the Town of Berlin water and wastewater resolution then in effect at the time of the hook-up, extend a water lateral to the property line of the non-dwelling unit and install the water meter. The owner of the non-dwelling unit will reimburse the town for the cost of the water meter and the cost of its installation. The owner of the non-dwelling unit will be responsible for the extension of the water lateral from the property line to the existing structure. My connections requested by the owner of the non-dwelling unit, other than the ordinary, will require reimbursement to the town for all costs above the normal costs to provide the service.
 - (d) In the event the Worcester County Health Department or the State of Maryland Department of the Environment requires the non-dwelling unit to connect to the municipal water distribution system prior to the

date indicated above, then the order will also be construed to require the owner to connect to the municipal wastewater collection system at the same time.

- (4) *Electrical service.* Currently the Town of Berlin lacks the authority from the State of Maryland Public Service Commission to provide electrical service to the area to be annexed. However, the municipality aspires to have all of its citizens receive and enjoy all of the benefits provided by the town in an equal and equitable manner. The municipality proposes to request permission to extend its electrical distribution facilities, subject to agreement with Conectiv and approval and authorization from the State of Maryland Public Service Commission and to serve all properties within its corporate boundaries.
- (5) *Wastewater service.* The Town of Berlin will extend its wastewater collection system along North Main Street (State Route 818) as expeditiously as possible. The cost to extend wastewater service from State Route 346, north on Main Street to U.S. Route 113 will be approximately one million one hundred fifteen thousand dollars (\$1,115,000.00). It is recognized and understood that the Town of Berlin does not have sufficient funds to construct these mains to the property line at this time. However, it is anticipated the town will be awarded a grant in the near future to provide said services to the subject property.
 - (a) The existing non-dwelling unit in the newly annexed area will be required to connect to the municipal wastewater collection system within one year of the availability of the service at the property line, unless ordered to do so prior to that date by the Worcester County Health De-

partment or the State of Maryland Department of the Environment or if there is a change in ownership of the property. A change in ownership will require immediate connection to the municipal wastewater collection system. The owner of the non-dwelling unit will pay the normal hook-up fees then in effect at the time of the connection to the municipal wastewater collection system.

- (b) The non-dwelling unit connecting to the municipal wastewater collection system will pay the normal in-town rates for wastewater service then in effect at the time of the connection. Until the Town of Berlin wastewater collection system has been constructed to the property line and placed into service the non-dwelling unit will be permitted to continue to truck its wastewater, at its expense, and on an as-needed basis, to the Town of Berlin wastewater treatment plant. However, the rates for this service will be assessed in the same manner and at the same rate as all other customers in the Town of Berlin wastewater collection system.
- (c) The municipality will, in accordance with the Town of Berlin water and wastewater resolution then in effect at the time of the hook up, extend a wastewater lateral to the property line of the non-dwelling unit. The owner of the non-dwelling unit will be responsible for the extension of the wastewater lateral from the property line to the existing structure. Any connections requested by the owner of the non-dwelling unit, other than the ordinary,

will require reimbursement to the town for all costs above the normal costs to provide the service.

- (d) In the event the Worcester County Health Department or the State of Maryland Department of the Environment requires the dwelling unit to connect to the municipal wastewater collection system prior to the date indicated above, then the order will also be construed to require the property owner to connect to the municipal water distribution system at the same time.
- (6) *Zoning.* The area will be zoned as B-2 and M-1 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof; in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the next fiscal year all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.
(Res. No. 2001-2, 6-11-2001)

Sec. C2-19. March 2004 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the eastern corporate limits of the Town of Berlin and more particularly described as follows:

Description of lands of Robert L. Baker and Ruby B. Baker situated on the easterly side of Bottle Branch Road shown as parcel number 288 of Worcester County Tax Map 25 adjoining the corporate limits of Berlin, Maryland.

Beginning for this description at an iron pipe found $\pm$ 510 feet from the right-of-way line of Maryland Route 376 at the northwest corner of Robert L. Baker and Ruby B. Baker (Deed Reference SVH 3877/513) shown as parcel number 288 on Worcester County Tax Map 25; said iron pipe located on the existing easterly corporate boundary line of the Town of Berlin, Maryland;

Thence, by and with the northerly property line of the Robert L. Baker and Ruby B. Baker the following [three] 3 courses and distances:

- (1) S58 02'42"E, 361.95 feet to a stone found at the base of a Hickory Tree; and
- (2) S39 25'51"W, 150.00 feet to an iron pipe; and
- (3) N56 43'39"W, 289.66 feet to the existing corporate limit line of the Town of Berlin, Maryland, and the easterly right-of-way line of Bottle Branch Road; and

Thence, N11 33'00"E, 151.58 feet to the point of beginning.

Containing 1.09 acres of land as surveyed and described by me, L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142. The courses described are Magnetic Bearings 1978, the same as used for the 1980 Annexation Resolution 1-21-1980.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation.
- (3) *Water service.* At this time the municipality does not have water service available to the property; however, the owners agree to connect to the Town of Berlin water distribution system within one year of the service becoming available at the property line. At that time the owners shall disconnect their water well and comply with all Worcester County Health Department requirements regarding the same. The owners also agree to pay the normal "connection fee" and the "special connection fee" then in effect at the time they do connect to the municipal water distribution system.
- (4) *Electrical service.* The Town of Berlin currently provides electric service to the area being annexed.
- (5) *Wastewater service.* The property owners will immediately connect to the wastewater collection system. However, since the Town of Berlin previously supplied wastewater service to the property, there will be no expense to the municipality to again provide the desired service and therefore no "connection fee" or "special connection fee" charged the owners.
- (6) *Zoning.* The area will be zoned as "R-2" under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document; with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2004, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2003-07, 3-8-2004)

Sec. C2-20. April 12, 2004 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land,

together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the southern corporate limits of the Town of Berlin and more particularly described as follows:

All that certain tract or parcel of land lying and being situate in the Third Election District of Worcester County, State of Maryland, on the southerly side of Buckingham Lane, said parcel being more particularly described as follows:

Beginning for this description at an iron pipe located on the south side of Buckingham Lane, 15 feet from its centerline, said pipe also being on the division line being the parcel herein being described and the lands owned by Richard D. Hastings, 1,079.50 feet easterly of the centerline of West Street, and on the westerly side of a thirty-foot outlet road to the lands of Gregory & Candace White;

Thence, from the point of beginning and with the southerly side of Buckingham Lane S 47 46'00" E, 819.20 feet to a concrete marker on the northwest corner of lands owned by William G. & Margaret P. DeColigny;

Thence, with same S 42 14'00" W, 250.00 feet to a concrete marker;

Thence, S 47 46'00" E, 280.92 feet to a concrete marker in the center of a ditch and lands owned by The Lions Den Inc.;

Thence, with same and the center of a ditch the following six courses and distances:

- (1) S 15 30'00"W, 395.88 feet to an iron pipe; thence
- (2) S 11 23'25"W, 142.56 feet; thence
- (3) S 11 54'25"W, 37.84 feet; thence
- (4) S 08 55'39"W, 137.28 feet; thence
- (5) S 05 19'53"W, 171.93 feet; thence

- (6) S 16 15'05"W, 56.59 feet to an iron pipe and lands of William R. Powell;

Thence, with the William R. Powell lands and the center of a ditch N 40 12'00" W, 79.25 feet to an iron pipe;

Thence, leaving said ditch S 15 42'00" W, 890.10 feet to the lands of Alberta Harrison, custodian for George Hale Harrison;

Thence, with the George Hale Harrison lands part of the way, and continuing with the lands of George K. Braniecki, N (66 35'00" W, 2,046.20 feet to the lands of Richard D. Hastings);

Thence, with said lands N 42 39'14" E, 2,550.84 feet to an iron pipe on the south side of Buckingham Lane and the place of beginning.

The above described parcel of land is subject to a thirty-foot outlet road to the lands of Gregory and Candace White, binding on and being parallel to the N 42 39'14" E, course of the above described parcel, beginning on the southerly right-of-way line of Buckingham Lane and terminating at the southwesterly corner of the Gregory and Candace White.

Saving, and excepting from the above described tract, a parcel of land that was conveyed to Gregory and Candace White by Gordon U. and Ann M. Noreau and recorded in Deed Book 473, Page 131, and being more particularly described as follows:

Beginning at a concrete marker located on the easterly side of a thirty-foot outlet road approximately 1,226 feet measured along the easterly side of said outlet road from the southerly right-of-way line of Buckingham Lane;

Thence, from the place of beginning S 46 55'14" E, 200.00 feet to a concrete marker,

Thence, S 43 04'46" W, 323.20 feet to a concrete marker;

Thence, N 15 17'15"W, 234.90 feet to a concrete marker on the easterly side of the thirty-foot outlet road, said marker being the end of said outlet road N 43 04'46"E, 200.00 feet to a concrete marker and place of beginning.

The first described parcel of land containing 75.67 acres of land be the same more or less. The lands of Gregory and Candace White are not included in the above acreage.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* At this time there are no plans to provide water service to the properties being annexed. For the in-

terim period the county may continue to use existing wells. However, in the event a water main is constructed along Buckingham Lane at sometime in the future the county at its expense shall connect to said main within one year of the date of its availability.

- (4) *Electrical service.* The Town of Berlin currently provides electric service to the area being annexed.
- (5) *Wastewater service.* The county at its expense will install a grinder pump and force main from the "concession stand/public rest rooms" on their property north along Ball Park Road to Buckingham Lane and then west to the first manhole on Buckingham Lane under town supervision.
- (6) *Zoning.* The area will be zoned as "R-1" under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2004, all such taxes

shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

- (9) *Streets.* Worcester County will retain ownership of Ball Park Road and will consider same to be a private drive.

(Res. No. 2004-03, 4-12-2004)

Sec. C2-21. April 26, 2004 [Annexation.]

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northern corporate limits of the Town of Berlin and more particularly described as follows:

All that certain tract or parcel of land lying and being situate in the Third Election District of Worcester County, State of Maryland, on the northerly side of Old Ocean City Boulevard (Maryland Route 346), said parcel being more particularly described as follows:

Beginning for this description at an iron pipe located at the southwest corner of this parcel to be described, said iron pipe situated at the northwest corner of lands of Oak-Kwang Park (Deed Reference: RHO 1750/543) known as parcel 2 and on the property line of lands of Hudson Foods, Inc. (Deed Reference: RHO 1482/214), said iron pipe being also located N 03 21'26" E, 229.33 feet from an iron pipe found on the northerly right-of-way line of Maryland Route 346;

Thence, by and with the lands of Hudson Foods, Inc., the following two (2) courses and distances:

- (1) N 03 21'26" E, 257.18 feet to an iron pipe found; and
- (2) S 61 25'40" E, 445.00 feet to an iron pipe found at the northwest

corner of lands of Old O.C. Blvd. Partners (Deed Reference: RHO 2110/48);

Thence, by and with the lands of Old O.C. Blvd. Partners, S 27 26'14" W, 1154.02 feet to an iron pipe set at the northeast corner of lands of Berlin-Ocean City Lodge No. 1638 Loyal Order of Moose, Inc. (Deed Reference: WCL 1078/379), known as Parcel 1;

Thence, by and with the northerly line of Parcel 1, N 80 38'20" W, 166.65 feet to an iron pipe set on the easterly line of Parcel 2 as aforesaid;

Thence, by and with Parcel 2, the following two (2) courses and distances:

- (1) N 03 21'26" E, 24.15 feet to an iron pipe set; and
- (2) N 87 54'05" W, 190.00 feet, to the point of beginning.

Containing $\pm$ 1.585 acres of land known as Parcel 3 as shown on a plat entitled "Plat Showing Subdivision of Land of George/ Suzanne Hurley, Third Election District, Worcester County, Maryland," prepared by L.E. Bunting, Jr., Registered Maryland Property Line Surveyor 142, dated 4-29-[19]79 and recorded among the land records of Worcester County, Maryland in Plat Book FWH 61, Folio 46.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be ex-

tended into the annexed area immediately upon the effective date of annexation.

- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* The annexed property will be required to connect to the Town of Berlin water distribution system main located in the bed of Old O.C. Boulevard (Maryland Route 346).
- (4) *Electrical service.* The Town of Berlin proposes to extend its electric service into the area proposed for annexation. The town and Conectiv have agreed that the proposed area to be annexed into the corporate limits will be transferred and be located within Berlin's Electric Service territory. The Maryland Public Service Commission (MPSC) has ruled that all undeveloped and/or new electric services located within the annexed area will be supplied by the Town of Berlin. The MPSC has approved the Berlin and Conectiv Agreement that any existing Conectiv customer located within the annexed area will be offered a choice as to its electric provider, and thus will become eligible to receive its electric service from Berlin. In order to receive electric service from the Town of Berlin, a written request for transfer is required.
- (5) *Wastewater service.* The annexed property will be required to connect to the Town of Berlin wastewater collection system main located in the bed of Old O.C. Boulevard (Maryland Route 346).

- (6) *Zoning.* The area will be zoned as "M-1" under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be upon the effective date of annexation subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution; such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2004, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2004-06, 4-26-2004)

Sec. C2-22. December 12, 2005 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the easterly corporate limits of the Town of Berlin and more particularly described as follows:

Description of land proposed to be annexed into the corporate limits of Berlin, Maryland adjoining the easterly boundary lines of the Municipal Limits of Berlin, Mary-

land situated easterly of U.S. Route 113 and on the southerly side of Route 346 known as 10344 Old Ocean City Boulevard, Berlin, Maryland:

Beginning at an iron pipe situated on the southerly side of Maryland Route 346 (known as Old Ocean City Boulevard) at the northeast corner of Lot 11—Block B: said Lot 11—Block B being as shown on a plat entitled "Plat of Subdivision of J. Edward Evans and Ada Belle Quillen Lands" and recorded among the land records of Worcester County, Maryland in Plat Book ODC 2/Folio 70; said iron pipe being also the northwest corner of lands of Jack Dunlap and Joan E. Young (Deed Reference RHO 2082/151) known as Lot 1 and as shown on a plat recorded in Plat Book RHO 156/002;

Thence, by and with the westerly line of lands of Dunlap and Young, S15° 15' 11" E, 200.09 feet to a concrete monument at the northeast corner of lands now or formerly of Thelma C. Wilgus, et al. (Deed Reference RHO 2336/504);

Thence, by and with the northerly line of said Wilgus land and the southerly line of Lot 11 and Lot 10, Block B of the aforesaid J.E. Evans Development Plat, S73°00'00"W, 120.40 feet to a concrete monument found at the southeast corner of land of Lois Ann Steele Feiss (Deed Reference WCL 1204/39) known as Lot 9—Block B;

Thence, by and with the easterly line of land of Feiss, N17°00'00"W, 200 feet to a magnail set in macadam on the southerly right-of-way line of Maryland Route 346;

Thence, by and with the southerly right-of-way line of Maryland Route 346, N73°00'00"E, 126.50 feet to the point of beginning.

Containing ± 24,690 square feet of land (hereinafter referred to as "Property"; or "Annexation Area").

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to the property and all persons residing in the property except as herein provided.

C. The annexation of said property is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents in the annexation area immediately upon the effective date of annexation.
- (3) *Water service.*
 - (a) The town currently has one equivalent dwelling unit or EDU equal to 250 gallons per day of water service available to and in use by the property. The property owner is proposing to construct an outpatient medical clinic for use as an endoscopy center on the property. The Mayor and Council have publicly stated that provision of medical clinics is a desired priority for and in the public interest and welfare of the town. Accordingly, the town concurs that the area to be annexed should be allocated a maximum of one water service EDU in addition to the one EDU currently allocated to and in use by the property. The property may be subject to additional water service or expenditures.

- (b) Any newly erected structure or structures or change in land use on the property shall be subject to any and all applicable fees and charges including but not limited to permit, connection, special connection and/or impact fees then in effect at the time application is made for permits to erect said structures(s). The provision of water service to the property in excess of two EDUs shall be subject to availability as determined by the town at the time an application is made for permits to erect said structure(s) or change in land use.
- (4) *Electrical service.* The property is currently served by Conectiv, however, should a new structure be constructed on the property it will be served by Berlin Electric and subject to expenditures to provide such service as set forth in Berlin's electric tariff.
- (5) *Wastewater service.*
 - (a) The town currently has one EDU of wastewater service available to and in use by the property. The property owner is proposing to construct an outpatient medical clinic for use as an endoscopy center on the property. The Mayor and Council have publicly stated that provision of medical clinics is a desired priority for and in the public interest and welfare of the town. Accordingly, the town concurs that the area to be annexed should be allocated a maximum of one wastewater service EDU in addition to the one EDU currently allocated to and in use by the property. The property may be subject to additional wastewater service or expenditures.
 - (b) Any newly erected structure or structures or change in land use on the property shall be subject to any and all applicable fees and charges, including but not limited to permit, connection, special connection and/or impact fees then in effect at the time application is made for permits to erect said structures(s). The provision of wastewater service to the property in excess of two EDUs shall be subject to availability as determined by the town at the time an application is made for permits to erect said structure(s) or change in land use.
- (6) *Zoning.* The area will be zoned B-2 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners. The Town of Berlin plans to continue the same land use pattern contained in the Worcester County Master Plan.
- (7) *Voting rights.* All residents in the annexation area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.

(Res. No. 2005-03, 12-12-2005)

Sec. C2-23. June 12, 2006 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to and include within said municipality all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the southerly corporate limits of the Town of Berlin and more particularly described as follows:

ANNEXATION EXHIBIT—LEGAL DESCRIPTION—PROPERTY OF ELISE, LLC

All that tract or parcel of land lying and being situate in the Third Tax District of Worcester County, Maryland, adjacent to the corporate limits of the Town of Berlin and being located on the northerly side of Evans Road being denoted as Parcel 339, Tax Map 25 and being more particularly described as follows: beginning at a point on the northerly side of Evans Road and the westerly side of the sixty-foot wide right-of-way formerly owned by D.M. & V. Railroad and from said point of beginning running by and with the northerly line of Evans Road north 46°55'59" west 434.69 feet to a point; thence leaving the said right-of-way of Evans Road and running by and with the easterly property line of Parcel 24 on Tax Map 25, north 41°25'53" east 487.01 feet to an iron pipe thence running by and with the southerly property line of Parcel 15 on said Tax Map 25 south 49°38'05" east 439.36 feet to an iron rod located on the westerly railroad right-of-way line; thence by and with the said railroad right-of-way south 41°58'08" west 507.61 feet to the point of beginning; said parcel containing 4.99 acres of land more or less.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to the property and all persons residing in the property except as herein provided.

C. The annexation of said property is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents in the annexation area immediately upon the effective date of annexation.
- (3) *Water service.* At this time there are no plans for the town to provide water service infrastructure to the property. The property is currently unimproved and not being used. The property does have an on-site well system ("well"). Upon the effective date of the annexation resolution, the property shall not be allowed to utilize the well. The annexation does not obligate the Town of Berlin to extend water service to the property at its expense or otherwise. In addition, the town is not obligated to allocate a water EDU to the property. When and if the Town of Berlin water distribution system is extended to the property line, the property owner will be assessed a ready-to-serve fee and will at that time have the option of utilizing the water EDU(s) allocated to the property by the town.
- (4) *Electrical service.* The property is currently served by Berlin Electric.
- (5) *Wastewater service.* At this time there are no plans for the town to provide wastewater system infrastructure to the property. The property is currently unimproved and not being used. The property does have an on-site septic system ("septic system"). Upon the effective date of the annexation resolution, the property shall not be allowed to utilize the septic system. The annexation does not obligate the Town of Berlin to extend wastewater service to the property at its expense or otherwise. In addition, the town is not obligated [to] allocate a wastewater EDU to the property at this time. When and if the Town of Berlin wastewater collection system is extended to the property line the property owner will be assessed a ready-to-serve-fee and will at that time have the option of utilizing the wastewater EDU(s) allocated to the property by the town.
- (6) *Zoning.* The area will be zoned B-2 under the Town of Berlin Zoning Ordinance.

nance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.

- (7) *Voting rights.* All residents in the annexation area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the annexation area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution, such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2006, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2006-02, 6-12-2006)

Sec. C2-24. July 27, 2009 Annexation.

A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and include within said municipality, all that certain area of land, together with the improvements thereto and the persons residing therein, and their property, contiguous to and adjoining upon the northern corporate limits of the Town of Berlin and more particularly described as follows:

Description of a part of lands of Berlin Properties North, LLC situated on the northerly side of Maryland Route 346, easterly of the railroad right-of-way formerly of the Maryland and Delaware Railroad Company, adjoining the corporate limits

of Berlin, Maryland and being a part of Parcel No. 57 as shown on Worcester County Tax Map No. 25.

Beginning for this description at a point located on the northerly right-of-way line of Maryland Route 346 (Old Route 50), being 30 feet wide, and the easterly right-of-way line of the former Maryland and Delaware Railroad Company railroad, now owned by the Snow Hill Shipper's Association, Inc. (Deed Reference WCL 1369/346), being 66 feet wide, said point of beginning being also a corner of the existing northerly corporate limits of the Town of Berlin, Worcester County, Maryland as described in a November 1998 Annexation by Resolution No. 1998-12 at the end of the 15th (S16°35'30"W, 425.32 feet) course of Item 4:

Thence, by and with the easterly right-of-way line of the aforesaid railroad (33 feet from the centerline of the main track) and by and with the said 15th course reversed of Item 4 of Annexation Resolution No. 1998-12, N23°00'22"E, 647.75 feet to a point;

Thence, through the lands of Berlin Properties North, LLC., known as Parcel No. 57 of Tax Map No. 25, the following two courses and distances:

1. S61°53'38"E, 210.43 feet to a point 50 feet westerly of and perpendicular to the westerly property line of land of the Mayor and Council of Berlin, Maryland (Deed Reference SVH 3689/21); and land of Oak-Kwang Park and wife (Deed Reference RH 1750/543); and
2. Parallel to and remaining 50 feet distant from the said westerly property line of the lands of the Mayor and Council of Berlin, Maryland, and Oak-Kwang Park and wife, S02°53'28"W, 510.98 feet to a point

on the northerly right-of-way line of Maryland Route 346 and also on the 16th (N85°25'04"E, 463.23 feet) course of Item 4 of the aforesaid Annexation Resolution No. 1998-12;

Thence, by and with the northerly right-of-way line of Maryland Route 346 and the 16th course reversed, N88°09'56"W, 413.22 feet to the point of beginning.

Containing ± 3.982 acres of land and as surveyed and described by L.E. Bunting Surveys, Inc. dated May 7, 2009.

B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to all persons residing in the area to be annexed and all properties in the area to be annexed except as herein modified.

C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Town trash collection will be furnished to all residents and property in the annexed area immediately upon the effective date of annexation in accordance with the town ordinance. Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment, and for a fee to be established based upon usage.
- (3) *Water service.* The Town of Berlin currently has water service available to the area to be annexed.
 - (a) Newly erected single-family dwellings in the annexation area will be

required to immediately connect to the municipal water distribution system. They also will be required to pay the normal connection fees then in effect at the time of their connection to the municipal water distribution system.

- (b) Newly erected and existing non-dwelling units in the annexation area will be required to immediately connect to the municipal water distribution system. They also will be required to pay the normal connection fees then in effect at the time of their connection to the municipal water distribution system.
- (c) Any single-family dwelling or non-dwelling unit connecting to the municipal water distribution system will pay the normal in-town rate for water usage then in effect at the time of their connection to the system.
- (d) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that 36 equivalent dwelling units (EDUs) or 9,000 gallons per day will be required to service the property. The town will therefore assess the property owner "Connection Fees" for 36 EDUs. After one year of occupancy, the town will review the water usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to alter or increase the use of the property then the town reserves the right to assess the property owner for additional EDUs as specified in the town's water and wastewater resolution in effect at that time.
- (e) All wells on the property must be abandoned and capped in accordance with the town's wellhead protection program.

- (4) *Electrical service.* The Town of Berlin will provide electric service to the area proposed for annexation.
- (5) *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) Newly erected and existing non-dwelling units in the annexation area will be required to immediately connect to the municipal wastewater collection system. They also will be required to pay the normal minimum monthly bills for 36 EDUs then in effect at the time they do connect to the municipal wastewater collection system.
 - (b) Any single-family dwelling or non-dwelling unit connecting to the municipal wastewater collection system will pay the normal in-town rates for wastewater service then in effect at the time of their connection.
 - (c) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that 36 equivalent dwelling units (EDUs) or 9,000 gallons per day will be required to service the property. After one year of occupancy, the town will review the wastewater usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to alter or increase the use of the property then the town reserves the right to assess the property owner for additional EDUs as specified in the town's water and wastewater resolution in effect at that time.
- (6) *Zoning.* The area will be zoned as B-3 under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
- (7) *Voting rights.* All residents in the annexed area, upon the effective date of annexation, shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- (8) *Property taxes.* All property in the newly annexed area shall be, upon the effective date of annexation, subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution, such taxes shall become due and payable within 90 days of annexation. Commencing with the fiscal year beginning July 1, 2009, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

(Res. No. 2009-04, 7-27-2009)

Sec. C2-25. 2011 Annexation.

Section A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and include within said municipality, all that certain area of land, together with the improvements thereto (no persons reside therein), and the property, contiguous to and adjoining upon the southern corporate limits of the Town of Berlin and more particularly described as follows:

Description of a part of lands of Derrickson Enterprises, LLC situated on the southerly side of Germantown Road, and the easterly side of U.S. Route 113, adjoining the corporate limits of Berlin, Mary-

land and being designated as Parcel 319 as shown on Worcester County Tax Map #32.

Beginning at a point which is the southeasterly corner of the intersection of Germantown Road with the easterly side of U.S. Route 113; and from said point of beginning running thence by and with the southerly line of Germantown Road the following two courses and distances:

- (1) North 73°, 37', 48" east 297.80 feet to an unmarked point on the southerly side of said Germantown Road;
- (2) Thence continuing by and with the southerly side of said Germantown Road south 74°, 31', 04" east, 233.12 feet to a found iron axle located at the boundary line between the property hereby described and the property now or formerly of L. Peter Patrick;
- (3) Thence leaving the southerly line of said Germantown Road and running by and with the westerly line of said Patrick property south 06°, 43', 38" west, 599.69 feet to an unmarked point which is the intersection of the southeasterly corner of the parcel hereby described with the northeasterly corner of other properties owned by Derrickson Enterprises, LLC designated as Tax Map 32, Parcel 12;
- (4) Thence by and with the northerly line of said Parcel 12, south 88°, 09', 22" east, 403.30 feet to a point;
- (5) Thence south 79°, 18', 22" east, 201.43 feet to a point which marks the southwesterly corner of the property hereby described at its intersection with the easterly line of U.S. Route 113;
- (6) Thence running in a northerly direction by and with the said easterly

line of U.S. Route 113 with an arc to the right, and a cord bearing of north 17°, 5', 00" east, and a radius of 2,789.79 feet, a distance of 548.55 feet to the point of beginning. Said parcel hereby described containing 7.853 acres as surveyed by Madison J. Bunting, Jr., Surveyor, Inc. on January 15, 2004.

Section B. Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all ordinances, resolutions, rules and regulations of the Town of Berlin in effect on said date shall apply to the property in the area to be annexed except as herein modified.

Section C. The annexation of said area is made subject to the terms and conditions as follows:

- (1) *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
- (2) *Trash collection.* Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment and for a fee to be established based upon uses.
- (3) *Water service.* [The] Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that twelve Equivalent Dwelling Units (EDUs) or three thousand gallons per day will be required to service the property. The town will therefore assess the property owner "Connection Fees" for twelve EDUs. After one year of occupancy, the town will review the

- water usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to transfer some of the EDUs to its adjacent property (the property owner does own properties contiguous with the annexed property), the property owner may request a transfer to such adjacent property and the town will consider the transfer of those EDUs accordingly.
- (b) All wells on the property must be abandoned and capped in accordance with the town's wellhead protection program.
- (4) *Electrical service.* The Town of Berlin will provide electrical service to the area proposed for annexation.
 - (5) *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that twelve Equivalent Dwelling Units (EDUs) or three thousand gallons per day will be required to service the property. The town will therefore assess the property owner "Connection Fees" for twelve EDUs. After one year of occupancy, the town will review the water usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to transfer some of the EDUs to its adjacent property (the property owner does own properties contiguous with the annexed property), the property owner may request a transfer to such adjacent property and the town will consider the transfer of those EDUs accordingly.
 - (6) *Payment for EDUs.* The property owner payment for the cost of the twelve equivalent dwelling units (EDUs) shall be subject to an Allocation Agreement entered into between the Mayor and Council of the Town of Berlin and the owner.
 - (7) *Zoning.* The area will be Zoned as "B-3" General Business District under the Town of Berlin Zoning Ordinance, as shown on the attached map, and made a part of this document, with the consent of the Worcester County Commissioners.
 - (8) *Voting rights.* In the event that in the future, persons would reside in the annexed area, upon the effective date of annexation, those persons shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
 - (9) *Property taxes.* All property in the newly annexed area shall upon the effective date of annexation be subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing town limits are subject as of the effective date of this resolution. Such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2011, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

Adopted this 14th day of February, 2011 by the Mayor and Council of the Town of Berlin, Maryland, by affirmative vote of 3 to 0 opposed, with 0 abstaining.

[Section D.] Outline of extension of services:

- (1) *Police protection.* Police services of the Berlin Police Department shall be ex-

tended into the annexed area immediately upon the effective date of annexation.

- (2) *Trash collection.* Trash collection is available to commercial accounts upon request, provided the town is capable of providing the requested service with existing equipment and for a fee to be established based upon uses.
- (3) *Water service.* [The] Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that twelve Equivalent Dwelling Units (EDUs) or three thousand gallons per day will be required to service the property. The town will therefore assess the property owner "Connection Fees" for twelve EDUs. After one year of occupancy, the town will review the water usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to transfer some of the EDUs to its adjacent property (the property owner does own properties contiguous with the annexed property), the property owner may request a transfer to such adjacent property and the town will consider the transfer of those EDUs accordingly.
 - (b) All wells on the property must be abandoned and capped in accordance with the town's wellhead protection program.
- (4) *Electrical service.* The Town of Berlin will provide electrical service to the area proposed for annexation.

- (5) *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.

- (a) The property owner has advised the property will be utilized for a commercial enterprise and has estimated that twelve Equivalent Dwelling Units (EDUs) or three thousand gallons per day will be required to service the property. The town will therefore assess the property owner "Connection Fees" for twelve EDUs. After one year of occupancy, the town will review the water usage at the property and adjust the number of EDUs accordingly. In addition, if the property owner at some future date elects to transfer some of the EDUs to its adjacent property (the property owner does own properties contiguous with the annexed property), the property owner may request a transfer to such adjacent property and the town will consider the transfer of those EDUs accordingly.

- (6) *Payment for EDUs.* The property owner payment for the cost of the twelve Equivalent Dwelling Units (EDUs) shall be subject to an Allocation Agreement entered into between the Mayor and Council of the Town of Berlin and the owner.

[Section E.] Metes and bounds description of Derrickson Enterprises, LLC Parcel to be annexed into Town of Berlin:

Parcel Designation: Tax Map 32, Parcel 319

Deed Reference—SVH 3603, Folio 175

Beginning at a point which is the southeasterly corner of the intersection of Germantown Road with the easterly side of U.S. Route 113; and from said point of beginning running thence by and with

the southerly line of Germantown Road the following two courses and distances:

- (1) North 73°, 37', 48" east 297.80 feet to an unmarked point on the southerly side of said Germantown Road;
- (2) Thence continuing by and with the southerly side of said Germantown Road south 74°, 31', 04" east, 233.12 feet to a found iron axle located at the boundary line between the property hereby described and the property now or formerly of L. Peter Patrick;
- (3) Thence leaving the southerly line of said Germantown Road and running by and with the westerly line of said Patrick property south 06°, 43', 38" west, 599.69 feet to an unmarked point which is the intersection of the southeasterly corner of the parcel hereby described with the northeasterly corner of other properties owned by Derrickson Enterprises, LLC designated as Tax Map 32, Parcel 12;
- (4) Thence by and with the northerly line of said Parcel 12, south 88°, 09', 22" east, 403.30 feet to a point;
- (5) Thence south 79°, 18', 22" east, 201.43 feet to a point which marks the southwesterly corner of the property hereby described at its intersection with the easterly line of U.S. Route 113;
- (6) Thence running in a northerly direction by and with the said easterly line of U.S. Route 113 with an arc to the right, and a cord bearing of north 17°, 5', 00" east, and a radius of 2,789.79 feet, a distance of 548.55 feet to the point of beginning. Said parcel hereby described

containing 7.853 acres as surveyed by Madison J. Bunting, Jr., Surveyor, Inc. on January 15, 2004.

(Res. No. 2011-01, 2-14-2011)

Sec. C2-26. March 2015 Annexation.

Section A. It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and include within said municipality, all that certain area of land, together with the improvements thereto, the property, contiguous to and adjoining upon the corporate limits of the Town of Berlin and more particularly described as follows:

Description of the lands of 9828 Seahawk Road, LLC (See Exhibit "B" [attached to the ordinance from which this section derives] and incorporate herein by reference).

BEGINNING

Section B: Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all Ordinances, Resolutions, Rules and Regulations of the Town of Berlin in effect on said date shall apply to the property in the area to be annexed except as herein modified.

Section C: The annexation of said area is made subject to the terms and conditions as follows:

1. *Police Protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
2. *Trash Collection.* Owner acknowledges its obligation to pay for and provide regular trash collection in a manner consistent with the Berlin Maryland Code of Ordinances. Trash collection is available from commercial solid waste management providers.

3. *Water Service.* Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owner has advised the property will be utilized for residential development, with the first phase being up to 144 apartment units, and therefore has estimated that 144 Equivalent Dwelling Units (EDUs) will be required to service the property. The Town will therefore assess the property owner "ready to serve fees" for 144 EDUs. After one year of occupancy, the Town will review the water usage at the property and adjust the number of EDU's accordingly.
 - (b) All wells on the property must be abandoned and capped in accordance with the Town's Wellhead Protection Program
4. *Wastewater Service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) The property owner has advised the property will be utilized for residential development, with the first phase being up to 144 apartment units, and therefore has estimated that 144 Equivalent Dwelling Units (EDUs) will be required to service the property. The Town will therefore assess the property owner "ready to serve fees" for 144 EDUs. After one year of occupancy, the Town will review the wastewater usage at the property and adjust the number of EDU's accordingly.
5. *Payment For EDU's.* The property owner's payment for the cost of the 144 Equivalent Dwelling Units (EDUs) shall be subject to an Allocation Agreement entered into between the Mayor and Council of the Town of Berlin and the owner.
6. *Zoning.* Parcel 91 shall be zoned R-4, Residence District under the Town of Berlin Zoning Ordinance, as identified on Exhibit "B", and made a part of this document, with the consent of the Worcester County Commissioners.
7. *Voting Rights.* In the event that in the future, persons would reside in the annexed area, upon the effective date of annexation, those persons shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
8. *Property Taxes.* All property in the newly annexed area shall upon the effective date of annexation be subject to the payment of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing Town limits are subject as of the effective date of this resolution. Such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2015, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

Adopted this twenty-third day of March, 2015 by the Mayor and the Town of Berlin, Maryland, by affirmative vote of 3 to 2 opposed, with 0 abstaining.
(Res. No. 2014-06, 3-23-2015)

Sec. C2-27. May 2015 Annexation.

1. A Petition for Annexation has been received by the Town, executed by the authorized attorney for the sole property owners in the requested area, Steven and Karen Black.
2. The requested area to be annexed consists of Parcels 165 and 438 on Tax Map 25, totaling 15.212 acres of land, as shown on the

Plat of the property which is duly recorded among the Worcester County Land Records in Plat Book R.H.O. 125, page 21. Said Plat has been submitted as Exhibit "A" to the Annexation Petition.

3. The property is contiguous to the Corporate Limits of the Town.

4. There was submitted with the Annexation Petition, a proposed Annexation Agreement, the terms of which are satisfactory to the Mayor & Council and will constitute the conditions of the annexation upon the property.

5. The property, upon annexation, shall be zoned "B-2 Shopping District".

6. Upon annexation the normal rates of municipal taxation shall be applicable to the property.

Therefore, Be it resolved, the above described property shall be added to the Town, subject to the provisions of the Berlin Municipal Charter and the conditions of the Annexation Agreement referred to herein.
(Res. No. 2015-03, 5-11-2015)

Sec. C2-28. May 2019 Annexation.

Section A: It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and include within said municipality, all that certain area of land, together with the improvements thereto, the property, contiguous to and adjoining upon the corporate limits of the Town of Berlin and more particularly described as follows:

Description of the lands of Athena Properties, Inc. (See Exhibit "A" and "B" of the "Annexation and Development Agreement" attached hereto and incorporated herein by reference).

Section B: Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all Ordinances, Resolutions, Rules and Regulations of the Town of Berlin in

effect on said date shall apply to the property in the area to be annexed except as herein modified.

Section C: The annexation of said area is made subject to the terms and conditions of the Annexation and Development Agreement and this Resolution as follows:

1. *Police Protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
2. *Trash collection.* Owner acknowledges its obligation to pay for and provide regular trash collection in a manner consistent with Berlin Maryland Code of Ordinance. Trash collection is available from commercial solid waste management providers.
3. *Water service.* Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owner will be allocated and pay "ready to serve fees" for five (5) EDU's for the five (5) current lots making up the annexed property. The property owner has advised the property will be utilized for commercial development, with the First Phase estimated to use up to 6 EDU's, to service the property. The Town will assess the property Owner "ready to serve fees" for the number of EDU's needed to support the remainder of the development as they are allocated. Owner acknowledges that the payment of "ready to serve fees" guarantees access to that capacity and facilitates the purchase of EDU's when needed for development. Owner further acknowledges that it understands the "ready to serve" process and has decided not to pay ready to

serve fees on EDU's beyond the requested number. Owner recognizes that water capacity may not be available for future development and assumes that risk. After one year of occupancy of the completed project, the Town will review the water usage at the property and adjust the number of EDU's accordingly.

- (b) All wells on the property must be abandoned and capped in accordance with the Town's Wellhead Protection Program within six (6) months of annexation.
- 4. *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) The property owner will be allocated and pay "ready to serve fees" for five (5) EDU's for the five (5) current lots making up the annexed property. The property owner has advised the property will be utilized for commercial development, with the First Phase estimated to use up to 6 Equivalent Dwelling Units (EDU's), to service the property. The Town will assess the property owner "ready to serve fees" for the number of EDU's needed to support the development as they are allocated. Owner acknowledges that the payment of "ready to serve fees" guarantees access to that capacity and facilitates the purchase of EDU's when needed for development. Owner further acknowledges that they understand the "ready to serve" process and has decided not to pay ready to serve fees on EDU's beyond the requested number. Owner recognizes that wastewater capacity may not be available for future development and assumes that risk.

After one year of occupancy of the completed project, the Town will review the wastewater usage at the property and adjust the number of EDU's accordingly.

- 5. *Payment for EDU's.* The property owner's payment for the cost of the Equivalent Dwelling Units (EDU's) shall be subject to an Allocation Agreement(s) entered into between the Mayor and Council of the Town of Berlin and the Owner, as the EDU's are allocated.
- 6. *Zoning.* The Annexed Property shall be zoned B-2 Shopping District under the Town of Berlin Zoning Ordinance, as identified on Exhibit "C" of the Annexation Agreement, and made a part of this document, with the consent of the Worcester County Commissioners.
- 7. *Voting rights.* In the event that in the future, persons would reside in the annexed area, upon the effective date of annexation, those persons shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
- 8. *Property taxes.* All property in the newly annexed area shall upon the effective date of annexation be subject to the payments of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing Town limits are subject as of the effective date of this resolution. Such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2019, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

Adopted this 28th day of May, 2019, by the Mayor and the Town of Berlin, Maryland, by affirmative vote of 4 to 1 opposed, with 0 abstaining.
(Res. No. 2019-03, 5-28-2019)

Sec. C2-29. October 2019 Annexation.

Section A: It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and include within said municipality, all that certain area of land, together with the improvements thereto, the property, contiguous to and adjoining upon the corporate limits of the Town of Berlin and more particularly described as follows:

Description of lands owned by Acorn Berlin Lot, LLC and Acorn Berlin Chevy LLC comprising a total of 6.0975 acres of land, more or less ("Annexation Property") comprised of (i) Parcel 395 of Worcester County Tax Map 25 and (ii) Parcel 86, Lots 3-13 of Worcester County Tax Map 25 as shown on a plat entitled "IG Burton Dealership Berlin, Maryland" prepared by Davis, Bowen & Friedel, Inc., and dated September 24, 2018 ("Annexation Plat"), which is Exhibit "A" to this Resolution.

Section B: Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all Ordinances, Resolutions, Rules and Regulations of the Town of Berlin in effect on said date shall apply to the property in the area to be annexed except as herein modified.

Section C: The annexation of said area is made subject to the terms and conditions of the Annexation and Development Agreement and this Resolution as follows:

1. *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
2. *Trash collection.* Owner acknowledges its obligation to pay for and provide regular trash collection in a manner consistent with Berlin Maryland Code of Ordinance. Trash collection is available from commercial solid waste management providers.
3. *Water service.* Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owner will be allocated and pay "ready to serve fees" for seven (7) EDU's for the annexed property. Owner acknowledges that the payment of "ready to serve fees" guarantees access to that capacity. Owners may request and receive from the Town, if available and subject to approval of an allocation agreement with the Town, additional EDUs.
 - (b) All wells on the property must be abandoned and capped in accordance with the Town's Wellhead Protection Program within six (6) months of annexation.
4. *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) The property owner will be allocated and pay "ready to serve fees" for seven (7) EDU's the annexed property. Owner acknowledges that the payment of "ready to serve fees" guarantees access to that capacity. Owners may request and receive from the Town, if available and subject to approval of an allocation agreement with the Town, additional EDUs.
5. *Payment for EDU's.* The property owner's payment for the cost of the equivalent Dwelling Units (EDU's) shall be sub-

ject to an Allocation Agreement(s) entered into between the Mayor and Council of the Town of Berlin and the Owner.

6. *Zoning.* The Annexed Property shall be zoned B-2 Shopping District under the Town of Berlin Zoning Ordinance, as identified on Exhibit "C" of the Annexation Agreement, and made a part of this document, with the consent of the Worcester County Commissioners.
7. *Voting rights.* In the event that in the future, persons would reside in the annexed area, upon the effective date of annexation, those persons shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
8. *Property taxes.* All property in the newly annexed area shall upon the effective date of annexation be subject to the payments of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing Town limits are subject as of the effective date of this resolution. Such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2019, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

Adopted this 28th day of October, 2019, by the Mayor and the Town of Berlin, Maryland, by affirmative vote of 3 to 1 opposed, with 0 abstaining and 1 absent.

(Res. No. 2019-07, 10-28-2019)

Sec. C2-30. February 2020 Annexation.

Section A: It is hereby proposed and recommended that the boundaries of the Town of Berlin be changed so as to annex to, and in-

clude within said municipality, all that certain area of land, together with the improvements thereto, the property, contiguous to and adjoining upon the corporate limits of the Town of Berlin and more particularly described as follows:

Beginning at a point on the southerly side of the right-of-way line of U.S. Route 50, at the easterly point of the property which was annexed into the Town of Berlin by Annexation Resolution 2002-10 (now the property of Two Farms, Inc.) and from said point of beginning running by and with the easterly property line of said annexed Two Farms, Inc. property, south 13° 42 minutes 10 seconds east 299.82 feet to a point; thence continuing by and with said property line; south 13° 49 minutes 57 seconds east 200.18 feet to a point; thence leaving the line of said annexed area and running in an easterly direction; north 76° 17 minutes 50 seconds east 222.40 feet to a point; thence running in a northerly direction north 13° 42 minutes 10 seconds west a distance of 500 feet to a point which is the north easterly corner of the boundary line of the proposed annexed property at its intersection with the southerly line of said U.S. Route 50 right-of-way; thence by and with the southerly right-of-way line of U.S. Route 50; south 76° 17 minutes 50 seconds west 222.91 feet to the place of beginning; said annexed property containing 1.947 acres of land more or less. Said property being also described on a certain Plat entitled "Lot 1 Berlin Plaza Third Election District Worcester County, Maryland", recorded among the Worcester County Land Records in Plat Book FWH 54, page 64.

Section B: Upon the effective date of annexation, all of the provisions of the Charter of the Town of Berlin and all Ordinances, Resolutions, Rules and Regulations of the Town of Berlin in effect on said date shall apply to the property in the area to be annexed except as herein modified.

Section C: The annexation of said area is made subject to the terms and conditions of the Annexation and Development Agreement and this Resolution as follows:

1. *Police protection.* Police services of the Berlin Police Department shall be extended into the annexed area immediately upon the effective date of annexation.
2. *Trash collection.* Owner acknowledges its obligation to pay for and provide regular trash collection in a manner consistent with Berlin Maryland Code of Ordinance. Trash collection is available from commercial solid waste management providers.
3. *Water service.* Town of Berlin currently has water service available to the area to be annexed.
 - (a) The property owners will each be allocated and pay "ready to serve fees" for EDU's for the two (2) parcels of land making up the annexed property. The property owners have advised that the properties will be utilized for commercial development. The Town will assess each property Owner "ready to serve fees" for the number of EDU's needed to support the remainder of the development as they are allocated. Owners acknowledge that the payment of "ready to serve fees" guarantees access to that capacity and facilitates the purchase of EDU's when needed for development. Owners further acknowledge that they each understand the "ready to serve" process and may decide to pay ready to serve fees on EDU's beyond the initial requested number. Owners recognize that water capacity may not be additionally available for future development other than those reserved and assumes that risk. After one year of occupancy of each of the developed properties, the Town will review the water usage at that property and adjust the number of EDU's accordingly.
- (b) All wells on the property must be abandoned and capped in accordance with the Town's Wellhead Protection Program within six (6) months of annexation.
4. *Wastewater service.* The Town of Berlin currently has wastewater service available to the area to be annexed.
 - (a) The property owners will be allocated and pay "ready to serve fees" for requested EDU's for each of the annexed parcels constituting the annexed property. The property owners have advised that the property will be utilized for commercial development. The Town will assess each property owner "ready to serve fees" for the number of EDU's needed to support the development as they are allocated. Owners each acknowledge that the payment of "ready to serve fees" guarantees access to that capacity and facilitates the purchase of EDU's when needed for development. Owners each further acknowledge that they understand the "ready to serve" process and may decide not to pay ready to serve fees on EDU's beyond the requested number to be initially utilized. Owners each recognize that wastewater capacity may not be available for future development, beyond those EDU's reserved as set forth herein, and assumes that risk. After one year of occupancy of the completed project on each parcel, the Town will

review the wastewater usage at each property and adjust the number of EDU's accordingly.

5. *Payment for EDU's.* The property owner's payment for the cost of the Equivalent Dwelling Units (EDU's) shall be subject to an Allocation Agreement(s) entered into between the Mayor and Council of the Town of Berlin and the Owner, as the EDU's are allocated.
6. *Zoning.* The Annexed Property shall be zoned B-2 Shopping District under the Town of Berlin Zoning Ordinance, as set forth in said Annexation Agreement, Paragraph 6A thereof, with the consent of the Worcester County Commissioners.
7. *Voting rights.* In the event that in the future, persons would reside in the annexed area, upon the effective date of annexation, those persons shall have the right to vote in all general and special elections of the Town of Berlin, subject to the same requirements applicable to all voters in the Town of Berlin.
8. *Property taxes.* All property in the newly annexed area shall upon the effective date of annexation be subject to the payments of taxes, real and personal, and shall further be subject to a lien for the nonpayment thereof, in the same manner and at the same rate as properties now within the existing Town limits are subject as of the effective date of this resolution. Such taxes shall become due and payable within ninety (90) days of annexation. Commencing with the fiscal year beginning July 1, 2020, all such taxes shall be billed and collected in the same manner as all other taxes in the Town of Berlin.

Approved this 10th day of February, 2020 by the Mayor and the Town of Berlin, Maryland, by affirmative vote of 4 to 1 opposed, with 0 abstaining.
(Res. No. 2020-01, 2-10-2020)

ARTICLE III. THE COUNCIL

Sec. C3-1. Number; selection; term.

All legislative powers of the town shall be vested in a council consisting of five (5) councilmembers, who shall be elected on a schedule as further set forth in this Charter, Article VI, Section 9. Councilmembers shall hold office for terms of four (4) years or until their successors take office. The regular terms of the councilmembers shall expire on the next Monday on which a regularly scheduled meeting is held following the election of their successors. (Res. of 12-19-1960, § 9; Res. No. 2013-10, 10-28-2013)

Sec. C3-2. Qualifications.

Councilmen shall have resided in the town for at least one (1) year immediately preceding their election and shall be registered voters of the Town of Berlin.
(Res. 12-19-1960, § 10; Res. No. 1992-13, 10-12-1993)

Sec. C3-3. Salary.

Each councilman shall receive an annual salary which shall be as specified from time to time by an ordinance passed by the council in the regular course of its business; provided, however, that the salary of any councilman specified at the time he takes office shall not be changed during his term of office. An ordinance making any change in the salary paid to the several councilmen, either by way of increase or decrease, shall take effect only as to the member elected to the next succeeding council.
(Res. of 12-19-1960, § 11)

Sec. C3-4. Meetings.

The council shall meet at 7:00 p.m. on the next Monday on which a regularly scheduled meeting is held following a municipal election for the purpose of organization, after which the council shall meet regularly at such times as may be prescribed by its rules but not less

frequently than once each month. Special meetings shall be called by the town administrator upon the request of the mayor or a majority of the members of the council. All meetings of the council shall be open to the public, and the rules of the council shall provide that residents of the town shall have a reasonable opportunity to be heard at any meeting in regard to any municipal question. The council may meet in closed sessions when permitted to do so under the State Open Meetings Law.

(Res. of 12-19-1960, § 12; Res. No. 1996-11, 8-12-1996; Res. No. 1996-15, 11-4-1996; Res. No. 2013-11, 10-28-2013)

State law reference—Open meetings law, Md. State Government Code Ann. § 10-501 et seq.

Sec. C3-5. Judgment of members' qualifications.

The council shall be the judge of the election and qualification of its members.
(Res. of 12-19-1960, § 13)

Sec. C3-6. President of council.

The mayor shall serve as president of the council. The council shall elect a vice president of the council from among its members who shall act as president of the council in the absence of the mayor. The mayor may take part in all discussions but he shall have no right to vote, except when the voting members of the council are evenly divided at two votes per side.
(Res. of 12-19-1960, § 14; Res. of 1-22-1968)

Sec. C3-7. Quorum.

A majority of the members of the council shall constitute a quorum for the transaction of business, but no ordinance shall be approved nor any other action taken without the favorable votes of either three (3) members of the council or two members of the council and the mayor in the event that the mayor votes in accordance with the preceding section.
(Res. of 12-19-1960, § 15; Res. of 1-22-1968)

Sec. C3-8. Procedure.

The council shall determine its own rules and order of business. It shall keep a journal of its proceedings and enter therein the yeas and nays upon final action on any question, resolution or ordinance, or at any other time if required by any one (1) member. The journal shall be open to public inspection.
(Res. of 12-19-1960, § 16)

Sec. C3-9. Vacancies.

Vacancies in the council shall be filled as provided in section C6-14 of this Charter.
(Res. of 12-19-1960, § 17)

Sec. C3-10. Adoption of ordinances.

No ordinance shall be passed at the meeting at which it is introduced. At any regular or special meeting of the council held not less than six (6) nor more than sixty (60) days after the meeting at which an ordinance was introduced, it shall be passed, or passed as amended, or rejected, or its consideration deferred to some specified future date. In cases of emergency, the above requirement may be suspended by the affirmative votes of four (4) members of the council. Every ordinance, except the annual ordinance adopting the budget and fixing the tax rate or an emergency ordinance, shall become effective at the expiration of twenty (20) calendar days following approval by the mayor or passage by the council over his veto. Each ordinance shall be published by its title at least twice in a newspaper or newspapers having general circulation in the municipality. The annual budget and tax rate ordinance and any emergency ordinance shall become effective on the date specified in the ordinance, but no ordinance shall become effective until approved by the mayor or passed over his veto by the council.
(Res. of 12-19-1960, § 18)

Sec. C3-11. Veto.

All ordinances passed by the council shall be promptly delivered by the administrative direc-

tor [town administrator] to the mayor for his approval or disapproval. If the mayor approves any ordinance, he shall sign it. If the mayor disapproves any ordinance, he shall not sign it. The mayor shall return all ordinances to the administrative director [town administrator] within six (6) days after delivery to him (including the days of delivery and return and excluding Sunday) with his approval or disapproval. Any ordinance approved by the mayor shall be law. Any ordinance disapproved by the mayor shall be returned with a message stating the reasons for his disapproval. Any disapproved ordinance shall not become a law unless subsequently passed by a favorable vote of four-fifths (4/5) of the whole council within thirty-five (35) calendar days from the time of the return of the ordinance. If the mayor fails to return any ordinance within six (6) days of its delivery as aforesaid, it shall be deemed to be approved by the mayor and shall become law in the same manner as an ordinance signed by him.

(Res. of 12-19-1960, § 19; Res. No. 1996-11, 8-12-1996)

Sec. C3-12. Referendum.

If, before the expiration of twenty (20) calendar days following approval of any ordinance by the mayor or passage of any ordinance over the mayor's veto, a petition is filed with the administrative director [town administrator] containing the signatures and residence addresses of not less than twenty per centum (20%) of the qualified voters of the town who were registered to vote in the last preceding general or special election held in the town, and requesting that the ordinance be submitted to a vote of the qualified voters of the town for their approval or disapproval, the council shall have the ordinance submitted to a vote of the qualified voters of the town at the next regular town election or, in the council's discretion, at a special election occurring before the next regular election. No ordinance shall become effective following the receipt of such petition until and unless approved at the election by a majority of the qual-

ified voters voting on the question. An emergency ordinance shall continue in effect for sixty (60) days following receipt of such petition. If the question of approval or disapproval of any emergency ordinance has not been submitted to the qualified voters within sixty (60) days following receipt of the petition, then the operation of the ordinance shall be suspended until approved by a majority of the qualified voters voting on the question at any election. Any ordinance disapproved by the voters shall stand repealed. The provisions of this section shall not apply to any ordinance adopting the annual budget and making the annual tax levy or levying taxes for the payment of indebtedness of the town, but the provisions of this section shall apply to any ordinance levying special assessment charges under the provisions of sections C12-1 and C12-2. The provisions of this section shall be self-executing, but the council may adopt ordinances in furtherance of these provisions and not in conflict with them.

(Res. of 12-19-1960, § 20; Res. No. 1996-11, 8-12-1996)

Sec. C3-13. File of ordinances.

Ordinances shall be permanently filed by the administrator director [town administrator] and shall be kept available for public inspection.

(Res. of 12-19-1960, § 21; Res. No. 1996-11, 8-12-1996)

ARTICLE IV. THE MAYOR

Sec. C4-1. Selection and term.

The mayor shall be elected as hereinafter provided and shall hold office for a term of four (4) years or until his successor is elected and qualified. The newly elected mayor shall take office on the next Monday on which a regularly scheduled meeting is held following his election. (Res. of 12-19-1960, § 22; Res. No. 2013-12, 10-28-2013)

Sec. C4-2. Qualifications.

The mayor must have resided in the town for at least one (1) year immediately preceding his election and must be a qualified voter of the Town of Berlin.

(Res. of 12-19-1960, § 23; Res. No. 1992-12, 10-12-1992)

Sec. C4-3. Salary.

The mayor shall receive an annual salary as set from time to time by an ordinance passed by the council in the regular course of business. No change shall be made in the salary for any mayor during the term for which he was elected. The ordinance making any change in the salary paid to the mayor, either by way of increase or decrease, shall be finally ordained prior to the municipal election to elect the next succeeding mayor and shall take effect only as to the next succeeding mayor.

(Res. of 12-19-1960, § 24)

Sec. C4-4. Powers and duties.

A. The mayor shall see that the ordinances of the town are faithfully executed and shall be the chief executive officer and the head of the administrative branch of the town government.

B. The mayor, with the approval of the council, shall appoint the heads of all offices, departments and agencies of the town government as established by this Charter or by ordinance. All office, department and agency heads shall serve at the pleasure of the mayor and may be terminated by the mayor with the consent of the majority of the council. All subordinate officers and employees of the offices, departments and agencies of the town government shall be appointed and removed by the mayor in accordance with rules and regulations in any merit system which may be adopted by the council.

C. The mayor each year shall report to the council the condition of municipal affairs and make such recommendations as he deems proper for the public good and the welfare of the town.

D. The mayor shall have the power to veto ordinances passed by the council as provided in § C3-11.

E. The mayor shall have complete supervision over the financial administration of the town government. He shall prepare or have prepared annually a budget and submit it to the council. He shall supervise the administration of the budget as adopted by the council. He shall supervise the disbursement, receipt and investment of all moneys under guidelines as the council may set from time to time. He shall have control over all expenditures to assure that budget appropriations are not exceeded.

F. The mayor shall have such other powers and perform such other duties not inconsistent with this Charter as may be prescribed by this Charter or as may be required of him by the council.

(Res. of 12-19-1960, § 25; Res. No. 88-11, 11-28-1988; Res. No. 88-12, 11-28-1988)

ARTICLE V. GENERAL POWERS**Sec. C5-1. Enumeration of powers.**

A. The council shall have the power to pass all such ordinances not contrary to the Constitution and laws of the State of Maryland or this

Charter as it may deem necessary for the good government of the town; for carrying out any duty or power imposed or conferred on municipal corporations of this state by said Constitution and laws for the protection and preservation of the town's property, rights and privileges; for the preservation of peace and good order; for securing persons and property from violence, danger or destruction; and for the protection and promotion of the health, safety, comfort, convenience, welfare and happiness of the residents of the town and visitors thereto and sojourners therein.

B. The council shall have, in addition, the power to pass ordinances not contrary to the laws and Constitution of this state, for the following specific purposes:

- (1) *Advertising.* To provide for advertising for the purposes of the town, for printing and publishing statements as to the business of the town.
- (2) *Aisles.* To regulate and prevent the obstruction of aisles in public halls, churches and places of amusement and to regulate the construction and operation of the doors and means of egress therefrom.
- (3) *Amusements.* To provide in the interest of the public welfare for licensing, regulating or restraining theatrical or other public amusements.
- (4) *Appropriations.* To appropriate municipal moneys for any purpose within the powers of the council.
- (5) *Auctioneers.* To regulate the sale of all kinds of property at auction within the town and to license auctioneers.
- (6) *Band.* To establish or contribute to the support of a municipal band, symphony orchestra or other musical organization and to regulate by ordinance the conduct and policies thereof.
- (7) *Billboards.* To license, tax and regulate, restrain or prohibit the erection or maintenance of billboards within the town and the placing of signs, bills and posters of every kind and description on any building, fence, post, billboard, pole or other place within the town.
- (8) *Bridges.* To erect and maintain bridges.
- (9) *Buildings.* To make reasonable regulations in regard to buildings and signs to be erected, constructed or reconstructed in the town and to grant building permits for the same; to formulate a building code and a plumbing code and to appoint a building inspector and a plumbing inspector and to require reasonable charges for permits and inspections; to authorize and require the inspection of all buildings and structures and to authorize the condemnation thereof in whole or in part when dangerous or insecure and to require that such buildings and structures be made safe or be taken down.
- (10) *Cemeteries.* To regulate or prohibit the interment of bodies within the municipality and to regulate cemeteries.
- (11) *Codification.* To provide for the codification of all ordinances which have been or may hereafter be passed.
- (12) *Community services.* To provide, maintain and operate community and social services for the preservation and promotion of the health, recreation, welfare and enlightenment of the inhabitants of the town.
- (13) *Cooperative activities.* To make agreements with other municipalities, counties, districts, bureaus, commissions and governmental authorities for the joint performance of, or for cooperation in, the performance of any governmental functions.

- (14) *Curfew.* To prohibit the youth of the town from being in the streets, lanes, alleys or public places at unreasonable hours of the night.
- (15) *Dangerous conditions.* To compel persons about to undertake dangerous improvements to execute bonds with sufficient sureties conditioned that the owner or contractor will pay all damages resulting from such work which may be sustained by any persons or property.
- (16) *Departments.* To create, change and abolish offices, departments or agencies, other than the offices, departments and agencies established by this Charter; to assign additional functions or duties to offices, departments or agencies established by this Charter, but not including the power to discontinue or assign to any other office, department or agency any function or duty assigned by this Charter to a particular office, department or agency.
- (17) *Disorderly houses.* To suppress bawdy houses, disorderly houses and houses of ill fame.
- (18) *Dogs.* To regulate the keeping of dogs in the town and to provide, wherever the county does not license or tax dogs, for the licensing and taxing of the same; to provide for the disposition of homeless dogs and dogs on which no license fee or taxes are paid.
- (19) *Elevators.* To require the inspection and licensing of elevators and to prohibit their use when unsafe or dangerous or without a license.
- (20) *Explosives.* To regulate or prevent the storage of gunpowder, oil or any other explosive or combustible matter; to regulate or prevent the use of firearms, fireworks, bonfires, explosives or any other similar things which may endanger persons or property.
- (21) *Filth.* To compel the occupant of any premises, building or outhouse situated in the town, when the same has become filthy or unwholesome, to abate or cleanse the condition and, after reasonable notice to the owners or occupants, to authorize such work to be done by the proper officers and to assess the expense thereof against such property making it collectible as taxes or as charges against the occupant or occupants.
- (22) *Finances.* To levy, assess and collect ad valorem property taxes; to expend municipal funds for any public purpose; to have general management and control of the finances of the town.
- (23) *Fire.* To suppress fires and prevent the dangers thereof and to establish and maintain a fire department; to contribute funds to volunteer fire companies serving the town; to inspect buildings for the purpose of reducing fire hazards, to issue regulations concerning fire hazards and to forbid and prohibit the use of fire-hazardous buildings and structures permanently or until the conditions of the town fire-hazard regulations are met; to install and maintain fireplugs or hydrants where and as necessary and to regulate their use; and to take all other measures necessary to control and prevent fires in the town.
- (24) *Food.* To inspect and to require the condemnation of, if unwholesome, and to regulate the sale of any food products.
- (25) *Franchise.* To grant and regulate franchises to water companies, electric light companies, gas companies, telegraph and telephone companies, transit companies, taxicab companies and any others which may be deemed advantageous and beneficial to the town, subject, however, to the limitations and provisions contained in the Constitution or

general laws of the state and to the further limitations that no such franchise shall be granted for any such utility or service which will compete with or duplicate the same utility or service rendered by the town, unless such grant shall be approved by a majority of the qualified voters of the town voting on a referendum of the questions at a special town election, duly called and held for the purpose in accordance with this Charter.

- (26) *Gambling.* To restrain and prohibit gambling.
- (27) *Garbage.* To prevent the deposit of any unwholesome substance either on private or public property and to compel its removal to designated points; to require slops, garbage, ashes and other waste or other unwholesome materials to be removed to designated points or to require the occupants of the premises to place them conveniently for removal.
- (28) *Grants-in-aid.* To accept gifts and grants of federal or of state funds from the federal or state governments or any agency thereof and to expend the same for any lawful public purpose, agreeably to the conditions under which the gifts or grants were made.
- (29) *Hawkers.* Subject to any limitations or restrictions contained in the public general laws of the state, to license, tax, regulate, suppress and prohibit hawkers and itinerant dealers, peddlers, pawnbrokers and all other persons selling any articles on the streets of the town and to revoke such licenses for cause.
- (30) *Health.* To protect and preserve the health of the town and its inhabitants; to appoint a public health officer and to define and regulate his powers and duties; to prevent the introduction of contagious diseases into the town; to establish quarantine regulations and to authorize the removal and confinement of persons having contagious or infectious diseases; to prevent and remove all nuisances; to inspect, regulate and abate any buildings, structures or places which cause or may cause unsanitary conditions or conditions detrimental to health; provided that nothing herein shall be construed to affect in any manner any of the powers and duties of the state board of health, the county board of health or any public general or local law relating to the subject of health.
- (31) *House numbers.* To regulate the numbering of houses and lots and to compel owners to renumber the same or in default thereof to authorize and require the same to be done by the town at the owner's expense, such expense to constitute a lien upon the property collectible as tax moneys.
- (32) *Jail.* To establish and regulate a station house or lockup for temporary confinement of violators of the laws and ordinances of the town or to use the county jail for such purpose.
- (33) *Licenses.* Subject to any restrictions imposed by the public general laws of the state, to license and regulate all persons beginning or conducting transient or permanent business in the town for the sale of any goods, wares, merchandise or services; to license and regulate any business, occupation, trade, calling or place of amusement or business; to establish and collect fees and charges for all licenses and permits issued under the authority of this Charter.
- (34) *Liens.* To provide that any valid charges, taxes or assessments made against any real property within the town shall be liens upon such property to be collected as municipal taxes are collected.

- (35) *Lights*. To provide for the lighting of the town.
- (36) *Livestock*. To regulate and prohibit the running at large of cattle, horses, swine, fowl, sheep, goats, dogs or other animals; to authorize the impounding, keeping, sale and redemption of such animals when found in violation of the ordinance in such cases provided.
- (37) *Markets*. To obtain by lease or rent or to own, construct, purchase, operate and maintain public markets within the town.
- (38) *Minor privileges*. To regulate or prevent the use of public ways, sidewalks and public places for signs, awnings, posts, steps, railings, entrances, racks, posting handbills and advertisements and display of goods, wares and merchandise.
- (39) *Noise*. To regulate or prohibit unreasonable ringing of bells, crying of goods or sounding of whistles and horns.
- (40) *Nuisances*. To prevent or abate by appropriate ordinance all nuisances in the town which are so defined at common law, by this Charter or by the laws of the State of Maryland, whether the same be herein specifically named or not; to regulate, to prohibit, to control the location of or to require the removal from the town of all trading in, handling of or manufacture of any commodity which is or may become offensive, obnoxious or injurious to the public comfort or health. In this connection, the town may regulate, prohibit and control the location of or require the removal from the town of such things as stockyards, slaughterhouses, cattle or hog pens, tanneries and renderies. This listing is by way of enumeration, not limitation.
- (41) *Obstructions*. To remove all nuisances and obstructions from the streets, lanes and alleys and from any lots adjoining thereto or any other places within the limits of the town.
- (42) *Parking facilities*. To license and regulate and to establish, obtain by purchase, by lease or by rent or to own, construct, operate, maintain and fix and collect charges for the use of parking lots and other facilities for off-street parking.
- (43) *Parking meters*. To install parking meters on said parking facilities and on the streets and public places of the town in such places as shall by ordinance be determined and by ordinance to prescribe rates and provisions for the use thereof, except that the installation of parking meters on any street or road maintained by the State Roads Commission of Maryland must first be approved by the commission.
- (44) *Parks and recreation*. To establish and maintain public parks, gardens, playgrounds and other recreational facilities and programs to promote the health, welfare and enjoyment of the inhabitants of the town.
- (45) *Police force*. To establish, operate and maintain a police force. All town policemen shall have, within the municipality, the powers and authority of constables in this state.
- (46) *Police powers*. To prohibit, suppress and punish within the town all vice, gambling and games of chance; prostitution and solicitation therefor and the keeping of bawdy houses and houses of ill fame; all tramps and vagrants; all disorder, disturbances, annoyances, disorderly conduct, obscenity, public profanity and drunkenness.
- (47) *Property*. To acquire by conveyance, purchase or gift, real or leasehold property for any public purposes; to erect buildings and structures thereon for the benefit of the town and its inhabitants; to convey any real or leasehold property

when no longer needed for public use, after having given at least twenty (20) days' public notice of the proposed conveyance; to control, protect and maintain public buildings, grounds and property of the town.

- (48) *Quarantine*. To establish quarantine regulations in the interests of the public health.
- (49) *Regulations*. To adopt by ordinance and enforce within the corporate limits police, health, sanitary, fire, building, plumbing, traffic, speed, parking and other similar regulations not in conflict with the laws of the State of Maryland or with this Charter.
- (50) *Sidewalks*. To regulate the use of sidewalks and all structures in, under or above the same; to require the owner or occupant of a premises to keep the sidewalks in front thereof free from snow or other obstructions; to prescribe hours for cleaning sidewalks.
- (51) *Sweepings*. To regulate or prevent the throwing or depositing of sweepings, dust, ashes, offal, garbage, paper, handbills, dirty liquids or other unwholesome materials into any public way or onto any public or private property in the town.
- (52) *Taxicabs*. To license, tax and regulate public hackmen, draymen, drivers, cabmen, porters and expressmen, and all other persons pursuing like occupations.
- (53) *Vehicles*. To regulate and license wagons and other vehicles not subject to the licensing powers of the State of Maryland.
- (54) *Voting machines*. To purchase, lease, borrow, install and maintain voting machines for use in town elections.
- (55) *Zoning*. To exercise the powers as to planning and zoning conferred upon municipal corporations generally in article 66B of the Annotated Code of Maryland, subject, however, to the limitations and provisions of said article.
- (56) *Commercial or industrial redevelopment projects*. To make use of federal or state financial assistance or private financial assistance, upon such terms as the municipal corporation deems advisable, for commercial or industrial redevelopment projects, for the purpose of making grants, loans or guaranteeing loans to private entities, provided that the authority granted by this subsection may be used only for commercial or industrial redevelopment projects and may not be used for residential or housing projects.

C. Saving clause. The enumeration of powers in this section is not to be construed as limiting the powers of the town to the several subjects mentioned.

(Res. of 12-19-1960, § 26; Res. of 9-21-1981; Res. No. 2006-09, 12-11-2006)

Sec. C5-2. Exercise of powers.

For the purpose of carrying out the powers granted in this article or elsewhere in this Charter, the council may pass all necessary ordinances. All the powers of the town shall be exercised in the manner prescribed by this Charter or, if the manner be not prescribed, then in such manner as may be prescribed by ordinance.

(Res. of 12-19-1960, § 27)

Sec. C5-3. Enforcement.

To ensure the observance of the ordinances of the town, the council shall have the power to provide that violation thereof shall be a misde-

meanor and shall have the power to affix thereto penalties not exceeding those provided by § C12-1 [C15-4] of this Charter.
(Res. of 12-19-1960, § 28)

ARTICLE VI. REGISTRATION, NOMINATIONS AND ELECTIONS

Sec. C6-1. Voters.

Editor's note—[Res. of 12-19-1960, § 29; amended 3-11-1964, 3-3-1975, 3-1-1982 and by Res. No. 89-10, 11-27-1989; by Res. No. 90-1, 1-29-1990; and repealed by Res. No. 2010-01, 3-22-2010.]

Sec. C6-2. Board of supervisors of elections.

There shall be a board of supervisors of elections consisting of five (5) members who shall be appointed by the mayor with the approval of the council on or before the first Monday in March in every second odd-numbered year accounting from the year 1993. The terms of members of the board of supervisors of elections shall begin on the first Monday in March in the year in which they are appointed and shall run for four (4) years. Members of the board of supervisors of elections shall be qualified voters of the town and shall not hold or be candidates for any elective office during their term of office. The board shall appoint one (1) of its members as chairman. Vacancies on the board shall be filled by the mayor with the approval of the council for the remainder of the unexpired term. The compensation of the members of the board shall be determined by the council.

(Res. of 12-19-1960, § 30; Res. No. 1993-4, 2-22-1993)

Sec. C6-3. Removal of members of board.

Any member of the board of supervisors of elections may be removed for good cause by the council. Before removal, the member of the

board of supervisors of elections to be removed shall be given a written copy of the charges against him and shall have a public hearing on them before the council if he so requests within ten (10) days after receiving the written copy of the charges against him.

(Res. of 12-19-1960, § 31)

Sec. C6-4. Duties of board.

The board of supervisors of elections shall be in charge of the registration of voters, nominations and all town elections. The board may appoint election clerks or other employees to assist it in any of its duties.

(Res. of 12-19-1960, § 32)

Sec. C6-5. Notice.

The board of supervisors of elections shall give at least two (2) weeks' notice of every registration day and every election by an advertisement published in at least one (1) newspaper of general circulation in the town and by posting a notice thereof in some public place or places in the town.

(Res. of 12-19-1960, § 33)

Sec. C6-6. Voter registration.

Registration of voters shall be accomplished by the completion of a registration form approved by the Worcester County board of elections supervisors for county universal registration. Voters qualified to register for Worcester County general elections shall be deemed qualified to vote in [the] Town of Berlin elections, subject to the additional requirement of being domiciled within the Town of Berlin. It shall be the duty of the board of supervisors of elections to keep the registration lists up-to-date by striking from the lists persons known to have died or to have moved out of the town. Registration shall be closed to new registrants not less than thirty (30) days preceding the next town election.

(Res. of 12-19-1960, § 34; Res. No. 1994-10, 6-27-1994; Res. No. 2010-02, 3-22-2010)

State law reference—Registration, Md. Election Law Code Ann. § 3-403.

Sec. C6-7. Appeals.

If any person shall be aggrieved by the action of the board of supervisors of elections in refusing to register or in striking off the name of any person, or by any other action, such person may appeal to the council. Any decision or action of the council upon such appeals may be appealed to the circuit court for Worcester County within thirty (30) days of the decision or action of the council.

(Res. of 12-19-1960, § 35)

Sec. C6-8. Nominations for elective office.

1. *Filing for elective office.* Persons wishing to be placed on the ballot for the office of mayor or councilmember must adhere to the following:

- A. For Town of Berlin regular elections, persons may be nominated for elective office in the town by filing a certificate of nomination at the office of the board of supervisors of elections on or before the close of business no less than twenty-eight (28) days preceding a town election. No person shall file for nomination to more than one (1) elective town public office or hold more than one (1) elective public office at any one (1) time.
- B. For Town of Berlin special elections, persons may be nominated for elective office in the town by filing a certificate of nomination at the office of the board of supervisors of elections on or before the close of business no less than twenty-eight (28) days preceding the date of the special election.

2. *Write-in candidates.* A certificate of nomination for a write-in candidate shall be filed no less than seven (7) days prior to the scheduled election. The name of the write-in candidate shall not appear on the ballot(s) for the election, except as written-in by the voter at the time of casting of the ballot; write-in names of individuals who have not filed the appropriate certificate of nomination shall not be included in the vote

tally conducted by the Board of Supervisors of Elections, however the remainder of such ballot shall not be invalidated

3. *Withdrawal of candidacy.* Persons desiring to withdraw their candidacy for elective office must submit, in writing, a request to withdraw and be removed from the ballot no less than seven (7) days prior to the scheduled election. The written request to withdraw shall be submitted to the office of the board of supervisors of elections. Should the request to withdraw be submitted with less than seven (7) days remaining prior to the election, the candidate's name shall not be removed from the ballot, however information shall be provided to voters regarding the withdrawal at the polling place. Votes cast for that individual shall not be included in the vote tally conducted by the Board of Supervisors of Elections, however the remainder of the ballot shall not be invalidated by such vote.

(Res. of 12-19-1960, § 36; Res. of 3-11-1964; Res. No. 1988-3, 3-14-1988; Res. No. 1994-10, 6-27-1994; Res. No. 2010-03, 3-22-2010; Res. No. 2013-13, 10-28-2013)

Sec. C6-9. Election of Mayor and Councilmembers.

A. There shall be within the Town of Berlin four (4) election districts, said election districts being designated on a map of election districts, and said map is on file in the office of the Town Administrator of the Town of Berlin and available for inspection at said office during regular business hours. [Note: One (1) councilmember shall be elected in the manner set forth in subsection B hereof from District One; one (1) councilmember shall be elected from District Two; one (1) councilmember shall be elected from District Three; and one (1) councilmember shall be elected from District Four. The mayor and one (1) councilmember shall be elected at-large.]

B. On the first Tuesday in October of every second even-numbered year accounting from 2014, the registered voters of the town shall elect one (1) person as councilmember at-large. The registered voters in District One shall elect one (1) person as councilmember from District One, which said person shall reside in District One; and the registered voters from District Four shall elect one (1) person as councilmember from District Four, which said person shall reside in District Four. All persons so elected shall serve for terms of four (4) years from said election. On the first Tuesday in October of every second even-numbered year accounting from the year 2016, the registered voters of the town shall elect one (1) person as mayor. The registered voters in District Two shall elect one (1) person as councilmember from District Two, which said person shall reside in District Two, and the registered voters in District Three shall elect one (1) person as councilmember of District Three, which said person shall reside in District Three. All persons so elected shall serve for terms of four (4) years from the date of said election.

C. In the event that only one individual files for candidacy for the office of mayor, the councilmember at-large, or the councilmember of a specific district, up to the deadline for write-in candidates' filing, that individual shall be considered to be the successful candidate for the applicable office and the scheduled Election for that office shall be cancelled. If the Election for one office is cancelled under this provision, the remainder of the ballot, if applicable, shall not be affected and the election for the office remaining on the ballot shall not be cancelled. (Res. of 12-19-1960, § 37; Res. No. 1988-3, 3-14-1988; Res. No. 1988-4, 3-14-1988; Res. No. 1989-10, 11-27-1989; Res. No. 1996-11, 8-12-1996; Res. No. 2010-04, 3-22-2010; Res. of 2013-09, 10-28-2013)

Editor's note—The election district plan as established and amended from time to time complies with the requirements of the Voting Rights Act Amendment of 1982.

Sec. C6-10. Conduct of elections.

It shall be the duty of the board of supervisors of elections to provide for each special and general election a suitable place or places for voting and suitable ballot boxes and ballots and/or voting machines. The ballots and/or voting machines shall show the name of each candidate nominated for elective office in accordance with the provisions of this Charter, arranged in alphabetical order by office, with no party designation of any kind. The board of supervisors of elections shall keep the polls open from 7:00 a.m. to 7:00 p.m. on election days.

(Res. of 12-19-1960, § 38; Res. No. 1994-10, 6-27-1994)

Sec. C6-10.1. Referendum.

A. This section shall contain the minimum standards for the validation of any petition to referendum received subject to the jurisdiction of the Town of Berlin, or for inclusion on any ballot subject to that jurisdiction.

B. These minimum standards as set forth herein shall apply to any petition filed within the jurisdiction of the Town of Berlin on or after the effective date of this section.

C. All petitions filed on or after the effective date of this section must meet these minimum standards before any such petition shall be considered valid, these standards having been adapted from the State of Maryland standards entitled "Generic Procedures for Petition Verification," State Document Number 10D-SBL-89, which document is hereby adopted by reference and made a part of these standards.

D. The procedures for verification set forth in the aforesaid state document shall be followed by the board of election supervisors for the Town of Berlin in evaluating and verifying any petition filed within that jurisdiction.

E. At a minimum, all petitions filed subject to the jurisdiction of the Town of Berlin shall contain the following information and shall be presented in the following format and manner:

- (1) Each petition shall contain a statement at the top of each and every page of signatures citing the resolution, ordinance or issue being presented for placement on the election ballot. Such statement shall also contain the appropriate section of state law and the Code of the Town of Berlin authorizing the petition action.
- (2) Each and every page of signatures shall be numbered consecutively at the top of the sheet, beginning with a sheet numbered "1."
- (3) Each petition page shall contain spaces for the following information to accompany each and every signature:
 - (a) Printed name of the signer.
 - (b) Printed residency address of the signer. Mailing addresses, if different from address of residency, are not acceptable.
 - (c) Signature and date of signing.
- (4) Each and every page of signatures shall contain an affidavit at the bottom of the sheet signed by the person collecting the signatures to attest that each and every signature on that page was personally witnessed by that collector.

- (5) The omission of any one (1) of the foregoing items shall render the entire sheet from which it has been omitted invalid and may invalidate the entire petition.

F. The procedures and standards set forth herein shall be an addition to the previously established procedures and standards for referenda set forth in the Berlin Town Charter, and all other applicable provisions in effect prior to the effective date of this section shall still apply.
(Res. No. 1992-10, 8-24-1992)

Sec. C6-11. Special elections.

All special town elections shall be conducted by the board of supervisors of elections in the same manner and with the same personnel, as far as practicable, as regular town elections.
(Res. of 12-19-1960, § 39)

Sec. C6-12. Vote count.

Within forty-eight (48) hours after the closing of the polls, the board of supervisors of elections shall determine the vote cast for each candidate or question and shall certify the results of the election to the administrative director [town administrator], who shall record the vote in the records of the council. The candidate for mayor with the highest number of votes in each election for this office shall be declared to be elected as mayor; the candidate for council in each district with the highest number of votes from that district shall be declared elected as council member representing that district; and the candidate for the at-large council seat with the highest number of votes shall be declared elected as the council member at large.
(Res. of 12-19-1960, § 40; Res. No. 1994-10, 6-27-1994)

Sec. C6-13. Preservation of ballots.

All ballots used in any town election shall be preserved for at least six (6) months from the date of the election.
(Res. of 12-19-1960, § 41)

Sec. C6-14. Vacancies.

A. In case of a vacancy in the office of mayor as hereinafter described in subsection B, the office shall be filled by the duly elected vice president of the council, who shall serve as interim mayor until a special election is conducted, pursuant to § C6-11 of the Charter. At the next regular meeting, the remaining council members shall elect one (1) of their members as interim vice president, who shall serve until a special election shall be held for the office of mayor. The special election for mayor shall be held within sixty (60) days of the occurrence of the vacancy, provided that no such election shall be necessary if the regular election date will occur within one hundred eighty (180) days of the occurrence of such vacancy. Persons may be nominated for the office of mayor by filing a certificate of nomination at the office of the board of supervisor of elections by the advertised deadline to be set by that board in accordance with the provisions of §§ C6-8 and C6-9 of the Charter.

B. A vacancy in the office of mayor shall occur if the mayor:

- (1) Dies;
- (2) Resigns;
- (3) Changes residency to outside the Town of Berlin;
- (4) Is declared by unanimous vote of the council to be unqualified pursuant to § C4-2 of the Charter;
- (5) Is absent from six (6) consecutive regularly scheduled council meetings or from nine (9) of twelve (12) consecutive regularly scheduled council meetings during the mayor's term of office and, in addition, the council unanimously votes to declare a vacancy as necessary for the best interests of the Town of Berlin because of the absences; or
- (6) Is declared a disabled person and in need of a guardian of the person by a

court pursuant to § 13-705 of the Estates and Trusts Article of the Annotated Code of Maryland, and in addition, the council unanimously votes to declare a vacancy as necessary for the best interests of the Town of Berlin because of the disability.

C. In the case of a vacancy on the council as hereinafter described in subsection D, the vacancy shall be filled by a special election conducted pursuant to § C6-11 of the Charter, by voters from the district represented by the vacating council member. The special election for council member shall be held within sixty (60) days of the occurrence of the vacancy, provided that no such election shall be necessary if the regular election date will occur within one hundred eighty (180) days of the occurrence of such vacancy. Persons may be nominated for the office of council member by filing a certificate of nomination at the office of the board of supervisor of elections by the advertised deadline to be set by that board in accordance with the provisions of §§ C6-8 and C6-9 of the Charter.

D. A vacancy in the council shall occur if any council member:

- (1) Dies;
- (2) Resigns;
- (3) Changes residency to outside the Town of Berlin or outside of the council member's district;
- (4) Is declared by unanimous vote of the remaining council members and mayor to be unqualified pursuant to § C3-2 of the Charter;
- (5) Is absent from six (6) consecutive regularly scheduled council meetings or from nine (9) of twelve (12) consecutive regularly scheduled council meetings during the council member's term of office and, in addition, the remaining council members and mayor unanimously vote

to declare a vacancy as necessary for the best interests of the Town of Berlin because of the absences; or

- (6) Is declared a disabled person and in need of a guardian of the person by a court pursuant to § 13-705 of the Estates and Trusts Article of the Annotated Code of Maryland, and in addition, the remaining council members and mayor unanimously vote to declare a vacancy as necessary for the best interests of the Town of Berlin because of the disability.

(Res. of 12-19-1960, § 42; Res. of 11-13-1967; Res. No. 1992-4, 5-11-1992; Res. No. 1996-4, 3-11-1996)

Sec. C6-15. (Reserved)

Editor's note—Former § C6-15, Women, adopted by Res. 12-19-1960, § 43, was repealed by Res. No. 2010-05, 4-12-2010.

Sec. C6-16. Regulation and control.

The council shall have the power to provide by ordinance, in every respect not covered by the provisions of this Charter, for the conduct of registration, nomination and town elections, for the prevention of fraud in connection therewith and for a recount of ballots in case of doubt or fraud.

(Res. of 12-19-1960, § 44)

Sec. C6-17. Penalty.

Any person who fails to perform any duty required of him under the provisions of this article or any ordinances passed thereunder, in any manner willfully or corruptly violates any of the provisions of this article or any ordinances passed thereunder or willfully or corruptly does anything which will or will tend to affect fraudulently any registration, nomination or town election shall be deemed guilty of a misdemeanor. Any officer or employee of the town government who is convicted of a misdemeanor under the provisions of this section shall immediately upon

conviction thereof cease to hold such office or employment, in addition to any other penalty imposed.

(Res. of 12-19-1960, § 45)

ARTICLE VII. FINANCE

Secs. C7-1 through C7-3. (Reserved)

Editor's note—Former § C7-1, Clerk-Treasurer, adopted by Res. of 12-19-1960, § 46; § C7-2, Powers and duties of Clerk-Treasurer, adopted by Res. of 12-19-1960, § 47; and § C7-3, Bond of Clerk-Treasurer, adopted by Res. of 12-19-1960, § 48, were repealed by Res. No. 1996-11, 8-12-1996.

Sec. C7-4. Fiscal year.

The town shall operate on an annual budget. The fiscal year of the town shall begin on the first day of July and shall end on the last day of June in each year. Such fiscal year shall constitute the tax year, the budget year and the accounting year.

(Res. of 12-19-1960, § 49; Res. No. 1996-11, 8-12-1996)

Sec. C7-5. Budget.

The mayor, on such date as the council by ordinance shall determine, but at least thirty-two (32) days before the beginning of any fiscal year, shall submit a budget to the council. The budget shall provide a complete financial plan for the budget year and shall contain estimates of anticipated revenues and proposed expenditures for the coming year. The total of the anticipated revenues shall equal or exceed the total of the proposed expenditures. The budget shall be a public record in the office of the administrative director [town administrator], open to public inspection by anyone during normal business hours.

(Res. of 12-19-1960, § 50; Res. No. 1996-11, 8-12-1996)

Sec. C7-6. Budget adoption.

Before adopting the budget, the council shall hold a public hearing thereon after two (2) weeks' notice thereof published in some newspaper or newspapers having general circulation within the town. The council may insert new items or may increase or decrease the items of the budget. Where the council shall increase the total proposed expenditures, it shall also increase the total anticipated revenues in an amount at least equal to such total proposed expenditures. The budget shall be prepared and adopted in the form of an ordinance. A favorable vote of at least a majority of the total elected membership of the council shall be necessary for adoption. (Res. of 12-19-1960, § 51)

Sec. C7-7. Appropriations.

No public money may be expended without having been appropriated by the council. From the effective date of the budget, the several amounts stated therein as proposed expenditures shall be and become appropriated to the several objects and purposes named therein.

(Res. of 12-19-1960, § 52)

Sec. C7-8. Transfer of funds.

Any transfer of funds between major appropriations for different purposes by the mayor must be approved by the council before becoming effective.

(Res. of 12-19-1960, § 53)

Sec. C7-9. Overexpenditure prohibited.

No officer or employee shall during any budget year expend or contract to expend any money or incur any liability or enter into any contract which by its terms involves the expenditure of money for any purpose in excess of the amounts appropriated for or transferred to that general classification of expenditure pursuant to this Charter. Any contract, verbal or written, made in violation of this Charter shall be null and void. Nothing in this section contained, however, shall

prevent the making of contracts or the spending of money for capital improvements to be financed in whole or in part by the issuing of bonds nor the making of contracts of lease or for services for a period exceeding the budget year in which such contract is made, when such contract is permitted by law.

(Res. of 12-19-1960, § 54)

Sec. C7-10. Lapse of appropriations.

All appropriations shall lapse at the end of the budget year to the extent that they shall not have been expended or lawfully encumbered. Any unexpended and unencumbered funds shall be considered a surplus at the end of the budget year and shall be included among the anticipated revenues for the next succeeding budget year.

(Res. of 12-19-1960, § 55)

Sec. C7-11. Checks.

All checks issued in payment of salaries or other municipal obligations shall be issued and signed by the mayor and shall be countersigned by a member of the council or a member of the town staff designated by the council as an authorized signatory. All checks shall require two authorized signatures. In the event the mayor is unavailable to sign a check for any reason, then the vice president of the council shall have the authority to sign the check in place of the mayor. (Res. of 12-19-1960, § 56; Res. No. 91-1, 1-17-1991; Res. No. 1992-16, 11-23-1992; Res. No. 1996-4, 10-21-1996)

Sec. C7-12. Taxable property.

All real property and all tangible personal property within the corporate limits of the town, or personal property which may have a situs there by reason of the residence of the owner therein, shall be subject to taxation for municipal purposes, and the assessment used shall be the same as that for state and county taxes. No

authority is given by this section to impose taxes on any property which is exempt from taxation by any act of the General Assembly.

(Res. of 12-19-1960, § 57)

Sec. C7-13. Tax levy.

From the effective date of the budget, the amount stated therein as the amount to be raised by the property tax shall constitute a determination of the amount of the tax levy in the corresponding tax year.

(Res. of 12-19-1960, § 58)

Sec. C7-14. Notice of tax levy.

Immediately after the levy is made by the council in each year, the administrative director [town administrator] shall give notice of the making of the levy by posting a notice thereof in some public place or places in the town. He shall make out and mail or deliver in person to each taxpayer or his agent at his last known address a bill or account of the taxes due from him. This bill or account shall contain a statement of the amount of real and personal property with which the taxpayer is assessed, the rate of taxation, the amount of taxes due and the date on which the taxes will bear interest, and may also include any amount due and owing from such taxpayer on account of any special assessment imposed by the town. Failure to give or receive any notice required by this section shall not relieve any taxpayer of the responsibility to pay, on the dates established by this Charter, all taxes levied on his property.

(Res. of 12-19-1960, § 59; Res. No. 1996-11, 8-12-1996)

Sec. C7-15. Overdue taxes; interest.

The taxes provided for in §§ C7-13 and C7-14 of this Charter shall be due and payable on the first day of July in the year for which they are levied and shall be overdue and in arrears on the first day of the following October. They shall bear interest while in arrears at the rate of 1% for each month or fraction of a month until paid.

All taxes not paid and in arrears after the first day of the following January shall be collected as provided in § C7-16.

(Res. of 12-19-1960, § 60; Res. No. 91-4, 6-24-1991; Res. No. 2006-03, 4-10-2006)

Sec. C7-15.1. Discounts.

A discount of 1% will be allowed for payments made in the month of July. Refunds will not be made for failure to take the discount.

(Res. No. 2006-03, 4-10-2006)

Sec. C7-16. Sale of tax-delinquent property.

A list of all property on which the town taxes have not been paid and which are in arrears as provided by § C7-15 of this Charter shall be turned over by the administrative director [town administrator] to the official of the county responsible for the sale of tax-delinquent property as provided in state law. All property listed thereon shall, if necessary, be sold for taxes by said county official in the manner prescribed by state law.

(Res. of 12-19-1960, § 61; Res. No. 1996-11, 8-12-1996)

Sec. C7-17. Fees.

All fees received by an officer or employee of the town government in his official capacity shall belong to the town government and be accounted for to the town.

(Res. of 12-19-1960, § 62)

Sec. C7-18. Audit.

The financial books and accounts of the town shall be audited annually as required by Section 40 of Article 19 of the Annotated Code of Maryland (1957 Edition).

(Res. of 12-19-1960, § 63)

Sec. C7-19. Long-term borrowing.

The town shall have the authority to borrow money for any public purpose authorized by this Charter or by the public general laws of the

state and to evidence such borrowing by the issuance of bonds having maturities longer than one (1) year, in the manner prescribed by, and pursuant to the authority of, any such public general laws and especially §§ 31 to 39, inclusive, of Article 23A of the Annotated Code of Maryland (1957 Edition), as from time to time amended.

(Res. of 12-19-1960, § 64)

Sec. C7-19.1. Sale of bonds.

The town shall have the power to issue and sell general obligation bonds for any valid public purposes. The town shall follow the procedures of the laws of the State of Maryland in issuing said bonds; however, when the council determines it to be in the public interest, the town may sell its general obligation bonds at a private negotiated sale and not at public sale, and when the council decides to sell bonds at a private negotiated sale, any advertising or public notice requirements for the sale of the bonds need not be followed.

(Res. of 7-2-1982, § 1)

Sec. C7-20. Tax anticipation notes.

The town shall have the power to borrow not exceeding \$1,500,000[.00] in any one fiscal year in anticipation of the collection of property taxes and to evidence such borrowing by the issuance of its tax anticipation notes maturing within 18 months from the date of issue. The unpaid principal balance of all tax anticipation notes outstanding at any time shall not exceed \$2,000,000[.00]. Every such tax anticipation note and the interest thereon shall be paid at or prior to maturity and shall not be renewed or refunded. All such tax anticipation notes shall be authorized by ordinance before being issued. The council shall have the power to regulate all matters concerning the issuance and sale thereof. This section shall not apply to short-term borrowing evidenced by bond anticipation notes issued by the town in anticipation of the issuance of bonds authorized to be issued by the

town pursuant to this Charter or any public general laws of the state and especially Sections 31 to 39, inclusive, of Article 23A of the Annotated Code of Maryland, as amended from time to time. Unless otherwise prescribed by other public general laws of the state, the provisions of Article 31, § 12, of the Annotated Code of Maryland shall govern the authorization and manner of issuance of notes issued in anticipation of such bonds.

(Res. of 12-19-1960, § 65; Res. of 7-7-1975; Res. of 2-16-1981; Res. No. 1993-18, 11-8-1993; Res. No. 1994-5, 4-11-1994; Res. No. 2009-15, 9-28-2009)

Sec. C7-21. Payment of indebtedness.

The power and obligation of the town to pay any and all bonds, notes or other evidences of indebtedness issued by it as its general obligations under the authority of this Charter shall be unlimited and the town shall levy ad valorem taxes upon all the taxable property of the town for the payment of such bonds, notes or other evidences of indebtedness and interest thereon without limitation of rate or amount. Unless any such bonds, notes or other evidences of indebtedness, and the ordinance authorizing them, shall explicitly provide that they are payable as to principal and interest solely from certain revenues or receipts of the town, the faith and credit of the town shall be and is hereby pledged for the payment of the principal thereof and the interest thereon, whether or not such pledge is stated in the bonds, notes or other evidences of indebtedness or in the ordinance authorizing their issuance.

(Res. of 12-19-1960, § 66)

Sec. C7-22. Previous issues.

All bonds, notes or other evidences of indebtedness validly issued by the town previous to February 7, 1961, and all ordinances passed concerning them are hereby declared to be valid, legal and binding obligations of the town under this Charter.

(Res. of 12-19-1960, § 67)

Sec. C7-23. Purchasing and contracts.

All purchases and contracts for the Town of Berlin shall be made according to the Purchasing Policy as approved by the Mayor and Council and as amended from time-to-time. Said Policy shall be maintained in the office of the Town Administrator and/or designee and shall be available for inspection upon request, subject to the provision of the Maryland Public Information Act.

(Res. of 12-19-1960, § 68; Res. of 3-20-1978; Res. No. 89-4, 3-27-1989; Res. No. 91-2, 3-11-1991; Res. No. 1996-11, 8-12-1996; Res. No. 1997-14, 7-14-1997; Res. No. 1999-12, 6-7-1999; Res. No. 2001-1, 2-12-2001; Res. No. 2015-11, 8-10-2015)

Editor's note—Sections C7-23, C15-4 and C15-6 were amended during the 1977 codification. Other amendments noted where applicable.

ARTICLE VIII. PERSONNEL

Sec. C8-1. Town administrator.

The mayor, with the approval of the council, may appoint a town administrator. The town administrator shall perform such duties as may be required by the Mayor and Council as set forth on a job description which may be amended from time to time by the Mayor and Council. The town administrator shall supervise all main department heads and central office staff and is responsible for ensuring the overall efficient and effective administration of all of the town's departments. The town administrator's compensation shall be determined by the council. The town administrator shall serve at the pleasure of the mayor and may be terminated by the mayor, with the consent of the majority of the council. All references to the term "administrative director[]" in the Charter and Code of the Town of Berlin shall be interpreted to refer to the term and job position of town administrator.

(Res. of 12-19-1960, § 69; Res. No. 1996-10, 8-12-1996; Res. No. 2008-11, 12-8-2008)

Sec. C8-2. Town attorney; legal consultants.

The mayor with the approval of the council may appoint a town attorney. The town attorney shall be a member of the bar of the Maryland Court of Appeals. The town attorney shall be the legal adviser of the town and shall perform such duties in this connection as may be required by the council or the mayor. His compensation shall be determined by the council. The town shall have the power to employ such legal consultants as it deems necessary from time to time.

(Res. of 12-19-1960, § 70)

Sec. C8-3. Authority to employ.

The town shall have the power to employ such officers and employees as it deems necessary to execute the powers and duties provided by this Charter or other state law and to operate the town government.

(Res. of 12-19-1960, § 71)

Sec. C8-4. Merit system.

The town may provide by ordinance for appointments and promotions in the administrative service on the basis of merit and fitness. To carry out this purpose, the council shall have the power to adopt such rules and regulations governing the operation of a merit system as it deems desirable or necessary. Among other things, these rules and regulations may provide for competitive examinations, the use of eligible lists, a classification plan, a compensation plan, a probation period, appeals by employees included within the classified service from dismissal or other disciplinary action and vacation and sick leave regulations. The town may request and avail itself of the facilities of the commissioner of state personnel for the administration of its merit system as provided in state law.

(Res. of 12-19-1960, § 72)

Sec. C8-5. Unclassified and classified service.

The civil service of the town shall be divided into the unclassified and classified service.

A. The unclassified service shall comprise the following offices and positions which shall not be included within the merit system:

- (1) The mayor, the councilmen and persons appointed to fill vacancies in these positions.
- (2) The administrative director [town administrator] and the town attorney.
- (3) The heads of all offices, departments and agencies and members of town boards and commissions.
- (4) Part-time, temporary and unpaid offices and positions.

B. The classified service shall comprise all positions not specifically included by this section in the unclassified service. All offices and positions included in the classified service shall be subject to any merit system rules and regulations which may be adopted.

(Res. of 12-19-1960, § 73; Res. No. 1996-11, 8-12-1996)

Sec. C8-6. Prohibitions; penalties.

A. If a merit system is adopted:

- (1) No person in the classified service of the town or seeking admission thereto shall be appointed, promoted, demoted, removed or in any way favored or discriminated against because of his political or religious opinions or affiliations or any other factors not related to ability to perform the work.
- (2) No person shall willfully or corruptly commit or attempt to commit any fraud preventing the impartial execution of the

personnel provisions of this Charter or of the rules and regulations made thereunder.

- (3) No officer or employee in the classified service of the town shall continue in such position after becoming a candidate for nomination or election to any public office.
- (4) No person seeking appointment to or promotion in the classified service of the town shall either directly or indirectly give, render or pay any money, service or other valuable thing to any person for or on account of or in connection with his appointment, proposed appointment, promotion or proposed promotion.
- (5) No person shall orally, by letter or otherwise, solicit or be in any manner concerned in soliciting any assessment, subscription or contribution for any political party or political purpose whatever from any person holding a position in the classified service of the town.
- (6) No person holding a position in the classified service of the town shall make any contribution to the campaign funds of any political party or any candidate for public office or take any part in the management, affairs or political campaign of any political party or candidate for public office, further than in the exercise of his right as a citizen to express his opinion and to cast his vote.

B. Any person who by himself or with others willfully or corruptly violates any of the provisions of this section shall be guilty of a misdemeanor and shall, upon conviction thereof, be punished as provided in § C15-4 of this Charter. Any person who is convicted under this section shall for a period of five (5) years be ineligible for appointment to or employment in a position in the town service and shall, if he is an officer or employee of the town, immediately forfeit the office or position he holds.

(Res. of 12-19-1960, § 74)

Sec. C8-7. Retirement system.

The town shall have the power to do all things necessary to include its officers and employees, or any of them, within any retirement system or pension system under the terms of which they are admissible and to pay the employer's share of the cost of any such retirement or pension system out of the general funds of the town.
(Res. of 12-19-1960, § 75)

Sec. C8-8. Compensation.

The compensation of all officers and employees of the town shall be set from time to time by an ordinance passed by the council, subject to the restrictions imposed by this Charter upon establishing the salaries of the councilmen and mayor.
(Res. of 12-19-1960, § 76)

Sec. C8-9. Employee benefit programs.

The town is authorized and empowered by ordinance to provide for or participate in hospitalization or other forms of benefit or welfare programs for its officers and employees and to expend public moneys of the town for such programs.
(Res. of 12-19-1960, § 77)

**ARTICLE IX. PUBLIC WAYS AND
SIDEWALKS****Sec. C9-1. Definition.**

The term "public ways," as used in this Charter, shall include all streets, avenues, roads, highways, public thoroughfares, lanes and alleys.
(Res. of 12-19-1960, § 78)

Sec. C9-2. Control.

The town shall have control of all public ways in the town, except such as may be under the jurisdiction of the Maryland State Roads Commission. Subject to the laws of the State of

Maryland and this Charter, the town may do whatever it deems necessary to establish, operate and maintain in good condition the public ways of the town.
(Res. of 12-19-1960, § 79)

Sec. C9-3. Powers regarding public ways.

The town shall have the power to:

- A. Establish, regulate and change from time to time the grade lines, width and construction materials of any town public way or part thereof, bridges, curbs and gutters.
- B. Grade, lay out, construct, open, extend and make new town public ways.
- C. Grade, straighten, widen, alter, improve or close up any existing town public way or part thereof.
- D. Pave, surface, repave or resurface any town public way or part thereof.
- E. To[sic] install, construct, reconstruct, repair and maintain curbs and/or gutters along any town public way or part thereof.
- F. To[sic] construct, reconstruct, maintain and repair bridges.
- G. Name town public ways.
- H. Have surveys, plans, specifications and estimates made for any of the above activities or projects or parts thereof.

(Res. of 12-19-1960, § 80)

Sec. C9-4. Powers regarding sidewalks.

The town shall have the power to:

- A. Establish, regulate and change from time to time the grade lines, width and construction materials of any sidewalk or part thereof on town property along any public way or part thereof.

- B. Grade, lay out, construct, reconstruct, pave, repave, repair, extend or otherwise alter sidewalks on town property along any public way or part thereof.
- C. Require that the owners of any property abutting on a sidewalk keep the sidewalk clear of all ice, snow and other obstructions.
- D. Require and order the owner of any property abutting on any public way in the town to perform any projects authorized by this section at the owner's expense according to reasonable plans and specifications. If, after due notice, the owner fails to comply with the order within a reasonable time, the town may do the work, and the expense shall be a lien on the property and shall be collectible in the same manner as are town taxes or by suit at law.

(Res. of 12-19-1960, § 81)

ARTICLE X. WATER AND SEWERS

Sec. C10-1. Powers.

The town shall have the power to:

- A. Construct, operate and maintain a water system and water plant.
- B. Construct, operate and maintain a sanitary sewerage system and a sewage treatment plant.
- C. Construct, operate and maintain a stormwater drainage system and stormwater sewers.
- D. Construct, maintain, reconstruct, enlarge, alter, repair, improve or dispose of all parts, installations and structures of the above plants and systems.
- E. Have surveys, plans, specifications and estimates made for any of the above plants and systems or parts thereof or the extension thereof.

- F. Do all things it deems necessary for the efficient operation and maintenance of the above plants and systems.

(Res. of 12-19-1960, § 82)

Sec. C10-2. Work in public ways.

Any public service corporation, company or individual before beginning any construction of or placing of or changing the location of any main, conduit, pipe or other structure in the public ways of the town shall submit plans to the town and obtain written approval upon such conditions and subject to such limitations as may be imposed by the town. Any public service corporation, company or individual violating the provisions of this section shall be guilty of a misdemeanor. If any unauthorized main, conduit, pipe or other structure interferes with the operation of the water, sewerage or stormwater systems, the town may order it removed.

(Res. of 12-19-1960, § 83)

Sec. C10-3. Obstructions.

All individuals, firms or corporations having mains, pipes, conduits or other structures, in, on or over any public way in the town or in the county which impede the establishment, construction or operation of any town sewer or water main shall, upon reasonable notice, remove or adjust the obstructions at their own expense to the satisfaction of the town. If necessary to carry out the provisions of this section, the town may use its condemnation powers provided by § C13-2. Any violation of an ordinance passed under the provisions of this section may be made a misdemeanor.

(Res. of 12-19-1960, § 84)

Sec. C10-4. Entering on county public ways.

The town may enter upon or do construction in, on or over any county public way for the purpose of installing or repairing any equipment or doing any other things necessary to establish, operate and maintain the water system, water plant, sanitary sewerage system, sewage

treatment plant or stormwater sewers provided for in this Charter. Unless required by the county, the town need not obtain any permit or pay any charge for these operations, but it must notify the county of its intent to enter on the public way and must leave the public way in a condition not inferior to that existing before.

Sec. C10-5. Connections.

The town shall provide a connection with water and sanitary sewer mains for all property abutting on any public way in which a sanitary sewer or water main is laid. When any water main or sanitary sewer is declared ready for operation by the town, all abutting property owners after reasonable notice shall connect all fixtures with the water or sewer main. The town may, if it considers existing fixtures unsatisfactory, require that satisfactory ones be installed and may require that all cesspools, sink drains and privies be abandoned, filled, removed or left in such a way as not to injure public health. All wells found to be polluted or a menace to health may be ordered to be abandoned and closed. Any violation of an ordinance passed under the provisions of this section may be made a misdemeanor.

(Res. of 12-19-1960, § 86)

Sec. C10-6. Charge for connections.

The town may make a charge, the amount to be determined by the council, for each connection made to the town's water or sewer mains. This charge shall be uniform throughout the town, but may be changed from year to year. Arrangements for the payment of this charge shall be made before the connection is made.

(Res. of 12-19-1960, § 87)

Sec. C10-7. Prevention of waste and improper use.

In order to prevent any leakage or waste of water or other improper use of the town's water system or sewage disposal system, the town

may require such changes in plumbing, fixtures or connections as it deems necessary to prevent such waste or improper use.

(Res. of 12-19-1960, § 88)

Sec. C10-8. Private systems.

The town may by ordinance provide that no water supply, sewerage or stormwater drainage system, and no water mains, sewers, drains or connections therewith, shall be constructed or operated by any person or persons, firm, corporation, institution or community, whether upon private premises or otherwise, and may provide that cesspools or other private methods of sewage disposal shall be operated and maintained in such a manner that they do not and will not be likely to affect adversely the public comfort and health and any cesspool or other private methods of sewage disposal affecting or likely to affect adversely the public comfort and health may be deemed a nuisance and may be abated by the town. Any violation of an ordinance passed under the provisions of this section may be made a misdemeanor.

(Res. of 12-19-1960, § 89)

Sec. C10-9. Extension of systems.

The town shall have the power to extend its water or sewerage systems beyond the town limits.

(Res. of 12-19-1960, § 90)

Sec. C10-10. Right of entry.

Any employee or agent of the town, while in the necessary pursuit of his official duties with regard to the water or sewage disposal systems operated by the town, shall have the right of entry, for access to water or sewer installations, at all reasonable hours and after reasonable advance notice to the owner, tenant or person in possession, upon any premises and into any building in the town or in the county served by the town's water or sewage disposal system. Any restraint or hindrance offered to such entry

by any owner, tenant or person in possession, or the agent of any of them, may, by ordinance, be made a misdemeanor.

(Res. of 12-19-1960, § 91)

Sec. C10-11. Pollution of water supply.

No person shall do anything which will discolor, pollute or tend to pollute any water used or to be used in the town water supply system. Any violation of the provisions of this section shall be a misdemeanor.

(Res. of 12-19-1960, § 92)

Sec. C10-12. Contracts for water or sewage removal.

The town, if it deems it advisable, may contract with any party or parties, inside or outside the town, to obtain water or provide for the removal of sewage.

(Res. of 12-19-1960, § 93)

Sec. C10-13. Charges.

The town shall have the power to charge and collect such service rates, water rents, ready-to-serve charges or other charges as it deems necessary for water supplied and for the removal of sewage. These charges are to be billed and collected by the clerk-treasurer at least quarterly, and if bills are unpaid within thirty (30) days, the service may be discontinued. All charges shall be a lien on the property, collectible in the same manner as town taxes or by suit at law.

(Res. of 12-19-1960, § 94)

ARTICLE XI. ELECTRIC LIGHT AND POWER

Sec. C11-1. Powers.

If, to the extent, and for so long as the town possesses electric utility rights, the town shall have the power to:

- A. Acquire, construct, reconstruct, own, operate, repair and maintain an electric

power generating, transmission and distribution system within the corporate limits of the town.

- B. Use any electric power so generated for lighting the public ways of the town and for lighting, heating and otherwise providing energy for the operation and maintenance of any public building in the town.
- C. Sell or contract for the sale of electric energy to private persons or property in the town, for residential, commercial or industrial use, either within or beyond the town limits.
- D. Fix and determine and, from time to time, alter, amend or modify schedules of rates or charges to be paid for electricity sold or supplied either to the above-mentioned public or private consumers or for materials furnished in order to make possible any such sale or supply; to classify such rates and charges in accordance with volume of consumption, on the basis of types of consumers or in accordance with any other equitable nondiscriminatory and uniform formula; and to submit any such schedules of rates and charges to the Public Service Commission of Maryland or other regulatory agency of the state for approval, to the extent from time to time required by law.
- E. Bill at monthly or other regular intervals for the electric service rendered by said system and to enforce the collection of any such bill by discontinuance of service by action at law against the debtor.
- F. Install on the premises of consumers, transformers, meters and other equipment necessary to the rendition of electric service and to authorize its agents or employees to enter upon such premises

- for the purpose of reading any such meters or servicing any such transformers or equipment.
- G. Employ necessary personnel for the maintenance, operation, servicing and repair of said system and all necessary consultants and experts.
 - H. Acquire by gift, purchase or condemnation easements, rights-of-way or other interests in land necessary for the construction, reconstruction or extension of electrical distribution or transmission lines; to enter upon public ways for the same purpose; and to install, construct or reconstruct said lines in said easements or rights-of-way acquired and along said public ways.
 - I. Without being subject to the limitations contained in § C7 of this Charter, purchase or contract for the purchase, from any other producer, any amount of electric energy necessary to enable the town to supplement its own generating capacity and thereby adequately meet the demands of its consumers; to purchase or contract for the purchase of any type or quantity of fuel necessary for the operation of its generators; and to purchase or contract for the purchase of any materials, supplies, equipment, parts or other items of tangible personal property of a unique design, quality or character or not readily obtainable on a competitive bid basis.
 - J. Account for the assets and liabilities and the profits and losses of said system in accordance with accepted principles of accounting for publicly owned utilities and to distribute to the general fund of the town, in each fiscal year, all or so much of the net profits of said system, reflected by such accounting, as will not impair the continued operation of said system on a self-supporting basis.
 - K. Without limitation or modification of the foregoing, exercise with respect to said system, and to the extent applicable, any of the powers conferred on the town elsewhere in this Charter.
 - L. And the obligation to extend electric service to all customers within its corporate limits, and with respect to existing customers of other electric companies within the corporate limits, the town shall take over such customers from any other electric company, so long as the town shall reimburse such electric company the depreciated book value of the distribution facilities dedicated to serving such customers.
 - M. And the obligation to extend electric service to all customers within an annexed area; however, with respect to existing customers of other electric companies located within such annexation, the town shall reimburse said electric companies for the depreciated book value of their distribution facilities dedicated to serving such customers. No electric company may extend electric service to any customer within the town's corporate limits (other than to existing customers of such electric company subject to the town's right to extend electric service to such customers as hereinbefore provided); whenever the town shall annex an area, no electric company may thereafter extend electric service to any customer within the boundaries of the annexation (other than to existing customers of such electric company and subject to the town's right to extend electric service to such customers as hereinbefore provided), as of the effective date of the annexation.
- (Res. of 12-19-1960, § 95; Res. No. 90-06, 9-10-1990; Res. No. 2006-10, 12-27-2006)
- Secs. C11-2 through C11-9. (Reserved)**
- Editor's note**—Former §§ C11-2, Establishment of Electric Utility Commission, purpose,

duties and responsibilities; C11-3, Specific authorities and limitations; C11-4, Number of Utility Commissioners, selection, term; C11-5, Compensation of Commissioners, meetings of Commission; C11-6, Selection of officers, duties of officers; C11-7, Examination of records, removal of Commissioners, appeal; C11-8, Electric Utility Manager; and C11-9, Street opening powers, all as added 5-24-1993 by Res. No. 1993-8, were repealed 6-9-1997 by Res. No. 1997-10, Article XII Special Assessments (§ C12-1 — § C12-2)

[ARTICLE XII. SPECIAL ASSESSMENTS]

Sec. C12-1. Power.

The town shall have the power to levy and collect taxes in the form of special assessments upon property in a limited and determinable area for special benefits conferred upon such property by the installation or construction of water mains, sanitary sewer mains, stormwater sewers, curbs and gutters and by the construction and paving of public ways and sidewalks or parts thereof, and to provide for the payment of all or any part of the cost of the above projects out of the proceeds of such special assessment. The cost of any project to be paid in whole or in part by special assessments may include the direct cost thereof and the cost of any land acquired for the project, as reflected in the principal amount of any bonds, notes or other evidences of indebtedness issued in anticipation of the collection of special assessments, the interest payable on such bonds, notes or other evidences of indebtedness, a reasonable charge for the services of the administrative staff of the town, and any other item of cost which may reasonably be attributed to the project.
(Res. of 12-19-1960, § 96)

Sec. C12-2. Procedure.

The procedure for special assessments, whenever authorized in this Charter, shall be as follows:

- A. The cost of the project being charged for shall be assessed according to the front-

foot rule of apportionment or some other equitable basis determined by the council.

- B. The amount assessed against any property for any project or improvement shall not exceed the value of the benefits accruing to the property therefrom nor shall any special assessment be levied which shall cause the total amount of special assessments levied by the town and outstanding against any property at any time, exclusive of delinquent installments, to exceed twenty-five per centum (25%) of the assessed value of the property after giving effect to the benefit accruing thereto from the project or improvement for which assessed.
- C. When desirable, the affected property may be divided into different classes to be charged different rates, but, except for this, any rate shall be uniform.
- D. All special assessment charges shall be levied by the council by ordinance. Before levying any special assessment charges, the council shall hold a public hearing. The administrative director [town administrator] shall cause notice to be given stating the nature and extent of the proposed project, the kind of materials to be used, the estimated cost of the project, the portion of the cost to be assessed, the number of installments in which the assessment may be paid, the method to be used in apportioning the cost and the limits of the proposed area of assessment. The notice shall also state the time and place at which all persons interested, or their agents or attorneys, may appear before the council and be heard concerning the proposed project and special assessment. Such notice shall be given by sending a copy thereof by mail to the owner of record of each parcel of property proposed to be assessed and to the person

in whose name the property is assessed for taxation and by publication of a copy of the notice at least once in a newspaper of general circulation in the town. The administrative director [town administrator] shall present at the hearing a certificate of publication and mailing of copies of the notice, which certificate shall be deemed proof of notice, but failure of any owner to receive the mailed copy shall not invalidate the proceedings. The date of hearing shall be set at least ten (10) and not more than thirty (30) days after the administrative director [town administrator] shall have completed publication and service of notice as provided in this section. Following the hearing, the council, in its discretion may vote to proceed with the project and may levy the special assessment.

- E. Any interested person feeling aggrieved by the levying of any special assessment under the provisions of this section shall have the right to appeal to the circuit court for Worcester County within ten (10) days after the levying of any assessment by the council.
- F. Special assessments may be made payable in annual or more frequent installments over such period of time, not to exceed ten (10) years, and in such manner as the council may determine. The council shall determine on what date installments shall be due and payable. Interest may be charged on installments at the rate to be determined by the council.
- G. All special assessment installments shall be overdue six (6) months after the date on which they became due and payable. All special assessments shall be liens on the property and all overdue special assessments shall be collected in the same manner as town taxes or by suit at law.

- H. All special assessments shall be billed and collected by the administrative director [town administrator].
(Res. of 12-19-1960, § 97; Res. No. 1996-11, 8-12-1996)

ARTICLE XIII. TOWN PROPERTY

Sec. C13-1. Acquisition, possession and disposal.

The town may acquire real, personal or mixed property within the corporate limits of the town for any public purpose by purchase, gift, bequest, devise, lease, condemnation or otherwise and may sell, lease or otherwise dispose of any property belonging to the town. All municipal property, funds and franchises of every kind belonging to or in the possession of the town on February 7, 1961, are vested in the town, subject to the terms and conditions thereof.
(Res. of 12-19-1960, § 98)

Sec. C13-2. Condemnation.

The town shall have the power to condemn property of any kind, or interest therein or franchise connected therewith, in fee or as an easement, within the corporate limits of the town, for any public purpose. Any activity, project or improvement authorized by the provisions of this Charter or any other state law applicable to the town shall be deemed to be a public purpose. The manner of procedure in case of any condemnation proceeding shall be that established in Article 33A of the Annotated Code of Maryland (1957 Edition).
(Res. of 12-19-1960, § 99)

Sec. C13-3. Town buildings.

The town shall have the power to acquire, obtain by lease or rent or purchase, construct, operate and maintain all buildings and structures it deems necessary for the operation of the town government.
(Res. of 12-19-1960, § 100)

Sec. C13-4. Protection of property.

The town shall have the power to do whatever may be necessary to protect town property and to keep all town property in good condition. (Res. of 12-19-1960, § 101)

ARTICLE XIV. URBAN RENEWAL

Sec. C14-1. Definitions.

Listed. The following terms wherever used or referred to in this article shall have the following meanings, unless a different meaning is clearly indicated by the context:

Blighted area—An area in which a majority of buildings have declined in productivity by reason of obsolescence, depreciation or other causes to an extent that they no longer justify fundamental repairs and adequate maintenance.

Bonds—Any bonds (including refunding bonds), notes, interim certificates, certificates of indebtedness, debentures or other obligations.

Federal government—Includes the United States of America or any agency or instrumentality, corporate or otherwise, of the United States of America.

Municipality—The Mayor and Council of Berlin.

Person—Any individual, firm, partnership, corporation, company, association, joint-stock association or body politic; and shall include any trustee, receiver, assignee or other person acting in similar representative capacity.

Slum area—Any area where dwellings predominate, which, by reason of depreciation, overcrowding, faulty arrangement or design, lack of ventilation, light or sanitary facilities, or any combination of these factors, are detrimental to the public safety, health or morals.

Urban renewal area—A slum area or a blighted area, or a combination thereof, which the municipality designates as appropriate for an urban renewal project.

Urban renewal plan—A plan, as it exists from time to time, for an urban renewal project, which plan shall be sufficiently complete to indicate such land acquisition, demolition and removal of structures, redevelopment, improvements and rehabilitation as may be proposed to be carried out in the urban renewal area, zoning and planning changes, if any, land uses, maximum density and building requirements.

Urban renewal project—Undertakings and activities of a municipality in an urban renewal area for the elimination and for the prevention of the development or spread of slums and blight and may involve slum clearance and redevelopment in an urban renewal area or rehabilitation or conservation in an urban renewal area, or any combination or part thereof, in accordance with an urban renewal plan. Such undertakings and activities may include:

- A. Acquisition of a slum area or a blighted area or portion thereof.
- B. Demolition and removal of buildings and improvements.
- C. Installation, construction or reconstruction of streets, utilities, parks, playgrounds and other improvements necessary for carrying out in the urban renewal area the urban renewal objectives of this article in accordance with the urban renewal plan.
- D. Disposition of any property acquired in the urban renewal area, including sale, initial leasing or retention by the municipality itself, at its fair value for uses in accordance with the urban renewal plan.
- E. Carrying out plans for a program of voluntary or compulsory repair and rehabil-

itation of buildings or other improvements in accordance with the urban renewal plan.

- F. Acquisition of any other real property in the urban renewal area where necessary to eliminate unhealthful, unsanitary or unsafe conditions, lessen density, eliminate obsolete or other uses detrimental to the public welfare or otherwise to remove or prevent the spread of blight or deterioration or to provide land for needed public facilities.
- G. The preservation, improvement or embellishment of historic structures or monuments.

(Res. of 1963, ch. 101, § 1)

Sec. C14-2. Powers.

The municipality is hereby authorized and empowered to:

- A. Carry out urban renewal projects which shall be limited to slum clearance in slum or blighted areas and the redevelopment or rehabilitation of slum or blighted areas.
- B. Acquire in connection with such projects, within the corporate limits of the municipality, land and property of every kind and any right, interest, franchise, easement or privilege therein, including land or property and any right or interest therein already devoted to public use, by purchase, lease, gift, condemnation or any other legal means; to sell, lease, convey, transfer or otherwise dispose of any of said land or property, regardless of whether or not it has been developed, redeveloped, altered or improved and irrespective of the manner or means in or by which it may have been acquired, to any private, public or quasi-public corporation, partnership, association, person or other legal entity. No land or property taken by the municipality for any of

the aforementioned purposes or in connection with the exercise of any of the powers which by this article are granted to the municipality by exercising the power of eminent domain shall be taken without just compensation, as agreed upon between the parties or awarded by a jury, being first paid or tendered to the party entitled to such compensation. All land or property needed or taken by the exercise of the power of eminent domain by the municipality for any of the aforementioned purposes or in connection with the exercise of any of the powers granted by this article is hereby declared to be needed or taken for public uses and purposes. Any or all of the activities authorized pursuant to this section shall constitute governmental functions undertaken for public uses and purposes, and the power of taxation may be exercised, public funds expended and public credit extended in furtherance thereof. The municipality is hereby granted the following additional powers which are hereby found and declared to be necessary and proper to carry into full force and effect the specific powers hereinbefore granted and to fully accomplish the purposes and objects contemplated by the provisions of this section:

- (1) To make or have made all surveys and plans necessary to the carrying out of the purposes of this article and to adopt or approve, modify and amend such plans, which plans may include but shall not be limited to plans for carrying out a program of voluntary or compulsory repair and rehabilitation of buildings and improvements; plans for the enforcement of codes and regulations relating to the use of land and the use and occupancy of buildings and improvements and to the compulsory repair, rehabilitation, demolition or

removal of buildings and improvements; and appraisals, title searches, surveys, studies and other plans and work necessary to prepare for the undertaking of urban renewal projects and related activities; and to apply for, accept and utilize grants of funds from the federal government for such purposes.

- (2) To prepare plans for the relocation of persons, including families, business concerns and others, displaced from an urban renewal area and to make relocation payments to or with respect to such persons for moving expenses and losses of property for which reimbursement or compensation is not otherwise made, including the making of such payments financed by the federal government.
- (3) To appropriate such funds and make such expenditures as may be necessary to carry out the purposes of this article, including the payment or reimbursement of reasonable actual costs incurred as a result of utility relocations when such relocations are made necessary by an urban renewal project, after making appropriate adjustment for any improvements or betterments to the utility's facilities made in connection with the relocation, and to levy taxes and assessments for such purposes; to borrow money and to apply for and accept advances, loans, grants, contributions and any other form of financial assistance from the federal government, the state, county or other public bodies, or from any sources, public or private, for the purposes of this article, and to give such security as may be required therefor; to invest

any urban renewal funds held in reserves or sinking funds, or any such funds not required for immediate disbursement, in property or securities which are legal investments for other municipal funds.

- (4) To hold, improve, clear or prepare for redevelopment any property acquired in connection with urban renewal projects; to mortgage, pledge, hypothecate or otherwise encumber such property; to insure or provide for the insurance of such property or operations of the municipality against any risks or hazards, including the power to pay premiums on any such insurance.
- (5) To make and execute all contracts and other instruments necessary or convenient to the exercise of its powers under this article, including the power to enter into agreement with any other public bodies or agencies which agreements may extend over any period, notwithstanding any provision or rule of law to the contrary; to include in any contract for financial assistance with the federal government for or with respect to an urban renewal project and related activities such conditions imposed pursuant to federal laws as the municipality may deem reasonable and appropriate.
- (6) To enter into any building or property in any urban renewal area in order to make inspections, surveys, appraisals, soundings or test borings and to obtain an order for this purpose from the circuit court for the county in which the municipality is situated in the event entry is denied or resisted.
- (7) To plan, replan, install, construct, reconstruct, repair, close or vacate

streets, roads, sidewalks, public utilities, parks, playgrounds and other public improvements in connection with an urban renewal project and to make exceptions from building regulations.

- (8) To generally organize, coordinate and direct the administration of the provisions of this article as they apply to such municipality in order that the objective of remedying slum and blighted areas and preventing the causes thereof within such municipality may be most effectively promoted and achieved.

- (9) To exercise all or any part or combination of powers herein granted.

(Res. of 1963, ch. 101, § 2)

Sec. C14-3. Establishment of agency.

The municipality may itself exercise all the powers granted by this article or may, if its legislative body by ordinance determines such action to be in the public interest, elect to have such powers exercised by a separate public body or agency as hereinafter provided. In the event said legislative body makes such determination, it shall proceed by ordinance to establish a public body or agency to undertake in the municipality the activities authorized by this article. Such ordinance shall include provisions establishing the number of members of such public body or agency, the manner of their appointment and removal and the terms of said members and their compensation. The ordinance may include such additional provisions relating to the organization of said public body or agency as may be necessary. In the event the legislative body enacts such an ordinance, all of the powers granted by this article to the municipality shall, from the effective date of said ordinance, be vested in the public body or agency thereby established, except:

- A. The power to pass a resolution to initiate an urban renewal project pursuant to § C14-4 of this article.

- B. The power to issue general obligation bonds pursuant to § C14-9 of this article.

- C. The power to appropriate funds and to levy taxes and assessments pursuant to § C14-2B(3) of this article.

(Res. of 1963, ch. 101, § 3)

Sec. C14-4. Initiation of project.

In order to initiate an urban renewal project, the legislative body of the municipality shall adopt a resolution which:

- A. Finds that one (1) or more slum or blighted areas exist in such municipality.
- B. Locates and defines the said slum or blighted areas.
- C. Finds that the rehabilitation, redevelopment or a combination thereof, of such area or areas, is necessary in the interest of the public health, safety, morals or welfare of the residents of such municipality.

(Res. of 1963, ch. 101, § 4)

Sec. C14-5. Preparation and approval of plan.

A. *Plan.* The municipality, in order to carry out the purposes of this article, shall prepare or cause to be prepared an urban renewal plan for slum or blighted areas in the municipality and shall formally approve such plan. Prior to its approval of an urban renewal project, the municipality shall submit such plan to the planning body of the municipality for review and recommendations as to its conformity with the master plan [comprehensive plan] for the development of the municipality as a whole. The planning body shall submit its written recommendation with respect to the proposed urban renewal plan to the municipality within sixty (60) days after receipt of the plan for review. Upon receipt of the recommendations of the planning body or, if no recommendations are received within said sixty (60) days, then without such recommenda-

tions, the municipality may proceed with a public hearing on the proposed urban renewal project. The municipality shall hold a public hearing on an urban renewal project after public notice thereof by publication in a newspaper having a general circulation within the corporate limits of the municipality. The notice shall describe the time, date, place and purpose of the hearing, shall generally identify the urban renewal area covered by the plan and shall outline the general scope of the urban renewal project under consideration. Following such hearing, the municipality may approve an urban renewal project and the plan therefor if it finds that:

- (1) A feasible method exists for the location of any families who will be displaced from the urban renewal area in decent, safe and sanitary dwelling accommodations within their means and without undue hardship to such families.
- (2) The urban renewal plan substantially conforms to the master plan[comprehensive plan] of the municipality as a whole.
- (3) The urban renewal plan will afford maximum opportunity, consistent with the sound needs of the municipality as a whole, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

B. *Modification.* An urban renewal plan may be modified at any time, provided that if modified after the lease or sale of real property in the urban renewal project area, the modification may be conditioned upon such approval of the owner, lessee or successor in interest as the municipality may deem advisable and in any event shall be subject to such rights at law or in equity as a lessee or purchaser, or his successor or successors in interest, may be entitled to assert. Where the proposed modification will substantially change the urban renewal plan as previously approved by the municipality, the modification shall be formally approved by the municipality as in the case of an original plan.

C. *Approval.* Upon the approval by the municipality of an urban renewal plan or of any modification thereof, such plan or modification shall be deemed to be in full force and effect for the respective urban renewal area and the municipality may then cause such plan or modification to be carried out in accordance with its terms.

(Res. of 1963, ch. 101, § 5)

Sec. C14-6. Disposal of property in area.

A. *Conveyance.* The municipality may sell, lease or otherwise transfer real property or any interest therein acquired for it by an urban renewal project, for residential, recreational, commercial, industrial, educational or other uses or for public use, or may retain such property or interest for public use, in accordance with the urban renewal plan, subject to such covenants, conditions and restrictions, including covenants running with the land, as it may deem to be necessary or desirable to assist in preventing the development or spread of future slums or blighted area or to otherwise carry out the purposes of this article. The purchasers or lessees and their successors and assigns shall be obligated to devote such real property only to the uses specified in the urban renewal plan and may be obligated to comply with such other requirements as the municipality may determine to be in the public interest, including the obligation to begin within a reasonable time any improvements on such real property required by the urban renewal plan. Such real property or interest shall be sold, leased, otherwise transferred or retained at not less than its fair value for uses in accordance with the urban renewal plan. In determining the fair value of real property for uses in accordance with the urban renewal plan, the municipality shall take into account and give consideration to the uses provided in such plan; the restrictions upon and the covenants, conditions and obligations assumed by the purchaser or lessee or by the municipality retaining the property; and the objectives of such plan for the prevention of the recurrence of

slum or blighted areas. The municipality in any instrument of conveyance to a private purchaser or lessee may provide that such purchaser or lessee shall be without power to sell, lease or otherwise transfer the real property without the prior written consent of the municipality until he has completed the construction of any or all improvements which he has obligated himself to construct thereon. Real property acquired by the municipality which, in accordance with the provisions of the urban renewal plan, is to be transferred, shall be transferred as rapidly as feasible in the public interest consistent with the carrying out of the provisions of the urban renewal plan. Any contract for such transfer and the urban renewal plan, or such part or parts of such contract or plan as the municipality may determine, may be recorded in the land records of the county in which the municipality is situated in such manner as to afford actual or constructive notice thereof.

B. *Procedure.* The municipality may dispose of real property in an urban renewal area to private persons only under such reasonable competitive bidding procedures as it shall prescribe or as hereinafter provided in this subsection:

- (1) The municipality may, by public notice by publication in a newspaper having a general circulation in the community [not less than sixty (60) days prior to the execution of any contract to sell, lease or otherwise transfer real property and prior to the delivery of any instrument of conveyance with respect thereto under the provisions of this section] invite proposals from and make available all pertinent information to private redevelopers or any persons interested in undertaking to redevelop or rehabilitate an urban renewal area or any part thereof.
- (2) Such notice shall identify the area or portion thereof and shall state that proposals shall be made by those interested within a specified period of not

less than sixty (60) days after the first day of publication of said notice and that such further information as is available may be obtained at such office as shall be designated in said notice.

- (3) The municipality shall consider all such redevelopment or rehabilitation proposals and the financial and legal ability of the persons making such proposal to carry them out and may negotiate with any persons for proposals for the purchase, lease or other transfer of any real property acquired by the municipality in the urban renewal area.
- (4) The municipality may accept such proposal as it deems to be in the public interest and in furtherance of the purposes of this article.
- (5) Thereafter, the municipality may execute and deliver contracts, deeds, leases and other instruments and take all steps necessary to effectuate such transfers.

C. *Temporary use.* The municipality may temporarily operate and maintain real property acquired by it in an urban renewal area for or in connection with an urban renewal project pending the disposition of the property as authorized in this article, without regard to the provisions of subsection A above, for such uses and purposes as may be deemed desirable even though not in conformity with the urban renewal plan.

D. *Compliance with law.* Any instrument executed by the municipality and purporting to convey any right, title or interest in any property under this article shall be conclusively presumed to have been executed in compliance with the provisions of this article insofar as title or other interest of any bona fide purchaser, lessee or transferee of such property is concerned.

(Res. of 1963, ch. 101, § 6)

Sec. C14-7. Eminent domain.

Condemnation of land or property under the provisions of this article shall be in accordance with the procedure provided in Article 33A of the Annotated Code of Maryland (1957 Edition, as amended) and acts amendatory thereof or supplementary thereto.

(Res. of 1963, ch. 101, § 7)

Sec. C14-8. Encouragement of private enterprise.

The municipality, to the greatest extent it determines to be feasible in carrying out the provisions of this article, shall afford maximum opportunity, consistent with the sound needs of the municipality as a whole, to the rehabilitation or redevelopment of any urban renewal area by private enterprise. The municipality shall give consideration to this objective in exercising its powers under this article.

(Res. of 1963, ch. 101, § 8)

Sec. C14-9. General obligation bonds.

For the purpose of financing and carrying out of an urban renewal project and related activities, the municipality may issue and sell its general obligation bonds. Any bonds issued by the municipality pursuant to this section shall be issued in the manner and within the limitations prescribed by applicable law for the issuance and authorizations of general obligation bonds by such municipality and also within such limitations as shall be determined by said municipality.

(Res. of 1963, ch. 101, § 9)

Sec. C14-10. Revenue bonds.

A. Authority. In addition to the authority conferred by § C14-9 of this article, the municipality shall have the power to issue revenue bonds to finance the undertaking of any urban renewal project and related activities, and shall also have the power to issue refunding bonds for the payment or retirement of such bonds previously

issued by it. Such bonds shall be made payable, as to both principal and interest, solely from the income, proceeds, revenues and funds of the municipality derived from or held in connection with its undertaking and carrying out of urban renewal projects under this article; provided, however, that payment of such bonds, both as to principal and interest, may be further secured by a pledge of any loan, grant or contribution from the federal government or other source, in aid of any urban renewal projects of the municipality under this article, and by a mortgage of any such urban renewal projects, or any part thereof, title to which is in the municipality. In addition, the municipality may enter into an indenture of trust with any private banking institution of this state having trust powers and may make in such indenture of trust such covenants and commitments as may be required by any purchaser for the adequate security of said bonds.

B. Provisions. Bonds issued under this section shall not constitute an indebtedness within the meaning of any constitutional or statutory debt limitation or restriction, shall not be subject to the provisions of any other law or charter relating to the authorization, issuance or sale of bonds and are hereby specifically exempted from the restrictions contained in §§ 9, 10 and 11 of Article 31 of the Annotated Code of Maryland (1967 Edition, as amended). Bonds issued under the provisions of this article are declared to be issued for an essential public and governmental purpose and, together with interest thereon and income therefrom, shall be exempted from all taxes.

C. Issuance. Bonds issued under this section shall be authorized by resolution or ordinance of the legislative body of the municipality and may be issued in one (1) or more series and shall bear such date or dates, shall mature at such time or times, bear interest at such rate or rates, not exceeding six per centum (6%) per annum, be in such denomination or denominations, be in such form either with or without

coupon or registered, carry such conversion or registration privileges, have such rank or priority, be executed in such manner, be payable in such medium or payment at such place or places, and be subject to such terms of redemption (with or without premium), be secured in such manner, and have such other characteristics as may be provided by such resolution or trust indenture or mortgage issued pursuant thereto.

D. *Sale.* Such bonds may be sold at not less than par at public sales held after notice published prior to such sale in a newspaper having a general circulation in the area in which the municipality is located and in such other medium of publication as the municipality may determine or may be exchanged for other bonds on the basis of par, provided that such bonds may be sold to the federal government at private sale at not less than par, and, in the event less than all of the authorized principal amount of such bonds is sold to the federal government, the balance may be sold at private sale at not less than par at an interest cost to the municipality of not to exceed the interest cost to the municipality of the portion of the bonds sold to the federal government.

E. *Signatures.* In case any of the public officials of the municipality whose signatures appear on any bonds or coupons issued under this article shall cease to be such officials before the delivery of such bond, or, in the event that any such officials shall have become such after the date of issue thereof, said bonds shall nevertheless be valid and binding obligations of said municipality in accordance with their terms. Any provision of any law to the contrary notwithstanding, any bonds issued pursuant to this article shall be fully negotiable.

F. *Enforceability.* In any suit, action or proceeding involving the validity or enforceability of any bond issued under this article or the security therefor, any such bond reciting in substance that it has been issued by the municipality in connection with an urban renewal project, as herein defined, shall be conclusively deemed to

have been issued for such purpose and such project shall be conclusively deemed to have been planned, located and carried out in accordance with the provisions of this article.

G. *Investments.* All banks, trust companies, bankers, savings banks and institutions, building and loan associations, savings and loan associations, investment companies and other persons carrying on a banking or investment business; all insurance companies, insurance associations and other persons carrying on an insurance business; and all executors, administrators, curators, trustees and other fiduciaries may legally invest any sinking funds, moneys or other funds belonging to them or within their control in any bonds or other obligations issued by the municipality pursuant to this article, provided that such bonds and other obligations shall be secured by an agreement between the issuer and the federal government in which the issuer agrees to borrow from the federal government and the federal government agrees to lend to the issuer, prior to the maturity of such bonds or other obligations, moneys in an amount which (together with any other moneys irrevocably committed to the payment of principal and interest on such bonds or other obligations) will suffice to pay the principal of such bonds or other obligations with interest to maturity thereon, which moneys under the terms of said agreement are required to be used for the purpose of paying the principal of and the interest on such bonds or other obligations at their maturity. Such bonds and other obligations shall be authorized security for all public deposits. It is the purpose of this section to authorize any persons, political subdivisions and officers, public or private, to use any funds owned or controlled by them for the purchase of any such bonds or other obligations. Nothing contained in this section with regard to legal investments shall be construed as relieving any person of any duty of exercising reasonable care in selecting securities.
(Res. of 1963, ch. 101, § 10)

ARTICLE XV. GENERAL PROVISIONS**Sec. C15-1. Oath of office.**

A. Before entering upon the duties of their offices, the mayor, the councilmen, the administrative director [town administrator], the members of the board of supervisors of elections and all other persons elected or appointed to any office of profit or trust in the town government shall take and subscribe the following oath or affirmation:

"I, _____, do swear (or affirm, as the case may be), that I will support the Constitution of the United States; and that I will be faithful and bear true allegiance to the State of Maryland, and support the Constitution and Laws thereof; and that I will, to the best of my skill and judgment, diligently and faithfully, without partiality or prejudice, execute the office of _____, according to the Constitution and Laws of this State."

B. The mayor shall take and subscribe this oath or affirmation before the clerk of the circuit court for Worcester County or before one (1) of the sworn deputies of the clerk. All other persons taking and subscribing the oath shall do so before the mayor.

(Res. of 12-19-1960, § 102; Res. No. 1996-11, 8-12-1996)

Sec. C15-2. Official bonds.

The administrative director [town administrator] and such other officers or employees of the town, as the council or this Charter may require, shall give bond in such amount and with such surety as may be required by the council. The premiums on such bonds shall be paid by the town.

(Res. of 12-19-1960, § 103; Res. No. 1996-11, 8-12-1996)

Sec. C15-3. Prior rights and obligations.

All right, title and interest held by the town or any other person or corporation on February 7, 1961, in and to any lien acquired under any prior Charter of the town are hereby preserved for the holder in all respects as if this Charter had not been adopted, together with all rights and remedies in relation thereto. This Charter shall not discharge, impair or release any contract, obligation, duty, liability or penalty whatever existing on February 7, 1961. All suits and actions, both civil and criminal, pending or which may hereafter be instituted for causes of action now existing or offenses already committed against any law or ordinance repealed by this Charter, shall be instituted, proceeded with and prosecuted to final determination and judgment as if this Charter had not become effective.

(Res. of 12-19-1960, § 104)

Sec. C15-4. Penalties.

A. Every act or omission which, by ordinance, is made a misdemeanor under the authority of this Charter, unless otherwise specified as a municipal infraction, shall be punishable, upon conviction before any judge in the district court of Maryland or circuit court for Worcester County, by a fine not exceeding one thousand dollars (\$1,000.[00]) or imprisonment for six (6) months in the county jail, or both, in the discretion of the judge. The party aggrieved shall have the right to appeal as is now provided under the general laws of the state. Where the act or omission is of a continuing nature and is persisted in, a conviction for one (1) offense shall not be a bar to a conviction for a continuation of the offense subsequent to the first or any succeeding conviction.

B. Infractions.

- (1) The council may provide that violations of any municipal ordinance shall be a municipal infraction unless that violation is declared to be a felony or misde-

meanor by the laws of the state or other ordinance. For purposes of this article, a municipal infraction is a civil offense.

- (2) A fine not to exceed four hundred dollars (\$400.[00]) may be imposed for each conviction of a municipal infraction. The fine is payable by the offender to the municipality within twenty (20) calendar days of receipt of a citation. Repeat offenders may be assessed a fine not to exceed four hundred dollars (\$400.[00]) for each repeat offense, and each day a violation continues shall constitute a separate offense.
- (3) Any person receiving a citation for an infraction may elect to stand trial for the offense by notifying the town in writing of this intention at least five (5) days prior to the date set for payment of the fine. Failure to pay the fine or to give notice of intent to stand trial may result in an additional fine or adjudication by the court.
- (4) Adjudication of a municipal infraction is not a criminal conviction for any purpose nor does it impose any of the civil disabilities ordinarily imposed by a criminal conviction.

(Res. of 12-19-1960, § 105; Res. of 3-20-1978; Res. of 11-20-1978; Res. No. 1992-11, 9-28-1992)

Editor's note—Sections C7-23, C15-4 and C15-6 amended during the 1977 codification. Other amendments noted where applicable.

Sec. C15-5. Effect of Charter on existing ordinances.

A. All ordinances, resolutions, rules and regulations in effect in the town on February 7, 1961, which are not in conflict with the provisions of this Charter shall remain in effect until changed or repealed according to the provisions of this Charter.

B. All ordinances, resolutions, rules and regulations in effect in the town on February 7, 1961, which are in conflict with the provisions of this Charter be and the same hereby are repealed to the extent of such conflict.

(Res. of 12-19-1960, § 106)

Sec. C15-6. Severability.

If any section or part of a section of this Charter, or the application thereof to any person or circumstances, is held invalid by a court of competent jurisdiction, this holding shall not affect the remainder of this Charter or the context in which such section or part of section so held invalid appears, and the application of such provisions to persons or circumstances other than those as to which it is held invalid shall not be affected thereby, except to the extent that an entire section or part of section may be inseparably connected in meaning and effect with the section or part of section to which such holding shall directly apply. The powers conferred by this article shall be in addition and supplemental to the powers conferred by any other law.

(Res. of 1963, ch. 101, § 11; Res. of 3-20-1978)

Editor's note—Sections C7-23, C15-4 and C15-6 amended during the 1977 codification. Other amendments noted where applicable.

CHARTER COMPARATIVE TABLE

RESOLUTIONS

This table shows the location of the sections of the basic Charter and any amendments thereto.

Resolution Number	Date	Section	Section this Charter
	12-19-1960	8	C1-1
		9	C2-1
		11—21	C3-1
		22—25	C3-3— C3-13
		26—28	C4-1— C4-4
		30—42	C5-1— C5-3
		44, 45	C6-2— C6-14
		49—68	C6-16, C6-17
		69—77	C7-4— C7-23
		78—81	C8-1— C8-9
		82—84	C9-1—C9-4
		86—94	C10-1—C10-3
		95	C10-5—C10-13
		96, 97	C11-1
		98—101	C12-1, C12-2
		102—106	C13-1—C13-4
	1963	ch. 101, § 1—	C15-1—C15-5
		ch. 101, § 10	C14-1—C14-10
		ch. 101, § 11	C15-6
	3-11-1964		C6-8
	11-13-1967		C6-14
	1-22-1968		C3-6, C3-7
	7-28-1969		C2-2
	7-23-1971		C2-3
	7- 7-1975		C7-20
	3-20-1978		C7-23
			C15-4
			C15-6
	11-20-1978		C15-4
	1-21-1980		C2-4
	2-16-1981		C7-20
	9-21-1981		C5-1
	3-15-1982		C2-5
	7- 2-1982	1	C7-19.1
1988-3	3-14-1988		C6-8, C6-9
1988-4	3-14-1988		C6-9
88-11	11-28-1988		C4-4
88-12	11-28-1988		C4-4
89-4	3-27-1989		C7-23

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Resolution Number	Date	Section	Section this Charter
1989-3	4-24-1989		C2-5.1
1989-8	7-10-1989		C2-5.2
1989-10	11-27-1989		C6-9
90-06	9-10-1990		C11-1
91-1	1-17-1991		C7-11
91-2	3-11-1991		C7-23
91-4	6-24-1991		C7-15
1991-8	8-26-1991		C2-6
1992-4	5-11-1992		C6-14
1992-10	8-24-1992		C6-10.1
1992-11	9-28-1992		C15-4
1992-12	10-12-1992		C4-2
1992-16	11-23-1992		C7-11
1992-14	12-28-1992		C2-7
1993-4	2-22-1993		C6-2
1993-5	8- 9-1993		C2-8
1993-18	11- 8-1993		C7-20
1994-5	4-11-1994		C7-20
1994-10	6-27-1994		C6-6
			C6-8
			C6-10
			C6-12
1996-4	3-11-1996		C6-14
1996-10	8-12-1996		C8-1
1996-11	8-12-1996		C3-4
			C3-11—C3-13
			C6-9
			C7-4, C7-5
			C7-14
			C7-16
			C7-23
			C8-5
			C12-2
			C15-1, C15-2
1996-4	10-21-1996		C7-11
1996-15	11- 4-1996		C3-4
1997-14	7-14-1997		C7-23
1997-16	10-20-1997		C2-9
1997-18	11-24-1997		C2-10
1997-21	1-26-1998		C2-11
1998-7	7-13-1998		C2-12
1998-12	11- 9-1998		C2-12.1
1999-2	4-26-1999		C2-13
1999-12	6- 7-1999		C7-23
1999-11	8-23-1999		C2-14
1999-14	12-27-1999		C2-15
2000-01	4-24-2000		C2-16
2000-7	10- 9-2000		C2-17
2001-1	2-12-2001		C7-23

CHARTER COMPARATIVE TABLE

Resolution Number	Date	Section	Section this Charter
2001-2	6-11-2001		C2-18
2003-07	3- 8-2004		C2-19
2004-03	4-12-2004		C2-20
2004-06	4-26-2004		C2-21
2005-03	12-12-2005		C2-22
2006-03	4-10-2006		C7-15
			C7-15.1
2006-02	6-12-2006		C2-23
2006-09	12-11-2006		C5-1
2006-10	12-27-2006		C11-1
2008-11	12- 8-2008		C8-1
2009-04	7-27-2009		C2-24
2009-15	9-28-2009		C7-20
2010-02	3-22-2010		C6-6
2010-03	3-22-2010		C6-8
2010-04	3-22-2010		C6-9
2011-01	2-14-2011		C2-25
2013-09	10-28-2013		C6-9 B.
		Added	C6-9 C.
2013-10	10-28-2013		C3-1
2013-11	10-28-2013		C3-4
2013-12	10-28-2013		C4-1
2013-13	10-28-2013		C6-8
2014-06	3-23-2015	Added	C2-26
2015-03	5-11-2015	Added	C2-27
2015-11	8-10-2015		C7-23
2019-03	5-28-2019	Added	C2-28
2019-07	10-28-2019	Added	C2-29
2020-01	2-10-2020	Added	C2-30

PART II
CODE OF ORDINANCES

Subpart A
ADMINISTRATIVE LEGISLATION

Chapter 1

GENERAL PROVISIONS

- Sec. 1-1. Adoption of Code.
- Sec. 1-2. Definitions and rules of construction.
- Sec. 1-3. Catchlines of sections.
- Sec. 1-4. References to chapters, sections.
- Sec. 1-5. History notes.
- Sec. 1-6. References and editor's notes.
- Sec. 1-7. Code supersedes prior ordinances.
- Sec. 1-8. Copy of Code on file.
- Sec. 1-9. Amendments to Code.
- Sec. 1-10. Publication; filing.
- Sec. 1-11. Code book to be kept up-to-date.
- Sec. 1-12. Procedure for amending Code; amendatory language.
- Sec. 1-13. Additions and amendments deemed incorporated in Code.
- Sec. 1-14. Supplementation of Code.
- Sec. 1-15. Altering or tampering with Code; penalties for violation.
- Sec. 1-16. Severability of Code provisions.
- Sec. 1-17. Severability of ordinance provisions.
- Sec. 1-18. Repeal of certain ordinances.
- Sec. 1-19. Effect of repeal of ordinances.
- Sec. 1-20. Ordinances saved from repeal.
- Sec. 1-21. Provisions considered continuation of existing ordinances.
- Sec. 1-22. Deposit of copies with state agencies.
- Sec. 1-23. Violations and penalties.

Sec. 1-1. Adoption of Code.

The ordinances and resolutions included in this and the following chapters and sections shall constitute and be designated the Code of the Town of Berlin, Maryland, and may also be cited as the Berlin Code.

(Code 1977, § 1-1; Ord. of 3-20-1978)

Charter reference—Authority to provide for codification of ordinances, § C5-1(B)(11).

State law references—Authority to codify, Md. Ann. Code art. 23A, §§ 2(b)(1), 17D; compilation and publication of town regulations required, Md. Ann. Code art. 24, § 3-101.

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code, and of all ordinances, the following definitions and rules of construction shall be observed, unless such construction would be inconsistent with the manifest intent of the quorum court:

Generally. All words and phrases are to be construed and understood according to the common and approved usage of language. Technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in the law are to be construed and understood according to such peculiar and appropriate meaning.

Board, committee, commission. Whenever a reference is made to a board, committee or commission, it shall mean and refer to that of the Town of Berlin, Maryland.

Charter. The term "Charter" means the Charter of the Town of Berlin as printed in Part I of this volume.

Code. The term "Code" means the Code of the Town of Berlin, Maryland, as designated in section 1-1.

Computation of time. In computing any period of time prescribed or allowed, the day of the act, event, or default, after which the designated period of time begins to run is not to be in-

cluded. The last day of the period so computed is to be included unless it is a Saturday, Sunday or a legal holiday, in which event the period runs until the end of the next day, which is neither a Saturday, Sunday or a holiday. When the period of time allowed is more than seven days, intermediate Saturdays, Sundays and holidays shall be considered as other days; but if the period of time allowed is seven days or less, intermediate Saturdays, Sundays and holidays shall not be counted in computing the period of time.

State law reference—Similar provision, Md. Ann. Code art. 1, § 36.

County. The term "county" means and refers to the County of Worcester, Maryland.

Gender. Words importing one gender include and apply to the other genders as well.

State law reference—Similar provisions, Md. Ann. Code art. 1, § 7.

May. The term "may" is to be construed as being permissive.

May not. The phrase "may not" or phrases of like import have a mandatory negative effect and state a prohibition.

State law reference—Similar provisions, Md. Ann. Code art. 1, § 26.

Month. The term "month" means a calendar month.

Must. The term "must" is to be construed as being mandatory.

Nontechnical and technical words. Words and phrases shall be construed according to the common and approved usage of the language, but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

Number. Words used in the singular include the plural, and the plural include the singular number.

State law reference—Similar provisions, Md. Ann. Code art. 1, § 8.

Oath. The term "oath" shall be construed to include an affirmation or declaration in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the terms "swear" and "sworn" shall be equivalent to the terms "affirm" and "affirmed."

State law reference—Oath includes affirmation, Md. Ann. Code art. 1, § 9.

Officials, departments, employees. Whenever a reference is made to an officer, employee or department, it shall mean and refer to that of the Town of Berlin.

Owner. The term "owner," applied to any property, means and includes any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such property.

Person. The term "person" means and includes a corporation, company, partnership, association or society as well as a natural person. The term "person" includes all governmental entities and agencies other than the town.

State law reference—Similar provisions, Md. Ann. Code art. 1, § 15.

Personal property. The term "personal property" includes all tangible and intangible property other than real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" means and includes real and personal property.

Real property. The term "real property" means and includes lands, tenements and hereditaments.

Shall. The term "shall" is to be construed as being mandatory.

Sidewalk. The term "sidewalk" means that portion of a street between the curblin and the adjacent property intended for the use of pedestrians.

Signature or subscription. The term "signature" or "subscription" includes a mark when the person cannot write, his name being written near it and witnessed by a person who writes his own name as witness.

State. The term, "the state" or "this state" shall be construed to mean the State of Maryland.

State statutes. The abbreviations "Md. Ann. Code art." and "Md. (title of code) Code Ann." mean and refer to the Maryland state law as amended.

Tenant, occupant. The terms "tenant" and "occupant," applied to a building or land, mean and include any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Town. The term "town" means the Town of Berlin, Maryland.

Town council. The term "town council" means and refers to the town council of the Town of Berlin.

Writing. The term "writing" means and includes printing.

State law reference—Similar definitions for the state code, Md. Ann. Code art. 1, §§ 1—36.

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections and shall not be deemed or taken to be titles of such sections, nor as any part of such sections, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

Sec. 1-4. References to chapters, sections.

All references in this Code to chapters or sections are to chapters or sections of this Code unless otherwise specified.

Sec. 1-5. History notes.

All statements of legislative history (history notes) appearing after sections which state the origin and amendment of the section of this Code are provided for the convenience of the user and are not intended to have any legal effect.

Sec. 1-6. References and editor's notes.

All editor's notes, Charter references and state law references appearing in footnote form in this Code are provided for the convenience of the user of the Code and are not meant to be of any legal effect.

Sec. 1-7. Code supersedes prior ordinances.

This chapter and the Code shall supersede all other general and permanent ordinances enacted prior to the enactment of this Code, except such ordinances as are hereinafter expressly saved from repeal or continued in force. (Code 1977, § 1-2; Ord. of 3-20-1978)

Sec. 1-8. Copy of Code on file.

A copy of the Code in looseleaf form has been filed in the office of the town administrator and shall remain there for use and examination by the public until final action is taken on this chapter, and, if this chapter shall be adopted, such copy shall be certified to by the town administrator by impressing thereon the Seal of the Town, and such certified copy shall remain on file in the office of the town administrator, to be made available to persons desiring to examine the same during all times while said Code is in effect. (Code 1977, § 1-4; Ord. of 3-20-1978)

Sec. 1-9. Amendments to Code.

Any and all additions, amendments or supplements to the Code, when passed and adopted in such form as to indicate the intent of the governing body to make them a part thereof, shall be deemed to be incorporated into such Code so that reference to the Code of the Town of Berlin shall be understood and intended to include such additions and amendments. Whenever such additions, amendments or supplements to the Code shall be adopted, they shall thereafter be printed and, as provided hereunder, inserted in the looseleaf book containing said Code, as amendments and supplements thereto.

(Code 1977, § 1-5; Ord. of 3-20-1978)

Sec. 1-10. Publication; filing.

The town administrator, pursuant to law, shall cause to be published in the manner required, a copy of this adopting ordinance in a newspaper of general circulation in the town. Sufficient copies of the Code shall be maintained in the office of the town administrator for inspection by the public at all times during regular office hours. The enactment and publication of this adopting ordinance, coupled with availability of copies of the Code for inspection by the public, shall be deemed, held and considered to be due and legal publication of all provisions of the Code for all purposes.

(Code 1977, § 1-6; Ord. of 3-20-1978)

Sec. 1-11. Code book to be kept up-to-date.

It shall be the duty of the town administrator, or someone authorized and directed by him, to keep up-to-date the certified copy of the book containing the Code required to be filed in his office for the use of the public. All changes in said Code and all ordinances adopted subsequent to the effective date of this codification, which shall be adopted specifically as part of the Code, shall, when finally adopted, be included therein by reference until such changes

or new ordinances are printed as supplements to said Code book, at which time such supplements shall be inserted therein.

(Code 1977, § 1-7; Ord. of 3-20-1978)

Sec. 1-12. Procedure for amending Code; amendatory language.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion in this Code. In the case of repealed chapters, sections or subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new Code of Ordinances.

(b) Amendments to any of the sections of this Code shall be made by amending such sections by specific reference to the section number of this Code in the following language: "Section _____ of the Code of the Town of Berlin is amended to read as follows: The new provisions shall then be set out in full.

(c) If a new section not heretofore existing in the Code is to be added, the following language shall be used: "The Code of the Town of Berlin, Maryland is amended by adding a section (article, etc.) to read as follows:" The provisions shall then be set out in full.

(d) All sections, articles, chapters or other provisions of this Code desired to be repealed should be specifically repealed by section number, article number, chapter or other number, as the case may be.

Sec. 1-13. Additions and amendments deemed incorporated in Code.

Any and all additions and amendments to this Code, when passed in such form as to indicate

the intention of the county commission to make the addition or amendment a part of the Code, shall be deemed to be incorporated in this Code, so that reference to the Code shall be understood and intended to include such additions and amendments. In addition, any addition to this Code that was not passed in such form, but that has been published in this Code, shall be considered a part of this Code.

Sec. 1-14. Supplementation of Code.

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the town. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed during the period covered by the supplement and all changes made thereby in this Code. The pages of a supplement shall be so numbered that they will fit properly into this Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, this Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of this Code which have been repealed shall be excluded from this Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified Code. For example, the codifier may:

- (1) Organize the ordinance material into appropriate subdivisions.
- (2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement and make changes in such catchlines, headings and titles.

- (3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers.
- (4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____," inserting section numbers to indicate the sections of this Code which embody the substantive sections of the ordinance incorporated into this Code.
- (5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into this Code; but, in no case, shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in this Code.

Sec. 1-15. Altering or tampering with Code; penalties for violation.

It shall be unlawful for anyone to improperly change or amend, by additions or deletions, any part or portion of the Code or to alter or tamper with such Code in any manner whatsoever which will cause the law of the Town of Berlin to be misrepresented thereby. Any violation of this section shall be punishable as a misdemeanor, the penalty for which shall not exceed a fine of \$100.00 and imprisonment for a term not to exceed 90 days.
(Code 1977, § 1-9; Ord. of 3-20-1978)

Sec. 1-16. Severability of Code provisions.

Each section of this Code and every part of each section is an independent section or part of a sections, and the holding of any section or a part thereof to be unconstitutional, void or

ineffective for any cause shall not be deemed to affect the validity or constitutionality of any other section or parts thereof.

(Code 1977, § 1-10; Ord. of 3-20-1978)

Sec. 1-17. Severability of ordinance provisions.

Each section of this Code or any ordinance is an independent section, and the holding of any section or part thereof to be unconstitutional, void or ineffective for any cause shall not be deemed to affect the validity or constitutionality of any other sections or parts thereto.

(Code 1977, § 1-11; Ord. of 3-20-1978)

Sec. 1-18. Repeal of certain ordinances.

All ordinances or parts of ordinances of a general and permanent nature adopted and in force on the date of the adoption of this Code and not contained in this Code or saved from repeal in this Code are hereby repealed as of the effective date of the ordinance adopting this Code, except as hereinafter provided.

(Code 1977, § 1-12; Ord. of 3-20-1978)

Sec. 1-19. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect nor any suit, prosecution or proceeding pending at the time of the repeal for an offense committed under the ordinance repealed.

Sec. 1-20. Ordinances saved from repeal.

(a) The adoption of this Code and the repeal of ordinances provided for in section 1-18 shall not affect the following ordinances, rights and obligations, which are hereby expressly saved from repeal.

- (1) Any ordinance adopted subsequent to the last ordinance included in this Code.

- (2) Any right or liability established, accrued or incurred under any legislative provision prior to the effective date of the ordinance adopting this Code or any action or proceeding brought for the enforcement of such right or liability.
 - (3) Any offense or act committed or done before the effective date of the ordinance adopting this Code in violation of any legislative provision or any penalty, punishment or forfeiture which may result therefrom.
 - (4) Any prosecution, indictment, action, suit or other proceeding pending or any judgment rendered, prior to the effective date of the ordinance adopting this Code, brought pursuant to any legislative provision.
 - (5) Any franchise, license, right, easement or privilege granted or conferred.
 - (6) Any ordinance providing for the laying out, opening, altering, widening, relocating, straightening, establishing of grade, changing of name, improvement, acceptance or vacation of any right-of-way, easement, street, road, highway, park or other public place, or any portion thereof.
 - (7) Any ordinance or resolution appropriating money or transferring funds, promising or guaranteeing the payment of money or authorizing the issuance and delivery of any bond or other instruments or evidence of the town's indebtedness.
 - (8) Ordinances authorizing the purchase, sale, lease or transfer of property or any lawful contract or obligation.
 - (9) The levy or imposition of taxes, assessments or charges.
 - (10) The dedication of property or approval of preliminary or final subdivision plats.
 - (11) Ordinances establishing the amount and manner of payment of salaries or compensation of officers and employees, establishing workdays and working hours of certain employees, and providing for holidays and vacations for employees and keeping of employment records and any personnel rules or policies or benefits.
 - (12) Any comprehensive plan or land use amendments or rezonings and any ordinance making any change or revision in the zoning map.
 - (13) Electrical rules and regulations adopted March 20, 1973, and any amendments thereto and rate changes.
 - (14) Any ordinance prescribing traffic regulations for specific locations.
 - (15) Any ordinance which is temporary, although general in effect.
 - (16) Any ordinance which is special, although permanent in effect.
- (b) All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code. (Code 1977, § 1-13; Ord. of 3-20-1978)

Sec. 1-21. Provisions considered continuation of existing ordinances.

The provisions of this Code, so far as they are the same as ordinances existing at the time of adoption of this Code, shall be considered as a continuation thereof and not as new enactments.

Sec. 1-22. Deposit of copies with state agencies.

Pursuant to Md. Ann. Code art. 23, § 9A, a copy of the Code of the Town of Berlin containing the Charter shall be deposited with the required state agencies.

(Code 1977, § 1-15; Ord. of 3-20-1978)

State law reference—Certain documents to be filed with the state department of legislative services, Md. Ann. Code art. 23A, § 9A.

Sec. 1-23. Violations and penalties.

Unless otherwise provided in the Berlin Code, or unless otherwise specified as a municipal infraction, any violation of the Code of the Town of Berlin, Maryland, shall be punishable as a misdemeanor, the penalty for which shall not exceed a fine of \$1,000.00 and/or imprisonment for a term not to exceed six months.

(Code 1977, § 1-16; Ord. of 3-20-1978; Ord. No. 1993-3, 2-22-1993)

Charter reference—Penalty for violations, § C15-4.

State law reference—Violation of Code, etc., Md. Ann. Code art. 23A, § 3.

Chapter 2

ADMINISTRATION

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- Sec. 2-19. Short title.
- Sec. 2-20. Statement of purpose and policy.
- Sec. 2-21. Definitions.
- Sec. 2-22. Administration.
- Sec. 2-23. Prohibited conduct and interests.
- Sec. 2-24. Financial disclosure—Elected officials, officials, and employees.
- Sec. 2-25. Financial disclosure—Appointed members of boards and commissions.
- Sec. 2-26. Lobbying.
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- Sec. 2-308. Definitions.
- Sec. 2-309. Grounds for indemnification.
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Sec. 2-367. Definitions.
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Sec. 2-374. Bill for cost of abatement.
Sec. 2-375. Court proceedings and rights of accused.
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Sec. 2-420. Exemption from county legislation.
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ARTICLE I. IN GENERAL

Secs. 2-1—2-18. Reserved.

ARTICLE II. ETHICS PROVISIONS*

Sec. 2-19. Short title.

This chapter may be cited as the Town of Berlin Public Ethics Ordinance.
(Ord. No. 2018-01, § 1, 11-13-2018)

Sec. 2-20. Statement of purpose and policy.

(a) The Town of Berlin, recognizing that our system of representative government is dependent in part upon the people maintaining the highest trust in their public officials and employees, finds and declares that the people have a right to be assured that the impartiality and independent judgment of public officials and employees will be maintained.

(b) It is evident that this confidence and trust is eroded when the conduct of the Town of Berlin's business is subject to improper influence and even the appearance of improper influence.

(c) For the purpose of guarding against improper influence, the Mayor and Council enacts this public ethics ordinance to require town elected officials, officials, employees, and individuals appointed to boards and commissions

***Editor's note**—Ord. No. 2018-01, §§ 1—9, adopted Nov. 13, 2018, repealed the former Art. II., §§ 2-19—2-21, 2-46—2-48, 2-70—2-77, 2-98, 2-125, 2-149, 2-150, 2-169—2-177, 2-208, 2-140, 2-259—2-62 and enacted a new Art. II as set out herein. See Code Comparative Table for complete derivation.

State law reference—Town required to adopt public ethics laws, Md. State Government Code Ann. § 15-803.

to disclose their financial affairs and to set minimum standards for the conduct of local government business.

(d) It is the intention of the Mayor and Council that this article, except its provisions for criminal sanctions, be liberally construed to accomplish this purpose.

(Ord. No. 2018-01, § 2, 11-13-2018)

Sec. 2-21. Definitions.

In this article, the following terms have the meanings indicated.

Business entity means:

- (1) A corporation, general or limited partnership, sole proprietorship, joint venture, unincorporated association or firm, institution, trust, foundation, or other organization, whether or not operated for profit.
- (2) "Business entity" does not include a governmental entity.

Commission means the Town of Berlin Ethics Commission established under section 2-21(a) of this article.

Compensation means:

- (1) Any money or thing of value, regardless of form, received or to be received by any individual covered by this article from an employer for service rendered.
- (2) For the purposes of section 2-26 of this article, if lobbying is only a portion of a person's employment, "compensation" means a prorated amount based on the time devoted to lobbying compared to the time devoted to other employment duties.

Designated second home means:

- (1) If an individual owns one second home, the individual's second home; or
- (2) If an individual owns more than one second home, any one second home the

individual identifies to the Commission as the individual's designated second home.

Doing business with means:

- (1) Having or negotiating a contract that involves the commitment, either in a single or combination of transactions, of \$5,000.00 or more of town controlled funds;
- (2) Being regulated by or otherwise subject to the authority of the town of Berlin; or
- (3) Being registered as a lobbyist under section 2-26 of this article.

Elected official means:

- (1) Any individual who holds an elective office of the Town of Berlin.
- (2) Elected official does not include the sheriff, state's attorney, register of wills, or clerk of the court.

Employee means:

- (1) An individual who is employed by the Town of Berlin.
- (2) "Employee" does not include an elected local official.
- (3) "Employee" does not include an employee of:
 - a. The offices of the sheriff, state's attorney, register of wills, or clerk of the court;
 - b. The county health department; or
 - c. The county department of social services.

Financial interest means:

- (1) Ownership of any interest as the result of which the owner has received, within the past three years, or is presently receiving, or in the future is entitled to receive, more than \$1,000.00 per year; or

- (2) Ownership, or the ownership of securities of any kind representing or convertible into ownership, of more than three percent of a business entity by a town official or employee, or the spouse of an official or employee.

Gift means:

- (1) The transfer of anything of economic value, regardless of the form, without adequate and lawful consideration.
- (2) "Gift" does not include a contribution as defined in Election Law Article, Annotated Code of Maryland.

Home address means:

- (1) The address of an individual's:
- (2) Principal home; and
- (3) Designated second home, if any.

Immediate family means a spouse and dependent children.

Interest means:

- (1) A legal or equitable economic interest, whether or not subject to an encumbrance or a condition, that is owned or held, in whole or in part, jointly or severally, directly or indirectly.
- (2) For purposes of section 2-24, "interest" includes any interest held at any time during the reporting period.
- (3) "Interest" does not include:
 - a. An interest held in the capacity of a personal agent, custodian, fiduciary, personal representative, or trustee, unless the holder has an equitable interest in the subject matter;
 - b. An interest in a time or demand deposit in a financial institution;
 - c. An interest in an insurance policy, endowment policy, or annuity contract under which an insurer prom-

- ises to pay a fixed amount of money either in a lump sum or periodically for life or a specified period;
- d. A common trust fund or a trust which forms part of a pension or profit sharing plan which has more than 25 participants and which has been determined by the Internal Revenue Service to be a qualified trust under the Internal Revenue Code;
 - e. A college savings plan under the Internal Revenue Code; or
 - f. A mutual fund or exchange-traded fund that is publicly traded on a national scale unless the mutual fund or exchange-traded fund is composed primarily of holdings of stocks and interests in a specific sector or area that is regulated by the individual's governmental unit.

Lobbyist means a person required to register and report expenses related to lobbying under of this article.

Lobbying means:

- (1) Communicating in the presence of a town official or employee with the intent to influence any official action of that official or employee; or
- (2) Engaging in activities with the express purpose of soliciting others to communicate with a town official or employee with the intent to influence that official or employee.

Official means an elected official, an employee of the town, or a person appointed to or employed by the town or any town agency, board, commission, or similar entity:

- (1) Whether or not paid in whole or in part with town funds; and
- (2) Whether or not compensated.

Person includes an individual or business entity.

Principal home means the sole residential property that an individual occupies as the individual's primary residence, whether owned or rented by the individual.

Qualified relative means a spouse, parent, child, brother, or sister.

Quasi-governmental entity means an entity that is created by state statute, that performs a public function, and that is supported in whole or in part by the state but is managed privately.

Second home means a residential property that:

- (1) An individual occupies for some portion of the filing year; and
- (2) Is not a rental property or a time share. (Ord. No. 2018-01, § 3, 11-13-2018; Ord. No. 2022-07, 11-14-2022)

Sec. 2-22. Administration.

- (a) (1) There is a town ethics commission that consists of three members, appointed by the Mayor with the concurrence of the Council.
- (2) The commission members shall serve three year overlapping terms.
- (3) A commission member may serve until a successor is appointed and qualifies.
- (b) (1) The commission shall elect a chairman from among its members.
- (2) The term of the chairman is one year.
- (3) The chairman may be reelected.
- (c) (1) The town attorney shall assist the commission in carrying out the commission's duties.
- (2) If a conflict of interest under section 2-23 of this article or other conflict prohibits the town attorney from assisting the commission in a matter, the town shall provide sufficient

funds for the commission to hire independent counsel for the duration of the conflict.

(d) The commission is the advisory body responsible for interpreting this article and advising persons subject to this article regarding its application.

(e) The commission shall hear and decide, with the advice of the town attorney or other legal counsel if appropriate, all complaints filed regarding alleged violations of this article by any person.

(f) The commission or an office designated by the commission shall retain as a public record all forms submitted by any person under this article for at least four years after receipt by the commission.

(g) The commission shall conduct a public information and education program regarding the purpose and implementation of this article.

(h) The commission shall certify to the state ethics commission on or before October 1 of each year that the town is in compliance with the requirements of General Provisions Article, Md. Ann. Code tit. 5, subtl. 8, for elected local officials.

(i) The commission shall:

- (1) Determine if changes to this article are required to be in compliance with the requirements of General Provisions Article, Md. Ann. Code tit. 5, subtl. 8; and
- (2) Shall forward any recommended changes and amendments to the town Council for enactment.

(j) (1) Any person subject to this article may request an advisory opinion from the commission concerning the application of this article.

- (2) The commission shall respond promptly to a request for an advisory opinion and shall provide interpretations of this article based on

the facts provided or reasonably available to the commission within 60 days of the request.

- (3) In accordance with all applicable state and town laws regarding public records, the commission shall publish or otherwise make available to the public copies of the advisory opinions, with the identities of the subjects deleted.
- (4) The commission may adopt additional policies and procedures related to the advisory opinion request process.
- (k) (1) Any person may file a complaint with the commission alleging a violation of any of the provisions of this article.
- (2) A complaint shall be in writing and under oath.
- (3) The commission may refer a complaint to the town attorney, or other legal counsel if appropriate, for investigation and review.
- (4) The commission may dismiss a complaint if, after receiving an investigative report, the commission determines that there are insufficient facts upon which to base a determination of a violation.
- (5) If there is a reasonable basis for believing a violation has occurred, the subject of the complaint shall be given an opportunity for a hearing conducted in accordance with the applicable town rules of procedure.
- (6) A final determination of a violation resulting from the hearing shall include findings of fact and conclusions of law.
- (7) Upon finding of a violation, the commission may take any enforcement action provided for in section 2-27 of this article.

- (8) a. After a complaint is filed and until a final finding of a violation by the Commission, all actions regarding a complaint are confidential.
- b. A finding of a violation is public information.
- (9) The commission may adopt additional policies and procedures related to complaints, complaint hearings, the use of independent investigators and staff, the use of witness and document subpoenas, and cure and settlement agreements.

(l) The commission may grant exemptions to or modifications of the conflict of interest and financial disclosure provisions of this article to officials or employees serving as members of town boards and commissions, when the commission finds that the exemption or modification would not be contrary to the purposes of this article, and the application of this article would:

- (1) Constitute an unreasonable invasion of privacy; and
- (2) Significantly reduce the availability of qualified persons for public service.

(m) The commission may:

- (1) Assess a late fee of \$5.00 per day up to a maximum of \$500.00 for a failure to timely file a financial disclosure statement required under sections 2-24 and 2-25 of this article; and
- (2) Assess a late fee of \$10.00 per day up to a maximum of \$1,000.00 for a failure to file a timely lobbyist registration or lobbyist report required under section 2-26 of this article.

(Ord. No. 2018-01, § 4, 11-13-2018)

Sec. 2-23. Prohibited conduct and interests.

(a) *Participation prohibitions.*

- (1) Except as permitted by commission regulation or opinion, an official or employee may not participate in:
 - a. Except in the exercise of an administrative or ministerial duty that does not affect the disposition or decision of the matter, any matter in which, to the knowledge of the official or employee, the official or employee or a qualified relative of the official or employee has an interest.
 - b. Except in the exercise of an administrative or ministerial duty that does not affect the disposition or decision with respect to the matter, any matter in which any of the following is a party:
 - 1. A business entity in which the official or employee has a direct financial interest of which the official or employee may reasonably be expected to know;
 - 2. A business entity for which the official, employee, or a qualified relative of the official or employee is an officer, director, trustee, partner, or employee;
 - 3. A business entity with which the official or employee or, to the knowledge of the official or employee, a qualified relative is negotiating employment or has any arrangement concerning prospective employment;
 - 4. If the contract reasonably could be expected to result in a conflict between the private interests of the official or employee and the official duties of the official or employee, a busi-

- ness entity that is a party to an existing contract with the official or employee, or which, to the knowledge of the official or employee, is a party to a contract with a qualified relative;
5. An entity, doing business with the town, in which a direct financial interest is owned by another entity in which the official or employee has a direct financial interest, if the official or employee may be reasonably expected to know of both direct financial interests; or
 6. A business entity that:
 - i. The official or employee knows is a creditor or obligee of the official or employee or a qualified relative of the official or employee with respect to a thing of economic value; and
 - ii. As a creditor or obligee, is in a position to directly and substantially affect the interest of the official or employee or a qualified relative of the official or employee.
- (2) A person who is disqualified from participating under paragraph (1) of this subsection shall disclose the nature and circumstances of the conflict and may participate or act if:
- a. The disqualification leaves a body with less than a quorum capable of acting;
 - b. The disqualified official or employee is required by law to act; or
 - c. The disqualified official or employee is the only person authorized to act.
- (3) The prohibitions of paragraph (1) of this subsection do not apply if participation is allowed by regulation or opinion of the commission.
- (4) A former regulated lobbyist who is or becomes subject to this article as an employee or official, other than an elected official or an appointed official, may not participate in a case, contract, or other specific matter as an employee or official, other than an elected official or appointed official, for one calendar year after the termination of the registration of the former regulated lobbyist if the former regulated lobbyist previously assisted or represented another party for compensation in the matter.
- (b) *Employment and financial interest restrictions.*
- (1) Except as permitted by regulation of the commission when the interest is disclosed or when the employment does not create a conflict of interest or appearance of conflict, an official or employee may not:
- a. Be employed by or have a financial interest in any entity:
 1. Subject to the authority of the official or employee or the Town agency, board, or commission with which the official or employee is affiliated; or
 2. That is negotiating or has entered a contract with the agency, board, or commission with which the official or employee is affiliated; or
 - b. Hold any other employment relationship that would impair the impartiality or independence of judgment of the official or employee.
- (2) The prohibitions of paragraph (1) of this subsection do not apply to:
- a. An official or employee who is appointed to a regulatory or licensing

authority pursuant to a statutory requirement that persons subject to the jurisdiction of the authority be represented in appointments to the authority;

- b. Subject to other provisions of law, a member of a board or commission in regard to a financial interest or employment held at the time of appointment, provided the financial interest or employment is publicly disclosed to the appointing authority and the commission;
- c. An official or employee whose duties are ministerial, if the private employment or financial interest does not create a conflict of interest or the appearance of a conflict of interest, as permitted and in accordance with regulations adopted by the commission; or
- d. Employment or financial interests allowed by regulation of the Commission if the employment does not create a conflict of interest or the appearance of a conflict of interest or the financial interest is disclosed.

(c) Post-employment limitations and restrictions.

- (1) A former official or employee may not assist or represent any party other than the town for compensation in a case, contract, or other specific matter involving the town if that matter is one in which the former official or employee significantly participated as an official or employee.
- (2) A former elected official may not assist or represent another party for compensation in a matter that is the subject of legislative action for one calendar year after the elected official leaves office.

(d) *Contingent compensation.* Except in a judicial or quasi-judicial proceeding, an official or employee may not assist or represent a party for contingent compensation in any matter before or involving the Town.

(e) *Use of prestige of office.*

- (1) a. An official or employee may not intentionally use the prestige of office or public position:
 - 1. For the private gain of that official or employee or the private gain of another; or
 - 2. To influence, except as part of the official duties of the official or employee or as a usual and customary constituent service without additional compensation, the award of a state or local contract to a specific person.
- b. An official may not directly or indirectly initiate a solicitation for a person to retain the compensated services of a particular regulated lobbyist or lobbying firm.
- (2) This subsection does not prohibit the performance of usual and customary constituent services by an elected official without additional compensation.
- (3) a. An official, other than an elected official, or employee may not use public resources or the title of the official or employee to solicit a contribution as that term is defined in the Election Law Article.
- b. An elected official may not use public resources to solicit a contribution as that term is defined in the Election Law Article.

(f) *Solicitation and acceptance of gifts.*

- (1) An official or employee may not solicit any gift.

- (2) An official or employee may not directly solicit or facilitate the solicitation of a gift, on behalf of another person, from an individual regulated lobbyist.
- (3) An official or employee may not knowingly accept a gift, directly or indirectly, from a person that the official or employee knows or has reason to know:
 - a. Is doing business with or seeking to do business with the town office, agency, board, or commission with which the official or employee is affiliated;
 - b. Has financial interests that may be substantially and materially affected, in a manner distinguishable from the public generally, by the performance or nonperformance of the official duties of the official or employee;
 - c. Is engaged in an activity regulated or controlled by the official's or employee's governmental unit;
 - d. Is a lobbyist with respect to matters within the jurisdiction of the official or employee; or
 - e. Is an association or any entity acting on behalf of an association that is engaged only in representing counties or municipal corporations.
- (4) a. This paragraph does not apply to a gift:
 - 1. That would tend to impair the impartiality and the independence of judgment of the official or employee receiving the gift;
 - 2. Of significant value that would give the appearance of impairing the impartiality and independence of judgment of the official or employee; or
 - 3. Of significant value that the recipient official or employee believes or has reason to believe is designed to impair the impartiality and independence of judgment of the official or employee.
- b. Notwithstanding paragraph (3) of this subsection, an official or employee may accept the following:
 - 1. Meals and beverages consumed in the presence of the donor or sponsoring entity;
 - 2. Ceremonial gifts or awards that have insignificant monetary value;
 - 3. Unsolicited gifts of nominal value that do not exceed \$20.00 in cost or trivial items of informational value;
 - 4. Reasonable expenses for food, travel, lodging, and scheduled entertainment of the official or the employee at a meeting which is given in return for the participation of the official or employee in a panel or speaking engagement at the meeting;
 - 5. Gifts of tickets or free admission extended to an elected official to attend a charitable, cultural, or political event, if the purpose of this gift or admission is a courtesy or ceremony extended to the elected official's office;
 - 6. A specific gift or class of gifts that the commission exempts from the operation of this subsection upon a finding, in writing, that acceptance of the gift or class of gifts would not be detrimental to the impartial con-

duct of the business of the town and that the gift is purely personal and private in nature;

7. Gifts from a person related to the official or employee by blood or marriage, or any other individual who is a member of the household of the official or employee; or
8. Honoraria for speaking to or participating in a meeting, provided that the offering of the honorarium is in no way related to the official's or employee's official position.

(g) *Disclosure of confidential information.* Other than in the discharge of official duties, an official or employee or former official or employee may not disclose or use confidential information, that the official or employee acquired by reason of the official's or employee's public position or former public position and that is not available to the public, for the economic benefit of the official or employee or that of another person.

(h) *Retaliation prohibited.* An official or employee may not retaliate against an individual for reporting or participating in an investigation of a potential violation of the provisions of this article.

(Ord. No. 2018-01, § 5, 11-13-2018)

Sec. 2-24. Financial disclosure—Elected officials, officials, and employees.

(a) This section applies to all elected officials, and all candidates to be elected officials.

(b) Except as provided in subsection (d) of this section, an elected official, or candidate to be an elected official shall file the financial disclosure statement required under this subsection:

- (1) On a form provided by the commission;
- (2) Under oath or affirmation; and

(3) With the commission.

(c) Deadlines for filing statements.

- (1) An incumbent official shall file a financial disclosure statement annually no later than April 30 of each year for the preceding calendar year.
- (2) An official who is appointed to fill a vacancy in an office for which a financial disclosure statement is required and who has not already filed a financial disclosure statement shall file a statement for the preceding calendar year within 30 days after appointment.
- (3) a. An individual who, other than by reason of death, leaves an office for which a statement is required shall file a statement within 60 days after leaving the office.
- b. The statement shall cover:
 1. The calendar year immediately preceding the year in which the individual left office, unless a statement covering that year has already been filed by the individual; and
 2. The portion of the current calendar year during which the individual held the office.

(d) Candidates to be elected officials.

- (1) Except for an official who has filed a financial disclosure statement under another provision of this section for the reporting period, a candidate to be an elected official shall file a financial disclosure statement each year beginning with the year in which the certificate of candidacy is filed through the year of the election.
- (2) A candidate to be an elected official shall file a statement required under this section:
 - a. In the year the certificate of candidacy is filed, no later than the filing of the certificate of candidacy;

- b. In the year of the election, on or before the earlier of April 30 or the last day for the withdrawal of candidacy; and
 - c. In all other years for which a statement is required, on or before April 30.
- (3) A candidate to be an elected official:
- a. May file the statement required under section 2-24(d)(2)a. of this article with the town clerk or board of election supervisors with the certificate of candidacy or with the commission prior to filing the certificate of candidacy; and
 - b. Shall file the statements required under section 2-24(d)(2)b. and c. of this article with the commission.
- (4) If a statement required by a candidate is overdue and not filed within eight days after written notice of the failure to file is provided by the town clerk or board of election supervisors, the candidate is deemed to have withdrawn the candidacy.
- (5) The town clerk or board of election supervisors may not accept any certificate of candidacy unless a statement required under this section has been filed in proper form.
- (6) Within 30 days of the receipt of a statement required under this section, the town, clerk or board of election supervisors shall forward the statement to the commission, or an office designated by the commission.
- (e) Public record.
- (1) The commission or office designated by the commission shall maintain all financial disclosure statements filed under this section.
- (2) The commission or office designated by the commission shall make financial disclosure statements available during normal office hours for examination and copying by the public, subject to reasonable fees and administrative procedures established by the commission.
- (3) If an individual examines or copies a financial disclosure statement, the commission or the office designated by the commission shall record:
- a. The name and home address of the individual reviewing or copying the statement; and
 - b. The name of the person whose financial disclosure statement was examined or copied.
- (4) Upon request by the individual whose financial disclosure statement was examined or copied, the commission or the office designated by the commission shall provide the official or employee with a copy of the name and home address of the person who reviewed the official's or employee's financial disclosure statement.
- (5) For statements filed after January 1, 2019, the commission or the office designated by the commission may not provide public access to an individual's home address that the individual has designated as the individual's home address.
- (6) The commission or office designated by the commission shall not provide public access to information related to consideration received from:
- a. The University of Maryland Medical System;
 - b. A governmental entity of the state or a local government in the state; or

- c. A quasi-governmental entity of the state or local government in the state.
- (f) Retention requirements. The commission or the office designated by the Commission shall retain financial disclosure statements for four years from the date of receipt.
- (g) Contents of statement.
- (1) Interests in real property.
 - a. A statement filed under this section shall include a schedule of all interests in real property wherever located.
 - b. For each interest in real property, the schedule shall include:
 - 1. The nature of the property and the location by street address, mailing address, or legal description of the property;
 - 2. The nature and extent of the interest held, including any conditions and encumbrances on the interest;
 - 3. The date when, the manner in which, and the identity of the person from whom the interest was acquired;
 - 4. The nature and amount of the consideration given in exchange for the interest or, if acquired other than by purchase, the fair market value of the interest at the time acquired;
 - 5. If any interest was transferred, in whole or in part, at any time during the reporting period, a description of the interest transferred, the nature and amount of the consideration received for the interest, and the identity of the person to whom the interest was transferred; and
- 6. The identity of any other person with an interest in the property.
- (2) Interests in corporations and partnerships.
 - a. A statement filed under this section shall include a schedule of all interests in any corporation, partnership, limited liability partnership, or limited liability corporation, regardless of whether the corporation or partnership does business with the town. An individual who is required to disclose the name of a business under this section shall disclose any other names that the business is trading as or doing business as.
 - b. For each interest reported under this paragraph, the schedule shall include:
 - 1. The name and address of the principal office of the corporation, partnership, limited liability partnership, or limited liability corporation;
 - 2. The nature and amount of the interest held, including any conditions and encumbrances on the interest;
 - 3. With respect to any interest transferred, in whole or in part, at any time during the reporting period, a description of the interest transferred, the nature and amount of the consideration received for the interest, and, if known, the identity of the person to whom the interest was transferred; and
 - 4. With respect to any interest acquired during the reporting period:
 - i. The date when, the manner in which, and the identity

- tity of the person from whom the interest was acquired; and
 - ii. The nature and the amount of the consideration given in exchange for the interest or, if acquired other than by purchase, the fair market value of the interest at the time acquired.
 - c. An individual may satisfy the requirement to report the amount of the interest held under subsection b.2. of this section by reporting, instead of a dollar amount:
 - 1. For an equity interest in a corporation, the number of shares held and, unless the corporation's stock is publicly traded, the percentage of equity interest held; or
 - 2. For an equity interest in a partnership, the percentage of equity interest held.
 - (3) Interests in business entities doing business with the town.
 - a. A statement filed under this section shall include a schedule of all interests in any business entity that does business with the town, other than interests reported under paragraph (2) of this subsection.
 - b. For each interest reported under this paragraph, the schedule shall include:
 - 1. The name and address of the principal office of the business entity;
 - 2. The nature and amount of the interest held, including any conditions to and encumbrances on the interest;
 - 3. With respect to any interest transferred, in whole or in part, at any time during the reporting period, a description of the interest transferred, the nature and amount of the consideration received in exchange for the interest, and, if known, the identity of the person to whom the interest was transferred; and
 - 4. With respect to any interest acquired during the reporting period:
 - i. The date when, the manner in which, and the identity of the person from whom the interest was acquired; and
 - ii. The nature and the amount of the consideration given in exchange for the interest or, if acquired other than by purchase, the fair market value of the interest at the time acquired.
- (4) Gifts.
- a. A statement filed under this section shall include a schedule of each gift in excess of \$20.00 in value or a series of gifts totaling \$100.00 or more received during the reporting period from or on behalf of, directly or indirectly, any one person who does business with the town or from an association, or any entity acting on behalf of an association that is engaged only in representing counties or municipal corporations.
 - b. For each gift reported, the schedule shall include:
 - 1. A description of the nature and value of the gift; and

2. The identity of the person from whom, or on behalf of whom, directly or indirectly, the gift was received.
- (5) Employment with or interests in entities doing business with the town.
- a. A statement filed under this section shall include a schedule of all offices, directorships, and salaried employment by the individual or member of the immediate family of the individual held at any time during the reporting period with entities doing business with the town.
 - b. For each position reported under this paragraph, the schedule shall include:
 1. The name and address of the principal office of the business entity;
 2. The title and nature of the office, directorship, or salaried employment held and the date it commenced; and
 3. The name of each Town agency with which the entity is involved as indicated by identifying one or more of the three categories of "doing business", as defined in section 2-21(d) of this article.
- (6) Indebtedness to entities doing business with or regulated by the individual's town unit or department.
- a. A statement filed under this section shall include a schedule of all liabilities, excluding retail credit accounts, to persons doing business with or regulated by the individual's town unit or department owed at any time during the reporting period:
 1. By the individual; or
 2. By a member of the immediate family of the individual if the individual was involved in the transaction giving rise to the liability.
 - b. For each liability reported under this paragraph, the schedule shall include:
 1. The identity of the person to whom the liability was owed and the date the liability was incurred;
 2. The amount of the liability owed as of the end of the reporting period;
 3. The terms of payment of the liability and the extent to which the principal amount of the liability was increased or reduced during the year; and
 4. The security given, if any, for the liability.
- (7) Employment with the town. A statement filed under this section shall include a schedule of the immediate family members of the individual employed by the town in any capacity at any time during the reporting period.
- (8) Sources of earned income.
- a. A statement filed under this section shall include a schedule of the name and address of each place of employment and of each business entity of which the individual or a member of the individual's immediate family was a sole or partial owner and from which the individual or member of the individual's immediate family received earned income, at any time during the reporting period.
 - b. A minor child's employment or business ownership need not be dis-

closed if the agency that employs the individual does not regulate, exercise authority over, or contract with the place of employment or business entity of the minor child.

- c. For a statement filed on or after January 1, 2019, if the individual's spouse is a lobbyist regulated by the town, the individual shall disclose the entity that has engaged the spouse for lobbying purposes.
- (9) A statement filed under this section may also include a schedule of additional interests or information that the individual making the statement wishes to disclose.
- (10) Relationship with University of Maryland Medical System, state or local government, or quasi-governmental entity.
 - a. An individual shall disclose the information specified in general provisions article § 5-607(J)(1) Annotated Code of Maryland, for any financial or contractual relationship with:
 - 1. The University of Maryland Medical System;
 - 2. A governmental entity of the state or a local government in the state; or
 - 3. A quasi governmental entity of the state or local government in the state.
 - b. For each financial or contractual relationship reported, the schedule shall include:
 - 1. A description of the relationship;
 - 2. The subject matter of the relationship; and
 - 3. The consideration.

(h) For the purposes of sections 2-24(g)(1), (2), and (3) of this article, the following interests are considered to be the interests of the individual making the statement:

- (1) An interest held by a member of the individual's immediate family, if the interest was, at any time during the reporting period, directly or indirectly controlled by the individual.
- (2) An interest held, at any time during the applicable period, by:
 - a. A business entity in which the individual held a ten percent or greater interest;
 - b. A business entity described in section (i) of this subsection in which the business entity held a 25 percent or greater interest;
 - c. A business entity described in section b. of this subsection in which a business entity held a 50 percent or greater interest;
 - d. A business entity in which the individual directly or indirectly, through an interest in one or a combination of other business entities, holds a ten percent or greater interest.
- (3) An interest held by a trust or an estate in which, at any time during the reporting period:
 - a. The individual held a reversionary interest or was a beneficiary; or
 - b. If a revocable trust, the individual was a settlor.
 - c. 1. The commission shall review the financial disclosure statements submitted under this section for compliance with the provisions of this section and

shall notify an individual submitting the statement of any omissions or deficiencies.

2. The town ethics commission may take appropriate enforcement action to ensure compliance with this section.

(Ord. No. 2018-01, § 6, 11-13-2018; Ord. No. 2022-07, 11-14-2022)

Sec. 2-25. Financial disclosure—Appointed members of boards and commissions.

- (a) (1) The town appointed officials listed in subsection (b) of this section shall file the statement required by section 2-24 of this article.
- (2) The appointed officials shall be required to disclose the information specified in section 2-24(g) of this article only with respect to those interests, gifts, compensated positions, and liabilities that may create a conflict, as provided in §5 of this article, between the member's personal interests and the member's official local duties.
- (3) An official shall file a statement required under this section annually, not later than April 30 of each calendar year during which the official holds office.

(b) Appointed officials required to file: All members of boards created by Town of Berlin Ordinances.

(c) The commission shall maintain all disclosure statements filed under this section as public records available for public inspection and copying as provided in section 2-24(e) of this article.

(Ord. No. 2018-01, § 7, 11-13-2018)

Sec. 2-26. Lobbying.

(a) Except as provided in subsections (b) and (c) of this section, a person or entity who engages in lobbying as defined in section 2-21(l)

shall file a lobbying registration with the commission if the person or entity, during the calendar year:

- (1) Expends, exclusive of personal travel and subsistence expenses, in excess of \$1,000.00 in furtherance of this activity; or
- (2) Is compensated in excess of \$5,000.00 in connection with this activity.

(b) The following activities are exempt from regulation under this section:

- (1) Professional services in drafting bills or in advising and rendering opinions to clients as to the construction and effect of proposed or pending Council actions when these services do not otherwise constitute lobbying activities;
- (2) Appearances before the Council upon its specific invitation or request if the person or entity engages in no further or other activities in connection with the passage or defeat of Council actions;
- (3) Appearances before a town agency upon the specific invitation or request of the agency if the person or entity engages in no further or other activities in connection with the passage or defeat of any agency executive action;
- (4) Appearance as part of the official duties of a duly elected or appointed official or employee of the state or a political subdivision of the state, or of the United States, and not on behalf of any other entity;
- (5) Actions of a publisher or working member of the press, radio, or television in the ordinary course of the business of disseminating news or making editorial comment to the general public who does not engage in further or other lobbying that would directly and specifically ben-

enefit the economic, business, or professional interests of the person or entity or the employer of the person or entity;

- (6) Appearances by an individual before the Council at the specific invitation or request of a registered lobbyist if the person performs no other lobbying act and notifies the Council that the person or entity is testifying at the request of the lobbyist;
 - (7) Appearances by an individual before a government agency at the specific invitation or request of a registered lobbyist if the person or entity performs no other lobbying act and notifies agency that the person or entity is testifying at the request of the lobbyist;
 - (8) The representation of a bona fide religious organization solely for the purpose of protecting the right of its own members to practice the doctrine of the organization; and
 - (9) Appearance as part of the official duties of an officer, director, member, or employee of an association engaged exclusively in lobbying for counties and municipalities and not on behalf of any other entity.
- (c) Limited exemption—Employer of a lobbyist.
- (1) A person or entity who compensates one or more lobbyists and who would otherwise be required to register as a lobbyist is not required to file a registration and submit lobbying reports if the person or entity reasonably believes that all expenses incurred in connection with the lobbying activities will be reported by a properly registered person or entity acting on behalf of the person or entity.
 - (2) A person or entity exempted under this subsection becomes subject to this sec-

tion immediately upon failure of the lobbyist to report any information required under this section.

- (d) (1) The registration filed under this section shall be filed on or before the later of the beginning of the calendar year in which the person or entity expects to lobby and within five days of first engaging in lobbying activities in the calendar year.
- (2) The registration filed under this section:
 - a. Shall be dated and on a form developed by the commission;
 - b. Shall include:
 - 1. The lobbyist's full and legal name and permanent address;
 - 2. The name, address, and nature of business of any person or entity on whose behalf the lobbyist acts; and
 - 3. The written authorization of any person or entity on whose behalf the lobbyist acts or an authorized officer or agent, who is not the lobbyist, of the person or entity on whose behalf the lobbyist acts;
 - c. A statement of whether the person or entity on whose behalf the lobbyist acts is exempt from registration under subsection (c) of this section;
 - d. The identification, by formal designation, if known, of matters on which the lobbyist expects to act;
 - e. Identification of the period of time within a single calendar year during which the lobbyist is authorized to engage in these activities, unless terminated sooner; and
 - f. The full legal signature of the lobbyist and, when appropriate, the person or entity on whose behalf the lobbyist acts or an agent or

authorized officer of the person or entity on whose behalf the lobbyist acts.

(e) A lobbyist shall file a separate registration for each person or entity that has engaged or employed the lobbyist for lobbying purposes.

(f) A lobbyist may terminate the lobbyist's registration by providing written notice to the commission and submitting all outstanding reports and registrations.

(g) A person or entity may not engage in lobbying activities on behalf of another person or entity for compensation that is contingent upon the passage or defeat of any action by the Council or the outcome of any executive action.

(h) Activity report.

(1) A lobbyist shall file with the commission or the office designated by the Commission:

- a. By July 31, one report concerning the lobbyist's lobbying activities covering the period beginning January 1 through June 30; and
- b. By January 31, one report covering the period beginning July 1 through December 31.

(2) A lobbyist shall file a separate activity report for each person or entity on whose behalf the lobbyist acts.

(3) If the lobbyist is not an individual, an authorized officer or agent of the entity shall sign the form.

(4) The report shall include:

- a. A complete and current statement of the information required to be supplied with the lobbyist's registration form.

b. Total expenditures on lobbying activities in each of the following categories:

1. Total compensation paid to the lobbyist not including expenses reported under items 2.—9. of this subsection;
2. Office expenses of the lobbyist;
3. Professional and technical research and assistance not reported in item a. of this subparagraph;
4. Publications which expressly encourage persons to communicate with town officials or employees;
5. Names of witnesses, and the fees and expenses paid to each witness;
6. Meals and beverages for town officials and employees;
7. Reasonable expenses for food, lodging, and scheduled entertainment of town officials or employees for a meeting which is given in return for participation in a panel or speaking engagement at the meeting;
8. Other gifts to or for officials or employees or their spouses or dependent children; and
9. Other expenses.

(i) Special gift report.

- (1) a. With the six-month activity report required under subsection (h) of this section, a lobbyist shall report, except for gifts reported in subsection (h)(4)b.7. of this section, gifts from the lobbyist with a cumulative value of \$75.00 or more during the reporting period to an official, em-

ployee, or member of the immediate family of an official or employee.

- b. The lobbyist shall report gifts under this paragraph regardless of whether the gift was given in connection with lobbying activities.
- (2) The report shall include the date, beneficiary, amount or value, and nature of the gift.
- (j) Notification to official and confidentiality.
 - (1) If any report filed under this section contains the name of an official or employee or a member of the immediate family of an official or employee, the commission shall notify the official or employee within 30 days.
 - (2) The commission shall keep the report confidential for 60 days following receipt by the commission.
 - (3) Within 30 days of the notice required under subsection (1) of this subsection, the official or employee may file a written exception to the inclusion in the report of the name of the official, employee, or member of the immediate family of the official or employee.
- (k) The commission may require a lobbyist to submit other reports the commission determines to be necessary.
- (l) The commission or office designated by the commission shall maintain all registrations and reports filed under this section.
- (m) (1) The commission shall review the registrations and reports filed under this section for compliance with this section and shall notify persons engaging in lobbying activities of any omissions or deficiencies.
- (2) The commission may take appropriate enforcement action to ensure compliance with this section.

(n) Annual report.

- (1) The commission shall compute and make available a subtotal under each of the ten required categories in subsection (h)(4)b. of this section.
 - (2) The commission shall compute and make available the total amount reported by all lobbyists for their lobbying activities during the reporting period.
 - (o) The commission shall make lobbying registrations and reports available during normal business hours for examination and copying subject to reasonable fees and procedures established by the commission.
- (Ord. No. 2018-01, § 8, 11-13-2018)

Sec. 2-27. Enforcement.

- (a) (1) Upon a finding of a violation of any provision of this article, the Commission may:
 - a. Issue an order of compliance directing the respondent to cease and desist from the violation;
 - b. Issue a reprimand; or
 - c. Recommend to the appropriate authority other appropriate discipline of the respondent, including censure or removal if that discipline is authorized by law.
- (2) If the commission finds that a respondent has violated section 2-26 of this article, the commission may:
 - a. Require a respondent who is a registered lobbyist to file any additional reports or information that reasonably related to the information that is required under section 2-26 of this article;
 - b. Impose a fine not exceeding \$5,000.00 for each violation; and
 - c. Suspend the registration of an individual registered lobbyist if the com-

mission finds that the lobbyist has knowingly and willfully violated §8 of this article or has been convicted of a criminal offense arising from lobbying activities.

- (b) (1) Upon request of the commission, the town attorney may file a petition for injunctive or other relief in the circuit court of Worcester County, or in any other court having proper venue for the purpose of requiring compliance with the provisions of this article.

- (2) a. The court may:

1. Issue an order to cease and desist from the violation;
2. Except as provided in subsection (b)(2)b. of this section, void an official action taken by an official or employee with a conflict of interest prohibited by this article when the action arises from or concerns the subject matter of the conflict and if the legal action is brought within 90 days of the occurrence of the official action, if the court deems voiding the action to be in the best interest of the public; or
3. Impose a fine of up to \$5,000.00 for any violation of the provisions of this article, with each day upon which the violation occurs constituting a separate offense.

- b. A court may not void any official action appropriating public funds, levying taxes, or providing for the issuance of bonds, notes, or other evidences of public obligations.

- (c) (1) Any person who knowingly and willfully violates the provisions of section 2-26 of this article is guilty of a misdemeanor, and upon conviction, is subject

to a fine of not more than \$1,000.00 or imprisonment for not more than one year, or both.

- (2) If the person is a business entity and not a natural person, each officer and partner of the business entity who knowingly authorized or participated in the violation is guilty of a misdemeanor and, upon conviction, is subject to the same penalties as the business entity.

(d) In addition to any other enforcement provisions in this article, a person who the commission or a court finds has violated this article:

- (1) Is subject to termination or other disciplinary action; and
- (2) May be suspended from receiving payment of salary or other compensation pending full compliance with the terms of an order of the commission or a court.
- (e) (1) A person who is subject to the provisions of this article shall obtain and preserve all accounts, bills, receipts, books, papers, and documents necessary to complete and substantiate a report, statement, or record required under this article for three years from the date of filing the report, statement, or record.
- (2) These papers and documents shall be available for inspection upon request by the commission or the Council after reasonable notice.

(Ord. No. 2018-01, § 9, 11-13-2018)

Secs. 2-28—2-287. Reserved.

ARTICLE III. DEPARTMENTS, OFFICERS AND EMPLOYEES

DIVISION 1. GENERALLY

Secs. 2-288—2-307. Reserved.

DIVISION 2. INDEMNIFICATION

Sec. 2-308. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Members of appointed boards includes the current members of the town board of appeals, the town planning and zoning commission and the town historic district commission.

Official capacity, when used with respect to the Mayor and Councilmembers, means the office of Mayor and Councilmembers in the town.

Party includes a person who was, is or is threatened to be made, a named defendant in a proceeding.

Proceeding means any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative. (Code 1977, § 9-1; Ord. No. 87-2, 7-6-1987)

Sec. 2-309. Grounds for indemnification.

The municipal corporation may indemnify the Mayor or member of the Council or members of appointed boards made a party to any proceeding by reason of service in that capacity if the Mayor or Councilmember:

- (1) Acted in good faith.
- (2) Reasonably believed:
 - a. In the case of conduct in the Mayor or Councilmember's official capacity with the town, that the conduct was in the best interest of the town.
 - b. In all other cases, that the conduct was not opposed to the best interest of the town.
- (3) In the case of any criminal proceeding, had no reasonable cause to believe that the conduct was unlawful.

(Code 1977, § 9-2; Ord. No. 87-2, 7-6-1987)

Sec. 2-310. Items indemnified against.

Indemnification may be given against judgments, penalties, fines, settlements and reasonable expenses actually incurred by the Mayor or Councilmember in connection with the proceeding. (Code 1977, § 9-3; Ord. No. 87-2, 7-6-1987)

Sec. 2-311. Proceedings in which Mayor or Councilmember adjudged liable.

In the event, however, that the proceeding was won by or in the right of the municipal corporation itself, indemnification may be made only against reasonable expenses and may not be made in respect of any proceeding in which the Mayor or Councilmember shall have been adjudged to be liable to the town. (Code 1977, § 9-4; Ord. No. 87-2, 7-6-1987)

Sec. 2-312. Termination of proceeding.

The termination of any proceeding by judgment, order, settlement, conviction or upon a plea of nolo contendere or its equivalent creates a rebuttable presumption that the Mayor or Councilmember did not meet the requisite standard of conduct set forth in this article. (Code 1977, § 9-5; Ord. No. 87-2, 7-6-1987)

Sec. 2-313. Improper personal benefit.

A member of the Council or the Mayor may not be indemnified in respect to any proceeding charging improper personal benefit to the Mayor or Councilmember, whether or not involving action in the Mayor's or Councilmember's official capacity, in which the Mayor or Councilmember was adjudged to be liable on the basis that personal benefit was improperly received. (Code 1977, § 9-6; Ord. No. 87-2, 7-6-1987)

Sec. 2-314. Reasonable expenses.

The Mayor or member of the Council who has been successful on the merits or otherwise in the defense of any proceeding referred to herein

shall be indemnified against reasonable expenses incurred by the Mayor or Councilmember in connection with the proceeding.
(Code 1977, § 9-7; Ord. No. 87-2, 7-6-1987)

Sec. 2-315. Determination of entitlement.

In the event that the Mayor or Council, as a body, does not vote or determine that indemnification should be made, a court of appropriate jurisdiction, upon application of the Councilmember and upon such notice as the court shall require, may order indemnification if the court determines that the Councilmember is fairly and reasonably entitled to indemnification in view of all the relevant circumstances whether or not the Councilmember has met the standards of conduct set forth herein or has been adjudged liable under the circumstances described in this division.
(Code 1977, § 9-8; Ord. No. 87-2, 7-6-1987)

Sec. 2-316. Authorization after determination.

Indemnification may not be made by the Mayor and Council unless authorized in each specific case after a determination has been made that indemnification of the Councilmember is permissible in the circumstances because the Councilmember has met the standard of conduct set forth in this division.

- (1) Such determination shall be made by the Mayor and Council by a majority vote of a quorum consisting of Councilmembers not at the time parties to the proceeding or, if such a quorum cannot be obtained, then by a majority vote of a committee comprised of the Councilmembers consisting of two or more members not at the time parties to such proceeding.
- (2) In the event that such quorum or committee cannot be convened by virtue of the involvement of the Councilmembers, then such determination shall be made

by special legal counsel selected by the Mayor and Council or a committee thereof by vote as set forth hereinabove.

- (3) The determination of whether or not to indemnify any member of the Council shall be made in open regular session of the Mayor and Council.
(Code 1977, § 9-9; Ord. No. 87-2, 7-6-1987)

Sec. 2-317. Insurance.

The municipal corporation may purchase and maintain insurance on behalf of any person who is or was a member of the Council or Mayor and who, while such official, became involved in a legal proceeding in the manner set forth in this division.
(Code 1977, § 9-10; Ord. No. 87-2, 7-6-1987)

Secs. 2-318—2-337. Reserved.

DIVISION 3. POLICE DEPARTMENT*

Sec. 2-338. Authority of chief to establish rules and procedures.

The chief of police of the town police department, subject to the approval of the Mayor and Council, shall establish and maintain legal rules, regulations, general orders and general procedures as he or the Mayor and Council of the town deem necessary for the proper administration, discipline and efficiency of the police department of the town.
(Code 1977, § 22-1; Ord. No. 1994-12, 8-22-1994)

Sec. 2-339. Filing of rules and procedures.

All such rules, regulations, general orders and general procedures shall be compiled in written form and shall be maintained in the re-

***Charter references**—Authority to create departments, § C5-1(16); authority to establish a police force, § C5-1(45).

cords division of the police department and shall be available for review by the public during the normal business hours of the town.

(Code 1977, § 22-2; Ord. No. 1994-12, 8-22-1994)

Secs. 2-340—2-366. Reserved.

ARTICLE IV. MUNICIPAL INFRACTIONS*

Sec. 2-367. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Infraction means any violation of this Code, which violation has been specifically declared to be an infraction. For purposes of this Code, the term "infraction" means a civil offense.

Misdemeanor means:

- (1) A criminal offense, not amounting to a felony, arising from a violation of a law of the state, which violation is defined as a misdemeanor; or
- (2) Unless otherwise specified, a violation of any law of this town. Violations of this Code shall be treated as misdemeanors unless specifically declared to be infractions.

(Code 1977, § 11-1; Ord. No. 78-3, 11-20-1978)

Sec. 2-368. Declaration as infraction; fine.

The Council shall, by official act, declare the violation of which ordinance or ordinances shall be an infraction or infractions, and for each such violation a specific fine shall be set. This fine shall never exceed \$400.00 for any single, initial violation or \$400.00 for each repeat or continuing violation. The fine shall be expressed as a

***State law reference**—Municipal infractions, Md. Ann. Code art. 23A, § 3(b).

discrete amount rather than being expressed in terms of a maximum or minimum amount. The authority to declare infractions and set fines shall not be delegated by the Council to any other administrative or legislative body.

Code 1977, § 11-2; Ord. No. 78-3, 11-20-1978; Ord. No. 1992-13, 10-12-1992)

State law reference—Fines, Md. Ann. Code art. 23A, § 3(b).

Sec. 2-369. Issuance of citation.

(a) Those code enforcement officials authorized by the Council to enforce this Code may deliver a citation to any person alleged to be committing an infraction. A copy of the citation shall be retained by the town and shall bear the certification of the enforcing official attesting to the truth of the matter set forth in the citation.

(b) The citation shall be served on the defendant in accordance with Maryland Rule 3-121; or for real property-related violations, if proof is made by affidavit that good faith efforts to serve the defendant under Maryland Rule 3-121(a) have not succeeded, by:

- (1) Regular mail to the defendant's last known address; and
- (2) Posting of the citation at the property where the infraction has occurred or is occurring, and, if located within the town in which the infraction has occurred or is occurring, at the residence or place of business of the defendant.

(c) The citation shall contain, at a minimum, the following information:

- (1) Name and address of the person charged;
- (2) The nature of the infraction;
- (3) The location and time that the infraction occurred or was observed;
- (4) The amount of the infraction fine assessed;

- (5) The manner, location and time in which the fine may be paid to the town;
- (6) The right of the accused to elect to stand trial for the infraction; and
- (7) The effect of failing to pay the assessed fine or demand a trial within the prescribed time.

(Code 1977, § 11-3; Ord. No. 78-3, 11-20-1978)

State law reference—Issuance and contents of citation, Md. Ann. Code art. 23A, § 3(b)(3).

Sec. 2-370. Payment of fine.

The fine for an infraction shall be as specified in the law violated. The fine is payable by the recipient of the citation to the town within 20 calendar days of receipt of the citation.

(Code 1977, § 11-4; Ord. No. 78-3, 11-20-1978)

Sec. 2-371. No formal hearing by town.

The town shall not conduct any formal hearing for those persons in receipt of a citation of infraction. Any offender so cited may pay the fine as indicated in the citation or elect to stand trial for the offense. This provision shall not prevent an offender from requesting, either personally or through an attorney, additional information concerning the infraction.

(Code 1977, § 11-5; Ord. No. 78-3, 11-20-1978)

Sec. 2-372. Election to stand trial.

A person receiving the citation for an infraction may elect to stand trial for the offense by notifying the town, in writing, of his intention of standing trial. The notice shall be given at least five days prior to the date of payment as set forth in the citation. Upon receipt of the notice of the intention to stand trial, the town shall forward to the district court having venue a copy of the notice from the person who received the citation indicating his intention to stand trial. Upon receipt of the citation, the district court shall schedule the case for trial and notify the defendant of the trial date. All fines, penalties or forfeitures

collected by the district court for violations of infractions shall be remitted to the general fund of the town.

(Code 1977, § 11-6; Ord. No. 78-3, 11-20-1978)

State law reference—Election to stand trial, Md. Ann. Code art. 23A, § 3(b)(4).

Sec. 2-373. Failure to pay fine.

(a) If a person receiving a citation for an infraction fails to pay the fine for the infraction by the date of payment set forth on the citation and fails to file a notice of his intention to stand trial for the offense, the person is liable for the assessed fine. The municipality may double the fine to an amount not to exceed \$400.00 and request adjudication of the case through the district court, including the filing of a demand for judgment on affidavit. The district court shall promptly schedule the case for trial and summons the defendant to appear. The defendant's failure to respond to such summons shall result in the entry of judgment against the defendant in favor of the municipality in the amount then due if a proper demand for judgment on affidavit has been filed.

(b) If any person shall be found by the district court to have committed a municipal infraction:

- (1) The person shall be required to pay the fine determined by the district court, not exceeding the limits of \$400.00.
- (2) The fines imposed shall constitute a judgment in favor of the municipality.
- (3) If the fine remains unpaid for 30 days following the date of its entry, the judgment shall be enforceable in the same manner and to the same extent as other civil judgments for money unless the court has suspended or deferred the payment of the fine.
- (4) The person shall be liable for the cost of the proceedings in the district court.

- (5) The court may order the person to abate the violation or enter an order permitting the municipality to abate any such condition at the person's expense.

(Code 1977, § 11-7; Ord. No. 78-3, 11-20-1978)

State law reference—Failure to pay fine, Md. Ann. Code art. 23A, § 3(b)(5)—(7).

Sec. 2-374. Bill for cost of abatement.

(a) If the town abates an infraction pursuant to an order of the district court, the town shall present the defendant with a bill for the cost of abatement by:

- (1) Regular mail to the defendant's last known address; or
- (2) Any other means that are reasonably calculated to bring the bill to the defendant's attention.

(b) If the defendant does not pay the bill within 30 days after presentment, upon a motion of the town, the district court shall enter a judgment against the defendant for the cost of the abatement.

(c) All fines, penalties, or forfeitures collected by the district court for a municipal infraction shall be remitted to the town in which the infraction occurred.

(d) If a defendant fails to pay any fine or cost imposed by the district court without good cause, the district court may punish the failure as contempt of court.

State law reference—Similar provisions, Md. Ann. Code art. 23A, § 3(b)(8)—(10).

Sec. 2-375. Court proceedings and rights of accused.

In any proceeding for a municipal infraction:

- (1) It shall be the burden of the municipality to prove that the defendant has committed the infraction by clear and convincing evidence, and in any such proceed-

ing, the district court shall apply the evidentiary standards as prescribed by law or rule for the trial of civil causes;

- (2) The district court shall ensure that the defendant has received a copy of the charges against the defendant and that the defendant understands those charges;
- (3) The defendant shall be entitled to cross-examine all witnesses who appear against the defendant, to produce evidence or witnesses in the defendant's own behalf, or to testify in the defendant's own behalf, if the defendant elects to do so;
- (4) The defendant shall be entitled to be represented by counsel of the defendant's own selection and at the defendant's own expense; and
- (5) The defendant may enter a plea of guilty or not guilty of the infraction as charged, and the verdict of the district court shall be guilty of a municipal infraction or not guilty of a municipal infraction, or the district court may, before rendering judgment, place the defendant on probation.

(Code 1977, § 11-9; Ord. No. 78-3, 11-20-1978)

State law reference—Similar provisions, Md. Ann. Code art. 23A, § 3(b)(12).

Sec. 2-376. Conviction not construed as municipal offense.

Conviction of a municipal infraction, whether by the district court or by payment of the fine to the town, is not a criminal conviction for any purpose, nor does it impose any of the civil disabilities ordinarily imposed by a criminal conviction.

(Code 1977, § 11-8; Ord. No. 78-3, 11-20-1978)

State law reference—Similar provisions, Md. Ann. Code art. 23A, § 3(b)(11).

Secs. 2-377—2-395. Reserved.

ARTICLE V. LEGISLATION

DIVISION 1. GENERALLY

Secs. 2-396—2-418. Reserved.

DIVISION 2. COUNTY LEGISLATION*

Sec. 2-419. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Legislation means any form of county legislative enactment, including a law, ordinance, resolution and any action by which a county's budget is adopted.
(Code 1977, § 16-1; Ord. No. 84-2)

Sec. 2-420. Exemption from county legislation.

The town shall be exempt from all legislation enacted by the county relating to a subject with respect to which the town has a grant of legislative authority provided either by public general law or its Charter.
(Code 1977, § 16-2; Ord. No. 84-2)

State law reference—Authority to exempt the town from legislation adopted by the county, Md. Ann. Code art. 23A, § 2B.

Sec. 2-421. Applicability.

This article shall apply both prospectively and retrospectively.
(Code 1977, § 16-3; Ord. No. 84-2)

***State law reference**—County legislation effect in town, Md. Ann. Code art. 23A, § 2B.

Chapter 3

RESERVED

Chapter 4

ANIMALS*

Article I. In General

Secs. 4-1—4-18. Reserved.

Article II. Dogs

- Sec. 4-19. Definitions.
- Sec. 4-20. Running at large restricted; leash required.
- Sec. 4-21. Registration.
- Sec. 4-22. Tag and collar required.
- Sec. 4-23. Complaints.
- Sec. 4-24. Procedures.
- Sec. 4-25. Violations and penalties.
- Sec. 4-26. Statement of intent.
- Sec. 4-27. Destruction of property; nuisances.

***State law reference**—Animals, Md. Ann. Code art. 24, § 11-501 et seq.

ARTICLE I. IN GENERAL**Secs. 4-1—4-18. Reserved.****ARTICLE II. DOGS*****Sec. 4-19. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Animal control authority means any officer or agency, public or private, designated by the county commissioners of Worcester County and/or the Mayor and Council of Berlin as having the responsibility for the administration of any or all provisions of this article.

At large. A dog shall be deemed to be at large if off the premises of its owner and not on a leash under the immediate control of a person. No dog running at large by accident with a person in pursuit thereof shall be deemed as running at large within this definition.

Leash means a chain, rope, or strap attached to the collar or harness of an animal, especially a dog, and used to lead it or hold it in check.

Owner means any person having a right of property in a dog or any person who keeps or harbors a dog or has it in his care or permits it to remain on or about the premises occupied by or controlled by him.

Public nuisance means that action or combination of actions which serves to disturb, annoy, endanger or offend the public in general and is unreasonable, unwarranted or unlawful and which interferes with the enjoyment of life and property. For the purpose of this article, by way

***Charter reference**—Authority to regulate the keeping of dogs, § C5-1B(18).

State law reference—Animals, Md. Ann. Code art. 24, § 11-501 et seq.

of explanation, without limitation, the following types of actions may constitute public nuisances:

- (1) Chasing automobiles, other motor vehicles, mopeds or bicycles;
- (2) Destruction of flora or fauna, be it flower beds, livestock or other; running in packs;
- (3) Barking excessively; biting, clawing or otherwise injuring persons; or
- (4) Any other type of activity which is found to be dangerous, annoying or disturbing to persons or property.

(Code 1977, § 43-1; Ord. No. 78-2, 11-20-1978; Ord. No. 2007-8, 7-23-2007; Ord. No. 2016-05; § 1, 7-11-2016)

Sec. 4-20. Running at large restricted; leash required.

(a) No owner of a dog shall permit such dog to run at large off the premises of the owner in the town.

(b) All dogs must be restrained by a leash which is held by the owner or the owner's agent, unless on the premises of the owner.

(Ord. No. 2016-05; § 2, 7-11-2016)

Editor's note—Ord. No. 2016-05, § 2, adopted July 11, 2016, repealed the former § 4-20, enacted a new § 4-20 as set out herein. The former § 4-20 pertained to similar subject matter and derived from Code 1977, § 43-2; Ord. No. 78-2, adopted Nov. 20, 1978; Ord. No. 1994-1, adopted Feb. 14, 1994; and Ord. No. 2007-8, adopted July 23, 2007.

Sec. 4-21. Registration.

All dogs kept, harbored or maintained by their owners in the town shall be registered in accordance with the county dog ordinance if over four months of age. Such registration is required for the purpose of this article to identify the dogs so kept, harbored or maintained in the Town. Such registration is required under this article regardless of whether or not such registration would be

required under the provisions of the county dog ordinance. The provisions of this section shall not be intended to apply to dogs whose owners are visiting temporarily within the town, or to dogs brought into the town for the purpose of participating in any dog show, or to guide dogs trained to aid the blind or visually handicapped, or deaf or hearing impaired, or mobility impaired or to dogs properly trained to assist blind persons when such dogs are actually being used by such persons for the purpose of aiding them in going from place to place.

(Code 1977, § 43-3; Ord. No. 78-2, 11-20-1978)

Sec. 4-22. Tag and collar required.

When the dog is registered in accordance with the provisions of section 4-21, every owner shall be required to provide his dog or dogs with a collar to which the registration tag shall be affixed, and said owner shall have the responsibility to see to it that the collar and tag are constantly worn.

(Code 1977, § 43-4; Ord. No. 78-2, 11-20-1978)

Sec. 4-23. Complaints.

Any person desiring to make a complaint by virtue of any violation of the terms of this article shall notify the town police department of said complaint. The complainant shall state the owner of the dog, when known, or the household or property address, when known, from which the dog originated. Complainants will be provided with the proper form by the police department in order to make the complaint in writing following the department's initial response to the location of the violation.

(Code 1977, § 43-5; Ord. No. 78-2, 11-20-1978; Ord. No. 1994-1, 2-14-1994)

Sec. 4-24. Procedures.

(a) Upon receipt of a complaint regarding a dog at large, the police department will provide the complainant with a live animal trap at no charge to the complainant, or, if the complainant is unable to handle and set up the trap, the

police department or its designee will set the trap in the most likely location to catch the animal.

(b) If a dog is trapped and found to be in violation of this article, the police department or its designee shall impound the dog. If the owner can be identified, the police department or its designee shall cite the owner with a violation of this article. The owner may claim the animal from the department or its designee before 4:00 p.m. on the same day that the animal is impounded.

(c) If the animal is not collected before 4:00 p.m. on the day of impoundment, the animal will be transported to the county animal control facility by the end of the business day. The owner's right to claim the animal will be subject to the county's rules and regulations upon delivery of the animal to the county facility.

(d) When transport of the animal on the same day of impoundment is not possible, the owner shall be assessed an additional service charge for each 24-hour period, or portion thereof, that the dog has been boarded by the town. Such service charge shall be set from time to time by the Mayor and Council.

(e) Service charges shall be due and payable to the Mayor and Council regardless of any charges assessed by the county animal control in the course of its enforcement of county regulations and services provided.

(Code 1977, § 43-6; Ord. No. 78-2, 11-20-1978; Ord. No. 1994-1, 2-14-1994)

Sec. 4-25. Violations and penalties.

Any person violating any provisions of this article shall come within the term defined as a municipal infraction and shall be governed by the provisions of said municipal infraction ordinance as established in chapter 2.

(Code 1977, § 43-7; Ord. No. 78-2, 11-20-1978; Ord. No. 1994-1, 2-14-1994; Ord. No. 2007-8, 7-23-2007)

Sec. 4-26. Statement of intent.

The Mayor and Council hereby states that this article shall be construed in addition to, and not in lieu of, any other ordinance, statute or regulation in the county or the state regarding the obligations of the dog owners in said jurisdictions. In addition, all statutes, ordinances and regulations regarding vicious dogs enacted in the county or the state are adopted herein. (Code 1977, § 43-8; Ord. No. 78-2, 11-20-1978; Ord. No. 2007-8, 7-23-2007)

Sec. 4-27. Destruction of property; nuisances.

(a) It shall be prohibited for an owner of a dog to allow said dog to destroy, damage, injure or deface shrubbery, plants, flowers, grass, terrace, beach or any other valuable thing in or on any public property or any other person's private property, or to upset, distribute or get into any garbage or trash receptacle or container, public or private. The waste products of a dog's digestive system shall be presumed to destroy, damage, injure or deface such shrubbery, plants, flowers, grass, lawn, terrace, beach or other valuable things.

(b) It shall be unlawful for any person or owner in possession of a dog to walk or exercise such dog without being in possession of a container sufficient to remove dog excreta.

(c) It shall be unlawful for any person or owner in possession of a dog to fail to remove any of said dog's excreta deposited on public ways, recreational parks, or other property, public or private, not owned by the person or owner in possession of said dog.

(Code 1977, § 43-9; Ord. No. 78-2, 11-20-1978; Ord. No. 2007-8, 7-23-2007; Ord. No. 2007-10, 9-10-2007)

Chapter 5

RESERVED

Chapter 6

BUILDINGS AND BUILDING REGULATIONS*

Article I. In General

Secs. 6-1—6-18. Reserved.

Article II. Building Code

Sec. 6-19. Purpose.

Sec. 6-20. Adoption of International Building Code.

Sec. 6-21. Standard codes adopted.

Sec. 6-22. International Building Code amendments.

Sec. 6-23. International Residential Code amendments.

Sec. 6-24. Adoption of county electrical standards by reference.

Sec. 6-25. Adoption of county plumbing standards by reference.

Secs. 6-26—6-49. Reserved.

Article III. Property Maintenance

Sec. 6-50. Adoption of property maintenance code.

Sec. 6-51. Additions, insertions and changes.

Sec. 6-52. Boarded buildings.

Sec. 6-53. Junk.

Secs. 6-54—6-77. Reserved.

Article IV. Property Improvements

Sec. 6-78. Public policy.

Sec. 6-79. Water or sewer improvements.

Sec. 6-80. Assumption of added cost by town.

Sec. 6-81. Payment for improvements.

Sec. 6-82. Extension through unimproved property.

Sec. 6-83. Compliance required.

Sec. 6-84. Required improvements for private developments.

Sec. 6-85. Industrial and commercial developments.

Sec. 6-86. Extension of facilities beyond town limits.

Secs. 6-87—6-115. Reserved.

***Charter reference**—Authority to establish and enforce building and housing regulations, § C5-1B.(49).

State law references—Authority to adopt building code, Md. Ann. Code art. 23A, § 2(b)(5); state building code, Md. Public Safety Code Ann. §§ 12-201, 12-501 et seq.

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Article V. Housing Standards

- Sec. 6-116. Purpose.
- Sec. 6-117. Word usage and definitions.
- Sec. 6-118. Compliance required.
- Sec. 6-119. Sanitation.
- Sec. 6-120. Light, ventilation and heating.
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- Sec. 6-122. Maintenance of dwelling and dwelling units.
- Sec. 6-123. Cleanliness, garbage, trash disposal and smoke detectors.
- Sec. 6-124. Discontinuance of service or utilities.
- Sec. 6-125. Entry and inspection of dwelling; liability and defense of town employees.
- Sec. 6-126. Enforcement; service of notice and orders; hearings; vacation and demolition.
- Sec. 6-127. Establishment, powers and duties of housing inspector and board of review.
- Sec. 6-128. Violations and penalties.
- Sec. 6-129. Interpretation.
- Secs. 6-130—6-156. Reserved.

Article VI. Numbering of Buildings

- Sec. 6-157. Numbers required.
- Sec. 6-158. Height, material and color.
- Sec. 6-159. Placement.
- Sec. 6-160. Grid maps on file with town.
- Sec. 6-161. Violations and penalties.
- Secs. 6-162—6-190. Reserved.

Article VII. Grading

- Sec. 6-191. Permit.
- Sec. 6-192. Issuance of building permit.
- Sec. 6-193. Conditions of approval; denial of permit.
- Sec. 6-194. Permit application.
- Sec. 6-195. Sediment control inspector.
- Sec. 6-196. Other required approvals.
- Sec. 6-197. Permit suspension.
- Sec. 6-198. Permit cancellation.
- Sec. 6-199. Performance bond.
- Sec. 6-200. Time limit on permit validity.
- Sec. 6-201. Inspections.
- Sec. 6-202. Permit fee.
- Sec. 6-203. Violations and penalties.
- Secs. 6-204—6-229. Reserved.

BUILDINGS AND BUILDING REGULATIONS

Article VIII. Excavations; Construction

- Sec. 6-230. Definitions.
- Sec. 6-231. Notification of town.
- Sec. 6-232. Marking underground facilities.
- Sec. 6-233. Delay in marking.
- Sec. 6-234. Spacing and direction of markers.
- Sec. 6-235. Notification of other agencies.
- Sec. 6-236. Violations and penalties.

ARTICLE I. IN GENERAL**Secs. 6-1—6-18. Reserved.****ARTICLE II. BUILDING CODE*****Sec. 6-19. Purpose.**

The purpose of this article is to comply with the request of the state that municipalities within the state adopt a building code, which request is more particularly set forth in Md. Public Safety Code Ann. § 12-501 et seq. (Code 1977, § 37-1; Ord. No. 1996-1, 2-12-1996; Ord. No. 2007-6, 7-9-2007)

Sec. 6-20. Adoption of International Building Code.

(a) The town adopts the International Building Code (IBC), pursuant to Md. Ann. Code art. 23A, § 2(b)(5) and Md. Public Safety Code Ann. § 12-201

(b) The department of planning and zoning adopted the 2012 International Building Code as the Maryland Building Performance Standards by regulation (COMAR Title 5, Subtitle 2, Chapter 7), with the following modifications:

Add footnote to Chapter 9 of IBC:

Fire protection system requirements of Chapter 9 may be concurrently covered in the State Fire Code, Md. Public Safety Code Ann. § 6-206 and COMAR 12.03.01. The State Fire Code is enforced by the State Fire Marshal or authorized fire official.

***Charter reference**—Authority to establish and enforce building and housing regulations, § C5-1B(49).

State law references—Authority to adopt building code, Md. Ann. Code art. 23A, § 2(b)(5); state building code, Md. Public Safety Code Ann. §§ 12-201, 12-501 et seq.

Add footnote to Chapter 10 of IBC:

Means of egress requirements of Chapter 10 may be concurrently covered in the State Fire Code, Md. Public Safety Code Ann. § 6-206, and COMAR 12.03.01. The State Fire Code is enforced by the State Fire Marshal or authorized fire official.

Add footnote to Chapter 11 of the 2000 IBC.

New buildings and facilities may be designed and constructed to be accessible in accordance with this code and ICC/ANSI A 117.1. Alterations as defined in Chapter 2 of the 2000 IBC shall be designated in accordance with COMAR 05.02.02, Maryland Accessibility Code.

Add footnote to Chapter 13 of the IBC:

The requirements concerning energy conservation for buildings and structures are governed by Energy Conservation Building Standards Act, Md. Public Utilities Code Ann. § 7-408 et seq., as amended. In the event of a conflict between the Annotated Code of Maryland and IBC, the requirements of the Annotated Code of Maryland shall prevail.

Add footnote to Chapter 24 of the 2000 IBC:

The requirements for safety glazing set forth in Md. Public Safety Code Ann. § 12-401 et seq., are in addition to Chapter 24, Section 2406 of the IBC, relating to safety glazing. In the event of a conflict between Chapter 24 of the IBC and the Annotated Code of Maryland, the requirements of the Annotated Code of Maryland shall prevail.

Delete Chapters 27, 28 and 29 of the IBC, as the subject matter is not within the scope of the Maryland Building Performance Standards.

The provisions of Chapter 30 of the IBC relate to elevators and conveying systems and are in addition to and not instead of the require-

ments set forth in Md. Public Safety Code Ann. § 12-801 et seq. In the event of a conflict between IBC and the Annotated Code of Maryland, the requirements of the Annotated Code of Maryland shall prevail.

Add footnote to Chapter 34 of the IBC:

Existing structures provisions of the IBC are replaced by the Maryland Building Rehabilitation Code Department of Housing and Community development under Md. Public Safety Code Ann. § 12-1001 et seq.

(Code 1977, § 37-2; Ord. No. 1996-1, 2-12-1996; Ord. No. 2007-6, 7-9-2007; Ord. No. 2012-09, 9-30-2012)

Sec. 6-21. Standard codes adopted.

The town adopts the following standard codes:

- (1) The International Building Code 2012 Edition, as amended from time to time.
- (2) The International Residential Code 2012 Edition, as amended from time to time.
- (3) The State of Maryland Mechanical Code, as amended by the State of Maryland.
- (4) The State of Maryland Plumbing Code, as amended by the State of Maryland.
- (5) The International Energy Conservation Code 2012 Edition, as amended from time to time.
- (6) The Town of Berlin, Maryland adopts Chapter One, Administration, of the 2012 International Building Code. Chapter One, Administration, of the 2012 IBC shall be the administrative chapter for the enforcement of regulating the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal and demolition of detached one- and two-family dwellings and multiple single-family dwellings, duplexes and town-

houses not more than three stories in height with a separate means of egress and their accessory structures.

(Code 1977, § 37-3; Ord. No. 1996-1, 2-12-1996; Ord. No. 2007-6, 7-9-2007; Ord. No. 2012-09, 9-30-2012)

Sec. 6-22. International Building Code amendments.

The following additions and deletions are made to the International Building Code (2012):

Chapter One of the International Building Code (2012) is adopted with the following modifications:

Section 101.1, Title: These regulations shall be known as the Building Code of the Town of Berlin, Maryland, herein referred to as "this code."

Delete Section 101.4.1, Electrical, in its entirety and adopt the National Electrical Code.

Delete Section 101.4.2, Gas, in its entirety and adopt the State of Maryland Plumbing Code.

Delete Section 101.4.4, Plumbing, in its entirety and adopt the State of Maryland Plumbing Code.

Delete Section 101.4.6, Fire prevention, in its entirety and adopt the State of Maryland Fire Prevention Code.

Amend Section 105.2, Work exempt from permit, to read:

Exceptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction. Permits shall not be required for the following:

1. Decorative fences less than ten lineal feet and less than three feet in height.

2. Interior painting, papering, tiling, carpeting, cabinets, counter tops, and similar finish work.
3. Temporary motion-picture, television and theater stage sets and scenery not to exceed 30 days in any calendar year.
4. Prefabricated swimming pools which are less than 24 inches deep, less than ten feet in diameter, are installed entirely above ground and have no electrical, plumbing or filtration equipment installed.
5. Shade cloth structures constructed for nursery or agricultural purposes.
6. Swings and other playground equipment accessory to one- and two-family dwellings.

Add Section 102.7, Approval, to read:

Any property upon which is proposed a building addition, accessory structure, interior renovation, roofing, siding, window replacement, deck, driveway installation or other such site modification project is subject to the review and approval of the applicable town departments. Permits and/or approvals must be received in writing prior to the commencement of any work.

Add 105.3.3 to read:

Any property upon which is proposed a building addition, accessory structure, interior renovation, roofing, siding, window replacement, deck, driveway installation or other such site modification project is subject to the review and approval of the applicable Town of Berlin departments. Permits and/or approvals must be received in writing prior to the commencement of any work.

Amend Section 108.4, Work commencing before permit issuance, to read:

Any person who commences any work on a building or structure before obtaining the necessary permits may be subject to an additional fee established by the building official that shall be in addition to the required permit fees and may be two times the normal permit fee.

Add Section 109.7, Inspection fees:

In the event that the building official must make more than one inspection on any required inspections listed in Section 109, the building official may charge an inspection fee. Such fee shall be paid to the town prior to the inspection.

Amend Section 113.4, Violation, penalties, to read:

Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, construct, alter or repair a building or structure in violation of an approved plan or directive of the code official or of a permit or certificate issued under the provisions of this code shall be guilty of a misdemeanor, punishable by a fine or by imprisonment not exceeding six months, or both such fine and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

(Code 1977, § 37-4; Ord. No. 1996-1, 2-12-1996; Ord. No. 2007-6, 7-9-2007; Ord. No. 2010-09, 8-23-2010; Ord. No. 2012-09, 9-30-2012)

Sec. 6-23. International Residential Code amendments.

The following additions and deletions are made to the International Residential Code (2012):

Section 3. One and Two Family Dwelling Code - Amendments. The provisions of the International Residential Code for 1 and 2 family

dwellings 2012 Edition as incorporated in COMAR 05.02.07 are modified, deleted, substituted, or added to as follows:

Chapter 1. Administrative. Chapter 1 of the International Residential Code for 1 or 2 family dwellings is hereby deleted in its

entirety and replaced with Chapter 1 of the International Building Code 2012 Edition as amended herein.

Section R - 301.2. Climatic and Geographic criteria shall be amended so that Table R301.2(f) shall read as follows:

TABLE R301.2(1). CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA SUBJECT TO DAMAGE FROM:

ROOF SNOW LOAD	Grd WIND Snow	SPEED(c) Load (MPH)	SEISMIC DESIGN CATE- GORY (d)	WEATHER- ING (a)	FROST LINE DEPTH (b)	TERMITE	DECAY	WINTER DESIGN TEMP (d)	FLOOD HAZARDS (e)	ICE BARRIER UNDER- LAYMENT	AIR FREEZING INDEX	MEAN ANNUAL TEMP
20psf	20psf	100/NO	A	Severe	24"	Moderate/ Heavy	Slight to Moderate	75f	Per FIRM Maps	NO	250	56F

Delete Chapters 12 and 20 and replace with the State of Maryland Mechanical Code.
(Code 1977, § 37-5; Ord. No. 1996-1, 2-12-1996; Ord. No. 2007-6, 7-9-2007; Ord. No. 2010-13, 12-13-2010; Ord. No. 2012-09, 9-30-2012; Ord. No. 2015-05, 7-13-2015)

Sec. 6-24. Adoption of county electrical standards by reference.

Under and by virtue of competent authority and for the protection and promotion of the health, comfort, safety and welfare of the citizens of the town, Ordinance No. 30 of Worcester County, Maryland, entitled the "Electrical Ordinance" be and the same is hereby adopted by the mayor and council of the town.
(Code 1977, § 46-1; Ord. of 11-1-1976)

Editor's note—The Worcester County Electrical Ordinance is on file in the town offices.

Sec. 6-25. Adoption of county plumbing standards by reference.

The plumbing code adopted by the county commissioners for the county and the plumbing regulations of the state adopted by said county as its regulations be, and are from the date hereof, adopted as the plumbing code and regulations for the town.
(Code 1977, § 77-1; Ord. of 11-3-1975)

Editor's note—The Worcester County Plumbing Code and regulations are on file in the town offices.

Secs. 6-26—6-49. Reserved.**ARTICLE III. PROPERTY MAINTENANCE****Sec. 6-50. Adoption of property maintenance code.**

A certain document, which is on file in the office of the code enforcement officer of the town, being marked and designated as "International Property Maintenance Code, 2006 Edition," is hereby adopted by reference by the Mayor and Council.
(Code 1977, § 80-1; Ord. No. 1999-19, 10-11-1999)

Sec. 6-51. Additions, insertions and changes.

The following sections of the International Property Maintenance Code, 2006 Edition are hereby revised as follows for the purposes of this article:

Amend Chapter 1 as follows:

Section 101.1. (add): Town of Berlin, Maryland.

Section 103.6. (add): As set by the Mayor and Council by resolution from time to time.

Section 106.4. (reworded):

Section 106.4. Violation and penalties. Any person who shall violate a provision of this chapter shall be guilty of a municipal infraction and shall be fined the sum of \$100.00 for any single initial violation and the sum of \$200.00 for each repeat or continuing violation.

Section 109.5. (reworded):

Section 109.5. Costs of emergency repairs. Costs incurred in the performance of emergency work, unless paid in full by the property owner within 30 days after the same is billed by the town treasurer, shall be a lien on the property and shall draw interest from and after said 30 days at the rate of 1½ percent per month or fraction of a month, and the cost thereof, if not paid, shall be added to the next annual tax bill of each said owner.

Section 111.1. (add):

Section 111.1. Application for appeal. The appeal shall be filed within ten days after the date the decision is served on the person.

Section 111.2. (reworded):

Section 111.2. Membership of board. The board of appeals shall consist of the members of the housing board of review as set forth in section 6-127 of the Berlin Code.

Section 111.2.1, "Alternate members," is deleted.

Section 111.2.2, "Chairman," is deleted.

Section 111.2.3, "Disqualification of member," is deleted.

Section 111.2.4, "Secretary," is deleted.

Section 111.2.5, "Compensation of members," is deleted.

Section 111.4.1. (reworded):

Section 111.4.1 Procedure. The provisions of the Berlin Housing Standards Code relating to hearings shall be applicable to notices and orders issued under this code. Any appeal shall stay the action of the code official, except during emergency measures.

Editor's note—See article V of this chapter, Housing Standards.

(Code 1977, § 80-2; Ord. No. 1999-19, 10-11-1999)

Sec. 6-52. Boarded buildings.

(a) *Definitions.* The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Boarded building means any structure in which any door or window opening has been covered by plywood or other material with the intention of preventing entrance and/or damage to the property.

(b) *Purpose.* The purpose of this section is to protect the public health, safety, general welfare and to assist in maintaining a high standard of living within the town.

(c) *Applicability.* It shall be unlawful for any building to be boarded within the corporate limits of the town.

(d) *Exceptions.*

(1) Pursuant to a town-issued building permit, a property owner may board a window or door opening for a period not to exceed 30 days for the purpose of repair or replacement.

(2) Within the Historic Overlay District of the B-1 Town Center District, a structure may have boarded openings on the rear or sides of the structure if said boarded openings existed as of October 24, 2011. (Code 1977, § 80-3; Ord. No. 2011-09, 9-26-2011)

Sec. 6-53. Junk.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Enclosed building means a type of structure in which the contents therein are not visible to the general public.

Junk means used refrigerators, stoves, water heaters, furniture and all other similar household-type appliances and furnishings; all types of building material, such as lumber, concrete products and other such type materials; all types of paper goods, including discarded newspapers and magazines; all types of cloth material, goods or discarded clothing; and any other type of material generally classified as junk.

(b) *Unlawful acts.* It shall be unlawful for any person, firm or corporation to accumulate, deposit, store or otherwise maintain any form of junk on public or private property, which junk is not within an enclosed building within the corporate limits of the town.

(c) *Notice of violation.* Before any person is prosecuted for a violation of this section, he shall first be warned of such violation in writing and shall be given 20 days from the posting of

such notice, if mailed, or from the receipt of such note, if hand delivered, to comply with the provisions of this section.

(d) *Violations and penalties.*

- (1) Any person who shall violate any provisions of this section shall be guilty of a municipal infraction and shall be fined the sum of \$100.00 for a single initial violation and the sum of \$200.00 for each repeat or continuing violation.
- (2) Every person, firm or corporation that permits a violation of subsection (b) of this section to exist or continue can be charged as a separate offense for each and every day that the violation exists after the 20-day notice that is set forth in subsection (c) of this section.

(Code 1977, §§ 62-1—62-4; Ord. of 3-20-1978; Ord. No. 1999-18, 9-20-1999)

Charter reference—Authority to prevent and abate nuisances, § C5-1B(39)

Secs. 6-54—6-77. Reserved.

ARTICLE IV. PROPERTY IMPROVEMENTS

Sec. 6-78. Public policy.

In order to promote the orderly and effective development of the town and to conserve public funds for their most desirable and effective use on projects having primarily a general public benefit as distinguished from those having mainly a special benefit to adjacent properties, this article shall be the public policy henceforth of the Mayor and Council of the town with respect to water and sewer extensions, street improvements and related work.

(Code 1977, § 79-1; Res. of 9-18-1964)

Sec. 6-79. Water or sewer improvements.

Where water or sewer extensions, street improvements or related work are required or requested primarily to serve adjacent property

that is to be developed with one or more residential buildings, the cost thereof shall be borne by the owners or developers of such property. (Code 1977, § 79-2; Res. of 9-18-1964)

Sec. 6-80. Assumption of added cost by town.

Where any such improvements are required by the town to have a greater size or include special features beyond the normal requirements for adjacent service, in order to serve as part of the main distribution, collection or circulation system of the municipality, the town will undertake to assume the added cost thereof in accordance with an agreement to be negotiated with the private interests in each case. (Code 1977, § 79-3; Res. of 9-18-1964)

Sec. 6-81. Payment for improvements.

To assist the private interests (the property owners or developers) in complying with this policy, the Mayor and Council will enter into contracts or agreements with financially responsible individuals or corporations by which the payment for improvements, if installed by the town, may be spread over a period not exceeding ten years, with interest at current rates. Such payments shall be secured by bond or other suitable guarantee or by lien on the property benefited in the case of an individual lot owner, but no such property lien shall be transferable from a developer to the individual property owners.

(Code 1977, § 79-4; Res. of 9-18-1964)

Sec. 6-82. Extension through unimproved property.

Where an extension of facilities must pass other properties to reach the property to be served, and any such intermediate property is subsequently improved, then its proportionate share of the cost of the extensions shall be paid to the town before any building permit is issued,

and such payment shall be credited to the private interests that installed and paid for the extension.

(Code 1977, § 79-5; Res. of 9-18-1964)

Sec. 6-83. Compliance required.

Henceforth no building or other permit shall be issued, nor water or sewer connection permitted, except in accordance with this policy. No building permit shall be issued unless the public improvements to serve such buildings, as required herein, have been installed or have been guaranteed installation as provided herein.

(Code 1977, § 79-6; Res. of 9-18-1964)

Sec. 6-84. Required improvements for private developments.

The following public improvements, at least, shall be available or shall be provided henceforth for all private developments:

- (1) Streets graded at least 40 feet wide and surfaced 30 feet wide with loose slag and clay to meet town standards. It shall be the obligation of the town to surface the streets with all-weather pavement at some future date.
- (2) Standard waterlines and equipment, including standard fire hydrants, conforming with a general water system plan and standards for the town.
- (3) Standard sanitary sewers and necessary facilities conforming with a general sewer system plan and standards for the town.

(Code 1977, § 79-7; Res. of 9-18-1964)

Sec. 6-85. Industrial and commercial developments.

Requirements and arrangements for industrial and commercial developments shall be the same as for residential developments, except

that the Mayor and Council hereby reserve the right to alter any such requirement in accordance with the best public interest.

(Code 1977, § 79-8; Res. of 9-18-1964)

Sec. 6-86. Extension of facilities beyond town limits.

There shall be no obligation on the part of the town to extend water or sewer facilities outside the town limits.

(Code 1977, § 79-9; Res. of 9-18-1964)

Secs. 6-87—6-115. Reserved.

ARTICLE V. HOUSING STANDARDS*

Sec. 6-116. Purpose.

The purpose of this article is to protect the public health, safety and welfare of the town, inhabitants of buildings and on the premises as hereinafter provided by:

- (1) Establishing minimum standards for:
 - a. Basic equipment and facilities for light, ventilation, space heating and sanitation;
 - b. For safety from fire;
 - c. For space, use and location; and
 - d. For safe and sanitary maintenance;
 - e. For cooking equipment in all structures now in existence.
- (2) Fixing the responsibilities of owners, operators and occupants of all habitable structures.
- (3) Providing for administration, enforcement and penalties.

(Code 1977, § 60-1; Ord. No. 82-2, 5-17-1982)

***Charter reference**—Authority to adopt building regulations, § C5-1B(49).

State law reference—Local housing code required, Md. Public Safety Code Ann. § 12-203.

Sec. 6-117. Word usage and definitions.

(a) *Word usage.* Words used in the present tense include the future; words used in the masculine gender include the feminine and neuter; the singular number includes the plural, and the plural number the singular. The words "dwelling," "dwelling unit" or "premises" include the words "or any part thereof."

(b) *Terms defined.* The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Approved means approved by the housing inspector appointed by the mayor with the approval of the council to enforce the provisions of this article.

Basement means a portion of a building located partly underground but having less than one-half of its clear floor-to-ceiling height below the average grade of the adjoining ground.

Cellar means a portion of a building located partly or wholly underground and having one-half or more of its clear floor-to-ceiling height below the average grade of the adjoining ground.

Dwelling means any building or structure or part thereof which is used or intended to be used for living or sleeping.

Dwelling unit means a room or group of rooms located within a dwelling, as defined for the purpose of this article, and forming a single habitable unit with facilities which are used or intended to be used for living.

Extermination means the control or elimination of insects, rodents or other pests by eliminating their harborage places, by removing or making inaccessible materials that may serve to harbor pests, by blocking their access to a dwelling or by any other recognized and legal pest-elimination methods approved by the housing inspector of the town pursuant to appropriate ordinances.

First story means that story of a dwelling at or next above the average grade of the adjoining ground.

Garbage means the animal and/or vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Habitable room means a room or enclosed floor space used or intended to be used for living, sleeping, cooking or eating purposes, excluding bathrooms, water closet compartments, laundries, pantries, foyers or communicating corridors, closets and storage spaces.

Housing inspector means the housing inspector of the town, appointed pursuant to this article.

Infestation means the presence within or around a dwelling or in or near waste disposal containers of any insects, rodents or other pests.

Light housekeeping means the use of a room or rooms for combined living, sleeping and dining purposes by individuals or groups of persons having part of a dwelling, such as stairs or halls, in common, but living independently of each other and doing their cooking upon the premises, whether in the same or in other units, as distinguished from a dwelling unit or apartment having normal kitchen and toilet facilities.

Light housekeeping unit means the room or rooms occupied for light housekeeping purposes by one individual or group of persons living independently of other such individuals or groups.

Occupant means any legally responsible person who has charge, care or control of a building or part thereof in which dwelling units are leased or let.

Owner means any legally responsible person who, alone or jointly or severally with others:

- (1) Has legal title to any dwelling, with or without actual possession thereof; or
- (2) Has charge, care or control of any dwelling as owner or agent of the owner, or as

executor, executrix, administrator, administratrix, personal representative, trustee or guardian of the owner. Any such person thus representing the owner shall be bound to comply with the provisions of this article to the same extent as if he were the owner.

Person includes any individual, firm, corporation, association or partnership.

Plumbing means water pipes, mechanical garbage disposal units, waste pipes, water closets, sinks, installed dishwashers and clothes washers, lavatories, bathtubs, shower baths, catchbasins, drains, vents and other similar supplied fixtures, including all connections to water or sewer lines.

Rubbish, burnable, means combustible waste material, except garbage, but including paper, rags, cartons and boxes, wood, excelsior, rubber, leather, tree branches and yard trimmings.

Supplied means paid for, arranged, furnished or provided by or under control of the owner or operator.
(Code 1977, § 60-2; Ord. No. 82-2, 5-17-1982; Ord. No. 90-6, 8-13-1990)

Sec. 6-118. Compliance required.

No person shall occupy or let to another for occupancy any dwelling for the purpose of living, sleeping, cooking or eating therein which does not comply with the requirements of this article.
(Code 1977, § 60-3; Ord. No. 82-2, 5-17-1982)

Sec. 6-119. Sanitation.

(a) *Sink, flush water closet, lavatory basin and bathtub or shower in dwellings.*

(1) Every dwelling unit shall contain:

- a. A kitchen sink in good working condition, properly connected to an approved water and sewer system.

- b. A room or rooms affording privacy and equipped with a flush water closet, lavatory basin and bathtub or shower in good working condition, properly connected to an approved water and sewer system, except that where a multiple dwelling was in existence at the time of passage of this article, the occupants of not more than two dwelling units may share a room containing lavatory and bath facilities, provided that not more than a total of ten persons occupy both dwelling units.

(2) No such sanitary facilities shall be located in a basement or cellar, except by written approval of the housing inspector.

(3) No water closet shall be of the flush hopper, frostproof hopper, privy or similar type where a sewer system is available within 200 feet of the dwelling, and where no sewer is available, then such facilities shall be used only when approved by the housing inspector.

(b) *Access to bathrooms and water closets.*
Access to each bathroom or water closet compartment shall be provided without requiring passage through a sleeping room, bathroom or water closet compartment of another dwelling.

(c) *Floors and ventilation of bathrooms and water closets.*

- (1) Every water closet compartment and bathroom shall be floored with a surface which is reasonably impervious to water and which can be easily kept in a clean and sanitary condition.
- (2) Every bathroom and water closet compartment shall be provided with windows meeting the requirements for light and ventilation of habitable rooms prescribed in section 6-120 or with an approved mechanical or gravity ventilation

system affording adequate ventilation and maintained in good working condition at all times.

(d) *Piped hot and cold running water.*

- (1) Every kitchen sink, lavatory basin and bathtub or shower required under this article shall be connected and supplied with hot and cold running water.
- (2) Within one year after the effective date of this article, every dwelling shall have supplied water-heating facilities which are properly installed and connected to waterlines maintained in safe and good working condition and of a sufficient capacity to supply an adequate amount of water at every required kitchen sink, lavatory basin, bathtub or shower at a temperature of not less than 120 degrees Fahrenheit.

(Code 1977, § 60-4; Ord. No. 82-2, 5-17-1982)

Sec. 6-120. Light, ventilation and heating.

(a) *Window area and ventilation.*

- (1) Every habitable room shall have at least one window which can be easily opened facing directly to outdoor open space. The minimum total window area, measured between stops, for every habitable room shall be ten percent of the floor area of such room unobstructed by any portion of structure or wall less than five feet from the outside of such window.
- (2) The total openable window area for each habitable room shall be equal to at least 45 percent of the required window area.

(b) *Screening.*

- (1) Every outer door, openable window or other outside opening of a dwelling shall be supplied with screen doors with self-closing devices or with screens for pro-

tection against flies, mosquitoes or other insects when required by the housing inspector.

- (2) Every basement or cellar window used for ventilation and every other opening to a basement or cellar which might afford an entry for rodents shall be barred with strong screen of at least one-quarter-inch mesh or such other device as will prevent such entry, when required by the housing inspector.

(c) *Electrical outlets.* Every habitable room shall contain at least one wall-type electric convenience outlet and one ceiling electric lighting fixture or two electric convenience outlets, and every water closet compartment, bathroom or hall, furnace room or laundry room shall contain at least one wall- or ceiling-type electric light fixture. Every electrical outlet and fixture shall be properly installed and maintained in good and safe working condition and connected to an approved source of electric power in a safe, approved manner.

(d) *Public hall lighting.* Every public hall and stairway in every multiple dwelling shall be lighted to at least one footcandle on the floor and stairs at all times.

(e) *Heating facilities.* Every dwelling shall have heating facilities which are properly installed and vented and maintained in safe operating condition and are capable of heating all habitable rooms, bathrooms and water closet compartments in each dwelling unit therein to a temperature of at least 68 degrees Fahrenheit. (36 degrees Celsius.) at a distance of three feet above floor level when the outside temperature is 0 degrees Fahrenheit (minus 32 degrees Celsius).

(Code 1977, § 60-5; Ord. No. 82-2, 5-17-1982)

Sec. 6-121. Floor space and occupancy.

(a) *Floor space.*

- (1) Every dwelling unit shall contain at least 100 square feet of floor space for the

first occupant thereof and at least 75 additional square feet of floor space for every additional occupant, in addition to the floor area included in water closet compartments, bathrooms, halls and passageways.

- (2) Every room occupied for sleeping purposes shall contain at least 70 square feet of floor space for one occupant or 40 square feet of floor space for each occupant if more than one.

(b) *Access to sleeping rooms.* No dwelling unit shall be so located or arranged that access thereto requires passage through a habitable room of another dwelling unit.

(c) *Ceiling height of habitable rooms.* At least one-half of the floor area of every habitable room shall have a ceiling height of not less than 7½ feet. The floor area of any part of a room where the ceiling height is less than five feet shall not be considered as part of the required floor area.

(d) *Basement or cellar occupancy.* No basement space shall be used as a habitable room or dwelling unit unless:

- (1) The floor and walls are impervious to leakage of underground and surface run-off water and are well drained and protected against dampness.
- (2) The total window area in each room is not less than 15 percent of the floor area of the room, as measured between stops, and is entirely above the ground of the ground adjoining each window area.
- (3) The total openable window area of each habitable room is 45 percent of the required window area.
- (4) All heating equipment or other equally hazardous equipment is separated from the dwelling unit by a standard partition.

- (5) Access can be gained to the unit without passage through a furnace room. No cellar space shall be used as a habitable room of a dwelling unit.

(Code 1977, § 60-6; Ord. No. 82-2, 5-17-1982)

Sec. 6-122. Maintenance of dwelling and dwelling units.

(a) Structural soundness.

- (1) *Members.* Every foundation, door, outer wall, ceiling and roof shall be weathertight, watertight and rodentproof, shall be capable of affording privacy and shall be kept in good repair.
- (2) *Openings.* Every window, exterior door and basement hatchway or stairway shall be weathertight, watertight and rodentproof and shall be kept in good working condition and repair.
- (3) *Stairs and porches.* Every inside and outside stair and handrail and every porch and porch rail shall be so constructed as to safely support the maximum load that normal use may require and shall be kept in safe condition and good repair at all times. The housing inspector may require a handrail for each stair if deemed necessary.

(b) *Mechanical soundness of plumbing.* All plumbing shall be properly installed and maintained in sanitary condition, free from defects, leaks and obstructions.

(c) *Safe egress for dwellings.* Every dwelling shall have at least one unobstructed means of ingress and egress leading to safe open space at ground level and to a public street or alley. Where there is more than one dwelling unit on a second story or where there are more than two stories, a minimum of two approved exitways shall be provided for every occupied story above or below the first story; except, however, that a second story may be served by a single stairway if such stairway is enclosed by one-hour-fire-resistant materials where such second story

does not exceed 2,400 square feet in floor area and the distance from the dwelling units to the stairway is less than 50 feet.

(Code 1977, § 60-7; Ord. No. 82-2, 5-17-1982)

Sec. 6-123. Cleanliness, garbage, trash disposal and smoke detectors.

(a) *Owner and owner-occupant responsibility.* Every owner or owner-occupant shall be responsible for the cleanliness of all parts of a dwelling and premises shared in common by more than one family and for provisions of the following utilities and services, except where such responsibility is assumed by an operator or an occupant by agreement:

- (1) Provision of garbage and trash disposal facilities or containers where the dwelling exceeds two units.
- (2) Provision of smoke detectors as required by the fire safety provisions of the Annotated Code of Maryland.
- (3) Extermination of insects, rodents or other pests, except that where only one dwelling unit is infested, the occupant of such infested unit shall be responsible for its extermination unless the dwelling is not maintained in a reasonably ratproof or insectproof condition.
- (4) Provision of all other facilities, utilities, services or conditions required by this article.

(b) *Occupant responsibility.* Every occupant of a dwelling unit shall be responsible for keeping the occupied area and premises and all plumbing equipment and facilities in a clean, safe and sanitary condition at all times. Rubbish and garbage shall be disposed of or stored in proper containers in a neat and sanitary manner unless disposed of or stored by the owner or owner-occupant as provided in subsection (a) of this section.

(Code 1977, § 60-8; Ord. No. 82-2, 5-17-1982)

Sec. 6-124. Discontinuance of service or utilities.

Upon the discontinuance of gas or electric service for cause by a public utility company or upon discontinuance of any municipal or other service for cause, the housing inspector shall be notified and shall thereupon take immediate steps to have the responsible person correct conditions leading to such discontinuance of services, if possible. Because such utilities and services are essential for the health, safety and welfare of the occupants of any dwelling, no dwelling may continue to be occupied after removal or discontinuance of any service, facility, equipment or utility, except for temporary interruptions during actual repair work or during temporary emergencies when discontinuance of service is approved by the housing inspector. This section shall not be construed to prevent the cessation or discontinuance of any such service upon order of the housing inspector or any other authorized official.

(Code 1977, § 60-9; Ord. No. 82-2, 5-17-1982)

Sec. 6-125. Entry and inspection of dwelling; liability and defense of town employees.

(a) The housing inspector is hereby authorized and directed to make inspections to determine the condition of dwellings, dwelling units and premises located within the town in order to safeguard the health and safety of the occupants of such dwellings and of the general public. For this purpose and upon showing proper identification, the housing inspector is authorized to enter, examine and survey, at any reasonable hour, all dwellings, dwelling units and premises, and the owner, occupant or person in charge thereof shall give the housing inspector free access thereto for the purpose of such inspection; provided, however, that in the event objection is stated by the owner, occupant or person in charge of the premises at the time said housing inspector seeks to gain entry, then and in such event, the housing inspector shall

not enter over said objection and shall promptly cause to be convened a session of the housing board of review for the purpose of said housing board of review's making a determination as to whether the entrance requested by said inspector is necessary and proper. The determination by the board shall be made after an open hearing, at which hearing the property owner, occupant or person in charge thereof shall have a full opportunity to state the reason or reasons for his request that the inspector be denied access to the property.

(b) Every occupant of a dwelling shall give the owner thereof, or his agent or employees, access to any part of such dwelling or its premises at any reasonable hour for the purpose of making any repairs or alterations which are necessary to effect compliance with the provisions of this article or any lawful order issued pursuant hereto.

(c) No officer, agent or employee of the town shall be personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties under this article. Any suit brought against any officer, agent or employee of the town as a result of the proper discharge of his duties under this article shall be defended by the town attorney until final disposition of the proceedings therein.

(Code 1977, § 60-10; Ord. No. 82-2, 5-17-1982)

Sec. 6-126. Enforcement; service of notice and orders; hearings; vacation and demolition.

(a) Form and service of notices of violation.

- (1) Whenever the housing inspector determines that there has been a violation of any provision of this article, he shall give notice of such violation to the person or persons responsible therefor and order compliance with this article as hereinaf-

ter provided. Such notice and order shall be in writing on an appropriate form and shall include:

- a. A list of the violations with reference to the section of this article violated and an order as to the remedial action required to effect compliance with this article.
- b. Specification of a reasonable time for performance.
- c. Advice concerning the procedure for appeal.

- (2) Such notice and order shall be served upon the owner, occupant or agent in person; provided, however, that the notice and order shall be deemed to be properly served if such owner, occupant or agent is sent a copy thereof by registered mail to his last known address and a copy is posted in a conspicuous place in or on the dwelling affected.

(b) Hearings.

- (1) Any person affected by a notice and order issued in connection with the enforcement of this article may request and shall be granted a hearing on the matter before the housing board of review, provided that such person shall file in the office of the housing inspector a written petition requesting the hearing, setting forth his name, address, telephone number and a brief statement of the grounds for the hearing or for the mitigation of the order. Such petition shall be filed ten days after the date the notice and order are served. Upon receipt of the petition, the housing inspector shall set a time and place for a hearing before the housing board of review and shall give the petitioner written notice thereof. Said hearing shall be held within a reasonable time after a petition has been filed, and the petitioner shall be given an opportunity to be heard and to show

cause why the notice and order should be modified or withdrawn. The failure of the petitioner or his representative to appear and to state his case at such hearing shall have the same effect as if no petition were filed.

- (2) After the hearing, the housing board of review, by a majority vote, shall sustain, modify or withdraw the notice, depending on its findings as to whether the provisions of this article have been complied with, and the petitioner and the housing inspector shall be notified, in writing, of such findings.
- (3) The proceedings of the hearings, including the findings and decision of the housing board of review and the reasons thereof, shall be summarized in writing and entered as a matter of public record in the office of the housing inspector. Such record shall also include a copy of every notice and order issued in connection with the case.

(c) *Orders to vacate.*

- (1) Where a notice of violation and order to comply have been served pursuant to this article and upon reinspection at the end of the time specified in compliance, and if no petition for a hearing has been filed, it is found that the violation or violations have not been remedied, the housing inspector may order the dwelling, or parts thereof affected by the continued violations, vacated in accordance with the following procedure:
 - a. Dwellings shall be vacated within a reasonable time, not to exceed 60 days.
 - b. Vacated dwellings shall have all outer doors firmly locked and basement, cellar and first-story windows barred or boarded to prevent entry.

- c. Vacated dwellings shall not again be used for human habitation until written approval secured from the housing inspector.

- (2) If a dwelling or part thereof is not vacated within the time specified in the order of vacation, the housing inspector shall seek a court order in a court of competent jurisdiction for the vacation of such dwelling or part thereof.

(d) *Emergency order.* Whenever the housing inspector finds that an emergency exists which requires immediate action to protect the health and safety of the residents or of the public, he may issue an order so stating and, notwithstanding any other provisions of this article, such order shall take effect and shall be complied with immediately. Upon petition to the housing board of review, the petitioner shall be afforded a hearing pursuant to subsection (b) of this section.

(e) *Vacation and demolition.* If the owner, occupant or lessee fails to comply with the order of the housing inspector or the action of the housing board of review after hearing, the housing inspector shall cause such dwelling or part thereof to be vacated and repaired, as the facts may warrant, and shall, with the assistance of the town attorney, cause the costs of such repair to be charged against the land on which the building existed, as a municipal lien or to be recovered in a suit at law against the owner.

(Code 1977, § 60-11; Ord. No. 82-2, 5-17-1982)

Sec. 6-127. Establishment, powers and duties of housing inspector and board of review.

The office of housing inspector and the housing board of review are hereby created to conduct the inspections and hearings authorized by this article. The housing inspector shall be appointed by the mayor and confirmed by the council. The housing board shall consist of five members to be appointed by the mayor and

confirmed by the council, for overlapping terms of three years each, except that the members of the first board shall be appointed two for one year, two for two years and one for three years, respectively. Each member of the board shall serve until a successor is appointed. All members of the board shall be citizens of the United States and residents of the town. The housing board of review shall:

- (1) Adopt rules of procedure not inconsistent with this article, elect its own officers and keep a record of all proceedings, including the vote of each member on each case heard. No member of the board shall take part in any hearing or determination in which he has, directly or indirectly, any personal or financial interest. Three members of the board in attendance at any meeting shall constitute a quorum.
 - (2) Interpret the intent of this article in specific cases where, upon appeal, it clearly appears that, by reason of special conditions, undue hardship would result from the literal application of any section of this article. Where such undue hardship is clearly demonstrated, the board may permit a variance from the applicable section, provided that the dwelling will vary only a reasonable minimum from the literal provision of this article and will generally comply with the spirit and intent of the regulations as to sanitation, safety and rehabilitation. Any such variance shall be permitted only by the concurring vote of at least three members of the housing board of review.
- (Code 1977, § 60-12; Ord. No. 82-2, 5-17-1982)

Sec. 6-128. Violations and penalties.

Any person who shall violate any provision of this article shall, upon conviction, be punished by a fine of not less than \$10.00 nor more than

\$100.00, and each day of failure to comply with any such provision shall constitute a separate violation.

(Code 1977, § 60-13; Ord. No. 82-2, 5-17-1982)

Sec. 6-129. Interpretation.

The provisions of this article shall be held to be the minimum requirements to protect the health, safety, morals and welfare of the people of the town, and where this article imposes greater requirements than imposed by other provisions of law or ordinances, the provisions of this article shall control

(Code 1977, § 60-14; Ord. No. 82-2, 5-17-1982)

Secs. 6-130—6-156. Reserved.

ARTICLE VI. NUMBERING OF BUILDINGS*

Sec. 6-157. Numbers required.

The owners of all buildings in the town will be required to place or cause to be placed upon such building the number or numbers assigned to said building.

(Code 1977, § 38A-1; Ord. No. 89-6, 5-22-1989)

Sec. 6-158. Height, material and color.

Numbers used shall be at least three inches in height, made of a durable and clearly visible material and shall be of a contrasting color from the background.

(Code 1977, § 38A-2; Ord. No. 89-6, 5-22-1989)

Sec. 6-159. Placement.

The numbers shall be conspicuously placed immediately above, on or at the side of the proper door for each building in order that the numbers can be seen clearly from the roadway. Whenever any building is more than 75 feet from the roadway or whenever the numbers on the building are not clearly visible from the roadway,

***Charter reference**—Authority to regulate the numbering of houses, § C5-1B(31).

the address numbers must be placed at the main entrance or driveway of the building, on the same side of the roadway as the building and in such a manner as to be seen clearly from the roadway.

(Code 1977, § 38A-3; Ord. No. 89-6, 5-22-1989)

Sec. 6-160. Grid maps on file with town.

Grid maps of all streets, avenues, roads, public ways and private drives within the town showing the proper numbers of all structures fronting upon the public or private ways shall be kept on file in town hall. These grid maps shall be kept open for public inspection by the Mayor and Council.

(Code 1977, § 38A-4; Ord. No. 89-6, 5-22-1989)

Sec. 6-161. Violations and penalties.

Any person violating any provisions of this article shall have committed a municipal infraction, subject to a fine of \$10.00 for the first offense and \$25.00 for each subsequent offense. Each day that such a violation occurs shall be considered a separate offense.

(Code 1977, § 38A-5; Ord. No. 89-6, 5-22-1989)

Secs. 6-162—6-190. Reserved.

ARTICLE VII. GRADING

Sec. 6-191. Permit.

(a) A grading permit must be obtained prior to the start of any act by which soil is cleared, stripped, stockpiled, excavated, scarified, filled or any combination thereof.

(b) A grading permit may not be required for the following:

- (1) Accepted agricultural land-management practices on properties either zoned for such use or on properties identified as conducting a legal nonconforming agricultural use such as plowing and nursery operations such as the removal and/or transplanting of cultivated sod,

shrubs and trees and tree cutting at or above existing ground, leaving the stump, ground cover and root mat intact.

- (2) Refuse disposal areas or sanitary landfills operated and conducted in accordance with the requirements, rules and ordinances adopted by the county and the state. Exemption from permit, however, does not exempt these projects from other aspects of this article, including inspection as covered in this article.
- (3) Grading and trenching for utility installations within:
 - a. Highway rights-of-way.
 - b. Utility easements; provided, however, that all grading or trenching involved does not disturb the natural terrain, and that if during the course of utility operations, any erosion- and sediment-control measures previously in place are disturbed or destroyed, the utility company shall restore or repair such measures to their original condition.
- (4) Grading, as a maintenance measure, or for landscaping purposes on existing developed lots or parcels, provided that:
 - a. The aggregate of area(s) affected or bared does not exceed 1,000 square feet.
 - b. The grade change does not alter the drainage pattern.
 - c. All bare earth is promptly seeded, sodded or otherwise effectively protected from erosive actions.
- (5) Authorized town public works improvement and maintenance activities. Exemption from permit, however, does not ex-

empt these projects from other aspects of this article, including inspection as covered in this article.

(Code 1977, § 57-1; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-192. Issuance of building permit.

All provisions of this article and chapter 26, stormwater management, must be satisfied prior to issuance of a building permit.

(Code 1977, § 57-2; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-193. Conditions of approval; denial of permit.

The Mayor and Council of the town reserves the right to impose such conditions on the grading permit as may be reasonable to prevent creation of a nuisance or dangerous condition and to deny the issuance of a grading permit where the proposed work would cause a hazard adverse to the public safety and welfare.

(Code 1977, § 57-3; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-194. Permit application.

Application forms for a grading permit will be available at the office of the Mayor and Council and such other places as the Mayor and Council shall direct. The form, when completed, shall provide sufficient information to identify the applicant, the place and nature of the work to be done, the steps or procedures to be taken to control erosion and sedimentation and approximate beginning and ending time for soil earth moving. Acceptable standards and specifications for soil erosion and sediment control shall be available in the office of the county soil conservation district. Where developments are involved (commercial, industrial or two or more residential units or lots), the developer shall include in the application a grading and an erosion- and sediment-control plan designed by a professional engineer registered in the state

and a certificate that all land clearing, construction and development will be done pursuant to the said plan.

(Code 1977, § 57-4; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-195. Sediment control inspector.

There is hereby created the office of sediment control inspector who shall be appointed by and serve at the pleasure of the Mayor and Council and shall receive such compensation as may be provided for by the council. He shall have charge of issuing or refusing permits required under this article.

(Code 1977, § 57-5; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-196. Other required approvals.

Proposed steps and procedures to control erosion and sedimentation must be approved by the county soil conservation district prior to issuance of a grading permit by the sediment control inspector. Erosion and sediment control plans, when required, must be approved by the county soil conservation district. Issuance of a town grading permit does not eliminate the requirement for obtaining a department of natural resources permit, if required under conditions specified by state law. Stormwater management review and approval by the town water resources department is required.

(Code 1977, § 57-6; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-197. Permit suspension.

In the event that work performed does not conform to the provisions of the permit or to the approved plans and specifications or to any written instructions of the sediment control inspector, a written notice to comply shall be given to the permittee. Such notice shall set forth the nature of the corrections required and the time within which corrections shall be made. Failure to comply with such written notice shall be deemed justification for suspension of the per-

mit, which will require that all work stop except that necessary for correction of the violation. Upon correction of the violation, the permittee may apply for removal of the suspension. (Code 1977, § 57-7; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-198. Permit cancellation.

After suspension of a grading permit, if corrections required are not completed within the time period specified as provided in section 6-197, the permit shall be canceled. In event of cancellation, any bonds or cash deposits posted with the town shall be used for work on the site to prevent erosion. (Code 1977, § 57-8; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-199. Performance bond.

When recommended by the sediment control inspector and approved by the town council, the permittee shall be required, prior to the issuance of a grading permit, to post with the town a cash deposit, performance bond from an approved corporate surety or other collateral acceptable to the town. The amount posted shall be sufficient to guarantee that, in the event provisions of the permit are not completed satisfactorily, or that the permit is canceled, the site can be restored to a condition meeting the minimum requirements of the standards for erosion control. (Code 1977, § 57-9; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-200. Time limit on permit validity.

A grading permit shall be valid for a period of one year from the date of issuance. Upon request and adequate justification of a permittee, the sediment control inspector may grant a six-month extension of validity. (Code 1977, § 57-10; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-201. Inspections.

(a) The sediment control inspector shall be responsible for detecting violations of this article, requiring compliance with the provisions of approved grading permits and initiating appropriate action against offenders. The sediment control inspector shall make a final on-site inspection when the work covered by an application is reported completed and shall forward his report to the county soil conservation district.

(b) The permittee shall request the sediment control inspector to make inspections at the following stages of work:

- (1) Prior to initiating any grading operation, to inspect the natural site and to approve a written description of the supervision and construction-control program.
- (2) Upon completion of preparation of ground to receive fill, but prior to beginning any placement.
- (3) Upon completion of final grading, permanent drainage and erosion-control facilities, but prior to any seeding, sodding or planting.
- (4) Upon completion of the installation of all vegetative measures and all work in accordance with the grading permit.

(c) The sediment control inspector may make any additional inspections deemed necessary and may waive any of the inspections listed above except the final on-site inspection. Inspections requested shall be completed within two working days.

(Code 1977, § 57-11; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-202. Permit fee.

A minimum fee will be fixed for the granting of grading permits by the Mayor and Council of the town which shall have the right to adjust the same by resolution.

(Code 1977, § 57-12; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Sec. 6-203. Violations and penalties.

Any violation of this article shall be deemed a misdemeanor, and the person, partnership or corporation who is found guilty of such violation shall be subject to a fine not exceeding \$5,000.00 or one year's imprisonment for each and every violation. Any agency whose approval is required under this article or any person in interest may seek an injunction against any person, partnership or corporation, whether public or private, violating or threatening violation of any provisions of this article. Notice of violation of the provisions of this article shall be filed with the Maryland Department of Natural Resources, Maryland Department of the Environment as well as with appropriate county agencies and town departments.

(Code 1977, § 57-13; Ord. of 11-7-1973; Ord. No. 2010-10, 8-23-2010)

Secs. 6-204—6-229. Reserved.

**ARTICLE VIII. EXCAVATIONS;
CONSTRUCTION**

Sec. 6-230. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Excavate means any digging into the earth, whether mechanical or manual, which extends more than 12 inches below ground surface level.

Site plan means a scale drawing or map of an excavation site showing all aboveground features, including but not limited to buildings, trees and utility poles and must also show relevant property lines and dimension measurements.

(Code 1977, § 47-1; Ord. No. 87-4, 8-3-1987)

Sec. 6-231. Notification of town.

(a) Any individual or contractor who needs to excavate within the town limits shall be required to notify the director of public works in writing on forms provided at town hall.

(b) At the town's request, the requestor may be required to provide a site plan of the excavation site indicating all areas where excavation is proposed.

(Code 1977, § 47-2; Ord. No. 87-4, 8-3-1987)

Sec. 6-232. Marking underground facilities.

(a) When a person or company notifies the town that it intends to begin excavation, the town shall, within 48 hours of being notified, mark the horizontal location of the underground facilities of the ground to within three feet of either side of the underground facility by means of stakes, paint or other suitable means.

(b) In computing the 48-hour period, Saturdays, Sundays and holidays, as listed below, shall not be included:

New Year's Day, January 1

Martin Luther King's Birthday, January 15

Maryland Day, March 25

Good Friday, Friday before Easter Sunday

Memorial Day, last Monday in May

Fourth of July, July 4

Labor Day, first Monday in September

Thanksgiving, fourth Thursday in November

Christmas Eve, December 24

Christmas Day, December 25

(c) If there are no underground facilities existing in the area, the applicant shall be notified of this fact within 48 hours.

(Code 1977, § 47-3; Ord. No. 87-4, 8-3-1987)

Sec. 6-233. Delay in marking.

(a) In the case of extraordinary circumstances, if the town cannot mark the site within the 48-hour period, it shall notify the applicant, provide the reason why marking cannot be made and state when the site will be marked.

(b) This provision may not be used to indiscriminately delay marking of a location within the 48-hour period.

(Code 1977, § 47-4; Ord. No. 87-4, 8-3-1987)

Sec. 6-234. Spacing and direction of markers.

The stakes, paint or other suitable means used by the town for locating the underground facility shall be spaced with a frequency so as to clearly provide the route location of the underground facility, including deviations that would cause a departure from any generally marked straight line.

(Code 1977, § 47-5; Ord. No. 87-4, 8-3-1987)

Sec. 6-235. Notification of other agencies.

Notification of the town does not relieve the requester of any notification requirements of other agencies, including but not limited to Miss Utility. The requirements of this article are applicable specifically to the town's electric, sewer and water lines.

(Code 1977, § 47-6; Ord. No. 87-4, 8-3-1987)

Sec. 6-236. Violations and penalties.

(a) Any individual or company found in violation of this article shall be cited for a municipal infraction per article IV of chapter 2 of this Code. The fine shall be \$100.00 or the maximum allowed for single, initial violations under any subsequent amendments to chapter 2.

(b) Regardless of whether proper notification under this article is accomplished, any individual or company who damages the town's utility lines in the process of excavation shall be liable to the town for all costs incurred. These costs shall include, but not be limited to, direct material and labor costs to repair the lines, normal administrative overhead costs, outside contractors' fees and any fines or penalties which the town may incur as a result of leakage or disruption of service.

(Code 1977, § 47-7; Ord. No. 87-4, 8-3-1987)

Chapter 7

RESERVED

Chapter 8

BUSINESSES

Article I. In General

Secs. 8-1—8-18. Reserved.

Article II. Business Licenses

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Article III. Peddling and Soliciting

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ARTICLE I. IN GENERAL

Secs. 8-1—8-18. Reserved.

ARTICLE II. BUSINESS LICENSES*

Sec. 8-19. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authority means the authority as granted to the Mayor and Council by the Charter of the Town of Berlin.

Boundaries means the corporate, legal limits of the town as may be amended from time to time.

Business or business establishment means any retail, service, rental or professional business entity operating within or providing services within the town, regardless of whether said business or business establishment is physically located within the corporate limits of the town.

Business license fee means the annual fee imposed upon any business operating within the town.

Person means any individual, firm, cooperation, partnership or joint venture.
(Code 1977, § 39-1; Ord. No. 2009-04, 5-11-2009; Ord. No. 2023-04, 6-12-2023)

***Charter reference**—Authority to license and regulate businesses, § C5-1B(33).

State law references—Business occupations and professions, Md. Business Occupations and Professions Code Ann. § 1-101 et seq.; business regulations, Md. Business Regulation Code § 1-101 et seq.; licenses, Md. Ann. Code art. 24, § 11-201 et seq.

Sec. 8-20. Statutory authority.

Pursuant to the Charter of the Town of Berlin, article V, section C5-1B(33), the Mayor and Council of the town have the power to "license and regulate all persons beginning or conducting transient or permanent business in the town for the sale of any goods, wares, merchandise or services; to license and regulate any business, occupation, trade, calling or place of amusement or business; to establish and collect fees and charges for all licenses and permits issued under the authority of this Charter."
(Code 1977, § 39-2; Ord. No. 2009-04, 5-11-2009)

Sec. 8-21. Applicability.

The provisions of this article shall include all of the area within the corporate limits of the town as may be amended from time to time.
(Code 1977, § 39-3; Ord. No. 2009-04, 5-11-2009)

Sec. 8-22. License required; fee; transferability.

(a) No person shall operate any business or business establishment within the town without obtaining an annual license from the town. Failure to obtain or renew a business license within 90 days as required pursuant to this title constitutes a municipal infraction pursuant to chapter 1, section 1-23 of this Code and shall be punishable as a misdemeanor, the penalty for which shall not exceed a fine of \$1,000.00 and/or imprisonment for a term not to exceed six months.

(b) The fee for the business license shall be as set forth by the Mayor and Council of the town. The annual fee schedule may be amended by the Mayor and Council from time to time.

(c) The town administrator shall designate the appropriate department/personnel to oversee the billing and collection of the fee from the responsible person of each business establishment. The business license fee shall be due and

payable on July 1 of each and every year, and the entire fee shall be collected before any license is issued.

(d) Subject to all applicable provisions of other ordinances of the town, statutes of Maryland and all laws of the federal government, the business license shall be transferable, upon written notice to the town administrator, and shall be renewable from year to year during the continuous operation of the business by the licensee.

(e) In the event that any person commences business operation in the town subsequent to July 1 in any year, the fee may be prorated based on the number of months of operation during the licensing year.

(Code 1977, § 39-4; Ord. No. 2009-04, 5-11-2009; Ord. No. 2019-01, 5-13-2019; Ord. No. 2023-04, 6-12-2023)

Sec. 8-23. Application.

(a) The responsible person shall make application for a town business license on the form provided by the town. No license shall be granted until the license fee herein specified shall have been paid in full.

(b) Each applicant shall specify the legal name of the business, any other business name as appropriate (i.e., "trading as" name), the responsible person(s), the physical and mailing address of the business, and the number of units of a rental business as well as any other information as requested on the application form.

(c) The license shall be displayed on the licensed premises in a conspicuous place, or in the case of residential rental units, shall be shown upon request by any persons inquiring. (Code 1977, § 39-5; Ord. No. 2009-04, 5-11-2009)

Sec. 8-24. Collection and distribution of fees.

(a) The finance director of the town shall maintain an accurate accounting of business license fees billed and collected for the purposes of the allocation of those funds to the purpose as desired by the Mayor and Council.

(b) The fund comprised of the business license fees collected in accordance with this article shall be utilized solely for the purposes determined by the Mayor and Council.

(Code 1977, § 39-6; Ord. No. 2009-04, 5-11-2009)

Sec. 8-25. Effect on other applicable provisions.

(a) Any person who owns or operates a business in the town shall be subject to all applicable provisions of all other ordinances of the town, statutes of Maryland and the laws of the federal government.

(b) This article shall not be interpreted to relieve any person or entity of the responsibility for any other licensing or regulation required by any industry or other government entity. No licensing or regulation obtained from any industry or other government entity shall relieve any person or entity of the responsibility for obtaining a business license from the town.

(Code 1977, § 39-7; Ord. No. 2009-04, 5-11-2009)

Sec. 8-26. Rules and regulations.

(a) The Mayor and Council are hereby authorized and empowered to make, adopt, promulgate and amend, from time to time, such rules and regulations as the Mayor and Council deem necessary or proper to carry out and enforce the provisions of this article and to define or construe any of the terms or provisions of this article.

(b) It shall be a condition to the issuance of any and all licenses under this chapter that the business licensed shall be used and operated only for lawful purposes and that the licensee shall exercise sufficient control over the establishment so as to not allow the establishment to be used and operated in a manner that would be detrimental to or adversely affect the health, safety, peace, and general welfare of the surrounding properties and residents and/or the

public in general. As a further condition to the issuance of a license, the licensee shall use and operate the business in accordance with all applicable federal, state and local laws, ordinances, rules and regulations.

(c) The right is reserved to the Mayor and Council to refuse to grant any license, to suspend or revoke any license previously granted or to place appropriate restrictions on any license which is determined by the Mayor and Council, after notice and opportunity for a hearing, to be detrimental to or to adversely affect the health, safety, peace, and general welfare of the surrounding properties and residents and/or the public in general. In making a determination as to what action to take regarding a license, the Mayor and Council may consider, in addition to any other relevant factors, the following types of problems or conditions:

- (1) Excessive noise emanating from the establishment or premises.
- (2) Excessive traffic congestion.
- (3) Excessive loitering outside the establishment during or after business hours.
- (4) Trash accumulation, littering or allowing litter to go onto surrounding properties.
- (5) Fighting and/or disorderly conduct on the premises or emanating from the premises.
- (6) Premises being used for illegal activities, with or without the knowledge of the licensee.
- (7) Any activities creating a common law nuisance.

(d) The terms of this chapter shall apply to businesses located within or regularly doing business under subsection (h) of this section, within the corporate limits of Berlin.

(e) No license shall be issued to any person for a business located in an area not zoned for that purpose or to any person for a business which may be in violation of any other town ordinance.

(f) No business license will be issued to any person who has not paid prior years' personal property taxes, overdue taxes, fees, utility charges, miscellaneous billing or related assessments on such property or owed by the property/business owner in Berlin.

(g) No business license will be issued to any person or business required under state or county law to first have obtained a license or certificate for the profession or trade in which it is engaged unless a copy of a current license or certificate is on file with the town.

(h) No general contractor, sub-contractor or home improvement contractor shall perform work on any property within the town or obtain a permit to perform work within the town without having first obtained a business license under this chapter and complied with this section.

(i) All general contractors, sub-contractors and home improvement contractors shall have available at their place of business and at each work site where they are performing any service within the Town of Berlin, Maryland, a copy of a current business license issued pursuant to this chapter.

(j) This chapter shall not apply to the delivery of property or materials within the town when the only service performed in connection with such delivery is unloading and placing the property or materials at the site or location.
(Code 1977, § 39-8; Ord. No. 2009-04, 5-11-2009; Ord. No. 2025-03, 8-11-2025)

Sec. 8-27. Use of fees.

Any fees imposed under this article shall be used only for the purposes determined by the Mayor and Council and as amended from time to time and may not revert to the general fund of

the town so long as the appropriate venue for the use of those fees remains in operation as approved by the Mayor and Council under the provisions of this article.

(Code 1977, § 39-9; Ord. No. 2009-04, 5-11-2009)

Sec. 8-28. Licensing periods; penalties and interest.

(a) For the purposes of this article, the licensing shall be July 1 through June 30 of the following year. Bills for license fees shall be issued at least 30 days prior to July 1 of each year or as far in advance of July 1 as possible and shall be due and payable 30 days from the date of billing.

(b) Any person liable to pay the business license fee who fails to pay the same within 30 days after it is due and payable shall be subject to a five percent increase in the fee. Failure to pay after that point will result in penalties as follows:

- (1) No payment within 60 days will result in a 12 percent increase in the fee
- (2) No payment within 90 days will result in a 24 percent increase in the fee and publication of the name(s) of the business(es).

(c) The town reserves the right to transfer the fee and penalties to the business's water bill.

(Code 1977, § 39-10; Ord. No. 2009-04, 5-11-2009; Ord. No. 2019-01, 5-13-2019)

Sec. 8-29. Rental housing licensing.

(a) *Purpose.* The purpose of this section is to assure compliance with all laws, ordinances and regulations applicable to rental housing units within the corporate limits of the town. It is further the purpose to ensure safe, healthy and habitable housing conditions in rental housing units and to prevent said units from deterioration and to encourage responsible manage-

ment, maintenance and use of rental housing units through landlord licensing, rental registration and inspections.

(b) *Definitions.* The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building official means the individual appointed by the Mayor and Council to administer and interpret the applicable regulations for housing and property maintenance.

Housing board of review means the body, appointed by the Mayor and Council, established in section 6-127, to whom appeals of this article shall be made.

Rental housing unit means any space in any building within the town limits which, for a consideration, is made available by any person to another person for dwelling purposes.

(c) *Licensing.* Any person renting for the purpose of habitation any rental housing unit shall obtain a rental license from the town. Application form for said license shall be provided by the town. The holder of the license shall have a principal interest in the rental housing unit(s) for which the license application is made. The town shall obtain appropriate contact information from the applicant, including name, phone number and emergency contact information. The application shall include a consent to inspection during reasonable hours for the term of the license. Licenses shall be issued for a term of one year and may be renewable for additional one-year terms. Licenses shall be non-transferable. Fee for said license shall be established by the Mayor and Council and may be amended from time to time.

(d) *Registration.* For every rental license issued registry of all rental properties shall be maintained by the town. Said registry shall include the address of each rental housing unit,

the approximate number of residents for each unit and other information as provided on the rental license application form.

(e) *Inspections.* An inspection of the property(s) for which application has been made may be conducted prior to the issuance of a rental license. All rental housing units shall be subject to the International Property Maintenance Code as described in chapter 6 .

- (1) The building official may require the inspection of a rental housing unit when there is evidence that a property is not in compliance with housing and property maintenance standards as established in this Code.
- (2) If an inspection indicates that a rental housing unit is not in compliance with all applicable regulations and codes, the rental license pertaining to that particular unit may be subject to revocation. A rental license may be revoked if the licensee fails to correct the code violations within 30 days as specified by the building official. The revocation of a rental license shall be in addition to and not in substitution for other penalties and fines as may be provided for in other laws or ordinances.
- (3) A tenant's consent to entry for inspection shall be required as a term in every lease.
- (4) Refusal to permit entry for inspection purposes shall be grounds for revocation of the license.

(f) *Compliance required.* Owners of rental housing units are required to obtain a license to operate said rental unit. Any owner of a residential rental property who allows occupancy of a rental housing unit without first obtaining a license from the town may be subject to a fine of up to \$100.00 for an initial violation and \$200.00 per day for repeat or continuing violations. Each day the violation exists may be considered a new violation. The building official, when made

aware of an unlicensed rental unit, shall inform the owner, in writing, of the license requirement. Failure of the owner to apply for a rental license within ten business days shall be considered a violation of this section and cause the owner to be subject to the fine stated above. In order to prevent unsafe, unsanitary, substandard or non-compliant rental housing, the town shall have the authority to seek an injunction from the county circuit court against any owner of a rental housing unit to prevent continued operation of an unlicensed or non-compliant rental housing unit.

(g) *Appeals.*

- (1) Any person aggrieved by the action of the building official may, within ten days of receipt of written notice of such action, appeal such action to the town housing board of review by filing a notice of appeal to the building official. The board shall meet within 30 days of such notice and conduct a hearing according to its regulations as established in this Code. All fines, penalties, suspensions or revocations shall be stayed pending the board of review hearing and the decision of the board.
- (2) Any person aggrieved by an action of the housing board of review may appeal such action to the circuit court for the county pursuant to the Maryland Rules of Procedure.

(Code 1977, § 39-11; Ord. No. 2011-06, 9-12-2011)

Sec. 8-30. Short term rental licensing.

(a) *Generally.* It is the intent of this section and the regulations stated herein to maintain the character of residential neighborhoods in the Town of Berlin and to protect the health, safety and general welfare of residents while allowing short term rentals to exist under certain conditions and circumstances.

(b) *Definitions.*

Permanent residence means a dwelling unit, located within the Town of Berlin, in which the owner resides for an aggregate of at least 180 days annually and the dwelling unit carries the official designation as the owners' principal residence in accordance with the criteria governing the State of Maryland Department of Assessment and Taxation Homestead Tax Credit Program.

Short term residential rental means the use of all or any part of a dwelling unit to provide accommodations, not to exceed 28 consecutive days, to guests for sleeping or lodging purposes in exchange for a monetary remuneration, including accommodations facilitated by an internet hosting platform. A Bed and Breakfast is not included in this definition.

(c) *Eligible zone.* Short term residential rentals are permitted in the incorporated limits of the Town of Berlin in permanent residences within the R-1 residence district and R-2 residence district subject to the licensing requirements and regulations contained herein. Rental units within the R-3 apartment district, R-4 residence district, B-1 town center district, B-2 shopping district, and B-3 general business district are permitted subject to the licensing requirements and regulations contained herein. Rental units in any zoning district must also comply with the requirements for dwelling units contained in the Code of the Town of Berlin, Chapter 108, "Zoning," and Chapter 6, "Buildings and building regulations."

(d) *Requirements.* Any dwelling unit or portion thereof offered as a short term rental shall conform to the provisions of this section.

- (1) *License.* Prior to offering a dwelling unit or portion thereof as a short term rental, the property owner shall file an application for a short term residential rental license on forms provided by the Town. The application must be accompanied by an initial application fee in the amount

of \$350.00 and the property owner must agree to make the dwelling unit available for inspection in order to verify that the dwelling unit is in compliance with all applicable building code provisions, including those of the Worcester County Fire Marshal's office. Applications must include a floorplan indicating the intended rental space and an emergency egress plan. Floorplans with an emergency egress plan are required to be posted in each rented sleeping area of a short term rental. Upon passing said inspection, the property owner will be issued an annual short term residential rental license upon the payment of an annual license fee of \$200.00. The license must be renewed annually, and the Town of Berlin reserves the right to inspect subject properties at any time and before annual renewal. Each property owner shall provide the name and contact information for a responsible agent(s) who are available for contact 24 hours per day and seven days per week. A responsible agent(s) must be capable of responding to the property 24 hours per day and seven days per week and be located within a 30 mile radius of the Town of Berlin's incorporated limits. The licensee is responsible for ensuring accurate emergency contact information is on file with the Town of Berlin. The rental license shall be posted in both a prominent interior location and a prominent exterior location on the addressed side and visible from the roadway. All advertising, whether by print, electronic, audible, or in any other forms or substance designed or used to inform as to the availability of any property for rent which is the subject of the license, shall contain the valid rental license number

associated with the property. A short term residential rental license is not transferable.

Short term residential units are subject to the State of Maryland lodging taxes as administered by the Worcester County Maryland Treasurer's office.

- (2) *Duration of license.* Licenses are issued for the duration of one fiscal year concurrent with the Town of Berlin's fiscal year. Licenses will not be pro-rated.
- (3) *Renewal of license.* A short term rental license may be renewed as long as the licensee is in compliance with this section and other sections of the Town Code and upon payment of the annual license fee of \$200.00.
- (4) *Lapse of license.* Short term rental licenses that are not in compliance with this section or other sections of the Town Code for more than 30 calendar days will be deemed expired and must complete a new application.
- (5) *Occupancy.* Every bedroom occupied for sleeping accommodations shall contain not less than 70 square feet of floor area unobstructed other than by furniture for each occupant. The number of occupants shall not exceed the sum total of all occupants permitted in each bedroom of the structure as per chapter 6, article V, "Housing Standards," section 6-121, "Floor space and occupancy," of this Code.
- (6) *Parking.* One additional off-street parking space per each bedroom rented shall be required in addition to the parking required in the zoning district where the structure is located.
- (7) *Records.* A record of the names of all lodging guests who stay at the property, including their address, phone number, email address and the amount of mone-

tary remuneration received shall be provided upon request to Town officials and to Worcester County Treasurer's Office officials.

- (8) *Signage.* On premise signage shall not be permitted on licensed property.
- (9) *Events.* The hosting of functions and events, including but not limited to wedding ceremonies, wedding receptions, family reunions, birthday and anniversary celebrations, corporate and employee parties, and other similar gatherings of persons other than the authorized lodging guests, shall be prohibited in association with any short term rentals, regardless of whether or not any form of compensation or barter has been paid or received by any individual or firm for the event.

The Mayor and Council by resolution may establish additional standards, regulations, or require additional information as deemed necessary to enforce the provisions of this section and protect the integrity of the community.

(e) *Violations.* Violations and enforcement are the responsibility of the planning director or housing inspector pursuant to the Town Charter. A decision by the Planning Director to revoke a license may be appealed to the housing board of review.

- (1) *Renting without a license.* Rental of a property as defined by this section without a license will result in a reoccurring fine of \$600.00.
- (2) *Other violations.* A violation of any requirement of this section or other sections of the Town Code, excluding renting without a license as defined in section (e)(1), will result in a civil violation of \$100.00. Repeat or continuing violations will result in a fine of \$200.00 per day and may result in revocation of the

short term rental license for the remainder of the licensing period plus one year. (Ord. No. 2022-02, 3-28-2022; Ord. No. 2022-06, 9-12-2022)

Secs. 8-31—8-46. Reserved.

ARTICLE III. PEDDLING AND SOLICITING*

Sec. 8-47. Definitions.

The following words and phrases, when used in this article, shall, for the purpose of this article, have the meanings respectively ascribed to them in this section, except as may hereinafter be specifically provided:

Peddler means any person who shall engage in peddling as herein defined.

Peddling means the selling or offering for sale of any goods, wares or merchandise for immediate delivery which the person selling or offering for sale carries with him or her in traveling, or has in his or her possession or control, upon any of the streets or sidewalks or from house to house within the town; provided, however, that the word "peddling" shall not apply to the seeking of or taking of orders:

- (1) By any manufacturer or producer for the sale of bread or bakery products, meat

and meat products or milk or milk products, produce, eggs or other agricultural products;

- (2) By insurance or real estate agents or brokers licensed under the applicable laws of the State of Maryland; or
- (3) By persons for the sale of newspapers regularly published and/or distributed in Worcester County.

Person means any natural person, association, partnership, firm or corporation.

Soliciting means the seeking or taking of contracts or orders for any goods, wares or merchandise for future delivery or for subscriptions or contributions upon any of the streets or sidewalks or from house to house within the town; provided, however, that the word "soliciting" shall not apply to the seeking of or taking of orders:

- (1) By any manufacturer or producer for the sale of bread or bakery products, meat and meat products or milk or milk products;
- (2) By insurance or real estate agents or brokers licensed under the applicable laws of the State of Maryland; or
- (3) By persons for the sale of newspapers regularly published and/or distributed in Worcester County.

Solicitor means any person who shall engage in soliciting as hereinabove defined. (Ord. No. 2025-04, 8-11-2025)

Sec. 8-48. License required.

(a) No person shall engage in soliciting or peddling in the town without first registering with the police department and obtaining a town license therefor.

(b) Any applicant wishing to obtain a town license for the soliciting or peddling of any product, item or service also regulated by another governmental agency (i.e., the health department) must show evidence of compliance with

***Editor's note**—Ord. No. 2025-04, adopted August 11, 2025, repealed the former Article III, §§ 8-47—8-56, and enacted a new Article III as set out herein. The former Article III pertained to similar subject matter and derived from Code 1977, § 75-1—75-10; Ord. No. 2014-4, July 14, 2014.

Charter reference—Authority to regulate hawkers and peddlers, etc., § C5-1B(29).

State law references—State licenses for peddlers, Md. Business Regulation Code Ann. § 17-904 et seq.; state license for transient vendors, 17-20A-01 et seq.; license issued by municipalities, Md. Business Regulations Code Ann. § 17-912.

such regulations and a current license, where appropriate, prior to the issuance of a town license.

(Ord. No. 2025-04, 8-11-2025)

Sec. 8-49. Application for license.

(a) Every person desiring to engage in soliciting or peddling in the town shall first request a license therefor from the police department, giving his or her name, address, sex, age, previous criminal record, if any, the name and address of the person for whom he or she works, if any, the type or types of article, device, subscription, contribution, service or contract which he or she desires to sell or for which he or she wishes to solicit within the town, the length of time for which he or she wishes to be registered, the type of vehicle he or she uses, if any, and its registration number.

(b) Notwithstanding the provisions of subsection (a) hereof, any civic, religious or charitable organization shall be permitted, in lieu of the procedure hereinbefore set forth, to register its solicitors and peddlers acting for and on behalf of such organization or association by the submission of the names and addresses of all persons acting for and on behalf of such organization, together with a certification by an officer thereof that all of the persons whose names appear on such list are members of such organization and/or are acting on its behalf and are of good repute and without prior criminal record of a crime involving moral turpitude.

(Ord. No. 2025-04, 8-11-2025)

Sec. 8-50. Fees.

No license shall be issued until the proper fees, as shall be determined by the council by resolution, shall have been paid to the police department.

(Ord. No. 2025-04, 8-11-2025)

Sec. 8-51. License issuance; conditions.

Upon receipt of the required application properly completed by the applicant, together with

the necessary fees, the police department shall issue a solicitor's and peddler's permit, unless the applicant shall have been convicted of a crime involving moral turpitude or unless the organization making application shall be under investigation by the consumer protection division of the Office of the Attorney General of Maryland. No license issued pursuant hereto shall be transferable from one person to another.

(Ord. No. 2025-04, 8-11-2025)

Sec. 8-52. Display of license; compliance with license.

Every solicitor or peddler shall, at all times while engaged in soliciting or peddling in the town, carry on his or her person the license and, upon request, exhibit the same to all police officers, town officials and citizens. No solicitor or peddler shall engage in selling or offering for sale or in seeking or taking of orders or contracts for any goods, wares, merchandise, article, device, subscription, contribution, service or contract not mentioned upon such license, nor shall any person use any vehicle for soliciting or peddling other than the vehicle registered upon his or her license.

(Ord. No. 2025-04, 8-11-2025)

Sec. 8-53. Time and location restrictions.

(a) No person shall engage in soliciting or peddling at any time on Saturday or Sunday, or any state or federal holiday. Soliciting or peddling may only take place Monday through Friday from 10:00 a.m. to 4:00 p.m. except with invitation from or appointment with the resident.

(b) A person who solicits or peddles goods on the streets of the town from either a vehicle or conveyance of any description shall keep moving from place to place and not remain in any one place longer than 20 minutes or return thereto within a period of five hours. A solicitor or peddler shall not be deemed to have complied

with this provision unless he or she shall have moved a distance of at least 100 feet from the point or place at which he or she last stopped.

(c) No solicitor or peddler shall stop or take up location for the purpose of selling at any point which is less than 250 feet from the entrance of any store or place of business which sells, at retail, trade goods, wares, merchandise, food-stuffs or produce similar to that which the solicitor or peddler is offering for sale.
(Ord. No. 2025-04, 8-11-2025)

Sec. 8-54. Noise.

No person engaged in soliciting or peddling shall solicit or cry his or her goods, wares, merchandise, offers, contracts or services upon any of the streets or sidewalks of the town, nor shall be[he] or she use any loudspeaker or horn or any other device for announcing his or her presence to the members of the public.
(Ord. No. 2025-04, 8-11-2025)

Sec. 8-55. Nuisances.

Entering a private residence or place of business in the town by a solicitor or peddler under false pretenses for the purpose of selling or offering for sale or for soliciting orders for goods, wares, merchandise, contracts or personal services; or remaining in a private residence or the premises thereof or any place of business or on the premises thereof after the owner or occupant thereof shall have requested any solicitor or peddler to leave; or going in and upon the premises of the private residence or place of business by a solicitor or peddler for any such purpose when the owner or occupant thereof has displayed a "no soliciting" sign on such premises is prohibited and is further declared to be a nuisance.
(Ord. No. 2025-04, 8-11-2025)

Sec. 8-56. Form and contents of license.

Each license shall be issued in card form, shall be carried by the person for whose benefit

it is issued and shall contain the following: number of permit, fee paid, date of issue, expiration date, name, age, height, weight, name of employer, address and signature of holder. The reverse side of such license shall contain any regulations then in effect and controlling the holder as well as any conditions and/or limitations to which such permit is subject.
(Ord. No. 2025-04, 8-11-2025)

Sec. 8-57. Numbering of licenses.

Licenses shall be issued in numerical order; provided, however, that separate records in a separate numerical order shall be retained and maintained for such licenses as are issued without payment of a license fee.
(Ord. No. 2025-04, 8-11-2025)

Sec. 8-58. Violations and penalties.

Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23 for each day said violation continues.
(Ord. No. 2025-04, 8-11-2025)

Chapter 9

RESERVED

Chapter 10

CIVIL EMERGENCIES*

Article I. In General

Secs. 10-1—10-18. Reserved.

Article II. Emergency Management

Sec. 10-19. Definitions.

Sec. 10-20. Proclamation of emergency.

Sec. 10-21. Curfew.

Sec. 10-22. Additional powers.

Sec. 10-23. Manner of giving notice.

Sec. 10-24. Violations and penalties.

***State law reference**—Emergency management, Md. Public Safety Code Ann. § 14-101 et seq.

ARTICLE I. IN GENERAL**Secs. 10-1—10-18. Reserved.****ARTICLE II. EMERGENCY MANAGEMENT*****Sec. 10-19. Definitions.**

As used in this chapter, the following terms shall have the meanings indicated:

Civil emergency means the threat or occurrence of:

- (1) A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force if accompanied by immediate power to execute same by three or more persons acting together without authority of law.
- (2) Any natural disaster or manmade calamity, including but not limited to a hurricane, storm, flood, high water, snowstorm, drought, conflagration, cyclone, tornado, earthquake or explosion within the corporate limits of Berlin, resulting in the death or injury of persons or in the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.
- (3) An enemy attack, act of terrorism or public health catastrophe.

Curfew means a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of Berlin, except persons officially designated to duty with reference to said civil emergency.

Emergency management means the preparation for and carrying out of functions in an

***State law reference**—Emergency management, Md. Public Safety Code Ann. § 14-101 et seq.

emergency in order to save lives and to minimize and repair injury and damage that result from emergencies beyond the capabilities of local authorities. Emergency management does not include the preparation for and carrying out of functions in an emergency for which military forces are primarily responsible.

(Code 1977, § 41-1; Ord. No. 110, 8-5-1968)

State law reference—Definitions, Md. Public Safety Code Ann. § 14-101.

Sec. 10-20. Proclamation of emergency.

When in the judgment of the mayor, or in his absence, the vice-president of the council, a civil emergency as defined herein is deemed to exist, he shall forthwith proclaim in writing the existence of same.

(Code 1977, § 41-2; Ord. No. 110, 8-5-1968)

State law reference—Principal executive officer may declare a local state of emergency, Md. Public Safety Code Ann. § 14-111.

Sec. 10-21. Curfew.

After the proclamation of a civil emergency by the mayor, or vice-president, he may order a general curfew applicable to such geographical areas of the town or to the town as a whole, as he deems advisable, and said curfew shall be applicable during such hours of the day or night as he deems necessary in the interest of the public safety and welfare.

(Code 1977, § 41-3; Ord. No. 110, 8-5-1968)

Sec. 10-22. Additional powers.

After the proclamation of a civil emergency, the mayor or the vice-president, as the case may be, may also in the interest of public safety and welfare make any or all of the following orders:

- (1) Order the closing of all retail liquor stores.
- (2) Order the closing of all taverns and restaurants.

- (3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and/or beer is permitted.
- (4) Order the discontinuance of the sale of all alcoholic beverages.
- (5) Order the discontinuance of selling, distributing or giving away of gasoline or other liquid flammable or combustible products in any container other than a gasoline tank which is an integral part of a motor vehicle.
- (6) Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products.
- (7) Order the discontinuance of selling, distributing, dispensing or giving away of any firearms or ammunition of any character whatsoever.
- (8) Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms and/or ammunition.
- (9) Order the temporary closing of any and all streets, alleys and other public ways in the town.
- (10) Issue such other orders as are imminently necessary for the protection of life and property.

(Code 1977, § 41-4; Ord. No. 110, 8-5-1968)

in town hall and issued to the communications media for immediate dissemination to the public.

(Code 1977, § 41-5; Ord. No. 110, 8-5-1968)

Sec. 10-24. Violations and penalties.

Any person violating the provisions of this chapter or executive order issued pursuant thereto shall be guilty of an offense against the town and shall be punishable by a fine not exceeding \$100.00 and/or imprisonment for a period not to exceed 90 days, or both.

(Code 1977, § 41-6; Ord. No. 110, 8-5-1968)

Sec. 10-23. Manner of giving notice.

If the mayor or vice-president of the council deem it necessary to invoke any or all of the provisions of sections 10-19 through 10-22, inclusive, he shall give notice of the same by means of a written proclamation, publicly posted

Chapter 11

RESERVED

Chapter 12

ELECTIONS*

Article I. In General

- Sec. 12-1. Financial disclosure.
- Sec. 12-2. Prohibited practices.
- Sec. 12-3. Violations and penalties.
- Sec. 12-4. Applicability.
- Sec. 12-5. Alternate member of the board of supervisors of elections.
- Secs. 12-6—12-26. Reserved.

Article II. Campaigning

Division 1. Generally

- Secs. 12-27—12-55. Reserved.

Division 2. Activities

- Sec. 12-56. Campaign regulations.
- Sec. 12-57. Electioneering.
- Sec. 12-58. Campaign signs.
- Secs. 12-59—12-89. Reserved.

Division 3. Literature

- Sec. 12-90. Identification of responsible party.
- Secs. 12-91—12-108. Reserved.

Article III. Voting and Election Results

Division 1. Generally

- Secs. 12-109—12-129. Reserved.

***Charter reference**—Registration, nominations and elections, art. VI.

State law references—Election laws, Md. Election Law Code Ann. § 1-101 et seq.; voting by absentee ballot, Md. Ann. Code art. 23A, § 47.

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Division 2. Voting

Sec. 12-130. Absentee voting.

Sec. 12-131. Voter assistance.

Secs. 12-132—12-160. Reserved.

Division 3. Election Results

Sec. 12-161. Tabulation and announcement of election results.

ARTICLE I. IN GENERAL

Sec. 12-1. Financial disclosure.

Candidates for elective offices shall be subject to all applicable provisions of article II of chapter 2, ethics, of the Berlin Code regarding financial disclosure by candidates.

(Code 1977, § 5-1; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

State law reference—Financial disclosure applicable to candidates, Md. State Government Code Ann. § 15-805(d).

Sec. 12-2. Prohibited practices.

The following practices shall be prohibited during the conduct of an election or campaign and shall be punishable under the provisions set forth in section 12-90:

- (1) *Offering of a bribe.* Any person who shall, directly or indirectly, by himself or by another, give, offer or promise to any person any money, gift, advantage, preferment, aid, compensation or any valuable thing whatever, whether for the public good or the personal gain of the person to whom such offer is made, for the purpose of inducing or procuring any person to vote or refrain from voting for or against any candidate or for or against any measure or proposition on the ballot during a town election shall be deemed to have offered a bribe.
- (2) *Accepting or soliciting a bribe.* Any person who shall, directly or indirectly, receive, accept, request or solicit from any person, candidate, committee, association, organization, corporation or entity, any money, gift, advantage, preferment, aid, compensation or any valuable thing whatsoever, whether for the public good or the personal gain of the person receiving such consideration, for the purpose of inducing or procuring any person to vote or refrain from voting for or against any candidate or for or against any mea-

sure or proposition during a town election shall be deemed to have accepted a bribe.

- (3) *Acting on a bribe.* Any person who, in consideration of any money, gift, advantage, preferment, aid, compensation or any valuable thing whatsoever paid, received, accepted or promised, whether for the public good or the personal gain of the person receiving such consideration, shall vote or refrain from voting for or against any candidate or for or against any measure or proposition at any town election shall be deemed to have acted on a bribe.
- (4) *Political contributions in a false name.* Any person who shall, directly or indirectly, by himself or through another person, make a payment or promise of payment to a treasurer or candidate in any other name than his own and every treasurer or candidate who shall knowingly receive a payment or promise of payment and enters the same or causes the same to be entered in his accounts in any other name than that of the person or persons by whom such payment or promise of payment is made shall be deemed to have violated this provision.
(Code 1977, § 5-4; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Sec. 12-3. Violations and penalties.

Any person who violates any of the provisions of this article shall be guilty of a misdemeanor and, upon conviction, shall be fined not more than \$1,000.00 or be imprisoned for not more than six months, or both in the discretion of the court, and shall be ineligible for any public office within the town for a period of four years following the date of such conviction. In the event that any state law pertaining to misdemeanor penalties and convictions is determined by a court of

competent jurisdiction to be applicable to a violation of this article, the more restrictive penalty shall apply.

(Code 1977, § 5-9; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Sec. 12-4. Applicability.

Every act which, by the terms and provisions of this article, is deemed a violation when committed in reference to the election of a candidate, is equally in violation and subject to the same penalties when committed in reference to a proposition, question or measure submitted to the board of elections supervisors for inclusion on any general or special election ballot or for referendum vote.

(Code 1977, § 5-10; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Sec. 12-5. Alternate member of the board of supervisors of elections.

As established in the Charter of the Town of Berlin, Article VI § C6-2 the board of supervisors of elections consists of five members appointed by the mayor with the approval of the council. Additionally, there shall be one alternate appointed to the board who shall act in the capacity of a board member only upon the absence of at least one full member. Additionally, the alternate shall participate in the duties of a polling place on the day of the election, along with the full members of the board. the qualifications and term of the alternate shall be the same as full members in that the alternate shall be a qualified voter of the town and shall not hold or be a candidate for any elective office during their term, and the term shall be for four years.

(Ord. No. 2024-03, 5-13-2024)

Secs. 12-6—12-26. Reserved.

ARTICLE II. CAMPAIGNING

DIVISION 1. GENERALLY

Secs. 12-27—12-55. Reserved.

DIVISION 2. ACTIVITIES

Sec. 12-56. Campaign regulations.

In addition to the provisions set forth in division 3 of this article regarding standards for campaign literature, the following provisions shall apply:

- (1) Any political committee authorized by a candidate to receive contributions or make expenditures shall be authorized in writing by the candidate and must register with the town.
- (2) Any committee formed for the sole purpose of supporting a candidate or for supporting or opposing a referendum issue or question which expends more than \$50.00 during any one election on advertisement, literature or campaign materials of any kind must register with the town.
- (3) Any person or persons, whether in their capacity as individuals or as representatives of a business or organization, which expend more than \$25.00 during any one election on advertisement, literature or campaign materials of any kind for the purpose of supporting or opposing a referendum issue or question must register with the town.
- (4) All campaign literature or materials, whether in support of an individual candidate or in support or opposition to a referendum question, shall state the name of the sponsor or sponsors, that the opinions expressed therein represent the sole views of that sponsor or sponsors and that the statement or advertisement is a paid political advertisement. All provisions of division 3 of this article shall be adhered to.
- (5) It shall be unlawful for any individual, association, unincorporated association, corporation or any other entity, either directly or indirectly, to contribute in any

election cycle any money or thing of value greater than \$1,000.00 to any one candidate or political committee or to contribute any amount in excess of \$100.00, except by check.

(Code 1977, § 5-2; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Sec. 12-57. Electioneering.

(a) No person shall canvass, electioneer or post any campaign material in any polling place or within a 100-foot radius of the entrance or exit of the building where ballots are cast. This prohibition shall not apply to a voter who parks a vehicle containing a campaign bumper sticker within the 100-foot radius of the polls, but it shall apply to a vehicle that is posted with more than one campaign sign or sticker.

(b) Any person conducting or assisting in an entrance or exit poll during the hours of the voting polls' operation must wear an identifying badge stating the person's name and candidate or group affiliation.

(c) The Berlin Police Department shall be responsible for the enforcement of the electioneering prohibitions and shall cite violators under the provisions of section 12-3.

(Code 1977, § 5-7; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Sec. 12-58. Campaign signs.

(a) Campaign signs may be erected or posted, subject to the limitations and provisions of this article, not more than 60 calendar days preceding the applicable election and shall be removed within seven calendar days following the day of the applicable election.

(b) Prior to the posting of any campaign signs, posters or placards, whether for an individual or a measure being supported or opposed, the candidate or committee must have approval for the resident or owner of the property involved.

(c) Campaign signs may not be posted or erected so as to obstruct traffic view from any direction; nor may they obstruct any pedestrian thoroughfare or public way.

(d) Prior to the close of polls on election day, campaign signs which have been lawfully posted or erected may not be removed by persons not authorized by the candidate or group responsible for the posting or erection of those signs.

(Code 1977, § 5-3; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Secs. 12-59—12-89. Reserved.

DIVISION 3. LITERATURE

Sec. 12-90. Identification of responsible party.

Every person who publishes, produces or distributes or causes to be published, produced or distributed any pamphlet, circular, card, sample ballot, dodger, poster, advertisement or any printed, multigraphed, photographed, typewritten or written matter or statement or any matter or statement which may be copied by any device or method now known for printing or copying or which may hereafter be used for making copies or printed or written matter in any form whatever for publication or distribution, including radio, television and computer, or other electronic device advertisements, concerning any candidate, including a write-in candidate, or prospective candidate for public or party office or for the acceptance or defeat of any proposition shall cause such pamphlet, circular, card, sample ballot, dodger, poster or advertisement or other form of publication herein described to clearly indicate the name of the candidate or committee responsible for the publication and contain, but set apart therefrom, an authority line which shall include the words "By Authority

of (name)" or "Paid for by (name)," or other such words clearly identifying the responsible individual or group.

(Code 1977, § 38B-1; Ord. No. 88-4, 1-9-1988; Ord. No. 2010-02, 4-12-2010)

State law reference—Authority line requirements, Md. Election Code Ann. § 13-401.

Secs. 12-91—12-108. Reserved.

ARTICLE III. VOTING AND ELECTION RESULTS

DIVISION 1. GENERALLY

Secs. 12-109—12-129. Reserved.

DIVISION 2. VOTING

Sec. 12-130. Absentee voting.

Any qualified voter may vote by absentee ballot, subject to provisions as follows:

- (1) Printed application forms for the request of absentee ballots shall be provided by the board of supervisors of elections. Application deadlines will be advertised by the board of elections supervisors in accordance with the notice provisions of article VI of the Charter.
- (2) Applications for absentee ballots may be submitted not more than 30 calendar days and not after the close of business on the Friday preceding a regular or special election. If less than seven calendar days remain prior to the election to which they apply, application must be made in person at the Town Hall, to the designated representative of the board of supervisors of elections. The signature of the applicant for an absentee ballot must be witnessed and dated. Applications for absentee ballots must be approved by the chairperson of the board of elections supervisors or the chairper-

son's authorized designee. Should the chairperson or designee determine that an application may not be acceptable or valid for any reason, the application will be reviewed by the entire board of elections supervisors and may be rejected only by majority vote of that body.

- (3) Upon approval of the application, absentee ballots will be mailed, except when less than five calendar days remain before the applicable election. After that time, ballots may be obtained in person, at any time, up to and including one hour prior to the close of the polls on election day, provided that the application has been approved.
 - (4) Upon presentation of a valid application for an absentee ballot and a written authorization signed by the voter, an authorized agent may obtain an absentee ballot for a voter who is unable to pick up a ballot in person.
 - (5) Postage for mailing of a ballot or application to the voter will be paid by the town, and postage for the return of ballots shall be paid by the voter.
 - (6) Only those absentee ballots which are physically received by the board of elections supervisors or the town office prior to the close of polls or the day of the applicable election will be counted in the results for that election.
 - (7) Any absentee ballot showing a vote for a person who is not a valid candidate for any reason will not be counted for that candidate, but such vote will not invalidate the remainder of the ballot.
- (Code 1977, § 5-5; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010; Ord. No. 2013-07, 10-28-2013; Ord. No. 2020-04, 6-22-2020)
- State law reference**—Voting by absentee ballot, Md. Ann. Code art. 23A, § 47.

Sec. 12-131. Voter assistance.

(a) Physical assistance shall be provided by election judges, whenever necessary, to any voter who, due to physical infirmity, has difficulty in voting. The board of supervisors of elections shall make all reasonable appropriate provisions for handicapped voters, including without limitation the provision of handicapped ramps and otherwise making polls accessible.

(b) A voter may be accompanied by his or her designee into the voting machine or balloting stall to provide physical assistance in operating the machine or marking the ballot if the voter is incapable of doing so personally because of physical infirmity or due to an inability to see, read or understand the ballot. If a voter physically incapable of operating the voting machine or marking a ballot personally has no designee, physical assistance may be provided by election judges at the voter's request. In the event that such assistance is requested, one election judge, in the presence or hearing of another election judge, shall mark the ballot or operate the voting machine at the direction of the voter requesting assistance. It shall be unlawful for any person providing such assistance to operate the voting machine or mark a ballot except at the voter's direction, without prompting or suggestion from the person or persons providing such assistance.

(c) If any voter, after entering the voting machine or booth, shall ask for further instructions concerning the manner of voting, then two elections judges shall give him such instructions on the mechanical operation of the machine or the proper method of completing the ballot, including without limitation reading the ballot aloud for the voter to make his desired selection, but no judge shall in any manner request, suggest or otherwise seek to persuade or influence any voter in the individual choices made during the casting of that ballot or vote.

(d) In the event that the physical capability of an otherwise qualified voter appears to be sufficient to operate the voting machine or mark the

ballot, even though that person requests accompaniment by election judges or a designee, the ruling of the chairperson of the board of election supervisors, in consultation with the election judges and supervisors present shall apply for the election day in question. Voters denied assistance may provide acceptable evidence, by affidavit or other means, of their physical incapability, illiteracy or language barrier for that election day or for purposes of filing for assistance in future elections.

(e) Except as otherwise provided in this subsection, no voter may be accompanied into a voting booth or machine by any person over the age of five years.

(Code 1977, § 5-6; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010)

Secs. 12-132—12-160. Reserved.

DIVISION 3. ELECTION RESULTS

Sec. 12-161. Tabulation and announcement of election results.

In addition to the provisions set forth in Article VI of the Berlin Charter for the conduct of elections, the following provisions shall apply:

A. Close of polls.

- (1) Voters who are within or who have joined the queue to the polling place at the designated time of the closing of the polls shall be permitted to vote. No further admittance to the polling place or queue of individuals desiring to cast their vote past the designated time of the closing of the polls shall be permitted.
- (2) When all permitted voters have cast their ballots, the poll workers shall adjourn to the designated location to tabulate the votes.

B. *Tabulation of results.*

- (1) Upon arrival at the designated location for tallying the votes, the members of the board of supervisors of elections shall organize themselves in a manner of their choosing to complete the tally of all votes cast, including of absentee ballots received.
- (2) Upon counting of all ballots received, the vote tallies shall be noted on the designated form.

C. *Poll watchers.*

- (1) Poll watchers may be selected by duly-nominated individual candidates or by the presiding officer of the chief managing committee of any voluntarily associated group of candidates or proponents or opponents of a measure on the ballot. Such watchers shall have the rights and be subject to the same limitations set forth in MD. Election Law Ann. § 10-311, as amended from time to time.
- (2) Each group, organization, corporation or committee duly registered with the town according to section 12-6, may have one representative designated as a poll watcher present during the counting and tabulating of election results. Individual candidates who were duly nominated for placement on the ballot may have one representative designated as a poll watcher present during the counting and tabulating of election results.
- (3) The designated individual identified as a poll watcher may not interact with the election judges and may not use any means now known, or available in the future, to communicate with persons outside the room

where the results are being tabulated. Poll watchers must remain in the room where the results are being tabulated; if the poll watcher leaves the room, he may not be readmitted.

- (4) Poll watchers must have on their person a signed document provided by the candidate, organization, corporation or committee specifically designating that person as a poll watcher. The board of elections supervisors will provide a form for this purpose, or a written statement signed by the appropriate candidate or officer of any organization, corporation or committee may be used in lieu of the form provided by the board of elections supervisors.
- (5) The chief of the town police department or his authorized designee shall act as sergeant at arms during the counting and tabulating of the election results and shall, at the request of the chairperson of the board of supervisors of elections, remove any person present during that tabulation who becomes unruly, disorderly or otherwise disruptive to the process of tabulation.

D. *Announcement of results.*

- (1) Upon completion of the unofficial count and tabulation, the media and the public will be admitted to the polling place or other site of the tabulation process for the announcement of the unofficial results.
- (2) The chairperson of the board of election supervisors shall announce the unofficial results of the election as soon as possible after the polls close and results have been tabulated. The chairperson shall post or

cause to be posted the unofficial results of the vote on the Town Hall bulletin board, government access channel or other available means by the next business day following the close of the polls and the tabulation of the vote.

- (3) Official results will be certified to the town administrator of the town within 48 hours after the close of the polls, in accordance with Article VI, Section C6-12 of the Charter.

E. *Tie votes.*

- (1) If, upon tabulation of the votes, it is determined that at least two candidates for the office of mayor or an individual council seat received the same and highest number of votes, a tie vote for that office shall be declared to the town administrator and the winning candidate will not be declared until such time as a tie-breaker can be performed. The remainder of ballots for seats not resulting in a tie will be considered final and available for certification per 12-161.D above.
- (2) As per Article III, Section 4 of the Charter of the Town of Berlin, "Meetings", the candidates who received the tie votes shall attend the next regularly scheduled meeting of the mayor and council.
- (3) At that meeting the town administrator will offer each candidate the opportunity to voluntarily withdraw from the race thereby forfeiting to the remaining candidate.
 - a. If one candidate chooses to forfeit, the remaining candidate shall therefore be certified as the winner of the con-

tested seat and shall be sworn in along with the remainder of the ballot.

- (4) If neither candidate chooses to forfeit, the town administrator will announce the procedure and timing of a special election to be held to break the tie per Charter Section C6-11, titled Special Elections and per Maryland Annotated Code § 4-108.4 "Filling of Vacancy Resulting from Tie Vote" which requires municipalities to fill a vacancy resulting from a tie vote within 90 days of the election, and as amended from time to time.

(Code 1977, § 5-8; Ord. No. 1994-9, 7-11-1994; Ord. No. 2010-01, 4-12-2010; Ord. No. 2024-03, 5-13-2024)

Chapter 13

RESERVED

Chapter 14

ENVIRONMENT

Article I. In General

Secs. 14-1—14-18. Reserved.

Article II. Forest Conservation

Sec. 14-19. Adoption of standards.

Secs. 14-20—14-41. Reserved.

Article III. Noise

Sec. 14-42. Certain noise prohibited.

Sec. 14-43. Specific acts declared loud, disturbing noises.

Sec. 14-44. Permitting prohibited acts unlawful.

Sec. 14-45. Violations and penalties.

Secs. 14-46—14-63. Reserved.

Article IV. Brush, Grass and Weeds

Sec. 14-64. Cutting and removal required.

Sec. 14-65. Maintenance of sidewalks, curbs and gutters.

Sec. 14-66. Notice to abate violation.

Sec. 14-67. Violations and penalties.

Sec. 14-68. Failure to comply; removal by town.

Sec. 14-69. Payment of costs.

ARTICLE I. IN GENERAL**Secs. 14-1—14-18. Reserved.****ARTICLE II. FOREST CONSERVATION****Sec. 14-19. Adoption of standards.**

The Worcester County Forest Conservation Law, Code of Public Laws of Worcester County, Maryland, Natural Resources Article, §§ NR 1-401 through NR 1-421, is hereby adopted as the Berlin Forest Conservation Law pursuant to the attached agreement between the Mayor and Council of Berlin and Worcester County, Maryland.

(Code 1977, § 53-1; Ord. No. 1996-5, § 1, 4-29-1996; Ord. No. 1997-7, 4-14-1997)

Editor's note—The agreement between the Mayor and Council of Berlin and Worcester County provides the following:

(1) The town, in accordance with § 5-1603 of the Natural Resources Article of the Annotated Code of Maryland, hereby assigns all of its obligations under the Forest Conservation Subtitle of the Annotated Code of Maryland to Worcester County, including, but not limited to all of its program administration, preparation and enforcement requirements.

(2) The town further agrees to abide by the procedures and regulations of Bill No. 94-8 adopted by Worcester County Commissioners pursuant to the county's obligation under the State Forest Conservation Act.

(3) The town further agrees to coordinate its development approval activities for building permits, site plan approval, subdivision plat approval and any grading and sediment control permits with the requirements of Worcester County.

(4) The town covenants and agrees that no final building permit, site plan, subdivision plat, grading and sediment control permit shall be issued or approved until the applicant has demonstrated compliance with the provisions

of the Mayor and Council of Berlin and received approval from the Worcester County Department of Planning, Permits and Inspections, as may be required for that activity.

(5) It is understood and agreed that the county shall have the right and authority to fully enforce said Bill No. 94-8 within the corporate limits of the town.

(6) It is understood and agreed that any and all fees imposed by the county commissioners of Worcester County for the administration of the Worcester County Forest Conservation Program within the municipal boundaries of town shall be retained by Worcester County. The Department designated by the board of county commissioners of Worcester County, Maryland, to administer and enforce the county forest conservation program shall administer the program for the Mayor and Council of Berlin.

Secs. 14-20—14-41. Reserved.**ARTICLE III. NOISE*****Sec. 14-42. Certain noise prohibited.**

It shall be unlawful for any person to make, continue or cause to be made or continued any loud, unnecessary, unnatural or unusual noise or any noise which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of others within the corporate limits of the town.

(Code 1977, § 69-1; Ord. No. 122, 8-10-1971)

Sec. 14-43. Specific acts declared loud, disturbing noises.

The following acts, among others, are hereby declared to be loud, disturbing and unneces-

***Charter reference**—Authority to regulate or prohibit unreasonable noise, § C5-1B(39).

State law reference—Disturbing the peace, Md. Criminal Law Code Ann. § 10-201.

sary noises in violation of this article, but said enumeration shall not be deemed to be exclusive:

- (1) The sounding of any horn or signaling device on any automobile, motorcycle or other vehicle on any street, way, avenue or alley or other public place of the town, except as a danger warning; the creation, by means of any such signaling device, of any unreasonably loud or harsh sound; and the sounding of any such device for an unreasonably or unnecessary length of time; the use of any horn, whistle or other device operated by engine exhaust; and the use of any such signaling device when traffic is for any reason held up.
- (2) The using or operating of or the permitting to be played, used or operated any radio receiving set, musical instrument, phonograph or other machine or device for the producing or reproducing of sound in such manner as to disturb the peace, quiet and comfort of the neighboring inhabitants or at any time with louder volume than is necessary for convenient hearing for the person or persons who are in the room, vehicle or chamber in which such machine or device is operated and who are voluntary listeners thereto. The operation of any such set, instrument, phonograph, machine or device between the hours of 12:00 midnight and 7:00 a.m. in such a manner as to be plainly audible at a distance of 50 feet from the building, structure or vehicle in which it is located shall be prima facie evidence of a violation of this chapter.
- (3) Yelling, shouting, hooting, whistling and singing:
 - a. Yelling, shouting, hooting, whistling or singing on the public streets or from private property at any time or place so as to annoy or disturb the

quiet, comfort or repose of persons in any dwelling, hotel or other type of residence or any persons in the vicinity.

- b. Yelling, shouting, hooting, whistling or singing on the public streets or private property at any time or place in such a manner as to be plainly audible at a distance of 50 feet from the area, structure or vehicle from which the noise emanates.

- (4) Construction noise. The operation of powered mechanical tools or hand-operated tools used in the construction, repair, alteration, renovation or demolition of any structure and all related practices, including drilling, dredging and maintenance, is permitted only between 7:00 a.m. and 9:00 p.m., Monday through Friday; between 7:00 a.m. and 9:00 p.m., Saturday; and between 9:00 a.m. and 5:00 p.m. on Sunday. The operation of any such tools at any other time shall be prima facie evidence of a violation of this chapter.

(Code 1977, § 69-2; Ord. No. 122, 8-10-1971; Ord. No. 90-7, 8-13-1990; Ord. No. 2005-3, 4-25-2005)

Sec. 14-44. Permitting prohibited acts unlawful.

It shall be unlawful for any person to knowingly permit the making, creation or maintenance of loud, unnecessary, unnatural or unusual noises upon any premises owned or possessed by him or under his control.

(Code 1977, § 69-3; Ord. No. 122, 8-10-1971)

Sec. 14-45. Violations and penalties.

Any violation of the provisions of this chapter shall be punishable, upon conviction, as a misdemeanor as provided in Article I of Ch. 1, General Provisions.

(Code 1977, § 69-4; Ord. No. 122, 8-10-1971; Ord. of 3-20-1978)

Secs. 14-46—14-63. Reserved.

ARTICLE IV. BRUSH, GRASS AND WEEDS*

Sec. 14-64. Cutting and removal required.

It shall be unlawful for any owner of real property located within the corporate limits of the town to allow any growth of grass or weeds to a height of six inches or more. Any owner of real property located within the town shall be responsible for the cutting, destruction or removal of the grass or weeds.

(Code 1977, § 36-1; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2011-08, 9-12-2011)

Sec. 14-65. Maintenance of sidewalks, curbs and gutters.

All owners of real property located within the corporate limits of the town shall maintain their respective sidewalks, curbs and gutters bordering their property in such condition as to be clear of all growth of grass and weeds within the curbs, gutters and sidewalks. Additionally, all owners of real property located within the corporate limits of the town shall remove all grass clippings, weeds and brush from the sidewalks, curbs and gutters bordering their property.

(Code 1977, § 36-2; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2009-08, 6-8-2009; Ord. No. 2011-08, 9-12-2011)

Sec. 14-66. Notice to abate violation.

The Mayor and Council is hereby authorized and empowered to give written notice to any owner of real property who has violated sections 14-64 and 14-65 to correct the violation within five calendar days from the date of such

***Charter reference**—Authority to prohibit and abate nuisances, § C5-1 B(40).

State law reference—Power to prohibit and abate nuisances, Md. Ann. Code art. 23A, § 2(23).

notice. The notice is effective if given by first class mail, addressed to the owner at the last known address as the same appears on the town's tax records or personally delivered to the owner. In addition, the Mayor and Council shall post the notice on the property for five consecutive days from the date of the notice. The notice shall include therein the amount of costs to be assessed against the property owner in the event that it is necessary for the Mayor and Council to correct the violation and shall advise the owner of the penalties set forth in sections 14-67, 14-68 and 14-66.

(Code 1977, § 36-3; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2011-08, 9-12-2011)

Sec. 14-67. Violations and penalties.

In the event that an owner of real property fails to comply with the notice to abate violation, the owner shall be guilty of a municipal infraction and shall be fined the sum of \$50.00 for an initial infraction and \$100.00 for a second and subsequent infraction in any 12-month period.

(Code 1977, § 36-4; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2011-08, 9-12-2011)

Sec. 14-68. Failure to comply; removal by town.

In the event that an owner of real property fails to comply with the notice to abate violation, the Mayor and Council shall have the power to correct the violation and assess the costs against the real property as a lien. The town shall have the authority to enter the property for the purpose of abating the nuisance and shall charge the property owner not less than \$100.00 per man-hour for the abatement.

(Code 1977, § 36-5; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2011-08, 9-12-2011)

Sec. 14-69. Payment of costs.

The costs of such work ordered by the Mayor and Council pursuant to section 14-68, unless

paid in full within 30 days after the same is billed, shall be a lien on the property and shall draw interest after said 30 days at the rate of 1½ percent per month or fraction of a month, and the costs, if not paid within the current fiscal year, shall be added to the next annual real property tax bill of said owner. Pursuant to the authority contained in section C5-1B(34) of the Berlin Charter and Subsection (a)(17) of Section 2 of Article 23A of the Annotated Code of Maryland, any such unpaid costs shall be collectible in the same manner as municipal real estate taxes are collected, and the provisions regarding tax sales contained in the Annotated Code of Maryland shall apply to said costs, and the property may be sold for such unpaid costs at a tax sale.

(Code 1977, § 36-6; Ord. No. 23, 8-3-1970; Ord. No. 1997-14, 8-25-1997; Ord. No. 2011-08, 9-12-2011)

Chapter 15

RESERVED

Chapter 16

FIRE PREVENTION AND PROTECTION

Article I. In General

Secs. 16-1—16-18. Reserved.

Article II. Outdoor Burning

Sec. 16-19. Purpose.

Sec. 16-20. Permit required.

Sec. 16-21. Fees.

Sec. 16-22. Violations.

ARTICLE I. IN GENERAL

Secs. 16-1—16-18. Reserved.

ARTICLE II. OUTDOOR BURNING

Sec. 16-19. Purpose.

The purpose of this article shall be to prevent the danger to the public health and safety posed by uncontrolled or unregulated outdoor burning. (Code 1977, § 50-1; Ord. No. 92-10, 9-14-1992)

Sec. 16-20. Permit required.

Within the corporate limits of the town, except by special permit from the director of the planning and zoning commission, no outside or open fires or burnings of any kind shall be permitted. (Code 1977, § 50-2; Ord. No. 92-10, 9-14-1992; Ord. No. 2011-04, 6-12-2011)

Sec. 16-21. Fees.

The fees for all permits issued under this chapter shall be in accordance with a fee schedule adopted by resolution of the Mayor and Council, or as such schedule shall be amended from time to time. (Code 1977, § 50-3; Ord. No. 92-10, 9-14-1992)

Sec. 16-22. Violations.

Any person who shall violate any provision of this article shall be guilty of a municipal infraction and shall be subject to a fine in the amount of \$100.00 for any single or initial violation and a fine in the amount of \$200.00 for each repeat or continuing violation. (Code 1977, § 50-4; Ord. No. 92-10, 9-14-1992)

Chapter 17

RESERVED

Chapter 18

HUMAN RELATIONS

Article I. In General

Secs. 18-1—18-18. Reserved.

Article II. Fair Housing

- Sec. 18-19. Purpose.
- Sec. 18-20. Definitions and word usage.
- Sec. 18-21. Construction of article.
- Sec. 18-22. Applicability.
- Sec. 18-23. Sale or rental of housing.
- Sec. 18-24. Discrimination in residential real estate-related transactions; discrimination in professional services or organizations.
- Sec. 18-25. Discrimination against individuals with disabilities; accessibility.
- Sec. 18-26. Exemptions.
- Sec. 18-27. Administration.
- Sec. 18-28. Education and conciliation.
- Sec. 18-29. Enforcement.
- Sec. 18-30. Access to premises; investigations.
- Sec. 18-31. Enforcement by private persons.
- Sec. 18-32. Interference, coercion or intimidation.
- Sec. 18-33. Violations and penalties.

ARTICLE I. IN GENERAL**Secs. 18-1—18-18. Reserved.****ARTICLE II. FAIR HOUSING*****Sec. 18-19. Purpose.**

It is the policy of the town to provide, within constitutional limitations, for fair housing throughout the town.

(Code 1977, § 48-1; Ord. No. 82-5, 11-4-1982)

Sec. 18-20. Definitions and word usage.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Disability means:

- (1) A physical or mental impairment that substantially limits one or more of an individual's major life activities;
- (2) A record of having a physical or mental impairment that substantially limits one or more of an individual's major life activities; or
- (3) Being regarded as having a physical or mental impairment that substantially limits one or more of an individual's major life activities. The term "disability" does not include the current illegal use of or addiction to:
 - a. A controlled dangerous substance, as defined in Md. Criminal Law Code Ann. § 5-101; or
 - b. A controlled substance, as defined in 21 USC 802.

***State law reference**—Discrimination in housing, Md. State Government Code Ann. § 20-701 et seq.

Discriminatory housing practice means an act that is unlawful under section 18-23 or 18-24.

Dwelling means any building, structure, or any part or portion thereof, which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure or portion thereof.

Familial status means the status of one or more minors who are domiciled with:

- (1) A parent or other person having legal custody of the minor; or
- (2) The designee of a parent or other person having legal custody of the minor with the written permission of the parent or other person.

Familial status includes the status of being:

- (1) A pregnant woman; or
- (2) An individual who is in the process of securing legal custody of a minor.

Family includes a single individual.

Person includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers and fiduciaries.

To rent includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises owned by the occupant.

(Code 1977, § 48-2; Ord. No. 82-5, 11-4-1982)

State law reference—Definitions, Md. State Government Code Ann. § 20-701.

Sec. 18-21. Construction of article.

This article does not:

- (1) Invalidate or limit any town law that requires dwellings to be designed and con-

structed in a manner that affords an individual with a disability greater access than is required by section 18-25(b) ;

- (2) Limit the applicability of any reasonable town, state, or federal restrictions regarding the maximum number of occupants allowed to occupy a dwelling;
- (3) Prohibit the state or the town from enacting standards that govern the location of group homes, as defined in Md. Housing and Community Development Code Ann. § 4-601;
- (4) Affect the powers of the town to enact an ordinance on any subject covered by this subtitle, provided that the ordinance does not authorize any act that would be a discriminatory housing practice under this article;
- (5) Require that a dwelling be made available to an individual whose tenancy would:
 - a. Constitute a direct threat to the health or safety of other individuals; or
 - b. Result in substantial physical damage to the property of others;
- (6) Prohibit conduct against a person because the person has been convicted by a court of competent jurisdiction of the illegal manufacture or distribution of:
 - a. A controlled dangerous substance, as defined in Md. Criminal Law Code Ann. § 5-101; or
 - b. A controlled substance, as defined in 21 USC 802;
- (7) Unless membership in the religion is restricted on the basis of race, color, or national origin, prohibit a religious organization, association, or society or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organiza-

tion, association, or society from giving preference or limiting the sale, rental, or occupancy of dwellings that it owns or operates for other than a commercial purpose to persons of the same religion; or

- (8) Prohibit a private club that is not open to the public and that, as an incident to its primary purpose or purposes, provides lodgings that it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of the dwellings to its members or from giving preference to its members.

State law reference—Similar provision, Md. State Government Code Ann. § 20-703.

Sec. 18-22. Applicability.

- (a) *Generally.* This article does not apply to:
 - (1) The sale or rental of a single-family dwelling, if the dwelling is sold or rented without:
 - a. The use of the sales or rental facilities or services of any:
 1. Real estate broker, agent, or salesperson;
 2. Agent of any real estate broker, agent, or salesperson;
 3. Person in the business of selling or renting dwellings; or
 4. Agent of a person in the business of selling or renting dwellings; or
 - b. The publication, posting, or mailing, after notice, of any advertisement or written notice in violation of this article; and
 - (2) With respect to discrimination on the basis of sex, sexual orientation, or marital status:
 - a. The rental of rooms in any dwelling, if the owner maintains the dwelling as the owner's principal residence; or

- b. The rental of any apartment in a dwelling that contains not more than five rental units, if the owner maintains the dwelling as the owner's principal residence.

(b) *Use of professional assistance to transfer title.* The use of attorneys, escrow agents, abstractors, title companies, and other similar professional assistance as necessary to perfect or transfer the title to a single-family dwelling does not subject a person to this article if the person otherwise would be exempted under subsection (a) of this section.

(c) *Housing for older persons.*

- (1) In this subsection, "housing for older persons" means housing:
 - a. Provided under any state or federal program that is specifically designed and operated to assist elderly persons, as defined in the state or federal program;
 - b. Intended for, and solely occupied by, persons who are at least 62 years old;
 - c. Intended and operated for occupancy by at least one person who is at least 55 years old in each unit; or
 - d. That meets the requirements set forth in regulations adopted by the Secretary of Housing and Urban Development under 42 USC 3607(b)(2)(C).
- (2) The term "housing for older persons" includes:
 - a. Unoccupied units, if the units are reserved for occupancy by persons who meet the age requirements of subsection (c)(1) of this section; or
 - b. Units occupied as of September 13, 1988, by persons who do not meet the age requirements of sub-

section (c)(1) of this section, if the new occupant of the unit meets the age requirement.

- (3) The provisions in this subtitle concerning familial status do not apply to housing for older persons.

(Code 1977, § 48-3; Ord. No. 82-5, 11-4-1982)

State law reference—Similar provision, Md. State Government Code Ann. § 20-704.

Sec. 18-23. Sale or rental of housing.

As made applicable by section 18-22 and except as exempted by sections 18-22(c)(3) and 18-26, it shall be unlawful to:

- (1) Refuse to sell or rent after the making of a bona fide offer or refuse to negotiate for the sale or rental of or otherwise make unavailable or deny a dwelling to any person because of race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin.
- (2) Discriminate against any person in the terms, conditions or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection therewith because of race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin.
- (3) Make, print or publish, or cause to be made, printed or published, any notice, statement or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation or discrimination based on race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin or an intention to make any such preference, limitation or discrimination.
- (4) Represent to any person because of race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin that any dwelling is

not available for inspection, sale or rental when such dwelling is, in fact, so available.

- (5) For profit, induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin.

(Code 1977, § 48-4; Ord. No. 82-5, 11-4-1982)

State law reference—Similar provision, Md. State Government Code Ann. § 20-705.

Sec. 18-24. Discrimination in residential real estate-related transactions; discrimination in professional services or organizations.

(a) *"Residential real estate-related transaction" defined.* In this section, the term "residential real estate-related transaction" means:

- (1) The making or purchasing of loans or providing other financial assistance:
 - a. For purchasing, constructing, improving, repairing, or maintaining a dwelling; or
 - b. Secured by residential real estate; or
- (2) The selling, brokering, or appraising of residential real property.

(b) *Discrimination in residential real estate-related transactions.*

- (1) A person whose business includes engaging in residential real estate-related transactions may not discriminate against any person in making available a transaction, or in the terms or conditions of a transaction, because of race, color, religion, sex, disability, marital status, familial status, sexual orientation, or national origin.

- (2) Subsection (b)(1) of this section does not prohibit a person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than race, color, religion, sex, disability, marital status, familial status, sexual orientation, or national origin.

(c) *Discrimination in professional services or organizations.* A person may not, because of race, color, religion, sex, disability, marital status, familial status, sexual orientation, or national origin:

- (1) Deny a person access to, or membership or participation in, a multiple-listing service, real estate brokers' organization, or other service, organization, or facility relating to the business of selling or renting dwellings; or
- (2) Discriminate against a person in the terms or conditions of membership or participation.

(Code 1977, §§ 48-5, 48-6; Ord. No. 82-5, 11-4-1982)

State law reference—Similar provision, Md. State Government Code Ann. § 20-707.

Sec. 18-25. Discrimination against individuals with disabilities; accessibility.

(a) *"Covered multifamily dwelling" defined.* In this section, the term "covered multifamily dwelling" means:

- (1) A building consisting of four or more units, if the building has one or more elevators; or
- (2) A ground floor unit in a building consisting of four or more units, if the building has no elevator.

(b) *Discrimination against individuals with disabilities.* Except as provided in section 18-22, a person may not:

- (1) Discriminate in the sale or rental of, or otherwise make unavailable or deny, a dwelling to any buyer or renter because of a disability of:
 - a. The buyer or renter; or
 - b. An individual residing in or intending to reside in the dwelling after it is sold, rented, or made available;
- (2) Discriminate against any individual in the terms, conditions, or privileges of the sale or rental of a dwelling, or in the provision of services or facilities in connection with the dwelling, because of a disability of:
 - a. The individual; or
 - b. An individual residing in or intending to reside in the dwelling after it is sold, rented, or made available;
- (3) Refuse to allow, at the expense of an individual with a disability, reasonable modifications of existing premises occupied or to be occupied by the individual, if:
 - a. The modifications may be necessary to afford the individual with a disability full enjoyment of the dwelling; and
 - b. For a rental dwelling, the tenant agrees that, when the tenant vacates the dwelling, the tenant will restore, at the tenant's expense, the interior of the dwelling to the condition that existed before the modification, except for reasonable wear and tear;
- (4) Refuse to make reasonable accommodations in rules, policies, practices, or services when the accommodations may

be necessary to afford an individual with a disability equal opportunity to use and enjoy a dwelling; or

- (5) Fail to design or construct a covered multifamily dwelling for first occupancy as required under subsection (c) of this section.

(c) *Accessibility.*

- (1) On or after July 1, 1991, a covered multifamily dwelling for first occupancy shall be designed and constructed so that:
 - a. The public use and common use portions of the dwelling are readily accessible and usable to individuals with disabilities;
 - b. All the doors designed to allow passage into and within all premises within the dwelling are sufficiently wide to allow passage by individuals with disabilities in wheelchairs; and
 - c. All premises within the dwelling contain the following features of adaptive design:
 1. An accessible route into and through the dwelling;
 2. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;
 3. Reinforcements in bathroom walls to allow later installation of grab bars; and
 4. Usable kitchens and bathrooms so that an individual in a wheelchair can maneuver about the space.
- (2) The requirements of subsection (c)(1) of this section are satisfied by compliance with:
 - a. The appropriate requirements of the most current revision of the Amer-

ican National Standard for Buildings and Facilities Providing Accessibility and Usability for Physically Handicapped People (commonly cited as ANSI A117.1); or

- b. The federal law, regulations, and guidelines on handicapped accessibility adopted under the federal Fair Housing Amendments Act of 1988 and incorporated by reference in the regulations adopted by the Department of Housing and Community Development under Md. Public Safety Code Ann. § 12-202.

State law reference—Similar provision, Md. State Government Code Ann. § 20-706.

Sec. 18-26. Exemptions.

Nothing in this article shall prohibit a religious organization, association or society or any non-profit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association or society from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion or from giving preference to such persons, unless membership in such religion is restricted on account of race, color or national origin; nor shall anything in this article prohibit a private club not in fact open to the public which, as an incident to its primary purpose or purposes, provides lodgings which it owns or operates for other than a commercial purpose from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(Code 1977, § 48-7; Ord. No. 82-5, 11-4-1982)

Sec. 18-27. Administration.

(a) The authority and responsibility for administering this article shall be in the Mayor and Council of the town.

(b) The Mayor and Council may delegate any of these functions, duties and powers to employees of the town or to boards of such employees, including functions, duties and powers with respect to investigating, conciliating, hearing, determining, ordering, certifying, reporting or otherwise acting as to any work, business or matter under this article. The Mayor and Council shall, by rule, prescribe such rights of appeal from the decisions of their hearing examiners to other hearing examiners or to other officers in the town to boards of officers or to themselves and shall be appropriate and in accordance with law.

(c) All executive departments and agencies shall administer their programs and activities relating to housing and urban development in a manner affirmatively to further the purposes of this article and shall cooperate with the Mayor and Council to further such purposes.

(Code 1977, § 48-8; Ord. No. 82-5, 11-4-1982)

Sec. 18-28. Education and conciliation.

Immediately after the enactment of this article, the Mayor and Council may commence such educational and conciliatory activities as will further the purposes of this article. They may call conferences of persons in the housing industry and other interested parties to acquaint them with the provisions of this article and their suggested means of implementing it and shall endeavor, with their advice, to work out programs of voluntary compliance and of enforcement.

(Code 1977, § 48-9; Ord. No. 82-5, 11-4-1982)

Sec. 18-29. Enforcement.

(a) Any person who claims to have been injured by a discriminatory housing practice or who believes that he will be irrevocably injured by a discriminatory housing practice that is about to occur (hereafter "person aggrieved") may file a complaint with the Mayor and Council. Complaints shall be in writing and shall contain such information and be in such form as the Mayor

and Council require. Upon receipt of such complaint, the Mayor and Council shall furnish a copy of the same to the person or persons who allegedly committed or are about to commit the alleged discriminatory housing practice. Within 30 days after receiving a complaint or within 30 days after the expiration of any period of reference under subsection (c) of this section, the Mayor and Council shall investigate the complaint and give notice, in writing, to the person aggrieved whether he intends to resolve it. If the Mayor and Council decide to resolve the complaints, he shall proceed to try to eliminate or correct the alleged discriminatory housing practice by informal methods of conference, conciliation and persuasion. Nothing said or done in the course of such informal endeavors may be made public or used as evidence in a subsequent proceeding under this article without the written consent of the persons concerned. Any employee of the Mayor and Council who shall make public any information in violation of this provision shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than \$1,000.00 or imprisoned not more than one year.

(b) A complaint under subsection (a) of this section shall be filed within 180 days after the alleged discriminatory housing practice occurred. Complaints shall be in writing and shall state the facts upon which the allegations of a discriminatory housing practice are based. Complaints may be reasonably and fairly amended at any time. A respondent may file an answer to the complaint against him and, with the leave of the Mayor and Council, which shall be granted whenever it would be reasonable and fair to do so, may amend his answer at any time. Both complaints and answers shall be verified.

(c) If, within 30 days after a complaint is filed with the Mayor and Council, the Mayor and Council have been unable to obtain voluntary compliance with this article, the person aggrieved may, within 30 days thereafter, file a

complaint with the Secretary of the U.S. Department of Housing and Urban Development. The Mayor and Council may assist in this filing.

(d) If the Mayor and Council have been unable to obtain voluntary compliance within 30 days of the complaint, the person aggrieved may, within 30 days thereafter, commence a civil action in any appropriate court, against the respondent named in the complaint, to enforce the rights granted or protected by this article, insofar as such rights relate to the subject of the complaint. If the court finds that a discriminatory housing practice has occurred or is about to occur, the court may enjoin the respondent from engaging in such practice or order such affirmative action as may be appropriate.

(e) In any proceeding brought pursuant to this section, the burden of proof shall be on the complainant.

(f) Whenever an action filed by an individual shall come to trial, the Mayor and Council shall immediately terminate all efforts to obtain voluntary compliance.
(Code 1977, § 48-10; Ord. No. 82-5, 11-4-1982)

Sec. 18-30. Access to premises; investigations.

(a) In conducting an investigation, the Mayor and Council shall have access to all reasonable times to premises, records, documents, individuals and other evidence or possible sources of evidence and may examine, record and copy such materials and take and record the testimony or statements of such persons as are reasonably necessary for the furtherance of the investigation; provided, however, that the Mayor and Council first comply with the provisions of the Fourth Amendment relating to unreasonable searches and seizures. The Mayor and Council may issue subpoenas to compel their access to or the production of such materials or the appearance of such persons and may issue interrogatories to a respondent, to the same extent and subject to the same limitations as

would apply if the subpoenas or interrogatories were issued or served in aid of a civil action in the United States District Court for the district in which the investigation is taking place. The Mayor and Council may administer oaths.

(b) Upon written application to the Mayor and Council, a respondent shall be entitled to the issuance of a reasonable number of subpoenas by and in the name of the Mayor and Council to the same extent and subject to the same limitations as subpoenas issued by the Mayor and Council themselves. Subpoenas issued at the request of a respondent shall show on their face the name and address of such respondent and shall state that they were issued at his request.

(c) Witnesses summoned by subpoena of the Mayor and Council shall be entitled to the same witness and mileage fees as are witnesses in proceedings in United States District Courts. Fees payable to a witness summoned by a subpoena issued at the request of a respondent shall be paid by him.

(d) Within five days after service of a subpoena upon any person, such person may petition the Mayor and Council to revoke or modify the subpoena. The Mayor and Council shall grant the petition if they find that the subpoena requires appearance or attendance at an unreasonable time or place, that it requires production of evidence which does not relate to any matter under investigation, that it does not describe with sufficient particularity the evidence to be produced, that compliance would be unduly onerous or for other good reason.

(e) In case of contumacy or refusal to obey a subpoena, the Mayor and Council or other person at whose request it was issued may petition for its enforcement in the municipal or state court for the district in which the person to whom the subpoena was addressed resides, was served or transacts business.

(f) Any person who willfully fails or neglects to attend and testify or to answer any lawful inquiry or to produce records, documents or other evidence, if in his power to do so, in obedience to the subpoena or lawful order of the Mayor and Council shall be fined not more than \$1,000.00 or imprisoned not more than one year, or both. Any person who, with intent thereby to mislead the Mayor and Council, shall make or cause to be made any false entry or statement of fact in a report, account, record or other document submitted to the Mayor and Council pursuant to his subpoena or other order or shall willfully neglect or fail to make or cause to be made full, true and correct entries in such reports, accounts, records or other documents or shall willfully mutilate, alter, or by any other means falsify any documentary evidence shall be fined not more than \$1,000.00 or imprisoned not more than one year, or both.

(g) The town attorney shall conduct all litigation in which the Mayor and Council participate as a party or as amicus pursuant to this article. (Code 1977, § 48-11; Ord. No. 82-5, 11-4-1982)

Sec. 18-31. Enforcement by private persons.

(a) The rights granted by sections 18-22, 18-23, or 18-24 may be enforced by civil actions in state or local courts of general jurisdiction. A civil action shall be commenced within 180 days after the alleged discriminatory housing practice occurred; provided, however, that the court shall continue such civil case brought pursuant to this section or section 18-29(d) from time to time before bringing it to trial if the court believes that the conciliation efforts of the Mayor and Council are likely to result in satisfactory settlement of the discriminatory housing practice complained of in the complaint made to the Mayor and Council and which practice forms the basis for the action in court; and provided, however, that any sale, encumbrance or rental consummated prior to the issuance of any court order issued under the authority of this article

and involving a bona fide purchaser, encumbrancer or tenant without actual notice of the existence of the filing of a complaint or civil action under the provisions of this article shall not be affected.

(b) The court may grant as relief, as it deems appropriate, any permanent or temporary injunction, temporary restraining order or other order and may award to the plaintiff actual damages and not more than \$1,000.00 in punitive damages, together with court costs and reasonable attorney fees in the case of a prevailing plaintiff, provided that said plaintiff, in the opinion of the court, is not financially able to assume said attorney's fees.

(Code 1977, § 48-12; Ord. No. 82-5, 11-4-1982)

Sec. 18-32. Interference, coercion or intimidation.

It shall be unlawful to coerce, intimidate, threaten, retaliate against or interfere with any person in the exercise or enjoyment of any right granted or protected by this article, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by sections 18-22, 18-23, or 18-24. This section may be enforced by appropriate civil action.

(Code 1977, § 48-13; Ord. No. 82-5, 11-4-1982)

State law reference—Similar provision, Md. State Government Code Ann. § 20-708.

Sec. 18-33. Violations and penalties.

Whoever, whether or not acting under color of law, by force or threat of force willfully injures, intimidates or interferes with or attempts to injure, intimidate or interfere with the following shall be fined not more than \$1,000.00 or imprisoned not more than one year, or both, and, if bodily injury or death results, shall be fined and imprisoned as set forth in Md. Ann. Code art. 27:

- (1) Any person because of his race, color, religion, sex, disability, marital status,

familial status, sexual orientation or national origin and because he is or has been selling, purchasing, renting, financing, occupying or contracting or negotiating for the sale, purchase, rental, financing or occupation of any dwelling or applying for or participating in any service, organization or facility relating to the business of selling or renting dwellings.

- (2) Any person because he is or has been or in order to intimidate such person or any other person or any class of persons from:

- a. Participating, without discrimination on account of race, color, religion, sex, disability, marital status, familial status, sexual orientation or national origin, in any of the activities, services, organizations or facilities described in subsection (1) of this section;
- b. Affording another person or class of persons opportunity or protection so to participate.

- (3) Any citizen because he is or has been or in order to discourage such citizen or any other citizen from lawfully aiding or encouraging other persons to participate, without discrimination on account of race, color, religion or national origin, in any of the activities, services, organizations or facilities described in subsection (1) of this section or participating lawfully in speech or peaceful assembly opposing any denial of the opportunity to so participate.

(Code 1977, § 48-14; Ord. No. 82-5, 11-4-1982)

Chapter 19

RESERVED

Chapter 20

MISCELLANEOUS OFFENSES

Article I. In General

Secs. 20-1—20-18. Reserved.

Article II. Alcoholic Beverages

Sec. 20-19. Possession and consumption in certain places prohibited.

Sec. 20-20. Violations and penalties.

Secs. 20-21—20-43. Reserved.

Article III. Loitering

Sec. 20-44. Definitions.

Sec. 20-45. Prohibited conduct.

Sec. 20-46. Identification.

Sec. 20-47. Lawful assembly.

Sec. 20-48. Notice of violation.

Sec. 20-49. Warning required.

Sec. 20-50. Violations and penalties.

Secs. 20-51—20-73. Reserved.

Article IV. Sleeping in Vehicles

Sec. 20-74. Prohibited within town limits.

Sec. 20-75. Violations and penalties.

Secs. 20-76—20-93. Reserved.

Article V. Weapons

Sec. 20-94. Discharge prohibited; exceptions; penalty.

ARTICLE I. IN GENERAL

Secs. 20-1—20-18. Reserved.

ARTICLE II. ALCOHOLIC BEVERAGES***Sec. 20-19. Possession and consumption in certain places prohibited.**

It shall be unlawful for any person to possess, in an open container, or consume any alcoholic beverage or beverages upon any of the public streets, avenues, alleys, sidewalks, public park or public property, or in vehicles upon any of the public streets, avenues or alleys, or in the public parks or on public property within the corporate limits of the town. The drinking of alcoholic beverages in non-glass containers shall be permitted on public streets, avenues, alleys or sidewalks, if the drinking of such alcoholic beverages is done as part of a special event, in a designated area, and during a designated time as set forth in a permit granted to the organizers of the special event or to their designees by the Mayor and Council, which may set forth such other conditions of the permit as it deems appropriate under the circumstances.

(Code 1977, § 30-1; Ord. of 5-2-1977; Ord. No. 80-4, 1-5-1981; Ord. No. 2011-11, 11-28-2011)

State law reference—Possession of open containers in certain places, Md. Ann. Code art. 2B, § 19-301 et seq.

Sec. 20-20. Violations and penalties.

Any violation of the provisions of this article shall be punishable as a municipal infraction with a fine of \$25.00 for each and every violation.

(Code 1977, § 30-2; Ord. of 5-2-1977; Ord. of 3-20-1978; Ord. No. 89-10, 11-27-1989; Ord. No. 2011-11, 11-28-2011)

Secs. 20-21—20-43. Reserved.

***State law reference**—Alcoholic beverages, Md. Ann. Code art. 2B, § 1-101 et seq.

ARTICLE III. LOITERING†**Sec. 20-44. Definitions.**

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Loiter means to stand around or remain or to park or remain parked in a motor vehicle at a public place or place open to the public and to engage in any conduct prohibited under this article; to collect, gather, congregate or be a member of a group or a crowd of people who are gathered together in any public place or place open to the public and to engage in any conduct prohibited under this article.

Place open to the public means any place open to the public or any place to which the public is invited, and in, on or around any privately owned place of business, private parking lot or private institution, including places of worship, cemeteries or any place of amusement and entertainment, whether or not a charge of admission or entry thereto is made. It includes the lobby, halls, corridors and areas open to the public of any store, office or apartment building.

Public place means any public street, road or highway, alley, lane, sidewalk, crosswalk or other public way, or any public resort, place of amusement, park, playground, public building or grounds appurtenant thereto, school building or school grounds, public parking lot or any vacant lot.

(Code 1977, § 66-1; Ord. No. 120, 8-10-1971)

Sec. 20-45. Prohibited conduct.

(a) It shall be unlawful for any person to loiter at, on or in a public place or place open to the public in such a manner:

- (1) So as to interfere, impede or hinder the free passage of pedestrian or vehicular traffic.

†State law reference—Loitering about alcoholic beverage establishments, Md. Ann. Code art. 2B, § 12-111.

(2) So as to interfere with, obstruct, harass or threaten or do physical harm to another member or members of the public or use profanity in a manner constituting "fighting words" that would incite a violent response.

(3) That by words, acts or other conduct it is clear that there is a reasonable likelihood that a breach of the peace or disorderly conduct would result.

(b) It shall be unlawful for any person to loiter as defined in section 20-44 at a public place or place open to the public and to fail to obey the direction of a uniformed police officer or the direction of a properly identified police officer not in uniform to move on, when not to obey such direction shall endanger the public peace. (Code 1977, § 66-2; Ord. No. 120, 8-10-1971)

Sec. 20-46. Identification.

It shall be unlawful for any person at a public place or place open to the public to refuse to identify himself by name and address at the request of a uniformed police officer or of a properly identified police officer not in uniform, if the surrounding circumstances are such as to indicate to a reasonable man that the public safety requires such identification. (Code 1977, § 66-3; Ord. No. 120, 8-10-1971)

Sec. 20-47. Lawful assembly.

Nothing herein shall be construed to prohibit orderly picketing or other lawful assembly. (Code 1977, § 66-4; Ord. No. 120, 8-10-1971)

Sec. 20-48. Notice of violation.

Any police officer witnessing a violation of this article may, as are alternative to making an arrest, issue to said violator a notice of violation, which notice, in addition to such factors as shall be required by such form of notice as may be approved by the town attorney, shall specify the violation with which said violator is charged and shall set forth the hour, date and location that

said violator is summoned to appear in the district court for the county, to answer said charge. (Code 1977, § 66-5; Ord. No. 120, 8-10-1971)

Sec. 20-49. Warning required.

No person shall be charged with a violation of this article unless and until the police officer has first warned the person of the violation and such person has failed or refused to stop such violation. (Code 1977, § 66-6; Ord. No. 120, 8-10-1971)

Sec. 20-50. Violations and penalties.

Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23. (Code 1977, § 66-7; Ord. No. 120, 8-10-1971)

Secs. 20-51—20-73. Reserved.

ARTICLE IV. SLEEPING IN VEHICLES

Sec. 20-74. Prohibited within town limits.

It shall be unlawful for any person to sleep in overnight, occupy as sleeping quarters or under the guise of pretending to sleep in, any vehicle upon any of the public streets, ways, avenues and alleys within the corporate limits of the town. (Code 1977, § 73-1; Ord. No. 121, 8-10-1971)

Sec. 20-75. Violations and penalties.

Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23. (Code 1977, § 73-2; Ord. No. 121, 8-10-1971)

Secs. 20-76—20-93. Reserved.

ARTICLE V. WEAPONS**Sec. 20-94. Discharge prohibited; exceptions; penalty.**

(a) It shall be unlawful for any person, except a qualified law enforcement officer of the United States, the state, the county or the town, to shoot, fire or discharge any rifle, shotgun, pistol, revolver, air gun, BB gun or other dangerous or deadly weapon within the corporate limits of the town.

(b) Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23.

(Code 1977, §§ 104-1, 104-2; Ord. No. 115, 5-3-1965)

Charter reference—Authority to regulate or prevent the use of firearms, etc., § C5-1B(20).

State law reference—Weapons, Md. Criminal Law Code Ann. § 4-101 et seq.

Chapter 21

RESERVED

Chapter 22

PARKS AND RECREATION*

Article I. In General

Secs. 22-1—22-18. Reserved.

Article II. Parks Commission

Sec. 22-19. Purpose.

Sec. 22-20. Establishment; membership; vacancies; quorum; meetings.

Sec. 22-21. Bylaws; officers.

Sec. 22-22. Powers and duties.

Secs. 22-23—22-46. Reserved.

Article III. Parks

Sec. 22-47. Definitions.

Sec. 22-48. Hours.

Sec. 22-49. Rules and regulations.

Sec. 22-50. Violations and penalties.

***Charter reference**—Power to establish and maintain parks, gardens, etc., § C5-1B(44).

ARTICLE I. IN GENERAL

Secs. 22-1—22-18. Reserved.

ARTICLE II. PARKS COMMISSION**Sec. 22-19. Purpose.**

The purpose of the parks commission shall be to:

- (1) Advise the Mayor and Council on the provision of quality recreational facilities for the citizens of the town without regard to age, physical ability or economic circumstance.
- (2) Assist in the provision of well-designed and maintained park facilities that will be utilized to improve the quality of life of citizens through the provision of a variety of recreational, educational, and cultural activities.
- (3) Develop and coordinate cooperative working relationships with town officials and staff, local and state public agencies and civic clubs with a common interest in the development of public recreational facilities.
- (4) Assist the Mayor and Council in the planning and provision of recreational facilities to meet current and projected needs through recommendations for land acquisition, facility development and funding sources.
- (5) Assist the town in maximizing the public use and appeal of existing public recreation facilities through the development of a comprehensive program of facility maintenance and management.

(Code 1977, § 18-1; Ord. No. 1992-1, 1-27-1992; Ord. No. 2017-03, 7-10-2017)

Sec. 22-20. Establishment; membership; vacancies; quorum; meetings.

(a) The Mayor and Council do hereby create a commission to be called the Berlin parks commission, hereinafter referred to as the parks commission.

(b) The commission shall consist of five voting members appointed by the Mayor with the consent of the Council and such other ex officio members as shall be deemed necessary by the commission itself from time to time for the ad hoc purposes of obtaining expert advice or volunteer services for individual projects or programs. Of the five voting members, three shall be appointed for two-year terms and two shall be appointed for a one-year term. Thereafter, all members of the commission shall be appointed for terms of two years. Members of the commission are eligible for reappointment.

(c) No less than three of the voting members of the commission shall reside within the corporate limits of the town, as those corporate boundaries shall exist at the time of the members' appointments. Ad hoc or ex officio members may be residents of any area, so long as, in the discretion of the commission, they demonstrate a commitment to the best interest of the parks within the town.

(d) Any vacancy on the commission shall be filled by appointment by the Mayor with the consent of the Council for the unexpired term of the particular position. It is the express intent of the Mayor and Council to have a majority of voting members representative of residents of the town at all times; thus appointments to fill vacancies must maintain at least three residents.

(e) The members of the commission shall serve without monetary compensation, except for the reimbursement of bona fide personal expenses that may be incurred in the course of conducting officially sanctioned business.

(f) Three voting members of the commission shall constitute a quorum for the transaction of business, and a vote of three voting members shall control the action of the commission.

(g) The commission shall meet at least six times per calendar year, with additional meetings as necessary in the discretion of a majority of the voting members. The absence for three meetings of any member of the commission during the calendar year without excuse shall create a vacancy on the commission.

(Code 1977, § 18-2; Ord. No. 1992-1, 1-27-1992)

Sec. 22-21. Bylaws; officers.

(a) Bylaws.

- (1) This article shall serve as the bylaws for the parks commission.
- (2) The commission shall establish its own rules of order and procedures, subject to the approval of the Mayor and Council, and not otherwise inconsistent with the terms of this article.
- (3) A copy of the bylaws shall be kept on file with the town administrator, and any amendment proposed thereto shall be presented to the Mayor and Council for approval prior to its adoption and effectiveness.

(b) At a regular meeting of the commission following the appointment or reappointment of members by the Mayor and Council, the members of the commission shall nominate one member as chair of the commission and shall approve the nomination by affirmative vote of at least three members, excluding the nominee. Such other offices and standing or ad hoc committees may be created by the commission at its discretion for the purposes of carrying out its duties and responsibilities under the provisions of this article.

(Code 1977, § 18-3; Ord. No. 1992-1, 1-27-1992; Ord. No. 2017-03, 7-10-2017)

Sec. 22-22. Powers and duties.

(a) The parks commission shall be advisory in nature, and all plans, programs and funding applications shall be submitted to the Mayor and Council for approval prior to implementation or submission to any funding agency.

(b) The commission may consider, evaluate, advise and recommend to the Mayor and Council on any matter relating to the following:

- (1) Recreation and parks policies, rules, regulations, programs and finances.
- (2) The acquisition and disposal of lands and properties related to the community recreation, educational and cultural programs occurring on those lands and properties.
- (3) The improvement and expansion of public recreational, educational and cultural facilities under the jurisdiction of the Mayor and Council.
- (4) The maintenance of parks and facilities.
- (5) The future plan for recreation and parks development needs outlined in the town comprehensive plan, chapter 108, zoning, or other applicable sections of the Berlin Code relating to recreation and parks.
- (6) The coordination of publicly sponsored activities and events held in or involving public park facilities or privately sponsored activities which are open to the public.
- (7) The seeking of funds, through public and private sources, to establish, develop or improve public parks and recreation facilities within the corporate limits of the town as those boundaries may be amended from time to time.

(c) The commission will develop and submit to the Mayor and Council an annual park improvement plan prior to the adoption of the annual budget on July 1 of each year.

(d) The commission may hold such public meetings and solicit public input as may be necessary to develop an adequate representation of all Berlin citizens in the planning and development of parks and recreational facilities.

(e) The authority for any final approval, direction to staff or policy decision shall rest with the Mayor and Council or, at the Mayor and Council's direction, with the town administrator or other officially designated representative of the Mayor and Council.

(Code 1977, § 18-4; Ord. No. 1992-1, 1-27-1992; Ord. No. 2017-03, 7-10-2017)

Secs. 22-23—22-46. Reserved.

ARTICLE III. PARKS

Sec. 22-47. Definitions

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Controlled parking area means a land surface or building structure owned, leased or rented by the town, designated for public parking.

Motor vehicle means any vehicle commonly known as a car or truck as well as any motorized minibikes, motorized bikes, motor scooters, go-carts or other mechanically propelled vehicles of a similar nature, except bicycles as defined herein or in Md. Transportation Code Ann. § 11-104.

Park or Parks means those areas of town-owned property designated as such by the Mayor and Council.

Special event means any social occasion or activity occurring on the grounds of a town park, having more than 50 persons in attendance, including, but not limited to fairs, bazaars and outdoor shows or exhibitions, parades and concerts. For the purposes of this chapter, special

event shall be further defined as requiring services of the town, including, but not necessarily limited to the provision of additional trash cans, traffic equipment, trash collection and the like. The town reserves the right to designate an event or activity as a special event requiring additional services at its discretion.

(Ord. No. 2017-03, 7-10-2017)

Sec. 22-48. Hours.

The public parks in the town shall not be occupied, except as hereinafter set forth, between the hours of one-half hour after sundown to one-half hour before sunrise each day. The specific facilities named below shall be permitted to be in use after sundown as specified:

- (1) The lighted tennis courts and handball courts located in Stephen Decatur Park shall be permitted to be used after sunset up to 11:00 p.m. Any play on said courts after the hour of 11:00 p.m. and prior to sunrise shall be prohibited.
- (2) The basketball courts located in the Dr. William Henry Park shall be permitted to be used after sunset up to 11:00 p.m. any play on said courts after and prior to sunrise shall be prohibited.

(Code 1977, § 71-1; Ord. No. 80-2, 10-6-1980; Ord. No. 84-5, 6-18-1984; Ord. No. 2017-03, 7-10-2017; Ord. No. 2023-01, 1-23-2023)

Sec. 22-49. Rules and regulations.

The rules and regulations for the use of the parks are as set forth herein:

- (1) The washing, waxing, cleaning or repairing of any type of motor vehicle shall be prohibited in the parks.
- (2) The operation and/or parking of unauthorized motor vehicles as defined herein in any area of the parks not designated as a parking area or otherwise authorized by the police department of the town or its authorized agent shall be prohibited.

- (3) All applicable provisions of chapter 4, animals, shall apply.
- (4) No motor vehicle shall be parked in the parks, whether in the parking areas or otherwise, overnight.
- (5) No mobile home or any other type of structure shall be used for sleeping in the parks, including the parking areas thereof, without permission being obtained from the Mayor and Council.
- (6) No open container of alcoholic beverages shall be possessed in any of the parks, unless explicitly approved in advance by the Mayor and Council as part of an organized special event. The organizer of said event shall be responsible for obtaining any additional permitting required by Worcester County or the State of Maryland regarding the possession, distribution/sale, and/or consumption of alcohol.
- (7) Smoking or vaping of tobacco products, medical marijuana, illegal substances or any other substances shall be prohibited in all town owned public parks.
- (8) The following parks facilities are available for reservation upon completion of a park reservation form and by payment of associated fees as established by the Mayor and Council and detailed on the park reservation form:
 - a. The pavilion at Stephen Decatur Park during regular park hours.
 - b. One or more of the tennis courts at Stephen Decatur Park during the hours as set forth in section 22-48.
 - c. The pavilion at Dr. William Henry Park during regular park hours.
 - d. One or more of the basketball courts at Dr. William Henry Park during the hours as set forth in section 22-48.

Individuals or organizations desiring to reserve these facilities must

complete a reservation form as provided by the Town of Berlin and make payment of associated fees, which shall be established by the Mayor and Council and set-forth on the reservation form. Fees shall be waived only by the express permission of the Mayor and Council or, in the case of reservation by a certified non-profit agency or organization, by the town administrator upon request and with verification of non-profit status.

Reservation of the above facilities takes precedence over any other use. If no prior reservation of any of the above named facilities exists, all facilities are available on a first-come-first-served basis.

- (9) Organizers of special events shall file a special event application and any associated documents as appropriate a minimum of 60 days prior to the scheduled event. Such application shall be subject to review and approval by the Mayor and Council.
- (10) Special events must be free to all attendees unless a business use of park form, along with all other appropriate documentation, has been submitted and explicitly authorized by the Mayor and Council.

(Code 1977, § 71-2; Ord. No. 80-2, 10-6-1980; Ord. No. 84-5, 6-18-1984; Ord. No. 2013-06, 11-25-2013; Ord. No. 2016-06, 7-11-2016; Ord. No. 2017-03, 7-10-2017; Ord. No. 2018-04, 6-11-2018; Ord. No. 2021-04, 12-13-2021; Ord. No. 2023-01, 1-23-2023)

Sec. 22-50. Violations and penalties.

Any violations of the provisions of this chapter shall be punishable, upon conviction, as a municipal infraction as set forth in article IV of chapter 2 of this Code.

Any vehicle violating any rules or regulations as herein set forth shall be removed and towed at the expense of the owner or operator.
(Code 1977, § 71-3; Ord. No. 80-2, 10-6-1980; Ord. No. 84-5, 6-18-1984; Ord. No. 2013-06, 11-25-2013)

Chapter 23

RESERVED

Chapter 24

SOLID WASTE*

Article I. In General

- Sec. 24-1. Word usage; definitions.
- Sec. 24-2. Scavenging.
- Sec. 24-3. Administration.
- Secs. 24-4—24-28. Reserved.

Article II. Garbage, Rubbish and Refuse Collection

- Sec. 24-29. General regulations for storage and collection.
- Sec. 24-30. Collection days.
- Sec. 24-31. Responsibilities of collection customers.
- Sec. 24-32. Items prohibited for placement for collection.
- Secs. 24-33—24-52. Reserved.

Article III. Recycling Mandatory

- Sec. 24-53. Purpose.
- Sec. 24-54. Collection of recyclable material.
- Sec. 24-55. Bulk and special items.
- Sec. 24-56. Yard waste.

Article IV. Violations

- Sec. 24-57. Notice of violation; correction.
- Sec. 24-58. Violations and penalties.

***Editor's note**—Ord. No. 2020-01, adopted January 27, 2020, amended Chapter 24 in its entirety to read as herein set out. Former Chapter 24, §§ 24-1—24-5, 24-29—24-32, 24-53—24-57, pertained to similar subject matter, and derived from Code 1977, § 55-1—55-8; Code 1977, § 81-1—81-4; Ord. No. 1976-1, April 5, 1976; Ord. No. 92-9, June 22, 1992; Ord. No. 2009-05, March 23, 2009; Ord. No. 2009-15, Dec. 28, 2009; Ord. No. 2013-02, March 11, 2013.

Charter reference—Authority to provide for the removal of solid waste, § C5-1B(27).

State law reference—Solid waste disposal, Md. Environment Code Ann. § 9-204 et seq.

ARTICLE I. IN GENERAL**Sec. 24-1. Word usage; definitions.**

(a) For the purpose of this article, the following terms, phrases, words and their derivatives shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future tense, words used in the plural include the singular and words in the singular include the plural. The word "shall" is always mandatory and not merely discretionary. The use of a masculine pronoun shall be assumed to include the feminine.

(b) The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated collection containers means any containers for refuse having a capacity of 95 gallons and purchased, owned and provided by the town, equipped with wheels and a lifting bar for use in a semiautomated or totally automated collection process.

Building or construction materials means any material such as lumber, brick, block, stone, plaster, concrete, asphalt, roofing shingles, gutters and other substances accumulated as the result of repairs or additions to existing buildings or structures, construction of new buildings or structures, or the demolition of existing buildings or structures. The list contained in this definition may not be considered to be all inclusive.

Bulk waste means any waste items not considered to be normal household trash/refuse including recyclables or yard waste. Bulk waste includes, but is not necessarily limited to, appliances, electronics, such as computers and household furnishings and any such other items that by their nature or size are not reasonably considered to be general refuse, recyclable ma-

terial or yard waste, or as shall be designated by the Mayor and Council or their designated representative from time to time.

Business/commercial establishment means any retail, wholesale, motel, hotel, and institutional, religious, governmental or nonresidential establishment.

Business/commercial trash means any waste/refuse associated with the operation of a business establishment. Home-occupied businesses may be subject to this definition. A determination of whether a home-occupied business is to be considered to generate waste/refuse under this definition shall be made by the Director of Public Works.

Curb/curbside means the sidewalk or lawn or other area of a property or building fronting on a public street or road.

Garbage (also *refuse and trash*) means the waste materials from normal household living conditions, including waste foodstuffs of vegetable or animal origin, paper products, fabrics, plastic and metal containers, bottles, crockery and other similar materials, free of hazard of explosion, conflagration or hazard to collection personnel. Items designated as "recyclables" under article III of this chapter shall be excluded from this definition as are items designated by the Director of Public Works as "bulk waste" or "yard waste."

Garbage container means any container for refuse with a tightfitting lid and intended for the placement of trash/waste/refuse.

Hazardous refuse means materials such as poisons, acids, caustics, harmful or dangerous chemicals, infected materials, offal, fecal matter, explosives, highly flammable material and parts of the human anatomy, including pathological specimens and includes, but is not necessarily limited to, household chemicals such as paint, yard or garden chemicals, insecticides and other pest controls, automotive fluids, cleaning chemicals and the like.

Household garbage/trash/refuse. See Garbage.

Industrial waste means all waste, including solids, semisolids, sludges and liquids, created or generated by factories, plants or other manufacturing enterprises.

Person means any individual, firm, company, corporation or association.

Public containers means any container owned by the town, located on public property or on property publicly controlled, to be used for the deposit of public trash by the general public. The term "general public" is not taken to mean a local resident and/or business owner/operator or employee of same and shall not be interpreted to permit regular depositing of household and/or business trash.

Public works department means the Public Works Department of the town; the term "sanitation department" (a division of public works) may also be used.

Recyclable materials means those materials and items which shall be designated as such by regulations adopted from time to time by the Mayor and Council or their designated representative.

Sanitation department means the division of the town Public Works Department responsible for trash and recycling collection.

Town means the Town of Berlin, Maryland.

Yard waste means tree and shrubbery trimmings, grass or weed trimmings and other waste associated with the cleanup and/or maintenance of lawns and yards. Parts of trees including stumps, provided that such parts of trees, or stumps do not weigh more than 50 pounds, shall be included in this definition. Separate collection days for this type of refuse shall be scheduled by the Public Works Department and

announced via local media, the town website and other applicable public announcement venues.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-2. Scavenging.

It is unlawful for anyone to disturb any refuse containers or to remove their covers or any contents thereof, except the occupants of the premises on which the containers are placed or their duly authorized agents or the duly authorized employees or agents of the town.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-3. Administration.

The administration of the provisions of this article shall be the duty and responsibility of the Director of Public Works.

(Ord. No. 2020-01, 1-27-2020)

Secs. 24-4—24-28. Reserved.

ARTICLE II. GARBAGE, RUBBISH AND REFUSE COLLECTION*

Sec. 24-29. General regulations for storage and collection.

(a) It shall be unlawful for any person to cause or allow unsightly litter, foul or offensive odors or potentially dangerous materials to remain on or emanate from any property under his control or to discard, abandon or cause the same on any public or private property within the corporate limits of the town.

(b) Every residence and commercial establishment in the town will, at all times, furnish or have available garbage containers, with secure lids, as directed by this article and/or as directed by the Director of Public Works. No residence or commercial establishment will be occupied without the presence of the correct container(s).

***Charter reference**—Authority to provide for the removal of solid waste, § C5-1B(27).

(c) It shall be the responsibility of the Public Works Department to protect the property of residents and businesses from unnecessary damage or abuse resulting from any refuse collection activity performed by the Town of Berlin. Claims for damage to premises or containers must be supported by reasonable evidence to receive consideration for replacement or reimbursement.

(d) The town may, at its option, provide refuse service where residences and/or businesses are concentrated in high-density situations, such as apartment complexes with more than three dwelling units. In these cases, the management, community association, homeowners' or condominium association or the like shall be officially notified of the details of the service to be rendered. It shall be the responsibility of the Public Works Department to determine if reasonable arrangements can be made for the placement and collection of acceptably sized collection containers on public, private, or common ownership property. The standard of service shall be sanitary, and containers shall be maintained in a nonoffensive manner.

(e) Nothing in this article shall prevent a property owner or tenant of a property from entering into an agreement with a private collection service at the expense of the property owner or tenant as opposed to collection by town employees and equipment. Private individuals or firms engaged in the business of refuse collection in the town shall be subject to all federal, state or local laws, ordinances, codes or regulations applicable to the operation and maintenance of motor vehicles, including air and noise pollution.

(f) Streets, roads, lanes or other vehicle-accessible travelways not dedicated as public for the purposes of maintenance and other considerations by the town shall not be included in the trash/recycling collection schedule unless the owner of said travelways enters into a written agreement acceptable to the town providing for said services.

(g) Properties which do not receive municipal collection of waste shall adhere to those portions of this article intended to preserve the aesthetic, safe, and healthy maintenance of properties as relates to trash/waste/refuse.

(h) The Director of Public Works shall have the authority to determine if items placed for collection at any time are of a nature or volume to incur additional considerations, such as classification as commercial, bulk or yard waste, and to assess fees for that collection, or refuse collection by the town.

(i) It shall be unlawful for any person to place household or commercial refuse beyond ordinary litter in any waste receptacle intended for the general use of the public for the disposal of litter and which are provided in public areas such as, but not necessarily limited to, parks or the downtown commercial district.
(Ord. No. 2020-01, 1-27-2020)

Sec. 24-30. Collection days.

(a) Garbage, trash and refuse for residential and commercial properties shall be collected by the town according to a schedule set by the Director of Public Works and approved by the Mayor and Council. Said schedule may be changed from time to time as deemed necessary and as necessitated by office closures due to holidays or other events.

(b) Garbage, trash and refuse shall be collected at least weekly by the town.

(c) Recyclables shall generally be collected at least weekly; however, in the event that a holiday or other office closure shall prohibit the regular collection of recyclables, no more than two weeks between collections shall occur.

(d) The town may elect to offer one or more special collection schedules per year for bulk or yard waste or other items. Scheduling, regulations and requirements, including fees to be assessed for such service for such collections

may be established by the Director of Public Works with the approval of the Mayor and Council.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-31. Responsibilities of collection customers.

(a) *Residential collection.*

- (1) It shall be unlawful and a violation of this article for any person to place waste, including but not limited to garbage, recyclables, yard waste or bulk items, on the property of another without the consent of the owner of the property.
- (2) Properties that have been supplied automated collection containers must use those containers for all refuse except as specified below. Containers must be placed at the curb or roadside or as otherwise directed, with the handle away from and parallel to traffic. Printed instructions on the container shall be followed.
- (3) Properties not provided with automated collection containers, but which will receive collection by municipal employees and equipment shall provide containers no larger than 30 gallons which shall be equipped with tightfitting lids, which shall be closed at all times, except when refuse is being deposited in said containers. Properties not provided with automated collection containers shall comply with all other standards as set forth in this article.
- (4) Plastic trash bags may be used in all town-provided or privately-owned containers.
- (5) Refuse containers, whether provided by the town or privately owned, must be maintained in a clean and sanitary condition. They shall not be set out for collection containing free liquids or rainwater. They shall be kept free of dead

animals, vermin, lice, maggots or the like and unreasonably offensive odors resulting from the lack of cleanliness, animal feces or items which may be infectious or disease-bearing. Receptacles which have become excessively worn or corroded shall be promptly replaced.

- (6) Town-supplied collection containers, supplied at no initial cost to the property owner, shall not exceed one per dwelling unit for residential properties. If town-supplied collection containers are available to a residential property, additional private receptacles will not be picked up. Should a property owner request additional town-supplied collection containers, such shall be provided at a one-time, non-refundable, cost of \$100.00 per container to be paid prior to delivery of the container. All provisions of subsection (a)(12) of this section shall apply to all containers provided to a given property.
- (7) Containers shall be placed for collection by 6:00 a.m. on the day of collection and must be removed to the premises by no later than 11:00 p.m. on the day of collection. Containers shall not be kept at the curb or roadside between scheduled collections.
- (8) Items too bulky for placement in an approved container, or as further defined, may not be placed for collection except at those times scheduled for special bulk waste or yard waste collection. Special bulk waste or yard waste collections are only available to regular residential collection customers. All recyclable materials shall be separated from all other refuse as more particularly set forth in article III of this chapter.
- (9) All properties shall provide a location or locations readily accessible to the town sanitation department. Typically, such lo-

cation shall be at the curb or roadside at the front of the residence. Sanitation department employees shall not enter private property to collect refuse. Should other arrangements for placement be required, such deviation shall be agreed upon by said resident and the Director of Public Works or other proper agent of the town.

- (10) It shall be the responsibility of the resident to transport the containers to and from the designated area or, as applicable, to transport refuse to the containers.
- (11) The town sanitation department shall not be responsible for picking up any garbage, rubbish or refuse from the ground that is not contained in a proper garbage container, plastic trash bag or paper bundle unless the town sanitation department causes a spillage.
- (12) Should the automated collection container provided to a given property require replacement due to damage or breakage or loss or theft, it shall be the responsibility of the owner of the property to reimburse the town for the cost of the replacement of the container if it is determined by the Director of Public Works that such damage or breakage is not in the normal course of use. Such replacement cost shall be determined based on the current retail price paid by the town at the time of replacement and may include an administrative charge not to exceed ten percent of that price.
- (13) Town-supplied collection containers shall remain the property of the town. Should ownership or tenancy of a property or unit change, the container assigned to that property or unit shall remain on the property for use by the next owner or tenant. The town reserves the right to remove containers from vacant proper-

ties until such time as the property or unit becomes occupied by a new owner/tenant.

- (b) *Commercial collection.*
- (1) All conditions as set forth in section 24-29 shall apply.
- (2) A commercial customer shall be permitted to have up to two town-supplied collection containers at no initial cost. Should a commercial customer request more than two town-supplied collection containers, the provisions of subsection (a)(6) of this section shall apply.
- (3) The rate schedule for garbage collection fees for commercial accounts shall be determined by the Mayor and Council annually. The classification of a commercial account within that schedule shall be determined by the Director of Public Works.
- (4) All fees for commercial accounts shall be due and payable at the time of rendering of the statement by the Mayor and Council, and the Mayor and Council reserve the right to deny collection service when, in their sole judgment, said commercial account is detrimentally in arrears.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-32. Items prohibited for placement for collection.

The following items are prohibited from being placed for collection:

- (1) Motor vehicle tires.
- (2) Building materials.
- (3) Hazardous, radioactive or medical wastes.
- (4) Burning or smoldering materials or any other materials which would create a fire hazard.
- (5) Rocks, dirt, sod, paint or motor oil.

- (6) Dead animals.
- (7) Unbagged animal waste.
- (8) Items defined as recyclable under article III of this chapter.
- (9) Items defined as bulk or yard waste under this chapter, except when a separate and specific collection schedule is established for those items.
- (10) Any other item, disposal of which falls under the regulation of a county, state, or federal agency, such as, but not limited to, the county health department, the state department of the environment, or the environmental protection agency.

(Ord. No. 2020-01, 1-27-2020)

Secs. 24-33—24-52. Reserved.

ARTICLE III. RECYCLING MANDATORY

Sec. 24-53. Purpose.

The purpose of this article is to make recycling mandatory.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-54. Collection of recyclable material.

(a) All recyclable material to be collected by the town shall be separated by the property owner or resident before collection and shall be presented separately from general refuse, as well as separated from each other type of recyclable material, as those types or categories of material shall be designated by the Mayor and Council.

(b) All recyclable material shall be separated and presented for collection in the manner and at the time or times established by regulations promulgated from time to time by the Mayor and Council.

(c) Generally, recyclables shall be collected once per week on a schedule determined by the Public Works Department and subject to change. In the event that recyclable collection is cancelled due to office closure or other unforeseen circumstances, collection shall occur no less than once every two weeks.

(d) The Mayor and Council may require that recyclable materials and general refuse be presented for collection in separate specially designated containers, and any person desiring collection of recyclable materials by the town may be required to obtain such designated container or containers, which shall be used for no other purpose.

(e) It shall be unlawful for any person, other than the designated employees of the town or its designated agent, to pick up or collect recyclable materials which are presented for collection by the town pursuant to the provisions of this article and regulations adopted pursuant hereto.

(f) The town shall not collect refuse or garbage which is not separated from recyclable material nor shall it collect recyclable materials that are not properly separated or contained as provided herein or in any regulations promulgated pursuant hereto.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-55. Bulk and special items.

(a) The town will not collect bulk or special items as defined in section 24-54 during the course of its general refuse or recyclable materials collections.

(b) At the recommendation of the Public Works Director, the Mayor and Council may establish specific dates for the collection of bulk waste or other special items.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-56. Yard waste.

(a) The town will not collect yard waste as defined in section 24-1 during the course of its general refuse or recyclable materials collections.

(b) At the recommendation of the Public Works Director, the Mayor and Council may establish specific dates for the collection of yard waste.

(Ord. No. 2020-01, 1-27-2020)

ARTICLE IV. VIOLATIONS

Sec. 24-57. Notice of violation; correction.

Any person violating the provisions of this article shall be notified in writing by registered mail, return receipt requested, of said violation. Said notice shall describe the violation and notify the violator to correct same within five days or, for cause shown, a greater length of time. In the event that the violation is not corrected, the Mayor and Council may, at their option and on the recommendation of the Director of Public Works, refuse to make collection of the refuse, trash, garbage, etc., of said violator.

(Ord. No. 2020-01, 1-27-2020)

Sec. 24-58. Violations and penalties.

Any person who shall violate any provisions of this article shall be guilty of a municipal infraction and shall be fined the sum of \$50.00 for any single initial violation and the sum of \$100.00 for each repeat or continuing violation.

(Ord. No. 2020-01, 1-27-2020)

Chapter 25

RESERVED

Chapter 26

STORMWATER

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ARTICLE I. IN GENERAL**Secs. 26-1—26-18. Reserved.****ARTICLE II. STORMWATER
MANAGEMENT*****DIVISION 1. GENERALLY****Sec. 26-19. Purpose.**

(a) The purpose of this article is to protect, maintain and enhance the public health, safety, and general welfare by establishing minimum requirements and procedures to control the adverse impacts associated with increased stormwater runoff. Proper management of stormwater runoff will minimize damage to public and private property, reduce the effects of development on land, control stream channel erosion, reduce local flooding, and maintain after development, as nearly as possible, the pre-development runoff characteristics.

(b) The goal is to manage stormwater by using environmental site design (ESD) to the maximum extent practicable (MEP) to maintain after development as nearly as possible, the predevelopment runoff characteristics, and to reduce stream channel erosion, pollution, siltation and sedimentation, and local flooding, and use appropriate structural best management practices (BMPs) only when necessary. This will restore, enhance, and maintain the chemical, physical, and biological integrity of streams, minimize damage to public and private property, and reduce the impacts of land development.

***Charter reference**—Power to construct, operate, maintain a stormwater drainage system and stormwater sewers, § C10-1C.

State law references—Stormwater management, Md. Ann. Code art. 24, § 24-101 et seq.; stormwater management programs, Md. Environment Code Ann. § 4-201 et seq.

(c) The provisions of these regulations may not be construed to affect the requirements for a project located in an intensely developed area of the Chesapeake and Atlantic Coastal Bays Critical Area to comply with the ten percent pollution reduction requirement under COMAR 27.01.02.03 D(3).

(Code 1977, § 93-1; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-1, 4-23-2010)

Sec. 26-20. Statutory authority.

The provisions of this article, pursuant to the Md. Environment Code Ann. § 4-201 et seq., are adopted under the authority of the Berlin Code and shall apply to all development occurring within the incorporated area of the town. The application of this article and provisions expressed herein shall be the minimum stormwater management requirements and shall not be deemed a limitation or repeal of any other powers granted by state statute. The Mayor and Council shall be responsible for the coordination and enforcement of the provisions of this article. Subject to section 26-219, this article applies to all new and redevelopment projects that have not received final approval for erosion and sediment control and stormwater management plans by May 4, 2010.

(Code 1977, § 93-2; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-2, 4-23-2010)

Sec. 26-21. Documents incorporated by reference.

For the purpose of this article, the following documents are incorporated by reference:

- (1) The 2000 Maryland Stormwater Design Manual, Volumes I and II (Maryland Department of the Environment, April 2000) and all subsequent revisions are incorporated by reference by the town and

shall serve as the official guide for stormwater principles, methods, and practices.

- (2) United States Department of Agriculture Natural Resources Conservation Service Maryland Conservation Practice Standard Pond Code 378 (January 2000).

(Code 1977, § 93-3; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-3, 4-23-2010)

Sec. 26-22. Terms defined.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administration means the Maryland Department of the Environment (MDE) Water Management Administration (WMA).

Adverse impact means any deleterious effect on waters or wetlands, including their quality, quantity, surface area, species composition, aesthetics or usefulness for human or natural uses which are or may potentially be harmful or injurious to human health, welfare, safety or property, to biological productivity, diversity, or stability or which unreasonably interfere with the enjoyment of life or property, including outdoor recreation.

Agricultural land management practices means those methods and procedures used in the cultivation of land in order to further crop and livestock production and conservation of related soil and water resources.

Applicant means any person, firm, or governmental agency who executes the necessary forms to procure official approval of a project or a permit to carry out construction of a project.

Approving agency means the entity responsible for the review and approval of stormwater management plans.

Aquifer means a porous water-bearing geologic formation generally restricted to materials capable of yielding an appreciable supply of water.

Best management practice (BMP) means a structural device or nonstructural practice designed to temporarily store or treat stormwater runoff in order to mitigate flooding, reduce pollution, and provide other amenities.

Channel protection storage volume (Cpv) means the volume used to design structural management practices to control stream channel erosion. Methods for calculating the channel protection storage volume are specified in the 2000 Maryland Stormwater Design Manual, Volumes I and II.

Clearing means the removal of trees and brush from the land, but shall not include the ordinary mowing of grass.

Concept plan means the first of three required plan approvals that includes the information necessary to allow an initial evaluation of a proposed project.

Design manual means the 2000 Maryland Stormwater Design Manual, Volumes I and II, and all subsequent revisions, that serves as the official guide for stormwater management principles, methods, and practices.

Detention structure means a permanent structure for the temporary storage of runoff, which is designed so as not to create a permanent pool of water.

Develop land means to change the runoff characteristics of a parcel of land in conjunction with residential, commercial, industrial, or institutional construction or alteration.

Direct discharge means the concentrated release of stormwater to tidal waters or vegetated tidal wetlands from new development or redevelopment projects in the critical area.

Drainage area means that area contributing runoff to a single point measured in a horizontal plane which is enclosed by a ridgeline.

Easement means a grant or reservation by the owner of land for the use of such land by others for a specific purpose or purposes, and which must be included in the conveyance of land affected by such easement.

Environmental site design (ESD) means using small-scale stormwater management practices, nonstructural techniques, and better site planning to mimic natural hydrologic runoff characteristics and minimize the impact of land development on water resources. Methods for designing environmental site design (ESD) practices are specified in the design manual.

Exemption means those land development activities that are not subject to the stormwater management requirements contained in this article.

Extended detention means a stormwater design feature that provides gradual release of a volume of water in order to increase settling of pollutants and protect downstream channels from frequent storm events. Methods for designing extended detention best management practices (BMPs) are specified in the design manual.

Extreme flood volume (Q_f) means the storage volume required to control those infrequent but large storm events in which overbank flows reach or exceed the boundaries of the 100-year floodplain.

Final stormwater management plan means the last of three required plan approvals that includes the information necessary to allow all approvals and permits to be issued by the approving agency.

Flow attenuation means prolonging the flow time of runoff to reduce the peak discharge.

Grading means any act by which soil is cleared, stripped, stockpiled, excavated, scarified, filled or any combination thereof.

Impaired waters means those waters designated as either Category 4 or Category 5 on the Maryland Integrated Report of Surface Water Quality as required by the United States Environmental Protection Agency pursuant to the Federal Clean Water Act.

Impervious area means any surface that does not allow stormwater to infiltrate into the ground.

Infiltration means the passage or movement of water into the soil surface.

Maximum extent practicable (MEP) means designing stormwater management systems so that all reasonable opportunities for using environmental site design (ESD) planning techniques and treatment practices are exhausted and only where absolutely necessary, a structural best management practice (BMP) is implemented.

Off-site stormwater management means the design and construction of a facility necessary to control stormwater from more than one development.

On-site stormwater management means the design and construction of systems necessary to control stormwater within an immediate development.

Overbank flood protection volume (Q_p) means the volume controlled by structural practices to prevent an increase in the frequency of out-of-bank flooding generated by development. Methods for calculating the overbank flood protection volume are specified in the design manual.

Person means the federal government, the state, any county, municipal corporation, or other political subdivision of the state, or any of their units, or an individual receiver, trustee, guardian, executor, administrator, fiduciary, or repre-

sentative of any kind, or any partnership, firm association, public or private corporation, or any other entity.

Planning techniques means a combination of strategies employed early in project design to reduce the impact from development and to incorporate natural features into a stormwater management plan.

Receiving waters means a stream, creek, bay or other watercourse into which surface runoff is discharged.

Recharge volume (Rev) means that portion of the water quality volume used to maintain groundwater recharge rates at development sites. Methods for calculating the recharge volume are specified in the design manual.

Redevelopment means any construction, alteration, or improvement exceeding 5,000 square feet of land disturbance performed on sites where existing land use is commercial, industrial, institutional or multifamily residential and existing site impervious area exceeds 40 percent.

Retention structure means a permanent structure that provides for the storage of runoff by means of a permanent pool of water.

Retrofitting means the implementation of environmental site design (ESD) practices, the construction of a structural best management practices (BMP), or the modification of an existing structural best management practices (BMP) in a previously developed area to improve water quality over current conditions.

Sediment means soils or other surficial materials transported or deposited by the action of wind, water, ice, or gravity as a product of erosion.

Site means any tract, lot, or parcel of land, or combination of tracts, lots, parcels of land that are in one ownership, or are contiguous and in

diverse ownership where development is to be performed as part of a unit, subdivision, or project.

Site development plan means the second of three required plan approvals that includes the information necessary to allow a detailed evaluation of a proposed project.

Stabilization means the prevention of soil movement by any of various vegetative and/or structural means.

Stormwater means water that originates from a precipitation event.

Stormwater management system means natural areas, environmental site design (ESD) practices, stormwater management measures, and any other structure through which stormwater flows, infiltrates, or discharges from a site.

Stripping means any activity which removes the vegetative surface cover, including tree removal, clearing, grubbing and storage or removal of topsoil.

Variance means the modification of the minimum stormwater management requirements for specific circumstances such that strict adherence to the requirements would result in necessary hardship and not fulfill the intent of this article.

Waiver means the reduction of or relinquishment from stormwater management requirements by the town for a specific development on a case-by-case review basis.

Water quality volume (WQv) means the volume needed to capture and treat the runoff from 90 percent of the average annual rainfall at a development site. Methods for calculating the water quality volume are specified in the design manual.

Watercourse means any natural or artificial stream, river, creek, ditch, channel, canal, conduit, culvert, drain, waterway, gully, ravine or

wash, in and including any adjacent area that is subject to inundation from overflow or floodwater.

Watershed means the total drainage area contributing runoff to a single point.

(Code 1977, § 93-4; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-4, 4-23-2010)

Secs. 26-23—26-47. Reserved.

DIVISION 2. ADMINISTRATION

Sec. 26-48. Scope.

No person shall develop any land for residential, commercial, industrial, or institutional uses without having provided stormwater management measures that control or manage runoff from such developments, except as provided within this division. The stormwater management measures must be designed consistent with the design manual and constructed according to an approved plan for new development or the policies stated in section 26-51 for redevelopment.

(Code 1977, § 93-5; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-5, 4-23-2010)

Sec. 26-49. Exemptions.

The following development activities are exempt from the provisions of this article and the requirements of providing stormwater management:

- (1) Agricultural land management activities;
- (2) Additions or modifications to existing single-family detached residential structures if they comply with subsection (3) of this section;
- (3) Developments that do not disturb over 5,000 square feet of land area;

- (4) Land development activities that the administration determines will be regulated under specific state laws, which provide for managing stormwater runoff.
(Code 1977, § 93-6; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-6, 4-23-2010)

Sec. 26-50. Waivers; watershed management plan.

(a) Except as provided in subsections (b) and (d) of this section, the town shall grant stormwater management quantitative control waivers only to those projects within areas where watershed management plans have been developed consistent with subsection (g) of this section. Written requests for quantitative stormwater management waivers shall be submitted that contain sufficient descriptions, drawings, and any other information that is necessary to demonstrate that environmental site design (ESD) has been implemented to the maximum extent practicable (MEP). A separate written waiver request shall be required in accordance with the provisions of this section if there are subsequent additions, extensions, or modifications to a development receiving a waiver.

(b) Except as provided in subsection (d) of this section, if watershed management plans consistent with subsection (g) of this section have not been developed, then stormwater management quantitative control waivers may be granted to the following projects, provided that it has been demonstrated that environmental site design (ESD) has been implemented to the maximum extent practicable (MEP):

- (1) That have direct discharges to tidally influenced receiving waters;
- (2) That are infill development located in a priority funding area where the economic feasibility of the project is tied to the planned density, and where implementation of the 2009 regulatory require-

ments would result in a loss of the planned development density provided that:

- a. Public water and sewer and stormwater conveyance exist;
- b. The quantitative waiver is applied to the project for the impervious cover that previously existed on the site only;
- c. Environmental site design (ESD) to the maximum extent practicable (MEP) is used to meet the full water quality treatment requirements for the entire development; and
- d. Environmental site design (ESD) to the maximum extent practicable (MEP) is used to provide full quantity control for all new impervious surfaces; or

- (3) When the approving agency determines that circumstances exist that prevent the reasonable implementation of quantity control practices.

(c) Except as provided in subsection (d) of this section, stormwater management qualitative control waivers apply only to:

- (1) Infill development projects when environmental site design (ESD) has been implemented to the maximum extent practicable (MEP) and it has been demonstrated that other best management practices (BMPs) are not feasible;
- (2) Redevelopment projects if the requirements of section 26-51 are satisfied; or
- (3) Sites where the approving agency determines that circumstances exist that prevent the reasonable implementation of environmental site design (ESD) to the maximum extent practicable (MEP).

(d) Stormwater management quantitative and qualitative control waivers may be granted for phased development projects if a system de-

signed to meet the 2000 regulatory requirements and this article for multiple phases has been constructed by May 4, 2010. If the 2009 regulatory requirements cannot be met for future phases constructed after May 4, 2010, all reasonable efforts to incorporate environmental site design (ESD) in future phases must be demonstrated.

(e) Waivers shall only be granted when it has been demonstrated that environmental site design (ESD) has been implemented to the maximum extent practicable (MEP) and must:

- (1) Be on a case-by-case basis;
- (2) Consider the cumulative effects of the town waiver policy; and
- (3) Reasonably ensure the development will not adversely impact stream quality.

(f) If the town has established an overall watershed management plan for a specific watershed, then the town may develop quantitative waiver and redevelopment provisions that differ from subsection (b) of this section and section 26-51.

(g) A watershed management plan developed for the purpose of implementing different stormwater management policies for waivers and redevelopment shall:

- (1) Include detailed hydrologic and hydraulic analyses to determine hydrograph timing;
- (2) Evaluate both quantity and quality management and opportunities for environmental site design (ESD) implementation;
- (3) Include cumulative impact assessment of watershed development;
- (4) Identify existing flooding and receiving stream channel conditions;
- (5) Be conducted at a reasonable scale;

- (6) Specify where on-site or off-site quantitative and qualitative stormwater management practices are to be implemented;
- (7) Be consistent with the general performance standards for stormwater management in the state found in section 1.2 of the design manual; and
- (8) Be approved by the administration.
(Code 1977, § 93-7; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-7, 4-23-2010)

Sec. 26-51. Redevelopment.

(a) Stormwater management plans are required by the town for all redevelopment, unless otherwise specified by watershed management plans developed according to section 26-50(g). Stormwater management measures must be consistent with the design manual.

(b) All redevelopment designs shall:

- (1) Reduce impervious area within the limit of disturbance (LOD) by at least 50 percent according to the design manual;
- (2) Implement environmental site design (ESD) to the maximum extent practicable (MEP) to provide water quality treatment for at least 50 percent of the existing impervious area within the LOD; or
- (3) Use a combination of subsection (b)(1) and (2) of this section for at least 50 percent of the existing site impervious area.

(c) Alternative stormwater management measures may be used to meet the requirements in subsection (b) of this section if the owner/developer satisfactorily demonstrates to the town that impervious area reduction has been maximized and environmental site design (ESD) has

been implemented to the maximum extent practicable (MEP). Alternative stormwater management measures include, but are not limited to:

- (1) An on-site structural best management practice (BMP);
- (2) An off-site structural best management practice (BMP) to provide water quality treatment for an area equal to or greater than 50 percent of the existing impervious area; or
- (3) A combination of impervious area reduction, environmental site design (ESD) implementation, and an on-site or off-site structural best management practice (BMP) for an area equal to or greater than 50 percent of the existing site impervious area within the LOD.

(d) The town may develop separate policies for providing water quality treatment for redevelopment projects if the requirements of subsections (b) and (c) of this section cannot be met. Any separate redevelopment policy shall be reviewed and approved by the administration.

(e) The determination of what alternative stormwater management measures will be available may be made by the town at the appropriate point in the development review process. The town shall consider the prioritization of alternative measures in subsection (d) of this section after it has been determined that it is not practicable to meet the 2009 regulatory requirements using environmental site design (ESD). In deciding what alternative measures may be required, the town may consider factors including, but not limited to:

- (1) Whether the project is in an area targeted for development incentives such as a priority funding area, a designated transit oriented development area, or a designated base realignment and closure revitalization and incentive zone;

(2) Whether the project is necessary to accommodate growth consistent with comprehensive plans; or

(3) Whether bonding and financing have already been secured based on an approval development plan.

(f) Stormwater management shall be addressed according to the new development requirements in the design manual for any net increase in impervious area.

(Code 1977, § 93-8; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-8, 4-23-2010)

Sec. 26-52. Variance.

The town may grant a written variance from any requirement of article III, stormwater management criteria, if there are exceptional circumstances applicable to the site such that strict adherence will result in unnecessary hardship and not fulfill the intent of the article. A written request for variance shall be provided to the town and shall state the specific variances sought and reasons for their granting. The town shall not grant a variance unless and until sufficient justification is provided by the person developing land that the implementation of environmental site design (ESD) to the maximum extent practicable (MEP) has been investigated thoroughly.

(Code 1977, § 93-9; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-9, 4-23-2010)

Secs. 26-53—26-77. Reserved.

ARTICLE III. STORMWATER MANAGEMENT CRITERIA

DIVISION 1. GENERALLY

Sec. 26-78. Minimum control requirements.

(a) The minimum control requirements established in this article and the design manual are as follows:

(1) The town shall require that the planning techniques, nonstructural practices, and design methods specified in the design manual be used to implement environmental site design (ESD) to the maximum extent practicable (MEP). The use of environmental site design (ESD) planning techniques and treatment practices must be exhausted before any structural best management practice (BMP) is implemented. Stormwater management plans for development projects subject to this article shall be designed using environmental site design (ESD) sizing criteria recharge volume, water quality volume, and channel protection storage volume criteria according to the design manual. The maximum extent practicable (MEP) standard is met when channel stability is maintained, predevelopment groundwater recharge is replicated, nonpoint source pollution is minimized, and structural stormwater management practices are used only if determined to be absolutely necessary.

(2) Control of the two-year and ten-year frequency storm event is required according to the design manual and all subsequent revisions if the town determines that additional stormwater management is necessary because historical flooding problems exist and downstream floodplain development and conveyance system design cannot be controlled.

- (3) The town may require more than the minimum control requirements specified in this article if hydrologic or topographic conditions warrant or if flooding, stream channel erosion, or water quality problems exist downstream from a proposed project.
- (4) The town may disapprove proposals that fail to exhaust environmental site design (ESD) at two points within the flow chart:
 - a. Concept plan; and
 - b. Site development plan.

(b) Alternate minimum control requirements may be adopted by the town subject to administration approval. The administration shall require a demonstration that alternative requirements will implement environmental site design (ESD) to the maximum extent practicable (MEP) and control flood damages, accelerated stream erosion, water quality, and sedimentation. Comprehensive watershed studies may also be required.

(c) Stormwater management and development plans, where applicable, shall be consistent with adopted and approved watershed management plans or flood management plan as approved by the state department of the environment in accordance with the Flood Hazard Management Act of 1976. (Code 1977, § 93-10; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-10, 4-23-2010)

Sec. 26-79. Stormwater management measures.

(a) Environmental site design (ESD) planning techniques and practices.

- (1) The following planning techniques shall be applied according to the design manual to satisfy the applicable minimum control requirements established in section 26-78:
 - a. Preserving and protecting natural resources;

- b. Conserving natural drainage patterns;
- c. Minimizing impervious area;
- d. Reducing runoff volume;
- e. Using environmental site design (ESD) practices to maintain 100 percent of the annual predevelopment groundwater recharge volume;
- f. Using green roofs, permeable pavement, reinforced turf, and other alternative surfaces;
- g. Limiting soil disturbance, mass grading, and compaction;
- h. Clustering development; and
- i. Any practices approved by the administration.

- (2) The following environmental site design (ESD) treatment practices shall be designed according to the design manual to satisfy the applicable minimum control requirements established in section 26-78:

- a. Disconnection of rooftop runoff;
- b. Disconnection of non-rooftop runoff;
- c. Sheetflow to conservation areas;
- d. Rainwater harvesting;
- e. Submerged gravel wetlands;
- f. Landscape infiltration;
- g. Infiltration berms;
- h. Dry wells;
- i. Micro-bioretenion;
- j. Rain gardens;
- k. Swales;
- l. Enhanced filters; and
- m. Any practices approved by the administration.

- (3) The use of environmental site design (ESD) planning techniques and treat-

ment practices specified in this section shall not conflict with existing state law or local ordinances, regulations, or policies. The town shall modify planning and zoning ordinances and public works codes to eliminate any impediments to implementing environmental site design (ESD) to the maximum extent practicable (MEP) according to the design manual.

(b) Structural stormwater management measures.

- (1) The following structural stormwater management practices shall be designed according to the design manual to satisfy the applicable minimum control requirements established in section 26-78:
 - a. Stormwater management ponds;
 - b. Stormwater management wetlands;
 - c. Stormwater management infiltration;
 - d. Stormwater management filtering systems; and
 - e. Stormwater management open channel systems.
- (2) The performance criteria specified in the design manual with regard to general feasibility, conveyance, pretreatment, treatment and geometry, environment and landscaping, and maintenance shall be considered when selecting structural stormwater management practices.
- (3) Structural stormwater management practices shall be selected to accommodate the unique hydrologic or geologic regions of the state.

(c) Environmental site design (ESD) planning techniques and treatment practices and structural stormwater management measures used to satisfy the minimum requirements in section 26-78 must be recorded in the land records of the county and remain unaltered by

subsequent property owners. Prior approval from the town shall be obtained before any stormwater management practice is altered.

(d) Alternative structural and environmental site design (ESD) planning techniques and treatment practices may be used for new development runoff control if they meet the performance criteria established in the design manual and are approved by the administration. Practices used for redevelopment projects shall be approved by the town.

(e) For the purposes of modifying the minimum control requirements or design criteria, the owner/developer shall submit to the town an analysis of the impacts of stormwater flows downstream in the watershed. The analysis shall include hydrologic and hydraulic calculations necessary to determine the impact of hydrograph timing modifications of the proposed development upon a dam, highway, structure, or natural point of restricted streamflow. The point of investigation is to be established with the concurrence of the town downstream of the first downstream tributary whose drainage area equals or exceeds the contributing area to the project or stormwater management facility.

(Code 1977, § 93-11; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-11, 4-23-2010)

Sec. 26-80. Specific design criteria.

The basic design criteria, methodologies, and construction specifications, subject to the approval of the town and the administration, shall be those of the design manual.

(Code 1977, § 93-12; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-1, 4-23-2010)

Secs. 26-81—26-100. Reserved.

DIVISION 2. STORMWATER MANAGEMENT PLANS

Sec. 26-101. Review and approval.

(a) For any proposed development, the owner/developer shall submit phased stormwater management plans to the town for review and ap-

proval. At a minimum, plans shall be submitted for the concept, site development, and final stormwater management construction phases of project design. Each plan submittal shall include the minimum content specified in sections 26-102 through 26-106 and meet the requirements of the design manual and this article.

(b) The town shall perform a comprehensive review of the stormwater management plans for each phase of site design. Coordinated comments will be provided for each plan phase that reflect input from all appropriate agencies including, but not limited to the soil conservation district (SCD) and the departments of planning, zoning, water/sewer and public works. All comments from the town and other appropriate agencies shall be addressed and approval received at each phase of project design before subsequent submissions.

(c) Notification of approval or reasons for disapproval or modification shall be given to the applicant within 30 days after submission of each phase of the stormwater plan. If a decision is not made within 30 days, the applicant shall be informed of the status of the review process and the anticipated completion date. No phase of the stormwater management plan shall be considered approved without the inclusion of the signature and date of signature of the town on the particular phase of the plan. (Code 1977, § 93-13; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-13, 4-23-2010)

Sec. 26-102. Plans for concept approval.

The owner/developer shall submit a concept plan that provides sufficient information for an initial assessment of the proposed project and whether stormwater management can be provided according to section 26-79 and the design manual. Plans submitted for concept approval shall include, but are not limited to:

- (1) A map at a scale specified by the town showing site location, existing natural

features, water and other sensitive resources, topography, and natural drainage patterns;

- (2) The anticipated location of all proposed impervious areas, buildings, roadways, parking, sidewalks, utilities, and other site improvements;
- (3) The location of the proposed limit of disturbance, erodible soils, steep slopes, and areas to be protected during construction;
- (4) Preliminary estimates of stormwater management requirements, the selection and location of environmental site design (ESD) practices to be used, and the location of all points of discharge from the site;
- (5) A narrative that supports the concept design and describes how environmental site design (ESD) will be implemented to the maximum extent practicable (MEP); and
- (6) Any other information required by the town.

(Code 1977, § 93-14; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-14(a), 4-23-2010)

Sec. 26-103. Site development plans.

Following concept plan approval by the town, the owner/developer shall submit site development plans that reflect comments received during the previous review phase. Plans submitted for site development approval shall be of sufficient detail to allow site development to be reviewed and include but not be limited to:

- (1) All information provided during the concept plan review phase;
- (2) Final site layout, exact impervious area location and acreages, proposed topography, delineated drainage areas at all points of discharge from the site, and

stormwater volume computation for environmental site design (ESD) practices and quantity control structures;

- (3) A proposed erosion and sediment control plan that contains the construction sequence, any phasing necessary to limit earth disturbances and impacts to natural resources and an overlay plan showing the types and locations of environmental site design (ESD) and erosion and sediment control practices to be used;
- (4) A narrative that supports the site development design, describes how environmental site design (ESD) will be used to meet the minimum control requirements, and justifies any proposed structural stormwater management measure; and
- (5) Any other information required by the town.

(Code 1977, § 93-14; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-14(b), 4-23-2010)

Sec. 26-104. Final erosion and sediment control and stormwater management plans.

(a) Following site development approval by the town, the owner/developer shall submit final erosion and sediment control and stormwater management plans that reflect the comments received during the previous review phase. Plans submitted for final approval shall be of sufficient detail to allow all approvals and permits to be issued according to the following:

- (1) Final erosion and sediment control plans shall be submitted according to COMAR 26.17.01.05; and
- (2) Final stormwater management plans shall be submitted for approval in the form of construction drawings and be accompanied by a report that includes

sufficient information to evaluate the effectiveness of the proposed runoff control design.

(b) Reports submitted for final stormwater management plan approval shall include, but are not limited to:

- (1) Geotechnical investigations including soil maps, borings, site-specific recommendations, and any additional information necessary for the final stormwater management design;
- (2) Drainage area maps depicting predevelopment and post-development runoff flow path segmentation and land use;
- (3) Hydrologic computations of the applicable environmental site design (ESD) and unified sizing criteria according to the design manual for all points of discharge from the site;
- (4) Hydraulic and structural computations for all environmental site design (ESD) practices and structural stormwater management measures to be used;
- (5) A narrative that supports the final stormwater management design; and
- (6) Any other information required by the town.

(Code 1977, § 93-14; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-14(c), (d), 4-23-2010)

Sec. 26-105. Construction drawings.

Construction drawings submitted for final stormwater management plan approval shall include, but are not limited to:

- (1) A vicinity map;
- (2) Existing and proposed topography and proposed drainage areas, including ar-

- eas necessary to determine downstream analysis for proposed stormwater management facilities;
- (3) Any proposed improvements including location of buildings or other structures, impervious surfaces, storm drainage facilities, and all grading;
 - (4) The location of existing and proposed structures and utilities;
 - (5) Any easements and rights-of-way;
 - (6) The delineation, if applicable, of the 100-year floodplain and any on-site wetlands;
 - (7) Structural and construction details including representative cross sections for all components of the proposed drainage system or systems, and stormwater management facilities;
 - (8) All necessary construction specifications;
 - (9) A sequence of construction;
 - (10) Data for total site area, disturbed area, new impervious area, and total impervious area;
 - (11) A table showing the environmental site design (ESD) and unified sizing criteria volumes required in the design manual;
 - (12) A table of materials to be used for stormwater management facility planting;
 - (13) All soil boring logs and locations;
 - (14) An inspection and maintenance schedule;
 - (15) Certification by the owner/developer that all stormwater management construction will be done according to this plan;
 - (16) An as-built certification signature block to be executed after project completion;

- (17) Any other information required by the town.

(Code 1977, § 93-14; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-14(e), 4-23-2010)

Sec. 26-106. Direction of runoff responsibility.

If a stormwater management plan involves direction of some or all runoff off of the site, it is the responsibility of the developer to obtain from adjacent property owners any easements or other necessary property interests concerning flowage of water. Approval of a stormwater management plan does not create or affect any right to direct runoff onto adjacent property without the property owner's permission.

(Code 1977, § 93-14; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-14(f), 4-23-2010)

Sec. 26-107. Preparation.

(a) The design of stormwater management plans shall be prepared by any individual whose qualifications are acceptable to the town and may require that the design be prepared by either a professional engineer, professional land surveyor, or landscape architect licensed in the state, as necessary to protect the public or the environment.

(b) If a stormwater best management practice (BMP) requires either a dam safety permit, from MDE or small pond approval from the local soil conservation district (SCD). The town shall require that the design be prepared by a professional engineer licensed in the state.

(Code 1977, § 93-15; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-15, 4-23-2010)

Secs. 26-108—26-125. Reserved.

DIVISION 3. PERMITS

Sec. 26-126. Permit requirement.

A grading or building permit may not be issued for any parcel or lot unless final erosion and sediment control and stormwater management plans have been approved or waived by the town as meeting all the requirements of this article. Where appropriate, a building permit may not be issued without:

- (1) Recorded easements for the stormwater management facility and easements to provide adequate access for inspection and maintenance from a public right-of-way;
 - (2) A recorded stormwater management maintenance agreement, as described in section 26-188;
 - (3) A performance bond as described in section 26-157.
- (Code 1977, § 93-16; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-16, 4-23-2010)

Sec. 26-127. Fee.

A nonrefundable permit fee will be collected at each phase of stormwater management plan submittal or application for waiver is submitted. The permit fee will provide for the cost of plan review, administration, and management of the permitting process, and inspection of all projects subject to this article. A permit fee schedule shall be established by the town based upon the relative complexity of the project and may be amended from time to time.

(Code 1977, § 93-17; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-17, 4-23-2010)

Sec. 26-128. Suspension and revocation.

Any grading or building permit issued by the town may be suspended or revoked after written notice is given to the permittee for any of the following reasons:

- (1) Any violations of the conditions of the stormwater management plan approval.

- (2) Changes in site runoff characteristics upon which an approval or waiver was granted.

- (3) Construction is not in accordance with the approved plan.

- (4) Noncompliance with correction notices or stop-work orders issued for the construction of the stormwater management facility.

- (5) An immediate danger exists in a downstream area in the opinion of the town.

(Code 1977, § 93-18; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-18, 4-23-2010)

Sec. 26-129. Conditions.

In granting an approval for any phase of site development, the town may impose such conditions that may be deemed necessary to ensure compliance with the provisions of this article and the preservation of the public health and safety.

(Code 1977, § 93-19; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-19, 4-23-2010)

Secs. 26-130—26-156. Reserved.

DIVISION 4. PERFORMANCE BOND AND INSPECTION

Sec. 26-157. Surety required.

The town shall require from the developer a surety or cash bond, irrevocable letter of credit, or other means of security acceptable to the town prior to the issuance of any building and/or grading permit for the construction of a development requiring a stormwater management facility. The amount of the security shall not be less than the total estimated construction cost of the stormwater management facility. The bond required in this section shall include provisions relative to forfeiture for failure to complete work specified in the approved stormwater manage-

ment plan, compliance with all of the provisions of this article, and other applicable laws and regulations, and any time limitations. The bond shall not be fully released without a final inspection of the completed work by the town and submission of "as-built" plans, and certification of completion by the town that the stormwater management facilities comply with the approved plan and the provisions of this article. A procedure may be used to release parts of the bond held by town after various stages of construction have been completed and accepted by the town. The procedures used for partially releasing performance bonds must be specified by town in writing prior to stormwater management plan approval.

(Code 1977, § 93-20; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-20, 4-23-2010)

Sec. 26-158. Inspection schedule and reports.

(a) The developer shall notify the town at least 48 hours before commencing any work in conjunction with the site development plan and the stormwater management plan and upon completion of the project. Upon completion of the project, a final inspection will be conducted.

(b) Inspections shall be made and documented for each environmental site design (ESD) planning technique and practice at the stages of construction specified in the design manual by the town. At a minimum, all environmental site design (ESD) and other nonstructural practices shall be inspected upon completion of final grading, the establishment of permanent stabilization, and before issuance of use and occupancy approval.

(c) Written inspection reports shall include:

- (1) The date and location of the inspection;
- (2) Whether construction was in compliance with the approved stormwater management plan;

(3) Any variations from the approved construction specifications; and

(4) Any violations that exist.

(d) The owner/developer and on-site personnel shall be notified in writing when violations are observed. Written notification shall describe the nature of the violation and the required corrective action.

(e) No work shall proceed on the next phase of development until the town inspects and approves the work previously completed and furnishes the developer with the results of the inspection reports as soon as possible after completion of each required inspection.

(Code 1977, § 93-21; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-21, 4-23-2010; Ord. No. 2016-03, 6-13-2016)

Sec. 26-159. Inspection requirements during construction.

(a) At a minimum, regular inspections shall be made and documented at the following specified stages of construction:

(1) For ponds:

- a. Upon completion of excavation to sub-foundation and, when required, installation of structural supports or reinforcement for structures, including, but not limited to:
 1. Core trenches for structural embankments;
 2. Inlet and outlet structures, anti-seep collars or diaphragms, and watertight connectors on pipes; and
 3. Trenches for enclosed storm drainage facilities;
- b. During placement of structural fill, concrete, and installation of piping and catchbasins;

- c. During backfill of foundations and trenches;
 - d. During embankment construction; and
 - e. Upon completion of final grading and establishment of permanent stabilization.
- (2) For wetlands:
- a. At the stages specified for pond construction in subsection (a)(1) of this section;
 - b. During and after wetland reservoir area planting; and
 - c. During the second growing season to verify a vegetation survival rate of at least 50 percent.
- (3) For infiltration trenches:
- a. During excavation to subgrade;
 - b. During placement and backfill of underdrain systems and observation wells;
 - c. During placement of geotextiles and all filter media;
 - d. During construction of appurtenant conveyance systems such as diversion structures, pre-filters and filters, inlets, outlets, and flow distribution structures; and
 - e. Upon completion of final grading and establishment of permanent stabilization.
- (4) For infiltration basins:
- a. At the stages specified for pond construction in subsection (a)(1) of this section; and
 - b. During placement and backfill of underdrain systems.
- (5) For filtering systems:
- a. During excavation to subgrade;
 - b. During placement and backfill of underdrain systems;
 - c. During placement of geotextiles and all filter media;
 - d. During construction of appurtenant conveyance systems such as flow diversion structures, pre-filters and filters, inlets, outlets, orifices, and flow distribution structures; and
 - e. Upon completion of final grading and establishment of permanent stabilization.
- (6) For open channel systems:
- a. During excavation to subgrade;
 - b. During placement and backfill of underdrain systems for dry swales;
 - c. During installation of diaphragms, check dams, or weirs; and
 - d. Upon completion of final grading and establishment of permanent stabilization.
- (7) For nonstructural practices:
- a. Upon completion of final grading;
 - b. The establishment of permanent stabilization; and
 - c. Before issuance of use and occupancy approval.
- (b) The town may, for enforcement purposes, use any one or a combination of the following actions:
- (1) A notice of violation shall be issued specifying the need for a violation to be corrected if stormwater management plan noncompliance is identified;
 - (2) A stop-work order shall be issued for the site by the town if a violation persists;

- (3) Bonds or securities may be withheld or the case may be referred for legal action if reasonable efforts to correct the violation have not been undertaken; or
 - (4) In addition to any other sanctions, a civil action or criminal prosecution may be brought against any person in violation of article II, stormwater management, or this article.
- (c) Any step in the enforcement process may be taken at any time, depending on the severity of the violation.

(d) Once construction is complete, as-built plan certification shall be submitted by either a professional engineer or professional land surveyor licensed in the state to ensure that environmental site design (ESD) planning techniques, treatment practices and structural stormwater management measures and conveyance systems comply with the specifications contained in the approved plans. At a minimum, as-built certification shall include a set of drawings comparing the approved stormwater management plan with what was constructed. The town may require additional information.

(e) The town shall submit notice of construction completion to the administration on a form supplied by the administration for each structural stormwater management and total impervious area treated by all environmental site design (ESD) techniques and practices shall be reported to the administration on a site-by-site basis. If best management practices (BMPs) requiring soil conservation district (SCD) approval are constructed, notice of construction completion shall also be submitted to the appropriate soil conservation district (SCD). (Code 1977, § 93-22; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2002-1, 1-28-2002; Ord. No. 2010-03, § 93-22, 4-23-2010)

Secs. 26-160—26-186. Reserved.

DIVISION 5. MAINTENANCE

Sec. 26-187. Maintenance inspection.

(a) The town shall ensure that preventative maintenance is performed by inspecting all stormwater management systems and structural stormwater management measures. Inspection shall occur during the first year of operation and at least once every three years thereafter. In addition, a maintenance agreement between the owner and town shall be executed for privately owned stormwater management systems as described in section 26-188.

(b) Inspection reports shall be maintained by the town for all environmental site design (ESD) treatment systems and structural stormwater management measures.

(c) Inspection reports for environmental site design (ESD) treatment systems and structural stormwater management measures shall include the following:

- (1) The date of inspection;
- (2) Name of inspector;
- (3) An assessment of the quality of the stormwater system related to environmental site design (ESD) treatment practice efficiency and the control of runoff to the maximum extent practicable (MEP);
- (4) The condition of:
 - a. Vegetation or filter media;
 - b. Fences or other safety devices;
 - c. Spillways, valves, or other control structures;
 - d. Embankments, slopes, and safety benches;
 - e. Reservoir or treatment areas;
 - f. Inlet and outlet channels or structures;
 - g. Underground drainage;
 - h. Sediment and debris accumulation in storage and forebay areas;

- i. Any nonstructural practices to the extent practicable; and
- j. Any other item that could affect the proper function of the stormwater management system;

(5) Description of needed maintenance.

(d) After notification is provided to the owner of any deficiencies discovered from an inspection of a stormwater management system, the owner shall have 30 days or other time frame mutually agreed to between the town and the owner to correct the deficiencies. The town shall then conduct a subsequent inspection to ensure completion of the repairs.

(e) If repairs are not undertaken or are not found to be done properly, then enforcement procedures following section 26-188(c) shall be followed by the town.

(f) If, after an inspection by the town, the condition of a stormwater management facility presents an immediate danger to the public health or safety, because of an unsafe condition or improper maintenance, the town shall take such action as may be necessary to protect the public and make the facility safe. Any cost incurred by the municipality shall be assessed against the owner(s), as provided in section 26-188(c).

(Code 1977, § 93-23; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-23, 4-23-2010)

Sec. 26-188. Maintenance agreement.

(a) Prior to the issuance of any building permit for which stormwater management is required, the town shall require the applicant or owner to execute an inspection and maintenance agreement binding on all subsequent owners of land served by a private stormwater management facility. Such agreement shall provide for access to the facility at reasonable times for regular inspections by the town or its

authorized representative to ensure that the facility is maintained in proper working condition to meet design standards.

(b) The agreement shall be recorded by the applicant and/or owner in the land records of the county.

(c) The agreement shall also provide that if, after notice by the town to correct a violation requiring maintenance work, satisfactory corrections are not made by the owner within a reasonable period of time (30 days' maximum), the town may perform all necessary work to place the facility in proper working condition. The owner of the facility shall be assessed the cost of the work and any penalties. This may be accomplished by placing a lien on the property, which may be placed on the tax bill and collected as ordinary taxes by the town and/or the county.

(Code 1977, § 93-24; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-24, 4-23-2010)

Sec. 26-189. Maintenance responsibility.

(a) The owner of the property on which work has been done pursuant to this article for private stormwater management facilities, or any other person or agent in control of such property, shall maintain in good condition and promptly repair and restore all grade surfaces, walls, drains, dams and structures, vegetation, erosion and sediment control measures, and other protective devices. Such repairs or restoration and maintenance shall be in accordance with previously approved or newly submitted plans.

(b) A maintenance schedule shall be developed for the life of any structural stormwater management facility or system of environmental site design (ESD) practices and shall state the maintenance to be completed, the time period for completion, and who shall perform the maintenance. This maintenance schedule shall be printed on the approved stormwater management plan.

(Code 1977, § 93-25; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-25, 4-23-2010)

Secs. 26-190—26-216. Reserved.**DIVISION 6. APPEALS, GRANDFATHERING
AND PENALTIES****Sec. 26-217. Appeals.**

Any person aggrieved by the action of any official charged with the enforcement of this article, as the result of the disapproval of a properly filed application for a permit, issuance of a written notice of violation, or an alleged failure to properly enforce the article in regard to a specific application, shall have the right to appeal the action to the Mayor and Council. The appeal shall be filed in writing within 30 days of the date of official transmittal of the final decision or determination to the applicant, shall state clearly the grounds on which the appeal is based, and shall be processed in the manner prescribed for hearing appeals before the board of appeals.

(Code 1977, § 93-26; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-26, 4-23-2010)

Sec. 26-218. Violations and penalties.

Any person convicted of violating the provisions of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be subject to a fine of not more than \$5,000.00 or imprisonment not exceeding one year or both, for each violation, with costs imposed in the discretion of the court not to exceed \$50,000.00. Each day that a violation continues shall be a separate offense. In addition, the town may institute injunctive, mandamus or other appropriate action or proceedings of law to correct violations of this article. Any court of competent jurisdiction shall have the right to issue temporary or permanent restraining orders, injunctions or mandamus, or other appropriate forms of relief.

(Code 1977, § 93-27; Ord. No. 1986-3, 10-6-1986; Ord. No. 2001-6, 8-13-2001; Ord. No. 2010-03, § 93-27, 4-23-2010)

Sec. 26-219. Grandfathering provisions.

(a) For purposes of this section, the following words, terms and phrases shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Administrative waiver.

- (1) The term "administrative waiver" means a decision by the town pursuant to this article to allow the construction of a development to be governed by the town's stormwater management ordinance in effect as of May 4, 2009.
- (2) The term "administrative waiver" is distinct from a waiver granted pursuant to section 26-50.

Approval.

- (1) The term "approval" means a documented action by the town following a review to determine and acknowledge the sufficiency of submitted material to meet the requirements of a specified stage in a local development review process.
- (2) The term "approval" does not mean an acknowledgement by the town that submitted material has been received for review.

Final project approval.

- (1) The term "final project approval" means approval of the final stormwater management plan and erosion and sediment control plan required to construct a project's stormwater management facilities.
- (2) The term "final project approval" also includes securing bonding or financing for final development plans if either is required as a prerequisite for approval.

Preliminary project approval means an approval as part of the town's development or planning review process that includes, at a minimum:

- (1) The number of planned dwelling units or lots;
- (2) The proposed project density;
- (3) The proposed size and location of all land uses for the project;
- (4) A plan that identifies:
 - a. The proposed drainage patterns;
 - b. The location of all points of discharge from the site; and
 - c. The type, location, and size of all stormwater management measures based on site-specific stormwater management requirement computations; and
- (5) Any other information required by the town including, but not limited to:
 - a. The proposed alignment, location, and construction type and standard for all roads, accessways, and areas of vehicular traffic;
 - b. A demonstration that the methods by which the development will be supplied with water and wastewater service are adequate; and
 - c. The size, type, and general location of all proposed wastewater and water system infrastructure.

(b) The town may grant an administrative waiver to a development that received a preliminary project approved prior to May 4, 2010. Administrative waivers expire according to subsection (c) of this section and may be extended according to subsection (d) of this section.

(c) Expiration of administrative waivers.

- (1) Except as provided for in subsection (d) of this section, an administrative waiver shall expire on:
 - a. May 4, 2013, if the development does not receive final project approval prior to that date; or
 - b. May 4, 2017, if the development receives final project approval prior to May 4, 2013.
- (2) All construction authorized pursuant to an administrative waiver must be completed by May 4, 2017 or, if the waiver is extended as provided in subsection (d) of this section, by the expiration date of the waiver extension.

(d) Extension of administrative waivers.

- (1) Except as provided in subsection (d)(2) of this section, an administrative waiver shall not be extended.
- (2) An administrative waiver may only be extended if, by May 4, 2010, the development:
 - a. Has received a preliminary project approval; and
 - b. Was subject to a development rights and responsibilities agreement, a tax increment financing approval, or an annexation agreement.
- (3) Administrative waivers extended according to subsection (d)(2) of this section shall expire when the development rights and responsibilities agreement, a tax increment financing approval, or the annexation agreement expires.

(Ord. No. 2010-03, § 93-30, 4-26-2010)

Secs. 26-220—26-246. Reserved.

ARTICLE IV. DRAINAGE DITCHES

Sec. 26-247. Purpose; responsibility.

(a) The purpose of this article is to protect the public health, safety and welfare of the town, allowing the town to inspect and maintain drainage ditches in the town and prohibiting persons from placing materials in drainage ditches.

(b) The town has no legal responsibility to maintain drainage ditches on private property, which responsibility belongs to the property owner.

(c) The purpose of this article is to permit (not require) the town to inspect and maintain drainage ditches.

(Code 1977, § 44-1; Ord. No. 93-1, 1-25-1993)

Sec. 26-248. Violations and penalties.

Any person who shall violate any provision of this article shall be guilty of a municipal infraction and shall be fined the sum of \$100.00 for any single initial violation and the sum of \$200.00 for each repeat or continuing violation.

(Code 1977, § 44-4; Ord. No. 93-1, 1-25-1993)

Sec. 26-249. Right of entry.

The town is hereby authorized to make inspections of and to maintain drainage ditches in the town. The town is authorized to enter, at a reasonable hour, all lands in the town for the purpose of inspecting and maintaining drainage ditches. All owners of land in the town shall give the town free access for the purpose of inspecting and maintaining drainage ditches.

(Code 1977, § 44-2; Ord. No. 93-1, 1-25-1993)

Sec. 26-250. Prohibited acts.

(a) It shall be unlawful for any person to place any materials in a drainage ditch in the town which hinders drainage.

(b) It shall be unlawful for any person to discharge water from swimming pools into the drainage system of the town. Said drainage

system shall include all stormwater drains, stormwater management ponds, drainage ditches and swales. The discharge of pollutants to the municipal drainage system is also prohibited.

(Code 1977, § 44-3; Ord. No. 93-1, 1-25-1993; Ord. No. 2010-06, 6-28-2010)

Secs. 26-251—26-259. Reserved.

ARTICLE V. ESTABLISHMENT OF STORMWATER UTILITY DEPARTMENT AND A STORMWATER MANAGEMENT UTILITY FEE SYSTEM

Sec. 26-260. Findings.

(a) The town maintains a system of storm and surface water management facilities including, but not limited to, inlets, conduits, manholes, channels, ditches, drainage easements, retention and detention basins, infiltration facilities, and other components as well as natural waterways.

(b) The stormwater system in the town needs to be upgraded, improved and regularly maintained.

(c) Water quality is degrading due to erosion and the discharge of nutrients, metals, oil, grease, toxic materials and other substances into and through the stormwater system.

(d) The public health safety and welfare is adversely affected by poor ambient water quality and extreme flooding that results from inadequate management of both the quality and quantity of stormwater.

(e) All real property in the town uses and benefits from the maintenance of the stormwater system.

(f) The extent of the use of the stormwater system by each property is dependent on factors that influence runoff, including land use and the amount of impervious surface on the property.

(g) The costs of improving, maintaining, operating and monitoring the stormwater system should be allocated, to the extent practicable, to all property owners based on the impact of runoff from the impervious areas of their property on the stormwater management system.

(h) Management of the stormwater system to protect the public health, safety and welfare requires the creation of a stormwater utility department to monitor, maintain, improve and oversee the operation of the stormwater utility system and further requires that adequate revenues be generated to provide funding for the operation, improvement, maintenance and monitoring of the stormwater utility system. Therefore it is in the interest of the public to finance stormwater management adequately with a user charge system that is reasonable and equitable so that each user of the system pays to the extent to which each user contributes to the need for it. (Ord. No. 2013-01, 1-28-2013)

Sec. 26-261. Authority.

(a) Authority for the creation of a stormwater utility department is conferred on the mayor and council by the town Charter Section C5-1(16).

(b) Authority for the adoption of a system of charges and fees to fund the implementation of stormwater management programs is conferred on the mayor and council by Ann. Code of Md., environmental article, § 4-204(d), as amended. (Ord. No. 2013-01, 1-28-2013)

Sec. 26-262. Creation of stormwater utility department.

A stormwater utility department is hereby established for the purpose of monitoring, maintaining, improving and overseeing the operation of the stormwater utility system in the Town of Berlin. The stormwater utility department shall perform its functions under the direction and supervision of the water resources department and the town administrator. (Ord. No. 2013-01, 1-28-2013)

Sec. 26-263. Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings indicated:

- (1) Equivalent residential unit (ERU) rate means the stormwater management fee charged on an equivalent residential unit (ERU). The annual (fixed year) stormwater management fee for single-family residential property in the town equals the ERU rate.
- (2) Equivalent residential unit (ERU) means the median impervious surface area associated with a single-family residential property in the town.
- (3) Town administrator means the town administrator for the Town of Berlin, Maryland or his or her designee.
- (4) Fee or stormwater management fee means the charge established under this chapter and levied on owners of parcels or pieces of real property to fund the costs of stormwater management and of operating, maintaining and improving the stormwater system in the town.
- (5) Fiscal year means July 1 of a calendar year to June 30 of the next calendar year, both inclusive.
- (6) Impervious surface area means the number of square feet of horizontal surface covered by buildings and other impervious surfaces. All building measurements shall be made between exterior faces of walls, foundations, columns or other means of support or enclosure.
- (7) Impervious surface means a surface area which is compacted or covered with material that is resistant to infiltration by water, including, but not limited to, most conventionally surfaced streets, roofs, sidewalks, patios, driveways, parking lots, swimming pools and any other oiled,

graveled, graded, compacted, or other surface which impedes the natural infiltration of surface water.

- (8) Non-residential property means property other than single-family residential property. Such property shall include, but not be limited to, multi-family dwellings, commercial property, industrial property, parking lots, hospitals, schools, recreational and cultural facilities, hotels, offices and churches.
- (9) Property owner means the property owner of record as listed in the state assessment roll. A property owner includes any individual, corporation, firm, partnership, or groups of individuals acting as a unit, and any trustee, receiver or personal representative.
- (10) Single-family residential property means a property which serves the primary purpose, or is zoned to provide the primary purpose, of providing a permanent dwelling unit and which is classified as residential in the state assessment rolls. Townhouses are included in this definition.
- (11) Stormwater management fund means the fund created by this chapter to operate, maintain, and improve the town's stormwater system.
- (12) Stormwater management means the planning, design, construction, regulation, improvement, repair, maintenance and operation of facilities and programs relating to water, flood plains, flood control, grading, erosion, tree conservation and sediment control.
- (13) Stormwater system means the system or network of storm and surface water management facilities including but not limited to inlets, conduits, manholes, channels, ditches, drainage easements,

retention and detention basins, infiltration facilities, and other components as well as all natural waterways.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-264. Establishment of stormwater management fund.

(a) The stormwater management program is established and the stormwater system is provided to protect the waterways and land in the town by controlling flooding and to protect the natural environment. The costs of designing, developing, improving, operating, maintaining, and monitoring the stormwater system required in the town should, therefore, be allocated, to the extent practicable, to all property owners based on their impact on the stormwater system. In order to provide a revenue to fund those costs and to fairly allocate those costs, a stormwater management fund ("the fund") is established.

(b) All revenues collected from the stormwater management fee and from grants, permit fees and other charges collected under chapter 26, stormwater management, shall be deposited to the fund. The council may make additional appropriations to the fund. All disbursements from the fund shall be for the purposes of the fund as set forth in section 26-265.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-265. Purposes of the fund.

The fund shall be used for the following purposes:

- (1) The acquisition by gift, purchase, or condemnation of real and personal property, and interests therein, necessary to construct, operate, and maintain stormwater control facilities.
- (2) All costs of administration and implementation of the stormwater management program, including the establishment of reasonable operating and capital re-

serves to meet unanticipated or emergency stormwater management requirements.

- (3) Engineering and design, debt service and related financing expenses, construction costs for new facilities, and enlargement or improvement of existing facilities.
- (4) Operation and maintenance of the stormwater system.
- (5) Monitoring, surveillance, and inspection of stormwater control devices.
- (6) Water quality monitoring and water quality programs.
- (7) Retrofitting developed areas for pollution control.
- (8) Inspection and enforcement activities.
- (9) Billing and administrative costs.
- (10) Other activities which are reasonably required.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-266. Stormwater management fee.

An annual service charge is imposed upon all real property in the town, as of July 1 billing of each fiscal year, and shall be billed monthly, beginning July 1, 2013, to fund stormwater management programs. This service charge shall be known as the stormwater management fee ("fee"). Any real property annexed into the town after July 1 may be subject to a partial year charge. The fee is based on: (1) the extent to which each property creates a need for the stormwater management program; (2) the amount of impervious area on each property; and (3) the cost of implementing a stormwater management program.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-267. Classification of property for purposes of determination of the stormwater management fee.

(a) For purposes of determining the stormwater management fee, all properties in the town are classified into one of the following classes:

- (1) Single-family residential property; or
- (2) Non-residential property.

(b) Single-family residential fee. The council finds that the intensity of development of most parcels of real property in the town classified as single-family residential is similar and that it would be excessively and unnecessarily expensive to determine precisely the square footage of the improvements (such as buildings, structures, and other impervious area) on each such parcel. Therefore, all single-family residential properties in the town shall be charged a flat stormwater management fee, equal to the ERU rate, regardless of the size of the parcel or the improvements.

(c) Non-residential property fee. The fee for non-residential property in the town shall be the ERU rate multiplied by the numerical factor obtained by dividing the total impervious surface area (square feet) of the property by one ERU unit. The impervious surface area for non-residential property is the square footage for the buildings and other improvements on the property as listed in the state assessment roll. Alternatively, at the sole discretion of the town administrator, the impervious surface area of non-residential property may be determined through site examination, mapping information, aerial photographs or other available information. The minimum stormwater management fee for non-residential property shall equal the ERU rate for single family residential property.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-268. ERU rate.

The council shall, by resolution, establish the annual (fiscal year) ERU rate for the stormwater

management fee. The base rate shall be calculated to insure adequate revenues to fund the costs of stormwater management and to provide for the operation, maintenance, and capital improvements of the stormwater system in the town.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-269. Charges for tax-exempt properties.

The council finds that all real property in the town contributes to runoff and either uses or benefits from the maintenance of the stormwater system. All real property in the town, including property that is exempt from property tax by Ann. Code of Md., tit. 7, as amended, shall be charged the fee.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-270. Assessment notices.

(a) The town administrator shall for the fiscal year beginning July 1, 2013 only, send assessment notices for the fee to property owners of non-residential property prior to the billing for the fee.

(b) The notice shall include the following information:

- (1) The classification of the property for purposes of determining the fee;
- (2) For property classified as non-residential property:
 - a. The impervious surface area of the property; and
 - b. The method by which the impervious surface area of the property was determined; that is, whether the computation of the impervious surface area of the property is based on information in the state assessment roll, site examination, mapping information, aerial photographs, or other available information.

(3) The amount of the ERU rate (i.e., the single-family residential fee) and, for non-residential property, the number of ERU units on the property. If the number of units is a fraction, it shall be rounded to the next highest whole number.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-271. When stormwater management fee payable; interest and penalties; lien on real property.

(a) The fee that is due on a monthly basis must be paid within 30 days after the bill is mailed or issued to the property owner and is overdue after that date. An overdue fee bears interest and penalties at the rate of 1.5% for each month or fraction of a month that the fee is overdue.

(b) The fee, including interest and penalties, when overdue is a lien on real property and may be collected in the same manner as delinquent real property taxes or by a suit against the property owner.

(Ord. No. 2013-01, 1-28-2013)

Sec. 26-272. Requests for correction of the stormwater management fee.

(a) A property owner may request correction of the fee by submitting the request in writing to the town administrator after the date the assessment notice or the bill is mailed or issued to the property owner. Grounds for correction of the fee include:

- (1) Incorrect classification of the property for purposes of determining the fee;
- (2) Errors in the square footage of the impervious surface area of the property;
- (3) Mathematical errors in calculating the fee to be applied to the property; and
- (4) Errors in the identification of the property owner of a property subject to the fee.

(b) The town administrator shall make a determination within 30 days after receipt of the property owner's completed written request for correction of the fee. The town administrator's decision on a request for correction of the fee shall be final.

(c) A property owner must comply with all rules and procedures adopted by the town when submitting a request for correction of the fee and must provide all information necessary for the town administrator to make a determination on a request for correction of the fee. If a property owner alleges an error under section 26-272(a)(2), then the request for correction must include a certification by a registered engineer or professional land surveyor of the impervious surface area of the property. Failure to comply with the provisions of this subsection shall be grounds for denial of the request. (Ord. No. 2013-01, 1-28-2013)

Sec. 26-273. Fee credit policy.

Definitions:

"Stormwater management system" or "system" means the existing stormwater management of the town and all improvements thereto which by this chapter are constituted as the property and responsibility of the town or private owner, to be operated as a special revenue fund to, among other things, conserve water, control discharges necessitated by rainfall events, incorporate methods to collect, convey, store, absorb, inhibit, treat, use or reuse water to prevent or reduce flooding, over-drainage, environmental degradation and water pollution or otherwise affect the quality and quantity of discharge from such system.

(a) *Credit concept.* Stormwater management utility fees calculated on the basis of impervious surface cover may be adjusted through the use of credits when an additional investment is made to properly maintained on-site

stormwater management systems results in a reduced water quality and/or quantity impact on the public stormwater management system.

(b) *Credit eligibility.*

- (1) Only owners of property designated for non-residential, non-profit use under chapter XX of the Town of Berlin Code, are eligible for a credit. Previous payment of stormwater management waivers or monetary contributions in lieu of on-site stormwater controls does not confer eligibility to receive a credit. The construction of and dedication to the town of a stormwater management system does not confer eligibility to receive a credit.
- (2) The following stormwater management systems are eligible for a stormwater utility fee credit.
 - a. Structural stormwater management systems;
 - b. Environmental site design systems categorized by the design manual as alternative surfaces;
 - c. The following environmental site design systems categorized by the design manual as microscale practices: cisterns, rain barrels, submerged gravel wetlands, landscape infiltration, infiltration berms, dry wells, micro-bioretenion, rain gardens, swales;
 - d. Any other stormwater management system deemed eligible by the Town Administrator.
- (3) The following stormwater management systems are not eligible for a credit: disconnection of rooftop runoff, disconnection of non-rooftop runoff, sheet flow to conservation areas, and any other system determined ineligible by the Town Administrator. Any pre-existing improvements, retrofits, upgrades of any

stormwater management system dated prior to the effective date of this fee credit policy.

- (4) Structural stormwater management systems that are eligible for a credit are subject to routine structural inspections and maintenance.
- (5) A property owner that provides only aesthetic maintenance of a stormwater management system is not eligible for a credit. Aesthetic maintenance includes activities that are not essential to the proper operation or function of the system or are considered part of routine property maintenance. Examples of aesthetic maintenance include, but are not limited to, routine trash or leaf removal, mowing, roof gutter cleaning, replacement plantings and enhanced landscaping.
- (6) Only stormwater management systems that are certified and functioning as originally designed are eligible for a credit. Functioning as originally designed means that the system is functioning in accordance with the original design specifications, regardless of whether it meets the standards established in the most recent version of the Maryland Stormwater Design Manual.
- (7) The town reserves the right to inspect any stormwater management system listed on a fee credit application on a routine or non-routine basis. If a system is found by the town inspector to be non-functioning, the town shall issue to the owner a report of needed maintenance. The inspection may also include direction to correct site conditions adversely affecting the system, such as uncontrolled soil erosion or contamination.
- (8) The town may revoke a previously approved fee credit at any time for failure to properly maintain a stormwater manage-

ment system, or for unapproved changes made to the system, or for changed site conditions that adversely impact the system. The owner is responsible for correcting problems at his own expense. Where a stormwater management system ceases to function due to the owner's failure to provide proper maintenance, the system will be ineligible for a fee credit for a period of two years after the date that the system is restored to functioning condition.

- (9) Any approved credit will be applied only to bills for the owner of the stormwater management system. Credit may be given to a single owner for impervious surface areas on multiple parcels that drain to a system on a separate parcel, provided all parcels are owned by the same entity as the system itself.

(c) *Credit application requirements and certification reports.*

- (1) To apply for a stormwater management utility credit, the owner must submit, at his own expense, the following information for the approval of the Town Administrator:
 - a. Completed stormwater management utility fee - private system credit application form supplied by the Town Administrator and application fee;
 - b. Description of the type of system(s), including water quality control and/or water quantity control design criteria and performance standard, and year built;
 - c. Drainage area map for the system showing the boundaries and acreages for impervious areas that are treated in the system;
 - d. As-built engineering plans for the system. Stormwater management systems are not eligible for fee cred-

its until the as-built plans have been accepted by the Town Administrator. As-built engineering plans shall be prepared by a Maryland Licensed Professional Engineer or Registered Land Surveyor. For stormwater management systems subject to Maryland Pond Code 378 requirements, confirmation of as-built acceptance by the Worcester Soil Conservation Service must be obtained and provided to the town. If as-built plans do not exist for a system, the applicant must develop and submit these for review and acceptance to qualify for the credit;

- e. A narrative of the known maintenance history of the system, including routine maintenance and significant structural maintenance and repair;
- f. Information on any public funds used to repair, upgrade or retrofit the system, including the amount and the date the repair, upgrade or retrofit was made;
- g. Completed calculation sheet, on a form provided by the Town Administrator, to determine the monetary amount of the claimed credit;
- h. Initial certification report. An initial certification report shall be prepared by a Maryland Professional Engineer or Registered Land Surveyor.
 - 1. Initial certification shall include an inspection report pursuant to Article II, Division 5.D. of these Regulations, or other format approved by the Town Administrator. The report must certify that the stormwater management system is func-

tioning as originally designed, is operational, and has been adequately maintained.

- 2. The initial certification report shall be signed and sealed by the responsible Professional Engineer or Registered Land Surveyor. The certification inspection shall not be more than one year old at time of application.

- (2) *Credit recertification for continued credit.* In order to remain eligible for a credit, a property owner must submit to the town, every three years or more frequent if required by applicable regulations and at his own expense, a private stormwater management system credit recertification application and report for approval by the Town Administrator.

- a. The recertification report shall include photographs of each stormwater management system listed on the recertification form, a description of maintenance performed since the last recertification request, and a copy of any maintenance records or invoices. The owner shall certify that the system(s) continues to be operational and has been adequately maintained.
- b. The recertification application shall include an inspection report pursuant to Article II, Division 5.D. of these Regulations, or other format approved by the Town Administrator. The recertification inspection shall be performed by a Professional Engineer, under the guidance of a Professional Engineer, or by a person approved in accordance with Article II, Division 5.D. of these Regulations.

- c. The report shall include information on any public funds used to upgrade or retrofit the system, including the amount and the date the upgrade or retrofit was made.
- (3) Any maintenance or functional deficiencies must be remedied at the owner's expense before the system may qualify or be recertified for a stormwater management utility fee credit. In addition, maintenance or safety deficiencies will be addressed by the Town Administrator in accordance with terms of the system's stormwater management easement and maintenance agreement.
 - (d) *Credits for private stormwater management retrofits under cost-share program.*
 - (1) The town, at its sole discretion, may consider sharing the retrofit construction costs, by paying the lesser of 50 percent of the cost of the improvement or \$5,000.00 for a private stormwater management system that has been identified as a priority stormwater improvement in a town watershed study, or if the Town Administrator determines the retrofit will make a significant improvement to meeting current water quality and/or quantity controls for the watershed. Any privately owned system that has been retrofitted to meet current stormwater standards using public funding shall be eligible for a subsequent stormwater management utility fee credit only in accordance with the following:
 - a. The retrofit project must be approved by the Town Administrator for the cost-share program;
 - b. The construction of the retrofit must be completed to the satisfaction of the Town Administrator and all town permits for the retrofit must be released at least six months prior to receiving credit;
- c. The stormwater management system's ownership and structural and aesthetic maintenance must remain the responsibility of the private owner;
 - d. If the system was functioning as originally designed prior to the retrofit, the owner is still eligible for a credit based on Article IV, Division 3(E)(2) of these Regulations, previous standards credit. After the retrofit, the owner shall be eligible for a credit based on Article IV, Division 3(E)(3) of these Regulations, current standards credit, once the cumulative difference between the credit provided in previous standards credit and current standards credit (i.e., the difference between credit provided in Article IV, Division 3(E)(2) and Article IV, Division 3(E)(3) of these Regulations) equals or exceeds the Town's investment in the retrofit.
 - e. All necessary approvals and permits must be obtained for retrofits before commencing disturbance or construction.
- (2) Nothing in this article shall prohibit a property owner from upgrading or retrofitting a practice at his/her expense in accordance with the provisions of these regulations to qualify for credit, or to qualify for a higher credit.
- (e) *Credit amounts.*
 - (1) The credit amount is calculated as a reduction in site impervious surface area. The credit is prorated based on the amount of impervious surface area located on the property draining to the stormwater management practice, and not the total amount of impervious surface cover on the site, and may also be prorated based on the percentage of

stormwater management treatment volume provided in a practice as compared to the target treatment standard.

- (2) *Previous standards credit.* A stormwater management practice that is certified as functioning as originally designed, but does not meet the standards established in the most recent version of the Maryland Stormwater Design Manual, may be modified to make the contributing impervious surface area eligible for a maximum cumulative credit of 20 percent against the stormwater management utility fee. All proposed modifications shall be in accordance with the most recent version of the Maryland Stormwater Design Manual. Credits are allocated as follows:

- a. A maximum of ten percent credit is provided if the practice provides stormwater quality control.
- b. A maximum of ten percent credit is provided if the practice provides stormwater quantity control.

- (3) *Current standards credit.* Current standards reflect a project that is either installed and functioning as designed or obtained final plan approval prior to May 4, 2013. A stormwater management practice that is certified as functioning as originally designed, and meets the standards established in the most recent version of the Maryland Stormwater Design Manual, may be enhanced to make the contributing impervious surface area eligible for a maximum cumulative credit of 50 percent against the stormwater management utility fee. Credits are allocated as follows:

- a. A maximum of 25 percent credit is provided if the system provides stormwater quality control for water quality volume (WQv).

- b. A maximum of 25 percent credit is provided if the system provides stormwater quantity control for channel protection storage volume (CPv).
- c. A maximum of ten percent credit is provided if the system provides only stormwater control for recharge volume (REv), and is a structural stormwater management system.

- (4) Where an eligible stormwater management system meets the standards established in the most recent version of the Maryland Stormwater Design Manual for quality, but not quantity, or vice versa, it is acceptable to combine (2) and (3) above accordingly. For example, impervious surface area draining to a system that provides quality control in accordance with the Maryland Stormwater Design Manual, but provides quantity control under an older standard, would be eligible for a maximum of 35 percent credit (25 percent for quality plus 10% for quantity). However, the cumulative credit may not exceed 50 percent.

- (f) *Affirmative duty and timing.*

- (1) It is the sole responsibility of the property owner to apply for a credit.
- (2) A property owner may apply for a credit at any time in accordance with the following:
 - a. Credit applications must be submitted before March 1 and approved before May 1 to qualify for credit on the current year's bill. Any credit application approved on or after May 1 shall be applied to the following year's bill.
 - b. The stormwater management utility fee shall not be prorated for a credit approved by the town during

the billing year. Any approved credits will be applied to the next billing cycle.

(Ord. No. 2014-3, 7-14-2014)

Editor's note—The section above makes reference to parts of Regulations that are not set out herein, but which are on file with the Town of Berlin and available for inspection.

Chapter 27

RESERVED

Chapter 28

STREETS, SIDEWALKS AND CERTAIN OTHER PUBLIC PLACES*

Article I. In General

Secs. 28-1—28-18. Reserved.

Article II. Sidewalks

Division 1. Generally

Secs. 28-19—28-39. Reserved.

Division 2. Construction Standards

Sec. 28-40. Specifications.

Sec. 28-41. Establishment of grade.

Sec. 28-42. Inspections; violations and penalties.

Secs. 28-43—28-72. Reserved.

Division 3. Sidewalk Obstructions

Sec. 28-73. Obstructions prohibited; exceptions.

Sec. 28-74. Violations and penalties.

Secs. 28-75—28-91. Reserved.

Article III. Streets

Division 1. Generally

Secs. 28-92—28-110. Reserved.

Division 2. Water on Streets

Sec. 28-111. Prohibition.

Sec. 28-112. Violations and penalties.

Secs. 28-113—28-137. Reserved.

Article IV. Excavations

Sec. 28-138. Permit required.

Sec. 28-139. Violations and penalties.

Sec. 28-140. Bond required.

Sec. 28-141. Restoration to prior condition; time limit.

***Charter references**—Authority to regulate the use of sidewalks, § C5-1B(50); authority to remove obstructions and nuisances from streets, etc., § C5-1B(40); public ways and sidewalks, art. IX.

State law reference—General authority relative to streets, Md. Ann. Code art. 23A, § 2(b)(28).

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Sec. 28-142. Performance of work by town.
Sec. 28-143. Notice of violation.
Secs. 28-144—168. Reserved.

Article V. Construction and Maintenance of Sidewalks and Driveways

Sec. 28-169. Maintenance of sidewalks by property owners.
Sec. 28-170. Violations and penalties.
Sec. 28-171. Repairs ordered by town.
Sec. 28-172. New sidewalks for public safety.
Sec. 28-173. Enforcement procedures.
Sec. 28-174. Repairs requested by owner.
Sec. 28-175. Permit requirements.

ARTICLE I. IN GENERAL

Secs. 28-1—28-18. Reserved.

ARTICLE II. SIDEWALKS**DIVISION 1. GENERALLY**

Secs. 28-19—28-39. Reserved.

DIVISION 2. CONSTRUCTION STANDARDS**Sec. 28-40. Specifications.**

(a) Any walk which is tangent to the property of any person owning any property in the town on the streets now paved or hereafter paved shall conform to the standards set forth in section 8.08(C) and section 9, inclusive, of Design Parameters and Standard Specifications for Water, Sewer and Roadway Construction as originally adopted on January 28, 1991, or such other specifications as may be adopted by the Mayor and Council to supersede those standards.

(b) Generally, sidewalks constructed in areas where no sidewalk exists or has existed previously shall be a minimum of five feet in width having a one-fourth-inch expansion joint between curb and sidewalk, or sidewalks constructed having a grass strip no less than three feet in width between curb and sidewalk may be constructed no less than four feet in width.

(c) Sidewalks constructed to replace existing walks or to abut to existing walks shall conform to that existing width, but in no case shall the constructed width, excluding curb, be less than four feet in width where abutting or parcel to any public way.
(Code 1977, § 92-1; Ord. No. 8, 7-12-1909; Ord. No. 91-4, 7-22-1991; Ord. No. 1997-9, 6-30-1997)

Sec. 28-41. Establishment of grade.

All other standards governing expansion joints, material, thickness and grades shall remain the same for new construction and replacement sidewalks, those standards being more fully described in the aforementioned standards and specifications incorporated by reference herein. (Code 1977, § 92-2; Ord. No. 8, 7-12-1909; Ord. No. 91-4, 7-22-1991)

Sec. 28-42. Inspections; violations and penalties.

(a) Inspection and approval of all sidewalks, curb, gutter and curbcut installation shall be performed by an employee designated by the town administrator.

(b) Any violation of the provisions of this division shall be punishable, upon conviction, as a misdemeanor as provided in article II of chapter 1, general provisions.
(Code 1977, § 92-3; Ord. No. 8, 7-12-1909; Ord. No. 91-4, 7-22-1991)

Secs. 28-43—28-72. Reserved.

DIVISION 3. SIDEWALK OBSTRUCTIONS**Sec. 28-73. Obstructions prohibited; exceptions.**

(a) It shall be unlawful except with the permission of the mayor and council for the owner or occupant of any premises within the corporate limits of the town to place, erect or store, or to cause or permit to be placed, erected or stored on the sidewalk abutting his premises any articles, chattels, tables and chairs or merchandise of any type, except that this article shall not apply to placing or maintaining on said portion of the sidewalk any scales or weighing devices, stands for the use in selling newspapers or stone flower boxes. The mayor and council shall not permit any articles, chattels, tables and chairs or merchandise of any type to be placed on a sidewalk unless said obstructing

items comply with and meet the minimum sidewalk accessibility standards contained in the Maryland State Highway Administration's Accessibility Policy and Guidelines for Pedestrian Facilities Along State Highways, June 2010 Edition.

(b) Any sidewalk sign permitted to be placed in a commercial district pursuant to chapter 108, article X, section 108-901 of the town Code shall be exempt from the requirement of seeking permission of the mayor and council for the placement of said sidewalk sign; but shall comply with and meet the minimum sidewalk accessibility standards contained in the Maryland State Highway Administration's Accessibility Policy and Guidelines for Pedestrian Facilities Along State Highways, June 2010 Edition.
(Code 1977, § 92-6; Ord. No. 113, 8-10-1964; Ord. of 3-20-1978; Ord. No. 2013-4, 6-24-2013)

Sec. 28-74. Violations and penalties.

Any violation of the provisions of this division shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23 for each day said violation continues.
(Code 1977, § 92-7; Ord. No. 113, 8-10-1964; Ord. of 3-20-1978)

Secs. 28-75—28-91. Reserved.

ARTICLE III. STREETS

DIVISION 1. GENERALLY

Secs. 28-92—28-110. Reserved.

DIVISION 2. WATER ON STREETS

Sec. 28-111. Prohibition.

It shall be unlawful for any person to empty in any way greasy or filthy water of any description on the streets, alleys or lanes or into the sewer-pipes in the town.
(Code 1977, § 92-4; Ord. No. 20, 3-17-1913)

Sec. 28-112. Violations and penalties.

Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23.
(Code 1977, § 92-5; Ord. No. 20, 3-17-1913; Ord. of 3-20-1978)

Secs. 28-113—28-137. Reserved.

ARTICLE IV. EXCAVATIONS

Sec. 28-138. Permit required.

It shall be unlawful for any person, including but not limited to public utilities under franchises granted by the town, to excavate or install or change the location of any post, pole or anchor in any street, way, alley or sidewalk without first having obtained a permit therefor from the town administrator.
(Code 1977, § 92-8; Ord. No. 1976-2, 4-19-1976)

Sec. 28-139. Violations and penalties.

Any violation of the provisions of this article, after notification as set forth in section 28-143, shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23 for each day said violation continues.
(Code 1977, § 92-13; Ord. No. 1976-2, 4-19-1976)

Sec. 28-140. Bond required.

The town administrator, before issuing any such permit required under section 28-138, shall require the applicant for the permit to post a completion bond equivalent to the estimated cost of restoring the street, way, alley or sidewalk to its condition prior to the work performed under the permit. In no event shall such bond be less than \$25.00. The bond requirement as set forth in this section shall be waived only by the written consent of the mayor of the town.
(Code 1977, § 92-9; Ord. No. 1976-2, 4-19-1976)

**Sec. 28-141. Restoration to prior condition;
time limit.**

Upon the completion of all excavation for a sidewalk excavated pursuant to the permit issued hereunder, said sidewalk shall be restored to its condition prior to the work performed and upon inspection by the proper agent of the town, the bond may be returned to the applicant. In the event that said replacement and restoration is not completed within 15 days after completion of the work performed, then the town may perform such restoration and use the bond amount posted for the cost thereof.

(Code 1977, § 92-10; Ord. No. 1976-2, 4-19-1976)

Sec. 28-142. Performance of work by town.

Upon the completion of all excavation in any street, way or alley within the town, the town shall perform such work as is necessary to restore said street, way or alley to its condition prior to the work performed, and the bond posted pursuant to section 28-140 shall be used to pay for said restoration. Any amount of said bond remaining after said payment shall be forthwith returned to the applicant.

(Code 1977, § 92-11; Ord. No. 1976-2, 4-19-1976)

Sec. 28-143. Notice of violation.

Any person violating the provisions of this article shall be notified in writing by registered mail, return receipt requested, of said violation. Said notice shall describe the violation and notify the violator to correct same within five days or for cause shown, a greater length of time in which to correct said violation.

(Code 1977, § 92-12; Ord. No. 1976-2, 4-19-1976)

Secs. 28-144—168. Reserved.**ARTICLE V. CONSTRUCTION AND
MAINTENANCE OF SIDEWALKS AND
DRIVEWAYS****Sec. 28-169. Maintenance of sidewalks by property owners.**

It shall be the duty and obligation of the owner of a property abutting a sidewalk in a public way to maintain the abutting sidewalk, driveway, apron and sod in such a condition as to be safe for public use. This obligation includes the clearing of all growth of grass and weeds within the sidewalk and actual structural repair.

(Code 1977, § 92-14; Ord. No. 1994-10, 9-26-1994)

Sec. 28-170. Violations and penalties.

(a) Any person who shall violate any provisions of this article shall be guilty of a municipal infraction and shall be fined the sum of \$100.00 for any single initial violation and the sum of \$200.00 for each repeat or continuing violation.

(b) The provisions of article V of chapter 6, housing standards, relating to hearings shall be applicable to notices and orders issued under this article.

(Code 1977, § 92-20; Ord. No. 1994-10, 9-26-1994)

Sec. 28-171. Repairs ordered by town.

(a) Whenever it is brought to the attention of the code enforcement officer of the town that a sidewalk, driveway, apron or adjoining sod or a portion thereof abutting any property, private or public, may be in unsatisfactory condition, the code enforcement officer shall conduct an inspection to determine if the condition of that sidewalk, driveway, apron or sod presents a hazard to the public safety or an obstruction to public passage.

(b) If it is determined by the code enforcement officer that said sidewalk, driveway, apron or sod or any portion thereof is in an unsafe, dangerous or hazardous condition, he shall serve notice to the owner of the property abutting the sidewalk, driveway, apron or sod or portion thereof that is in an unsafe condition that such a condition exists. Such notice shall contain, at minimum, the following information:

- (1) A description of the unsafe, hazardous or dangerous condition found to exist, including, without limitation, a copy of the field inspection report.
- (2) A time limit specified for the correction of the hazardous condition, which shall be a minimum of 20 calendar days for the most dangerous conditions and a maximum of 60 days for any other conditions

deemed by the code enforcement officer to be not an immediate or extreme hazard to the safety of the public.

- (3) An explanation of the owner's right to appeal the citation to the housing board of review within ten calendar days from the date of the citation and the procedure for filing such an appeal.

(c) Such notice shall be served by hand delivery to the owner or his agent or by certified mail, return receipt requested, to the last known address of the property owner or agent. (Code 1977, § 92-15; Ord. No. 1994-10, 9-26-1994)

Sec. 28-172. New sidewalks for public safety.

(a) Whenever it is brought to the attention of the code enforcement officer of the town that property abutting on any public way in the town is in need of a sidewalk to protect the public health, safety and welfare of the town, the code enforcement officer shall conduct an inspection to determine if a sidewalk is necessary.

(b) If it is determined by the code enforcement officer that a sidewalk is necessary, he shall serve notice to the owner of the property that a sidewalk needs to be constructed. Such notice shall contain, at minimum, the following information:

- (1) A description of the area and location of the sidewalk.
- (2) A time limit specified for the construction of the sidewalk which shall be for a minimum of 120 days.
- (3) An explanation of the owner's right to appeal the decision to the housing board of review within ten calendar days from the date of the notice and the procedure for filing such an appeal.

(c) Such notice shall be served by hand delivery to the owner or his agent or by certified mail, return receipt requested, to the last known address of the property owner or his agent. (Code 1977, § 92-16; Ord. No. 1994-10, 9-26-1994)

Sec. 28-173. Enforcement procedures.

(a) In the event that a property owner has failed to correct the hazardous condition or to construct a sidewalk and failed to file an appeal with the housing board of review within the time limit specified in the notice, the code enforcement officer may order the construction of a sidewalk, repair or replacement of the hazardous sidewalk, driveway, apron or sod or portion thereof that is in an unsafe condition and shall proceed to obtain cost estimates for the work so ordered in the manner prescribed by the town's usual purchasing policy and practices.

(b) The code enforcement officer shall present the quoted prices to the town administrator for review within ten days of the expiration of the property owner's notice period. Cost estimates in excess of \$1,000.00 must be presented to the council in a regular meeting for approval before award of any contract, as specified in section C7-23 of the Town Charter. Contractor proposals with costs of less than \$1,000.00 may be accepted by the town administrator and the work may be ordered immediately. All contracting and service procurements are subject to the same rules and regulations as govern all other town activities, as specified in section C7-23 of the Charter.

(c) Upon receipt of a valid invoice from the contractor, and after having inspected the premises and verifying that the work is acceptable to the town, the code enforcement officer will present the invoice to the town administrator for payment to the contractor. Concurrent with the final payment to the contractor, 50 percent of the total expense incurred for the resulting construction, repair or replacement plus permit fees shall be billed to the owner in the same manner and

under the same collection procedures as are used for grass cutting and refuse collection on private property. The town shall absorb the remaining 50 percent of the total costs incurred (excluding permit fees).

(d) In the event that the charges incurred have not been paid by the beginning of the town's next regular fiscal year, those charges will be charged against the property and added to the taxes owed on that property for the next taxable levy year and shall constitute a lien on the property.

(Code 1977, § 92-17; Ord. No. 1994-10, 9-26-1994)

Sec. 28-174. Repairs requested by owner.

(a) Property owners who desire to repair or replace their own sidewalks or portion thereof may request the town's participation in the repair or replacement by either of the following means:

- (1) Secure contractor's services privately and submit paid invoices upon completion of the work, whereupon the town will reimburse the property owner for 50 percent of the total cost (excluding permit fees). Contract estimates must be approved by the town prior to the commencement of work. The town reserves the right to refuse payment of its 50 percent of total costs if invoices are submitted for payment without such other prior approval.
- (2) Request that the town secure contractor's price quotations in the course of procuring similar services for the town itself, whereupon, the town will forward those estimates to the owner for review. Upon written acceptance of a proposal by the owner, the town will proceed with the necessary contract work and will bill the owner for 50 percent of the total costs plus permit fees.
- (3) Request that the town include the replacement or repair of his property's

sidewalk or portion thereof during the course of a town project currently planned or underway at the time of the request. In the event that an owner elects this option, it is specifically understood that the project work will be performed by the contractor chosen by the town for the ancillary project planned or underway and that the owner will not participate in the selection of that contractor. The town will, however, provide the owner electing this option with an estimate of the cost of his replacement or repair, based on the unit price quoted by the contractor performing the town's work. The town will bill the owner for 50 percent of the total costs plus permit fees associated with his property's sidewalk upon completion of the project.

(b) Subsection (a) of this section shall apply only if moneys are available in the town's budget.

(c) This section shall not be construed to include the construction of a new sidewalk at the request of an owner.

(Code 1977, § 92-18; Ord. No. 1994-10, 9-26-1994)

Sec. 28-175. Permit requirements.

Sidewalk construction, repair or replacement, whether ordered by the town or requested by the owner, is subject to all applicable permit requirements imposed by the town for excavation or construction.

(Code 1977, § 92-19; Ord. No. 1994-10, 9-26-1994)

Chapter 29

RESERVED

Chapter 30

UTILITIES

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UTILITIES

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- Sec. 30-275. Policy.
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- Sec. 30-277. Zones of protection.
- Sec. 30-278. Applicability.
- Sec. 30-279. Use regulations and restrictions.
- Sec. 30-280. Performance plan standards.

ARTICLE I. IN GENERAL**Secs. 30-1—30-18. Reserved.****ARTICLE II. SANITARY SEWER SYSTEM*****DIVISION 1. GENERALLY****Sec. 30-19. Purpose and policy; objectives; applicability.**

(a) This article sets forth uniform requirements for direct and indirect contributors into the wastewater collection and treatment system for the town and enables the town to comply with all applicable state and federal laws required by the Clean Water Act of 1977, 33 USC 1251 et seq. and the general pretreatment regulations (40 CFR 403), whether said contributors are located within the corporate limits or outside the town's jurisdiction.

(b) The objectives of this article are to:

- (1) Prevent the introduction of pollutants into the municipal wastewater system which will interfere with the operation of the collection or treatment system or contaminate the resulting sludge.
- (2) Prevent the introduction of pollutants into the municipal wastewater system which will pass through the system, inadequately treated, into receiving waters or the atmosphere or otherwise be incompatible with the system.
- (3) Improve the opportunity to recycle and reclaim wastewaters and sludges from the system.

***Charter reference**—Power to establish and operate sanitary sewer system, § C10-1 et seq.

State law references—Sanitary systems, Md. Environment Code Ann. § 9-101 et seq.; discharge permits, Md. Environment Code Ann. § 9-322 et seq.; prohibited discharges, Md. Environment Code Ann. § 9-322.

- (4) Provide for equitable distribution of the cost of the municipal wastewater system.

(c) This article provides for the regulation of direct and indirect contributors to the municipal wastewater system through the issuance of permits to certain nondomestic users and through enforcement of general requirements for the other users, authorizes monitoring and enforcement activities, requires user reporting, assumes that existing customers' capacity will not be preempted and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(d) This article shall apply to all users within the town and to persons outside the town who are, by contract or agreement with the town, users of the town's publicly owned treatment works. Except as otherwise provided herein, the Mayor and Council shall administer, implement and enforce the provisions of this article. Certain powers granted to or duties imposed upon the Mayor and Council may be delegated by the Mayor and Council to the sewer inspector. The powers of the sewer inspector shall include but not be limited to supervision of enforcement and carrying out the provisions of this article, subject at all times to instructions and directions of the Mayor and Council.

(e) No provision contained in this article shall be deemed to prevent any special agreement or arrangement between the town and any person whereby wastewater of unusual strength or characteristic may be accepted by the town for treatment which will not violate or cause the town and/or the user to violate federal or state pretreatment requirements or standards or to violate discharge standards and which will not be harmful to the system.

(Code 1977, § 86-1; Ord. No. 92-11, 9-14-1992)

Sec. 30-20. Definitions; word usage.

Definitions. The following words, terms and phrases, when used in this article, shall have the

meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Act or the act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC 1251 et seq.

Approval authority means the director in a national pollution discharge elimination system (NPDES) state with an approved state pretreatment program or the administrator of the U.S. Environmental Protection Agency (EPA) in a non-NPDES state or NPDES state without an approved state pretreatment program.

Authorized representative means:

- (1) A responsible corporate officer, such as a president, secretary, treasurer or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation, or the manager of one or more manufacturing, production or operation facilities employing more than 250 persons or having gross annual sales or expenditures exceeding \$25,000,000.00, if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.
- (2) A general partner or proprietor if the industrial user is a partnership or sole proprietorship, respectively.
- (3) A duly authorized representative of the individual designated in subsection (1) or (2) of this definition if:
 - a. The authorization is made in writing by the individual described in subsection (1) or (2) of this definition;
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager,

operator of a well or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

- c. The written authorization is submitted to the control authority.

- (4) If authorization under subsection (3) of this definition is no longer accurate because a different individual or position has responsibility, a new authorization must be submitted to the publicly owned treatment works prior to or together with any reports to be signed by an authorized representative.

Biochemical oxygen demand (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure, five days at 20 degrees Celsius, expressed in terms of weight and concentration (milligrams per liter (mg/l)).

Building sewer means a sewer conveying wastewater from the premises of a user to the connection with the publicly owned treatment works.

Bypass means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility.

Categorical standards means national categorical pretreatment standards or pretreatment standard.

Color means the optical density at the visual wave length of maximum absorption, relative to distilled water. 100 percent transmission is equivalent to 0.0 optical density.

Composite sample means the sample resulting from the combination of individual wastewater samples taken at selected intervals based on an increment of either flow or time.

Control authority refers to the Mayor and Council of the town or their duly appointed representatives.

Cooling water means the water discharged from any use, such as air conditioning, cooling or refrigeration, or to which the only pollutant added is heat.

Environmental protection agency or *EPA* means the United States Environmental Protection Agency, or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Grab sample means a sample which is taken from a wastestream on a one-time basis with no regard to the flow in the wastestream and without consideration of time.

Holding tank waste means any waste from holding tanks, such as vessels, chemical toilets, campers, trailers, septic tanks and vacuum-pump tank trucks.

Indirect discharge or *discharge* means the discharge or the introduction of nondomestic pollutants from any source into the publicly owned treatment works.

Industrial user means a source of indirect discharge which does not constitute a discharge of pollutants under regulations issued pursuant to Section 402 of the Act (33 USC 1342).

Instantaneous maximum allowable discharge limit means the maximum concentration (or loading) of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composite sample collected, independent of the industrial flow rate and the duration of the sampling event.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

- (1) Inhibits or disrupts the publicly owned treatment works, its treatment processes or operations or its sludge processes, use or disposal; and
- (2) Therefore is a cause of a violation of any requirement of the publicly owned treat-

ment works' national pollutant discharge elimination system (NPDES) permit (including an increase in the magnitude or duration of violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title II, more commonly referred to as the "Resource Conservation and Recovery Act" (RCRA) and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act and the Marine Protection, Research and Sanctuaries Act.

Maximum allowable composite concentration means the maximum concentration (or loading) of a pollutant allowed to be discharged determined from a composite sample.

Medical waste means isolation wastes, infectious agents, human blood and blood by-products, pathological wastes, sharps, body parts, fomites, etiologic agents, contaminated bedding and dialysis wastes.

National categorical pretreatment standard or *pretreatment standard* means any regulation containing pollutant discharge limits promulgated by the Federal Environmental Protection Agency (EPA) in accordance with Section 307(b) and (c) of the Act (33 USC 1347) which applies to a specific category of the industrial users.

National pollution discharge elimination system or *NPDES permit* means a permit issued pursuant to Section 402 of the Act (33 USC 1342).

National prohibitive discharge standard or *prohibitive discharge standard* means any regula-

tion developed under the authority of Section 307(b) of the Act and 40 CFR 403.5. These prohibitions appear in article II of this chapter.

New source means:

- (1) Any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:
 - a. The building, structure, facility or installation is constructed at a site at which no other source is located;
 - b. The building, structure, facility or installation totally replaces the process or production equipment that causes the discharge of pollutants at any existing source; or
 - c. The production or wastewater generating processes of the building, structure, facility or installation are substantially independent of an existing source at the same time. In determining whether these are substantially independent, factors, such as the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.
- (2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of subsection (1)(b) or (c) of this definition but otherwise alters, replaces or adds to existing process or production equipment.

- (3) Construction of a new source, as defined under this subsection, has commenced if the owner/operator has:

- a. Begun or caused to begin as part of a continuous on-site construction program any placement, assembly or installation of facilities or equipment; or significant site preparation work, including clearing, excavation or removal of existing buildings, structures or facilities which is necessary for the placement, assembly or installation of new-source facilities or equipment; or
- b. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss and contracts for feasibility, engineering and design studies do not constitute a contractual obligation under this subsection.

Oil and grease means a measure of biological lipids, mineral hydrocarbons and any other substance soluble in trichlorotrifluoroethane.

Pass-through means a discharge which exits the publicly owned treatment works into waters of the United States in quantities or concentrations which, along or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the publicly owned treatment works' national pollutant discharge elimination system (NPDES) permit (including an increase in the magnitude or duration of a violation).

Person means any individual, partnership, copartnership, firm, company, corporation, association, joint-stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns.

pH means the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in grams per liter of solution.

Pollutant means any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt and industrial, municipal and agricultural waste discharged into water.

Pollution means the manmade or man-induced alteration of the chemical, physical, biological and radiological integrity of water.

Pretreatment or treatment means the reduction of the amount of pollutants, the elimination of pollutants or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a publicly owned treatment works. The reduction or alteration can be obtained by physical, chemical or biological processes or process changes or other means, except as prohibited by 40 CFR 403.6(d).

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard imposed on an industrial user.

Publicly owned treatment works means a treatment works as defined by Section 212 of the Act (33 USC 1292) which is owned, in this instance, by the town. This definition includes any sewers that convey wastewater to the publicly owned treatment works treatment plant. For the purposes of this chapter, the term "publicly owned treatment works" shall also include any sewers that convey wastewaters to the publicly owned treatment works from persons outside the town who are, by contract or agreement with the town, users of the town's publicly owned treatment works.

Publicly owned treatment works treatment plant means that portion of the publicly owned treatment works designed to provide treatment to wastewater.

Residential user means a resident or dwelling or group of dwellings where all wastes are generated from a domestic source, including toilets, bathtubs, sinks and laundry and does not include any commercial, industrial or toxic wastes.

Septic tank waste or septage means any sewage from holding tanks, such as vessels, chemical toilets, campers, trailers and septic tanks.

Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. The term "severe property damage" does not mean economic loss caused by delays in production.

Sewage means human excrement and gray water (household showers, dishwashing operations, etc.).

Significant industrial user means any industrial user who:

- (1) Is subject to national categorical standards;
- (2) Discharges an average of 25,000 gallons per day or more of process wastewater (excluding sanitary, cooling and boiler blowdown wastewater);
- (3) Contributes a process wastestream that makes up five percent or more of the hydraulic or organic capacity of the publicly owned treatment works; or
- (4) Is found by the town, state or the Federal Environmental Protection Agency (EPA) to have significant impact, either singly or in combination with other contributing industries, to the publicly owned treatment works, the quality of the sludge,

the publicly owned treatment works' effluent quality or air emissions generated by the system.

Upon a finding that an industrial user meeting the above criteria of this definition has no reasonable potential for adversely affecting the publicly owned treatment works' operation or for violating any pretreatment standard or requirement, the town may at any time, on its own initiative or in response to a petition received from an industrial user and in accordance with 40 CFR 403.8(f)(6), determine that such industrial user is not a significant industrial user.

Slug load means any discharge at a flow rate or concentration which could cause a violation of the prohibited discharge standards in division 2 of this article or any discharge of a nonroutine, episodic nature, including but not limited to an accidental spill or a noncustomary batch discharge.

Standard industrial classification (SIC) means a classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget.

Standard methods means the latest edition, at the time of analysis, of Standard Methods for the Examination of Water and Wastewater, as prepared, approved and published jointly by the American Public Health Association, the American Water Works Association and the Water Pollution Control Federation.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Suspended solids means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids and which is removable by laboratory filtering.

Town means the Town of Berlin, Maryland, or the town council of Berlin, Maryland, and its authorized representatives.

Toxic pollutant means one of the 126 pollutants, or combination of those pollutants, listed as toxic in regulations promulgated by the Federal Environmental Protection Agency (EPA) under the provision of Section 307 of the Act (33 USC 1317).

User means any person who contributes, causes or permits the contribution of wastewater into the town's publicly owned treatment works.

Wastewater means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities and institutions, together with such other components as may be present, whether treated or untreated, which is contributed into or permitted to enter the publicly owned treatment works.

Waters of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.
(Code 1977, § 86-2; Ord. No. 92-11, 9-14-1992)

Sec. 30-21. Abbreviations.

The following abbreviations shall have the designated meanings:

BOD—Biochemical oxygen demand

CFR—Code of Federal Regulations

COD—Chemical oxygen demand

EPA—Environmental protection agency

l—Liter

mg—Milligrams

mg/l—Milligrams per liter

NPDES—National Pollutant Discharge Elimination System

POTW—Publicly owned treatment works

SIC—Standard Industrial Classification

SWDA—Solid Waste Disposal Act, 42 USC 6901 et seq.

USC—United States Code

TSS—Total suspended solids

TKS—Total Kjeldahl nitrogen
(Code 1977, § 86-3; Ord. No. 92-11, 9-14-1992)

Sec. 30-22. Violations and penalties.

(a) Any user who is found with gross negligence to have violated an order of the town council or who willfully fails to comply with any provision of this article, and the orders, rules, regulations and permits issued hereunder, shall be guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than \$1,000.00 or imprisoned for a period of not more than six months. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. If sampling indicates a violation of discharge limitations, each day thereafter constitutes a separate violation until resampling indicates compliance.

(b) In addition to the penalties provided herein, the town may recover reasonable attorneys' fees, court costs, court reporter's fees and other expenses of litigation by appropriate suit at law against the person found to have violated this article or the orders, rules, regulations and permits issued hereunder.

(Code 1977, § 86-35; Ord. No. 92-11, 9-14-1992)

Sec. 30-23. Falsifying information.

Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this chapter, or wastewater discharge permit, or who falsifies, tampers with or knowingly renders inaccurate any monitoring device or method required under this chapter shall, upon conviction,

be punished by a fine of not more than \$1,000.00 or by imprisonment for not more than six months, or by both.

(Code 1977, § 86-36; Ord. No. 92-11, 9-14-1992)

Secs. 30-24—30-44. Reserved.

DIVISION 2. REGULATIONS

Sec. 30-45. Plumbing codes.

All plumbing shall conform to the requirements of Worcester County and the plumbing regulations of the State of Maryland adopted by reference as the plumbing code and regulations for the town.

Sec. 30-46. Plumbing requirements.

The following requirements shall apply to plumbing activity in the town:

- (1) No building sewers or sewer hookups shall be constructed without first obtaining a plumbing permit from the Worcester County Sanitary Commission and a sewer permit from the Town of Berlin.
- (2) Application for a sewer permit shall be made on a form prescribed by the town. The town may require the submission of plans and specifications showing the proposed construction. Such application, after proper submittal, shall be reviewed and either approved or denied by the town within 30 days. Incomplete submittals will be returned to the applicant for completion.
- (3) The drainage piping of lots and buildings of separate ownership must be separate from that of other owners and shall be separately connected to the public sewer unless otherwise approved by the town.
- (4) The user shall install at his own expense such length or quantity of building sewer

as is necessary to meet the connection point with the public sewer as determined by the town. Construction shall be in accordance with the current edition of Design Parameters, Standard Specifications and Details for Installation of Water and Sewer Utilities and Road Construction Projects, adopted by the Mayor and Council which may be revised from time to time.

- (5) It shall be unlawful for any person to cut, break into, excavate or open any rights-of-way, streets, sidewalks or highways in the town, for the purpose of connecting a building drain to the public sewer without first obtaining permission from the proper authorities. In the case of state rights-of-way, permission shall be obtained from the state highway administration. In the case of county streets, permission shall be obtained from the county highway department. In the case of municipal streets, permission shall be obtained from the Mayor and Council. Permission shall be by written permit from the appropriate authority.

- (6) Privy vaults, septic tanks and cesspools.
- a. No privy vault, septic tank or cesspool for sewage shall hereafter be constructed in any part of the town where a public sewer is at all accessible nor shall it be lawful to continue a privy vault, septic tank or cesspool on any lot, piece or parcel of ground abutting on or contiguous to any public sewer within the town limits for a period longer than one year from the completion of the sewer system unless otherwise specified in the terms and conditions of an annexation agreement or resolution. Special arrangements for sewer hookups may be made in accordance with Md. Ann. Code art. 23A, § 19(o).

- b. No connection from any cesspool, septic tank or privy vault shall be made with any sewer nor, under such circumstances, shall any water closet or house drain empty into a cesspool, septic tank or privy vault. All discontinued privy vaults, septic tanks and open cesspools shall be cleaned or filled up within three months from the date of such discontinuance and in accordance with county standards and specifications.

- (7) The Mayor and Council or their duly authorized representatives shall have the right of entry in accordance with the Berlin Charter, article X, section C10-10, for access to any sewer or source of discharge contributing to the publicly owned treatment works upon private property to carry out the provisions of this chapter.

(Code 1977, § 86-4; Ord. No. 92-11, 9-14-1992)

Sec. 30-47. General discharge prohibitions.

(a) No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the publicly owned treatment works. These general prohibitions apply to all such users of a publicly owned treatment works whether or not the user is subject to national categorical pretreatment standards or any other national, state or local pretreatment standards or requirements. A use may not contribute the following substances to any publicly owned treatment works:

- (1) Pollutants which create a fire or explosion hazard in the publicly owned treatment works, including but not limited to wastestreams with a closed-cup flash point of less than 140 degrees Fahrenheit or 60 degrees Celsius using the test methods specified in 40 CFR 261.21.

- (2) Petroleum oil, nonbiodegradable cutting oil or products of mineral oil origin in amounts that will cause interference or pass-through.
- (3) Any pollutants which result in the presence of toxic gases, vapors or fumes within the publicly owned treatment works in a quantity that may cause acute worker health and safety problems.
- (4) Solid or viscous substances which may cause obstruction to the flow in a sewer or other interference with the operation of the wastewater treatment facilities, such as but not limited to grease, garbage with particles greater than one-half inch in any dimension, animal guts or tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, gas, tar, asphalt residues, residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes.
- (5) Any wastewater having a pH less than 6.5 or greater than 8.5, unless the publicly owned treatment works is specifically designed to accommodate such wastewater, or wastewater having any other corrosive property capable of causing damage or hazard to structures, equipment and/or personnel of the publicly owned treatment works.
- (6) Any wastewater containing pollutants in sufficient quantity, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters of the publicly owned treatment works or to exceed the limitation set forth in a categorical pretreatment standard. A toxic pollutant shall include but not be limited to any pollutant identified pursuant to Section 307(a) of the Act.
- (7) Any noxious or malodorous liquids, gases or solids which either singly or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.
- (8) Any substance which may cause the publicly owned treatment works' effluent or any other product of the publicly owned treatment works, such as residues, sludges or scums, to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case shall a substance discharged to the publicly owned treatment works cause the publicly owned treatment works to be in noncompliance with sludge use or disposal criteria; guidelines or regulations developed under Section 405 of the Act; any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or state criteria applicable to the sludge management method being used.
- (9) Any substance which will cause the publicly owned treatment works to violate its national pollutant discharge elimination system (NPDES) and/or state disposal system permit or the receiving water quality standards.
- (10) Any wastewater with objectionable color not removed in the treatment process, such as but not limited to dye wastes and vegetable tanning solutions.
- (11) Any wastewater having a temperature which will inhibit biological activity in the publicly owned treatment works treatment plant resulting in interference, but in no case wastewater with a tempera-

ture at the introduction into the publicly owned treatment works which exceeds 40 degrees Celsius (104 degrees Fahrenheit) unless the publicly owned treatment works treatment plant is designed to accommodate such temperature.

- (12) Any slug load, release rate of pollutants, or concentration of pollutants, including oxygen demanding pollutants, either singly or by interaction with other pollutants or wastestreams, which may cause interference with any wastewater treatment process, constitute a hazard to humans or animals, contaminate the sludge, pass through the treatment plant to receiving waters or could result in a violation of the town's national pollutant discharge elimination system (NPDES) permit.
- (13) Any trucked or hauled pollutants, except at discharge points designated by publicly owned treatment works.
- (14) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the town in compliance with applicable state or federal regulations.
- (15) Any wastewater which causes a hazard to human life or creates a public nuisance.
- (16) Stormwater, surface water, groundwater, artesian well water, roof runoff, sub-surface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water and unpolluted industrial wastewater, unless specifically authorized by the Mayor and Council.
- (17) Any sludges, screenings or other residues from the pretreatment of industrial wastes except as allowed by permit.
- (18) Any medical wastes, except as specifically authorized by the Mayor and Council in a wastewater discharge permit.
- (19) Any wastewater causing the treatment plant's effluent to fail a toxicity test.
- (20) Any wastes containing detergents, surface-active agents or other substances which may cause excessive foaming in the publicly owned treatment works.
- (21) Hazardous waste discharges as defined by 40 CFR 261.

(b) Bypassing pollutants which exceed pretreatment standards is prohibited.

(Code 1977, § 86-5; Ord. No. 92-11, 9-14-1992)

Sec. 30-48. Notification required.

All users of the publicly owned treatment works shall immediately notify the publicly owned treatment works of all discharges that could cause problems to the publicly owned treatment works, including slug loadings, accidental discharges or any substances capable of interference or pass-through.

(Code 1977, § 86-6; Ord. No. 92-11, 9-14-1992)

Sec. 30-49. Federal categorical pretreatment standards.

The national categorical pretreatment standards found at 40 CFR chapter I, subchapter N, parts 405 through 471, are hereby incorporated.

(Code 1977, § 86-7; Ord. No. 92-11, 9-14-1992)

Sec. 30-50. Specific pollutant limitations.

No person shall discharge wastewater containing in excess of the following:

- (1) 350 mg/l biochemical oxygen demand.
- (2) 350 mg/l suspended solids.
- (3) 100 mg/l grease and oil.
- (4) 50 mg/l TKN.
- (5) Ten mg/l total phosphate as P.

(Code 1977, § 86-8; Ord. No. 92-11, 9-14-1992)

Sec. 30-51. State requirements.

The state pretreatment standards and requirements found in COMAR, title 26, are hereby incorporated.

(Code 1977, § 86-9; Ord. No. 92-11, 9-14-1992)

Sec. 30-52. Town's right of revision.

The town reserves the right to establish by ordinance more stringent limitations or requirements on discharges to the wastewater disposal system if deemed necessary to comply with the objectives presented in section 30-19.

(Code 1977, § 86-10; Ord. No. 92-11, 9-14-1992)

Sec. 30-53. Dilution prohibited.

No user shall ever increase the use of water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the discharge limitations.

(Code 1977, § 86-11; Ord. No. 92-11, 9-14-1992)

Secs. 30-54—30-79. Reserved.**DIVISION 3. PRETREATMENT OF
WASTEWATER****Sec. 30-80. Pretreatment facilities.**

Users shall provide necessary wastewater treatment as required to comply with this chapter and shall achieve compliance with all categorical pretreatment standards, local limits and the prohibitions set out in division 2 of this article within the time limitations specified by the Federal Environmental Protection Agency (EPA), the state or the Mayor and Council, whichever is more stringent. Residential users shall be exempt from pretreatment requirements. Any facilities required to pretreat wastewater to a level acceptable to the town shall be provided, operated and maintained at the user's expense. Detailed plans showing the pretreatment facilities

and operating procedures shall be submitted to the town for review and shall be acceptable to the town before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an acceptable discharge to the town under the provisions of this article.

(Code 1977, § 86-12; Ord. No. 92-11, 9-14-1992)

Sec. 30-81. Additional pretreatment measures.

(a) Whenever deemed necessary, the town may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams and such other conditions as may be necessary to protect the publicly owned treatment works and determine the user's compliance with the requirements of this article.

(b) Each person discharging into the publicly owned treatment works greater than 25,000 gallons per day or greater than five percent of the average daily flow in the publicly owned treatment works, whichever is lesser, may be required, at the town's discretion, to install and maintain, on his property and at his expense, a suitable storage and flow control facility to ensure equalization of flow over a period of time determined by the town. The facility shall have a capacity approved by the town and shall be equipped with a discharge controller, the regulation of which shall be directed by the town. A wastewater discharge permit may be issued solely for flow equalization, or flow equalization provisions may be included in wastewater discharge permits.

(c) Grease, oil and sand interceptors shall be provided when, in the opinion of the town, they are necessary for the proper handling of wastewater containing excessive amounts of grease

and oil or sand, except that such interceptors shall not be required for residential users. All interception units shall be of a type and capacity approved by the town and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned and repaired regularly, as needed, by the owner at his expense.

(d) Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas-detection meter.

(e) At no time shall readings on an explosion hazard meter at the point of discharge into the publicly owned treatment works, or at any point in the publicly owned treatment works, be more than the lower explosive limit (LEL) of the meter for the substance discharged.

(f) Pretreatment facilities shall be operated by trained and competent personnel having met all the certification requirements for wastewater treatment plant operators as required by the state for a publicly owned treatment works. (Code 1977, § 86-13; Ord. No. 92-11, 9-14-1992)

Sec. 30-82. Pretreatment standards and requirements.

All industrial users shall comply with the federal general pretreatment regulations in 40 CFR 403, and the applicable national categorical pretreatment standards set out in 40 CFR, subchapter N, parts 402 through 471, upon promulgation and all applicable federal, state or local requirements or standards. State requirements and limitations on discharges shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.

(Code 1977, § 86-14; Ord. No. 92-11, 9-14-1992)

Secs. 30-83—30-107. Reserved.

DIVISION 4. FEES

Sec. 30-108. Purpose.

It is the purpose of this division to provide for the recovery of costs from users of the town's wastewater disposal system for the use of the publicly owned treatment works.

(Code 1977, § 86-15; Ord. No. 92-11, 9-14-1992)

Sec. 30-109. Sewer use fees.

(a) All persons, firms and corporations using the facilities of the sanitary sewage system shall pay a charge for the use thereof at a rate as set by resolution by the Mayor and Council of the town passed during an open public meeting and shall pay such charge as from time to time may be changed by the said Mayor and Council at a public meeting.

(b) A readiness-to-serve charge shall be levied on the owners of all lots or parcels of land (improved or unimproved) located within the corporate limits of the town for which wastewater service is available but not being used. Such charge shall be set by a resolution of the Mayor and Council and may be amended from time to time.

(c) All persons, firms and corporations (except an organization exempt from taxation under Section 501(c)(3) of the Internal Revenue Code) located outside the corporate limits of the town which use the facilities of the sanitary sewage system shall pay a charge for the use thereof at twice the rate established pursuant to subsection (a) of this section. All organizations exempt from taxation under Section 501(c)(3) of the Internal Revenue Code located outside the corporate limits of the town which use the facilities of the sanitary sewage system shall pay a charge for the use thereof at the normal rates established pursuant to subsection (a) of this section.

(Code 1977, § 86-16; Ord. No. 92-11, 9-14-1992; Ord. No. 1996-9, 11-25-1996; Ord. No. 2003-7, 5-27-2003; Ord. No. 2003-12, 6-26-2003)

Sec. 30-110. Hookup charges.

(a) A hookup charge for a permit to hook into the sanitary sewer system of the town shall be assessed in such amounts as from time to time may be established by the Mayor and Council by resolution duly enacted at an open meeting of said Mayor and Council.

(b) Any hookup charge for a permit to hook onto the sanitary sewer system of the town outside the corporate limits of the town shall be assessed in such amounts as established by the Mayor and Council for such extraterritorial sewer hookup.

(Code 1977, § 86-17; Ord. No. 92-11, 9-14-1992)

Sec. 30-111. Disconnection and reconnection fees.

There shall be a service charge assessed to the property owner for each response by town personnel for the connection to or termination of sewer service. This service charge will apply, regardless of the reason for the service call and shall be assessed in such amounts as from time to time may be established by the Mayor and Council by resolution.

(Code 1977, § 86-18; Ord. No. 92-11, 9-14-1992)

Sec. 30-112. Other charges and fees.

(a) The town may adopt charges and fees which may include:

- (1) Fees for reimbursement of costs of setting up and operating the town's pretreatment program.
- (2) Fees for monitoring, inspections and surveillance procedures.
- (3) Fees for reviewing accidental discharge procedures and construction.
- (4) Fees for permit applications.
- (5) Fees for filing appeals.

(6) Other fees as the town may deem necessary to carry out the requirements contained herein.

(b) These fees relate solely to the matters covered by this chapter and are separate from all other fees.

(Code 1977, § 86-19; Ord. No. 92-11, 9-14-1992)

Sec. 30-113. Property owners' responsibility.

(a) All sewer bills, service charges, miscellaneous repair charges, etc., in connection with that service shall be levied against the property served. Failure to give or receive any notice required by this section shall not relieve any property owner of the responsibility to pay any and all bills levied on his property.

(b) All unpaid sewer charges shall become a lien and shall be assessed as a tax on the property to which the sewer service has been supplied and for which the service was incurred. The town shall not approve the transfer or conveyance of any property or premises if the records of the municipality indicate that a sewer charge remains unpaid. Pursuant to the authority granted by Md. Ann. Code art. 23A, § 2(b)(17) and pursuant to the authority granted and contained in Article X of the Charter of the Town of Berlin, any such unpaid sewer charges shall be collectible in the same manner as municipal taxes are collected. The provisions relating to tax sales contained in Md. Tax-Property Code Ann. § 14-801 et seq. shall apply to said sewer taxes and charges. If a bill or statement for sewer charges is not paid within 30 days of the date such a bill or statement is deposited in the public mail, addressed to the owner of the premises served at the address shown in the tax records of the Town of Berlin, then the premises may be sold for such unpaid charges as provided in Md. Tax-General Code Ann. § 13-801 et seq. and Md. Tax-Property Code Ann. § 14-801 et seq.

(Code 1977, § 86-20; Ord. No. 92-11, 9-14-1992)

Sec. 30-114. Late charges.

The Mayor and Council shall have the right to assess late charges on bills for sewer service, connections, hookups, disconnections or any other sewer-related charge in this article. The late charge rate shall be set by the Mayor and Council by resolution in an open public meeting and may be adjusted from time to time.

(Code 1977, § 86-21; Ord. No. 92-11, 9-14-1992)

Secs. 30-115—30-141. Reserved.

DIVISION 5. ADMINISTRATION

Sec. 30-142. Wastewater survey.

It shall be unlawful to discharge to the publicly owned treatment works any wastewater except as authorized by the Mayor and Council in accordance with the provisions of this chapter. When requested by the town, all users must submit information on the nature and characteristics of their wastewater or other discharge contributing to the publicly owned treatment works or potentially contributing to the publicly owned treatment works by completing a wastewater survey and submitting the same in writing within ten days of a request by the Mayor and Council. The town is authorized to conduct investigations as necessary to confirm the information submitted. Failure to complete this survey shall be reasonable ground for terminating service to the user and shall be considered a violation of the chapter.

(Code 1977, § 86-22; Ord. No. 92-11, 9-14-1992)

Sec. 30-143. Monitoring facilities.

(a) The town may require, to be provided and operated at the user's own expense, monitoring facilities to allow inspection, sampling and flow measurement of the building sewer and/or internal drainage systems at the user's facilities.

(b) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user.

(c) Whether constructed on public or private property, the sampling and monitoring facilities shall be provided in accordance with the town's requirements and all applicable local construction standards and specifications. Construction shall be completed within 90 days following written notification by the town. Residential users are exempt from the requirements of this subsection.

(Code 1977, § 86-23; Ord. No. 92-11, 9-14-1992)

Sec. 30-144. Inspection and sampling.

The town may inspect the facilities of any user to ascertain whether the purpose of this chapter is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the town or its representative ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination, copying of records or in the performance of any of their duties. The town, approval authority and (where the national pollutant discharge elimination system (NPDES) state is the approval authority) the Federal Environmental Protection Agency (EPA) shall have the right to set up on the user's property such devices as are necessary to conduct sampling inspection, compliance monitoring and/or metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, personnel from the town, the approval au-

thority and the EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities.

(Code 1977, § 86-24; Ord. No. 92-11, 9-14-1992)

Sec. 30-145. Confidential information.

(a) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or any other governmental agency without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the town that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user.

(b) When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public but shall be made available upon written request to governmental agencies for uses related to this chapter, the national pollutant discharge elimination system (NPDES) permit, state disposal system permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential.

(c) Information accepted by the town as confidential shall not be transmitted to the general public by the town without a ten-day notification period being given to the user.

(Code 1977, § 86-25; Ord. No. 92-11, 9-14-1992)

Sec. 30-146. Wastewater discharge permits.

General requirements. All significant users proposing to connect to or to contribute to the publicly owned treatment works shall obtain a

wastewater discharge permit before connecting to or contributing to the publicly owned treatment works. The Mayor and Council may require other users, including liquid waste haulers, to obtain wastewater discharge permits as necessary to carry out the purposes of this article. Residential users shall be exempt from permit requirements.

(Code 1977, § 86-26(A); Ord. No. 92-11, 9-14-1992)

Sec. 30-147. Permit application.

(a) Users required to obtain a wastewater discharge permit shall complete and file with the town an application on a form prescribed by the town. Proposed new users shall apply at least 90 days prior to any proposed contribution to the publicly owned treatment works. In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:

- (1) Name, address and location, (if different from the mailing address).
- (2) Standard industrial classification (SIC) number according to the Standard Industrial Classification Manual, Bureau of the Budget, 1972, as amended.
- (3) Wastewater constituents and characteristics, including but not limited to those mentioned in division 2 of this article as determined by a reliable analytical laboratory; sampling and analysis shall be performed in accordance with procedures established by the Federal Environmental Protection Agency (EPA) pursuant to Section 304(g) of the Act and contained in 40 CFR 136, as amended.
- (4) Time and duration of contribution.
- (5) Average daily and three-minute peak wastewater flow rates, including daily, monthly and seasonal variations if any.
- (6) Site plans, floor plans, mechanical and plumbing plans and details to show all

sewers, sewer connection and appurtenances by the size, location and elevation.

- (7) Description of activities, facilities and plant processes on the premises, including all materials which are or could be discharged.
- (8) Where known, the nature and concentration of any pollutants in the discharge which are limited by any town, state or federal pretreatment standards and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for the user to meet applicable pretreatment standards.
- (9) If additional pretreatment and/or operation and maintenance (O&M) will be required to meet the pretreatment standards; the shortest schedule by which the user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. The following conditions shall apply to this schedule:
 - a. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).
 - b. Not later than 14 days following each date in the schedule and the final date for compliance, the user shall submit a progress report to the Mayor and Council, including, as a minimum, whether or not it complied with the increment of progress, the reason for delay and the steps being taken by the user to return the construction to the schedule established.
- (10) Each product produced or handled by type, amount, process or processes and rate of production.
- (11) Type and amount of raw materials processed or handled (average and maximum per day).
- (12) Number and type of employees and hours of operation of the plant and proposed or actual hours of operation of the pretreatment system.
- (13) Any other information as may be deemed by the town to be necessary to evaluate the permit application.
- (14) All wastewater discharge permit applications must contain the following certification statement and be signed by an authorized representative of the user:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(b) The town will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of data furnished, the town may issue a wastewater discharge permit subject to terms and conditions provided herein.
(Code 1977, § 86-26(B); Ord. No. 92-11, 9-14-1992)

Sec. 30-148. Permit modifications.

The terms and conditions of the permit may be subject to modification by the town during the term of the permit as limitations or requirements as identified in division 2 of this article are modified or other just cause exists. Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater discharge permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater discharge permit, the user shall apply for a wastewater discharge permit within 180 days after the promulgation of the applicable national categorical pretreatment standard. In addition, the user with an existing wastewater discharge permit shall submit to the Mayor and Council within 90 days after the promulgation of an applicable federal categorical pretreatment standard, the information required by section 30-147(8) and (9).
(Code 1977, § 86-26(C); Ord. No. 92-11, 9-14-1992)

Sec. 30-149. Permit conditions.

(a) Wastewater discharge permits shall be expressly subject to all provisions of this chapter and all other applicable regulations, user charges and fees established by the town. Permits shall contain the following:

- (1) Effective and expiration dates.
- (2) Statement of nontransferability.

- (3) Effluent limitations based on applicable general pretreatment standards, categorical pretreatment standards, local limits and/or state and local law.
- (4) Self-monitoring, sampling, reporting, notification and recordkeeping requirements, including an identification of the pollutants to be monitored, sampling location, sampling frequency, and same type, based on the applicable general pretreatment standards, categorical pretreatment standards, local limits and/or state and local law.
- (5) Statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule. Such schedule may not extend the compliance date beyond applicable federal deadlines.

(b) Permits may contain the following:

- (1) The unit charge or schedule of user charges and fees for the wastewater to be discharged.
- (2) Pretreatment operator certification requirements.
- (3) Other conditions as deemed appropriate by the town to ensure compliance with all applicable pretreatment standards and requirements.

(Code 1977, § 86-26(D); Ord. No. 92-11, 9-14-1992)

Sec. 30-150. Permits duration.

Permits shall be issued for a specified time period, not to exceed five years. Users shall apply for a new permit at least 90 days prior to the expiration of the user's existing permit.
(Code 1977, § 86-26(E); Ord. No. 92-11, 9-14-1992)

Sec. 30-151. Permit transfer.

Wastewater discharge permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises or a new or changed operation without the prior written approval of the town.

(Code 1977, § 86-26(F); Ord. No. 92-11, 9-14-1992)

Sec. 30-152. Reporting requirements for permittee.

(a) *Nature of required reports; certification statement.* Upon request of the town, a user may be required to submit plans, reports, questionnaires, notices or analytical data to evaluate waste discharge characteristics and ensure compliance with this chapter. These may include baseline monitoring reports, compliance reports, periodic self-monitoring reports, compliance schedule progress reports, violation reports and notice of slug loadings, upset, bypass or any other reporting requirements specified in 40 CFR 403.12. Reports shall include but not be limited to information on flows, pollutant concentrations, spills, etc. All permittees shall provide a certification statement with each report as required by 40 CFR 403.12(l) which reads as follows:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(b) *Additional report requisites.* Other requirements include:

- (1) *Problem discharges and notification.* All permittees shall immediately notify the publicly owned treatment works of all discharges that could cause problems to the publicly owned treatment works, including any slug loadings that would violate any of the specific prohibition of 40 CFR 403.5(b).
- (2) *Sampling results and notification of violation.*
 - a. All analyses, including sampling techniques, submitted in support of any application, report, evidence or required by any permit or order shall be performed in accordance with 40 CFR 136. If 40 CFR 136 does not contain sampling or analytical techniques for the pollutant in question, or where the administrator (as defined in 40 CFR 136) determines that the 40 CFR 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the publicly owned treatment works or other persons, approved by the administrator.
 - b. If sampling performed by a permittee indicates a violation, the user shall notify the town within 24 hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the town within one week after becoming aware of the violation, except that the user is not required to resample if the town performs sampling at the user at a frequency of

at least once per week, or the town performs sampling at the user between the time when the user performs its initial sampling and the time when the user receives the results of this sampling.

- (3) *Signatory requirements.* All applications, reports, certification statements or any other information requested by the town shall be signed by an authorized representative of the user.
- (4) *Self-monitoring reports.* All permittees shall submit to the town periodic compliance reports at a frequency specified in the permit but at least twice yearly. These reports shall be due on the dates specified in the wastewater discharge permit. All reports shall be signed by an authorized representative of the user. In addition, other users of the publicly owned treatment works may be required to submit reports as specified by the town.
- (5) *Records.*
 - a. Users shall retain and make available upon request of an authorized representative of the town, the state or the Federal Environmental Protection Agency (EPA) all records required to be collected by the user pursuant to this article.
 - b. These records shall remain available for a period of at least three years after their collection. This period shall be extended during any litigation concerning compliance with this article or permit conditions.
- (6) *New or increased contributions.* All permittees shall promptly notify the publicly owned treatment works in advance of any substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic haz-

ardous wastes for which the industrial user has submitted initial notification under 40 CFR 403.12(p).

- (7) *Wastewater discharge permit appeals.* Any person, including the industrial user, may petition the town to reconsider the terms of a wastewater discharge permit within 30 days of its issuance.
 - a. Failure to submit a timely petition for review shall be deemed to be a waiver of the administrative appeal.
 - b. In its petition, the appealing party must indicate the wastewater discharge permit provisions objected to, the reasons for this objection and the alternative condition, if any, it seeks to place in the wastewater discharge permit.
 - c. The effectiveness of the wastewater discharge permit shall not be stayed pending the appeal.
 - d. If the town fails to act within 30 days, a request for reconsideration shall be deemed to be denied. Decisions not to reconsider a wastewater discharge permit, not to issue a wastewater discharge permit or not to modify a wastewater discharge permit shall be considered final administrative action for the purposes of judicial review.
 - e. Aggrieved parties seeking judicial review of the final administrative wastewater discharge permit decision must do so by filing a complaint with the county circuit court within 30 days. Such an appeal shall be governed by subtitle B of the Maryland Rules of Procedure.

(Code 1977, § 86-26(G); Ord. No. 92-11, 9-14-1992)

Sec. 30-153. Notification requirements for industrial users—Bypass provisions.

(a) Industrial users shall comply with notification and prohibitions defined herein.

(b) An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to ensure efficient operation. These bypasses are not subject to the provisions of section (b)(1) and (2) of this section.

(1) Notice.

- a. If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the control authority, if possible, at least ten days before the date of the bypass.
- b. An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the control authority within 24 hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within five days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times; and if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate and prevent reoccurrence of the bypass. The control authority may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.

(2) Prohibition of bypass. Bypass is prohibited, and the control authority may take enforcement action against an industrial user for a bypass unless:

- a. Bypass was unavoidable to prevent loss of life, personal injury or severe property damage;
- b. There were not feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and
- c. The industrial user submitted notices as required under subsection (b)(1) of this section.

The control authority may approve an anticipated bypass, after considering its adverse effects, if the control authority determines that it will meet the three conditions listed in subsection (b)(2) of this section.

(Code 1977, § 86-27(A); Ord. No. 92-11, 9-14-1992)

Sec. 30-154. Upset provisions.

(a) An upset means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance or careless or improper operation.

(b) An upset can be used as an affirmative defense to an action brought for noncompliance with categorical pretreatment standards, provided that the industrial user meets certain conditions. An industrial user who wishes to establish the affirmative defense of upset must demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that:

- (1) An upset occurred and the industrial user can identify the cause or causes.
- (2) The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures.
- (3) The industrial user has submitted the following information to the town within 24 hours of becoming aware of the upset (if this information is provided orally, a written submission must follow within five days): a description of the indirect discharge and cause of noncompliance; the period of noncompliance, including exact dates and times, or if not corrected, the anticipated time the noncompliance is expected to continue; steps being taken or planned to reduce, eliminate and prevent recurrence of the noncompliance.
- (4) In any enforcement proceeding, the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.
- (5) Industrial users will have the opportunity for judicial determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards.
- (6) The industrial user shall control production of all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss or failure of its treatment facility until the facility is restored or an

alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails.

(Code 1977, § 86-27(B); Ord. No. 92-11, 9-14-1992)

Sec. 30-155. Hazardous waste discharge.

Industrial users shall notify the town, state hazardous waste authority and the Federal Environmental Protection Agency (EPA) regional waste management division director in writing of any discharge to the publicly owned treatment works of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 CFR 261. Notification shall be as follows per 40 CFR 403.12(p):

- (1) The industrial user shall notify the publicly owned treatment works, the EPA regional waste management division director and state hazardous waste authorities in writing of any discharge into the publicly owned treatment works of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 CFR 261.
- (2) Such notification must include the name of the hazardous waste as set forth in 40 CFR 261, the EPA hazardous waste number and the type of discharge (continuous, batch or other).
- (3) If the industrial user discharges more than 100 kilograms of such waste per calendar month to the publicly owned treatment works, the notification shall also contain the following information to the extent such information is known and readily available to the industrial user:
 - a. An identification of the hazardous constituents contained in the wastes.

- b. An estimation of the mass and concentration of such constituents in the wastestream expected to be discharged during the following 12 months.

- (4) Any notification under this subsection need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges must be submitted under 40 CFR 403.12(j).

- (5) The notification requirement in this section does not apply to pollutants already reported under the self-monitoring requirements of 40 CFR 403.12(b), (d) and (e).

(Code 1977, § 86-27(C); Ord. No. 92-11, 9-14-1992)

Sec. 30-156. Accidental discharge/slug control plans.

The town may require any industrial user to develop and implement an accidental discharge/slug control plan at least once every two years. The control authority shall evaluate whether each significant user needs such a plan. Any industrial user required to develop and implement an accidental discharge/slug control plan shall submit a plan which address the following:

- (1) Description of discharge practices, including nonroutine batch discharges.
- (2) Description of stored chemicals.
- (3) Procedures for immediately notifying the publicly owned treatment works of any accidental or slug discharge. Such notification must also be given for any discharge which would violate any of the prohibited discharges in division 2 of this article.
- (4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include but are not limited to inspection and maintenance of storage areas, handling and transfer of

materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents) and/or measures and equipment for emergency response.

(Code 1977, § 86-28; Ord. No. 92-11, 9-14-1992)

Secs. 30-157—30-178. Reserved.

DIVISION 6. ENFORCEMENT

Sec. 30-179. Harmful contributions.

(a) The town may suspend the wastewater treatment service and/or a wastewater discharge permit when such suspension is necessary, in the opinion of the town, in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons or to the environment, causes interference to the publicly owned treatment works or causes the town to violate any condition of its national pollutant discharge elimination system (NPDES) permit.

(b) Any person notified of a suspension of the wastewater treatment service and/or the wastewater discharge permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the suspension order, the town shall take such steps as deemed necessary, including injunctive relief as defined herein, to prevent or minimize damage to the publicly owned treatment works system or endangerment to any individuals. The town shall reinstate the wastewater discharge permit and/or the wastewater treatment service upon proof of the elimination of the noncomplying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the mea-

asures taken to prevent any future occurrence shall be submitted to the town within 15 days of the date of occurrence.

(Code 1977, § 86-29; Ord. No. 92-11, 9-14-1992)

Sec. 30-180. Injunctive relief.

(a) *Generally.* The town may bring an action for an injunction against any person who violates any provision of this chapter or any rule, regulation, order or permit adopted or issued under this chapter.

(b) *Findings.* In any action for an injunction under this section, any finding of the town after a hearing is prima facie evidence of each fact the town determines.

(c) *Grounds.* On a showing that any person is violating or is about to violate this article or any rule, regulation, order or permit adopted or issued by the town, the court shall grant an injunction without requiring a showing of a lack of an adequate remedy at law.

(d) *Emergency.* If an emergency arises due to imminent danger to the public health or welfare or imminent danger to the environment, the town may sue for an immediate injunction to stop any pollution or other activity that is causing the danger.

(Code 1977, § 86-30; Ord. No. 92-11, 9-14-1992)

Sec. 30-181. Annual publication requirements.

The town shall publish annually in the largest local daily paper a list of industrial users which at any time during the previous 12 months were in significant noncompliance with applicable pretreatment requirements. For the purpose of this provision, an industrial user is in significant noncompliance if its violation(s) meets one or more of the following criteria:

- (1) Chronic violations of wastewater discharge limits, defined herein as those in which 66 percent or more of all of the

measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.

- (2) Technical review criteria (TRC) violations, defined herein as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC equals 1.4 for BOD, TSS, fats, oil and grease and 1.2 for all other pollutants except pH).
- (3) Any other violation of a pretreatment effluent limit (daily maximum or longer-term average) that the control authority determines has caused, alone or in combination with other discharges, interference or pass-through (including endangering the health of publicly owned treatment works personnel or the general public).
- (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the publicly owned treatment works' exercise of its emergency authority under 40 CFR 403.8(f)(1)(vi)(B) to halt or prevent such a discharge.
- (5) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction or attaining final compliance.
- (6) Failure to provide, within 30 days after the due date, required reports, such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports and reports on compliance with compliance schedules.

(7) Failure to accurately report noncompliance.

(8) Any other violation or group of violations which the publicly owned treatment works determines will adversely affect the operation or implementation of the local pretreatment program.

(Code 1977, § 86-31; Ord. No. 92-11, 9-14-1992)

Sec. 30-182. Revocation of permit.

Any permitted user who violates the following conditions of this article, or applicable state and federal regulations, is subject to having his permit revoked in accordance with the procedures of this article:

(1) Failure of a user to factually report the wastewater constituents and characteristics of his discharge;

(2) Failure of a user to report significant changes in operations or wastewater constituents and characteristics;

(3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or

(4) Violation of conditions of the permit.

(Code 1977, § 86-32; Ord. No. 92-11, 9-14-1992)

Sec. 30-183. Notification of violation.

Whenever the town finds that any user has violated or is violating this chapter, wastewater discharge permit or any prohibition, limitation of requirements contained herein, the town may serve upon such a person a written notice stating the nature of the violation. Within 30 days of the date of the notice, a plan for the satisfactory correction thereof shall be submitted to the town by the user.

(Code 1977, § 86-33; Ord. No. 92-11, 9-14-1992)

Sec. 30-184. Legal action.

If any person discharges sewage, industrial wastes or other wastes into the town's wastewater disposal system contrary to the provisions of this article, federal or state pretreatment requirements or any order of the town, the town attorney may commence an action for appropriate legal and/or equitable relief in the county circuit court.

(Code 1977, § 86-34; Ord. No. 92-11, 9-14-1992)

Secs. 30-185—30-205. Reserved.

ARTICLE III. WATER*

Sec. 30-206. Supervision of waterworks.

The water department shall supervise the waterworks and shall at all times act under the direction and control of the Mayor and Council. No person, except the superintendent of the waterworks or person authorized by the Mayor and Council, shall be allowed to stop off or turn on the water in the public mains or to turn on the water at any curb cocks; and all plumbers or other persons engaged in making attachments thereto must leave the curb cocks closed.

(Code 1977, § 102-1; Ord. No. 83-2, 3-7-1983)

***Charter reference**—Water system, art. X.

State law references—State plumbing code, water conservation, Md. Business Occupations and Professions Ann. § 12-205; contaminating water supply, Md. Criminal Code Ann. § 3-214; water management, Md. Environment Code Ann. § 4-101 et seq.; water pollution control and abatement, Md. Environment Code Ann. § 4-401 et seq.; water resources, Md. Environment Code Ann. § 5-101 et seq.; water facilities, Md. Environment Code Ann. § 9-101 et seq.; well drilling, Md. Environment Code Ann. § 13-101 et seq.; waterworks, Md. Environment Code Ann. § 12-101 et seq.

Sec. 30-207. Permits required.

(a) No alterations or additions to the water supply of any premises or introduction of water in or to any premises or its supply for any purpose or the extension of any private pipe for the conveyance of such water shall be made by any owner, plumber or other person or persons whomsoever without a permit from the Mayor and Council.

(b) In no case shall any connection with the water supply be made without such permit being first had and obtained and the manner of such connection approved by the director of water resources. Permits must likewise be obtained to disconnect and reconnect with the water supply.

(Code 1977, §102-2; Ord. No. 83-2, 3-7-1983)

Sec. 30-208. Inspections.

All water pipes and conduits and all fixtures attached to and connected therewith, both on public and private property, shall be under the charge and subject to the direction of the director of water resources and shall, at all reasonable times, be subject to his inspection.

(Code 1977, § 102-3; Ord. No. 83-2, 3-7-1983)

Sec. 30-209. Emergencies.

(a) In the event that it shall become necessary in the interest of the health, safety and general welfare of the residents of the town to conserve the existing water supply and to prevent waste in the use of water by virtue of existing conditions, the Mayor and Council shall be authorized to proclaim a state of water emergency upon the vote of the Mayor and Council at an open, public hearing. In the event that such water emergency is proclaimed, the residents of the town shall be required to restrict and otherwise control the use of municipal water within the town upon such terms and conditions as set by the Mayor and Council within the proclamation of an existence of a water emergency.

(b) In the event that a leak ensues in the water supply line within the private line of the property being served, the owner or owners of the real property, upon notice by the Mayor and Council, shall be required to repair or effectuate repair of the cause of the leak within seven days of notice. In the event that said repair is not effectuated within said seven-day period, then and in such event the Mayor and Council of the town, its agents, servants and employees are hereby authorized to enter upon said private property for the purpose of repairing the leak; and the costs thereof shall be added to the water bill or statement of the owner or owners. (Code 1977, § 102-4; Ord. No. 83-2, 3-7-1983)

Sec. 30-210. Nonliability of town.

All permits granted shall be upon the express condition that, if from any cause the supply of water should fail, the town shall not be held liable for any damage which shall arise in consequence thereof.

(Code 1977, § 102-5; Ord. No. 83-2, 3-7-1983)

Sec. 30-211. Supplying of water to others subject to special permission.

No person or persons, firm, association or corporation shall supply water to others except by special permission from the Mayor and Council.

(Code 1977, § 102-6; Ord. No. 83-2, 3-7-1983)

Sec. 30-212. Charges for use of system.

(a) All persons, firms and corporations using the facilities of the municipal water system shall pay a service charge at a rate as set by resolution by the Mayor and Council of the town passed during an open public meeting and shall pay such charge as from time to time may be changed by said Mayor and Council at a public meeting.

(b) A readiness-to-serve charge shall be levied on the owners of all lots or parcels of land (improved or unimproved) located within the corporate limits of the town for which water

service is available but not being used. Such charge shall be set by a resolution of the Mayor and Council and may be amended from time to time.

(c) All persons, firms and corporations (except an organization exempt from taxation under Section 501(c)(3) of the Internal Revenue Code) located outside the corporate limits of the town which use the facilities of the municipal water system shall pay a charge for the use thereof at twice the rate established pursuant to subsection (a) of this section. All organizations exempt from taxation under Section 501(c)(3) of the Internal Revenue Code located outside the corporate limits of the town which use the facilities of the municipal water system shall pay a charge for the use thereof at the normal rates established pursuant to subsection (a) of this section.

(Code 1977, § 102-7; Ord. No. 83-2, 3-7-1983; Ord. No. 1991-6, 8-12-1991; Ord. No. 1996-10, 11-25-1996; Ord. No. 2003-7, 5-27-2003; Ord. No. 2003-12, 6-26-2003)

Sec. 30-213. Hookup charges.

(a) A hookup charge for a permit to hook onto the municipal water system of the town shall be assessed in such amounts as, from time to time, may be established by resolution duly enacted at an open public meeting of said Mayor and Council.

(b) Any hookup charge for a permit to hook onto the municipal water system of the town outside the corporate limits of the town shall be assessed in such amounts as established by the Mayor and Council for such extraterritorial water hookup.

(Code 1977, § 102-8; Ord. No. 83-2, 3-7-1983)

Sec. 30-214. Swimming pools.

(a) No swimming pool located within the corporate limits of the town shall be filled unless a permit has first been obtained from the Mayor and Council and the payment of any water

charge required as a condition to the issuance of said permit has been paid in full. In determining the fee, the Mayor and Council is authorized to require an amount to be paid based upon the capacity of the swimming pool, the type of recirculation device located on said pool and the availability or lack thereof of reserve water supply based upon demand for said water then existing within the town. This fee shall be assessed in such amounts as, from time to time, may be established by the Mayor and Council by resolution duly enacted at an open public meeting of said Mayor and Council.

(b) Swimming pool owners will be assessed an annual user fee in such amounts as, from time to time, may be established by the Mayor and Council by resolution duly enacted at an open public meeting of said Mayor and Council. (Code 1977, § 102-9; Ord. No. 83-2, 3-7-1983)

Sec. 30-215. Hydrant permit.

All persons, firms and corporations desiring to withdraw water from a fire hydrant must first gain permission from the superintendent of the waterworks and pay a permit and user fee set in such amounts as, from time to time, may be established by the Mayor and Council by resolution duly enacted at an open public meeting of said Mayor and Council.

(Code 1977, § 102-10; Ord. No. 83-2, 3-7-1983)

Sec. 30-216. Meters and check valves.

(a) All water meters shall be paid for by the party using water from the town, and, when the Mayor and Council shall, in their judgment, think it to be the best interests of the town, they can order a meter to be put on at the expense of the party using the town meter. All meters must be approved by the Mayor and Council, and their installation must be supervised by the town water department. Property owners and/or consumers shall be responsible for any damage to any water meter caused by the property owner and/or consumer or their agents, guests, customers, invitees, etc.

(b) All commercial and industrial water use and all use of water in public buildings in said town shall be metered hereafter unless otherwise determined by recorded action of the Mayor and Council. The Mayor and Council reserve the right to require the installation and use of water meters in other instances whenever said Mayor and Council may deem the same necessary or desirable.

(c) Detector check valve. All buildings equipped with fire water systems supplied by the municipal water system shall have said systems equipped with a monitoring device (a detector check valve or its equivalent) approved by the water department. This device shall consist of a main-line device, which will divert a low rate of water flow through a disc meter on a bypass. This disc meter shall register and detect any meter leakage and/or unauthorized use of water through the systems. The disc-meter bypass shall not unduly interfere with high rates of flow in the fire system when said system is activated in the event of fire. These monitoring devices and check valves shall be of a type approved by the water department. The installation of such devices shall be under the supervision of the water department. The water department shall notify the town fire chief of all such installations. Buildings with existing systems shall have said devices so installed within six months of the effective date of this chapter, and the property owner and/or consumer shall be responsible for any damages to such devices caused by the property owner and/or consumer or their agents, guests, customers, invitees, etc.

(d) All new buildings and service upgrades except single-family homes in the town will be required to have a town-approved water meter installed at the builders' expense before a water permit is issued for that building.
(Code 1977, § 102-11; Ord. No. 83-2, 3-7-1982; Ord. No. 89-4, 3-13-1989)

Sec. 30-217. Repairs.

(a) All persons who may be supplied with water from any of the town mains shall keep their own service pipe, stop cocks, meter and

apparatus in good order and repair and protected from frost at their own risk and expense and shall prevent all unnecessary waste of water; and it is expressly stipulated that no claim shall be made against the town by reason of the breaking of any service pipe or service cock or other fixture or from damage arising from shutting off water to repair a main or make private connection with same.

(b) If at any time it shall be necessary to repair a private pipe within the limits of any street, court or alley, a permit therefor shall first be obtained from the Mayor and Council, and the expenses of repaving and repairs shall be paid by the person so applying for said permit.

(c) The superintendent or other person authorized by the Mayor and Council shall be authorized to inquire at any dwelling or other place where any unnecessary waste of water proceeds into the cause of the same, and, if said waste arises from want of repair in the pipes or other fixtures and if the owner or occupier of said dwelling or place shall neglect or refuse, upon 24 hours' notice being given, to have the necessary repairs made forthwith, said superintendent or other authorized person shall be and is hereby authorized and empowered to shut off the water leading to such place or dwelling; and the expense of any such shutoff shall be borne by the person or persons supplied by the pipe; and any person who shall let on the water before the necessary repairs are made shall forfeit and pay a fine of \$25.00.

(Code 1977, § 102-12; Ord. No. 83-2, 3-7-1983)

Sec. 30-218. Property owners' responsibility.

(a) The property owner shall be responsible for all water tax bills, service charges, miscellaneous repair charges, etc., levied against the property. Failure to give or receive any notice required by this section shall not relieve any property owner of the responsibility to pay, on the dates established by this chapter, all bills levied on his property.

(b) It shall be unlawful for any person to set, change, remove or interfere with equipment owned by the town. In the event that the town's equipment is tampered or interfered with, the property owner, being supplied through such equipment, shall pay the amount which the town may estimate is due for service used but not registered on the meter and for any repairs or replacements required and such changes in the service as may be required by the town.

(Code 1977, § 102-13; Ord. No. 83-2, 3-7-1983)

Sec. 30-219. Turnoff of water; service charge.

(a) In the event that a water tax bill or statement is not paid within 30 days of the date said bill or statement is deposited in the post office at Berlin, Maryland, addressed to the address of the owner or the premises as same is reflected in the tax records of the town or, in the event of premises under multiple ownership, to the local address of the premises served, or in the case of a violation of any of the provisions of this article or any of the rules or regulations relating to the use of water or in the event that wastage of water is occurring due to the defective conditions of pipes or fixtures on the premises served, it shall be lawful for the town to turn off the water from the premises served until such time as all water taxes, expenses of turning the water off and on and any fines or penalties due are paid and defective conditions, if any, are corrected. Said water may be so turned off even if the then owner of the premises is not the same owner that incurred the water tax or committed the violation of this article or of the aforesaid rules and regulations or allowed such wastage of water.

(b) The director of water resources or other person authorized by the Mayor and Council shall be authorized to inquire at any place where any waste of water appears as to the cause thereof. If said waste arises from a defective condition of pipes or other fixtures and the owner or occupant of said premises shall neglect or

refuse, upon 24 hours' notice being given, to have the necessary repairs made forthwith, said superintendent or other authorized person shall have the power to cut off the water leading to such premises, and the service shall not be restored until the necessary repairs are made.

(c) There will be a service charge assessed to the property owner for each response by town personnel for the connection to or termination of water service. This fee will apply regardless of the reason for the service call and will be assessed in such amounts as, from time to time, may be established by the Mayor and Council by resolution duly enacted at an open public meeting of said Mayor and Council.

(Code 1977, § 102-14; Ord. No. 83-2, 3-7-1983)

Sec. 30-220. Nonpayment.

Any water charges (which shall specifically include but not be limited to water meters, labor furnished, material furnished, service calls, minimum billings, hydrant permits and any and all other charges in any manner connected with water service) so incurred shall be a lien and shall be assessed as a tax on the subject premises. If the bill or statement for same is not paid within 30 days of the date said bill or statement is deposited in the post office at Berlin, Maryland, addressed to the address of the owner of the subject premises as such owner is reflected in the tax records of the town, and in the event of multiple ownership, addressed to the local address of the subject premises, the town shall not approve the transfer or conveyance of any property or premises if the tax records of the municipality indicate that such a water tax remains unpaid. Pursuant to the authority granted by Md. Ann. Code art. 23A, § 2(b)(17) and the authority contained in and pursuant to the authority granted and contained in Article X of the Charter of the Town of Berlin, Maryland, any such unpaid water taxes shall be collectible in the same manner as municipal taxes are collected. The provisions relating to tax sales contained in Md. Tax-Property Code Ann. § 14-801 et seq. shall apply

to said water taxes, and the property may be sold for such unpaid water taxes as so provided in Md. Tax-Property Code Ann. § 14-801 et seq. (Code 1977, § 102-15; Ord. No. 83-2, 3-7-1983)

Sec. 30-221. Late charges.

The Mayor and Council shall have the right to assess late charges on bills for water service, connections, hookups, disconnections or any other water-related charge in this article. The late charge rate shall be set by the Mayor and Council by resolution in an open public meeting and may be adjusted from time to time. (Code 1977, § 102-16; Ord. No. 83-2, 3-7-1983; Ord. No. 87-1b, 12-7-1987)

Sec. 30-222. Violations and penalties.

(a) Any violation of any of the provisions of this article shall be punishable as a municipal infraction as set forth in chapter 21 of the Code. The fine shall be \$25.00 per infraction. Each day that the violation continues shall be considered a separate violation.

(b) In addition to the fines and penalties herein described, the Mayor and Council may avail themselves of any and all civil and equitable remedies for the purpose of stopping continuing offenses of this article. (Code 1977, § 102-17; Ord. No. 87-1b, 12-7-1987)

Secs. 30-223—30-242. Reserved.

**ARTICLE IV. WATER AND SEWER
ALLOCATION; SPECIAL CONNECTION,
CONNECTION AND READY TO SERVE
CHARGES**

Sec. 30-243. Purpose and intent.

(a) The Mayor and Council of the town ("Mayor and Council") find that temporary shortages of available capacity in water and sewer facilities may occur as a result of health, environmental, or financial considerations, as well

as growth demands. The Mayor and Council have determined that in order to permit growth within the resources of the town, it is necessary to establish a method by which available water and sewer capacity may be allocated and fees established to assist the town in paying for water and sewer facilities.

(b) The Mayor and Council further find that an allocation procedure will help implement the comprehensive plan by ensuring that adequate public water and sewer facilities are available in a timely and well-planned manner. In addition, an allocation procedure will assist the town in addressing the cost of providing needed public water and sewer capacity to ensure that the town remains a desirable place to work and live.

(c) It is the intent of the Mayor and Council that the provisions of this section shall accomplish the objectives stated in subsections (a) and (b) of this section and that a fair and equitable method of allocating available water and sewer capacity and creation of related fees are established.

(Code 1977, § 102-18.1; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-244. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Allocated ready to serve charge means a charge based upon the number of equivalent dwelling units (EDUs) allocated to a lot and applied to all lots within the corporate town limits that may or may not have water and/or sewer service available but for which an allocation has been approved pursuant to this article.

Allocation means assignment of the number of equivalent dwelling units (EDUs) required for a project and shall be based on a specific use

and scope as indicated in the drawings and documentation submitted to the town or one EDU per existing lot.

Application means a request to the town to reserve a water and sewer allocation made in the form required by the town. The application shall clearly indicate the number of equivalent dwelling units (EDUs) requested by the applicant and shall be simultaneously submitted with an application for either a building permit; site plan review; subdivision review, whichever is filed first after the effective date of the ordinance from which this article is derived.

Capacity management plan means water and wastewater capacity plans prepared by the town and submitted to the state department of the environment pursuant to its published guidelines.

EDU means an equivalent dwelling unit which is a measure where one unit is equivalent to the approximate amount of wastewater effluent generated from one home. An EDU is established to be 250 gallons per day (1 EDU = 250 gallons of flow per day).

Existing subdivision means a parcel of land documented with a recorded plat having received final approval by the town planning and zoning commission prior to December 31, 2008.

Grandfathered ready to serve charge means a charge based upon the number of equivalent dwelling units (EDUs) allocated to a lot and applied to all lots within the corporate town limits which, as of December 31, 2008, have water and/or sewer service available but are not connected to the water or sewer system.

Grandfathered special connection charge means a fee imposed upon applicants for new service for lots subject to the grandfathered ready to service charge to pay for:

- (1) Portions of the town's new and/or upgraded water and sewer system which are under design and construction by the town as approved by an amendment

to the 1994 Comprehensive Plan for Water and Sewage Systems, Worcester County, pursuant to County Commissioner Resolution No. 07-36 adopted on December 18, 2007; and

- (2) Portions of the town's future water and those sewer facilities relating to effluent disposal.

The town shall use grandfathered special connection charge revenues only for water and sewer capital and related financing activities.

New service means:

- (1) A first time connection of a property to the town water or sewer systems; or
- (2) A new connection or increased water meter size for a property previously or currently served by the town if the new connection or increased water meter size is needed because of a change in the use of the property or an increase in demand for service at the property.

Special connection charge means a fee imposed upon applicants for new service to pay for:

- (1) Portions of the town's existing water and sewer system to be used by new connections;
- (2) Portions of the town's new and/or upgraded water and sewer system which are under design and construction by the town as approved by an amendment to the 1994 Comprehensive Plan for Water and Sewage Systems, Worcester County, pursuant to County Commissioner Resolution No. 07-36 adopted on December 18, 2007; and
- (3) Portions of the town's future water and those sewer facilities relating to effluent disposal.

The town shall use special connection charge revenues only for water and sewer capital and related financing activities.

Water and sewer connection charges means charges designed to recoup only the cost of making individual connections from the water and wastewater mains in the street to the property line of an abutting lot and are due and payable at the time a request is made for service. In the case of new service, this fee is due and payable before a certificate of occupancy is issued.

(Code 1977, § 102-18.2; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-245. Applicability.

(a) Allocations made under this article are subject to the availability of water and sewer capacity. The town is not responsible for any contingency that affects the timing or ability to connect to the town's water and sewer systems which is beyond the control of the town.

(b) This article shall be applicable to all lands within the corporate limits of the town.

(c) Holders of an allocation who have been paying a grandfathered ready to serve charge for such allocation as of December 31, 2008, shall be exempt from section 30-249, duration of allocation of this policy.

(Code 1977, § 102-18.3; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-246. Calculation of EDU requirements.

(a) The water and sewer allocation for a single-family residential unit shall require one equivalent dwelling unit (EDU).

(b) For non-residential units, the number of equivalent dwelling units (EDUs) required for a project shall be based on the specific use and scope as determined and approved by the town in accordance with the provisions of this article.

(c) Unless otherwise provided for in this article, the calculation of the number of equivalent dwelling units (EDUs) required for a project shall be based on the guidance document, titled

"Wastewater Capacity Management Plans, 2006," published by the state department of the environment as amended, (guidelines) attached as an Appendix to this article and on file in the town administrator's office, as amended from time to time by the Mayor and Council.

(d) If a project or use is not adequately addressed in the guidelines, the town may consult its engineer or other technical resources, at the expense of the applicant, to estimate the required equivalent dwelling units (EDUs).

(e) The town may consider historical or representative data from similar projects of like use and scope in calculating the required equivalent dwelling units (EDUs) for a project.

(f) The calculation of the required equivalent dwelling units (EDUs) shall result in whole numbers. If the division of total estimated flow by 250 gallons per day results in a fractional portion, the result shall be rounded to the next highest whole number.

(g) The town shall monitor water consumption as an indication of actual sewer flow to a non-residential unit or project for a period of 24 months following completion of the entire project. If the flow exceeds the established equivalent dwelling units (EDUs) allocated to the property, the owner of the nonresidential unit or project will be assessed additional special connection charges or grandfathered special connection charges, as appropriate, at the rate previously paid by the owner to reflect the additional flow in excess of the previously allocated number of equivalent dwelling units (EDUs). Any fractional portion shall be rounded to the next highest whole number.

(h) The allocation for a pre-existing non-residential use shall be based upon the average use over the previous 24 months of documented flow when such documented continuous flow history is available. Should such continuous flow history not be available, a determination using historical data for up to the

prior ten years shall be made. This documented historical data shall be available for subsequent use of the parcel provided:

- (1) The utility account has remained active with uninterrupted payments for at least minimum usage billing; and
- (2) There has been no change to the approved uses including any increase to or enhancement of a previously approved use.

(i) In the event neither the prior 24-month flow nor historical data is available pursuant to subsection (h) of this section, the town shall determine the allocation for a pre-existing non-residential use pursuant to subsections (b) through (g) of this section.

(Code 1977, § 102-18.4; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011; Ord. No. 2012-07, 6-11-2012)

Sec. 30-247. Authority.

Water and sewer capacity allocations shall be recommended for approval by the Mayor and Council.

(Code 1977, § 102-18.5; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011; Ord. No. 2012-07, 6-11-2012)

Sec. 30-248. Water and sewer allocation process.

(a) The capacity management plan and its amendments shall specify the general distribution of available sewer capacity available for allocation by the Mayor and Council. The plan divides available capacity into use categories to be available over a given period of time. Allocations shall be available within a given category on a "first-come, first-served" basis, subject to the provisions of this article.

(b) The developer of any property shall submit to the town an application for site plan or subdivision approval in accordance with chapters 106 and 108; or an application for a building permit in accordance with chapter 6.

(c) Simultaneously with submission of a building permit application, the developer or property owner shall also submit an application for a water and sewer allocation. The allocation application shall be referred to the town administrator and director of water resources for review and recommended action to the Mayor and Council. The application for the required allocation shall include a ten percent deposit of the prevailing water and sewer special connection charge or grandfathered special connection charge based upon the total number of equivalent dwelling units (EDUs) requested in the application. The deposit will be deducted from the special connection charge or grandfathered special connection charge at such time as the proposed development seeks actual connection to the water and sewer system and pays the balance of the special connection charge or the grandfathered special connection charge.

(d) If the Mayor and Council denies an application for water and sewer allocation, the ten percent deposit will be refunded, except for a \$400.00 administrative fee plus any other additional expenses incurred by the town in reviewing the application.

(e) No final plat of subdivision may be recorded unless:

- (1) The town has approved the application for water and sewer allocation and reserved adequate water and sewer capacity for the proposed development (only lots and portions of non-residential developments with an approved allocation may be recorded) subject to this article including, but not limited to, its forfeiture provisions; and
- (2) An allocation agreement has been recorded where a certification of intended uses or public works agreement has been executed.

(f) Once the allocation is approved and the plat of subdivision is recorded, all lots within the newly recorded subdivision shall be subject to

the payment of the allocated ready to serve charge until the total special connection charge or grandfathered special connection charge balance is paid.

(g) For projects where there is no existing town water and sewer utility services in place, no building permit may be issued unless the special connection charge or grandfathered special connection charge balance (connection charge less the ten percent deposit noted in subsection (c) of this section), which shall be calculated using the prevailing rate at the time the application for allocation was filed less prior deposits, has been paid.

(h) For projects where existing town water and sewer utility services are in place, no certificate of occupancy or zoning certificate may be issued unless:

- (1) The town has inspected and improved all phases of construction; and
- (2) The applicant has paid all monetary obligations to the town, including, but not limited to, the water and sewer connection charge.

(i) The town shall maintain a report establishing the amount of water and sewer capacity available for allocation. This report shall account for any allocation made prior to the effective date of the ordinance from which this article is derived. The town shall also maintain a list of applicants for water and sewer allocations submitted after the effective date of the ordinance from which this article is derived subject to the provisions of this article.

(Code 1977, § 102-18.6; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011; Ord. No. 2012-06, 5-29-2012)

Sec. 30-249. Duration of allocation.

Projects receiving final site plan or final subdivision approval after December 31, 2008, shall be subject to the following:

- (1) The owner shall apply for the allocations required for its project by submitting the application as provided in this article.

(2) The approved water and sewer allocation shall be considered reserved for as long as the allocated ready to serve charge is continuously paid. A three-month arrearage shall be considered forfeiture of the allocation and the town shall be entitled to recapture the sewer and water allocation granted for any lots that fail to pay the allocated ready to serve charge for three consecutive months unless otherwise approved by the Mayor and Council.

(3) Any allocation forfeited under this article shall revert back to the town for future allocation.

(4) Forfeiture of the reserved allocation shall not warrant a refund of any special connection charge or grandfathered special connection charge deposit.

(Code 1977, § 102-18.7; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-250. Assignability or transferability of water allocation.

All allocations established by the town for any applicant either before or after the effective date of the ordinance from which this article is derived shall be for the property specified in the application or for which property the readiness to serve charge was paid and shall not be transferable to any other property, without the approval of the Mayor and Council.

(Code 1977, § 102-18.8; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-251. Effect of zoning action.

The grant of a special exception, reclassification of property or other zoning action does not entitle a property owner to an allocation of water or sewer capacity for that property.

(Code 1977, § 102-18.9; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-252. Special connection charge and grandfathered special connection charge established.

(a) The water and sewer special connection charge and the water and sewer grandfathered special connection charge shall be established by the Mayor and Council and shall be based upon a per equivalent dwelling unit (EDU) basis.

(b) The water and sewer special connection charge and the water and sewer grandfathered special connection charge shall be reviewed annually in order to provide adequate revenue for related capital expenditures.

(c) The water and sewer special connection charge and the water and sewer grandfathered special connection charge established by the Mayor and Council shall continue until modified by the Mayor and Council.

(d) The town shall deposit all funds collected under the special connection charge and the water and sewer grandfathered special connection charge into the water and sewer funds to be used only for water and sewer capital and related financing activities.

(Code 1977, § 102-18.10; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011)

Sec. 30-253. Monitoring.

(a) There will be a review of water and sewer capacity by the director of water resources that shall occur at least annually. The Mayor and Council may request certain data more frequently in its role as the approval authority.

(b) As part of the annual review, the Mayor and Council shall receive information on:

- (1) Calendar year beginning and ending annual average daily flow;
- (2) Total number of equivalent dwelling units (EDUs) allocated during the year;
- (3) Available capacity, as of the most recent year ending December 31;

(4) Pending and approved projects which have not connected to the system; and

(5) Other information deemed properly plan for and allocate relevant to water and sewer capacity.

(Code 1977, § 102-18.11; Ord. No. 2009-02, 3-23-2009; Ord. No. 2009-02, 6-13-2011; Ord. No. 2012-06, 5-29-2012)

Secs. 30-254—30-274. Reserved.

ARTICLE V. WELLHEAD PROTECTION*

Sec. 30-275. Policy.

The Mayor and Council shall control private and public use water wells, irrigation wells, and geothermal loops at all locations that are located within the town limits and its wellhead protection area (WHPA). The town shall administer this article and issue water use permits so long as the owner of the property complies with this article.

(Code 1977, § 106-1; Ord. No. 2004-11, 6-11-2004)

Sec. 30-276. Purpose and intent.

The following is the purpose and intent of this article:

- (1) The groundwater underlying the community water supply wellhead protection areas (WHPA) is a major source of the town's existing and future water supply;
- (2) A safe and adequate source of drinking water is vital to the health and well being of the county and the town;
- (3) The aquifer system supplying the community water supply wellhead protection area (WHPA), with its groundwater supply, is integrally connected with numerous surface waters and streams;

***State law reference**—Well drilling, Md. Environment Code Ann. § 9-1301 et seq.

- (4) Accidental spills, runoff of contaminated water, and discharge of toxic and hazardous material can threaten the quality of such water supplies, posing long-term public health and safety hazards;
 - (5) Unless preventive measures are adopted to control the runoff discharge and storage of toxic and hazardous material within the community water supply wellhead protection area (WHPA), incidents will predictably occur, with greater frequency by reason of increased land development, population, and vehicular traffic within the WHPA
 - (6) Proper siting, installation, operation, and maintenance of private and public use water wells, irrigation systems, and geothermal loops are necessary to prevent contamination of the groundwater from nitrogen and pathogenic organisms;
 - (7) The purpose of this article is to protect the community's long-term public health, safety, and welfare, through the preservation of high quality groundwater resources of Berlin's public water supplies. The wellhead protection area (WHPA) districts, and the careful regulation of development activities within these districts, can reduce the potential for groundwater contamination;
 - (8) The town has determined through the sensitive areas element of the comprehensive plan that, in addition to streams and their buffers, 100-year floodplains, habitats of threatened and endangered species, and steep slopes, WHPA are in need of special protection;
 - (9) Md. Ann. Code art. 66B, § 4.01 empowers the town with the authority to regulate and restrict land use for the purpose of promoting the health, safety and general welfare of the community;
 - (10) Section 1428 of the Federal Safe Drinking Water Act Amendments of 1986 requires that each state develop a well-head protection program to protect public water supplies from contamination; and
 - (11) The Maryland Department of the Environment (MDE) has developed a well-head protection program, approved by the Federal Environmental Protection Agency (EPA), which identifies that local governments have responsibility for developing programs, including regulations and management controls, to protect public water supplies from contamination.
- (Code 1977, § 106-2; Ord. No. 2004-11, 6-11-2004)
- Sec. 30-277. Zones of protection.**
- The town wellhead protection district consists of two zones of protection, with Zone 1 being the most restrictive. Zone 1 is based on a one-year time of travel, fixed radius or other assessment of an area most closely connected to the water supply. Zone 2 is based on a ten-year time of travel or by hydrogeologic boundaries.
- (Code 1977, § 106-3; Ord. No. 2004-11, 6-11-2004)
- Sec. 30-278. Applicability.**
- (a) This chapter applies to all land uses and activities located or proposed within the town and areas delineated as the wellhead protection agency (WHPA) districts in the Town of Berlin. The wellhead protection districts consist of zone 1 and zone 2 and are administered as per the town wellhead protection program. Maps are available for inspection at the office of the town.
- (b) This article is supplementary to other laws and regulations. Where this article or any portion thereof imposes a greater restriction than is imposed by other regulations, the provisions of this article shall control.
- (Code 1977, § 106-4; Ord. No. 2004-11, 6-11-2004)

Sec. 30-279. Use regulations and restrictions.

(a) Construction is limited to irrigation wells and geothermal loops.

(b) All properties located within the town limits and the town wellhead protection area (WHPA), as shown on the district maps, currently receiving public drinking water shall be prohibited from installing a new well and be required to abandon (cap) any existing drinking water well.

(c) If a property owner is granted permission to keep an existing well for irrigation purposes, as a minimum, the following requirements must be met:

- (1) The wellhead is maintained eight inches above grade;
- (2) The well remains connected to the pump;
- (3) No building foundation is allowed within ten feet of the well;
- (4) No well water connections are made to any dwelling or structure.

(d) All geothermal loop systems: minimum depth must be 150 feet and shall be located no closer than ten feet from any building.

(e) The town shall maintain a listing of all wells and geothermal loops located within its town limits. This list shall be used to verify that no wells or geothermal loops are impacted by the issuing of a building permit.

(f) The town shall establish and administer a cross-connection control program. This program will require routine inspections for improper connections and wellhead integrity.

(g) The Mayor and Council shall give consideration to the simplicity, reliability, quality, and feasibility of the control measures proposed and the degree of threat to drinking water quality that would result if the control measures failed.

(h) A change request may not be approved until all comments provided the Mayor and Council and by local agencies have been addressed by the applicant to the satisfaction of the Mayor and Council. The Mayor and Council decision shall be published and made in writing to the applicant.

(Code 1977, § 106-5; Ord. No. 2004-11, 6-11-2004)

Sec. 30-280. Performance plan standards.

(a) Nothing in this article shall be applied in any way so as to prevent any person from complying with any or all applicable state and federal regulation or requirements.

(b) If required by the town, groundwater monitoring wells shall be installed at the expense of the facility owner or operator in accordance with an approved groundwater monitoring plan. The owner shall be responsible for developing an approved groundwater monitoring system.

(c) Alterations and expansions: The Mayor and Council shall be notified in writing prior to the expansion, alteration, or modification of any activity that is the subject of this article. Approval by the Mayor and Council is required before the activity can begin. The landowner or representative shall submit an explanation of the change in activity and the information as required by this article and as may be required by any state or federal regulation. The Mayor and Council must grant any variance to the provisions of this article, provided that a strict interpretation of the article deprives such property of privileges or safety enjoyed by other similarly situated property within the wellhead protection district. Any application for a variance must be presented to the Mayor and Council.

(Code 1977, § 106-6; Ord. No. 2004-11, 6-11-2004)

Chapter 31

RESERVED

Chapter 32

VEHICLES AND TRAFFIC*

Article I. In General

Secs. 32-1—32-18. Reserved.

Article II. Truck Routes

Sec. 32-19. Administrative authority.
Sec. 32-20. Method of determination.
Sec. 32-21. Definitions.
Sec. 32-22. Violations and penalties.
Secs. 32-23—32-47. Reserved.

Article III. Bicycles and Play Vehicles

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Secs. 32-48—32-67. Reserved.

Division 2. Bicycles

Sec. 32-68. Definitions.
Sec. 32-69. Violations and penalties.
Sec. 32-70. Control of bicycle and compliance with traffic regulations required.
Sec. 32-71. Riding on sidewalks prohibited.
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Division 3. Skateboards and Play Vehicles

Sec. 32-103. Definitions.
Sec. 32-104. Enforcement; violations and penalties.
Sec. 32-105. Restricted locations.
Sec. 32-106. Permitted areas of operation.
Sec. 32-107. Restricted acts.
Secs. 32-108—32-127. Reserved.

***Charter reference**—Authority to regulate vehicles, § C5-1B(53).

State law references—Vehicle laws, Md. Transportation Code Ann. § 11-101 et seq.; rules of the road, Md. Transportation Code Ann. § 21-101 et seq.; power of town, Md. Transportation Code Ann. § 25-102.

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Article IV. Abandoned and Inoperable Vehicles

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Sec. 32-128. Violations and penalties.

Secs. 32-129—32-154. Reserved.

Division 2. Parking

Sec. 32-155. Prohibition.

Sec. 32-156. Lawful parking.

Sec. 32-157. Painted curbs.

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Sec. 32-159. Parking meters.

Sec. 32-160. Impoundment.

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Division 3. Abandonment

Sec. 32-189. Abandonment prohibited.

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Article V. Storage on Private Property

Sec. 32-217. Violations and penalties.

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Sec. 32-219. Notice.

Sec. 32-220. Removal and sale of vehicle.

Sec. 32-221. Where storage permitted.

Sec. 32-222. Hearing.

Article VI. Use of Speed Cameras in Designated School Zones

Sec. 32-223. School zones designated.

Sec. 32-224. Definitions.

Sec. 32-225. Use of speed monitoring systems authorized;
activation and operation.

Sec. 32-226. Violations and penalties.

ARTICLE I. IN GENERAL

Secs. 32-1—32-18. Reserved.

ARTICLE II. TRUCK ROUTES***Sec. 32-19. Administrative authority.**

The Mayor and Council shall have the right to establish truck routes within the corporate limits of the town and shall further have the right to prohibit the traversing of trucks as herein defined from any street in the town by appropriate signs and marking of said streets.

(Code 1977, § 100-1; Ord. of 11-7-1977)

Sec. 32-20. Method of determination.

The method of determining said truck routes shall be by resolution duly passed from time to time after one public hearing duly advertised in a newspaper of general circulation in the town.

(Code 1977, § 100-2; Ord. of 11-7-1977)

Sec. 32-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Truck means any vehicle, regardless of the number of axles thereon, with a gross vehicle weight rating (GVWR) exceeding 14,000 pounds (7 tons). The term "truck" shall exclude any vehicle otherwise prohibited making local deliveries to any business or residence located on the street prohibited.

(Code 1977, § 100-3; Ord. of 11-7-1977; Ord. No. 2017-01, 5-8-2017)

***State law reference**—Authority to regulate truck traffic through the town, Md. Transportation Code Ann. § 25-102(11).

Sec. 32-22. Violations and penalties.

Any violation of the provisions of this article shall be punishable, upon conviction, as a misdemeanor, as provided in section 1-23.

(Code 1977, § 100-4; Ord. of 11-7-1977; Ord. No. 2017-01, 5-8-2017)

Secs. 32-23—32-47. Reserved.

ARTICLE III. BICYCLES AND PLAY VEHICLES†**DIVISION 1. GENERALLY**

Secs. 32-48—32-67. Reserved.

DIVISION 2. BICYCLES**Sec. 32-68. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bicycle means any conventional vehicle of one, two or more wheels propelled by the rider or as said term is defined in Md. Transportation Code Ann. § 11-104.

Motor vehicle means motorized minibikes, motorized bikes, motor scooters, go-carts or other mechanically propelled vehicles of a similar nature, except bicycles as defined herein or in Md. Transportation Code Ann. § 11-104.

(Code 1977, § 34-1; Ord. of 5-16-1977)

State law references—Definition of bicycle, Md. Transportation Code Ann. § 11-104; definition of motorized minibike, etc., Md. Transportation Code Ann. §§ 11-134.1, 11-134.4, 11-134.5.

†State law reference—Bicycles and play vehicles, Md. Transportation Code Ann. § 12-1201 et seq.

Sec. 32-69. Violations and penalties.

Any violation of the provisions of this division shall be punishable, upon conviction, as a misdemeanor as provided in section 1-23.
(Code 1977, § 34-5; Ord. of 5-16-1977)

Sec. 32-70. Control of bicycle and compliance with traffic regulations required.

The rider or operator of a bicycle on any street of the town shall have said vehicle under proper control at all times and shall not operate or propel the bicycle on any of the streets of the town recklessly or at a rate of speed greater than is reasonable and proper and shall not use the streets or highways so as to endanger the property of any person. All operators of bicycles shall at all times comply with all other traffic regulations in force in the town and the traffic regulations for the state.

(Code 1977, § 34-2; Ord. of 5-16-1977)

State law reference—Vehicle laws, Md. Transportation Code Ann. § 11-101 et seq.

Sec. 32-71. Riding on sidewalks prohibited.

It shall be unlawful for any person to ride any bicycle or motor vehicle as defined in this chapter on or over the public sidewalks of the town.
(Code 1977, § 34-3; Ord. of 5-16-1977)

Sec. 32-72. Riding in parks and playgrounds.

The rider or operator of a bicycle in the parks and playgrounds owned and operated by the town shall have said vehicle under proper control at all times and shall not operate or propel the bicycle recklessly or at a rate of speed greater than is reasonable and proper and shall not operate the bicycle so as to endanger the well-being or property of any person or the facilities, equipment and property of the town.
(Code 1977, § 34-4; Ord. of 5-16-1977; Ord. No. 2017-04, 7-10-2017)

Secs. 32-73—32-102. Reserved.**DIVISION 3. SKATEBOARDS AND PLAY VEHICLES****Sec. 32-103. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Controlled parking area means a land surface or building structure owned, leased or rented by the town, designated for public parking.

Play vehicle means a one-, two-, three-or-more-wheeled vehicle, propelled exclusively by human power and not defined as a "bicycle" in Md. Transportation Code Ann. § 11-104 and shall include, without limitation, skateboards and soapbox or similar human-powered vehicles. Unless otherwise specified herein, the term "play vehicles" shall not include roller skates, in-line skates, tricycles or other three-or-more-wheeled toys commonly used by small children under the supervision of an older responsible person, nor shall it include any special vehicles, motorized or otherwise, used by the handicapped, subject to the provisions of Md. Transportation Code Ann. § 21-1103(c).

Public way means all streets, roads, highways, public thoroughfares, lanes and alleys which are at present or may be in the future within the town.

Sidewalk means that portion of a street right-of-way or a path abutting or parallel to a street right-of-way which is paved with concrete or similar material and intended specifically for pedestrian traffic.

(Code 1977, § 90-1; Ord. No. 1996-2, 3-11-1996)

Sec. 32-104. Enforcement; violations and penalties.

(a) In the event that any law enforcement officer having jurisdiction within the town corporate limits observes any child operating a play vehicle in violation of this article or the Md. Transportation Code Ann. § 21-1103, the officer may confiscate the play vehicle operated by said child and shall return the play vehicle only to the parent or legal guardian of said child. The officer shall be authorized to confiscate the play vehicle under the provisions of this chapter whether or not he or she issues a citation for a violation of this chapter or Md. Transportation Code Ann. § 21-1103.

(b) In the event that any law enforcement officer having jurisdiction within the town corporate limits observes any adult operating a play vehicle in violation of this chapter or Md. Transportation Code Ann. § 21-1103, the officer may confiscate the play vehicle operated by said adult and shall return the play vehicle after a period of not less than 24 hours, and only upon the personal appearance of the violator at the town police department office or police department substation to request such return. The officer shall be authorized to confiscate the play vehicle under the provisions of this article whether or not he or she issues a citation for a violation of this chapter or Md. Transportation Code Ann. § 21-1103.
(Code 1977, § 90-5; Ord. No. 1996-2, 3-11-1996)

Sec. 32-105. Restricted locations.

It shall be unlawful for any person to operate a play vehicle as defined by this article on United States Route 113, Maryland Route 346 (Ocean City Boulevard), Maryland Route 818 (Main Street), Maryland Route 376 (Bay Street), Maryland Route 374 (Broad Street) and William Street and on any controlled parking area, public way or other public property of any nature whatsoever in the downtown commercial district.
(Code 1977, § 90-2; Ord. No. 1996-2, 3-11-1996)

Sec. 32-106. Permitted areas of operation.

(a) It shall be lawful for any person to operate a play vehicle on sidewalks adjacent to the operator's own residence.

(b) It shall be lawful for any person to operate a play vehicle on facilities provided by the town for the operation of play vehicles.

(c) It shall be lawful for any person to operate a play vehicle for specific events in any public area designated for that purpose at a time and location approved or sanctioned by the Mayor and Council.

(Code 1977, § 90-3; Ord. No. 1996-2, 3-11-1996)

Sec. 32-107. Restricted acts.

(a) It shall be unlawful for any person to operate a play vehicle on any sidewalk within the town when such action in any way impedes the free movement of pedestrians thereon, interrupts the peace and tranquility of another or endangers the safety of the operator or another.

(b) It shall be unlawful for any person to operate a play vehicle on any public way within the town when such action in any way impedes traffic thereon or endangers the safety of the operator or another.

(Code 1977, § 90-4; Ord. No. 1996-2, 3-11-1996)

Secs. 32-108—32-127. Reserved.**ARTICLE IV. ABANDONED AND INOPERABLE VEHICLES*****DIVISION 1. GENERALLY****Sec. 32-128. Violations and penalties.**

Any violation of the provisions of this article shall be punishable by a parking citation issued

***Charter reference**—Authority to regulate parking and vehicles, § C5-1B(53).

State law reference—Abandoned vehicles, Md. Transportation Code Ann. § 25-201 et seq.

by an officer as defined by Md. Transportation Code Ann. §§ 26-303 and 26-305. The procedures set forth in Md. Transportation Code Ann. §§ 26-303 and 26-305 shall apply to all parking citations issued. The maximum fine for any parking citation shall be \$250.00. Any person receiving a parking citation shall have the right to pay the parking citation fine directly to the town in amounts approved by the Mayor and Council pursuant to the aforesaid Md. Transportation Code Ann. § 26-303(a).
(Code of 1977, § 99-7; Ord. of 3-20-1978; Ord. No. 2003-10, 6-26-2003)

State law references—Selection of payment or trial, Md. Transportation Code Ann. § 26-303; parking violation effects, Md. Transportation Code Ann. § 26-305.

Secs. 32-129—32-154. Reserved.

DIVISION 2. PARKING*

Sec. 32-155. Prohibition.

Parking on public streets, ways or alleys within the corporate limits of the town is hereby prohibited except in the manner and location described in this division.
(Code 1977, § 99-1; Ord. of 5-5-1975)

Sec. 32-156. Lawful parking.

It shall be lawful for vehicles to be parked on any street, way or alley of the town where no restriction against said parking is posted or clearly indicated by painted curbs, posted signs or otherwise, provided that said parking complies with all other provisions of this article.
(Code 1977, § 99-2; Ord. of 5-5-1975)

***Charter reference**—Authority to regulate parking and vehicles, § C5-1B(53).

State law references—Abandonment of vehicles, Md. Transportation Code Ann. § 25-201 et seq.; parking regulations, Md. Transportation Code Ann. § 26-301 et seq.

Sec. 32-157. Painted curbs.

It shall be unlawful at any time for any vehicle to be parked in an area abutting on a red painted curb, and it shall also be unlawful for any vehicle to fail to comply with posted parking restrictions within an area abutting a yellow painted curb.
(Code 1977, § 99-3; Ord. of 5-5-1975)

Sec. 32-158. Observance of signs and markings.

It shall be unlawful for any vehicle to be parked on or in any area where parking is permitted, except in the manner designated by signs posted thereon or markings placed on the street by the town.
(Code 1977, § 99-5; Ord. of 5-5-1975)

Sec. 32-159. Parking meters.

The town or its proper agents may install parking meters on any public street, way or alley within the town, and it shall be unlawful to park in whole or in part in the designated parking meter area in violation of the terms set forth on said meters.
(Code 1977, § 99-6; Ord. of 5-5-1975)

Charter reference—Authority to install parking meters, § C5-1B(43).

Sec. 32-160. Impoundment.

Any vehicle illegally parked or standing on any street or public way in the town in violation of the provisions of this division, is hereby declared to be a public nuisance, and the police department, at its discretion, is hereby authorized to impound or have impounded the violating vehicle and require, in addition to the fine stated in section 32-128, the payment of hauling costs and storage fees as may be determined, to be paid by the owner or agent of the owner of the impounded vehicle before said vehicle will be released to the owner or agent.
(Code 1977, § 99-8; Ord. of 5-5-1975; Ord. No. 1997-8, 5-26-1997)

State law reference—Authority to adopt regulations regarding impounding and towing of vehicles, Md. Transportation Code Ann. § 26-301.

Secs. 32-161—32-188. Reserved.**DIVISION 3. ABANDONMENT****Sec. 32-189. Abandonment prohibited.**

It shall be unlawful at any time for any abandoned, unlicensed or inoperable motor vehicle or unused part or parts thereof to be located on any street, way or alley of the town, and the placing of or permissive or voluntary maintenance of any such vehicle is hereby declared a nuisance and said vehicle is subject to the provisions regarding violations and penalties and impounding as set forth in sections 32-128 and 32-160.

(Code 1977, § 99-4; Ord. of 5-5-1975)

State law reference—Abandoning vehicles prohibited, Md. Transportation Code § 25-202.

Secs. 32-190—32-216. Reserved.**ARTICLE V. STORAGE ON PRIVATE PROPERTY*****Sec. 32-217. Violations and penalties.**

Any person who shall violate any provisions of this article shall be guilty of a municipal infraction and shall be fined the sum of \$200.00 for a single violation and the sum of \$400.00 for each repeat or continuing violation.

(Code 1977, § 99-13; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999; Ord. No. 2011-07, 9-12-2011)

Sec. 32-218. Prohibition.

(a) It shall be unlawful for any person to park or allow to be parked or to store or allow to be stored any vehicle which is dismantled, wrecked,

***Charter reference**—Nuisance abatement authority, § C5-1B(40).

State law reference—Nuisances on private property authority to abate, Md. Ann. Code art. 23A, § 2(b)(15).

inoperable or not bearing current license plates upon property not zoned for such storage within the corporate limits of the town unless such vehicle is stored in an enclosed garage so as not to be visible from any public way. Any such vehicle is hereby declared a nuisance.

(b) An inoperable vehicle shall be defined as a vehicle which cannot be driven upon the public streets for reasons including but not limited to being unlicensed, wrecked, abandoned, in a state of disrepair or incapable of being moved under its own power.

(Code 1977, § 99-9; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999; Ord. No. 2011-07, 9-12-2011)

Sec. 32-219. Notice.

Upon discovering the existence of a nuisance as defined by section 32-218, a designated official of the town shall deliver to the owner or tenant of any property on which said nuisance is maintained a notice as hereinafter described. Delivery may be by delivery to the person to be served or by mailing the notice to the person to be served by certified mail requesting "Restricted Delivery. Show to whom, date, address of delivery." In the event that the whereabouts of the owner or tenant is unknown and that reasonable efforts have been made in good faith to locate the owner or tenant, then the town shall mail the notice to the owner or tenant's last known address and shall post the notice on the vehicle. The notice shall be substantially as follows:

"The owner or tenant of the property at or adjacent to _____ Street in Berlin, Maryland: There is observed upon said property a vehicle which is dismantled, wrecked or not bearing current license plates, which is a violation pursuant to section 32-218 of the Berlin Code. You are hereby notified to remove said vehicle from the property within 15 days of the receipt of the notice or the posting of the notice as the case may be. If you do not remove the vehicle, the Town of

Berlin shall remove the vehicle and sell the vehicle at a public auction pursuant to section 32-220 of the Berlin Code. You have the right to request a hearing before the housing board of review as described in section 6-126(b) of the Berlin Code by filing a petition within ten days of the delivery or posting of the notice, as the case may be."

(Code 1977, § 99-10; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999)

Sec. 32-220. Removal and sale of vehicle.

If any vehicle remains upon the property in violation of this article, after notice or hearing, as the case may be, the agent or agents of the town shall enter upon said property with such force and with such vehicle or vehicles or apparatus as may be deemed necessary and remove the offending vehicle or vehicles thereof to an opened storage area maintained or provided by the town. Thereafter, following at least 15 days' public notice in some newspaper published in the county, and having a substantial circulation in the town, said vehicle or vehicles may be sold at public auction and the proceeds of the sale applied to the cost and expenses of removal, towing, storage, advertising and sale and the balance paid over the owner of the vehicle sold after proof of ownership; provided, however, that pending any such sale, the owner of such vehicle, upon proof of ownership, may repossess the vehicle upon paying all costs to the town for removing, towing, storage, advertising and other costs incurred prior to any such sale.

(Code 1977, § 99-11; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999; Ord. No. 2011-07, 9-12-2011)

Sec. 32-221. Where storage permitted.

Nothing herein shall prevent the keeping of such vehicles in such zones, if any, wherein such use is permitted by chapter 108, zoning. (Code 1977, § 99-12; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999; Ord. No. 2011-07, 9-12-2011)

Sec. 32-222. Hearing.

Any person affected by a notice issued in connection with the enforcement of this article may request a hearing pursuant to section 6-126(b) of the Berlin Code. The petition shall be filed within ten days after such notice is served or posted, as the case may be. The written petition shall set forth the person's name, address, telephone number and a brief statement of the grounds for the hearing. The procedure set forth in section 6-126(b) of the Berlin Code shall be followed for any hearings.

(Code 1977, § 99-14; Ord. of 5-5-1975; Ord. No. 1999-23, 12-27-1999; Ord. No. 2011-07, 9-12-2011)

ARTICLE VI. USE OF SPEED CAMERAS IN DESIGNATED SCHOOL ZONES

Sec. 32-223. School zones designated.

(a) Subject to compliance with all applicable provisions of § 21-803.1 of the Transportation Article of the Annotated Code of Maryland, the mayor and council designate the following roads as school zones:

- (1) *Buckingham Elementary School Zone:* All public roads located within a half-mile radius of Buckingham Elementary School, which is located at 100 Buckingham Road, Berlin, Maryland.
- (2) *Berlin Intermediate School Zone:* All public roads located within a half-mile radius of Berlin Intermediate School, which is located at 309 Franklin Avenue, Berlin, Maryland.
- (3) *Stephen Decatur Middle School Zone:* All public roads located within a half-mile radius of Stephen Decatur Middle School, which is located at 9815 Seahawk Road, Berlin, Maryland.
- (4) *Stephen Decatur High School Zone:* All public roads, except for Route 50, located within a half-mile radius of Ste-

phen Decatur High School, which is located at 9913 Seahawk Road, Berlin, Maryland.

- (5) *Worcester Preparatory School Zone*: All public roads, except for Route 113, located within a half-mile radius of Worcester Preparatory School, which is located at 508 South Main Street, Berlin, Maryland.

(b) The maximum speed limits on municipal roads in any school zone shall be the posted speed limit.

(Ord. No. 2023-05, 7-10-2023)

Sec. 32-224. Definitions.

Terms used in this article are defined in § 21-809(A) of the Transportation Article of the Maryland Annotated Code, as may be amended from time to time, shall have the same meanings in this article.

(Ord. No. 2023-05, 7-10-2023)

Sec. 32-225. Use of speed monitoring systems authorized; activation and operation.

(a) Speed camera enforcement, using speed monitoring systems, is authorized at locations within school zones in the town.

(b) Before activating any unmanned stationary school zone monitoring system(s), the town shall:

- (1) Publish notice of the location(s) of the speed monitoring system(s) on the town website and in a newspaper of general circulation within the town; and
- (2) Ensure that each sign that designates a school zone indicates that speed monitoring systems are in use in school zones.

(c) The school zone speed monitoring system may only operate Monday through Friday between the hours of 6:00 a.m. and 8:00 p.m.

(d) For 30 days after the first speed monitoring system is activated in the town, a violation recorded by such system may only be enforced by the issuance of a warning.

(e) Subject to compliance with all applicable provisions of § 21-809 of the Transportation Article of the Annotated Code of Maryland, the town may:

- (1) Acquire and/or use speed monitoring systems provided by a vendor for speed camera enforcement within the town's jurisdiction; and
- (2) Enter into appropriate agreements with the vendor for the furnishing of speed monitoring system services associated with the speed monitoring system enforcement program.

(f) The speed monitoring system enforcement program in the town shall be conducted in compliance with all applicable provisions of § 21-809 of the Transportation Article of the Annotated Code of Maryland, as may be amended from time to time, and other applicable law.

(Ord. No. 2023-05, 7-10-2023)

Sec. 32-226. Violations and penalties.

(a) The owner or driver of a motor vehicle is subject to a civil penalty if the motor vehicle is recorded by a speed monitoring system while being operated in violation of this article.

- (1) If the citation alleges that the driver of the motor vehicle exceeded the speed limit by between 12 and 15, inclusive, miles per hour, \$40.00;
- (2) If the citation alleges that the driver of the motor vehicle exceeded the speed limit by between 16 and 19, inclusive, miles per hour, \$70.00;
- (3) If the citation alleges that the driver of the motor vehicle exceeded the speed limit by between 20 and 29, inclusive, miles per hour, \$120.00;

- (4) If the citation alleges that the driver of the motor vehicle exceeded the speed limit by between 30 and 39, inclusive, miles per hour, \$230.00; and
- (5) If the citation alleges that the driver of the motor vehicle exceeded the speed limit by 40 miles per hour or more, \$425.00.

(Ord. No. 2023-05, 7-10-2023; Ord. No. 2025-05, 11-10-2025)

Chapters 33—99

RESERVED

Subpart B

LAND DEVELOPMENT REGULATIONS

Chapter 100

ADMINISTRATION

Article I. In General

Secs. 100-1—100-18. Reserved.

Article II. Boards; Committees; Commissions

Division 1. Generally

Secs. 100-19—100-39. Reserved.

Division 2. Planning and Zoning Commission

Sec. 100-40. Commission established; statutory provisions.

Secs. 100-41—100-68. Reserved.

Article III. Fees and Funds

Division 1. Generally

Secs. 100-69—100-94. Reserved.

Division 2. Development Impact Fees

Sec. 100-95. Definitions.

Sec. 100-96. Applicability of fee.

Sec. 100-97. Imposition of fee.

Sec. 100-98. Calculation of fee.

Sec. 100-99. Payment of impact fee; collection of unpaid fees.

Sec. 100-100. Administration of impact fee.

Sec. 100-101. Use of funds.

Sec. 100-102. Bonding of excess facility projects.

Sec. 100-103. Effect of impact fee on zoning and subdivision regulations.

Sec. 100-104. Impact fee as additional and supplemental requirement.

ARTICLE I. IN GENERAL**Secs. 100-1—100-18. Reserved.****ARTICLE II. BOARDS; COMMITTEES;
COMMISSIONS****DIVISION 1. GENERALLY****Secs. 100-19—100-39. Reserved.****DIVISION 2. PLANNING AND ZONING
COMMISSION*****Sec. 100-40. Commission established; statutory provisions.**

The Mayor and Council do hereby establish the town planning and zoning commission, which shall consist of seven members. The commission shall be subject to all of the provisions of Md. Ann. Code art. 66B, § 3.01 et seq. (Code 1977, § 20-1; Ord. of 12-31-1974; Ord. No. 2004-7, 5-10-2004)

State law reference—Planning commission created as provided in Md. Ann. Code art. 66B, § 3.01 et seq.

Secs. 100-41—100-68. Reserved.**ARTICLE III. FEES AND FUNDS****DIVISION 1. GENERALLY****Secs. 100-69—100-94. Reserved.****DIVISION 2. DEVELOPMENT IMPACT FEES****Sec. 100-95. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings

***State law reference**—Planning commission, Md. Ann. Code art. 66B, § 3.01 et seq.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Building permit means the permit required by the town for newly constructed buildings, structures and additions.

Capital budget means a separate budget dedicated to financing capital improvements.

Capital improvements means any and/or all of the following and including acquisition of land, construction, improvements, equipping and installing of same and which facilities are identified in the capital improvements plan to be financed by the imposition of an impact fee:

- (1) Parks and recreational facilities.
- (2) Water treatment and distribution facilities.
- (3) Public safety facilities.
- (4) Public works facilities.
- (5) Other facilities, the costs of which may be substantially attributed to new development.

Commercial development means any development resulting in newly constructed commercial units.

Costs means the monetary value of a capital project to include administrative, legal, planning, engineering and construction costs.

Development means activity that requires issuance of a building permit for newly constructed buildings.

Impact fee means any charge, fee or assessment levied as a condition of issuance of a building permit when any portion of the revenues collected is intended to fund any portion of the costs of capital improvements on any public facilities.

Residential development means any development resulting in newly constructed residential units.

Site means the land on which development takes place.

Zoning districts means those areas designated in the zoning ordinance as being reserved for specific land uses, subject to development and use regulations specified in the ordinance.

Zoning ordinance means the official adopted zoning map and text regulating all the development and land use in the town.

(Code 1977, § 42-1; Ord. No. 2005-11, 11-28-2005)

Sec. 100-96. Applicability of fee.

This chapter shall be uniformly applicable to development that occurs within or is annexed into the boundaries of the town.

(Code 1977, § 42-2; Ord. No. 2005-11, 11-28-2005)

Sec. 100-97. Imposition of fee.

(a) When an application is filed with the town for a newly constructed building or structure requiring the issuance of a building permit by the town, an impact fee is hereby levied and imposed on the real property on which the building or structure is or is to be located.

(b) From and after the effective date of the ordinance from which this article is derived, when previously developed property is annexed into the town, an impact fee will be imposed for any lot on which there is a dwelling at the time the annexation resolution is adopted by the Mayor and Council. Said fee shall be paid as may be provided for in the resolution annexing the property.

(c) Impact fees shall not exceed the cost of providing capital improvements for which need is reasonably attributable to those developments or newly annexed areas that pay the fees. The fees shall be spent on new or enlarged capital improvements that reasonably benefit those developments or newly annexed areas that pay the fees.

(d) Impact fees that are assessed against new development or newly annexed areas shall be assessed in such a manner that any new development or annexation having the same impact on capital facilities shall be assessed the same impact fee.

(Code 1977, § 42-3; Ord. No. 2005-11, 11-28-2005)

Sec. 100-98. Calculation of fee.

The town shall require an impact fee of \$2,000.00 per equivalent dwelling unit (EDU) for each building permit for new residential construction, and \$1.00 per square foot for commercial construction applied for within the town limits. The amount of the impact fee may be modified by the Mayor and Council by resolution at a public hearing.

(Code 1977, § 42-4; Ord. No. 2005-11, 11-28-2005)

Sec. 100-99. Payment of impact fee; collection of unpaid fees.

(a) The impact fee shall be paid by the owner to the town prior to the issuance of a building permit. The amount of the impact fee assessment shall be set as of the date of the application for the building permit. A building permit shall not be issued until any applicable impact fee has been paid.

(b) Unpaid impact fees are a lien against the real property upon which a building or structure is to be erected and shall be levied, collected and enforced in the same manner as are town real property taxes and shall have the same priority and bear the same interest and penalties as town real property taxes for lien purposes.

(c) The impact fee imposed by this division is separate from and in addition to any other fees which may be imposed by any federal, state or county governmental agency.

(Code 1977, § 42-5; Ord. No. 2005-11, 11-28-2005)

Sec. 100-100. Administration of impact fee.

The town shall establish separate accounts and maintain records for each such account whereby impact fees collected can be segregated.

(Code 1977, § 42-6; Ord. No. 2005-11, 11-28-2005)

Sec. 100-101. Use of funds.

(a) All impact fees collected under this article shall be used solely for financing, in whole or in part, the capital costs of public facilities, services, improvements and equipment required to accommodate and/or benefit growth, construction or development, with the purpose that new growth, construction and development pay a proportionate fair share of the costs and expenses.

(b) Nothing in this article shall release, relieve or in any way decrease a developer's obligation for assuming sole responsibility for financing the construction of all on-site and off-site improvements that are determined and are required by the town or other applicable governmental authority to be constructed in accordance with approved plans, public works agreement and related documents.

(c) Nothing in this article shall release, relieve or in any way decrease a developer's obligation to the town for full payment of any and all other required fees and assessments, mandatory conveyances of land, execution of documents and for meeting any and all other requirements that are specified in this Code.

(d) Nothing in this article shall preclude the use of funds by the town from other sources to supplement or augment any special capital benefit assessment fees collected under this article. (Code 1977, § 42-7; Ord. No. 2005-11, 11-28-2005)

Sec. 100-102. Bonding of excess facility projects.

The town may issue bonds, revenue certificates and other obligations of indebtedness in

such manner and subject to such limitations as may be provided by law in furtherance of the provision of capital improvement projects. Funds pledged toward retirement of bonds, revenue certificates or other obligation of indebtedness for such projects may include impact fees and other town revenues as may be allocated by the Mayor and Council of the town. Impact fees paid pursuant to this article, however, shall be restricted to use solely and exclusively for financing directly, or as a pledge against bonds, revenue certificates and other obligations of indebtedness for the cost of capital improvements as specified herein.

(Code 1977, § 42-8; Ord. No. 2005-11, 11-28-2005)

Sec. 100-103. Effect of impact fee on zoning and subdivision regulations.

This article shall not affect, in any manner, the permissible use of property, density of development, design and improvement standards and requirements or any other aspect of the development of land or provision of capital improvements subject to chapter 108, zoning, or the regulations of the town which shall be operative and remain in full force and effect without limitation with respect to all such development.

(Code 1977, § 42-9; Ord. No. 2005-11, 11-28-2005)

Sec. 100-104. Impact fee as additional and supplemental requirement.

The impact fee is additional and supplemental to and not in substitution of any other requirements imposed by the town on the development of land or the issuance of building permits. It is intended to be consistent with and to further the objectives and policies of the comprehensive plan, the capital improvements plan and other town policies, ordinances and resolutions by which the town seeks to ensure the provision of public facilities in conjunction with the development of land. In no event shall a property owner

be obligated to pay for capital improvements in an amount in excess of the amount required pursuant to this article, but provided that a property owner may be required to pay, pursuant to town ordinances, regulations or policies, for other capital improvements in addition to the impact fee for capital improvements as specified herein. (Code 1977, § 42-10; Ord. No. 2005-11, 11-28-2005)

Chapter 101

RESERVED

Chapter 102

FLOODPLAIN MANAGEMENT*

Article I. General Provisions

- Sec. 102-1. Findings.
- Sec. 102-2. Statutory authorization.
- Sec. 102-3. Statement of purpose.
- Sec. 102-4. Areas to which these regulations apply.
- Sec. 102-5. Basis for establishing special flood hazard areas and BFEs.
- Sec. 102-6. Abrogation and greater restrictions.
- Sec. 102-7. Interpretation.
- Sec. 102-8. Warning and disclaimer of liability.
- Sec. 102-9. Severability.
- Sec. 102-10. Definitions.
- Secs. 102-11—102-20. Reserved.

Article II. Administration

- Sec. 102-21. Designation of the floodplain administrator.
- Sec. 102-22. Duties and responsibilities of the floodplain administrator.
- Sec. 102-23. Use and interpretation of FIRMs.
- Sec. 102-24. Permits required and expiration.
- Sec. 102-25. Application required.
- Sec. 102-26. Review of application.
- Sec. 102-27. Inspections.
- Sec. 102-28. Submissions required prior to final inspection.
- Secs. 102-29—102-40. Reserved.

Article III. Requirements in All Flood Hazard Areas

- Sec. 102-41. Application of requirements.
- Sec. 102-42. Subdivision proposals and development proposals.
- Sec. 102-43. Protection of water supply and sanitary sewage systems.
- Sec. 102-44. Buildings and structures.
- Sec. 102-45. Placement of fill.
- Sec. 102-46. Historic structures.

***Editor's note**—Ord. No. 2015-04, adopted July 13, 2015, repealed the former Ch. 102, §§ 102-1—102-161, and enacted a new Ch. 102 as set out herein. The former Ch. 102 pertained to similar subject matter and derived from Code 1977, §§ 51-1, 51-4—51-21; and Ord. No. 92-5, adopted Apr. 13, 1992.

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- Sec. 102-47. Manufactured homes.
- Sec. 102-48. Recreational vehicles.
- Sec. 102-49. Critical and essential facilities.
- Sec. 102-50. Temporary structures and temporary storage.
- Sec. 102-51. Gas or liquid storage tanks.
- Sec. 102-52. Functionally dependent uses.
- Secs. 102-53—102-70. Reserved.

Article IV. Requirements in Flood Hazard Areas

- Sec. 102-71. General requirements.
- Sec. 102-72. Flood protection setbacks.
- Sec. 102-73. Development that affects flood-carrying capacity of nontidal waters of the state.
- Sec. 102-74. Residential structures and residential portions of mixed use structures.
- Sec. 102-75. Nonresidential structures and nonresidential portions of mixed use structures.
- Sec. 102-76. Horizontal additions.
- Sec. 102-77. Accessory structures.
- Secs. 102-78—102-90. Reserved.

Article V. Reserved

- Secs. 102-91—102-100. Reserved.

Article VI. Variances

- Sec. 102-101. General.
- Sec. 102-102. Application for a variance.
- Sec. 102-103. Considerations for variances.
- Sec. 102-104. Limitations for granting variances.
- Secs. 102-105—102-120. Reserved.

Article VII. Enforcement

- Sec. 102-121. Compliance required.
- Sec. 102-122. Notice of violation and stop work order.
- Sec. 102-123. Violations and penalties.
- Secs. 102-124—102-140. Reserved.

Article VIII. Subsequent Amendments

- Sec. 102-141. Subsequent amendments.

ARTICLE I. GENERAL PROVISIONS**Sec. 102-1. Findings.**

The Federal Emergency Management Agency has identified special flood hazard areas within the boundaries of the Town of Berlin. Special flood hazard areas are subject to periodic inundation which may result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare. Structures that are inadequately elevated, improperly floodproofed, or otherwise unprotected from flood damage also contribute to flood losses.

The Town of Berlin, by resolution, agreed to meet the requirements of the National Flood Insurance Program and was accepted for participation in the program on September 18, 1986. As of that date, or as of September 18, 1986, the initial effective date of the Town of Berlin Flood Insurance Rate Map, all development and new construction as defined herein, are to be compliant with these regulations.

(Ord. No. 2015-04, Att.(§ 1.1), 7-13-2015)

Sec. 102-2. Statutory authorization.

The Maryland General Assembly, in Md. Code Ann., Land Use Article, Title 4, has established as policy of the state that the orderly development and use of land and structures requires comprehensive regulation through the implementation of planning and zoning control, and that planning and zoning controls shall be implemented by local government in order to, among other purposes, secure the public safety, promote health and general welfare, and promote the conservation of natural resources. Therefore, the Mayor and Council of the Town of Berlin does hereby adopt the following floodplain management regulations.

(Ord. No. 2015-04, Att.(§ 1.2), 7-13-2015)

Sec. 102-3. Statement of purpose.

It is the purpose of these regulations to promote the public health, safety and general welfare, and to:

- (A) Protect human life, health and welfare;
- (B) Encourage the utilization of appropriate construction practices in order to prevent or minimize flood damage in the future;
- (C) Minimize flooding of water supply and sanitary sewage disposal systems;
- (D) Maintain natural drainage;
- (E) Reduce financial burdens imposed on the community, its governmental units and its residents, by discouraging unwise design and construction of development in areas subject to flooding;
- (F) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;
- (G) Minimize prolonged business interruptions;
- (H) Minimize damage to public facilities and other utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges;
- (I) Reinforce that those who build in and occupy special flood hazard areas should assume responsibility for their actions;
- (J) Minimize the impact of development on adjacent properties within and near flood-prone areas;
- (K) Provide that the flood storage and conveyance functions of floodplains are maintained;
- (L) Minimize the impact of development on the natural and beneficial functions of floodplains;

(M) Prevent floodplain uses that are either hazardous or environmentally incompatible; and

(N) Meet community participation requirements of the National Flood Insurance Program as set forth in the Code of Federal Regulations (CFR) at 44 CFR Section 59.22.

(Ord. No. 2015-04, Att.(§ 1.3), 7-13-2015)

Sec. 102-4. Areas to which these regulations apply.

These regulations shall apply to all special flood hazard areas within the jurisdiction of the Town of Berlin, and identified in section 102-5. (Ord. No. 2015-04, Att.(§ 1.4), 7-13-2015)

Sec. 102-5. Basis for establishing special flood hazard areas and BFEs.

(A) For the purposes of these regulations, the minimum basis for establishing special flood hazard areas and base flood elevations is the Flood Insurance Study for Worcester County, Maryland And Incorporated Areas dated July 16, 2015, or the most recent revision thereof, and the accompanying flood insurance rate map(s) and all subsequent amendments and revisions to the FIRMs. The FIS and FIRMs are retained on file and available to the public at Town Hall.

(B) Where field surveyed topography or digital topography indicates that ground elevations are below the closest applicable base flood elevation, even in areas not delineated as a special flood hazard on the FIRM, the area shall be considered as special flood hazard area.

(C) To establish base flood elevations in special flood hazard areas that do not have such elevations shown on the FIRM, the floodplain administrator may provide the best available data for base flood elevations, may require the applicant to obtain available information from federal, state or other sources, or may require the applicant to establish special flood hazard

areas and base flood elevations as set forth in section 102-23, section 102-24, and section 102-25 of these regulations.

(Ord. No. 2015-04, Att.(§ 1.5), 7-13-2015)

Sec. 102-6. Abrogation and greater restrictions.

These regulations are not intended to repeal or abrogate any existing regulations and ordinances, including subdivision regulations, zoning ordinances, building codes, or any existing easements, covenants, or deed restrictions. In the event of a conflict between these regulations and any other ordinance, the more restrictive shall govern.

(Ord. No. 2015-04, Att.(§ 1.6), 7-13-2015)

Sec. 102-7. Interpretation.

In the interpretation and application of these regulations, all provisions shall be:

- (A) Considered as minimum requirements;
- (B) Liberally construed in favor of the governing body; and,
- (C) Deemed neither to limit nor repeal any other powers granted under State statutes.

Notes referencing publications of the Federal Emergency Management Agency refer to the most recent edition of those publications, are intended only as guidance, and do not bind or alter the authority of the floodplain administrator to interpret and apply these regulations.

(Ord. No. 2015-04, Att.(§ 1.7), 7-13-2015)

Sec. 102-8. Warning and disclaimer of liability.

The degree of flood protection required by these regulations is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur, and flood heights may be increased by man-made or natural causes. These regulations do not imply that land outside of the

special flood hazard areas or uses that are permitted within such areas will be free from flooding or flood damage.

These regulations shall not create liability on the part of the Town of Berlin, any officer or employee thereof, the Maryland Department of the Environment (MDE) or the Federal Emergency Management Agency (FEMA), for any flood damage that results from reliance on these regulations or any administrative decision lawfully made hereunder.

(Ord. No. 2015-04, Att.(§ 1.8), 7-13-2015)

Sec. 102-9. Severability.

Should any section or provision of these regulations be declared by the courts to be unconstitutional or invalid, such decision shall not affect the validity of the regulations as a whole, or any part thereof other than the part so declared to be unconstitutional or invalid.

(Ord. No. 2015-04, Att.(§ 1.9), 7-13-2015)

Sec. 102-10. Definitions.

Unless specifically defined below, words or phrases used in these regulations shall be interpreted to have the meaning they have in common usage and to give these regulations the most reasonable application.

Accessory structure: A building or structure on the same lot with, and of a nature customarily incidental and subordinate to, the principal structure. For the purposes of these regulations, an accessory structure shall be used solely for parking of vehicles and limited storage.

Agreement to submit an elevation certificate: A form on which the applicant for a permit to construct a building or structure, to construct certain horizontal additions, to place or replace a manufactured home, to substantially improve a building, structure, or manufactured home, agrees to have an elevation certificate prepared by a licensed professional engineer or licensed

professional surveyor, as specified by the floodplain administrator, and to submit the certificate:

- (1) Upon placement of the lowest floor and prior to further vertical construction; and
- (2) Prior to the final inspection and issuance of the Certificate of Occupancy.

Alteration of a watercourse: For the purpose of these regulations, alteration of a watercourse includes, but is not limited to widening, deepening or relocating the channel, including excavation or filling of the channel. Alteration of a watercourse does not include construction of a road, bridge, culvert, dam, or in-stream pond unless the channel is proposed to be realigned or relocated as part of such construction.

Area of shallow flooding: A designated Zone AO on the flood insurance rate map with a one-percent annual chance or greater of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable, and where velocity flow may be evident; such flooding is characterized by ponding or sheet flow.

Base building: The building to which an addition is being added. This term is used in provisions relating to additions.

Base flood: The flood having a one-percent chance of being equaled or exceeded in any given year; the base flood also is referred to as the one-percent annual chance (100-year) flood.

Base flood elevation: The water surface elevation of the base flood in relation to the datum specified on the community's flood insurance rate map. In areas of shallow flooding, the base flood elevation is the highest adjacent natural grade elevation plus the depth number specified in feet on the flood insurance rate map, or at least four feet if the depth number is not specified.

Basement: Any area of the building having its floor subgrade (below ground level) on all sides.

Building Code(s): The effective Maryland Building Performance Standards (COMAR 05.02.07), including the building code, residential code, and existing building code.

Community: A political subdivision of the State of Maryland (county, city or town) that has authority to adopt and enforce floodplain management regulations within its jurisdictional boundaries.

Critical and essential facilities: Buildings and other structures that are intended to remain operational in the event of extreme environmental loading from flood, wind, snow or earthquakes. [Note: See Maryland Building Performance Standards, Sec. 1602 and Table 1604.5.] Critical and essential facilities typically include hospitals, fire stations, police stations, storage of critical records, facilities that handle or store hazardous materials, and similar facilities.

Declaration of land restriction (nonconversion agreement): A form signed by the owner to agree not to convert or modify in any manner that is inconsistent with the terms of the permit and these regulations, certain enclosures below the lowest floor of elevated buildings and certain accessory structures. The form requires the owner to record it on the property deed to inform future owners of the restrictions.

Development: Any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, placement of manufactured homes, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

Elevation certificate: FEMA form on which surveyed elevations and other data pertinent to a property and a building are identified and which shall be completed by a licensed professional land surveyor or a licensed professional engineer, as specified by the Floodplain Administrator. When used to document the height above grade of buildings in special flood hazard areas for which base flood elevation data are

not available, the elevation certificate shall be completed in accordance with the instructions issued by FEMA. [Note: FEMA Form 086-0-33 and instructions are available online at <http://www.fema.gov/library/viewRecord.do?id=1383>.]

Enclosure below the lowest floor: An unfinished or flood-resistant enclosure that is located below an elevated building, is surrounded by walls on all sides, and is usable solely for parking of vehicles, building access or storage, in an area other than a basement area, provided that such enclosure is built in accordance with the applicable design requirements specified in these regulations. Also see "Lowest Floor."

Federal Emergency Management Agency (FEMA): The federal agency with the overall responsibility for administering the National Flood Insurance Program.

Flood or flooding: A general and temporary condition of partial or complete inundation of normally dry land areas from:

- (1) The overflow of inland or tidal waters, and/or
- (2) The unusual and rapid accumulation or runoff of surface waters from any source.

Flood damage-resistant materials: Any construction material that is capable of withstanding direct and prolonged contact with floodwaters without sustaining any damage that requires more than cosmetic repair. [Note: See NFIP Technical Bulletin #2, "Flood Damage-Resistant Materials Requirements."]

Flood insurance rate map (FIRM): An official map on which the Federal Emergency Management Agency has delineated special flood hazard areas to indicate the magnitude and nature of flood hazards, to designate applicable flood zones, and to delineate floodways, if applicable. FIRMs that have been prepared in digital format or converted to digital format are referred to as Digital FIRMs (DFIRM).

Flood insurance study (FIS): The official report in which the Federal Emergency Management Agency has provided flood profiles, floodway information, and the water surface elevations.

Flood opening: A flood opening (non-engineered) is an opening that is used to meet the prescriptive requirement of 1 square inch of net open area for every square foot of enclosed area. An engineered flood opening is an opening that is designed and certified by a licensed professional engineer or licensed architect as meeting certain performance characteristics, including providing automatic entry and exit of floodwaters; this certification requirement may be satisfied by an individual certification for a specific structure or issuance of an Evaluation Report by the ICC Evaluation Service, Inc. [Note: See NFIP Technical Bulletin #1, "Openings in Foundation Walls and Walls of Enclosures."]

Flood protection elevation: The base flood elevation plus two feet of freeboard. Freeboard is a factor of safety that compensates for uncertainty in factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, obstructed bridge openings, debris and ice jams, climate change, and the hydrologic effect of urbanization in a watershed.

Flood protection setback: A distance measured perpendicular to the top of bank of a watercourse that delineates an area to be left undisturbed to minimize future flood damage and to recognize the potential for bank erosion. Along nontidal waters of the State, the flood protection setback is:

- (1) 100 feet, if the watercourse has special flood hazard areas shown on the FIRM, except where the setback extends beyond the boundary of the flood hazard area; or

- (2) 50 feet, if the watercourse does not have special flood hazard areas shown on the FIRM.

Flood zone: A designation for areas that are shown on flood insurance rate maps:

- (1) *Zone A:* Special flood hazard areas subject to inundation by the one-percent annual chance (100-year) flood; base flood elevations are not determined.
- (2) *Zone AE and Zone A1-30:* Special flood hazard areas subject to inundation by the one-percent annual chance (100-year) flood; base flood elevations are determined; floodways may or may not be determined.
- (3) *Zone AH and Zone AO:* Areas of shallow flooding, with flood depths of one to three feet (usually areas of ponding or sheet flow on sloping terrain), with or without BFEs or designated flood depths.
- (4) *Zone B and Zone X (shaded):* Areas subject to inundation by the 0.2-percent annual chance (500-year) flood; areas subject to the one-percent annual chance (100-year) flood with average depths of less than one foot or with contributing drainage area less than one square mile; and areas protected from the base flood by levees.
- (5) *Zone C and Zone X (unshaded):* Areas outside of Zones designated A, AE, A1-30, AO, VE, V1-30, B, and X (shaded).
- (6) *Zone VE and Zone V1-30:* Special flood hazard areas subject to inundation by the one-percent annual chance (100-year) flood and subject to high velocity wave action.

Floodplain: Any land area susceptible to being inundated by water from any source (see definition of "Flood" or "Flooding").

Floodproofing or floodproofed: Any combination of structural and nonstructural additions,

changes, or adjustments to buildings or structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents, such that the buildings or structures are watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. [Note: State regulations at COMAR 26.17.04.11(B)(7) do not allow new nonresidential buildings in nontidal waters of the State to be floodproofed.]

Floodproofing certificate: FEMA form that is to be completed, signed and sealed by a licensed professional engineer or licensed architect to certify that the design of floodproofing and proposed methods of construction are in accordance with the applicable requirements of subsection 102-75(B) of these regulations. [Note: FEMA Form 086-0-34 is available online at <http://www.fema.gov/library/viewRecord.do?id=1600>.]

Floodway: The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to pass the base flood discharge such that the cumulative increase in the water surface elevation of the base flood discharge is no more than a designated height. When shown on a FIRM, the floodway is referred to as the "designated floodway."

Functionally dependent use: A use which cannot perform its intended purpose unless it is located or carried out in close proximity to water; the term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Highest adjacent grade: The highest natural elevation of the ground surface, prior to construction, next to the proposed foundation of a structure.

Historic structure: Any structure that is:

- (1) Individually listed in the National Register of Historic Places (a listing maintained by the U.S. Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listings on the National Register;
- (2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the secretary to qualify as a registered historic district; or
- (3) Individually listed on the Maryland Register of Historic Places.

Hydrologic and hydraulic engineering analyses: Analyses performed by a licensed professional engineer, in accordance with standard engineering practices that are accepted by the Maryland Department of the Environment (Nontidal Wetlands & Waterways) and FEMA, used to determine the base flood, other frequency floods, flood elevations, floodway information and boundaries, and flood profiles.

Letter of map change (LOMC): A letter of map change is an official FEMA determination, by letter, that amends or revises an effective flood insurance rate map or flood insurance study. Letters of map change include:

Letter of map amendment (LOMA): An amendment based on technical data showing that a property was incorrectly included in a designated special flood hazard area. A LOMA amends the current effective flood insurance rate map and establishes that a specific property or structure is not located in a special flood hazard area.

Letter of map revision (LOMR): A revision based on technical data that may show changes to flood zones, flood elevations, floodplain and floodway delineations, and

planimetric features. A letter of map revision based on fill (LOMR-F), is a determination that a structure or parcel of land has been elevated by fill above the base flood elevation and is, therefore, no longer exposed to flooding associated with the base flood. In order to qualify for this determination, the fill must have been permitted and placed in accordance with the community's floodplain management regulations.

Conditional letter of map revision (CLOMR): A formal review and comment as to whether a proposed flood protection project or other project complies with the minimum NFIP requirements for such projects with respect to delineation of special flood hazard areas. A conditional letter of map revision based on fill (CLOMR-F) is a determination that a parcel of land or proposed structure that will be elevated by fill would not be inundated by the base flood if fill is placed on the parcel as proposed or the structure is built as proposed. A CLOMR does not revise the effective flood insurance rate map or flood insurance study; upon submission and approval of certified as-built documentation, a letter of map revision may be issued by FEMA, to revise the effective FIRM.

Licensed: As used in these regulations, licensed refers to professionals who are authorized to practice in the State of Maryland by issuance of licenses by the Maryland Board of Architects, Maryland Board of Professional Engineers, Maryland Board of Professional Land Surveyors, and the Maryland Real Estate Appraisers and Home Inspectors Commission.

Lowest floor: The lowest floor of the lowest enclosed area (including basement) of a building or structure; the floor of an enclosure below the lowest floor is not the lowest floor provided the enclosure is constructed in accordance with these regulations. The lowest floor of a manufactured home is the bottom of the lowest horizontal supporting member (longitudinal chassis frame beam).

Manufactured home: A structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term manufactured home does not include a recreational vehicle.

Market value: The price at which a property will change hands between a willing buyer and a willing seller, neither party being under compulsion to buy or sell and both having reasonable knowledge of relevant facts. For the purposes of these regulations, the market value of a building is determined by a licensed real estate appraiser or the most recent, full phased-in assessment value of the building (improvement) determined by the Maryland Department of Assessments and Taxation.

Maryland Department of the Environment (MDE): A principal department of the State of Maryland that is charged with, among other responsibilities, the coordination of the National Flood Insurance Program in Maryland (NFIP state coordinator) and the administration of regulatory programs for development and construction that occur within the waters of the state, including nontidal wetlands, nontidal waters and floodplains, and state and private tidal wetlands (Tidal Wetlands). Unless otherwise specified, "MDE" refers to the Department's Wetlands and Waterways Program.

Mixed-use structure: Any structure that is used or intended for use for a mixture of nonresidential and residential uses in the same structure.

National Flood Insurance Program (NFIP): The program authorized by the U.S. Congress in 42 U.S.C. §§ 4001—4129. The NFIP makes flood insurance coverage available in communities that agree to adopt and enforce minimum regulatory requirements for development in areas prone to flooding (see definition of "Special Flood Hazard Area").

New construction: Structures, including additions and improvements, and the placement of

manufactured homes, for which the start of construction commenced on or after September 18, 1986, the initial effective date of the Town of Berlin Flood Insurance Rate Map, including any subsequent improvements, alterations, modifications, and additions to such structures.

NFIP state coordinator: See Maryland Department of the Environment (MDE).

Nontidal waters of the state: See "Waters of the State." As used in these regulations, "nontidal waters of the State" refers to any stream or body of water within the State that is subject to state regulation, including the "100-year frequency floodplain of free-flowing waters." COMAR 26.17.04.01 states that "the landward boundaries of any tidal waters shall be deemed coterminous with the wetlands boundary maps adopted pursuant to Environment Article, § 16-301, Annotated Code of Maryland." Therefore, the boundary between the tidal and nontidal waters of the state is the tidal wetlands boundary.

Person: An individual or group of individuals, corporation, partnership, association, or any other entity, including state and local governments and agencies.

Recreational vehicle: A vehicle that is built on a single chassis, 400 square feet or less when measured at the largest horizontal projection, designed to be self-propelled or permanently towable by a light duty truck, and designed primarily not for use as a permanent dwelling, but as temporary living quarters for recreational, camping, travel, or seasonal use.

Special flood hazard area (SFHA): The land in the floodplain subject to a one-percent or greater chance of flooding in any given year. Special flood hazard areas are designated by the Federal Emergency Management Agency in flood insurance studies and on flood insurance rate maps as Zones A, AE, AH, AO, A1-30, and A99, and Zones VE and V1-30. The term includes areas shown on other flood maps that are identified in section 102-5.

Start of construction: The date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvement was within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory structures, such as garages or sheds not occupied as dwelling units or not part of the main structure. For substantial improvements, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure: That which is built or constructed; specifically, a walled and roofed building, including a gas or liquid storage tank that is principally above ground, as well as a manufactured home.

Substantial damage: Damage of any origin sustained by a building or structure whereby the cost of restoring the building or structure to its before damaged condition would equal or exceed 50 percent of the market value of the building or structure before the damage occurred. Also used as "substantially damaged" structures. [Note: See "Substantial Improvement/Substantial Damage Desk Reference" (FEMA P-758).]

Substantial improvement: Any reconstruction, rehabilitation, addition, or other improvement of a building or structure, the cost of which equals or exceeds 50 percent of the market value of the building or structure before the start

of construction of the improvement. The term includes structures which have incurred substantial damage, regardless of the actual repair work performed. The term does not, however, include any project for improvement of a building or structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official prior to the submission of an application for a permit and which are the minimum necessary to assure safe living conditions. [Note: See "Substantial Improvement/Substantial Damage Desk Reference" (FEMA P-758).]

Temporary structure: A structure installed, used, or erected for a period of less than 180 days.

Variance: A grant of relief from the strict application of one or more requirements of these regulations.

Violation: Any construction or development in a special flood hazard area that is being performed without an issued permit. The failure of a building, structure, or other development for which a permit is issued to be fully compliant with these regulations and the conditions of the issued permit. A building, structure, or other development without the required design certifications, the elevation certificate, or other evidence of compliance required is presumed to be a violation until such time as the required documentation is provided.

Watercourse: The channel, including channel banks and bed, of nontidal waters of the State.

Waters of the state: [See Environment Article, Title 5, Subtitle 1, Annotated Code of Maryland.] Waters of the state include:

- (1) Both surface and underground waters within the boundaries of the state subject to its jurisdiction;
- (2) That portion of the Atlantic Ocean within the boundaries of the state;
- (3) The Chesapeake Bay and its tributaries;

- (4) All ponds, lakes, rivers, streams, public ditches, tax ditches, and public drainage systems within the state, other than those designed and used to collect, convey, or dispose of sanitary sewage; and
- (5) The floodplain of free-flowing waters determined by MDE on the basis of the 100-year flood frequency.

(Ord. No. 2015-04, Att.(§ 2.0), 7-13-2015)

Secs. 102-11—102-20. Reserved.

ARTICLE II. ADMINISTRATION

Sec. 102-21. Designation of the floodplain administrator.

The planning director is hereby appointed to administer and implement these regulations and is referred to herein as the floodplain administrator. The floodplain administrator may:

- (A) Delegate duties and responsibilities set forth in these regulations to qualified technical personnel, plan examiners, inspectors, and other employees.
- (B) Enter into a written agreement or written contract with another Maryland community or private sector entity to administer specific provisions of these regulations. Administration of any part of these regulations by another entity shall not relieve the community of its responsibilities pursuant to the participation requirements of the National Flood Insurance Program as set forth in the Code of Federal Regulations (CFR) at 44 CFR Section 59.22.

(Ord. No. 2015-04, Att.(§ 3.1), 7-13-2015)

Sec. 102-22. Duties and responsibilities of the floodplain administrator.

The duties and responsibilities of the floodplain administrator shall include but are not limited to:

- (A) Review applications for permits to determine whether proposed activities will be located in flood hazard areas.

- (B) Interpret floodplain boundaries and provide available base flood elevation and flood hazard information.
- (C) Review applications to determine whether proposed activities will be reasonably safe from flooding and require new construction and substantial improvements to meet the requirements of these regulations.
- (D) Review applications to determine whether all necessary permits have been obtained from the federal, state or local agencies from which prior or concurrent approval is required; in particular, permits from MDE for any construction, reconstruction, repair, or alteration of a dam, reservoir, or waterway obstruction (including bridges, culverts, structures), any alteration of a watercourse, or any change of the course, current, or cross section of a stream or body of water, including any change to the 100-year frequency floodplain of free-flowing nontidal waters of the state.
- (E) Verify that applicants proposing an alteration of a watercourse have notified adjacent communities and MDE (NFIP state coordinator), and have submitted copies of such notifications to FEMA.
- (F) Approve applications and issue permits to develop in flood hazard areas if the provisions of these regulations have been met, or disapprove applications if the provisions of these regulations have not been met.
- (G) Inspect or cause to be inspected, buildings, structures, and other development for which permits have been issued to determine compliance with these regulations or to determine if non-compliance has occurred or violations have been committed.
- (H) Review elevation certificates and require incomplete or deficient certificates to be corrected.
- (I) Submit to FEMA, or require applicants to submit to FEMA, data and information necessary to maintain FIRMs, including hydrologic and hydraulic engineering analyses prepared by or for the Town of Berlin, within six months after such data and information becomes available if the analyses indicate changes in base flood elevations or boundaries.
- (J) Maintain and permanently keep records that are necessary for the administration of these regulations, including:
 - (1) Flood insurance studies, flood insurance rate maps (including historic studies and maps and current effective studies and maps) and letters of map change; and
 - (2) Documentation supporting issuance and denial of permits, elevation certificates, documentation of the elevation (in relation to the datum on the FIRM) to which structures have been floodproofed, other required design certifications, variances, and records of enforcement actions taken to correct violations of these regulations.
- (K) Enforce the provisions of these regulations, investigate violations, issue notices of violations or stop work orders, and require permit holders to take corrective action.
- (L) Advise the board of zoning appeals regarding the intent of these regulations and, for each application for a variance, prepare a staff report and recommendation.
- (M) Administer the requirements related to proposed work on existing buildings:
 - (1) Make determinations as to whether buildings and structures that are

- located in flood hazard areas and that are damaged by any cause have been substantially damaged.
- (2) Make reasonable efforts to notify owners of substantially damaged structures of the need to obtain a permit to repair, rehabilitate, or reconstruct, and prohibit the non-compliant repair of substantially damaged buildings except for temporary emergency protective measures necessary to secure a property or stabilize a building or structure to prevent additional damage.
- (N) Undertake, as determined appropriate by the floodplain administrator due to the circumstances, other actions which may include but are not limited to: issuing press releases, public service announcements, and other public information materials related to permit requests and repair of damaged structures; coordinating with other federal, state, and local agencies to assist with substantial damage determinations; providing owners of damaged structures information related to the proper repair of damaged structures in special flood hazard areas; and assisting property owners with documentation necessary to file claims for increased cost of compliance (ICC) coverage under NFIP flood insurance policies.
 - (O) Notify the Federal Emergency Management Agency when the corporate boundaries of the Town of Berlin have been modified and:
 - (1) Provide a map that clearly delineates the new corporate boundaries or the new area for which the authority to regulate pursuant to these regulations has either been assumed or relinquished through annexation; and
 - (2) If the FIRM for any annexed area includes special flood hazard areas that have flood zones that have regulatory requirements that are not set forth in these regulations, prepare amendments to these regulations to adopt the FIRM and appropriate requirements, and submit the amendments to the governing body for adoption; such adoption shall take place within six months of the date of annexation and a copy of the amended regulations shall be provided to MDE (NFIP State Coordinator) and FEMA.
 - (P) Upon the request of FEMA, complete and submit a report concerning participation in the NFIP which may request information regarding the number of buildings in the SFHA, number of permits issued for development in the SFHA, and number of variances issued for development in the SFHA.
- (Ord. No. 2015-04, Att.(§ 3.2), 7-13-2015)

Sec. 102-23. Use and interpretation of FIRMs.

The floodplain administrator shall make interpretations, where needed, as to the exact location of special flood hazard areas, floodplain boundaries, and floodway boundaries. The following shall apply to the use and interpretation of FIRMs and data:

- (A) Where field surveyed topography indicates that ground elevations:
 - (1) Are below the base flood elevation, even in areas not delineated as a special flood hazard area on a FIRM, the area shall be considered as special flood hazard area and subject to the requirements of these regulations;
 - (2) Are above the base flood elevation, the area shall be regulated as spe-

cial flood hazard area unless the applicant obtains a letter of map change that removes the area from the special flood hazard area.

- (B) In FEMA-identified special flood hazard areas where base flood elevation and floodway data have not been identified and in areas where FEMA has not identified special flood hazard areas, any other flood hazard data available from a federal, state, or other source shall be reviewed and reasonably used.
- (C) Base flood elevations and designated floodway boundaries on FIRMs and in FISs shall take precedence over base flood elevations and floodway boundaries by any other sources if such sources show reduced floodway widths and/or lower base flood elevations.
- (D) Other sources of data shall be reasonably used if such sources show increased base flood elevations and/or larger floodway areas than are shown on FIRMs and in FISs.
- (E) If a preliminary flood insurance rate map and/or a preliminary flood insurance study has been provided by FEMA:
 - (1) Upon the issuance of a letter of final determination by FEMA, if the preliminary flood hazard data is more restrictive than the effective data, it shall be used and shall replace the flood hazard data previously provided from FEMA for the purposes of administering these regulations.
 - (2) Prior to the issuance of a letter of final determination by FEMA, the use of preliminary flood hazard data shall be deemed the best available data pursuant to subsection 102-5(C) and used where no base flood elevations and/or floodway areas are provided on the effective FIRM.

- (3) Prior to issuance of a letter of final determination by FEMA, the use of preliminary flood hazard data is permitted where the preliminary base flood elevations, floodplain or floodway boundaries exceed the base flood elevations and/or designated floodway widths in existing flood hazard data provided by FEMA. Such preliminary data may be subject to change and/or appeal to FEMA.

(Ord. No. 2015-04, Att.(§ 3.3), 7-13-2015)

Sec. 102-24. Permits required and expiration.

(A) It shall be unlawful for any person to begin any development or construction which is wholly within, partially within, or in contact with any flood hazard area established in section 102-5, including but not limited to: filling; grading; construction of new structures; the substantial improvement of buildings or structures, including repair of substantial damage; placement or replacement of manufactured homes, including substantial improvement or repair of substantial damage of manufactured homes; erecting or installing a temporary structure, or alteration of a watercourse, until a permit is obtained from the Town of Berlin. No such permit shall be issued until the requirements of these regulations have been met.

(B) In addition to the permits required in paragraph (A), applicants for permits in nontidal waters of the state are advised to contact MDE. Unless waived by MDE, pursuant to Code of Maryland Regulations 26.17.04, Construction on Nontidal Waters and Floodplains, MDE regulates the "100-year frequency floodplain of free-flowing waters," also referred to as nontidal waters of the state. To determine the 100-year frequency floodplain, hydrologic calculations are based on the ultimate development of the watershed, assuming existing zoning. The resulting flood hazard areas delineated using the

results of such calculations may be different than the special flood hazard areas established in section 102-5 of these regulations. A permit from the Town of Berlin is still required in addition to any state requirements.

(C) A permit is valid provided the actual start of work is within 180 days of the date of permit issuance. Requests for extensions shall be submitted in writing and justifiable cause demonstrated. The floodplain administrator may grant, in writing, one or more extensions of time, for additional periods not exceeding 90 days each and provided there has been no amendment or revision to the basis for establishing special flood hazard areas and BFEs set forth in section 102-5.

(Ord. No. 2015-04, Att.(§ 3.4), 7-13-2015)

Sec. 102-25. Application required.

Application for a permit shall be made by the owner of the property or the owner's authorized agent (herein referred to as the applicant) prior to the start of any work. The application shall be on a form furnished for that purpose.

(A) *Application contents.* At a minimum, applications shall include:

- (1) Site plans drawn to scale showing the nature, location, dimensions, and existing and proposed topography of the area in question, and the location of existing and proposed structures, excavation, filling, storage of materials, drainage facilities, and other proposed activities.
- (2) Elevation of the existing natural ground where buildings or structures are proposed, referenced to the datum on the FIRM.
- (3) Delineation of flood hazard areas, designated floodway boundaries, flood zones, base flood elevations, and flood protection setbacks. Base flood elevations shall be used to

delineate the boundary of flood hazard areas and such delineations shall prevail over the boundary of SFHAs shown on FIRMs.

- (4) Where floodways are not delineated or base flood elevations are not shown on the FIRMs, the floodplain administrator has the authority to require the applicant to use information provided by the floodplain administrator, information that is available from federal, state, or other sources, or to determine such information using accepted engineering practices or methods approved by the floodplain administrator. [Note: See "Managing Floodplain Development in Approximate Zone A Areas: A Guide for Obtaining and Developing Base (100-Year) Flood Elevations" (FEMA 265).]
- (5) Determination of the base flood elevations, for development proposals and subdivision proposals, each with at least five lots or at least five acres, whichever is the lesser, in special flood hazard areas where base flood elevations are not shown on the FIRM; if hydrologic and hydraulic engineering analyses are submitted, such analyses shall be performed in accordance with the requirements and specifications of MDE and FEMA.
- (6) Hydrologic and hydraulic engineering analyses for proposals in special flood hazard areas where FEMA has provided base flood elevations but has not delineated a floodway; such analyses shall demonstrate that the cumulative effect of proposed development, when combined with all other existing and anticipated development will not in-

crease the water surface elevation of the base flood by more than one foot, or a lower increase if required by MDE.

- (7) For encroachments in floodways, an evaluation of alternatives to such encroachments, including different uses of the site or portion of the site within the floodway, and minimization of such encroachment.
- (8) If fill is proposed to be placed for a purpose other than to elevate structures, the applicant shall indicate the intended purpose for the fill.
- (9) For proposed buildings and structures, including substantial improvement and repair of substantial damage, and placement and replacement of manufactured homes, including substantial improvement and repair of substantial damage:
 - (a) The proposed elevation of the lowest floor, including basement, referenced to the datum on the FIRM and a signed agreement to submit an elevation certificate.
 - (b) The signed declaration of land restriction (nonconversion agreement) that shall be recorded on the property deed prior to issuance of the certificate of occupancy, if the application includes an enclosure below the lowest floor or a crawl/underfloor space that is more than four feet in height.
 - (c) A written evaluation of alternative methods considered to elevate structures and manufactured homes, if the location is in nontidal waters of the State and fill is proposed to achieve

the elevation required in subsection 102-74(A) or subsection 102-75(A).

- (10) For accessory structures that are 300 square feet or larger in area (footprint) and that are below the base flood elevation, a variance is required as set forth in article VI. If a variance is granted, a signed declaration of land restriction (nonconversion agreement) shall be recorded on the property deed prior to issuance of the certificate of occupancy.
- (11) For temporary structures and temporary storage, specification of the duration of the temporary use.
- (12) For proposed work on existing buildings, structure, and manufactured homes, including any improvement, addition, repairs, alterations, rehabilitation, or reconstruction, sufficient information to determine if the work constitutes substantial improvement or repair of substantial damage, including but not limited to:
 - (a) If the existing building or structure was constructed after September 18, 1986, evidence that the work will not alter any aspect of the building or structure that was required for compliance with the floodplain management requirements in effect at the time the building or structure was permitted.
 - (b) If the proposed work is a horizontal addition, a description of the addition and whether it will be independently supported or structurally connected to the base building and

- the nature of all other modifications to the base building, if any.
- (c) Documentation of the market value of the building or structure before the improvement or, if the work is repair of damage, before the damage occurred.
 - (d) Documentation of the actual cash value of all proposed work, including the actual cash value of all work necessary to repair and restore damage to the before-damaged condition, regardless of the amount of work that will be performed. The value of work performed by the owner or volunteers shall be valued at market labor rates; the value of donated or discounted materials shall be valued at market rates.
- (13) Certifications and/or technical analyses prepared or conducted by a licensed professional engineer or licensed architect, as appropriate, including:
- (a) The determination of the base flood elevations or hydrologic and hydraulic engineering analyses prepared by a licensed professional engineer that are required by the Floodplain Administrator or are required by these regulations in: section 102-42 for certain subdivisions and development; subsection 102-73(A) for development in designated floodways; subsection 102-73(C) for development in flood hazard areas with base flood elevations but no designated floodways; and subsection 102-73(E) for deliberate alteration or relocation of watercourses.
 - (b) The floodproofing certificate for nonresidential structures that are floodproofed as required in subsection 102-75(B).
 - (c) Certification that engineered flood openings are designed to meet the minimum requirements of subsection 102-74(C)(3) to automatically equalize hydrostatic flood forces.
- (14) For nonresidential structures that are proposed with floodproofing, an operations and maintenance plan as specified in subsection 102-75(B)(3).
- (15) Such other material and information as may be requested by the floodplain administrator and necessary to determine conformance with these regulations.
- (B) *New technical data.*
- (1) The applicant may seek a letter of map change by submitting new technical data to FEMA, such as base maps, topography, and engineering analyses to support revision of floodplain and floodway boundaries and/or base flood elevations. Such submissions shall be prepared in a format acceptable to FEMA and any fees shall be the sole responsibility of the applicant. A copy of the submittal shall be attached to the application for a permit.
 - (2) If the applicant submits new technical data to support any change in floodplain and designated floodway boundaries and/or base flood elevations but has not sought a letter

of map change from FEMA, the applicant shall submit such data to FEMA as soon as practicable, but not later than six months after the date such information becomes available. Such submissions shall be prepared in a format acceptable to FEMA and any fees shall be the sole responsibility of the applicant.

(Ord. No. 2015-04, Att.(§ 3.5), 7-13-2015)

Sec. 102-26. Review of application.

The floodplain administrator shall:

- (A) Review applications for development in special flood hazard areas to determine the completeness of information submitted. The applicant shall be notified of incompleteness or additional information that is required to support the application.
- (B) Notify applicants that permits from MDE and the U.S. Army Corps of Engineers, and other state and federal authorities may be required.
- (C) Review all permit applications to assure that all necessary permits have been received from the federal, state or local governmental agencies from which prior approval is required. The applicant shall be responsible for obtaining such permits, including permits issued by:
 - (1) The U.S. Army Corps of Engineers under Section 10 of the Rivers and Harbors Act and Section 404 of the Clean Water Act;
 - (2) MDE pursuant to COMAR 26.23 (Nontidal Wetlands) and Section 401 of the Clean Water Act;
 - (3) MDE for construction on nontidal waters of the State pursuant to COMAR 26.17.04.
- (D) Review applications for compliance with these regulations after all information

required in section 102-25 of these regulations or identified and required by the floodplain administrator has been received.

(Ord. No. 2015-04, Att.(§ 3.6), 7-13-2015)

Sec. 102-27. Inspections.

The floodplain administrator shall make periodic inspections of development permitted in special flood hazard areas, at appropriate times throughout the period of construction in order to monitor compliance. Such inspections may include:

- (A) Stake-out inspection, to determine location on the site relative to the flood hazard area and designated floodway.
- (B) Foundation inspection, upon placement of the lowest floor and prior to further vertical construction, to collect information or certification of the elevation of the lowest floor.
- (C) Inspection of enclosures below the lowest floor, including crawl/underfloor spaces, to determine compliance with applicable provisions.
- (D) Utility inspection, upon installation of specified equipment and appliances, to determine appropriate location with respect to the base flood elevation.
- (E) Final inspection prior to issuance of the certificate of occupancy.

(Ord. No. 2015-04, Att.(§ 3.7), 7-13-2015)

Sec. 102-28. Submissions required prior to final inspection.

Pursuant to the agreement to submit an elevation certificate submitted with the application as required in subsection 102-25(A)(9), the permittee shall have an elevation certificate prepared and submitted prior to final inspection and issuance of a certificate of occupancy for elevated structures and manufactured homes, including new structures and manufactured homes,

substantially-improved structures and manufactured homes, and additions to structures and manufactured homes.

(Ord. No. 2015-04, Att.(§ 3.8), 7-13-2015)

Secs. 102-29—102-40. Reserved.

**ARTICLE III. REQUIREMENTS IN ALL
FLOOD HAZARD AREAS**

Sec. 102-41. Application of requirements.

The general requirements of this section apply to all development proposed within all special flood hazard areas identified in section 102-5. (Ord. No. 2015-04, Att.(§ 4.1), 7-13-2015)

Sec. 102-42. Subdivision proposals and development proposals.

- (A) In all flood zones:
 - (1) Subdivision proposals and development proposals shall be consistent with the need to minimize flood damage and are subject to all applicable standards in these regulations.
 - (2) Subdivision proposals and development proposals shall have utilities and facilities such as sewer, gas, electrical, and water systems located and constructed to minimize flood damage.
 - (3) Subdivision proposals and development proposals shall have adequate drainage paths provided to reduce exposure to flood hazards and to guide floodwaters around and away from proposed structures.
 - (4) Subdivision proposals and development proposals containing at least five lots or at least five acres, whichever is the lesser, that are wholly or partially in flood hazard areas where base flood elevation data are not provided by the floodplain administrator or available from other sources, shall be supported by determi-

nations of base flood elevations as required in section 102-25 of these regulations.

- (5) Subdivision access roads shall have the driving surface at or above the base flood elevation.

(B) In special flood hazard areas of nontidal waters of the state:

- (1) Subdivision proposals shall be laid out such that proposed building pads are located outside of the special flood hazard area and any portion of platted lots that include land areas that are below the base flood elevation shall be used for other purposes, deed restricted, or otherwise protected to preserve it as open space.
- (2) Subdivision access roads shall have the driving surface at or above the base flood elevation.

(Ord. No. 2015-04, Att.(§ 4.2), 7-13-2015)

Sec. 102-43. Protection of water supply and sanitary sewage systems.

(A) New and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems.

(B) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into systems and discharges from systems into floodwaters.

(C) On-site waste disposal systems shall be located to avoid impairment to or contamination from them during conditions of flooding.

(Ord. No. 2015-04, Att.(§ 4.3), 7-13-2015)

Sec. 102-44. Buildings and structures.

New buildings and structures (including the placement and replacement of manufactured homes) and substantial improvement of existing

structures (including manufactured homes) that are located, in whole or in part, in any special flood hazard area shall:

- (A) Be designed (or modified) and constructed to safely support flood loads. The construction shall provide a complete load path capable of transferring all loads from their point of origin through the load-resisting elements to the foundation. Structures shall be designed, connected and anchored to resist flotation, collapse or permanent lateral movement due to structural loads and stresses, including hydrodynamic and hydrostatic loads and the effects of buoyancy, from flooding equal to the flood protection elevation or the elevation required by these regulations or the building code, whichever is higher.
- (B) Be constructed by methods and practices that minimize flood damage.
- (C) Use flood damage-resistant materials below the elevation of the lowest floor required in subsection 102-74(A) or subsection 102-75(A).
- (D) Have electrical systems, equipment and components, and mechanical, heating, ventilating, air conditioning, and plumbing appliances, plumbing fixtures, duct systems, and other service equipment located at or above the elevation of the lowest floor required in subsection 102-74(A) or subsection 102-75(A). Electrical wiring systems are permitted to be located below elevation of the lowest floor provided they conform to the provisions of the electrical part of the building code for wet locations. If replaced as part of a substantial improvement, electrical systems, equipment and components, and heating, ventilation, air conditioning, and plumbing appliances, plumbing fixtures, duct systems, and other service equipment shall meet the requirements of this section.

- (E) As an alternative to paragraph (D), electrical systems, equipment and components, and heating, ventilating, air conditioning, and plumbing appliances, plumbing fixtures, duct systems, and other service equipment are permitted to be located below the elevation of the lowest floor provided they are designed and installed to prevent water from entering or accumulating within the components and to resist hydrostatic and hydrodynamic loads and stresses, including the effects of buoyancy, during the occurrence of flooding to that elevation.
 - (F) Have the electric panelboard elevated at least three feet above the BFE.
 - (G) Comply with the specific requirements of article IV.
 - (H) Comply with the requirements of the most restrictive designation if located on a site that has more than one flood zone designation (A Zone, designated floodway).
- (Ord. No. 2015-04, Att.(§ 4.4), 7-13-2015)

Sec. 102-45. Placement of fill.

(A) Disposal of fill, including but not limited to earthen soils, rock, rubble, construction debris, woody debris, and trash, shall not be permitted in special flood hazard areas.

(B) Fill proposed to be placed to elevate structures in flood hazard areas shall comply with the floodways requirements in subsection 102-73(A), subsection 102-73(B), and subsection 102-73(C) and the limitations of subsection 102-74(B).

(Ord. No. 2015-04, Att.(§ 4.5), 7-13-2015)

Sec. 102-46. Historic structures.

Repair, alteration, addition, rehabilitation, or other improvement of historic structures that does not conform with the requirements of this ordinance shall be permitted only by variance. Evidence submitted for consideration of the vari-

ance shall include a determination that the proposed work will not preclude the structure's continued eligibility or designation as a historic structure.

(Ord. No. 2015-04, Att.(§ 4.6), 7-13-2015)

Sec. 102-47. Manufactured homes.

(A) New manufactured homes shall not be placed or installed in floodways.

(B) For the purpose of these regulations, the lowest floor of a manufactured home is the bottom of the lowest horizontal supporting member (longitudinal chassis frame beam).

(C) New manufactured homes located outside of floodways, replacement manufactured homes in any flood hazard areas, and substantial improvement (including repair of substantial damage) of existing manufactured homes in all flood hazard area, shall:

- (1) Be elevated on a permanent, reinforced foundation in accordance with article IV;
- (2) Be installed in accordance with the anchor and tie-down requirements of the building code or the manufacturer's written installation instructions and specifications; and
- (3) Have enclosures below the lowest floor of the elevated manufactured home, if any, including enclosures that are surrounded by rigid skirting or other material that is attached to the frame or foundation, that comply with the requirements of article IV.

[Note: See "Protecting Manufactured Homes from Floods and Other Hazards: A Multi-Hazard Foundation and Installation Guide" (FEMAP-85).]
(Ord. No. 2015-04, Att.(§ 4.7), 7-13-2015)

Sec. 102-48. Recreational vehicles.

Recreational vehicles shall:

- (A) Meet the requirements for manufactured homes in section 102-47; or

(B) Be fully licensed and ready for highway use; or

(C) Be on a site for less than 180 consecutive days.

(Ord. No. 2015-04, Att.(§ 4.8), 7-13-2015)

Sec. 102-49. Critical and essential facilities.

Critical and essential facilities shall:

(A) Not be located in floodways; or

(B) If located in flood hazard areas other than floodways, be elevated to the higher of elevation required by these regulations plus one foot, the elevation required by the building code, or the elevation of the 0.2 percent chance (500-year) flood.

(Ord. No. 2015-04, Att.(§ 4.9), 7-13-2015)

Sec. 102-50. Temporary structures and temporary storage.

In addition to the application requirements of section 102-25, applications for the placement or erection of temporary structures and the temporary storage of any goods, materials, and equipment, shall specify the duration of the temporary use. Temporary structures and temporary storage in floodways shall meet the limitations of subsection 102-73(A) of these regulations. In addition:

(A) Temporary structures shall:

- (1) Be designed and constructed to prevent flotation, collapse or lateral movement resulting from hydrodynamic loads and hydrostatic loads during conditions of the base flood;
- (2) Have electric service installed in compliance with the electric code; and
- (3) Comply with all other requirements of the applicable State and local permit authorities.

- (B) Temporary storage shall not include hazardous materials.

(Ord. No. 2015-04, Att.(§ 4.10), 7-13-2015)

Sec. 102-51. Gas or liquid storage tanks.

(A) Underground tanks in flood hazard areas shall be anchored to prevent flotation, collapse or lateral movement resulting from hydrostatic loads, including the effects of buoyancy, during conditions of the base flood.

(B) Above-ground tanks in flood hazard areas shall be anchored to a supporting structure and elevated to or above the base flood elevation, or shall be anchored or otherwise designed and constructed to prevent flotation, collapse, or lateral movement resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy, during conditions of the base flood.

(C) In flood hazard areas, tank inlets, fill openings, outlets and vents shall be:

- (1) At or above the base flood elevation or fitted with covers designed to prevent the inflow of floodwater or outflow of the contents of the tanks during conditions of the base flood; and
- (2) Anchored to prevent lateral movement resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy, during conditions of the base flood.

(Ord. No. 2015-04, Att.(§ 4.11), 7-13-2015)

Sec. 102-52. Functionally dependent uses.

Applications for functionally dependent uses that do not conform to the requirements of these regulations shall be approved only by variances issued pursuant to article VI. If approved, functionally dependent uses shall be protected by methods that minimize flood damage during the base flood, including measures to allow floodwaters to enter and exit, use of flood damage-resistant materials, and elevation of electric service and equipment to the extent practical given the use of the building.

(Ord. No. 2015-04, Att.(§ 4.12), 7-13-2015)

Secs. 102-53—102-70. Reserved.

ARTICLE IV. REQUIREMENTS IN FLOOD HAZARD AREAS

Sec. 102-71. General requirements.

In addition to the general requirements of article III, the requirements of this section shall:

- (A) Apply in flood hazard areas, including special flood hazard areas along nontidal waters of the state.
- (B) Apply to all development, new construction, substantial improvements (including repair of substantial damage), and placement, replacement, and substantial improvement (including repair of substantial damage) of manufactured homes.

(Ord. No. 2015-04, Att.(§ 5.1), 7-13-2015)

Sec. 102-72. Flood protection setbacks.

Within areas defined by flood protection setbacks along nontidal waters of the state:

- (A) No new buildings, structures, or other development shall be permitted unless the applicant demonstrates that the site cannot be developed without such encroachment into the flood protection setback and the encroachment is the minimum necessary after consideration of varying other siting standards such as side, front, and back lot line setbacks.
- (B) Disturbance of natural vegetation shall be minimized and any disturbance allowed shall be vegetatively stabilized.
- (C) Public works and temporary construction may be permitted.

(Ord. No. 2015-04, Att.(§ 5.2), 7-13-2015)

Sec. 102-73. Development that affects flood-carrying capacity of nontidal waters of the state.

(A) *Development in designated floodways.* For proposed development that will encroach into a designated floodway, subsection 102-

25(A)(7) requires the applicant to submit an evaluation of alternatives to such encroachment, including different uses of the site or the portion of the site within the floodway, and minimization of such encroachment. This requirement does not apply to fences that do not block the flow of floodwaters or trap debris. Proposed development in a designated floodway may be permitted only if:

- (1) The applicant has been issued a permit by MDE; and
- (2) The applicant has developed hydrologic and hydraulic engineering analyses and technical data prepared by a licensed professional engineer reflecting such changes, and the analyses, which shall be submitted to the floodplain administrator, demonstrate that the proposed activity will not result in any increase in the base flood elevation; or
- (3) If the analyses demonstrate that the proposed activities will result in an increase in the base flood elevation, the applicant has obtained a conditional letter of map revision and a letter of map revision from FEMA upon completion of the project. Submittal requirements and fees shall be the responsibility of the applicant.

(B) *Development that includes the placement of fill in nontidal waters of the state.* For proposed development that includes the placement of fill in nontidal waters of the State, other than development that is subject to paragraph (D), a hydraulically-equivalent volume of excavation is required. Such excavations shall be designed to drain freely.

(C) *Development in areas with base flood elevations but no designated floodways.* For development in special flood hazard areas of nontidal waters of the state with base flood elevations but no designated floodways:

- (1) The applicant shall develop hydrologic and hydraulic engineering analyses and technical data reflecting the proposed

activity and shall submit such technical data to the floodplain administrator as required in subsection 102-25(A)(6). The analyses shall be prepared by a licensed professional engineer in a format required by FEMA for a conditional letter of map revision and a letter of map revision upon completion of the project. Submittal requirements and fees shall be the responsibility of the applicant.

- (2) The proposed development may be permitted if the applicant has received a permit by MDE and if the analyses demonstrate that the cumulative effect of the proposed development, when combined with all other existing and potential flood hazard area encroachments will not increase the base flood elevation more than 1.0 foot at any point.

(D) *Construction of roads, bridges, culverts, dams and in-stream ponds.* Construction of roads, bridges, culverts, dams, and in-stream ponds in nontidal waters of the State shall not be approved unless they comply with this section and the applicant has received a permit from MDE.

(E) *Alteration of a watercourse.* For any proposed development that involves alteration of a watercourse not subject to paragraph (C), unless waived by MDE, the applicant shall develop hydrologic and hydraulic engineering analyses and technical data reflecting such changes, including the floodway analysis required in subsection 102-25(A), and submit such technical data to the floodplain administrator and to FEMA. The analyses shall be prepared by a licensed professional engineer in a format required by MDE and by FEMA for a conditional letter of map revision and a letter of map revision upon completion of the project. Submittal requirements and fees shall be the responsibility of the applicant.

Alteration of a watercourse may be permitted only upon submission, by the applicant, of the following:

- (1) A description of the extent to which the watercourse will be altered or relocated;
- (2) A certification by a licensed professional engineer that the flood-carrying capacity of the watercourse will not be diminished;
- (3) Evidence that adjacent communities, the U.S. Army Corps of Engineers, and MDE have been notified of the proposal, and evidence that such notifications have been submitted to FEMA; and
- (4) Evidence that the applicant shall be responsible for providing the necessary maintenance for the altered or relocated portion of the watercourse so that the flood carrying capacity will not be diminished. The floodplain administrator may require the applicant to enter into an agreement with the Town of Berlin specifying the maintenance responsibilities; if an agreement is required, the permit shall be conditioned to require that the agreement be recorded on the deed of the property which shall be binding on future owners.

(Ord. No. 2015-04, Att.(§ 5.3), 7-13-2015)

Sec. 102-74. Residential structures and residential portions of mixed use structures.

New residential structures and residential portions of mixed use structures, and substantial improvement (including repair of substantial damage) of existing residential structures and residential portions of mixed use structures shall comply with the applicable requirements of article III and this section. See section 102-76 for requirements for horizontal additions.

(A) Elevation requirements.

- (1) Lowest floors shall be elevated to or above the flood protection elevation.

- (2) In areas of shallow flooding (Zone AO), the lowest floor (including basement) shall be elevated at least as high above the highest adjacent grade as the depth number specified in feet on the FIRM plus two feet, or at least four feet if a depth number is not specified.

- (3) Enclosures below the lowest floor shall meet the requirements of paragraph (C).

(B) Limitations on use of fill to elevate structures. Unless otherwise restricted by these regulations, especially by the limitations in subsection 102-73(A), subsection 102-73(B), and subsection 102-73(C), fill placed for the purpose of raising the ground level to support a building or structure shall:

- (1) Consist of earthen soil or rock materials only;
- (2) Extend laterally from the building footprint to provide for adequate access as a function of use; the floodplain administrator may seek advice from the state fire marshal's office and/or the local fire services agency;
- (3) Comply with the requirements of the building code and be placed and compacted to provide for stability under conditions of rising and falling floodwaters and resistance to erosion, scour, and settling;
- (4) Be sloped no steeper than one vertical to two horizontal, unless approved by the floodplain administrator;
- (5) Be protected from erosion associated with expected velocities during the occurrence of the base flood; unless approved by the Floodplain Administrator, fill slopes shall be protected by vegetation if the ex-

pected velocity is less than five feet per second, and by other means if the expected velocity is five feet per second or more; and

- (6) Be designed with provisions for adequate drainage and no adverse effect on adjacent properties.

(C) *Enclosures below the lowest floor.*

- (1) Enclosures below the lowest floor shall be used solely for parking of vehicles, building access, crawl/underfloor spaces, or limited storage.
- (2) Enclosures below the lowest floor shall be constructed using flood damage-resistant materials.
- (3) Enclosures below the lowest floor shall be provided with flood openings which shall meet the following criteria: [Note: See NFIP Technical Bulletin #1, "Openings in Foundation Walls and Walls of Enclosures."]
 - (a) There shall be a minimum of two flood openings on different sides of each enclosed area; if a building has more than one enclosure below the lowest floor, each such enclosure shall have flood openings on exterior walls.
 - (b) The total net area of all flood openings shall be at least 1 square inch for each square foot of enclosed area (non-engineered flood openings), or the flood openings shall be engineered flood openings that are designed and certified by a licensed professional engineer to automatically allow entry and exit of floodwaters; the certification requirement may be satisfied by an individual

certification or an Evaluation Report issued by the ICC Evaluation Service, Inc.

- (c) The bottom of each flood opening shall be 1 foot or less above the higher of the interior floor or grade, or the exterior grade, immediately below the opening.
- (d) Any louvers, screens or other covers for the flood openings shall allow the automatic flow of floodwaters into and out of the enclosed area.
- (e) If installed in doors, flood openings that meet requirements of paragraphs (a) through (d), are acceptable; however, doors without installed flood openings do not meet the requirements of this section.

(Ord. No. 2015-04, Att.(§ 5.4), 7-13-2015)

Sec. 102-75. Nonresidential structures and nonresidential portions of mixed use structures.

New nonresidential structures and nonresidential portions of mixed use structures, and substantial improvement (including repair of substantial damage) of existing nonresidential structures and nonresidential portions of mixed use structures shall comply with the applicable requirements of article III and the requirements of this section. See section 102-76 for requirements for horizontal additions.

- (A) *Elevation requirements.* Elevated structures shall:
 - (1) Have the lowest floor (including basement) elevated to or above the flood protection elevation; or
 - (2) In areas of shallow flooding (Zone AO), have the lowest floor (including basement) elevated at least as high above the highest adjacent

grade as the depth number specified in feet on the FIRM plus two feet, or at least four feet if a depth number is not specified; and

- (3) Have enclosures below the lowest floor, if any, that comply with the requirements of subsection 102-74(C); or
- (4) If proposed to be elevated on fill, meet the limitations on fill in subsection 102-74(B).

(B) *Floodproofing requirements.*

- (1) Floodproofing of new nonresidential buildings is not allowed in nontidal waters of the State (COMAR 26.17.04.11(B)(7)).
- (2) Floodproofing for substantial improvement of nonresidential buildings is allowed in nontidal waters of the State.
- (3) If floodproofing is proposed, structures shall:
 - (a) Be designed to be dry floodproofed such that the building or structure is watertight with walls and floors substantially impermeable to the passage of water to the level of the flood protection elevation plus 1.0 foot; or
 - (b) If located in an area of shallow flooding (Zone AO), be dry floodproofed at least as high above the highest adjacent grade as the depth number specified on the FIRM plus three feet, or at least five feet if a depth number is not specified; and
 - (c) Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy;

(d) Have floodproofing measures that are designed taking into consideration the nature of flood-related hazards; frequency, depth and duration of flooding; rate of rise and fall of floodwater; soil characteristics; flood-borne debris; at least 12 hours of flood warning time from a credible source; and time necessary to implement any measures that require human intervention;

(e) Have at least one door above the applicable flood elevation that allows human ingress and egress during conditions of flooding;

(f) Have an operations and maintenance plan that is filed with local emergency management officials and that specifies the owner/occupant's responsibilities to monitor flood potential; the location of any shields, doors, closures, tools, or other goods that are required for implementation; maintenance of such goods; methods of installation; and periodic inspection; and

(g) Be certified by a licensed professional engineer or licensed architect, through execution of a floodproofing certificate that states that the design and methods of construction meet the requirements of this section. The floodproofing certificate shall be submitted with the construction drawings as required in subsection 102-25(A)(13).

(Ord. No. 2015-04, Att.(§ 5.5), 7-13-2015)

Sec. 102-76. Horizontal additions.

(A) A horizontal addition proposed for a building or structure that was constructed after the date specified in section 102-1 shall comply with the applicable requirements of article III and this section.

(B) In nontidal waters of the State that are subject to the regulatory authority of MDE, all horizontal additions shall comply with the applicable requirements of article III and this section and:

- (1) If the addition is structurally connected to the base building, the requirements of paragraph (C) apply.
- (2) If the addition has an independent foundation and is not structurally connected to the base building and the common wall with the base building is modified by no more than a doorway, the base building is not required to be brought into compliance.

(C) For horizontal additions that are structurally connected to the base building:

- (1) If the addition combined with other proposed repairs, alterations, or modifications of the base building constitutes substantial improvement, the base building and the addition shall comply with the applicable requirements of article III and this section.
- (2) If the addition constitutes substantial improvement, the base building and the addition shall comply with all of the applicable requirements of article III and this section.

(D) For horizontal additions with independent foundations that are not structurally connected to the base building and the common wall with the base building is modified by no more than a doorway, the base building is not required to be brought into compliance.

(E) A horizontal addition to a building or structure that is not substantial improvement, and is not located in nontidal waters of the state, is not required to comply with this section.

[Note: See "Substantial Improvement/Substantial Damage Desk Reference" (FEMA P-758).]

(Ord. No. 2015-04, Att.(§ 5.6), 7-13-2015)

Sec. 102-77. Accessory structures.

(A) Accessory structures shall be limited to not more than 300 square feet in total floor area.

(B) Accessory structures shall comply with the elevation requirements and other requirements of section 102-74, the floodproofing requirements of section 102-75(B), or shall:

- (1) Be useable only for parking of vehicles or limited storage;
- (2) Be constructed with flood damage-resistant materials below the base flood elevation;
- (3) Be constructed and placed to offer the minimum resistance to the flow of floodwaters;
- (4) Be anchored to prevent flotation;
- (5) Have electrical service and mechanical equipment elevated to or above the base flood elevation; and
- (6) Have flood openings that meet the requirements of subsection 102-74(C).

(Ord. No. 2015-04, Att.(§ 5.7), 7-13-2015)

Secs. 102-78—102-90. Reserved.**ARTICLE V. RESERVED****Secs. 102-91—102-100. Reserved.**

ARTICLE VI. VARIANCES**Sec. 102-101. General.**

The board of zoning appeals shall have the power to consider and authorize or deny variances from the strict application of the requirements of these regulations. A variance shall be approved only if it is determined to not be contrary to the public interest and where, owing to special conditions of the lot or parcel, a literal enforcement of the provisions of these regulations, an unnecessary hardship would result.

Upon consideration of the purposes of these regulations, the individual circumstances, and the considerations and limitations of this section, the board of zoning appeals may attach such conditions to variances as it deems necessary to further the purposes of these regulations.

The board of zoning appeals shall notify, in writing, any applicant to whom a variance is granted to construct or substantially improve a building or structure with its lowest floor below the elevation required by these regulations that the variance is to the floodplain management requirements of these regulations only, and that the cost of federal flood insurance will be commensurate with the increased risk, with rates up to \$25.00 per \$100.00 of insurance coverage.

A record of all variance actions, including justification for issuance shall be maintained pursuant to subsection 102-22(J) of these regulations.
(Ord. No. 2015-04, Att.(§ 7.1), 7-13-2015)

Sec. 102-102. Application for a variance.

(A) The owner of property, or the owner's authorized agent, for which a variance is sought shall submit an application for a variance to the floodplain administrator.

(B) At a minimum, the application shall contain the following information: name, address, and telephone number of the applicant and

property owner; legal description of the property; parcel map; description of the existing use; description of the proposed use; site map showing the location of flood hazard areas, designated floodway boundaries, flood zones, base flood elevations, and flood protection setbacks; description of the variance sought; and reason for the variance request. Variance applications shall specifically address each of the considerations in section 102-103.

(C) If the application is for a variance to allow the lowest floor of a building or structure below the applicable minimum elevation required by these regulations, the application shall include a statement signed by the owner that, if granted, the conditions of the variance shall be recorded on the deed of the property.

(D) If the application is for a variance for a historic structure pursuant to section 102-46 of these regulations, the application shall contain documentation that the proposed work does not preclude the structure's continued eligibility and designation as a historic structure. The documentation shall be obtained from a source that is authorized to make such determinations (see definition of "Historic Structure").
(Ord. No. 2015-04, Att.(§ 7.2), 7-13-2015)

Sec. 102-103. Considerations for variances.

The floodplain administrator shall request comments on variance applications from MDE (NFIP state coordinator) and shall provide such comments to the board of zoning appeals.

In considering variance applications, the board of zoning appeals shall consider and make findings of fact on all evaluations, all relevant factors, requirements specified in other sections of these regulations, and the following factors:

- (A) The danger that materials may be swept onto other lands to the injury of others.
- (B) The danger to life and property due to flooding or erosion damage.

- (C) The susceptibility of the proposed development and its contents (if applicable) to flood damage and the effect of such damage on the individual owner.
- (D) The importance of the services to the community provided by the proposed development.
- (E) The availability of alternative locations for the proposed use which are not subject to, or are subject to less, flooding or erosion damage.
- (F) The necessity to the facility of a waterfront location, where applicable, or if the facility is a functionally dependent use.
- (G) The compatibility of the proposed use with existing and anticipated development.
- (H) The relationship of the proposed use to the comprehensive plan and hazard mitigation plan for that area.
- (I) The safety of access to the property in times of flood for passenger vehicles and emergency vehicles.
- (J) The expected heights, velocity, duration, rate of rise, and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site.
- (K) The costs of providing government services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems, and streets and bridges.
- (L) The comments provided by MDE (NFIP state coordinator).

(Ord. No. 2015-04, Att.(§ 7.3), 7-13-2015)

Sec. 102-104. Limitations for granting variances.

The board of zoning appeals shall make an affirmative decision on a variance request only upon:

- (A) A showing of good and sufficient cause. Good and sufficient cause deals solely

with the physical characteristics of the property and cannot be based on the character of the improvement, the personal characteristics of the owner/inhabitants, or local provision that regulate standards other than health and public safety.

- (B) A determination that failure to grant the variance would result in exceptional hardship due to the physical characteristics of the property. Increased cost or inconvenience of meeting the requirements of these regulations does not constitute an exceptional hardship to the applicant.
- (C) A determination that the granting of a variance for development within any designated floodway, or flood hazard area with base flood elevations but no designated floodway, will not result in increased flood heights beyond that which is allowed in these regulations.
- (D) A determination that the granting of a variance will not result in additional threats to public safety; extraordinary public expense, nuisances, fraud or victimization of the public, or conflict with existing local laws.
- (E) A determination that the building, structure or other development is protected by methods to minimize flood damages.
- (F) A determination that the variance is the minimum necessary to afford relief, considering the flood hazard.

(Ord. No. 2015-04, Att.(§ 7.4), 7-13-2015)

Secs. 102-105—102-120. Reserved.

ARTICLE VII. ENFORCEMENT

Sec. 102-121. Compliance required.

- (A) No building, structure or development shall hereafter be located, erected, constructed, reconstructed, improved, repaired, extended, con-

verted, enlarged or altered without full compliance with these regulations and all other applicable regulations.

(B) Failure to obtain a permit shall be a violation of these regulations and shall be subject to penalties in accordance with section 102-123.

(C) Permits issued on the basis of plans and applications approved by the floodplain administrator authorize only the specific activities set forth in such approved plans and applications or amendments thereto. Use, arrangement, or construction of such specific activities that are contrary to that authorization shall be deemed a violation of these regulations.
(Ord. No. 2015-04, Att.(§ 8.1), 7-13-2015)

Sec. 102-122. Notice of violation and stop work order.

If the floodplain administrator determines that there has been a violation of any provision of these regulations, the floodplain administrator shall give notice of such violation to the owner, the owner's authorized agent, and the person responsible for such violation, and may issue a stop work order. The notice of violation or stop work order shall be in writing and shall:

- (A) Include a list of violations, referring to the section or sections of these regulations that have been violated;
- (B) Order remedial action which, if taken, will effect compliance with the provisions of these regulations;
- (C) Specify a reasonable period of time to correct the violation;
- (D) Advise the recipients of the right to appeal; and
- (E) Be served in person; or
- (F) Be posted in a conspicuous place in or on the property and sent by registered or

certified mail to the last known mailing address, residence, or place of business of the recipients.

(Ord. No. 2015-04, Att.(§ 8.2), 7-13-2015)

Sec. 102-123. Violations and penalties.

Violations of these regulations or failure to comply with the requirements of these regulations or any conditions attached to a permit or variance shall constitute a misdemeanor. Any person responsible for a violation shall comply with the notice of violation or stop work order. Failure to comply shall be punishable as a misdemeanor, the penalty for which shall not exceed a fine of \$1,000.00 and/or imprisonment for a term not to exceed six months. Each day a violation continues shall be considered a separate offense. Nothing herein contained shall prevent the Town of Berlin from taking such other lawful action as is necessary to prevent or remedy any violation.

(Ord. No. 2015-04, Att.(§ 8.3), 7-13-2015; Ord. No. 2015-07, 10-13-2015)

Secs. 102-124—102-140. Reserved.

ARTICLE VIII. SUBSEQUENT AMENDMENTS

Sec. 102-141. Subsequent amendments.

All ordinances or parts of ordinances that are inconsistent with the provisions of this chapter are hereby repealed to the extent of such inconsistency. This chapter shall be amended as required by the Federal Emergency Management Agency, Title 44, Code of Federal Regulations. All subsequent amendments to this ordinance are subject to the approval of the Federal Emergency Management Agency and the Maryland Department of the Environment.

(Ord. No. 2015-04, Att.(§ 9.1), 7-13-2015)

Chapter 103

RESERVED

Chapter 104

HISTORIC PRESERVATION

Article I. In General

Secs. 104-1—104-18. Reserved.

Article II. Historic District

- Sec. 104-19. Findings.
- Sec. 104-20. Definitions.
- Sec. 104-21. Purpose.
- Sec. 104-22. Legislative authority.
- Sec. 104-23. Berlin Historic District established.
- Sec. 104-24. Commission established; membership; quorum.
- Sec. 104-25. Architectural easements.
- Sec. 104-26. Application required.
- Sec. 104-27. Commission considerations.
- Sec. 104-28. Additional considerations.
- Sec. 104-29. Standards for judgment.
- Sec. 104-30. Structures of unusual importance.
- Sec. 104-31. Structures and sites valuable for period of architecture represented.
- Sec. 104-32. Open meetings and records.
- Sec. 104-33. Certificate of approval required; time limit for approval.
- Sec. 104-34. Nonapplicability.
- Sec. 104-35. Violations and penalties.
- Sec. 104-36. Right to appeal.

ARTICLE I. IN GENERAL**Secs. 104-1—104-18. Reserved.****ARTICLE II. HISTORIC DISTRICT****Sec. 104-19. Findings.**

The preservation of structures and appurtenances of historic and architectural value is a public purpose in this state. The Mayor and Council believe that the public interest and convenience requires the preservation and protection of certain places and areas of historic interest, exterior architectural features and examples of the types of architecture found in the older area of the town.

(Code 1977, § 59-1(A); Ord. of 11-3-1975; Ord. No. 2004-12, 11-22-2004)

Sec. 104-20. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Appurtenances and environmental settings includes:

- (1) Paved or unpaved walkways and driveways.
- (2) Trees.
- (3) Landscaping.
- (4) Pastures.
- (5) Croplands.
- (6) Rocks.

Demolition includes any willful neglect in the maintenance and repair of a structure, including the structure's appurtenances and environmental settings, that:

- (1) Does not result from a financial inability to maintain and repair the structure or its appurtenances; and

- (2) Threatens to result in a substantial deterioration of the exterior features of a structure or appurtenance.

District means a significant concentration, linkage, or continuity of sites, structures, or objects united historically or aesthetically by plan or physical development.

Routine maintenance means work that does not alter the exterior fabric or features of a site or structure and has no material effect on the historical, archaeological, or architectural significance of the site or structure.

Site means any location in the H-1 Historic District.

Structure means a combination of material to form a construction that is stable, having a fixed or temporary location on a site.

- (1) The term "structure" includes buildings, stadiums, reviewing stands, platforms, staging, observation towers, communications towers, water tanks and towers, trestles, bridges, piers, swimming pools (permanent or temporary), paving bulkheads, wharves, sheds, coal bins, shelters, fences, recreation equipment such as portable basketball, trampolines, etc., and display signs visible or intended to be visible from a public way.
- (2) The term "structure" also includes a natural land formation and an appurtenance and environmental setting.
- (3) The term "structure" includes part of a structure.

(Code 1977, § 59-1(B); Ord. No. 2004-12, 11-22-2004)

Sec. 104-21. Purpose.

The purpose of this chapter shall be to:

- (1) Safeguard the heritage of the town by preserving the district or districts therein,

which reflect elements of its cultural, social, economic, political or architectural history.

- (2) Stabilize and improve property values in such a district or districts.
- (3) Foster civic beauty.
- (4) Strengthen the local economy.
- (5) Promote the use and preservation of historic districts for the education, welfare and pleasure of the residents of the town and county.

(Code 1977, § 59-2; Ord. No. 2004-12, 11-22-2004)

State law reference—Public purpose, Md. Ann. Code art. 66B, § 8.01.

Sec. 104-22. Legislative authority.

The Mayor and Council derive authority for this chapter by virtue of the terms of the state enabling act for municipal historic district regulation, Md. Ann. Code art. 66B, §§ 8.01 through 8.15.

(Code 1977, § 59-3; Ord. No. 2004-12, 11-22-2004)

State law reference—Historic areas, Md. Ann. Code art. 66B, § 8.01 et seq.

Sec. 104-23. Berlin Historic District established.

The Berlin Historic District shall consist of one district which is created in chapter 108, zoning. The district covers the area as shown on the zoning map, which is hereby incorporated as part of this chapter and is on file in the town offices.

(Code 1977, § 59-4; Ord. No. 2004-12, 11-22-2004)

State law reference—Zoning historic areas, Md. Ann. Code art. 66B, § 8.01 et seq.

Sec. 104-24. Commission established; membership; quorum.

(a) The Mayor and Council hereby creates a commission to be called the historic district commission.

(b) This commission shall have a membership of five persons and an alternate, all of whom are qualified by interest and agree to serve on this commission. All members shall be residents of the town. At least one member shall be a resident of the Berlin Historic District. The members shall be appointed for staggered terms of three years. Members of the commission are eligible for reappointment.

(c) The Mayor and Council shall fill any vacancy on the commission for the unexpired term of the particular position.

(d) The Mayor and Council may consult private societies or agencies to request the names of possible members of the commission.

(e) Three members of the commission shall constitute a quorum for the transaction of business, and no action shall be taken without the affirmative vote of three members of the commission.

(Code 1977, § 59-5; Ord. No. 2004-12, 11-22-2004; Ord. No. 2009-03, 3-9-2009; Ord. No. 2009-06, 5-11-2009)

State law reference—Historic district commission, Md. Ann. Code art. 66B, § 8.03.

Sec. 104-25. Architectural easements.

The historic district commission may purchase architectural easements in connection with structures and sites located in or adjacent to the historic district. Such easement shall grant to the commission, the residents of the historic district and the general public the perpetual right to have the exterior appearance of any structure or site upon which it is applied retained in substantially the same character as when the easement took effect.

(Code 1977, § 59-6; Ord. No. 2004-12, 11-22-2004)

State law reference—Easements, Md. Ann. Code art. 66B, § 8.04.

Sec. 104-26. Application required.

Before the construction, alteration, repair, moving or demolition of any structure, including,

without limitation, a change of exterior color, wall or roof surfacing materials, is made within the historic district, which would affect the exterior appearance of a structure or site in the district, the person proposing the construction or change shall file with the historic district commission, through the planning director or other designated person, an application for permission to build, alter, repair, move, demolish or make the addition. The application shall be made upon forms provided by the commission. Every such application shall be referred to and considered by the historic district commission, and no permit for any change may be granted until the commission has acted thereon as hereinafter provided.

(Code 1977, § 59-7; Ord. No. 2004-12, 11-22-2004)

State law reference—Application, Md. Ann. Code art. 66B, § 8.05.

Sec. 104-27. Commission considerations.

In reviewing the plans for any such construction or change to any structure, site or other appurtenances in relation to the surrounding area, the historic district commission shall give consideration to:

- (1) The historic or architectural value and significance of the structure, site and all other appurtenances and their relationship to the historic value of the surrounding area.
- (2) The relationship of the exterior architectural features of the structure, site and to the remainder of the structure and other appurtenances to the surrounding area.
- (3) The general compatibility of the exterior design, arrangement, texture and materials proposed to be used for any structure or appurtenance.
- (4) Any other factors, including aesthetic factors, which the commission deems to be pertinent.

(Code 1977, § 59-8; Ord. No. 2004-12, 11-22-2004)

Sec. 104-28. Additional considerations.

(a) The historic district commission shall only consider exterior features of a structure and site and shall not consider any interior arrangements. Also, the commission shall not disapprove an application except with respect to the several factors specified in section 104-27.

(b) The historic district commission may adopt guidelines with respect to this article and may give advisory opinions.

(Code 1977, § 59-9; Ord. No. 2004-12, 11-22-2004)

Sec. 104-29. Standards for judgment.

The historic district commission shall be strict in its judgment of plans for those structures and sites deemed to be valuable according to studies performed for districts of historic or architectural value. The commission shall be lenient in its judgment of plans for structures of little historic value or for plans involving new construction, unless such plans would seriously impair the historic or architectural value of surrounding structures and/or sites. The commission is not required to limit new construction, alteration or repairs to the architectural style of any one period. The commission may, from time to time, make studies of the historic district, identify structures of unusual importance or significance and adopt plans in furtherance of the purpose of this chapter.

(Code 1977, § 59-10; Ord. No. 2004-12, 11-22-2004)

State law reference—Guidelines, Md. Ann. Code art. 66B, § 8.06.

Sec. 104-30. Structures of unusual importance.

If an application is submitted for repairs or alterations and construction affecting a site or the exterior appearance of a structure and other appurtenances or for the moving or demolition of a structure and other appurtenances, the preservation of which the historic district com-

mission deems of unusual importance to the county or town or of unusual importance to the entire state or nation, the commission shall attempt, with the owner of the structure, to formulate an economically feasible plan for the preservation of the site or structure. Unless in these circumstances the commission is satisfied that the proposed construction, alteration or repair will not materially impair the historic value of the structure and/or surrounding site, the commission shall reject the application for repair or alteration, filing a copy of its rejection with the Mayor and Council. An application for any such repair, alteration, or construction, if rejected, shall not be renewed within a period of one year after the rejection.

(Code 1977, § 59-11; Ord. No. 2004-12, 11-22-2004)

Sec. 104-31. Structures and sites valuable for period of architecture represented.

In the case of a structure or site deemed to be valuable for the period of architecture it represents and to be important to the neighborhood within which it exists, the commission may approve the proposed repair or alteration despite the fact the changes come within the provisions of section 104-30 if:

- (1) The structure or appurtenance is a deterrent to a major improvement program which will be of substantial benefit to the town;
- (2) Retention of the structure would cause undue financial hardship to the owner; or
- (3) The retention of the structure would not be in the best interest of a majority of persons in the community.

(Code 1977, § 59-12; Ord. No. 2004-12, 11-22-2004)

Sec. 104-32. Open meetings and records.

All meetings of the historic district commission shall be open to the public. Any interested

person or his representative is entitled to appear and be heard by the commission before it reaches a decision on any matter. The commission shall keep an open record of its resolution, proceedings and actions that shall be kept available for public inspection during reasonable business hours. The commission may adopt reasonable rules or procedures with regard to the conduct of its meetings. Properties that are the subject of historic district applications shall be posted by the planning director or other designated person of the jurisdiction with a notice of the time, place and date of the hearing on the application for 14 days prior to the hearing. Notices of all commission meetings shall be posted at town hall.

(Code 1977, § 59-13; Ord. No. 2004-12, 11-22-2004)

State law reference—Meetings open to the public, Md. State Government Code Ann. § 10-505.

Sec. 104-33. Certificate of approval required; time limit for approval.

(a) The historic district commission shall file with the planning director or other designated person a certificate of its approval, modification or rejection of all applications and the plans submitted to it for review. Work shall not be commenced on any such project until such a certificate of approval has been filed, and the planning director or other designated person shall not issue a building permit for such a change or construction unless and until the planning director or other designated person has received such a certificate of approval.

(b) The failure of the commission to act upon an application within 45 days from the date the application was filed shall be deemed to constitute automatic approval of the proposed changes unless an extension of this 45-day period is agreed upon mutually by the applicant and the commission.

(Code 1977, § 59-14; Ord. No. 2004-12, 11-22-2004)

Sec. 104-34. Nonapplicability.

Nothing in this chapter shall be taken or construed to prevent work and repairs on any site or structure coming under the heading of ordinary maintenance. Nothing in this chapter affects the right to complete any work covered by a permit or authorization issued prior to the effective date of the ordinance from which this chapter is derived.

(Code 1977, § 59-15; Ord. No. 2004-12, 11-22-2004)

by filing with the planning director and with the board of appeals a notice of appeal specifying the grounds thereof. Any person aggrieved by any decision of the board of appeals may appeal the same to the circuit court for the county. (Code 1977, § 59-17; Ord. No. 2004-12, 11-22-2004)

State law reference—Appeals, Md. Ann. Code art. 66B, § 8.15.

Sec. 104-35. Violations and penalties.

(a) Any person or agent of such, in violation of constructing, altering, moving, demolishing or repairing a site or structure within the historic district where such changes are visible from a public way without having secured the approval of the historic district commission as required by this article, or fail to comply with any requirement or condition imposed by the commission, shall be deemed guilty of a municipal infraction and shall be fined not less than \$25.00 nor more than \$400.00. Each and every day during which such violation continues may be deemed a separate offense.

(b) In addition to other remedies and penalties, where there is any violation of this article, the building inspector, the historic district commission or the board of appeals, through the town attorney, shall constitute appropriate action to prevent, enjoin, abate or remove such violation.

(Code 1977, § 59-16; Ord. No. 2004-12, 11-22-2004)

Sec. 104-36. Right to appeal.

Any person or persons, firm or corporation aggrieved by a decision of the historic district commission shall have the right of appeal concerning such decision to the board of appeals pursuant to sections 108-188 through 108-195. Such appeal shall be taken within 20 days after the decision of the historic district commission

Chapter 105

RESERVED

Chapter 106

SUBDIVISION OF LAND*

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ARTICLE I. IN GENERAL**Sec. 106-1. Application and interpretation of provisions.**

The rules and regulations governing subdivisions of land contained herein shall apply within the corporate limits of the town. These regulations shall be in addition to any others promulgated by law or by the state board of health or other authority, and in case of any conflict the more exacting requirements shall prevail. (Code 1977, § 94-1; Ord. of 4-3-1967)

Sec. 106-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Access street means a street for the sole purpose of providing frontage for service and access to private or public lots. These streets carry only traffic having either destination or origin on the street itself and shall not serve more than 20 dwelling units.

Alley means a way which affords generally a secondary means of vehicular access to abutting properties and not intended for general traffic circulation.

Collector street, major, means a street which, in addition to providing access to properties abutting thereon, is intended to collect traffic from or distribute it to a series of minor streets within a neighborhood or sub-neighborhood, and which serves more than 150 dwelling units.

Collector street, minor, means a street which provides access to abutting properties, conducts traffic from access streets and which does not serve an adjoining development or more than 150 dwelling units.

Comprehensive plan means the officially adopted Comprehensive Plan of the Town of Berlin, Maryland, for the physical development of the community or any part of such plan.

Crosswalkway means a passageway for pedestrians, excluding motor vehicles, which cuts through a block.

Easement means a strip of land on which a limited right-of-way is provided for one or more designated purposes, without including title to the land.

Lot, double-frontage, means a lot extending through the block from one street to another.

Major street plan means the official plan of major streets, highways, roads and other ways adopted by the town planning and zoning commission and the Mayor and Council in accordance with Md. Ann. Code art. 66B.

Planning and zoning commission means the town planning and zoning commission.

Subdivide means the act of creating a subdivision as herein defined.

Subdivision means the division of any tract or parcel of land into two or more plots, parcels, lots or sites for the purpose, whether immediate or future, of transfer of ownership or of building development, any one of which resulting lots, plots, parcels or sites is less than five acres in area or 400 feet in frontage, except that in cases of the sale of one parcel creating a division of an existing parcel, the planning and zoning commission is authorized to waive the provisions of these regulations in its discretion. (Code 1977, § 94-2; Ord. of 4-3-1967; Ord. No. 78-5, 11-20-1978; Ord. No. 1999-3, 5-10-1999)

Sec. 106-3. Preparation and recording of plat required.

Any owner or proprietor of any tract of land located in the territory to which this chapter may apply who subdivides the same shall cause a plat of such subdivision to be made in accor-

dance with the regulations set forth herein and in Md. Ann. Code art. 66B, § 3.01 et seq. after having secured the approval thereof by the planning and zoning commission as provided herein, shall cause a copy of said plat to be recorded in the office of the clerk of the circuit court. (Code 1977, § 94-3; Ord. of 4-3-1967)

Sec. 106-4. Approval of plat required; applicability of Worcester County Forest Conservation Law.

(a) No plat of any subdivision shall be recorded until it shall have been submitted to and approved by the planning and zoning commission as provided herein. The planning and zoning commission shall not approve said plat unless it is satisfied that the requirements of this chapter have been complied with.

(b) The Worcester County Forest Conservation Law shall apply to all subdivisions under this chapter of more than 40,000 square feet, except those excepted activities as set forth in the Code of Public Local Laws of Worcester County, Maryland, in the Natural Resources Article, § 1-403(b). (Code 1977, § 94-4; Ord. of 4-3-1967; Ord. No. 1996-5, 4-29-1996)

Sec. 106-5. Transfer of land; issuance of building permits.

No land in a subdivision created after the adoption of this chapter shall be transferred, sold or offered for sale, nor shall a building permit be issued for a structure thereon, until a final plat of such subdivision shall have been recorded in accordance with this chapter and the provisions of state law. (Code 1977, § 94-5; Ord. of 4-3-1967)

Sec. 106-6. Violations and penalties.

Any person who violates this chapter shall be subject to the penalties prescribed in the state law. (Code 1977, § 94-6; Ord. of 4-3-1967)

State law reference—Civil penalty for transfer of lots in unapproved subdivision, Md. Ann. Code art. 66B, § 5.05.

Secs. 106-7—106-30. Reserved.

ARTICLE II. PROCEDURES AND REQUIREMENTS

DIVISION 1. GENERALLY

Sec. 106-31. Subdivision procedures.

In planning and developing a subdivision, the subdivider or his agent shall comply with the general principles of design and minimum requirements for the layout of subdivisions set forth in Appendix I, section 106-140 and with the rules and regulations concerning required improvements set forth in Appendix II section 106-141, and in every case, he shall observe the procedures in this article. (Code 1977, § 94-7; Ord. of 4-3-1967)

Sec. 106-32. Preliminary conference.

Before undertaking the preparation of a subdivision plat, the subdivider or his engineer should consult with the planning and zoning commission or its agent to ascertain the location of proposed major roads or highways, parkways, parks, playgrounds, land use and other planned developments, as well as the zoning, sanitation and other regulations, and the requirements for drainage and utilities, relating to, affecting or applying to the subdivision of his property. He should bring with him a sketch of his property, to approximate scale, showing the boundaries, general topography, important physical features and other significant information, as well as his conception or proposed scheme for the development of the property. The planning and zoning commission or its agent will try to assist the subdivider by furnishing information and advice so as to expedite matters for the subdivider, save him from unnecessary expense and promote the best coordination between the plans of the subdivider and those of the community. The planning and zoning commission, however, will

not undertake to design the subdivision or to perform other services for which a qualified land planner should more properly be engaged. (Code 1977, § 94-7(A); Ord. of 4-3-1967)

Sec. 106-33. Preliminary plat.

(a) The subdivider shall then prepare a preliminary plat of the proposed subdivision conforming to the requirements set forth in this division. At least two weeks prior to a regularly scheduled meeting of the planning and zoning commission at which action on such plat is desired, three black-line or similar prints of the plat shall be filed with the secretary of the planning and zoning commission, together with an application, in writing, for its tentative approval. In case the proposed subdivision or any part thereof is located outside the corporate limits but within one mile thereof, additional copies of the preliminary plat sufficient to meet the requirements, if any, of the county shall be filed at the same time. The secretary of the planning and zoning commission shall transmit these copies to the county authorities for their information and appropriate action.

(b) The preliminary plat will be checked by the planning and zoning commission or its agent as to its conformity with the major street plan and other pertinent features of the comprehensive plan, other applicable provisions and the principles, standards and requirements hereinafter set forth. Copies will be referred for their recommendations or other appropriate actions to all other officials concerned with public improvements or health requirements. At the planning and zoning commission meeting, the planning and zoning commission's agent shall submit his findings and recommendations together with those of the other officials to whom copies were referred, and the planning and zoning commission will tentatively approve or disapprove the preliminary plat or may approve it subject to specific changes or modifications. A copy shall be retained in the planning and zoning commission files. Tentative approval of a preliminary

plat shall be valid for not more than one year unless extended by the planning and zoning commission upon request. No plat shall be approved that is in conflict with the zoning regulations or with any part of an officially adopted feature of the comprehensive plan. (Code 1977, § 94-7(B); Ord. of 4-3-1967)

Sec. 106-34. Improvement plans.

(a) Upon tentative approval of the preliminary plat, the subdivider may prepare and submit to the planning and zoning commission plans for the installation of improvements in accordance with the requirements of division 3 of this article. Such plans shall be sufficient to show the proposed location, size, type, grade, elevation and other significant characteristics of each improvement. All such improvements shall be designed in compliance with and to the standards, plans and specifications set forth in this chapter. Copies of such improvement plans will be referred by the planning and zoning commission to the appropriate officials for checking and approval, subject to such changes or conditions as in their judgment may be required. Said plans shall then be returned to the planning and zoning commission which shall notify the subdivider of such approval. Plans for the installation of improvements need not be prepared at any one time to cover more than the portion of the subdivision which is to be included in a final plat.

(b) Upon being notified that the improvement plans have been approved, the subdivider may proceed with the installation of such improvements after obtaining from the appropriate officials the necessary permits to do so; or, in lieu of this, he may post with the Mayor and Council a performance bond running to the town in an amount sufficient to cover the cost of any or all of the improvements, as estimated by the appropriate officials, to ensure the actual construction and installation of such improvements within a time limit and according to other requirements to be specified in each case by said Mayor and Council. (Code 1977, § 94-7(C); Ord. of 4-3-1967)

Sec. 106-35. Final plat.

(a) If the subdivider proceeds with the installation of required improvements, then, upon receipt of a report from each of the appropriate officials that such improvements have been completed to his satisfaction, the planning and zoning commission will recommend to the Mayor and Council that they accept the roads and other improvements, and the planning and zoning commission will consider an application for approval of the final plat; or, if the subdivider follows the alternative procedure of posting bond, as provided in section 106-34(b), and installing the improvements later, then the planning and zoning commission will receive and consider the final plat before completion of the improvements.

(b) A final plat may include all of the property covered by the preliminary plat or may be limited to any portion thereof that is intended to be developed as a first unit. Additional final plats may be submitted later, covering additional units of the property, provided that the preliminary plat is still valid or its approval has been extended. Every final plat shall be substantially in accordance with the tentatively approved preliminary plat, including such changes or additions as may have been required by the commission as a condition to its tentative approval, and it shall conform in every respect to the requirements specified in division 4 of this article.

(c) The subdivider shall file with the planning and zoning commission, at least two weeks prior to its meeting, a final plat drawn with ink on tracing cloth or vellum, together with an application in writing for the approval thereof. The plat shall be checked by the commission for compliance with this article and with the conditions of tentative approval, the necessary copies of said plat shall be made as required in section 106-36.

(Code 1977, § 94-7(D); Ord. of 4-3-1967)

Sec. 106-36. Approval of final plat.

(a) Upon finding by the planning and zoning commission as to the adequacy and compliance of the final plat, and its receipt of reports from

the responsible officials as to the satisfactory installation of required improvements or the posting of bond therefor, then the planning and zoning commission may approve said final plat and shall endorse the fact of such approval on each of the several prints by the signature of its chairperson and the planning director of the town in the spaces to be provided therefor. No final plat shall be approved, however, unless it is found by the planning and zoning commission to conform to the preliminary plat as tentatively approved and to be in conformity otherwise with the requirements of this chapter. The planning director or subdivider of property shall then file the number of plats as required for record with the clerk of the circuit court of the county and shall distribute other prints as follows: one to the supervisor of assessments, one to the county health department, if required, and one for the planning and zoning commission files. One signed copy shall be returned to the subdivider.

(b) Approval of the final plat by the planning and zoning commission shall not be deemed to constitute or effect an acceptance by the public of the dedication of any street or other proposed public way or space shown on said plat, but the showing of such ways or spaces shall be deemed to be an offer of dedication which may be accepted by the public through any subsequent appropriate act.

(Code 1977, § 94-7(E); Ord. of 4-3-1967; Ord. No. 1999-3, 5-10-1999)

Sec. 106-37. Fees.

At the time of filing each preliminary plat, an applicant shall pay a fee to the town in accordance with a fee schedule adopted by resolution of the Mayor and Council or as such schedule may be amended from time to time. The fee schedule is on file in the town offices.

(Code 1977, § 94-7(F); Ord. of 4-3-1967; Ord. No. 91-1, 4-8-1991; Ord. No. 199-3, 5-10-1999)

Secs. 106-38—106-62. Reserved.

DIVISION 2. PRELIMINARY PLAT

Sec. 106-63. Requirements for general style and form.

The preliminary plat of the proposed subdivision shall comply with the following requirements and contain the following information:

- (1) It shall provide all the pertinent information as to existing site conditions, property ownership and the like that may be necessary for the planning and zoning commission to properly consider the proposed subdivision. This information shall be accurate and reliable.
- (2) It shall show the general plan of ultimate development for the property, covering the entire tract of land or so much of it as may be considered to be necessary for an adequate consideration of the part to be subdivided. This information should be in preliminary form, drawn to scale, but not engineered or surveyed.
- (3) It may be drawn in black ink on transparent Mylar or linen or black-line photo process, but shall not be at a scale smaller than one inch per 100 feet.
- (4) It shall include a small-scale map showing the location of the property in the community and its relation to other subdivisions, roads, streams, etc.

(Code 1977, § 94-8(A); Ord. of 4-3-1967)

Sec. 106-64. Title information.

The preliminary plat of the proposed subdivision shall contain the following information:

- (1) Proposed subdivision name, which shall not duplicate nor closely approximate the name of any other subdivision in Worcester County.
- (2) Names and addresses of the owner, subdivider or developer and the designer, surveyor or engineer.

- (3) Description of subdivision location by streets, tract, political subdivision, etc.

- (4) Scale, North point and date.
(Code 1977, § 94-8(B); Ord. of 4-3-1967)

Sec. 106-65. Information as to existing physical conditions.

The preliminary plat of the proposed subdivision shall contain the following information as to physical conditions:

- (1) Boundaries of the land being subdivided, in heavy outline, and the acreage therein.
- (2) Topographic contours, referenced to United States Geological Survey data, at five-foot intervals except where the average slope is less than three percent, in which case two-foot contours will be required. Contours shall extend 100 feet beyond the subdivision boundary except across a public road.
- (3) Watercourses, important trees, wooded areas, buildings, transmission lines, pipelines, other utilities, bridges and any other significant physical items, with the sizes and grades of any water or sewer lines.
- (4) Locations, widths and names of all existing streets, alleys or other public ways within or adjoining the subdivision or intersecting any street that bounds it; those recorded but unimproved (shown by dotted lines); railroad, utility or other rights-of-way or easements; parks and other public spaces; subdivisions, lots and property lines; municipal corporation lines; and the approximate locations and outlines of permanent buildings.
- (5) Existing zoning of the tract and adjacent properties.
- (6) Information as to the minimum permissible lot sizes on the land in question, to

be obtained from the county health officer where sanitary sewers or public water facilities are not to be provided.

- (7) All existing tract lines with appropriate land record references.

(Code 1977, § 94-8(C); Ord. of 4-3-1967)

Sec. 106-66. Information as to proposed development.

The preliminary plat of the proposed subdivision shall contain the following information as to proposed development:

- (1) Layout, widths and names of proposed streets, alleys, crosswalks and easements.
- (2) Layout, numbering and appropriate dimensions of proposed lots or parcels.
- (3) Parcels of land intended to be conveyed or temporarily reserved for public use or for the joint use of property owners, with an explanation of the provisions or conditions of such conveyance or reservation and the proposed arrangement for ownership and maintenance.
- (4) Tentative grade on each street.
- (5) Tentative locations for utilities and drainage facilities, with easements where necessary.
- (6) Proposed building lines along all streets, with the amount of setback indicated.
- (7) Proposed uses of property and any proposed zoning changes.
- (8) Outline of proposed deed restrictions.
- (9) General description of street and other public improvements proposed to be installed. (See division 3 of this article. Detailed plans for these are to be prepared after tentative approval of the preliminary plat).

(Code 1977, § 94-7(D); Ord. of 4-3-1967)

State law reference—Preliminary plat requirements, Md. Real Property Code Ann. § 3-108.

Secs. 106-67—106-90. Reserved.

DIVISION 3. IMPROVEMENTS

Sec. 106-91. Required.

The minimum improvements that a subdivider will be required to provide and install in a subdivision, or to enter into agreement to provide and install, prior to the approval of the final plat thereof shall be as prescribed in the following. All such improvements shall conform to the standards, specifications and other requirements adopted by the town or by such other governmental agency as may have jurisdiction over each facility, as stipulated below, which rules and regulations are hereby made a part hereof. Nothing, however, shall be construed as prohibiting a subdivider from installing improvements of a higher type than the minimums required herein.

- (1) The required improvements shall be completed, inspected and accepted by the proper authorities prior to approval by the planning and zoning commission of the final plat and its recording.
- (2) In lieu of completing the improvements as required in subsection (1) of this section, the subdivider may furnish to the Mayor and Council a satisfactory bond or letter of credit in an amount sufficient to cover 150 percent of the estimated cost of such improvements, for the purpose of guaranteeing to the town that the subdivider will complete the installation of the improvements within such reasonable time limit as may be designated by the Mayor and Council in each case.

(Code 1977, § 94-9(A); Ord. of 4-3-1967; Ord. No. 1992-2, 2-10-1992)

Sec. 106-92. Minimum requirements.

- (a) *Streets.* All new streets shall be graded and drained, base material applied, curb and gutter constructed where required, surfacing ap-

plied, utilities installed and street name signs erected, all in accordance with the minimum standards of design and construction adopted by the town or county for acceptance into the appropriate system of public streets or roads. Existing roads and streets within or adjoining the subdivision that do not meet these specifications as to width or construction shall be widened and brought up to standard on the sides which adjoin the subdivision, if any lots in the subdivision front thereon; or a service road may be provided along the front of such lots, separated from the main road.

(b) *Pavement widths.* The minimum widths of pavement required to be installed at the subdivider's expense shall be as follows:

- (1) Major collector streets and highways, as shown on the official major street plan:
 - a. 36 feet in residential areas;
 - b. 40 feet in business or industrial areas.
- (2) Minor collector streets:
 - a. 24 feet in residential areas;
 - b. 40 feet in business or industrial areas.
- (3) Access streets: 20 feet, with parking permitted on one side only.
- (4) Turning circles:
 - a. Minimum outside diameter in residential areas of 70 feet; and
 - b. 80 feet in business areas.
- (5) Alleys: 12 feet, having no parking on either side.

(c) *Shoulders.* Stabilized shoulders at least three feet in width shall be provided on both sides of the pavement, except for one side in the case of service roads and except where standard curbs are installed.

(d) *Curbs and gutters.* These shall be provided in residential subdivisions where the average lot width is less than 100 feet and in front

of all business lots. The face of the curb shall be located on the line of the outside edge of the required pavement.

(e) *Drains.* In the absence of curb and gutter, a stabilized drainageway shall be provided outside the shoulder, conforming to the standards of cross section and construction adopted by the town.

(f) *Water facilities.* Every subdivision shall be provided with a standard water distribution system, including a connection for each lot and appropriately spaced fire hydrants, which system shall conform to the general water system plan and standards of the town and shall become a part thereof; provided, however, that in locations within the town that cannot be reached by the town water system at a reasonable cost, the Mayor and Council may approve the installation of a self-contained system acceptable to the appropriate health authorities on condition that it shall be designed in accordance with town standards and shall be connected to the town system as soon as practicable. Every such installation shall be given to and operated by the town as though it were a part of the general system.

(g) *Sewer facilities.* Every subdivision shall be provided with a sanitary sewer system connected to the municipal system and becoming a part thereof. Every such installation shall be designed in accordance with the general sewer system plan and standards of the town.

(h) *Drainage.* Every subdivision shall be provided with storm drains, culverts, curbs and gutters, drainage ways or other works adequate to collect and dispose of all water originating on or flowing across the property without inundating or damaging roads, lots or other properties.

(i) *Street signs.* Name signs of an approved design shall be erected at each new street intersection.

(j) *Monuments.* Permanent monuments shall be set by the surveyor, as required for markers in Md. Real Property Code Ann. § 3-108. Iron pipes shall be set along the property lines of all streets at points of intersection, curvature or tangency and at such points along the subdivision boundaries as may be necessary to identify their locations. All monuments shall be located and identified upon the final plat.

(k) *Street lighting.* Every subdivision shall be provided, by the developer, with street lighting connected to the municipal electrical distribution system and shall become a part thereof. Every such installation shall be designated in accordance with the general electric system plan and standards of the town.
(Code 1977, § 94-9(B); Ord. of 4-3-1967; Ord. No. 78-51, 11-20-1978; Ord. No. 1996-4, 4-29-1996; Ord. No. 1999-3, 5-10-1999)

Sec. 106-93. Improvement plans.

Plans for the foregoing improvements shall be prepared for approval by the appropriate public authorities, as provided in division 2 of this article, prior to construction. Such plans need not be detailed construction plans, but shall be sufficient to show the proposed locations, sizes, types, grades and general design features of each facility, including the following:

- (1) Profile of each street centerline, with grades (including projections beyond the subdivision boundaries where significant), and showing water and sewer lines, manholes, culverts, streams, etc., at a scale of one inch to 100 feet or less horizontal and one inch to ten feet or less vertical.
- (2) Typical street cross sections for all streets, at a scale not smaller than one inch to five feet, showing width of roadway, type of paving, locations and widths of curbs, sidewalks, trees, utilities, etc. Where considerable cuts or fills are required, special cross sections shall be prepared to

show proposed grading, and their locations shall be shown on the plan. A grading plan showing existing and proposed contours may be furnished in lieu of cross sections.

- (3) Location plans and profiles for proposed sanitary and storm sewers or drains, with grades and pipe sizes indicated.
- (4) Location plan of proposed water distribution system showing pipe sizes and locations for valves and fire hydrants.
(Code 1977, § 94-9(C); Ord. of 4-3-1967)

Sec. 106-94. Inspection and acceptance.

All construction work on improvements required herein shall be subject to inspection during and upon completion of construction by authorized engineering representatives of the town or other agency having jurisdiction, and to approval and acceptance by such representatives on behalf of the town or other agency, if found to be in accordance with the approved plans. No final plat shall be approved or recorded until all required improvements shall have been satisfactorily completed and accepted in compliance herewith, or satisfactory bond posted; and no such bond shall be released until all improvements secured by such bond shall have been completed and accepted in compliance herewith.

(Code 1977, § 94-9(D); Ord. of 4-3-1967)

Secs. 106-95—106-116. Reserved.

DIVISION 4. FINAL PLAT REQUIREMENTS

Sec. 106-117. General style and form.

The final plat of the subdivision shall comply with the following requirements and contain the following information:

- (1) It shall be legibly and accurately drawn on tracing cloth, in sheets not more than 18 inches by 24 inches in size, and at a

scale of one inch to 50 feet or one inch to 100 feet, depending upon the size and nature of the subdivision.

- (2) It shall conform in all respects to the requirements of Md. Real Property Code Ann. § 3-108 which relates to the making, filing and recording of plats.

(Code 1977, § 94-10(A); Ord. of 4-3-1967; Ord. No. 78-5, 7-15-1974)

Sec. 106-118. Title information.

The final plat of the subdivision shall contain the following title information:

- (1) Subdivision name.
- (2) Location by town or election district, county and state.
- (3) Names and addresses of the owners of record, the subdivider and the engineer or surveyor.
- (4) Scale, date and north point.
- (5) A marginal location map.

(Code 1977, § 94-10(B); Ord. of 4-3-1967)

Sec. 106-119. Graphic information.

The final plat of the subdivision shall contain the following graphic information:

- (1) Exact boundaries of the area included within the subdivision, with dimensions to hundredths of a foot and bearings to half minutes. These boundaries shall be determined by an accurate survey in the field, which shall be balanced and closed with an error of closure of not to exceed one in 10,000.
- (2) Bearings and distances to the nearest recorded property corners or other monuments which shall be located or accurately described on the plat.
- (3) Accurate locations and descriptions of all permanent monuments.

- (4) Names and locations of adjoining subdivisions or the locations and ownerships of adjoining unsubdivided property;

- (5) Existing tract lines with appropriate land record references;

- (6) Exact location, width and name of each existing or recorded road or street adjoining or intersecting the boundaries of the tract.

- (7) Exact location and width of every road, street, alley, easement or other public or private way within the tract with the length and bearing of every tangent, lengths of area, radii, internal angles, points of curvature and any other necessary engineering data and with the names of such ways and the purposes of easements or other ways.

- (8) Accurate location of every lot line with its dimension to hundredths of a foot and bearing to minutes, except that this data need not be repeated on a series of parallel lines or lines of the same length.

- (9) Building setback lines drawn to scale and dimensioned to street lines.

- (10) Blocks lettered in alphabetical order and lots numbered in numerical order within each block.

- (11) Accurate outlines of any areas dedicated or reserved for public use, or for any other purpose except sale, with the purpose indicated.

- (12) Accurate location of any municipal or district line traversing or closely related to the tract.

- (13) Existing and relocated courses of any watercourses traversing the tract, with the right-of-way or easement lines provided therefor.

(Code 1977, § 94-10(C); Ord. of 4-3-1967)

Sec. 106-120. Certificates and other information.

The final plat must have the following certificates and information:

- (1) Owner's certificate, signed and notarized, acknowledging ownership of the property and agreeing to the subdividing thereof as shown on the plat and also offering for dedication all streets and other ways and places intended for public use.
 - (2) Certificate of the engineer or surveyor to the effect that the plat represents a survey made by him, that it is accurate to the best of his knowledge, that all monuments indicated thereon actually exist and their locations and descriptions are correctly shown and that all requirements of this chapter and of other applicable laws have been fully complied with.
 - (3) A brief summary of the deed restrictions applying to the plat, among which shall be included the following: that not more than one principal building shall be permitted on any residential lot, and no such lot may ever be resubdivided so as to produce a building site of less area or width than the minimum required by the applicable zoning regulations.
 - (4) Certificate of approval by the town planning and zoning commission.
- (Code 1977, § 94-10(D); Ord. of 4-3-1967)

Secs. 106-121—106-138. Reserved.

DIVISION 5. DESIGN STANDARDS

Sec. 106-139. Modifications and exceptions.

(a) The general principles and standards of subdivision design stipulated in Appendix I, section 106-140 may be varied by the planning and zoning commission in the case of a subdivision large enough to constitute a more or less self-

contained community to be developed in accordance with a comprehensive plan safeguarded by appropriate restrictions, which in the judgment of the planning and zoning commission makes adequate provision for all essential community requirements, or in the case of unusual physical conditions; provided, however, that no modification shall be granted which would conflict with the proposals of the major street plan or of any other part of the comprehensive plan or with the intent and purpose of this chapter.

(b) In the case of a small subdivision of minor importance situated where the controlling conditions are well defined, the planning and zoning commission may exempt the subdivider from complying with some of the requirements stipulated in division 2 of this article, pertaining to the preparation of a preliminary plat and may further exempt the subdivider from complying with the provisions of this chapter in such manner as said planning and zoning commission, in its discretion, may deem advisory.
(Code 1977, § 94-11; Ord. of 4-3-1967; Ord. No. 78-51, 11-20-1978)

Sec. 106-140. Appendix I: Principles and standards of subdivision design.

In laying out a subdivision, the subdivider shall comply with the following general principles and requirements:

- (1) *Generally.*
 - a. The subdivision layout shall conform to the official major street plan and any other parts of the comprehensive plan, as well as the zoning regulations of the town.
 - b. Whenever a tract to be subdivided adjoins or embraces any part of a major street, highway or other public way designated on said major street plan as part of the major street system, such part of the public way shall be platted and dedi-

cated by the subdivider in the location and at the width indicated on the plan, except that a dedication in excess of 100 feet in width will not be required.

- c. Where held appropriate by the planning and zoning commission, open spaces constituting a reasonable proportion of the gross acreage of the subdivision, suitably located and of adequate size for parks, playgrounds or other recreational purposes for local or neighborhood use, shall be provided for in the proposed subdivision and, if not dedicated to the public, shall be reserved for the common use of all property owners in the proposed subdivision by covenant in the deeds.
 - d. The subdivision of land subject to periodic inundation will not be approved. A plat of a proposed subdivision located in an area having poor drainage or otherwise adverse physical conditions may be approved, provided that the subdivider agrees to make such improvements as will, in the judgment of the planning and zoning commission, render the subdivision substantially safe and otherwise acceptable for its proposed use and furnishes a performance bond sufficient to cover the cost of such improvements as estimated by the officials having jurisdiction.
- (2) *Street layout.*
- a. The street layout of the subdivision shall be in general conformity with a plan for the most advantageous development of adjoining areas and the entire neighborhood.
 - b. Where appropriate to design, proposed streets shall be continuous and in alignment with existing, planned or platted streets with which they are to connect.
 - c. Proposed streets shall be extended to the boundary lines of the tract to be subdivided unless prevented by topography or other physical condition or unless, in the opinion of the planning and zoning commission, such extension is not necessary or desirable for the coordination of the layout of the subdivision with the existing layout or the most advantageous future development of adjacent tracts. Temporary turnarounds will be required at the ends of such streets by means of easements or otherwise.
 - d. Dead-end streets of reasonable length (normally not over 600 feet) will be approved where necessitated by topography or where, in the judgment of the planning and zoning commission, they are appropriate for the type of development contemplated. A turnaround shall be provided at the end of such a street.
 - e. Wherever there exists, adjacent to the tract to be subdivided, a dedicated or platted and recorded half-width street or alley, the other half-width shall be platted.
 - f. The street layout shall conform substantially to existing topography, minimizing street grades and providing for good drainage, good building sites and ready access to lots, without excessive cuts or fills. Trees shall be preserved to the maximum extent possible.

- g. Streets shall intersect one another at as nearly right angles as topography and other limiting factors of good design will permit.
- h. Minor residential streets shall be arranged so as to discourage their use by through traffic.
- i. Land abutting highways.
 - 1. Land abutting highways shall be platted with the view of making the lots, if for residential use, desirable for such use by cushioning the impact of heavy traffic upon them and also of minimizing interference with traffic on such highways as well as accident hazards. One or more of the following ways may be used to accomplish this:
 - (i) By platting the lots extra deep, and providing vehicular access to them by alleys or service drives in the rear, or by service drives in front separated from the highway by a parkway and connecting therewith at infrequent intervals.
 - (ii) By backing the lots upon the highway so that they front on and have access from a parallel minor street one-half block away. Vehicular access to the lots from the highway should be prohibited by a parkway easement along the rear of the lots, covered by deed restrictions.
 - (iii) By arranging the lots around a series of loop streets or dead-end streets stemming from a collector street generally parallel to and some 600 to 1,000 feet distant from the highway, the ends of such loops or dead ends being one lot depth away from the highway. Parkway easements and deed restrictions as in subsection (2)i.1(ii) of this section should be provided along the rear of such lots adjoining the highway.
 - 2. The choice between the foregoing or other methods for accomplishing the desired purpose in a specific case must necessarily be made in consideration of topography and other physical conditions, the character of existing and contemplated developments and other pertinent factors.
- j. Private streets will not be approved nor will public improvements be approved of in any private streets.
- k. Street names shall be subject to approval by the planning and zoning commission. Names shall not duplicate or closely approximate existing street names in or near the town except for extensions of existing streets.
- l. Streets shall be spaced to allow for blocks meeting the dimensional requirements specified herein. The number of intersections along highways and other major streets shall be held to a minimum, normally spaced not less than 1,200 feet apart.
- m. Alleys shall be platted in all commercial and industrial areas if no other provisions are made for adequate access to parking and load-

- ing spaces. Alleys may be platted in the rear of residential lots and lots located on highways and major collector streets in order to provide safe access.
- n. Minimum widths for the right-of-way of streets, alleys and easements shall be as follows (extra widths may be required where necessary):
1. Highways and major collector streets: as designated by the major street plan, but not less than 80 feet for primary major streets and no less than 60 feet for a major collector street in a residential area.
 2. Minor collector and access streets: 50 feet in residential areas; 66 feet in commercial or industrial streets.
 3. Alleys: 20 feet.
 4. Turnarounds: a circle 100 feet in diameter.
 5. Crosswalks: ten feet.
 6. Easements: ten feet.
- o. Street grades, curves and sight distances shall be as follows:
1. Grades shall not be less than one-half of one percent and shall not exceed six percent.
 2. All changes in street grades of more than one percent shall be connected by vertical curves of a minimum length of 50 feet or equal to 15 times the algebraic difference in the change in grade, whichever is larger.
 3. The radii of curves on the center line shall not be less than the following:
 - (i) Highways and other major streets: 400 feet.
 - (ii) Collector streets: 300 feet.
 - (iii) Minor streets and service drives: 100 feet.
 4. Between reversed curves either of which has a radius less than 200 feet, there shall be a tangent at least 100 feet long, if possible.
 5. At street intersections, each property corner shall be rounded off by an arc, the minimum radius of which shall be 20 feet, except that in a business district a chord may be substituted for such arc. At alley intersections (within the block), a chord shall be used cutting off the corner at least ten feet back from the point of intersection in each direction. Where the smallest angle of intersection is less than 60 degrees, the foregoing radii and chords shall be increased.
 6. Curbs at street intersections shall be rounded off concentrically with the property line.
- (3) *Blocks and lots.*
- a. Residential blocks normally shall have sufficient width to provide for two tiers of lots of appropriate depth. Length requirements are as follows:
 1. Maximum length: 1,800 feet.
 2. Minimum length: 500 feet.
 - b. In a long block, a crosswalkway may be required to improve access to a school, church, playground or other pedestrian objective.
 - c. Business and industrial blocks may be specially designed to serve their particular purposes, which designs shall be subject to approval by the

planning and zoning commission. Business blocks shall not exceed 300 feet in length unless provided with interior public driveways for access and circulation.

- d. Lots shall be of such size, shape and orientation as will be appropriate for the location and the type of development contemplated. Normally, a proportion of about 2 1/2 to one in depth and width will be considered appropriate. Excessive depths in relation to width shall be avoided.
- e. Residential lots shall comply with at least the minimum size and area requirements of the zoning district in which such lots are located.
- f. Corner lots shall have extra widths to provide for extra side yards on the street sides of such lots in accordance with good design practice and sufficient in any case to meet the side yard requirements for such lots in any applicable zoning ordinance.
- g. Residential lots fronting or abutting on highways and major streets should have extra depths and extra deep building lines or should have service drives.
- h. Every lot shall abut on a public street. Through lots (extending through the block) and reversed-frontage lots (fronting on a side street) shall be avoided.
- i. Side lot lines shall be approximately at right angles to or radial to the right-of-way line of the street.
- j. Building lines shall be shown on the plat, along each street, at least as required in each case by the appli-

cable zoning regulations. The locations of these lines shall be clearly indicated by dimensions.

- k. All lot measurements shall be net measurements, not including any part of any street, alley or crosswalkway. Easements, however, shall be regarded as within the lot.

(Code 1977, § 94-12; Ord. of 4-3-1967; Ord. No. 1999-3, 5-10-1999)

Sec. 106-141. Appendix II: Standards and specifications for improvements.

All specifications and improvements shall comply with the Town of Berlin, Maryland, Design Parameters, Standard Specifications and Details for Installation of Water and Sewer Utilities and Roadway Construction Projects, 2009 Edition.

(Code 1977, § 94-13; Ord. of 4-3-1967; Ord. No. 1999-3, 5-10-1999)

Chapter 107

RESERVED

Chapter 108

ZONING*

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ARTICLE I. IN GENERAL

Sec. 108-1. Purpose.

The purposes of this chapter are:

- (1) To promote the health, safety, morals, and the general welfare of the community by regulating and restricting:
 - a. The height, number of stories and size of buildings and other structures;
 - b. The percentage of a lot that may be occupied;
 - c. The size of lots, yards, courts and other open spaces; and
 - d. The location and use of buildings, structures and land for trade, industry, residence and other purposes.
- (2) To provide for adequate light and air.
- (3) To prevent congestion and undue crowding of land.
- (4) To secure safety from fire, panic and other dangers.
- (5) To conserve the value of property.
- (6) To provide adequately for schools, parks and other public requirements and for other purposes

(Code 1977, § 107-1; Ord. No. 2000-10, 9-25-2000)

State law reference—Policy and powers, Md. Ann. Code art. 66B, § 4.01.

Sec. 108-2. Territory affected.

This chapter shall apply to all lands, buildings and properties lying within the corporate boundaries of the town.

(Code 1977, § 107-2; Ord. No. 2000-10, 9-25-2000)

Sec. 108-3. Interpretation of provisions.

In their interpretation and application, the provisions of this chapter shall be held to be mini-

mum requirements not intended to prohibit the use or application of higher standards, but where this chapter imposes a greater restriction than is imposed or required by other provisions of the law or by other rules, regulations or ordinances or by private restrictions, the provisions of this chapter shall control, unless a use is expressly permitted in a zone or unless permitted by the board of appeals.

(Code 1977, § 107-3; Ord. No. 2000-10, 9-25-2000)

Sec. 108-4. Word usage.

(a) In the interpretation and construction of this chapter, certain words and phrases shall be understood to have particular or limited meanings as herein defined, except where the context otherwise requires.

(b) In general:

- (1) The singular number shall include the plural, and the plural the singular;
- (2) The word "building" shall include the word "structure;"
- (3) The word "used" shall include arranged, designed, constructed, altered, converted, rented, leased or intended to be used; and
- (4) The word "shall" is mandatory and not directory.

(Code 1977, § 107-4; Ord. No. 2000-10, 9-25-2000)

Sec. 108-5. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessory building means a structure subordinate to an existing principal building on the same lot and serving a purpose customarily incidental to the use of the principal building or land use.

Accessory living quarters means an accessory building used solely as the temporary dwelling of guests of the occupants of an existing principal use; such dwelling having no kitchen facilities and not rented or otherwise used as a separate dwelling unit.

Accessory use means a use conducted on the same lot as the primary use of the structure to which it is related; a use which is clearly incidental to, and customarily found in connection with such primary use.

Agriculture means the use of land for agricultural purposes, including field cropping, pasturing, aquaculture, horticulture, floriculture, viticulture, forestry, tree farming and the necessary accessory uses for packing, treatment or storing the produce thereof; provided, however, that the operation of any such accessory uses shall be secondary to that of normal agriculture activities and provided further that the above uses shall not include the business of keeping poultry or garbage feeding of hogs or other animals, or fur farms, or the raising of such animals as rats, mice, monkeys, reptiles and the like.

Alley means a public or private way affording secondary means of access to abutting property, having a width more than ten feet, but less than 16 feet in width, which has been dedicated or deeded to the public for public use.

Basement means a story where the floor is more than 12 inches, but not more than one-half of its story height, below the average level of the adjoining ground.

Bed-and-breakfast means a dwelling or part thereof, where meals and/or lodging is provided for compensation for transient persons and designed for or used exclusively as the primary residence of one family.

Billboards and signs.

- (1) *Billboard* means any off-premises structure or portion thereof, situated on private premises, on which lettered, figured or pictorial matter is displayed for

commercial advertising purposes other than the name and occupation of the user of such premises or the nature of the business conducted thereon or the principal products sold or manufactured thereon.

- (2) *Combination sign* means a sign incorporating any combination of the features of pole, projecting, wall and roof signs.
- (3) *Display surface* means the area made available by the sign structure for the purpose of displaying the advertising message.
- (4) *Electric sign* means any sign containing electrical wiring, but not including signs illuminated by an exterior light source.
- (5) *Ground sign* means a billboard or similar type of sign which is supported by one or more uprights, poles or braces in or upon the ground other than a combination sign or pole sign, as defined by this chapter.
- (6) *Marquee* means a permanent roofed structure attached to and supported by the building and projecting over public or private property.
- (7) *Pole sign* means a sign wholly supported by a sign structure in the ground.
- (8) *Portable display surface* means a display surface, temporarily fixed to a standardized advertising structure, which is regularly moved from structure to structure.
- (9) *Projecting sign* means a sign other than a wall sign which projects from and is supported by a wall of a building or structure.
- (10) *Real estate sign* means a sign advertising for sale or rent the premises on which it is located.

- (11) *Roof sign* means a sign erected upon or above a roof or parapet of a building or structure.
- (12) *Sidewalk sign* means an accordion-type sign which may be placed on the sidewalk, displaying only the name and nature of the business.
- (13) *Sign* means any sign, including its structure and component parts, which is used or intended to be used to attract attention to the subject matter for advertising purposes other than paint on the surface of a building.
- (14) *Sign structure* means any structure, which supports or is capable of supporting a sign as defined by this chapter.
- (15) *Temporary sign* means any sign, banner, pendant valance or advertising display constructed of cloth, canvas, light fabric, cardboard, wallboard, wood or other light materials, with or without frames, intended to be displayed for a limited period of time.
- (16) *Wall sign* means any sign attached to or erected against the wall of a building or structure, with the exposed face of the sign in a plane parallel to the plane of said wall.

Board means the board of appeals established hereunder.

Boardinghouse means a dwelling containing not more than six guest rooms or suites of rooms, where lodging is provided with or without meals, for compensation for persons not transients.

Building means any structure having a roof supported by columns or walls, used or intended to be used for the shelter or enclosure of persons, animals or chattels, and any tent, cabin or mobile house. When such a structure in single ownership is divided by one or more

unpierced walls extending from the ground up, it shall be considered one building for the purpose of applying the provisions of this chapter.

Building, height of, means the vertical distance from the average finished grade at the building line to the highest point of the coping of a flat roof or to the deck line of a mansard roof or to the mean height level between eaves and ridge for gable, hip and gambrel roofs.

Cellar means a story having more than one-half of its height below average finished grade. A cellar is counted as a story for the purpose of height regulations only if used as a separate dwelling.

Comprehensive plan means the long-range plan for desirable use of land, as approved by the planning and zoning commission and officially adopted by the Mayor and Council and as amended from time to time, the purpose of such plan being, among other purposes, to serve as a guide in zoning and progressive changes in the zoning of land to meet changing community needs, in the subdividing and use of undeveloped land and in the acquisition of rights-of-way or sites for such public facilities as streets, parks, schools and public buildings.

Conditional use means a use which may be permitted in a district through the granting by the board of appeals of a special exception as defined in Md. Ann. Code art. 66B, § 1.00, as amended upon a finding by the board that it meets specified conditions.

Construction, start of, means the combining of labor and material into any portion of the structure on the site thereof.

Court means an open, unoccupied and unobstructed space, other than a yard, on the same lot with a building or group of buildings.

Crematorium means a building or facility containing furnaces for cremating dead human bodies.

Day-care center means a nursery school or child-care facility providing adult supervision and care for not fewer than five persons not members of the caregiver's family in the caregiver's home or in a building outside of the home.

Day-care, residential, means a dwelling unit in which daytime adult supervision is provided for up to eight children not members of caregiver's family under the age of 21 and in which the dwelling is the primary residence of the caregiver.

District means a designated geographical area of the town within which certain uniform regulations and requirements, or various combinations thereof, apply under the provisions of this chapter. The term "R District" shall mean any R-1, R-2, R-3 and R-4 District; the term "B District" shall mean any B-1, B-2, and B-3 District; the term "M District" shall mean any M-1 and M1-A District; the term "H District" shall mean any H-1 District.

Domiciliary care unit means any institution, which admits four or more non-related aged or disabled persons, maintains the necessary facilities and provides a protective institutional or home-type environment to persons of advanced age or mental or physical disability. This shall not include "limited dwellings."

Dwelling means any building or portion thereof occupied or intended to be occupied exclusively for the residence purposes, but not including a tent, cabin, recreational vehicle or mobile home or a room in a hotel or motel.

- (1) *Dwelling, single-family*, means a detached building designed for or used exclusively for residence purposes by one family or housekeeping unit.
- (2) *Dwelling, two-family*, means a detached building designed for or used exclusively for residential purposes by not more than two families or housekeeping units.

- (3) *Dwelling, multifamily*, means a detached building designed for or used exclusively for residence purposes by more than two families or housekeeping units.

- (4) *Dwelling, townhouse*, means a single-family attached dwelling unit with one dwelling unit from ground to roof, two points of independent outside access, at least two other dwellings built in conjunction therewith and any portion of one or two unpierced party walls in common with an adjoining dwelling and having yards on at least two sides.

- (5) *Dwelling, limited*, means a dwelling unit consisting of no more than two rooms, exclusive of bath facilities, designed or intended for retirement living or temporary assisted living, including nursing homes, assisted living facilities and retirement housing having shared dining and recreational facilities.

Essential services means facilities owned or maintained by public utility companies or public agencies, located in public ways or in easements provided for the purpose or on a customer's premises and not requiring a private right-of-way, and reasonably necessary for the furnishing of adequate water, sewer, gas, electric, communication or similar services to adjacent customers, but not including any building or any yard, station or facility requiring a site in excess of 400 square feet and not including any cross-country pipeline or transmission line on towers or any line requiring a private right-of-way.

Family means a person living alone or two or more persons living together as a single housekeeping unit, but not including a group of persons occupying a boardinghouse, lodginghouse, hotel, dormitory or institution.

Farm means a parcel of land not less than five acres in size used for agricultural purposes as defined in this chapter.

Fence means a fixed structure designed to define a designated area or property.

Flag lot means a polygonal-shaped lot that has the appearance of a flag with staff or panhandle in which the handle or staff is used as the point to a street or road. The term "flag lot" and "panhandle" are synonymous.

Garage, private, means a garage intended for and used for the storage of the private motor vehicles of the families resident upon the premises.

Garage, public, means a space or structure other than a private garage for the storage, sale, hire, care, repair or refinishing of self-propelled vehicles or recreational vehicles.

Group home means a state licensed community residential facility housing and providing habilitative services to eight or fewer persons, not including staff, who are developmentally disabled or are recovering from drug or alcohol addiction.

Home occupation means a business conducted in a dwelling or a single accessory building and in accordance with the provisions of section 108-867.

Junkyard means any area where waste, discarded or salvaged materials are bought, sold, exchanged, baled, parked, stored, disassembled or handled, including auto wrecking yards, house wrecking yards, used lumber yards and places or yards for storage of salvaged house wrecking and structural steel materials and equipment, but not including areas where such uses are conducted entirely within a completely enclosed building and not including pawnshops and establishments for sale, purchase or storage of used furniture and household equipment, used cars in operable condition, or salvaged materials as a part of manufacturing operations.

Lot means any plot or parcel of land occupied or intended to be occupied by a principal building or use, or a group of buildings conforming to the regulations of this chapter and its accessory

buildings and uses, including all open spaces required by this chapter, and having frontage on a street as defined herein. In the case of a farm or estate, five acres or more in size, the lot shall be deemed to be that part of the property on which the principal building and its accessory buildings and uses are located, together with the yards and other open spaces required by this chapter, and such lot need not front directly on a public road if connected therewith by a private lane or road which serves no other lot.

- (1) *Lot, corner*, means a lot abutting upon two or more streets at their intersection or upon two parts of the same street and, in either case, forming an interior angle of less than 135°.
- (2) *Lot, through*, means a lot having frontage on two non-intersecting streets as distinguished from a corner lot.

Lot depth means the mean horizontal distance between the front and rear lot lines.

Lot line, front, means the line separating the lot from the street right-of-way upon which it fronts.

Lot line, rear, means the lot line opposite and most distant from the front lot line.

Lot line, side, means any lot line other than the front or rear lot line.

Lot line, street or alley, means any lot line separating the lot from a street or alley.

Lot width means the width of the lot measured at right angles to its center line at the front setback line.

Manufactured home means a structure that is transportable in one or more sections, built on a permanent chassis, designed for use with or without a permanent foundation when attached to the required utilities, and constructed to the Federal Mobile Home Construction and Safety Standards and rules and regulations promulgated by the U.S. Department of Housing and Urban Development. This term also includes

mobile homes, park trailers, travel trailers and similar transportable structures that are placed on a site for 180 consecutive days or longer.

State law reference—Similar definition, Md. Real Property Code Ann. § 8A-101.

Motel or hotel means any establishment consisting of two or more guest rooms or suites, with separate outside entrances and adjacent parking spaces, designed and maintained for the accommodation of transients; or any establishment for the accommodation of transients which proclaims itself a "motel."

Noncombustible means, as applied to building construction material, a material which, in the form in which it is used, is either one of the following:

- (1) Material of which no part will ignite and burn when subjected to fire. Any material conforming to specifications in the building code in effect in the town and other applicable codes shall be considered noncombustible.
- (2) Material having a structural base of noncombustible material as defined in subsection (1) of this definition, with a surfacing material not over one-eighth-inch thick, which has a flame-spread rating of 50 or less.

Nonconforming use means an existing building, structure or premises legally devoted to or occupied by or for a use that does not conform to the use provisions of this chapter, or amendments thereto, for the district in which it is located.

Nursing or hospice facility means a facility, licensed by the state, to provide basic or skilled nursing care for physical, emotional, or mental diseases or disabilities to three or more individuals who, by reason of advanced age, chronic illness, or infirmity, are unable to care for themselves. The term "nursing or hospice facility"

shall not include hospitals or facilities for the primary treatment of sickness or injuries or for surgical care.

Open space means the area of a lot or parcel unoccupied by principal or accessory structures, streets, driveways or parking areas, but including areas occupied by walkways, patios, porches without roofs, playgrounds, outdoor recreation or play apparatus, gardens or trees.

Parking lot, commercial, means a surfaced area of one or more parking spaces designed or used for the parking of vehicles and available to the public whether for a fee or as an accommodation to clients or customers.

Parking space means a surfaced area either within a structure or in the open, exclusive of driveways or access drives, for the parking of one vehicle.

Planned unit development (PUD) means a residential and/or commercial development guided by a total design plan in which one or more of the zoning or subdivision regulations, other than use regulations, may be waived or varied by the planning and zoning commission to allow flexibility and creativity in site and building design and location in accordance with general guidelines.

Planning and zoning commission means the town planning and zoning commission.

Planning director means the planning director or an authorized representative, appointed in accordance with the provisions of division 2 of article II of this chapter.

Recreational vehicle means any vehicle or structure constructed in such a manner as to provide sleeping and cooking facilities or the conduct of any business, trade or occupation, or use as a selling or advertising device, and so designed that it is or may be mounted on wheels and transported over highways and streets, propelled, or drawn by its own or other power.

Recreational vehicle park means any park, tourist park, camp court, site, lot, parcel or tract of land which is designed, maintained or intended for the purpose of supplying a location or accommodation for two or more recreational vehicles for living purposes or upon which two or more recreational vehicles are parked or mounted for living purposes.

Roadside stand means a structure designed or used for the display or sale of neighborhood agricultural products or goods produced on the premises upon which a stand is located.

Self-service storage facility means a building or group of buildings with controlled access, containing varying sizes of individual, compartmentalized and controlled access stalls, lockers or rooms to be leased or rented for the storage of goods, wares, merchandise, substances or articles.

Setback line means the minimum building line along the front or rear of a lot, or along the side of a corner lot adjoining the side street, as determined by the yard requirements of this chapter or of any superior regulation.

Sewage disposal plant means a plant or lagoon for the treatment of sewage, which serves the town or any group of properties, as distinguished from a private septic tank or package treatment plant which is accessory to and located on the same premises with a principal use.

Stable, private, means a stable with a capacity of not more than two animals.

Story means that portion of a building, other than a cellar as defined herein, included between the surface of any floor and the surface of the floor next above it or, if there is no floor above it, the space between the ceiling next above it.

- (1) *Story, ground*, means the lowest story, or ground story, or first story of any building, the floor of which is not more than 3½ feet below the average contact

ground level at the exterior walls of the building, except that any basement used as a separate dwelling by other than a janitor or caretaker or his family shall be deemed a ground or first story.

- (2) *Story, half*, means a partial story under a gable, hip or gambrel roof, the wall plates of which on at least two opposite exterior walls are not more than four feet above the floor of such story; provided, however, that any partial story used as a separate dwelling, other than for a janitor or caretaker and his family, shall be deemed a full story.

Street means a public right-of-way 50 feet or more in width which provides a means of public access to abutting property, or any such public or private right-of-way not less than 30 feet in width which existed prior to the enactment of the ordinance from which this chapter is derived. The term "street" shall include road, avenue, drive, lane, circle, square, court, highway, beach, way or similar term.

Street line means the right-of-way or property line.

Street, major, means a street or highway designated as a major street or expressway on the official major street plan of the town.

Structural alteration means any change in the structural members of a building, such as bearing walls columns, beams or girders or as may be defined by the building code in effect in the town.

Structure means anything constructed, the use of which requires a fixed location on the ground or is attached to something having such location, but not including sidewalks, driveways, curbs or essential services defined in this chapter.

Use first permitted means a use, which in the sequence of successively listed zoning districts, occurs as a permitted use for the first time in a special zoning district.

Warehouse means a building or part of a building that is used for the storage and distribution of goods, wares, merchandise, substances or articles.

Yard, front, means an open space extending the full width of the lot between any part of a building and the front lot line, unoccupied and unobstructed from the ground upward except as hereinafter specified in article VII of this chapter.

- (1) *Front yard, least width*, means the shortest distance, measured horizontally, between any part of a building, other than such parts as excepted in section 108-245, and the front lot line.

Yard, rear, means an open space extending the full width of the lot between a building and the rear lot line, unoccupied and unobstructed from the ground upward except as hereinafter specified in article VII of this chapter.

- (1) *Rear yard, least depth*, means the shortest distance, measured horizontally, between any part of a building, other than such parts as excepted in section 108-245, and the rear lot line.

Yard sale means the temporary display and sale of personal property along any public or approved private road.

Yard, side, means an open space extending from the front yard to the rear yard between a building and the nearest side lot line, unoccupied and unobstructed from the ground upward except as herein specified in article VII of this chapter.

- (1) *Side yard, least width*, means the shortest distance, measured horizontally, between any part of a building, other than such parts as excepted in section 108-245, and the nearest side lot line.

Zoning certificate means a written statement issued by the planning director authorizing the use and occupancy of buildings, structures, or

premises consistent with the terms of this chapter and for the purpose of carrying out and enforcing its provisions.

Zoning map means the zoning map of the town, dated April 5, 1966, together with all amendments thereto subsequently adopted.

(Code 1977, § 107-5; Ord. No. 2000-10, 9-25-2000; Ord. No. 2005-5, 7-25-2005; Ord. No. 2009-08, 11-24-2008; Ord. No. 2010-05, 7-12-2010; Ord. No. 2010-12, 11-22-2010; Ord. No. 2018-05, 11-26-2018; Ord. No. 2022-01, 3-14-2022)

Secs. 108-6—108-28. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Secs. 108-29—108-59. Reserved.

DIVISION 2. PLANNING DIRECTOR

Sec. 108-60. Established.

The office of the planning director is hereby established.

(Code 1977, § 107-62; Ord. No. 2000-10, 9-25-2000)

Sec. 108-61. Appointment.

The planning director shall be appointed by and shall serve at the pleasure of the Mayor and Council. The Mayor and Council shall determine the compensation and terms of service of the planning director.

(Code 1977, § 107-62; Ord. No. 2000-10, 9-25-2000)

Sec. 108-62. Powers and duties.

(a) The Mayor and Council, at its discretion, may arrange for the sharing of a planning director with the county or with another municipality

in the county, provided that such director shall be responsible to this town's Mayor and Council for any zoning certificate issued or action taken with respect to the administration and enforcement of this chapter.

(b) It shall be the duty of the planning director to administer and cause the enforcement of the provisions of this chapter in accordance with its administrative provisions.

(Code 1977, § 107-62; Ord. No. 2000-10, 9-25-2000)

Secs. 108-63—108-82. Reserved.

DIVISION 3. ZONING CERTIFICATES AND BUILDING PERMITS

Sec. 108-83. Required.

(a) Except as otherwise provided herein, it shall be unlawful to locate, erect or begin the construction, reconstruction, extension, conversion or structural alteration of any building or

structure, or to begin the excavation for such building or structure, without first applying for a zoning certificate.

(b) Likewise, it shall be unlawful to use or permit the use of any building or land or part therefor, hereafter created or erected, wholly or partly, or to change the use or permit the change of use of any building, structure or land, until a zoning certificate, together with a special use permit where required, shall have been issued by the planning director. Such zoning certificate shall show that the building or other structure or part thereof and the proposed use thereof, or the proposed use of the land or premises, conform to the provisions of this chapter.

(c) It shall be the duty of the planning director to issue such zoning certificate if he finds to his satisfaction that the building, structure, premises, and proposed use conform to all the requirements set forth in this chapter.
(Code 1977, § 107-63(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-84. Application.

Application for a zoning certificate shall be made to the planning director coincident with the application for a building permit where such is required. Every application for a zoning certificate, whether in connection with a building permit or not, shall be accompanied by:

- (1) A drawing approximately to scale, showing the shape and dimensions of the lot to be used or built upon;
- (2) The size and location on the lot of every existing building and structure and its driveways;
- (3) The existing and intended use of the premises and of each building or part thereof; and
- (4) Such other information with regard to the lot and its neighboring lots, buildings

and uses as may be necessary to determine and provide for the administration and enforcement of this chapter.

(Code 1977, § 107-63(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-85. Issuance.

Issuance of a zoning certificate shall be withheld until the building or the necessary work thereon has been completed in accordance with the provisions of this chapter. No work shall be commenced, however, before the issuance of a building permit showing that application has been made for a zoning certificate and that the building or part thereof and the proposed use thereof conform to the provisions of this chapter. No construction work shall be started before the lot and the location thereon of the projected building or other improvements have been staked out on the ground and have been inspected by the planning director.

(Code 1977, § 107-63(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-86. Fee.

A filing fee shall accompany each application for a zoning certificate in such amount as may be determined by the Mayor and Council.

(Code 1977, § 107-63(F); Ord. No. 2000-10, 9-25-2000)

Sec. 108-87. Conflict with chapter provisions.

All town officials and employees who are vested with the duty or authority to issue permits or licenses shall conform to the provisions of this chapter and shall issue no permit or license for any use, building or purpose if the same would be in conflict with the provisions of this chapter. Any permit or license issued in conflict with the provisions of this chapter shall be null and void.

(Code 1977, § 107-63(G); Ord. No. 2000-10, 9-25-2000)

Secs. 108-88—108-117. Reserved.

DIVISION 4. ENFORCEMENT

Sec. 108-118. Violations and penalties.

(a) It shall be unlawful to locate, erect, construct, reconstruct, enlarge, change, maintain or use any building or land in violation of any regulation in or any provisions of this chapter or any amendment or supplement thereto, or to fail to comply with any reasonable requirement or condition imposed by the board of appeals. Any person, firm or corporation violating any regulation in any provisions of this chapter or any amendment supplement thereto shall be deemed guilty of a municipal infraction, and shall be fined not less than \$25.00 nor more than \$400.00. Each and every day during which such violation continues may be deemed a separate offense.

(b) All zoning certificates and building permits shall be revocable for failure to comply with all applicable requirements and conditions. (Code 1977, § 107-64(A), (B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-119. Prevention of violations.

In case any building is or is proposed to be located, erected, constructed, reconstructed, altered, repaired, converted, maintained or used, or any land is or is proposed to be used, in violation of this chapter or any amendment or supplement thereto, the Mayor and Council, the planning director or any adjacent or neighboring property owner who would be specifically damaged by such violation, in addition to other remedies provided by law, may institute injunction, mandamus, abatement or any other appropriate action or proceeding to prevent, restrain, correct or abate such unlawful location, maintenance or use, to prevent the occupancy of said building or land or to prevent any illegal act, conduct, business or use in or about such premises. (Code 1977, § 107-65; Ord. No. 2000-10, 9-25-2000)

Secs. 108-120—108-136. Reserved.

DIVISION 5. BOARD OF APPEALS*

*Subdivision I. In General***Sec. 108-137. Establishment.**

In compliance with the provisions of Md. Ann. Code art. 66B, § 4.07, as amended, a board of appeals is hereby established. The number of members of said board, their appointment, terms of office, succession, removal, filling of vacancies and their powers and duties shall all be as provided in Md. Ann. Code art. 66B, § 4.07. There shall be five members and one alternate member on the board of appeals. The persons appointed to the board of appeals shall be selected for their understanding of and appreciation for zoning principals, knowledge of conditions in the community and of its planning objectives and policies, general civic interest, as opposed to special or private interest, and a fair judicial approach. (Code 1977, § 107-66; Ord. No. 2000-10, 9-25-2000)

State law reference—Appointment, term of office, removal, meetings, etc., Md. Ann. Code art. 66B, § 4.07.

Sec. 108-138. Organization.

(a) The board of appeals shall be organized in accordance with the provisions of this chapter. Meetings shall be held at the call of the chairperson and at such other times as the board may determine. The chairperson, or in his absence the acting chairperson, may administer oaths and compel the attendance of witnesses. All meetings of the board shall be open to the public. The board shall make a transcript and keep minutes of its proceedings showing the vote of each member upon each question or if absent or failing to vote, indicating such fact,

***State law reference**—Board of appeals, Md. Ann. Code art. 66B, § 4.07.

and shall keep records of its examinations and other official actions, all of which shall be a public record. The board of appeals shall immediately file the transcript of its proceedings in the office of the board. A transcript shall be a public record. If a recording or a transcript of a recording is not prepared in the normal course of the board's proceedings, the party who requests a copy of the recording or its transcript shall pay the cost of preparing the recording or transcript. All actions of the board shall be by resolution.

(b) The board of appeals may call upon any town official or department head for assistance in the performance of its duties, and it shall be the duty of such officers to render such assistance to the board as may reasonably be required.

(c) It shall be the duty of the planning director to serve as secretary and administrative officer for the board of appeals. One of his duties shall be to investigate each case and prepare a report thereon for information and assistance of the board.

(Code 1977, § 107-67; Ord. No. 2000-10, 9-25-2000)

State law reference—Similar provisions, Md. Ann. Code art. 66B, § 4.07(a), (b).

Secs. 108-139—108-159. Reserved.

Subdivision II. Powers

Sec. 108-160. Administration errors.

The board of appeals shall have the power to hear and decide appeals where it is alleged that there is error in any order, requirement, decision or determination made by an administrative official in the enforcement of this chapter or any ordinance adopted under this chapter.

(Code 1977, § 107-69(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-161. Interpretation and adjustment of zoning map and district lines.

The board of appeals may determine, after notice to the owners of the properties affected and after public hearing, boundaries of districts as follows:

- (1) Where the street or lot layout actually on the ground, or as recorded, differs from the street or lot lines shown on the zoning map, the board shall interpret the map in such way as to carry out the intent and purpose of this chapter for the particular section or district in question.
- (2) Where the boundary line of a district divides a lot held in a single ownership on the effective date of the ordinance from which this chapter is derived, the board may permit the extension of a district, but not more than 200 feet beyond said boundary line.

(Code 1977, § 107-69(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-162. Temporary uses.

The board of appeals may authorize the temporary use of a building or premises in any district for a purpose or use that does not conform to the regulations prescribed by this chapter for the district in which it is located, provided that such use is a temporary nature and does not involve the erection of substantial buildings. Such certificate shall be granted in the form of a temporary and revocable permit for a period of not more than 12 months, subject to such conditions as will safeguard the public health, safety, convenience and general welfare.

(Code 1977, § 107-69(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-163. Conditional uses, variances and special exceptions.

(a) The board of appeals shall have the power to hear and decide application for conditional uses or for decisions upon other special ques-

tions or exceptions on which the board is authorized by this chapter to pass. The board shall have the power to authorize on appeal in specific cases a variance from the terms of an ordinance. All such applications shall be deemed to be for special exceptions authorized by Md. Ann. Code art. 66B, § 4.07.

(b) In addition to permitting the conditional use and exceptions herein specified, the board shall have the power to permit the following conditional uses and special exceptions:

- (1) A business use in any R District, next to a nonconforming business or industrial use or between two such uses.
- (2) On a lot adjoining or in a building adjoining any nonconforming use, a use of the next higher classification.
- (3) Within any district, the disposal of wastes by the sanitary landfill method.
- (4) A sewage disposal plant in any district when such location is necessary and unavoidable and provided that all reasonable protection is afforded to adjacent properties by means of location, design, screening or otherwise.
- (5) A business use in any R District on a lot that adjoins an M District on one side, but not extending more than 100 feet from the district line.
- (6) A commercial parking lot for passenger vehicles only in any R District on a lot that sides upon a B District, but not extending more than 100 feet from the district line, provided that such lot shall be used only for free parking by patrons or employees of one or more establishments located in the adjacent B District, or as a municipal parking lot, in which case parking fees may be collected and subject to the regulations and provisions in sections 108-767(d) and 108-788.

(7) Special building-moving exceptions.

- a. An exception to the prohibition against the moving of houses is permitted, provided that the board finds that the following conditions and standards are met:
 1. That the moving of said buildings will not adversely affect the uses of adjacent and neighboring property.
 2. That the character of the neighborhood to which the building is being moved will not be adversely affected.
 3. That the building being moved will not unduly adversely affect the value of neighboring properties in the area to which the building is being moved.
 4. That adequate off-street facilities are provided.
 5. That the sidewalks are constructed or will be constructed to the town specifications prior to the occupation of the building for any purpose, if determined necessary by the board.
 6. That all other zoning requirements that apply to new construction are being met.
 7. That a professional registered engineer or architect certifies that said building, as moved, will comply fully within the requirements of any building code in effect within the town at the time of the hearing before the board of appeals.
 8. That a professional registered engineer or architect certifies that the moving of such building will not cause any damage to municipally maintained streets.

9. That the building to be moved meets all standards set by the county fire marshal or inspector as to all fire safety factors. No building that does not meet all current fire safety standards shall be moved to a new or different location.
 - b. There shall be submitted, along with an application for special building-moving exception, a site plan showing the property to which the building is being moved. Said site plan shall show:
 1. The proposed location of the building to be moved.
 2. The location of all sidewalks.
 3. A parking plan that is in accordance with the parking requirements of this chapter.
 4. The location of buildings on all adjacent lots and their relation to the proposed building's location.
 - c. The applicant shall submit to the board of appeals a color photograph, not more than 60 days old, of the building that he proposes to move. He shall also provide the board with color photographs, not more than 60 days old, of all buildings located on the lots that abut the property and of all buildings on the opposite side of any street within 50 feet of the site to which the building is to be moved.
 - d. In granting a special building-moving exception, the board may specify appropriate conditions and safeguards as it sees fit, in its discretion.
 - e. All buildings moved pursuant to this article shall comply completely with all standards herein established and any conditions or safeguards specified by the board of appeals within 90 days of the issuance of any moving permit.
 - f. Any such house-moving exception so granted shall be contingent on the applicant's therefor depositing with the town a cash bond in an amount to be determined by the board of appeals, but in no event less than \$500.00, which said cash bond shall be forfeited to the town if the house or houses being moved pursuant to said exception remain on, or continue to traverse, any public way within the town for more than a total of two days.
 - g. Whenever an applicant for a special building-moving exception cancels or withdraws his application after an advertisement for a public hearing in connection with said application has been published, any rescheduling for a public hearing on said application or reapplication for the same exception shall be more than four months after the original public hearing was scheduled.
- (8) In the B-2 Shopping District or B-3 General Business District a special exception to allow a grain silo to be utilized as part of a brewery operation, but not exceeding 35 feet in height.
- (c) In considering an application for a conditional use or other exception, the board of appeals shall give due regard to the nature and condition of all adjacent uses and structures. In authorizing any such use or exception the board may impose such requirements and conditions as to location, construction, equipment, operation and maintenance, in addition to those expressly stipulated in this chapter for the particular use or exception, as the board may deem necessary to prevent or reduce hazardous or congested traffic conditions, odor, dust, smoke, gas, noise or other similar nuisances, and it may

impose such other conditions and requirements as may be necessary in its opinion to protect adjacent properties and neighborhoods and prevent conditions which may become obnoxious or offensive. In authorizing a conditional use or exception, subject to compliance with certain conditions, the board may require, from the owners, lessees or tenants of the property for which the conditional use or exception is granted, such evidence, written agreement guaranty or bond as it may deem necessary to ensure that the conditions stipulated by the board are being and will be complied with. Any such written agreement may be required by the board to be recorded among the land records of the county at the expense of the applicant.

(Code 1977, § 107-69(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2022-08, 12-12-2022)

Sec. 108-164. Nonconforming uses.

The board of appeals may authorize the issuance of a zoning certificate, after a public hearing, for any of the following:

- (1) The substitution for a nonconforming use for another nonconforming use if no structural alterations are made except those required by law or regulation; provided, however, that in any R or B District, no change shall be permitted to any use prohibited in an M-1 District.
- (2) The extension of a building devoted to a nonconforming use or the construction of additional buildings, or the extension of a nonconforming use of land, where any such extension is necessary and incidental to the continuation of the existing use but is not authorized by section 108-670(3)a. No such extension or addition shall be deemed to extend or otherwise affect the date when such nonconforming use or building must be changed or removed, if subject to any of the provisions of section 108-670(2).

(Code 1977, § 107-69(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-165. Variances.

(a) Where, by reason of the exceptional narrowness, shallowness or unusual shape of a specific piece of property on the effective date of the ordinance from which this chapter is derived, or by reason of exceptional topographic conditions or other extraordinary situation or condition of such piece of property or of the use of development of property immediately adjoining the piece of property in question, the literal enforcement of the requirements of this article would involve practical difficulty or would cause unnecessary hardship, unnecessary to carry out the spirit and purpose of this chapter, the board shall have the power upon appeal in specific cases, filed as herein before provided, to authorize such variance from the terms of this chapter as will relieve such hardship, so that the spirit and purpose of this chapter shall be observed and substantial justice done. In authorizing a variance, the board may attach thereto such conditions regarding the location, character and other features of the proposed structure or use as it may deem necessary in the interest of the furtherance of the purpose of this chapter and in the public interest. In authorizing a variance, with attached conditions, the board may require such evidence and guaranty, or bond, as it may deem necessary that the conditions attached are being and will be complied with.

(b) No such variance in the provisions or requirement of this chapter shall be authorized by the board unless the board finds, by a preponderance of the evidence, that all the following facts and conditions exist:

- (1) That there are exceptional or extraordinary circumstances or conditions applying to the property in question, or to the intended use of the property, that do not apply generally to other properties or classes of uses in the same zoning district.
- (2) That such variance is necessary for the preservation and enjoyment of substan-

tial property rights possessed by other properties in the same zoning district and in the same vicinity.

- (3) That the authorizing of such variance will not be of substantial detriment to adjacent property and will not materially impair the purpose of this chapter or the public interest.

(c) No grant of a variance shall be authorized unless the board specifically finds that the condition or situation of the specific piece of property or the intended use of said property for which variance is sought, one or the other or in combination, is not of so general or recurrent a nature as to make reasonably practicable the formation of a general regulation for such condition or situation to be adopted by the Mayor and Council as an amendment to this chapter. (Code 1977, § 107-69(F); Ord. No. 2000-10, 9-25-2000; Ord. No. 2019-04, 6-24-2019)

Sec. 108-166. Limitations, guides and standards.

Where, in this chapter, certain powers are conferred upon the board of appeals or the approval of the board of appeals is required before a permit may be issued, or the board is called upon to decide certain issues, such board shall study the specific property involved and the neighborhood, cause the property to be posted in a conspicuous place, hold a public hearing and consider all testimony and data submitted, and it shall hear any person for or against the issuance of the permit. However, the application for the permit shall not be approved where the board finds the proposed building, addition, extension of the building or use, sign, use or change of use would adversely affect the public health, safety, security, morals or general welfare or would result in dangerous traffic conditions or would jeopardize the lives or property of other people in the neighborhood. In deciding such matters, the board shall give consideration, among other things, to the following:

- (1) The purpose, application, interpretation and standards of these regulations as set forth in article I of this chapter.

- (2) Decisions of the circuit court for the county and the court of appeals of the state.
- (3) The orderly growth and improvement of the neighborhood and community.
- (4) The most appropriate use of land and structures in accordance with a comprehensive plan.
- (5) Facilities for sewers, water, schools, traffic, transportation and other services, and the ability of the town or other public agency to supply such services.
- (6) The limitations of firefighting and rescue equipment and the means of access for fire and police protection.
- (7) The probable effect of such use upon the peaceful enjoyment of people in their homes.
- (8) The number of people residing, working or studying in the immediate vicinity.
- (9) The type, character and use of structures in the vicinity, especially where people are apt to gather in large numbers such as in schools, churches, theaters and the like.
- (10) Traffic conditions, including facilities for pedestrians such as sidewalks and safety zones and parking facilities available and the access of cars to highways.
- (11) The preservation of cultural and historic landmarks.
- (12) The conservation of property values.
- (13) The probable effect of odors, dust, gas, smoke, fumes, vibration, glare or noise upon the uses of surrounding properties.
- (14) The contribution, if any, such proposed use, building or addition would make toward the deterioration of areas and neighborhoods.

(Code 1977, § 107-70; Ord. No. 2000-10, 9-25-2000)

Sec. 108-167. Limited effect of exceptions, variances and approvals.

Where the board of appeals approves an exception, variance or other application or appeal under these regulations, such approval shall not change the use classification of the building or premises, or give it any status as a nonconforming use other than it may already have had, or qualify any adjacent property for any special treatment, such as an exception or variance, nor shall there be another change of use without approval of the board.
(Code 1977, § 107-71; Ord. No. 2000-10, 9-25-2000)

Secs. 108-168—108-187. Reserved.

DIVISION 6. APPLICATIONS; APPEALS;
HEARINGS; STAY OF PROCEEDINGS

Sec. 108-188. Applications.

An application, in cases in which the board of appeals has original jurisdiction under the provisions of this chapter, may be made by any property owner or contract purchaser, or by a governmental officer, department, board or bureau. Such application shall be filed with the planning director, who shall transmit same to the board.
(Code 1977, § 107-68(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-189. Appeals.

An appeal to the board may be taken by any person aggrieved by any decision of the administrative officer; or by any officer, department, board or bureau affected by any decision of the planning director. Such appeal shall be taken within 20 days after the decision by filing with the planning director and with the board of appeals a notice of appeal specifying the grounds thereof. The planning director shall transmit to

the board all the papers constituting the record upon which the action appealed from was based.
(Code 1977, § 107-68(B); Ord. No. 2000-10, 9-25-2000)

State law reference—Similar provisions, Md. Ann. Code art. 66B, § 4.07(e).

Sec. 108-190. Fees.

A filing fee shall accompany each application or appeal to the board of appeals, as may be determined by the Mayor and Council.
(Code 1977, § 107-68(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-191. Hearings.

The board shall fix a reasonable time for the hearing of the application or appeal, shall give at least ten days' notice of the time and place of such hearing in a newspaper of general circulation in the community and to the parties in interest, shall cause the property to be posted conspicuously with a notice of the hearing and shall decide the same within a reasonable time. At the hearing, any party may appear in person or by agent or attorney.

(Code 1977, § 107-68(D); Ord. No. 2000-10, 9-25-2000)

State law reference—Similar provisions, Md. Ann. Code art. 66B, § 4.07(g).

Sec. 108-192. Stay of proceedings.

An appeal shall stay all proceedings in furtherance of the action appealed from, unless the planning director certifies to the board, after notice of appeal shall have been filed with him, that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life or property. In such case, proceedings shall not be stayed otherwise than by restraining order, which may be granted by the board or by a court record, on application, after notice to the planning director and on due cause shown.
(Code 1977, § 107-68(E); Ord. No. 2000-10, 9-25-2000)

State law reference—Similar provisions, Md. Ann. Code art. 66B, § 4.07(f).

Sec. 108-193. Actions of board of appeals.

(a) In exercising its powers, the board of appeals may, in conformity with the provisions of Md. Ann. Code art. 66B, § 4.07:

- (1) Wholly or partly reverse the order, requirement, decision, or determination from which the appeal is taken;
- (2) Wholly or partly affirm the order, requirement, decision, or determination from which the appeal is taken;
- (3) Modify the order, requirement, decision, or determination from which the appeal is taken; or
- (4) Issue a new order, requirement, decision, or determination.

(b) The board shall have all the powers of the administrative officer from whom the appeal is taken.

(Code 1977, § 107-68(F); Ord. No. 2000-10, 9-25-2000)

State law reference—Similar provisions, Md. Ann. Code art. 66B, § 4.07(h).

Sec. 108-194. Repeated applications.

If an application or appeal is disapproved by the board of appeals, thereafter the board shall not be required to consider another application for substantially the same proposal, on the same premises, until after one year from the date of such disapproval. If advertised and thereafter the applicant withdraws the application or appeal, he shall be precluded from filing another application or appeal for substantially the same proposal on the same premises for one year.

(Code 1977, § 107-68(G); Ord. No. 2000-10, 9-25-2000)

Sec. 108-195. Court review.

Any person or persons, jointly or severally, aggrieved by any decision of the board of appeals, or any taxpayer, officer, department, board or bureau of the town, may appeal the same to the circuit court for the county. If, upon the

hearing, it shall appear to the court that the testimony is necessary for the proper disposition of the matter, it may take evidence or appoint a referee to take such evidence as it may direct and report the same to the court with his findings of fact and conclusions of law, which shall constitute a part of the proceedings upon which the determination of the court shall be made. The court may reverse or affirm, wholly or partly, or modify the decision brought up for review. Appeals from such determinations may be taken to the court of special appeals as provided by law.

State law reference—Appeals, Md. Ann. Code art. 66B, § 4.08.

(Code 1977, § 107-68(H); Ord. No. 2000-10, 9-25-2000)

Secs. 108-196—108-213. Reserved.**ARTICLE III. DISTRICT CHANGES AND OTHER AMENDMENTS****Sec. 108-214. Amendments to zoning regulations, zoning map and comprehensive plan.**

(a) Whenever the public necessity, convenience, general welfare or good zoning practice requires, the Mayor and Council may, after recommendation by the planning and zoning commission and subject to the procedure set forth in this article, amend, supplement or change the regulations, district boundaries or classifications of property now or hereafter established by this chapter or amendments thereof. Such amendment, supplement or change may be initiated by resolution of the Mayor and Council, by motion of the planning and zoning commission or by petition of any property owner or contract purchaser addressed to the Mayor and Council.

(b) The Mayor and Council hereby expresses its recognition of the fact that sections of the community are changing from a rural to a residential, commercial, industrial or other character, and, although an attempt has been made in

the comprehensive plan to anticipate and direct such growth along desirable lines, it is inevitable that no such plan can be perfect or everlastingly valid. It anticipates, therefore, that the comprehensive plan will need amending from time to time, as contemplated and authorized by Md. Ann. Code art. 66B, § 3.05, and that the zoning map must also be amended from time to time in order that it may continue to be in conformity with such comprehensive plan, as required by Md. Ann. Code art. 66B, §§ 4.02, 4.03, 4.04 and 4.05.

(Code 1977, § 107-72; Ord. No. 2000-10, 9-25-2000)

Sec. 108-215. Procedure for change.

(a) Any proposed amendment, supplement or change originating with or received by the Mayor and Council shall first be referred to the planning and zoning commission for investigation and recommendation. The planning and zoning commission shall cause such investigation to be made as it deems necessary and for this purpose may require the submission of pertinent data and information by any person concerned, may hold such public hearing as are provided by its own rules and shall submit its report and recommendation within 60 days unless an extension of time is granted.

(b) After receiving the recommendation of the planning and zoning commission on any proposed amendment, supplement or change and before adopting such amendment, the Mayor and Council shall hold a public hearing in relation thereto, at which hearing parties in interest and citizens shall have an opportunity to be heard. At least 15 days' notice of the time and place of such hearing shall be published in a paper of general circulation in the community once each week for two successive weeks. The first notice of the hearing shall be published at least 14 days before the hearing. The property in question shall be posted conspicuously with a notice of the hearing.

(c) No substantial change in or departure from the proposed amendment as recommended by the planning and zoning commission shall be made unless the same be resubmitted to said commission for its further recommendation.

(d) The Mayor and Council may impose such restrictions, conditions and limitations with regard to the proposed amendment, supplement or change as conferred by Md. Ann. Code art. 66B upon the county commissioners.

(e) A filing fee shall be charged for processing an application for a change in zoning, as may be determined by the Mayor and Council.

(f) Every application for a change in zoning district boundaries shall be accompanied by a plat drawn to such scale as the planning director shall require, showing the existing and proposed boundaries and such other information as he may need to enable him to properly locate and plot the amendment on the official zoning map. It shall be the duty of the planning director to change the official zoning map promptly upon the adoption of any amendment so that there will always be an up-to-date public record of the zoning districts.

(Code 1977, § 107-73; Ord. No. 2000-10, 9-25-2000)

Secs. 108-216—108-238. Reserved.

ARTICLE IV. EXCEPTIONS AND MODIFICATIONS

Sec. 108-239. Application of provisions.

The regulations specified in this chapter shall be subject to the following exceptions, modifications and interpretations.

(Code 1977, § 107-53; Ord. No. 2000-10, 9-25-2000)

Sec. 108-240. Use of existing lots of record.

In any district where dwellings are permitted, a single-family dwelling may be located on any

lot or plot of official record as of the effective date of the ordinance from which this chapter is derived, and in separate ownership from any adjacent lot, irrespective of its area or width or the width of the street on which it fronts, subject to the following requirements:

- (1) The sum of the side yard widths on any such lot or plot need not exceed 30 percent of the width of the lot, but in no case shall any one side yard be less than 12 percent of the width of the lot.
- (2) The depth of the rear yard on any such lot need not exceed 30 percent of the depth of the lot, but in no case shall it be less than 25 feet.

(Code 1977, § 107-54; Ord. No. 2000-10, 9-25-2000)

Sec. 108-241. Structures permitted above height limit.

The building limitations of this chapter shall not apply to:

- (1) Farm buildings and structures, if located at least 200 feet from all property lines.
- (2) Fire or parapet walls, cupolas, steeples, flagpoles, silos, smokestacks, masts, water tanks or other roof superstructures.
- (3) Monitors, scenery lofts, penthouses or roof structures for housing elevators, stairways, tanks, ventilating fans or similar equipment required to operate and maintain the building, provided that all such structures above the height otherwise permitted in the district shall not occupy more than 25 percent of the ground area of the building.
- (4) Towers, monuments, fire towers, hose towers, cooling towers, grain elevators, gas holders or other structures where the manufacturing process requires a greater height, and essential services defined in section 108-5.

- (5) Churches, schools, institutional buildings, public utility buildings and structures and any building or structure in an M District if not less than 200 feet distant from any R District, provided that for each three feet by which the height of such building or structure exceeds the maximum height otherwise permitted in the district, its side and rear yards shall be increased in width or depth by an additional foot over the side and rear yards required for the highest building otherwise permitted in the district.

(Code 1977, § 107-55; Ord. No. 2000-10, 9-25-2000)

Sec. 108-242. Area requirement modifications.

(a) Every structure with water and/or sewer services available within the corporate limits of the town shall be connected to the water and sewer system.

(b) No lot of less than five acres shall have a privy, chemical toilet or other toilet of any kind not connected to either the public sewer system or to a private disposal facility approved by the proper health authorities, except where installed temporarily for use in connection with a construction project.

(Code 1977, § 107-56; Ord. No. 2000-10, 9-25-2000)

Sec. 108-243. Front yard modifications.

Where a building is to be located between two existing principal buildings in the same block front and within 200 feet of them, the front yard requirement for the proposed building shall be the average of those provided by the two existing buildings. In the case of a corner lot, the proposed building shall be set in line with the building next adjoining and within 200 feet. In either case, however, no front yard shall be less than 25 feet in any R District or 20 feet elsewhere.

(Code 1977, § 107-57; Ord. No. 2000-10, 9-25-2000)

Sec. 108-244. Through lots.

Buildings on lots extending through from street to street shall provide the required front yard on both streets, but need not provide the required rear yard in case an equivalent open space is provided in lieu of such required rear yard.

(Code 1977, § 107-58; Ord. No. 2000-10, 9-25-2000)

Sec. 108-245. Rear and side yard modifications.

(a) In computing the depth of a rear yard or the width of a side yard where the rear or side yard opens on an alley, one-half of the alley width may be included as a portion of the rear or side yard, as the case may be.

(b) Each side yard shall be increased in width by two inches in any R District for each foot by which the length of the side wall of the building adjacent to the side yard exceeds 40 feet.

(c) The side yard width may be varied where the side wall of a building is not parallel to the side lot line or is broken or otherwise irregular. In such case, the average width of the side yard shall not be less than the otherwise required least width.

(d) Where a corner lot rears upon the side lot line of another lot in an R District, either directly or across an alley, the side yard setback for the corner lot shall have a width equal to not less than one-half the required depth of the front yard on the lot in the rear.

(Code 1977, § 107-59; Ord. No. 2000-10, 9-25-2000)

Sec. 108-246. Other exceptions to yard requirements.

(a) The following architectural features may project into required yards or courts as herein-after set forth:

(1) Into any required front yard, rear yard, outer court or required side yard adjoining a side street lot line:

a. Cornices, eaves or other architectural features may project a distance not exceeding two feet.

b. Fire escapes may project a distance not exceeding two feet.

c. An uncovered stair and necessary landings may project a distance not to exceed six feet.

d. Bay windows, balconies and chimneys may project a distance not to exceed three feet, provided that such features do not occupy, in the aggregate, more than one-third of the length of the wall on which they are located.

(2) Subject to the conditions specified in subsections (a)(1) and (2) of this section, the above-named features may project into any required side yard adjoining an interior side lot line a distance not to exceed one-fifth of the width of such side yard, but not to exceed six feet in any case.

(b) Fences, walls and hedges may be located in required yards or courts subject to the limitation in section 108-709 and the following:

(1) Fences and walls not exceeding at any point four feet in height above the elevation of the ground at such point may be located in any yard or court.

(2) Fences and walls not exceeding at any point six feet in height above the elevation of the ground at such point may be located in any rear yard or side yard area, provided that on a reversed corner lot no such fence or wall shall be closer to the side street lot line, within 25 feet of the side lot line of an adjoining lot to the rear, than a distance equal to the least depth of the front yard required for a one-story building on such adjoining lot.

(Code 1977, § 107-60; Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-07, 5-11-2009)

Secs. 108-247—108-270. Reserved.

ARTICLE V. SITE PLAN REVIEW

Sec. 108-271. Scope.

(a) Before a zoning certificate is issued for any use designated in article VI of this chapter as requiring site plan review, the procedures of this section shall be followed in order to more effectively administer, enforce and implement the purposes, intent and requirements of this chapter.

(b) Any proposed development, which constitutes a subdivision as defined in chapter 106, subdivision of land, shall not be required to follow the procedures of this section.

(c) An applicant who must undergo a site plan review for a proposed development shall pay a fee to the town in accordance with the fee schedule adopted by resolution of the Mayor and Council, and as may be amended from time to time.

(Code 1977, § 107-61(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-272. Procedure.

(a) General procedure.

- (1) All applicants for a zoning certificate shall follow the Town of Berlin site plan review procedure.
- (2) When the applicant applies to the planning director for a zoning certificate, the applicant shall submit complete sets of the site plans as required.
- (3) No zoning certificate shall be granted until after the planning and zoning commission submits its recommendation to the planning director.
- (4) Site plan approval shall not relieve the applicant from any other provisions of this chapter and shall not constitute a recommendation for a variance or other relief that the applicant may seek from the board of appeals.

(b) The planning director shall forward the site plan to the planning and zoning commission at the regularly scheduled meeting of each month as set by the commission. The planning director shall retain one copy of the site plan for review.

- (1) The planning and zoning commission shall make a written recommendation to the planning director on whether the site plan indicates that a zoning certificate should be granted or denied.
- (2) The written recommendation shall include the underlying findings and reasons affecting the recommendation.

(c) Decisions.

- (1) The planning director shall review the site plan and the planning and zoning commission's recommendations and issue or deny the zoning certificate.
- (2) The decision of the planning director shall be in writing and shall be communicated to the applicant personally or mailed to him at his known address not later than the day following the decision.
- (3) The decision shall indicate the specific provisions of this chapter and other laws which have not been met and the specific reasons therefor.

(Code 1977, § 107-61(B); Ord. No. 2000-10, 9-25-2000; Ord. No. 2024-05, 8-12-2024)

Sec. 108-273. Requirements.

The following information shall be included on the site plan:

- (1) A statement describing the proposed use.
- (2) A site layout drawn to a scale of not less than one inch equals 50 feet, showing the location, dimensions and area of each lot, the location, dimensions and height of proposed buildings, structures, streets and any existing buildings in relation to the property and street lines. If the application relates to property which is scheduled to be developed in successive

stages, such plans shall show the relationship of the portion scheduled for initial development to the proposed layout of the entire property.

- (3) The location, dimensions (number shown) and arrangements of all open spaces and yards, landscaping, fences and buffer yards including methods and materials to be employed for screening.
- (4) The location, size (numbers shown), arrangement and capacity of all areas to be used for motor vehicle access, off-street parking, off-street loading and unloading and provisions to be made for lighting such areas.
- (5) The location and dimensions of sidewalks and all other areas to be devoted to pedestrian use.
- (6) Zoning districts and requirements.
- (7) Certification by the person who prepared the site plan.
- (8) Certification of ownership and acknowledgment of the site plan, signed by the owner.
- (9) Such other information that may be reasonably required for the purpose of this section.

(Code 1977, § 107-61(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-274. Site design guidelines.

The following guidelines are divided into eight categories to assist the applicant in the preparation of site and building plans as to assist the planning and zoning commission and the planning director in their review of all site plans. These guidelines are meant to encourage creativity, innovation and well-designed developments. They apply to principal buildings and structures and to all accessory buildings, structures, signs, and other site features.

- (1) *Relation of proposed buildings to surrounding environment.* Relate proposed

structure(s) harmoniously to the terrain and to existing buildings that have a visual relationship to the proposed structure(s). To achieve this favorable relationship between existing and proposed uses, create focal points with respect to avenues of approach, terrain features or other buildings and relate open space between all existing and proposed building.

- (2) *Drive, parking and circulation.* For vehicular and pedestrian circulation, including walkways, interior drives and parking, give special attention to the location and number of access points to public streets, width of interior drives and access points, general interior circulation, separation of pedestrian and vehicular traffic, arrangement of safe and convenient parking areas. Design these vehicular and pedestrian areas to enhance the appearance of and access to the proposed buildings and structures and to the neighboring properties.
- (3) *Surface water drainage.* Give special attention to proper site surface drainage to ensure that removal of surface waters will not adversely affect either neighboring properties or the public storm drainage system. Remove and efficiently carry away all stormwater from all roofs, canopies and paved areas. Collect surface water from all paved areas to permit vehicular and pedestrian movement.
- (4) *Utility service.* Place electric and telephone lines underground, where possi-

ble. Locate, paint and undertake any other treatment to ensure that any utilities which remain above ground will have a minimal adverse impact on neighboring properties.

- (5) *Advertising features.* Ensure that the size, location, lighting and materials of all permanent signs and outdoor advertising structures or features will enhance rather than detract from the design of proposed buildings and structures and neighboring properties.
- (6) *Special features.* Provide needed setbacks, screen plantings and other screening methods for exposed storage areas, exposed machinery installations, service areas, truck loading areas, utility buildings and structures to help make them compatible with existing or contemplated site design and with neighboring properties.
- (7) *Preservation of landscape.* Preserve the landscape in its natural state by minimizing tree and soil removal. Ensure that grade changes are compatible with the general appearance of neighboring developed areas.
- (8) *Solar energy use.* Consider the desirability and feasibility of active and passive solar energy use. Orient proposed buildings and provide structures to provide for solar energy use and to preserve solar access of adjoining properties.
- (9) *Architectural design review.* The planning commission shall, as part of its site plan review process, review and approve all proposed commercial development to ensure it complements and enhances the town's historic architectural character and uniqueness.
(Code 1977, § 107-61(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2014-07, 1-12-2015)

Sec. 108-275. Highway corridor guidelines.

(a) All development proposed along major highways as designated shall be subject to the procedures, standards and guidelines specified in the following sections in addition to those standards required within the district which development occurs. The following specific purposes will be accomplished through the review process for proposed development.

- (1) Maintain pleasing aesthetic values along existing and proposed major highways located within the corporate limits of the town.
- (2) Provide for the continued safe and efficient use of these roadways.
- (3) Maintain natural beauty and scenic, cultural, and historic character of the corridors, particularly distinctive views, vistas, and visual continuity.
- (4) Protect existing greenbelts, natural vegetation, and wildlife habitats along the corridors.
- (5) Prohibit indiscriminate clearing, excessive grading and clear cutting along corridors.
- (6) Minimize cut and fill operations by placing emphasis on the retention of natural topography of the corridors.
- (7) Minimize intersections and site access points.

(b) The highway corridors shall include all lands within 500 feet on each side of the following rights-of-way:

- (1) US Route 50.
- (2) US Route 113.
- (3) Maryland Route 346.

(Code 1977, § 107-61(E, F); Ord. No. 2000-10, 9-25-2000)

Secs. 108-276—108-298. Reserved.

ARTICLE VI. DISTRICTS AND DISTRICT REGULATIONS*

DIVISION 1. GENERALLY

Sec. 108-299. Districts established.

For the purpose of this chapter, the incorporated territory of the town is hereby divided into the following districts:

R-1 Residence District

R-2 Residence District

R-3 Apartment District

R-4 Residence District (PUD)

B-1 Town Center District

B-2 Shopping District

B-3 General Business District

M-1 Light Industrial District

M-1A Industrial District

H-1 Historic District

(Code 1977, § 107-6; Ord. No. 2000-10, 9-25-2000)

Sec. 108-300. Zoning map.

The boundaries of the districts are hereby established as shown on the zoning map of the town, which map together with all notations, references and other matters thereon shall be and hereby made a part of this article. Said zoning map, properly attested, shall be and remain on file in the office of the planning director.

(Code 1977, § 107-7; Ord. No. 2000-10, 9-25-2000)

Sec. 108-301. Interpretation of boundaries.

(a) Except where referenced on the zoning map to a street line or other designated line by dimensions shown on the map, the district bound-

***State law reference**—Creation of districts, uniformity, Md. Ann. Code art. 66B, § 4.02.

ary lines are intended to follow property lines, lot lines or the centerlines of the streets, alleys, railroads, small streams or other identifiable landmarks as they existed at the time of the adoption of this chapter, but where a district line obviously does not coincide with the property line, lot lines or such centerlines, or where it is not designated by dimensions, it shall be deemed to be 200 feet back from the nearest street line in case it is drawn parallel with a street line, or its location shall be determined by scaling in other cases.

(b) Where a district boundary line, as established in this article or as shown on the zoning map, divides a lot which was in single ownership and of record at the time of enactment of this chapter, the use authorized thereon and the other district requirements applying to the least restricted portion of such lot under this chapter shall be considered as extending to the entire lot, provided that the more restricted portion of such lot is entirely within 50 feet of said dividing district boundary line. The use so extended shall be deemed to be conforming.

(c) Questions concerning the exact location of district boundary lines shall be determined by the board of appeals, as provided in section 108-161 and in accordance with rules and regulations which it may adopt.

(Code 1977, § 107-8; Ord. No. 2000-10, 9-25-2000)

Sec. 108-302. Extensions of district boundaries.

Whenever any street, alley or other public way is abandoned by official action as provided by law, the zoning districts adjoining the sides of such public way shall be automatically extended, depending on the side or sides to which such lands revert, to include the right-of-way of the public way thus vacated, which shall thenceforth be subject to all regulations of the extended district or districts.

(Code 1977, § 107-9; Ord. No. 2000-10, 9-25-2000)

Sec. 108-303. Classification of territory not included within specific districts.

In case any territory has not been specifically included within a district, or where territory becomes a part of the incorporated area of the town by annexation or otherwise, such territory shall automatically be classified in the R-1 District until otherwise classified.

(Code 1977, § 107-10; Ord. No. 2000-10, 9-25-2000)

Secs. 108-304—108-324. Reserved.

DIVISION 2. R-1 RESIDENCE DISTRICT

Sec. 108-325. Permitted uses.

The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the R-1 Residence District. Principal permitted uses are as follows:

- (1) Single-family dwellings.
- (2) Churches and parish houses.*
- (3) Schools and colleges for academic instruction.*
- (4) Agriculture, grazing and the usual agricultural buildings and structures, but not including chicken farms, hog farms or fur farms, provided that any heating plant, horse barn, cow barn, feeding pen or other building in which farm animals are kept shall comply with the distance requirement in section 108-712.
- (5) Silviculture.
- (6) Publicly owned buildings and properties of an administrative or public service type but not including such uses as storage yards, warehouses or garages.*

- (7) Publicly owned areas and buildings, such as parks playground, community centers, and buildings or properties of a cultural or conservative nature.*
- (8) Residential day care, provided that there is established and maintained in connection therewith a completely fenced and screened play lot of adequate size located at least 15 feet from any residential lot line.

*Requires site plan review.

(Code 1977, § 107-34(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-326. Conditional uses.

Conditional uses requiring board of appeals authorization in accordance with sections 108-160 through 108-166 and site plan review pursuant to article V of this chapter are as follows:

- (1) Country clubs, public and private golf courses, swimming clubs and other social and recreational clubs and facilities for private noncommercial use, provided that any such establishment shall have an area of at least three acres and every principal building or swimming pool shall comply with one-half the distance requirement in section 108-712.
- (2) Public utility structures and properties other than essential services defined in section 108-5, but not including production, construction, maintenance or storage buildings or yards.
- (3) Cross-country electric transmission or communication line, cables or towers; oil, gas, water, sewer, or other pipelines; railroad lines; or any other utility located on a private right-of-way.
- (4) The new construction of a dwelling or the conversion of an existing dwelling into a bed-and-breakfast facility, which shall be a single-family owner-occupied dwelling in which overnight sleeping

rooms are rented on a short-term basis to transients subject to the following restrictions:

- a. No bed-and-breakfast facility shall contain more than four guest sleeping rooms.
- b. Only designated rooms shall be used for sleeping.
- c. A minimum of one full bathroom with lavatory, toilet and shower or tub or combination thereof shall be available for every two guestrooms as well as one for the owner-occupant.
- d. No guestroom shall contain more than two beds.
- e. On-site off-street parking in the rear or side yard in accordance with this Code shall be provided at the rate of one space per guestroom and two spaces for the owner-occupant.
- f. No cooking facilities shall be permitted in any guestroom.
- g. Upon conversion of an existing dwelling to a bed-and-breakfast facility, no additional entrance shall be permitted in the front facade.
- h. No guest shall be permitted in a bed-and-breakfast facility for more than ten consecutive nights.
- i. No more than four persons shall simultaneously occupy any one guestroom in a bed-and-breakfast facility.
- j. There shall be no more than two nonresident employees in or about the bed-and-breakfast facility.
- k. There may be only one on-premises advertising sign, which shall not exceed more than four square feet. The sign shall not be self-illuminated.

l. Breakfast only shall be served only to overnight guests.

m. Where a bed and breakfast facility exists or is proposed for a lot greater than one acre in size, the board of appeals shall have the authority to modify the above criteria, provided that such modification does not substantially impair the purpose of this chapter as stated in section 108-1.

(5) Day-care centers.

(6) Nursing facility, hospice facility or other institution for human care size. In addition to the review parameters established in article V of this chapter, and sections 108-160 through 108-166, application for such uses shall include an exterior lighting plan to ensure minimal adverse impact on neighboring properties.

(Code 1977, § 107-34(B); Ord. No. 2000-10, 9-25-2000; Ord. No. 2012-02, 4-23-2012)

Sec. 108-327. Accessory uses.

Accessory buildings and uses customarily incidental to any principal use or authorized conditional use are permitted, including:

- (1) Private garages, parking areas, stables, swimming pools and other customary outbuildings and structures, provided that any stable shall comply with one-half the distance requirement in section 108-712.
- (2) Temporary real estate signs complying with the regulations in article X of this chapter.
- (3) Identification signs complying with the regulations in article X of this chapter.
- (4) Security signs not exceeding two square feet.
- (5) One bulletin board or sign for any permitted church, school or other public or

semipublic institution not exceeding 32 square feet in size, which sign may be indirectly lighted.

- (6) Customary home occupations, provided that the home occupation is clearly and obviously subordinate to the principal use of a residential use. Home occupations shall be conducted wholly within the primary structure or an existing accessory building on the premises and pursuant to section 108-844.
- (7) The keeping of not more than one roomer or boarder by a resident family.
- (8) An accessory living quarters as defined pursuant to section 108-5.
- (9) Yard sales, provided that the personal property shall be removed 12 hours after the yard sale. Any item remaining on site for more than two days shall be declared a nuisance.
- (10) The keeping of no more than six female chickens, provided that:
 - a. All chickens must be confined at all times within a pen located no less than 25 feet from any residence.
 - b. Chickens must be registered with the state department of agriculture, domestic poultry and exotic bird registration division, via application forms provided by the town. The applicant shall complete the application form and return the form

to the planning director, who shall then forward the application form to the state department of agriculture.

- c. All chickens must be provided with access to a shelter that provides suitable protection from inclement weather.
- d. Each pen containing poultry must be kept free of odors and materials that may attract rodents and maintained in such a way as to minimize turf destruction.
- e. No male chickens, waterfowl or other game birds may be harbored or maintained.
- f. Chickens shall only be permitted on residential lots containing single-family residences which are occupied.

(Code 1977, § 107-34(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-16, 1-11-2010)

Sec. 108-328. Height regulations.

No principal structure or part thereof, except as provided in section 108-241, shall exceed 2½ stories or 35 feet in height, and no accessory structure shall exceed 1½ stories or 25 feet in height.

(Code 1977, § 107-34(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-16, 1-11-2010; Ord. No. 2012-03, 6-3-2012)

Sec. 108-329. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area (square feet)</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Family (square feet)</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Side Yard Width</i>		<i>Rear Yard Depth (feet)</i>
					<i>Least Width (feet)</i>	<i>Sum of Widths (feet)</i>	
Dwelling	10,000	80	10,000	25	10	25	35
Churches*	2 acres	200	—	35	25	50	40
Schools*	5 acres	400	—	35	35	80	50
Day-care centers*	40,000	100	—	35	15	—	40
Public utility uses ^{3*}	10,000	80	—	35	25	50	40
Other permitted uses*	40,000	100	—	35	25 ²	50 ²	40 ²

Notes:

1. For narrow streets, see section 108-706; for built-up frontage see section 108-243.
2. Or greater as may be specified elsewhere in this chapter.
3. Other than essential services as defined as section 108-5.

*Requires site plan review.

(Code 1977, § 107-34(E); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-16, 1-11-2010; Ord. No. 2010-11, 11-22-2010)

Secs. 108-330—108-346. Reserved.

DIVISION 3. R-2 RESIDENCE DISTRICT

Sec. 108-347. Permitted uses.

The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the R-2 Residence District. Principal permitted uses in the R-2 Residence District include any principal use or structure permitted and as regulated in the R-1 District, except as herein after modified.

(Code 1977, § 107-35(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-348. Conditional uses.

The following uses in the R-2 Residential District require board authorization in accordance with sections 108-160 through 108-166:

- (1) Any conditional use permitted and as regulated in the R-1 District, except as hereinafter modified.

- (2) As a condition of subdivision approval, established side yards of less than otherwise required, but in no event less than six feet, shall be approved by the planning and zoning commission.

- (3) As a condition of a subdivision approval an established road right-of-way less than otherwise required, but in no event less than 40 feet, shall be approved by the planning and zoning commission.

(Code 1977, § 107-35(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-349. Height requirements.

Height requirements shall be the same as the R-1 District.

(Code 1977, § 107-35(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-350. Lot area and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area (square feet)</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Family (square feet)</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Side Yard Width</i>		<i>Rear Yard Depth (feet)</i>
					<i>Least Width (feet)</i>	<i>Sum of Widths (feet)</i>	
Dwellings	8,000	70	8,000	25	8	20	35
Public utility ²	Same as R-1 District uses						
Other permitted uses	Same as R-1 District uses						

Notes:

1. For narrow streets, see section 108-706; for built up frontage, see section 108-243.

2. Other essential services as defined in section 108-5.

(Code 1977, § 107-35(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-16, 1-11-2010)

Secs. 108-351—108-373. Reserved.**DIVISION 4. R-3 APARTMENT DISTRICT****Sec. 108-374. Permitted uses.**

The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the R-3 Apartment District. All principal permitted uses and conditional uses shall require site plan review in accordance to article V of this chapter. Principal permitted uses include any principal use or structure permitted and as regulated in the R-2 District, and as hereinafter modified.

(Code 1977, § 107-36(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-375. Conditional uses.

Conditional uses requiring board authorization in accordance with sections 108-160 through 108-166 and site plan review pursuant to article V of this chapter are as follows:

- (1) Any conditional use permitted and as regulated in the R-2 District, except as hereinafter modified.

- (2) Clubs, fraternities, lodges and meeting places of similar organizations, not including any use that is customarily conducted as a gainful business or where liquor is sold, provided that buildings in which such meeting places are housed shall be located at least 20 feet from any other lot in any R District.
- (3) Limited dwellings.
- (4) Two-family dwellings.
- (5) Townhouse dwellings.
- (6) Multifamily dwellings.
- (7) Conversion of a building into dwellings in accordance with the provisions of section 108-710.
- (8) Banks, building and loan associations, trust companies and financial and lending institutions.
- (9) Churches.
- (10) Schools.

(11) Boardinghouses and lodginghouses.
(Code 1977, § 107-36(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-376. Accessory uses.

Permitted accessory uses for the R-3 Apartment District include the following:

- (1) Accessory uses and structures permitted and as regulated in the R-2 District, except as hereinafter modified.
- (2) One exterior sign identifying only the name of each place and the uses conducted therein, which sign shall be integral with or attached to the building without projecting more than 12 inches and shall not be lighted. No such sign shall exceed one square foot in area for each

ten linear feet of horizontal wall on which it is placed, nor shall it project above the roofline.

- (3) Other accessory uses and structures, not otherwise prohibited, customarily accessory and incidental to any permitted principal or conditional use.
(Code 1977, § 107-36(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-377. Height regulations.

No principal structure shall exceed three stories or 50 feet in height, and no accessory structure shall exceed 1½ stories or 25 feet in height, except as provided in section 108-241.
(Code 1977, § 107-36(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-378. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area (square feet)</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Family (square feet)</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Least Width (feet)</i>	<i>Sum of Widths (feet)</i>	<i>Rear Yard Depth (feet)</i>
All dwellings	6,000	60	6,000	25	10% (minimum 6)	25% (minimum 15)	35
Limited dwellings	5,000	50	2,000	25	—	—	25
Public utilities	5,000	50	—	25	6	15	35
Other permitted uses	Same as specified in R-2 District						
Churches	2 acres	200	—	35	25	50	40
Schools	5 acres	200	—	35	25	50	40
Boardinghouses and lodginghouses	12,000	80	2,000	25	8	20	35

Notes:

1. For narrow streets, see section 108-706; for built-up frontage, see section 108-243.
(Code 1977, § 107-36(E); Ord. No. 2000-10, 9-25-2000)

Secs. 108-379—108-399. Reserved.

DIVISION 5. R-4 RESIDENCE DISTRICT

Sec. 108-400. Permitted uses.

The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the R-4 Residence District. All principal permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter. Principal permitted uses include:

- (1) Any principal use or structure permitted and as regulated in the R-3 District, except as herein modified.
- (2) Any conditional use permitted and as regulated in the R-3 Districts, except as hereinafter modified.
- (3) Two-family dwellings.
- (4) Townhouse dwellings.
- (5) Multifamily developments.
- (6) As a condition of a subdivision approval, established side yards of less than otherwise required, but in no event less than five feet, provided that it is approved by the planning and zoning commission.

- (7) As a condition of a subdivision approval, an established street right-of-way, less than otherwise required, but in no event less than 30 feet, provided that it is approved by the planning and zoning commission.

(Code 1977, § 107-37(A); Ord. No. 2000-10, 9-25-2000; Ord. No. 2001-9, 10-22-2001; Ord. No. 2005-8, 7-25-2005)

Sec. 108-401. Accessory uses.

The following accessory uses for the R-4 Residence District are permitted:

- (1) Accessory uses and structures permitted and as regulated in the R-3 District, except as hereinafter modified.
- (2) Other accessory uses and structures, not otherwise prohibited, customarily accessory and incidental to any permitted principal or conditional use.

(Code 1977, § 107-37(B); Ord. No. 2000-10, 9-25-2000; Ord. No. 2005-8, 7-25-2005)

Sec. 108-402. Height regulations.

Height regulations shall be as specified in the R-3 District.

(Code 1977, § 107-37(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2005-8, 7-25-2005)

Sec. 108-403. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the requirements in article IV of this chapter:

Use	Minimum Lot Area (square feet)	Minimum Lot Width (feet)	Lot Area per Family (square feet)	Front Yard Depth ¹ (feet)	Side Yard Width		Rear Yard Depth (feet)
					Least Width (feet)	Sum of Widths (feet)	
All dwellings	5,000	50	5,000	25	6	15	35
Public utilities	5,000	50	—	25	6	15	35
Other permitted uses	Same as specified in R-3 District						

Fee simple townhouse dwellings may be permitted with the following minimum lot and area requirements:

1. Minimum lot size—2,000 square feet;
2. Minimum lot width—18 feet;
3. Front yard setback—20 feet;
4. Rear yard setback—25 feet; and
5. Side yard setback—0 Feet along the party wall and eight feet on the end units

If a townhouse project is developed as allowed herein, the density shall remain calculated as set forth for "all dwellings" (minimum lot area (square feet) is 5,000).

Notes:

1. For narrow streets, see section 108-706; for built-up frontage, see section 108-243.
(Code 1977, § 107-37(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2001-9, 10-22-2001; Ord. No. 2005-8, 7-25-2005; Ord. No. 2022-04, 5-23-2022)

Secs. 108-404—108-434. Reserved.

DIVISION 6. B-1 TOWN CENTER DISTRICT

Sec. 108-435. Permitted uses.

The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the B-1 Town Center District. All principal permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter. Principal permitted uses are as follows:

- (1) Hotels and motels, subject to section 108-843.
- (2) Bed-and-breakfast, subject to section 108-326.
- (3) Any community retail business or service establishment, such as a food, drug, clothing, hardware, accessory, variety, hair salons, a beauty shop, florist or specialty shops, shoe repair shop, laundromat and dry-cleaning facilities, banks, funeral homes professional offices, a real estate offices or insurance offices or the

like, supplying commodities or performing services primarily for residents and visitors of the town.

- (4) Restaurants, cafes (to include outdoor dining), pubs, and confectioneries.
- (5) Antique or gift shops.
- (6) Automobile service stations, light repair and storage garages and commercial parking lots for passenger vehicles, subject to provisions in section 108-817 and provided that all motor tuning or testing or other noisy activities are conducted within enclosed buildings.
- (7) Theaters, opera houses, live entertainment venues.
- (8) Furniture stores, interior decorating shops, provided that all principal buildings and workshops and all paint storage are located at least 50 feet from any lot in an R District.
- (9) Warehousing for products and goods sold on the premises, provided that the

first 30 feet of any warehouse fronting Main Street be used for the sale of the goods produced or stored.

- (10) Boardinghouses and lodginghouses.
- (11) Any other retail business or service establishment which is determined by the board of appeals to be of the same general character as those specified herein, but not including any use prohibited herein or of a class first permitted in a B-2, B-3 or M District.
- (12) Dwellings above street level floors where street level floors are utilized for commercial, retail or other uses as allowed in this chapter.

(Code 1977, § 107-38(A); Ord. No. 2000-10, 9-25-2000; Ord. No. 2008-10, 11-24-2008)

Sec. 108-436. Accessory uses.

The following accessory uses are permitted in the B-1 Town Center District:

- (1) Accessory buildings and uses customarily incidental to any permitted principal use, and not otherwise prohibited.
- (2) Exterior signs pertaining only to the uses conducted on premises. Such signs shall be integral with or attached to the building; or if any such building is more than 25 feet back from the street line, a free-standing sign located at the street right-of-way line shall be permitted. No such sign shall project over any street line unless attached to a marquee or canopy no more than three feet above a parapet wall or roof line if mounted on the building, nor shall it exceed 25 feet in total height if freestanding. The area of all such signs on the premises shall not exceed in aggregate one square foot for each linear foot of building frontage. Where the lot adjoins an R District, any exterior sign 50 feet thereof shall be attached flat against the front of the build-

ing. Other requirements pursuant to article X of this chapter shall apply to signs in a B-1 District.

- (3) The manufacturing, processing or treatment of goods for sale primarily at retail on the premises or the cleaning, laundering, repairing or other treatment of objects as a retail service to customers on the premises, in which operations not more than three persons shall be engaged at any one time.

(Code 1977, § 107-38(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-437. Required conditions.

The following conditions are required in the B-1 Town Center District:

- (1) All business and processing, except as stipulated, shall be conducted wholly within completely enclosed buildings, except for the sale of automotive fuels, lubricants and incidental services at service stations, and the parking or loading of vehicles, unless authorized as an exception by the board of appeals.
- (2) Where a B-1 District fronts directly across the street or abuts a lot line from any R District, the parking and loading facilities shall be set back at least 25 feet from the street line or lot line, and the intervening space shall be landscaped. All buildings in such cases shall be set back at least 15 feet.
- (3) Processes and equipment employed and goods processed or sold shall be limited to those which are not objectionable by reason of hazard, odor, dust, smoke, cinders, gas, fumes, noise, vibration, radiation, refuse matter or water-carried waste.
- (4) No lighting other than minimum protective night lighting shall remain on after business hours. All lighting shall be

shaded so as to direct the light away from residential premises and public streets.

(Code 1977, § 107-38(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-438. Height regulations.

No structures shall exceed three stories or 45 feet, and no accessory structure shall exceed two stories or 30 feet in height, except as provided in section 108-241.

(Code 1977, § 107-38(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-439. Conditional uses.

Conditional uses require board authorization, in accordance with section 107-69 and 107-70, and site plan review, pursuant to article V of this chapter.

(Code 1977, § 107-38(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-440. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Unit</i>	<i>Use Front Yard Depth¹ (feet)</i>	<i>Side Yard Width Each Side (feet)</i>	<i>Rear Yard Depth (feet)</i>
Hotels	40,000	100	2,000	25	20	20
Boardinghouses or lodginghouses	20,000	80	4,000	25	10	30
Community retail service establishments	6,000	60		10 ²	None, except 15 when adjoining an R District	30 abutting an R District, otherwise 15
Other permitted uses	—	—	—	10 ²	None, except 15 when adjoining an R District	30 abutting an R District, otherwise 15

Notes:

1. For narrow streets, see section 108-706; for built-up frontage, see section 108-243.

2. Or greater, as specified elsewhere in this chapter.

(Code 1977, § 107-38(F); Ord. No. 2000-10, 9-25-2000)

Sec. 108-441. Group homes.

A group home as defined in section 108-5 may be permitted as a conditional use in the B-1

Town Center District subject to the approval of such conditional use in that district by the Board of Zoning Appeals. The area in which a group

home may be permitted as a conditional use shall be restricted to the area of Old Ocean City Boulevard east of U.S. Route 113 in the B-1 Town Center District.
(Ord. No. 2018-06, 11-26-2018)

Secs. 108-442—108-463. Reserved.

DIVISION 7. B-2 SHOPPING DISTRICT

Sec. 108-464. Principal uses.

The following uses shall be permitted and the following regulations and the applicable regulations contained in the other articles shall apply in the B-2 Shopping District. All principal permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter, site plan review. Principal permitted uses include the following:

- (1) Any principal use or structure permitted and as regulated in the B-1 District, except as herein modified.
- (2) Boardinghouses or lodginghouses.
- (3) Bed-and-breakfasts.
- (4) Hotels and motels.
- (5) Any community retail business or service establishment, such as a food, drug, clothing, hardware, accessory, variety or department stores, barbershops, beauty shops, florist or specialty shop, a shoe repair shop, laundromats, cleaning shop, a bank or savings and loan office, a professional office, funeral homes, a real estate or insurance office or the like, supplying commodities or performing services primarily for residents of the town and surrounding community.

- (6) Tourist homes and produce stands.
- (7) Taverns, nightclubs, drive-in eating and drinking establishments, summer gardens and road houses, including entertainment and dancing, provided that the principal building shall comply with one-half the distance requirement of section 108-712.
- (8) Automobile parking lots, repair shops or general garages, subject to the provisions in section 108-817.
- (9) Automobile, tire, battery, recreational vehicle and implement establishments for display, hire, sale or general repair, including sales lots.
- (10) Animal hospitals, veterinary clinic or kennel, provided that any structure or area used for such purposes shall comply with the distance requirement of section 108-712.
- (11) Bakery, laundry and clothes cleaning and dyeing establishments, all subject to one-half the distance requirement of section 108-712.
- (12) Wholesale business, warehousing, storage and distributing establishments, except for flammable liquids, paints or explosives.
- (13) Municipally owned electric, communication, water, sewer, gas and fuel transmission lines and necessary equipment and buildings incidental thereto. Wireless transmitting stations, transformers, boosters, railroad lines and stations, water tanks and standpipes shall be subject to one-half the distance of section 108-712.
- (14) Any other retail business or service establishment which is determined by the board of appeals to be of the same general character as those specified herein, but not including any use of a class first permitted in a B-3 or M District.

- (15) Churches and parish houses, and the cultural, educational and recreational activity of its members, worshipers and their invitees, conducted as the sole principal use on a lot or contiguous lots.
(Code 1977, § 107-39(A); Ord. No. 2000-10, 9-25-2000; Ord. No. 2016-01, 4-11-2016)

Sec. 108-465. Accessory uses.

The following accessory uses are permitted in the B-2 Shopping District:

- (1) Accessory buildings and uses customarily incidental to any permitted principal use, and not otherwise prohibited.
- (2) The manufacturing, processing or treatment of goods for sale primarily at retail on the premises or the cleaning, laundering, repairing or other treatment of objects as a retail service to customers on the premises, in which operations not more than three persons shall be engaged at any one time.
- (3) Warehousing for goods merchandise or products offered for sale on the premises.
(Code 1977, § 107-39(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-466. Required conditions.

The following conditions are required in the B-2 Shopping District:

- (1) Processes and equipment employed and goods processed or sold shall be limited to those which are not objectionable by reason of hazard, odor, dust, smoke, cinders, gas, fumes, noise, vibration, radiation, refuse matter or water-carried waste.
- (2) Lots for public display or sale of automobiles, trucks, recreational vehicles, implements, boats or other machinery or equipment shall comply with the requirement that every such lot shall be fenced

along each public street by an ornamental fence not less than 30 inches high, located at least five feet back from the property line or from any public sidewalk, and the space in front thereof shall be landscaped and neatly maintained.

- (3) No lighting, other than minimum protective night lighting, shall remain on after normal business hours. All lighting shall be shaded so as to direct the light away from residential premises and from public streets.
- (4) Along any side adjacent to any R District or institutional premises, an ornamental wall, fence or compact evergreen hedge and wire fence, not less than four feet nor more than six feet high, shall be installed and maintained in good condition without any advertising.

(Code 1977, § 107-39(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-467. Height regulations.

Height regulations shall be the same as in the B-1 District.

(Code 1977, § 107-39(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-468. Prohibited uses.

The following uses are prohibited in the B-2 Shopping District:

- (1) Any use specified as a permitted use or conditional use in a B-3 or M-1 District.
- (2) Warehousing for goods or merchandise other than those offered for sale on premises.
- (3) Warehousing within 50 feet of Main Street, Broad Street, William Street, or Commerce Street.

(Code 1977, § 107-39(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-469. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements contained in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Unit</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Side Yard Width Each Side (feet)</i>	<i>Rear Yard Depth (feet)</i>
Motels and hotels	Same as B-1					
Boardinghouses	Same as B-1					
Community retail and services	Same as B-1					
Wholesale and warehousing	6,000	60	—	20	6	25
Other permitted uses	—	—	—	10 ²	None, except 10 when adjoining an R District	30 abutting an R District, otherwise 10

Notes:

1. For narrow streets, see section 108-706; for built-up frontage, see section 108-243.

2. Or greater as may be specified elsewhere in this chapter.
(Code 1977, § 107-39(F); Ord. No. 2000-10, 9-25-2000)

Secs. 108-470—108-491. Reserved.

**DIVISION 8. B-3 GENERAL BUSINESS
DISTRICT**

**Sec. 108-492. Permitted uses; regulations
and requirements.**

The following uses shall be permitted and the following regulations and the applications contained in other articles shall apply in the B-3 General Business District. All permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter, site plan review. Principal permitted uses include:

- (1) Any use or structure permitted and as regulated in the B-2 District, except as herein modified.
- (2) Retail sales of building supplies, not including concrete mixing or bulk storage of sand, gravel, lime or similar materials.
- (3) Contractor's equipment storage yard or plant or storage and rental of equipment commonly used by contractors.
- (4) Trucking or motor freight station or terminal.
- (5) Retail lumberyard, including millwork only when incidental.
- (6) Storage, sale and incidental milling or other processing of grain and livestock feed or storage and sale of coal, coke or firewood, provided that dust is effectively controlled during all operations.
- (7) Carting, express or hauling establishments, including storage of vehicles.
- (8) Stone or monument works not employing power-driven tools, or if employing such tools, then only within a completely

enclosed building subject to one-half the distance requirement of section 108-712.

- (9) Any other use that is determined by the board of appeals to be of the same general character as the above-mentioned uses, including any kind of manufacturing or treatment incidental to the conduct of a retail business on the premises, except a use which is first permitted in an M District and/or is prohibited in any district.

(Code 1977, § 107-40(A), (B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-493. Conditional uses.

Conditional uses requiring board authorization in accordance with sections 108-160 through 108-166 are as follows:

- (1) Electric, communication, water, sewer, gas and fuel transmission lines and necessary equipment incidental thereto and wireless transmitting stations, transformers, boosters, railroad lines and stations.
- (2) Flammable liquids, underground storage only, not to exceed 40,000 gallons and subject to the distance requirements of section 108-712.
- (3) Drive-in theaters, provided that the screen shall be so located that the picture will not be visible from adjacent streets or highways and said screen shall be set back not less than 100 feet from the street line, and provided that all parts of such drive-in theaters shall comply with the distance requirement of section 108-712.

- (4) Public swimming pools, dancing, skating, golf driving ranges, livery stables, riding academies, amusement parks, circuses, carnivals, target ranges or similar open-air recreational uses and facilities except race tracks, all subject to the requirements of section 108-712.

- (5) Revival tents and outdoor meetings.

- (6) Telecommunications, television and radio broadcasting facilities, which consist of antennas, including but not limited to panels, dishes and omnidirectional, mounting hardware and all related equipment necessary to operate various telecommunications systems, including personal communications services (PCS) and cellular transmitting and receiving sites as well as monopoles, freestanding

towers, guyed towers and other support and elevational assisting devices, subject to the requirements of section 108-712 and all height restrictions as may be found in this chapter.

(Code 1977, § 107-40(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-494. Accessory uses.

Accessory uses and structures are permitted as regulated in the B-2 District.

(Code 1977, § 107-40(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-495. Height regulations.

Height regulations shall be the same as in the B-2 District.

(Code 1977, § 107-40(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-496. Lot area, width and yard requirements.

The following minimum requirements shall be observed, subject to the modified requirements contained in article IV of this chapter:

<i>Use</i>	<i>Minimum Lot Area</i>	<i>Minimum Lot Width (feet)</i>	<i>Lot Area per Unit</i>	<i>Use Front Yard Depth¹ (feet)</i>	<i>Side Yard Width Each Side (feet)</i>	<i>Rear Yard Depth (feet)</i>
Permitted uses	As determined by the planning and zoning commission to be appropriate for the project			10 ²	None, except 25 when adjoining an R District	35 abutting an R District, otherwise 15

Notes:

1. For narrow streets, see section 108-706; for built-up frontage, see section 108-243.

2. Or greater as may be specified elsewhere in this chapter.
(Code 1977, § 107-40(F); Ord. No. 2000-10, 9-25-2000)

Secs. 108-497—108-515. Reserved.

DIVISION 9. M-1 LIGHT INDUSTRIAL DISTRICT

Sec. 108-516. Purpose and intent.

(a) This district is intended to provide for certain types of business and industry, characterized by light manufacturing, fabricating, warehousing and wholesale distribution which are relatively free from offense and which, with the proper landscaping and buffering, will not detract from residential or commercial desirability of adjacent properties. It is intended that such districts be located with access to major thoroughfares or other major means of transportation, depending upon the specific demands of the industry being served. Industrial parks are encouraged in this district to provide for industrial uses with common access and infrastructure, as well as the provision of open space and adequate buffering to adjacent non-compatible uses.

(b) The planning and zoning commission, at its discretion, may impose such restrictions to protect the aesthetic and visual character of land adjacent to major highway corridors and to provide for and promote orderly development. All development proposed within this district shall be subject to procedures, standards, and guidelines specified in other parts of this chapter.

(Code 1977, § 107-41(A), (B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-517. Permitted uses.

(a) The following uses shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the M-1 Light Industrial District. All principal permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter. The following uses and structures shall be permitted in the M-1 District.

(1) The manufacturing, assembling, compounding, processing, packaging or treat-

ment of cosmetics, pharmaceuticals, musical instruments, novelties, molded rubber or plastic products, electrical appliances, instruments or devices, optical or dental goods, printed matter and similar products.

- (2) The preparation or packaging of food products except fish or meat products, sauerkraut, vinegar and yeast and except canneries and rendering plants.
- (3) The manufacturing, compounding, assembling or treatment to articles of merchandise from previously prepared materials such as bone, cloth, cork, fiber, leather, paper, plastics, metals, stone, shells, thread, wax, yarns or wood, except that no sawmill, planing mill or punch press of over 20 tons rated capacity shall be employed.
- (4) The manufacturing of pottery or other similar ceramic products using only previously pulverized clay and kilns fired only by gas or electricity.
- (5) The manufacture and repair of electric signs, advertising structures and light sheet metal products such as heating and ventilating equipment.
- (6) Plumbing and roofing shops.
- (7) Wholesale or service establishments.
- (8) Contractor shops, equipment and material storage yards, such as electrician, carpenter, plumber, heating, sheet metal, sign painting, printing, upholstery, furniture painting or interior decorating, merchandise fabrication and repair.
- (9) Public utility structures and other essential services.
- (10) Publicly owned facilities such as administration buildings, firehouses, which serve the needs of the community.

- (11) Agriculture uses such as forestry, dairying, pasturage, crop growth, horticulture, stables when located not less than 200 feet from any residential lot line, grazing pastures, nursery crops, non-commercial maintenance buildings, but not including such uses as poultry houses and hog houses.

- (12) Warehouses and self-storage facilities.

(b) The following uses, when conducted wholly within completely enclosed buildings, except for parking and loading areas and subject to the distance requirement of section 108-712:

- (1) Automobile, truck, recreational vehicle, bus, implement, machinery or similar equipment fabrication, assembly or major repair.
- (2) Automobile body or paint shops.
- (3) Tire recapping plants.
- (4) Blacksmith, welding or other metalworking shops not employing reciprocating hammers or punch presses over 20 tons rated capacity.
- (5) Creamery, bottling, ice manufacturing or cold storage plant or milk distributing depot.
- (6) Foundry casting lightweight nonferrous metals or electric foundry not producing noxious fumes or odors.
- (7) Bag, carpet, and rug cleaning plants, provided that necessary equipment is used to effectively precipitate or recover dust.

(Code 1977, § 107-41(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-08, 11-24-2008)

Sec. 108-518. Conditional uses.

The following conditional uses requiring board of appeals' authorization in accordance with sections 108-160 through 108-166 are permitted:

- (1) The following uses when located not less than 300 feet from any R District and not less than 200 feet from any B District:
 - a. Candle manufacturing plant.
 - b. Enameling, lacquering or japaning.
 - c. Flour, feed or grain mill.
 - d. Grain drying.
 - e. Shoddy manufacturing or other textile recycling processes.
 - f. Stone or monument works employing power-driven tools.
 - g. Laboratories: chemical, physical or biological.
 - h. Wastewater treatment facilities. Sludge areas shall not be located on site except by special exception by the board of appeals.
- (2) Any other use determined by the board of appeals to be of the same general character as those specified herein.
- (3) Dwellings above street-level floors where street-level floors are utilized for retail, professional offices or other nonindustrial uses.

(Code 1977, § 107-41(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2009-10, 7-13-2009)

Sec. 108-519. Accessory uses.

The following accessory uses are permitted in the M-1 Light Industrial District:

- (1) Accessory uses and structures permitted and as regulated in the B District, except as herein modified.

- (2) Other uses and structures customarily accessory and incidental to a permitted principal or conditional use, except of the type which is permitted only by authorization of the board of appeals in accordance with sections 108-160 through 108-166.

(Code 1977, § 107-41(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-520. Prohibited uses.

The following uses are prohibited in the M-1 Light Industrial District:

- (1) Any use in conflict with any law or ordinance of the town or the state regulating nuisances.
- (2) Any dwelling, recreational vehicle, school, hospital, church, clinic or other institution for human care; provided, however, that any watchman's or caretaker's dwelling which is accessory to a permitted principal use shall be a permitted use, and provided further that any such dwelling, school, hospital, church, clinic or other institution for human care legally existing in the M-1 District at the time of the effective date of the ordinance from which this chapter is derived or any amendment thereto shall not be subject to any of the limitations or other regulations prescribed for nonconforming uses elsewhere in this chapter.
- (3) Any other use not hereinafter mentioned in any district unless authorized by the board of appeals.

(Code 1977, § 107-41(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-521. Required conditions.

The following conditions are required in the M-1 Light Industrial District:

- (1) The best possible means available for the disposal of reuse matter or water-carried waste, the abatement of obnoxious or offensive odor, dust, smoke, gas,

noise, vibration, radiation or similar nuisance and protection against fire and explosives shall be employed.

- (2) All storage yards shall be within completely enclosed buildings or visually screened on all sides from adjacent properties and public rights-of-way by a solid wall or solid fence and shall be landscaped in accordance with section 108-718. No storage shall be located in any required yard setback other than a rear yard.

(Code 1977, § 107-41(F); Ord. No. 2000-10, 9-25-2000)

Sec. 108-522. Height regulations.

No structure within 200 feet of any R District shall exceed three stories or 50 feet in height, except as provided in section 108-241, and by special exception approved by the board of appeals.

(Code 1977, § 107-41(G); Ord. No. 2000-10, 9-25-2000)

Sec. 108-523. Yard requirements.

(a) The following requirements shall be observed, subject to the modified requirements contained in article IV of this chapter:

<i>Use</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Each Side Yard¹ (feet)</i>	<i>Rear Yard Depth (feet)</i>
All buildings	30	15, except adjoining an R District in which case not less than 50	50

Notes:

1. Or greater, as may be specified elsewhere in this chapter.

(b) No industrial development shall have an area less than that approved by the planning and zoning commission and determined to be adequate for the proposed development. (Code 1977, § 107-41(H); Ord. No. 2000-10, 9-25-2000)

Secs. 108-524—108-554. Reserved.

DIVISION 10. M-1A INDUSTRIAL DISTRICT

Subdivision I. In General

Sec. 108-555. Purpose and intent.

This district is intended to provide for certain types of business and industry, characterized by light manufacturing, warehousing and wholesale distribution which have little or no detrimental impact on neighboring properties or uses and which, with proper design, will not detract from the agricultural, residential or commercial desirability of adjacent properties or uses or from adjacent or nearby transportation corridors. It is intended that such districts be located with immediate access to or from major thoroughfares or other major modes of transportation, depending upon specific demands of the industry being served. Industrial parks are encouraged in this district to provide for industrial uses with common access and infrastructure, as well as the provisions of open space and adequate buffering to adjacent noncompatible uses.

(Code 1977, § 107-42(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-556. Permitted uses.

The following principal permitted uses and structures shall be permitted and the following regulations and the applicable regulations contained in other articles shall apply in the M-1A Industrial District. All principal permitted uses and conditional uses shall require site plan re-

view in accordance with article V of this chapter, site plan review, and section 108-718, landscaping requirements.

- (1) Agriculture use such as forestry, dairying, pasturage, crop growth, horticulture, and noncommercial grain dryers, but not including such uses as poultry houses and hog houses. No yard requirements shall apply for field, vegetable and nursery crops and grazing pastures.
- (2) Timber growing and harvesting. No lot requirements shall apply.
- (3) Public and private conservation areas including wildlife reservations, arboreta and demonstration forests. Minimum yard requirements shall apply for all buildings.
- (4) Drainage structures and similar works for flood prevention and erosion control. No yard requirements shall apply.
- (5) Planned industrial parks subject to the provisions of sections 108-586 through 108-588.
- (6) Professional offices, real estate offices, insurance offices or the like performing services primarily for the residents and visitors of the town.

(Code 1977, § 107-42(B); Ord. No. 2000-10, 9-25-2000; Ord. No. 2005-10, 8-22-2005)

Sec. 108-557. Conditional uses.

Conditional uses requiring board of appeals authorization in accordance with sections 108-160 through 108-166 and article V of this chapter, site plan review are as follows:

- (1) Commercial grain dryers, feed mills, grain, fertilizer, feed, seed, implement and other agricultural storage and repair and sales facilities. Facilities for the bulk handling of grain, fertilizer and other materials shall be located at least 200 feet from all perimeter property lines and public road rights-of-way.

- (2) Commercial repair of seafood harvesting and agriculture equipment (not including general highway vehicles). All work and storage areas shall be enclosed within a building or screened from public view.
- (3) Storage and processing facilities for seafood, including the sale of seafood processed on site.
- (4) Processing and storage of locally grown vegetables and field crops.
- (5) Livestock purchase and sales yards. All building and yards designed for the concentrated containment of animals shall be located at least 200 feet from any perimeter property line or public road right-of-way.
- (6) Aquaculture packing, canning and processing facilities. Minimum yard requirements shall apply for structures only.
- (7) Sawmills and the manufacturing or processing of wood products. No logs, lumber or by-products shall be stored in any required yard setback, and all power-driven machinery shall be located at least 200 feet from all perimeter property lines and public road rights-of-way.
- (8) Schools subject to all yard requirements in division 2 of article VI of this chapter.
- (9) Concrete and asphalt-mixing plants. No raw materials shall be stored in any required setback and all mixing and power driven machinery shall be located at least 200 feet from all perimeter property lines and public road rights-of-way.
- (10) Commercial riding and boarding stables for three or more animals. Stables shall be located at least 200 feet from any perimeter property line or public road right-of-way, and there shall be an area of one acre per animal stabled.
- (11) Garden centers and single-story garden-center structures offering nursery related products and services for sale. In addition to plants, other items which may be sold at a garden center include gardening equipment, garden tools, gardening supplies and related items necessary and appropriate to gardening activities. No other items may be sold or stored unless otherwise permitted.
- (12) Veterinary clinics and kennels for raising, breeding and boarding of household pets. All pens and runways shall be at least 200 feet from any perimeter property line or public road right-of-way.
- (13) Marine yards for the construction and major repair of watercraft, including marine railways, general marine activities and incidental retail sales of parts and accessories.
- (14) Structures and storage yards for contractors shops, equipment and material storage yards, such as electrician, carpenter, plumber, heating, sheet metal, sign painting, printing, upholstery, furniture painting or interior decorating, merchandise fabrication and repair. Such structures and storage yards shall be screened on all sides.
- (15) Public utility structures and properties other than essential services including cross country lines and mains of all kinds. The planning and zoning commission may require screening, buffering or landscaping where deemed necessary to protect adjoining properties.
- (16) Storage yards and buildings for storage of watercraft and recreational vehicles.
- (17) Telecommunications, television and radio broadcasting facilities, which consist of antennas, including but not limited to panels, dishes and omnidirectional, mounting hardware and all related equipment necessary to operate various tele-

communications systems, including personal communications services (PCS) and cellular transmitting and receiving sites as well as monopoles, freestanding towers, guyed towers and other support and elevational assisting devices, subject to section 108-241.

(18) A crematorium as defined in section 108-5.

(19) Any other use which is determined by the board of appeals to be of the same general character as those specified, but not including any first permitted use found in other districts.

(Code 1977, § 107-42(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2022-01, 3-14-2022)

Sec. 108-558. Accessory uses.

The following accessory uses are permitted in the M-1A Industrial District:

- (1) Noncommercial private parking garages and areas, other customary outbuildings and structures as regulated in the M-1A District, except as herein modified.
- (2) Buildings for farm animals, provided that they are located 200 feet from any perimeter property line or public road right-of-way.
- (3) Roadside stands offering for sale fresh agricultural products and fresh seafood, operated by the property owner or tenant of the premises upon which such stand is located. Such stands shall be located so as not to create a traffic hazard. Such stands shall be closed as appropriate at the end of the fresh product season. Signs shall be subject to article X of this chapter.
- (4) Other uses and structures customarily accessory and incidental to a permitted principal or conditional use, except of the type which is permitted only by au-

thorization of the board of appeals in accordance with sections 108-160 through 108-166.

(Code 1977, § 107-42(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-559. Prohibited uses.

The following uses are prohibited in the M-1A Industrial District:

- (1) Any use in conflict with any law or ordinance of the town or the state regulating nuisances.
- (2) Any dwelling, recreational vehicle, hospital, church, clinic or other institution for human care; provided, however, that any watchman's or caretaker's dwelling which is accessory to a permitted principal use shall be a permitted use, and provided further that any such dwelling, hospital, church, clinic or other institution for human care legally existing in the M-1A District at the time of adoption of this chapter or any amendment thereto shall not be subject to any of the limitations or other regulations prescribed for nonconforming uses elsewhere in this chapter.
- (3) Any other use not herein mentioned as a permitted or prohibited use in any other district unless authorized by the board of appeals.

(Code 1977, § 107-42(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-560. Height regulations.

No structure within 200 feet of an R District or any county district shall exceed three stories or 50 feet in height, except as provided in section 108-241 and by special exception by the board of appeals.

(Code 1977, § 107-42(E)(1); Ord. No. 2000-10, 9-25-2000)

Sec. 108-561. Yard requirements.

The following requirements shall be observed, subject to the modified requirements contained in article IV of this chapter:

<i>Use</i>	<i>Front Yard Depth¹ (feet)</i>	<i>Each Side Yard¹ (feet)</i>	<i>Rear Yard Depth¹ (feet)</i>
All buildings	50	25, except adjoining an R District or any county district, in which case not less than 50	50, except adjoining an R District or any county district, in which case not less than 100

Notes:

1. Or greater, as may be specified elsewhere in this chapter.

(Code 1977, § 107-42(E)(2); Ord. No. 2000-10, 9-25-2000)

Secs. 108-562—108-585. Reserved.*Subdivision II. Planned Industrial Parks (PIP)***Sec. 108-586. Permitted uses.**

The following uses shall be permitted and the following guidelines and design criteria as well as other applicable regulations contained in other articles shall apply in planned industrial parks permitted in the M-1A Industrial District. All principal permitted uses and conditional uses shall require site plan review in accordance with article V of this chapter, site plan review. Principal permitted uses are as follows:

- (1) The manufacturing, assembling, compounding, processing, packaging or treatment of cosmetics, pharmaceuticals, music instruments, novelties, electrical

appliances, computers or devices, optical or dental goods, printed matter and similar products.

- (2) The manufacturing and repair of electrical signs, advertising structures and light sheet metal products, such as heating and ventilating equipment.
- (3) Wholesale or service establishments.
- (4) Contractor shops, equipment and material storage yards, such as electrical, carpenter, plumbing, roofing, heating, sign painting, printing, upholstery, furniture or interior decorating, merchandise fabrication and repair.
- (5) Public utility structures and other essential services.
- (6) Publicly owned facilities, such as administration buildings or firehouses which serve the needs of the community.
- (7) Agricultural uses, such as forestry, dairying, pasturage, crop growth, horticulture, floriculture and stables when located not less than 200 feet from any residential lot line, grazing pastures, nursery crops, noncommercial maintenance buildings, but not including such uses as poultry houses or hog houses.
- (8) Food service facilities, which primarily serve the needs of the occupants of the industrial park and/or their employees, guests and invitees and not the general public. The use shall not occur in a building wherein the facility would be the sole or primary use. The food service facility shall exclude retail sales of grocery items or alcoholic beverages and shall be conducted wholly within a completely enclosed building.
- (9) Day nursery or preschool care. The use shall be primarily to serve the needs of the employees of the industrial park and shall be located accordingly.
 - a. Building orientation and access to the site shall be directed to interior local industrial streets.

- b. Site plan design shall minimize vehicular conflicts with nursery/pre-school patrons.

(Code 1977, § 107-43(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-587. Design criteria.

In addition to the standards and provisions contained elsewhere in this chapter, the following shall be applicable to all planned industrial parks and to structures and uses contained therein:

- (1) A PIP shall occupy a minimum of 100 acres.
- (2) A PIP shall have a minimum of 25 percent open space exclusive of the highway open space buffer and individual lot coverage by structures shall not exceed 50 percent of the gross lot area.
- (3) A PIP shall be developed under an approved overall site development comprehensive plan for the entire area and other required comprehensive plans. The following submittal requirements shall be met:
 - a. Site development plan.
 - b. Vehicular and pedestrian circulation plan.
 - c. Phasing plan.
 - d. Open space plan.
 - e. Parking plan.
 - f. Stormwater drainage plan.
 - g. Infrastructure plan.
 - h. Landscaping and forest conservation plan.
 - i. Wetlands alteration, restriction and mitigation plan.
- (4) An open space buffer of 75 feet shall be provided within the industrial park where adjacent to properties not within the planned industrial park and a buffer of 150 feet along exterior roadways shall be provided within the industrial park. Such open space shall be landscaped in accordance with the provisions of section 108-718. A service road may be located within the buffer area. This buffer shall consist of a mix of trees and shrubs containing not less than 75 percent native species and planted at such a density as to upon maturity effectively screen adjacent properties and roadways.
- (5) Roads within the industrial park shall be designed and constructed to town standards and shall be of such design to accommodate the proposed and future industrial traffic.
- (6) Buildings within the industrial park shall be set back from all adjacent roadways so as to permit adequate sight distance and aesthetic appeal.
- (7) Any portion of a structure, which faces a public road, approved private road or interparcel connector shall provide a front facade along that side of the structure.
- (8) Individual structures and uses shall comply with the provisions cited in section 107-42F.
- (9) Parking shall be located in side and rear yards and shall be prohibited in the front yard.
- (10) Parking lots shall be covered with an all-weather surface as approved by the planning and zoning commission.
- (11) All loading facilities shall be located in the rear or side yard and suitably screened or buffered from the adjacent lot.
- (12) All individual buildings or structures shall be landscaped in accordance to section 108-718.

- (13) Access points shall be designated so as not to impede traffic flow. The planning and zoning commission and other state agencies may require acceleration and deceleration lanes and service roads or other traffic control measures where deemed necessary to ensure safe ingress and egress.
- (14) All mechanical structures, storage areas, refuse areas and appurtenances shall be screened as approved by the planning and zoning commission.
- (15) In the event that the development is to be subdivided, no building permit shall be issued until such time as the improvements are completed or that a bond has been posted in the amount of 150 percent of the cost for all proposed improvements.
- (16) Each phase within a phased PIP development shall meet all code requirements, other than the 100-acre requirement.
- (17) During site plan review, the planning and zoning commission may establish such additional conditions or require modifications to the proposed project as it deems necessary to implement the full intent of this chapter and to prevent the project from adversely impacting neighboring properties and property value.

(Code 1977, § 107-43(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-588. Guidelines.

In addition to the standards and provisions contained elsewhere in this chapter, the following standards and guidelines shall be used in the review of the site and building plans. These guidelines are meant to encourage creativity, innovation and aesthetically desirable developments. They apply to all principal buildings, uses, structures, signs and other site features.

- (1) Require the best possible means available for the disposal of refuse matter or

water-carried waste, the abatement of obnoxious or offensive odor, dust, smoke, gas, noise, vibration, radiation or similar nuisance and protection against fire and explosives shall be employed.

- (2) Require architectural excellence and creative design through aesthetically oriented development standards and deed restrictions to create a definitive character for the industrial park as a whole while allowing individuality.
- (3) Protect adjacent properties through strict development standards while encouraging innovative site planning.
- (4) Promote development in which the exterior architectural design and the arrangement of features and color schemes blends with the existing structures and natural environment. Materials such as reflective metal or glass, plastics and other manmade materials other than those that emulate natural materials should be avoided. Exterior wall and trim colors should blend with the natural environment. All structures and uses should be compatible with the surrounding environment and all designs should blend aesthetically with existing structures and natural conditions.

(Code 1977, § 107-43(C); Ord. No. 2000-10, 9-25-2000)

Secs. 108-589—108-609. Reserved.

DIVISION 11. H-1 HISTORIC DISTRICT

Sec. 108-610. Regulations.

The regulation of property in the H-1 Historic District shall be governed by the provisions of chapter 104, historic preservation, and the following regulations shall apply in the H-1 Historic District:

- (1) The historic district shall be an overlay zone. The requirements of the underlying zoning shall apply in all cases.

- (2) Every property owner shall maintain their store front windows in a neat and clean condition, as may be determined by the planning director free from debris, junk, trash, litter and other offensive items.
 - (3) Every property owner of a store front shall maintain the sidewalk free from all debris and in a safe condition.
 - (4) The creation of a flag lots or panhandle lots shall be prohibited in any residentially zoned area in the historic district.
- (Code 1977, § 107-44; Ord. No. 2005-5, 7-25-2005)

Secs. 108-611—108-638. Reserved.

DIVISION 12. PLANNED UNIT DEVELOPMENT (PUD)

Sec. 108-639. General requirements.

Planned unit developments which provide for compatible mixed uses may be allowed by the planning and zoning commission in any district. No such development permit shall be granted unless such development will meet the use limitations of the zoning district in which it is located and meet the density and other limitations of such districts, except as such requirements may be lawfully modified as provided by this division. Compliance with the regulations of this section do not excuse compliance with the applicable requirements of chapter 106, subdivision of land, except as are specifically authorized upon the approval of the application for the planned unit development.

(Code 1977, § 107-52(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-640. Area.

No planned unit development shall have an area less than that approved by the planning and zoning commission as adequate for the proposed development.

(Code 1977, § 107-52(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-641. Uses.

A planned unit development which will contain uses not permitted in the zoning district in which it is to be located shall be accompanied by an application for a zoning amendment, except that any residential use shall be considered a permitted use in a planned unit development which allows residential uses and shall be governed by density, design and other requirements of the planned unit development permit.

(Code 1977, § 107-52(C); Ord. No. 2000-10, 9-25-2000)

Sec. 108-642. Ownership.

The entire development area shall be in single or corporate ownership at the time of application, or the application shall be filed jointly by all owners of the property.

(Code 1977, § 107-52(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-643. Design.

The planning and zoning commission shall require such arrangements of structures and open spaces within the site development plan as necessary to ensure compatibility within the development and that adjacent properties will not be adversely affected.

- (1) Density of land use intensity shall in no case be more than 25 percent higher than that allowed in the zoning district.
- (2) Where feasible, the least height and density of buildings and uses shall be arranged around the boundaries of the development.
- (3) A concept plan is required to articulate land use, traffic flow both pedestrian and vehicular, open space, drainage patterns, buffers and landscaping prior to or concurrently with the review of the detailed site plan and supporting details.

- (4) Specific lot area, width, yard, height, density, setbacks and coverage regulations shall be determined upon approval of the site development plan.

(Code 1977, § 107-52(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-644. Open space.

Open space and common areas shall be provided and shall comply with sections 108-716 and 108-717.

(Code 1977, § 107-52(F); Ord. No. 2000-10, 9-25-2000)

Sec. 108-645. Landscaping, fencing and screening.

Landscaping, fencing and screening related to the uses within the site and as a means of integrating the proposed development into its surroundings shall be planned and presented to the planning and zoning commission for approval, together with required plans for the development. A planting plan showing proposed tree and shrubbery plantings shall be prepared for the entire site to be developed, pursuant to section 108-718. A grading and drainage plan shall also be submitted to the planning and zoning commission with the application.

(Code 1977, § 107-52(G); Ord. No. 2000-10, 9-25-2000)

Sec. 108-646. Signs.

Signs shall be regulated pursuant to article X of this chapter.

(Code 1977, § 107-52(H); Ord. No. 2000-10, 9-25-2000)

Sec. 108-647. Site plan review requirements.

All planned unit developments shall comply with site plan review requirements.

(Code 1977, § 107-52(I); Ord. No. 2000-10, 9-25-2000)

Secs. 108-648—108-667. Reserved.

ARTICLE VII. NONCONFORMANCES

Sec. 108-668. Conformance required.

Except as hereinafter specified, no land, building, structure or premises shall hereinafter be used, and no building or part thereof or other structure shall be located, erected, reconstructed, extended, enlarged, converted or altered, except in conformity with the regulations herein specified for the district in which it is located.

(Code 1977, § 107-11; Ord. No. 2000-10, 9-25-2000)

Sec. 108-669. Continuation of existing uses.

Except as provided in section 108-670, any lawful use, building or structure existing at the time of the enactment of this chapter, including a seasonal use, may be continued, even though such use, building or structure may not conform with the provisions of this chapter for the district in which it is located.

(Code 1977, § 107-12; Ord. No. 2000-10, 9-25-2000)

Sec. 108-670. Nonconforming uses.

No existing building or premises devoted to a use not permitted by this chapter in the district in which such building or premises is located, shall be enlarged, extended, substituted or structurally altered unless the use thereof is changed to a use permitted in the district in which such building or premises is located, except as follows:

(1) *Substitution.*

- a. If no structural alterations are made, a nonconforming use of a building may be changed to another nonconforming use of the same or of a more restricted classification.
- b. Whenever a nonconforming use has been changed to a more restricted use or to a conforming use, such use shall not thereafter be changed back to a less restricted use.

- c. When authorized by the board of appeals according to the provisions of section 108-164, a nonconforming use of land may be changed to another nonconforming use, or a nonconforming use of a building may be changed to one of a less restricted classification.

(2) *Discontinuance.*

- a. No building, structure or premises where a nonconforming use has ceased for one year or more or where the nonconforming use has ceased and changed ownership shall again be utilized as a nonconforming use.
- b. All nonconforming uses of land not involving any building or structure having an assessed value for tax purposes of more than \$2,000.00 at the time of becoming nonconforming, must comply within one year of becoming nonconforming.

(3) *Extensions.*

- a. A building devoted to a nonconforming use may be completed or extended, and other buildings may be erected in addition thereto, for uses necessary and incidental to the continuation of the existing use, provided that such additions and extensions are located on the same premises or on adjoining premises on the date such building became nonconforming, and provided that the floor areas of such additions and extensions shall not exceed, in aggregate, 35 percent of floor area of the existing building devoted to a nonconforming use. Any other extension of a nonconforming building or use of land shall be subject to the board of appeals approval as provided in section 108-164. The

extension or completion of a building or the construction of additional buildings as herein provided shall not be deemed to extend or otherwise affect the date when such nonconforming use or building must be changed or removed, if subject to any of the provisions of subsection (2) of this section.

- b. A nonconforming use may be extended throughout those parts of a building which were manifestly designed or arranged for such use prior to the effective date of the ordinance from which this chapter is derived, or any amendments to this chapter, provided that no structural alterations are made except as required by law.
- c. Any dwelling lawfully existing at the time of enactment of this chapter, not located on a lot having frontage on a street as required herein, may be continued and may be enlarged, without increasing the number of dwelling units therein, provided that no such addition shall extend closer to the street than the setback line for the existing building.

- (4) *Replacing damaged buildings.* Any nonconforming building or structure, or group of related buildings comprising one enterprise or establishment and under one ownership, which may become damaged more than 60 percent of its then-fair-market value, exclusive of the foundation, by accidental fire, flood, explosion, war, riot or act of God, shall not be restored or reconstructed and used as before such happenings, but if less than 60 percent damaged, it may be restored or reconstructed and used as before, provided that this is done within one year.

(Code 1977, § 107-13; Ord. No. 2000-10, 9-25-2000)

Sec. 108-671. Unsafe buildings.

Nothing in this article shall prevent the strengthening or restoring to a safe condition any part of any building or structure declared unsafe by proper authority.

(Code 1977, § 107-14; Ord. No. 2000-10, 9-25-2000)

Secs. 108-672—108-700. Reserved.**ARTICLE VIII. SUPPLEMENTARY
DISTRICT REGULATIONS****Sec. 108-701. Lot requirements.**

Except as otherwise provided by this chapter:

- (1) Every building or group of related buildings shall be located on a lot, as herein defined, having at least the area, width, lot area per family and yards herein prescribed for the district in which such building is located.
- (2) No lot shall be used for dwelling purposes which does not abut for at least 40 feet on a street, as herein defined, except as provided in section 108-240.
- (3) Not more than one dwelling structure shall be located on a lot as herein defined, except as provided for in divisions 4 and 5 of article VI of this chapter.

(Code 1977, § 107-16; Ord. No. 2000-10, 9-25-2000)

Sec. 108-702. Accessory buildings in residence districts.

(a) No accessory building shall be located in any required court or in any yard other than a rear yard except as provided hereinafter. Accessory buildings shall be distant at least six feet from alley lines and from any other building on the same lot and at least six feet from lot lines of adjoining lots, which are in any R District.

(b) Accessory buildings, except stables, may be erected as a part of the principal building or, if at least six feet therefrom, may be connected thereto by a breezeway or similar structure, provided that all yard requirements for a principal building are complied with.

(c) In any R District, where a corner lot adjoins in the rear a lot fronting on the side street and located in an R District, no part of any accessory building on such corner lot shall be nearer the side street lot line than the least depth of the front yard required along such side street for a dwelling on such adjoining lot; and in no case shall any part of such accessory building be nearer to the common lot line than the least width of a side yard required for the principal building.

(Code 1977, § 107-17; Ord. No. 2000-10, 9-25-2000)

Sec. 108-703. Reduction of required yard.

No lot shall be reduced in area so as to make any yard or any other open space less than the minimum required by this chapter, and if already less than the minimum required, said yard or open space shall not be further reduced. No part of a yard or other open space provided about any building or structure for the purpose of complying with the provisions of this article shall be considered as part of a yard or other open space required under this article for any other building or structure.

(Code 1977, § 107-18; Ord. No. 2000-10, 9-25-2000)

Sec. 108-704. Off-street parking and loading.

In every district, spaces for off-street parking and for loading or unloading of vehicles shall be provided in accordance with the requirements in divisions 2 and 3 of article IX of this chapter. Off-street parking and loading areas may oc-

copy all or part of any required yard or open space except as specified in sections 108-767 and 108-788.

(Code 1977, § 107-19; Ord. No. 2000-10, 9-25-2000)

Sec. 108-705. Transitional uses.

In any R-1 or R-2 District, a transitional use shall be permitted on a lot, which adjoins either directly or across an alley, a B or M District. The permitted transitional uses for any such lot shall be of any use permitted in the R-3 District. In such case, the requirements governing lot area per family, off street parking, yards and other open spaces shall be the same as in an R-3 District. Any transitional use shall not extend more than 75 feet from the district boundary line.

(Code 1977, § 107-20; Ord. No. 2000-10, 9-25-2000)

Sec. 108-706. Measurement of front yard depth.

Each front yard depth or setback specified herein shall be measured at right angles (or radial) from the nearest street right-of-way line, except that where the right-of-way of any existing street is less than 40 feet wide in the case of a minor street, or less than 60 feet wide in the case of a major street, the front yard or setback shall be measured from a line 25 feet or 30 feet, as the case may be, from the center line of the street. The foregoing rules shall apply also to the measurement of a side yard on the street side of a corner lot.

(Code 1977, § 107-21; Ord. No. 2000-10, 9-25-2000)

Sec. 108-707. Court requirements.

Where a court is provided in any building other than a single-family dwelling, for the purpose of furnishing light and air to rooms in which persons are to live, sleep or work, except storage rooms, such court shall comply with the

regulations as specified in the building code, in effect in the town, and all amendments, as may be adopted by the Mayor and Council.

(Code 1977, § 107-22; Ord. No. 2000-10, 9-25-2000)

Sec. 108-708. Yard requirements along zoning boundary lines.

Along any zoning line, on a lot adjoining such boundary line in the less restricted district, any abutting front yard, side yard, rear yard or court, unless subject to greater restrictions or requirements stipulated by other provisions of this chapter, shall have a minimum width or depth equal to the average of the required minimum widths or depths for such yards or courts in the two districts on either side of such zoning boundary line. In case the height of a proposed structure on such lot in the less restricted district is greater than the maximum height permitted in the adjoining more restricted district, the minimum width or depth of the yard or court for such structure shall be determined by increasing the minimum width or depth required for the highest structure permitted in such more restricted district by one foot for each two feet by which the proposed structure exceeds the maximum height permitted in said more restricted district.

(Code 1977, § 107-23; Ord. No. 2000-10, 9-25-2000)

Sec. 108-709. Traffic visibility across corner lots.

In any district on any corner lot, no fence, structure or planting that would interfere with traffic visibility, as determined by the planning director, across the corner shall be erected or maintained within 25 feet of the intersection of the street lines.

(Code 1977, § 107-24; Ord. No. 2000-10, 9-25-2000)

Sec. 108-710. Conversion of dwellings.

The conversion of a building into a dwelling or the conversion of a dwelling so as to accommo-

date an increased number of dwelling units or families shall be permitted only within a district in which a new building for similar occupancy would be permitted under this article and only when the resulting occupancy will comply with the requirements governing new construction in such district.

(Code 1977, § 107-25; Ord. No. 2000-10, 9-25-2000)

Sec. 108-711. Essential services exempted.

Essential services, as defined in section 108-5, shall be permitted in any district, as authorized and regulated by law and ordinances, it being the intention hereof to exempt such essential services from the application of this chapter.

(Code 1977, § 107-26; Ord. No. 2000-10, 9-25-2000)

Sec. 108-712. Distance requirement.

All uses, buildings or premises for which compliance with the distance requirement in this article is stipulated elsewhere in this chapter shall be at least 200 feet from any lot in any R District.

(Code 1977, § 107-27; Ord. No. 2000-10, 9-25-2000)

Sec. 108-713. Temporary buildings.

Temporary buildings and structures, including recreational vehicles, for uses incidental to construction work on the premises shall be permitted in any district where such construction is being done by a responsible contractor or builder under a contract having a definite completion date and on condition that such temporary buildings and structures shall be removed upon the completion or discontinuance of construction.

(Code 1977, § 107-28; Ord. No. 2000-10, 9-25-2000)

Sec. 108-714. House moving requirements.

(a) The moving of all buildings, structures and dwellings from one location to another within the town, or the moving of buildings from out-

side the town to a location within the town or from within the town to a location outside the town, is permitted only as a special exception to this chapter, as herein provided in division 5, article II of this chapter, and shall require site plan review in accordance with article V of this chapter.

(b) Notice of special house moving exceptions shall comply as provided in division 5, article II of this chapter, section 108-191. In addition, all adjacent property owners shall be notified by regular mail.

(Code 1977, § 107-29; Ord. No. 2000-10, 9-25-2000; Ord. No. 2005-1, 3-28-2005)

Sec. 108-715. Townhouse and multifamily developments.

Townhouse and multifamily developments shall comply with the following requirements, in addition to the other applicable provisions of this chapter:

- (1) Townhouse buildings.
 - a. Townhouse buildings shall consist of a group of not less than three and not more than six townhouse dwellings attached to each other by party walls. No more than two adjacent townhouse dwellings in any townhouse building shall have the same back and front setback line. The minimum variation of front and back setback lines shall be four feet.
 - b. The minimum building width shall be 18 feet for each dwelling.
 - c. Minimum horizontal distances.
 1. The minimum horizontal distance between facing walls of any two buildings on one lot or any one building with facing walls shall be as follows:
 - (i) Where two facing walls both contain a window or windows, not less than 35 feet.

- (ii) Between two facing walls only one of which contains a window or windows, not less than 30 feet.
- (iii) Between two facing walls neither of which contains a window or windows, not less than 25 feet.

2. Facing walls are walls opposite to and parallel with one another and/or any opposite walls whose lines, if extended, would intersect at angles of less than 65°.

- d. Maximum height shall not exceed two stories or 30 feet, except that the basement floor of any dwelling may open to grade at the rear only.

(2) Multifamily buildings.

- a. Multifamily buildings shall consist of a group of not more than 12 dwelling units unless the planning commission finds that an improved development plan can be achieved and that public necessity, convenience, general welfare and good zoning practice will be better served, in which case, the planning commission may allow a multifamily building to consist of up to, but not to exceed, 36 units as determined on a case by case basis.
- b. No building shall have any wall greater than 100 feet in horizontal length and shall be separated by at least 25 feet from other buildings on the lot.
- c. The provisions of subsection (1)c of this section, relating to minimum horizontal distances between facing walls, shall also apply to multifamily developments.

- (3) All townhouse and multifamily developments shall provide sidewalks, curbs, and gutters in accordance with the specifications.

(Code 1977, § 107-30; Ord. No. 2000-10, 9-25-2000; Ord. No. 2015-06, 11-9-2015)

Sec. 108-716. Open space areas and landscaping.

All nonresidential uses, townhouse and multifamily developments and single-family subdivisions involving three or more dwelling units or lots shall provide open space (see definition of "open space" in section 108-5) in accordance with the following table:

<i>Zoning District Minimum Percentage of Lot Area Required in Open Space</i>	
R-1	40%
R-2	35%
R-3	30%
R-4	30%
B-1	10%
B-2	15%
B-3	15%
M-1	25%
M-1A	25%

(Code 1977, § 107-31; Ord. No. 2000-10, 9-25-2000)

Sec. 108-717. Common areas in multifamily-unit developments.

In multifamily-unit developments, at least 500 square feet per unit, with a minimum of 5,000 square feet, of the open space per project shall be devoted to usable common area open space. Common area open space may include such areas as playgrounds and landscaped or seating areas. Common open space areas shall be improved by grading, seeding, landscaping and the installation of benches, playground equipment, landscape features or the like as shown on the approved site plan. Such improvements

shall be provided and maintained at the sole expense of the developer, subdivision owner or bona fide community association.

(Code 1977, § 107-32; Ord. No. 2000-10, 9-25-2000)

Sec. 108-718. Landscaping requirements.

(a) *Purpose.* The purpose of this section is to enhance, maintain, preserve and improve the appearance of the open space, vehicular use areas and property abutting public rights-of-way; to require buffering between noncompliant land uses; to protect, preserve and promote the

aesthetic appeal, scenic beauty, character and value of the town, and to promote public health and safety through the reduction of noise pollution, stormwater runoff, air pollution, visual pollution, and artificial light glare.

(b) *Landscaping plan.* A landscaping plan shall be submitted for all nonresidential uses, townhouse and multifamily developments and single-family subdivisions with three or more dwelling units for review and approval prior to final plat or site plan approval.

(c) *Landscaping criteria.* Landscape plans shall be in accordance with landscape criteria adopted by the planning and zoning commission.

(d) *Landscaping to be installed.* Landscaping must be installed and maintained in accordance with the approved landscape plan.

(e) *Installation of landscaping; bond.* Installation of landscaping shall be complete or bonded in the same manner in which other site improvements are required to be installed or bonded prior to the approval of the subdivision plat or issuance of a zoning certificate or other approval.

(f) *Maintenance bond.* The planning and zoning commission shall require a maintenance and replacement bond for required landscaping for a period not to exceed two years and in an amount not to exceed 100 percent of the installation cost.

(Code 1977, § 107-33; Ord. No. 2000-10, 9-25-2000)

Secs. 108-719—108-749. Reserved.

ARTICLE IX. SPECIAL PROVISIONS

DIVISION 1. GENERALLY

Secs. 108-750—108-766. Reserved.

DIVISION 2. OFF-STREET LOADING

Sec. 108-767. Requirements.

(a) In any district, in connection with every building or part thereof hereafter erected, improved, altered or extended, having a gross floor area of 10,000 square feet or more and which is to be occupied by manufacturing storage, warehouse, goods display, retail store, wholesale store, market, hotel, hospital, mortuary, laundry, dry-cleaning or other use similarly requiring the receipt or dispatch by vehicles of materials or merchandise, there shall be provided and maintained on the same lot with such building at least one off-street loading space, plus one additional such loading space for each 20,000 square feet of gross floor area so used in excess of the first 30,000 square feet.

(b) Each loading space shall be not less than ten feet in width, 45 feet in length and 14 feet in clear height.

(c) Such space may occupy all or any part of any required yard or court space, except a front yard or the required side yard on the street side of a corner lot.

(d) No such space shall be located closer than 50 feet to any lot located in any R District, unless the loading space is wholly within a completely enclosed building or unless enclosed on all sides by a wall or uniformly painted board fence not less than six feet in height.

(Code 1977, § 107-45; Ord. No. 2000-10, 9-25-2000)

Secs. 108-768—108-787. Reserved.

DIVISION 3. OFF-STREET PARKING

Sec. 108-788. Requirements.

(a) In all districts, unless otherwise specified, subject to the provisions hereof, every industrial, commercial, business, trade, institution, recreational dwelling and other use, space for parking and storage of vehicles off the streets shall

be provided to accommodate its normal parking requirements, as determined by the planning director at the time of application for a zoning certificate, but in no case not less than the following:

- (1) Automobile sales and service garages: 50 percent of floor area.
 - (2) Banks, business offices and professional offices: 50 percent of floor area.
 - (3) Doctor's offices: 50 percent of floor area.
 - (4) Bowling alleys: five spaces for each alley.
 - (5) Churches and schools: one space for each four seats in a principal auditorium or one for each ten classroom seats, whichever is greater.
 - (6) Dance halls, assembly halls: 200 percent of floor area used for dancing or assembly.
 - (7) Dwellings.
 - a. Two spaces for each dwelling unit.
 - b. Limited dwellings: one space per unit.
 - (8) Furniture and appliance stores, household equipment or furniture repair shops with over 1,000 square feet of floor area: 100 percent of floor area.
 - (9) Funeral homes and mortuaries: four spaces for each parlor or one space for each 50 square feet of floor area, whichever is greater.
 - (10) Hospitals: one space for every two beds.
 - (11) Hotels, motels and lodgishouses: one space for each bedroom or unit, plus one additional space for each employee.
 - (12) Manufacturing plants: one space for each two employees on the maximum working shift or 25 percent of floor area, whichever is the greater.
 - (13) Restaurants, beer parlors and night-clubs: 200 percent of floor area.
 - (14) Retail stores, supermarkets, etc., under 2,000 square feet of floor area: 200 percent of floor area.
 - (15) Retail stores, shops, etc., over 2,000 square feet of floor area: 100 percent of floor area.
 - (16) Sports arenas and auditoriums other than in schools: one space for each three seats.
 - (17) Theaters and assembly halls with fixed seats: one space for each three seats.
 - (18) Commercial or club swimming pools: one space for each three members or each three persons of estimated maximum capacity.
 - (19) Wholesale establishments or warehouse: one space for each two employees or ten percent of floor area, whichever is greater.
- (b) In the case of any building, structure or premises the use of which is not specifically mentioned herein, the provisions for a use which is so mentioned and to which said use is most nearly similar shall apply.
- (c) Except in the case of dwellings, no parking area provided hereunder shall be less than 1,000 square feet in area exclusive of necessary driveways, aisles or entrances. Each parking space shall be at least nine feet wide and 20 feet deep.
- (d) Every parcel of land hereinafter used as a public or private parking area, including a commercial parking lot, shall be improved and maintained in accordance with the following requirements:
- (1) Whenever possible, parking areas should be located to the rear of the building. Every off-street parking area for more than five vehicles shall be located at least 20 feet from any street line and

from every residential lot line. The edges of the parking area shall be curbed or buffered, and the space between the parking area and the street or the lot line shall be landscaped and maintained in a sightly condition. Where adjoining a street, such landscaping shall consist of grass and low shrubs or ornamental trees. Where adjoining a residential lot, it shall include a hedge of sufficient type and height, not less than 30 inches, to protect and screen the adjoining property.

- (2) For parking areas of three or more vehicles, the area not landscaped and so maintained, including driveways, shall be graded, surfaced with asphalt, concrete or other similar material and drained to the satisfaction of the planning director to the extent necessary to prevent dust, erosion excessive water flow across streets or adjoining property. Failure to keep parking areas in satisfactory condition, i.e., free from all holes, shall be considered a violation of this chapter. All off-street parking spaces shall be marked as to indicate their location. Parking areas shall be arranged and marked to provide safe and orderly circulation.
- (3) Any lighting used to illuminate any off-street parking area, including any commercial parking lot, shall be so arranged as to direct the light away from adjoining residential premises and from public streets. All lighting, except for security lights, shall be turned off after normal business hours.
- (4) The board of appeals may authorize, subject to the provisions of sections 108-160 through 108-165, a modification, reduction or waiver of the foregoing requirements if it should find that in the particular case appealed the peculiar nature of the residential, business, trade industrial or other use, or the exceptional shape or

size of the property or other exception situation or condition, would justify such modification, reduction or waiver.

- (5) Joint use. Two or more uses may provide for their respective required parking in a common parking lot. The board of appeals may reduce the total number of spaces that this chapter would require the uses to have if it can be demonstrated to the board of appeals, as either a variance or a conditional use, that the hours and/or days of peak parking need for the uses will justify a reduction in the number of off-street parking spaces in the common parking lot.
- (6) Mixed uses. Where a permitted use contains or includes more than one of the types of uses identified in subsection (a) of this section, the number of parking spaces required shall be the sum of the computed requirements for the separate types of uses.
- (7) Location of parking spaces. A principal use's required off-street parking spaces shall be on the same lot or premises as the principal use unless this requirement cannot be met, in which case the required off-street parking shall be located within 300 feet of the principal use. This distance shall be measured from the two lot lines, (one from the principal use's lot and one from the lot on which the off-street parking area is located) that are closest to each other.
- (8) Fractional spaces. Where the computation of required parking spaces results in a fractional number, only the fraction of one-half or more shall be counted as one.

(Code 1977, § 107-46(A)—(D); Ord. No. 2000-10, 9-25-2000; Ord. No. 2004-6, 6-14-2004)

Sec. 108-789. B-1 District parking requirements.

In the event of new construction or reconstruction on any parcel in the B-1 District, the owner

shall be required to provide parking in accordance with section 108-788 and this section for any new construction, or in the case of reconstruction involving any exterior wall to any building fronting Main Street. In the event sufficient area is not available to provide such parking then the owner shall pay a fee per required space to the Mayor and Council in an amount as from time to time established by resolution of the Mayor and Council, which said fee shall be paid into a separate parking fund, to be utilized by the Mayor and Council for providing and maintaining parking adjacent to or within the B-1 District.

(Code 1977, § 107-46(E); Ord. No. 2000-10, 9-25-2000)

Secs. 108-790—108-816. Reserved.

DIVISION 4. FILLING STATIONS, PUBLIC GARAGES AND PARKING LOTS

Sec. 108-817. Regulations.

(a) No gasoline filling station, public garage or automobile repair shop shall have an entrance or exit for vehicles within 200 feet along the same side of a street of the premises of any school, public playground, church, hospital, public library or institution for dependents or children, except where such property is in another block or on another street which the lot in question does not abut; but in no case shall any such gasoline filling station, garage or shop be located within 100 feet of any of said public, semipublic or institutional buildings or properties. This regulation shall not be interpreted, however, as prohibiting a parking area accessory to and on the premises of the institution itself.

(b) No gasoline filling station or public garage shall be permitted where any oil draining pit or visible appliance for any such purpose, other than filling caps, is located within 12 feet of

any street lot line or within 25 feet of any R District, except where such appliance or pit is within a building.

(c) On all corner lots, all vehicular entrances to or exits from any gasoline filling station, or commercial, customer or employee parking lot for more than five motor vehicles, or public garage or automobile repair shop, shall be not less than 25 feet from the corner property lines extended. No such vehicular entrance or exit, whether on a corner lot or not, shall exceed 40 feet in width at the curblin or 30 feet at the property line.

(Code 1977, § 107-47; Ord. No. 2000-10, 9-25-2000)

Secs. 108-818—108-842. Reserved.

DIVISION 5. LODGING FACILITIES

Sec. 108-843. Motels and hotels.

Every motel shall comply with all sanitary and other requirements prescribed by law or regulation, and in addition:

- (1) All buildings shall be distant not less than ten feet from every property line.
- (2) The buildings shall not occupy in aggregate more than 25 percent of the gross lot area.
- (3) No vehicular entrance to or exit from any motel of more than ten units shall be within 200 feet along streets of a school, public playground, church, hospital, library or institution for dependents or for children, except where such building or property is in another block or fronts on a street on which such motel will have no entrance or exit.

(Code 1977, § 107-48; Ord. No. 2000-10, 9-25-2000)

Sec. 108-844. Recreational vehicles and recreational vehicle parks.

The parking of a recreational vehicle in any district shall be prohibited, except as provided in section 108-713 and except that one recreational vehicle may be parked or stored in an accessory building or in the rear yard of a principal use, provided that no living quarters shall be maintained or any business conducted in such recreational vehicle while it is parked or stored.

(Code 1977, § 107-49; Ord. No. 2000-10, 9-25-2000)

Secs. 108-845—108-866. Reserved.

DIVISION 6. HOME OCCUPATIONS

Sec. 108-867. Regulations.

(a) A home occupation shall not exceed 25 percent of the floor area of the primary structure and 50 percent of an accessory building on the premises.

(b) Other than those related by blood, marriage or adoption, no more than one person may be employed in the home occupation.

(c) Inventory and supplies shall not occupy more than 50 percent of the area permitted to be used as a home occupation.

(d) There shall be no exterior display or storage of goods, equipment or vehicles in conjunction with the business, on the premises, except the primary vehicle of the resident owner.

(e) There shall be no more than one advertising sign displayed on the premises which shall not exceed four square feet in area, the location of which shall be no closer to the street than the street right-of-way line, provided that it does not interfere with traffic visibility on a corner lot as provided in section 108-709.

(f) Home occupations involving auto repair or maintenance shall be prohibited.

(g) Home occupations involving beauty shops or barbershops shall require conditional use approval from the board of appeals.

(h) Sales and services shall be arranged by appointment and scheduled so that not more than one patron vehicle is on the premises at the same time.

(i) Two additional parking spaces shall be provided on the premises, except only one need be provided if the home occupation does not have an employee. Said parking requirements shall comply with sections 108-788 and 108-789.

(Code 1977, § 107-51; Ord. No. 2000-10, 9-25-2000)

Secs. 108-868—108-897. Reserved.

ARTICLE X. SIGNS

Sec. 108-898. Sign permit required; fee.

A sign shall not hereafter be erected, re-erected, constructed, altered or maintained, except as provided by this article, and after a permit has been issued by the appropriate official. A fee shall be charged for all signs requiring a permit adopted by resolution of the Mayor and Council, as may be amended from time to time. (Code 1977, § 107-50; Ord. No. 2000-10, 9-25-2000)

Sec. 108-899. Exempt signs.

The following signs shall be exempt from the provisions of this article:

- (1) Official notices authorized by a court, public body or public safety official, community sponsored events authorized by the legislative body.
- (2) Directional, warning or information signs authorized by federal, state or municipal governments.
- (3) Memorial plaques, building identification signs and building cornerstones when

cut or carved into a masonry surface or when made of noncombustible material and made an integral part of the building structure.

- (4) The flag of a government or a noncommercial institution, such as a school.
- (5) Religious symbols and seasonal decorations within the appropriate public holiday season.

(Code 1977, § 107-50(A); Ord. No. 2000-10, 9-25-2000)

Sec. 108-900. Signs in R Districts.

The following regulations apply to the R Districts:

- (1) Security signs shall not exceed two square feet.
- (2) An unlighted or indirectly lighted sign not larger than six square feet shall be permitted in connection with such home occupation.
- (3) Identification signs displaying only the name and nature of the premises or the occupancy thereof, or directing the way thereto, and not exceed four square feet.
- (4) Residential developments of four or more dwelling units shall be permitted one development sign (or for each entrance in the case of a subdivision project). Such signs shall be located 25 feet from a street line and shall not exceed 32 square feet in area per face.
- (5) Any conditional use, institutional use, or church shall be permitted one sign not to exceed 32 square feet, which may be indirectly lighted. The height of any free-standing sign for conditionally permitted uses, churches and schools shall not exceed 15 feet.

(Code 1977, § 107-50(B); Ord. No. 2000-10, 9-25-2000)

Sec. 108-901. Commercial districts.

The following regulations apply to commercial districts:

- (1) All development complexes shall require a master signage plan pursuant to the requirements of this section, and any other requirements within its district, prior to the installation of any signage.
- (2) Each, enterprise, institution or business shall be permitted wall signs, under-canopy signs, one sidewalk sign and one freestanding sign each, subject to follow maximum size requirements. (Multiple businesses in the same building shall apportion facade, building wall and street frontage such that any maximum is not exceeded for a particular property.)
 - a. Maximum signage in aggregate shall not exceed 1½ square feet for each horizontal linear foot of building. No one sign shall exceed the total square feet for each linear front foot for each business. However, no one sign shall exceed 200 square feet.
 - b. Maximum freestanding sign area shall not exceed one square foot for each five feet of street frontage, not to exceed 80 square feet in area.
 - c. Under-canopy sign area shall not exceed the following:
 - 1. The maximum allowable sign area shall be one square foot for each linear foot of width of the canopy, awning, marquee or similar structure from which the sign is suspended, as measured perpendicular to the building wall.
 - 2. The maximum allowable horizontal length of an under-canopy sign shall be equal to the

- width of the canopy, awning, marquee or similar structure from which the sign is suspended, as measured perpendicular to the building wall.
3. The minimum vertical clearance between the lower edge of an under-canopy sign and the ground shall be seven feet.
- d. Sidewalk sign. The director of planning and zoning shall issue a sidewalk sign permit if the following conditions are met:
1. The maximum allowable size shall not exceed two feet in width and three feet in height.
 2. There shall be no more than one sign permitted per business.
 3. The sign shall not expand more than two feet at the base.
 4. The sign is constructed of a wood base.

(Code 1977, § 107-50(C); Ord. No. 2000-10, 9-25-2000; Ord. No. 2004-4, 6-14-2004; Ord. No. 2013-5, 7-22-2013)

Sec. 108-902. General regulations.

The following general regulations apply to signs:

- (1) *Sign illumination.* All sign illumination shall be from the interior or from floodlight projection shielded to preclude glare visible from public right-of-ways and residential properties.
- (2) *Rotating signs.* Rotating signs are permitted, provided that the outer edge shall not exceed a speed of four revolutions per minute, and the rotating portion of the sign shall be a minimum of eight feet above the adjacent grade. No rotating sign shall extend over public rights-of-way.

- (3) *Roof-mounted signs.* Signs projecting above the point of intersection of the exterior wall of the building with its roof shall be mounted on a parapet or within the same plane as such exterior wall. Sign area for roof-mounted signs shall be calculated the same as and counted as part of the facade signs. Roof-mounted signs shall be allowed only in B and M Districts, excluding the H-1 Historic District and the B-1 Town Center District.

- (4) *Measurement of sign area.* The square footage of a sign made up of letters, words or symbols within a frame shall be determined from the outside edge of the frame. The square footage of a sign composed of only letters, words, or symbols shall be determined from an imaginary frame around the entire copy or grouping of such letters, words or symbols. Double-faced signs shall be calculated as the area of one side only. Three dimensional or multi-faced signs shall be calculated as the maximum area visible from any point in time.

- (5) *Condition and maintenance.* All signs shall be of rust-prohibitive material or treatment, and shall be maintained in good condition in the opinion of the code enforcement official. All signs, together with all of their supports, braces, guys and anchors, shall be kept in good repair and in a safe state of preservation. The display surfaces of all signs shall be kept neatly painted or posted at all times.

- (6) *Electronic message signs.* Electronic message signs which display time and temperature or provide changing messages are permitted, provided that such signs do not blink.

(Code 1977, § 107-50(D); Ord. No. 2000-10, 9-25-2000)

Sec. 108-903. Prohibited signs.

The following signs and locations are specifically prohibited:

- (1) Signs located in such a manner as to obstruct or otherwise interfere with an official traffic sign, signal or device or obstruct or interfere with a driver's view of approaching, merging or intersecting traffic.
- (2) Except as provided for elsewhere in this chapter, signs encroaching upon or overhanging a public right-of-way. No sign shall be attached to any utility pole, light standard, street tree, or any other public facility located within the public right-of-way.
- (3) Cloth, paper, soft plastic or similar advertising signs or devices other than in rigid frames as provided herein, except those intended as temporary signs, or as provided by subsection (7) of this section.
- (4) Signs which blink, flash or animated by lighting in any fashion that would cause such signs to have the appearance of traffic safety signs and lights, or municipal vehicle warnings from a distance.
- (5) Portable signs except as allowed for temporary signs.
- (6) Any sign attached to, or placed on, a vehicle or recreational vehicle parked on public or private property. The prohibition of this subsection does not prohibit the identification of a firm or its principal products on a vehicle operating during the normal course of business or being taken home.
- (7) Pennants, banners and private flags bearing any logo, product name business name or other advertising, and balloons, except those temporarily displayed as part of a special sale or promotion. For the purposes of this subsection, the term "temporary" means no more than 30

days in any calendar year and no more than 15 consecutive days at any given time.

- (8) Billboards in any district.
(Code 1977, § 107-50(E); Ord. No. 2000-10, 9-25-2000)

Sec. 108-904. Specific sign requirements.

The following height, distance and area requirements shall apply:

- (1) Maximum height from adjacent grade is 25 feet.
- (2) Maximum area is 200 square feet.
- (3) Minimum front yard setback is ten feet.
- (4) Minimum distance from an R District is 100 feet measured along the street line.
- (5) Minimum distance from the street intersection is 50 feet as measured from the right-of-way line.
(Code 1977, § 107-50(F); Ord. No. 2000-10, 9-25-2000)

Sec. 108-905. Identification/directional signs.

(a) No more than one directional sign per street entrance shall be permitted for any enterprise, business or institution.

(b) Such signs shall be for the sole purpose of ensuring safe and convenient access and egress to the use for which they apply.

(c) No such signs shall exceed four square feet in area in an R District and eight feet in other districts.

(Code 1977, § 107-50(G); Ord. No. 2000-10, 9-25-2000)

Sec. 108-906. Freestanding signs.

(a) Freestanding signs shall not be located closer than 50 feet to another freestanding sign located upon another premises, provided that this subsection shall not prohibit the ability to place one freestanding sign upon a premises

that would otherwise have a right to such a sign; nor shall this subsection be applied in a manner that would require a setback for such freestanding sign in excess of what would otherwise be required by this chapter.

(b) Any sign within 15 feet of a property line abutting a street right-of-way shall not be closer than 100 feet from another freestanding sign on the same premises.

(Code 1977, § 107-50(H); Ord. No. 2000-10, 9-25-2000)

Sec. 108-907. Projecting signs.

Projecting signs may project from a building over a public right-of-way, provided that such signs shall not extend within two feet of a street curblin or the improved shoulder edge of a travelway, or impede free and complete use of the sidewalk for pedestrians. Such signs shall have a clearance of seven feet from top of sidewalk to bottom of sign.

(Code 1977, § 107-50(I); Ord. No. 2000-10, 9-25-2000)

Sec. 108-908. Temporary signs.

(a) Political signs shall be permitted in all districts.

- (1) Such signs shall not exceed eight square feet in area and shall not exceed 42 inches in height.
- (2) Such signs shall be permitted only for a period of 60 days preceding the election and shall be removed within ten days after the election, provided that the signs promoting successful candidates or ballot propositions in a primary election may remain displayed through the general election.
- (3) Political signs shall not be placed within any public right-of-way.
- (4) Political signs established in violation of this subsection may be immediately removed by the code enforcement official.

- (5) Such signs shall not be required to obtain a permit.

(b) Portable signs shall not exceed 32 square feet. Such square footage shall be applied and calculated as part of the total square footage permitted for all business signage permitted for the business or property.

- (1) Such signs shall not be displayed for more than 45 days during any single calendar year and no more than 15 consecutive days at any given time.

- (2) There shall be no more than one portable sign per parcel of property or business, permitted at one time.

(c) Real estate signs.

- (1) Real estate signs advertising the sale of lots within a subdivision and commercial property shall not exceed 32 square feet in size and shall be set back 25 feet from the street line. Such sign shall not be erected for more than a period of one year.

- (2) Other such real estate signs advertising no more than one parcel shall not exceed six square feet and 36 inches in height and be 15 feet from every street line.

- (3) Such signs shall be removed upon the closing of the sale.

- (4) Such signs shall not require a permit.

(d) Special sale signs.

- (1) Sale and grand opening signs shall be permitted in all zones, provided that such signs are displayed no more than 15 consecutive days for every three months. Such signs shall be removed immediately upon termination of the sale or event that they advertise.

- (2) All such signs must be attached to the facade, wall or window of the building occupying or conducting the sale or event, which they advertise.

(3) No business shall have more than two such signs for each facade or wall of the building to which they are attached.

(4) The total sign size shall not exceed six square feet.

(Code 1977, § 107-50(J); Ord. No. 2000-10, 9-25-2000)

CODE COMPARATIVE TABLE

1977 CODE

This table gives the location within this Code of those sections of the 1977 Code, as supplemented through April 12, 2010, which are included herein. Sections of the 1977 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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***Note**—The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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